

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[808 NE2d 336, 776 NYS2d 201]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEXTER
HEMMINGS, Appellant.

Argued February 17, 2004; decided March 30, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 29, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (David Stadtmauer, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Hemmings, 304 AD2d 502, affirmed.

HEADNOTES

**Crimes — Sentence — Victim Impact Statement at Sentencing —
Multiple Statements Permitted**

1. Sentencing courts have discretion to allow more than one person to make a victim impact statement at sentencing, beyond the single statement from the victim or victim's surrogate mandated in CPL 380.50 (2). The statute elevated what had previously been a privilege left entirely to the discretion of the sentencing court to a right that a victim or a victim's surrogate could exercise at their discretion. It was not intended to otherwise restrict a sentencing court's discretionary authority to allow others close to the victim to address the court at sentencing.

**Crimes — Sentence — Victim Impact Statement at Sentencing —
Multiple Statements Not Prejudicial**

2. At the sentencing proceeding for defendant, who was convicted of criminal possession of a weapon but acquitted of murder and manslaughter in con-

nection with the shooting death of the victim, the sentencing court did not abuse its discretion in allowing five people to make statements at defendant's sentencing. It had no reason to believe that the statements offered by the victim's family members and friend would be inflammatory or inappropriate. The relatively brief statements consisted largely of descriptions of the incident and requests for a maximum sentence that were cumulative of one another and did not unduly prejudice defendant. It is significant that the court did not impose the maximum sentence but chose a term well within the permissible range.

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By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law § 797.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:3955, 172:3956.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 26.5.

McKINNEY'S, CPL 380.50 (2).

NY JUR 2d, Criminal Law § 2614.

ANNOTATION REFERENCE

Validity, construction, and application of state constitutional or statutory victims' bill of rights. 91 ALR5th 343.

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POINTS OF COUNSEL

White & White, New York City (*Brendan White* and *Diarmuid White* of counsel), for appellant. I. The sentence must be vacated because the sentencing judge erred in permitting several nonstatutory "victims" to make inflammatory statements at sentencing over defendant's objection. (*People v Rivers*, 262 AD2d 108; *People v Julia*, 40 AD2d 560; *People v Pons*, 68 NY2d 264; *People v Blaich*, 201 AD2d 661; *People v Bolson*, 185 Misc 2d 753; *People v Iovinella*, 295 AD2d 753; *People v Arroyo*, 284 AD2d 735; *People v Wright*, 187 AD2d 1016; *People v Raucci*, 136 AD2d 48; *People v Branshaw*, 177 AD2d 1028.) II. The evidence was insufficient to convict defendant of criminal possession of a weapon in the second degree because the prosecution did not prove "intent to use the same unlawfully against another" under Penal Law § 265.03. (*People v Pons*, 68 NY2d 264; *People v Almodovar*, 62 NY2d 126; *Jackson v Virginia*, 443 US 307; *Davis v Strack*, 270 F3d 111; *People v Ramos*, 193 Misc 2d

564; *People v Salcedo*, 92 NY2d 1019; *People v Okafore*, 72 NY2d 81; *People v Almanzar*, 209 AD2d 285; *People v Rowe*, 271 AD2d 217; *People v Howard*, 270 AD2d 117.) III. To the extent that any failure of defense counsel to adequately register a protest is deemed to render a claim raised herein unpreserved for appellate review, defendant was denied effective assistance of counsel. (*People v Finger*, 95 NY2d 894; *People v Gray*, 86 NY2d 10; *People v Benevento*, 91 NY2d 708; *Strickland v Washington*, 466 US 668.)

Robert T. Johnson, District Attorney, Bronx (*Cynthia J. Pree*, *Joseph N. Ferdenzi* and *Stanley R. Kaplan* of counsel), for respondent. I. The court properly allowed Darnell Brown's family members and his close friend to address the court at sentencing. (*People v Albert*, 85 NY2d 851; *People v Hansen*, 99 NY2d 339; *People v McClain*, 35 NY2d 483; *People v Wright*, 187 AD2d 1016; *People v Rivers*, 262 AD2d 108, 94 NY2d 828; *People v Hicks*, 98 NY2d 185; *People v Day*, 73 NY2d 208; *People v Naranjo*, 89 NY2d 1047; *People v Iovinella*, 295 AD2d 753.) II. Defendant's conviction of criminal possession of a weapon in the second degree was supported by legally sufficient evidence. (*People v LaFontaine*, 92 NY2d 470; *People v Gray*, 86 NY2d 10; *People v Finger*, 95 NY2d 894; *People v O'Hara*, 96 NY2d 378; *People v Stahl*, 53 NY2d 1048; *People v Cintron*, 95 NY2d 329; *People v Contes*, 60 NY2d 620; *People v Okafore*, 72 NY2d 81; *People v Russell*, 227 AD2d 232; *People v Tucker*, 55 NY2d 1.) III. Counsel was not ineffective for failing to object that the evidence was insufficient to support a conviction for criminal possession of a weapon in the second degree. (*People v Benevento*, 91 NY2d 708; *Strickland v Washington*, 466 US 668.)

OPINION OF THE COURT

GRAFFEO, J.

In this case, we must determine whether sentencing courts have discretion to allow more than one person to make a victim impact statement at sentencing, beyond the single statement from the victim or victim's surrogate mandated in CPL 380.50 (2). We hold that they do and, under the circumstances of this case, conclude that the sentencing court did not abuse its discretion in allowing five people to make statements at defendant's sentencing.

It is undisputed that, on a night in November 1999, defendant shot and killed Darnell Brown. As a result of the incident, he was charged with murder in the second degree, manslaughter-

ter in the first degree, attempted assault in the third degree and criminal possession of a weapon in the second, third and fourth degrees. Defendant testified at his jury trial, pursuing a justification defense. He acknowledged that earlier on the evening of the shooting he had a dispute with Brown over some property he believed Brown had stolen from him. Defendant testified that he went in search of Brown while armed with a loaded handgun and eventually encountered him in the vestibule of Brown's apartment building. According to defendant, Brown pointed a gun at him and attempted to shoot first but the gun did not discharge. Defendant contended that he and Brown ultimately fought over defendant's weapon and, in the course of that struggle, defendant fatally shot Brown in self-defense. The jury returned a verdict acquitting defendant of the homicide counts and convicting him of criminal possession of a weapon in the second degree.

At the sentencing proceeding, the prosecutor sought permission to call several of Brown's family members and a friend to offer victim impact statements. Defense counsel objected on the ground that hearing "any number of impact statements" would "becloud the judicial atmosphere" and confuse the sentencing process. The sentencing court rejected defendant's argument and concluded that it had discretion to hear the statements. Brown's mother, the mother of Brown's child, his uncle, his cousin and a close friend each spoke at the sentencing proceeding and asked that the court give defendant the maximum sentence allowed by law.

The sentence available for criminal possession of a weapon in the second degree under these circumstances ranged from affording defendant, who was 18 years old at the time of the crime, youthful offender status without incarceration to a term of 15 years in prison. In the presentence investigation report, the probation department recommended that defendant be adjudicated a youthful offender, the disposition requested by defense counsel. The People urged that defendant should receive the maximum 15-year prison sentence. Noting that it had consulted a three-judge sentencing panel for a recommendation concerning the appropriate sentence, the court concluded that a youthful offender finding would not be appropriate and imposed a determinate sentence of eight years. Defendant appealed to the Appellate Division, which affirmed his conviction and declined to disturb the sentence. A Judge of this Court granted defendant leave to appeal.

Relying on CPL 380.50 (2), defendant asserts on appeal that the sentencing court lacked authority to hear the victim impact statements from Brown's family and friend whom he characterizes as "non-statutory" victims.* CPL 380.50 (2) (b) provides that where defendant is convicted of a felony, the sentencing court "shall accord the victim the right to make a statement with regard to any matter relevant to the question of sentence." As defined in the statute, the term victim encompasses the victim of the crime or a surrogate if the victim is deceased, or is unable or unwilling to appear at sentencing (CPL 380.50 [2] [a]).

[1] Defendant's primary argument is that the statute authorizes a sentencing court to hear a single victim impact statement and that the court exceeded its authority when it allowed more than one victim surrogate to speak at the sentencing proceeding. Upon review of the language and legislative history of CPL 380.50 (2), we disagree.

Enacted in 1992, CPL 380.50 (2) was part of a longstanding effort by victim advocacy groups and others to afford victims a greater voice in the criminal justice process, particularly with respect to sentencing. This reform effort involved strengthening restitution provisions (*see* Penal Law § 60.27; *see generally* *People v Horne*, 97 NY2d 404 [2002]), led to the inclusion of victim impact statements in presentence investigation reports (*see* CPL 390.30 [3] [b]), and culminated with the enactment of CPL 380.50 (2) granting victims a right to personally address the court at sentencing proceedings (L 1992, ch 307, § 1; *see also* L 1993, ch 499).

* At the sentencing proceeding, defense counsel also questioned whether a victim impact statement was appropriate because defendant was convicted only of the weapon possession offense. On appeal, defendant argues that his crime had no victim. We disagree. Defendant was convicted of criminal possession of a weapon in the second degree, which required proof that he possessed a loaded firearm "with intent to use the same unlawfully against another" (Penal Law § 265.03 [2]). Despite defendant's assertions to the contrary, by convicting defendant of this offense, the jury found that on the night of the shooting defendant carried the gun intending to use it unlawfully. Although defendant suggests that the acquittals negate any unlawful intent, it would be "imprudent to speculate concerning the factual determinations that underlay the verdict[s]" of not guilty on the homicide counts; the jury may have credited defendant's justification defense, could have concluded the People simply failed to establish defendant's guilt beyond a reasonable doubt, or might have been exercising leniency (*People v Horne*, 97 NY2d 404, 413 [2002]). Under the circumstances, it was well within the sentencing court's discretion to permit people close to Brown to address the court prior to sentencing.

Traditionally, New York courts have exercised broad discretion to determine the appropriate sentence for a particular offense within the range prescribed by law. Before the enactment of CPL 380.50 (2), no statute or decision of this Court precluded a sentencing court from hearing remarks by victims to assist the court in exercising its broad discretion over sentencing—and many courts routinely did. Indeed, at the time the legislation was passed, it was viewed by some as unnecessary, with the Office of Court Administration commenting that “[n]othing in current law prevents a court from permitting a crime victim to make a statement at sentencing in appropriate cases” (Mem of Off of Ct Admin, Bill Jacket, L 1992, ch 307, at 16; *see also* Mem of New York State Law Enforcement Council, Bill Jacket, L 1992, ch 307, at 36).

CPL 380.50 (2) was significant because it unequivocally granted victims a right to speak at sentencing; “[w]hile some sentencing courts had permitted oral victim impact statement [*sic*] prior to passage of that legislation, it was not a universally accepted practice” (Mem of Assemblywoman Mayersohn, Bill Jacket, L 1993, ch 499, at 5). Thus, the statute elevated what had previously been a privilege left entirely to the discretion of the sentencing court to “a right that a victim could exercise at his or her discretion” (*id.*). CPL 380.50 (2) requires the court to allow any victim (or a surrogate) to speak at sentencing. Nothing in the statute’s language or legislative history suggests, however, that the provision was intended to otherwise restrict a sentencing court’s discretionary authority to allow others close to the victim to address the court at sentencing and we therefore decline to read such a limitation into the statute.

As with any exercise of discretion, a court should carefully consider the extent to which additional victim impact statements will assist the court in reaching an appropriate sentencing determination. Multiple statements should not be allowed if the court concludes they will be unduly prejudicial to the defendant or will negatively impact the fair administration of justice. Needless to say, a court remains free, in the exercise of its discretion, to decline a prosecutor’s request to offer more than one victim impact statement or to restrict the number or length of such statements where they would be unhelpful, repetitive, inflammatory or otherwise inappropriate.

[2] In this case, the court did not abuse its discretion in allowing the victim impact statements at the sentencing proceeding. The court noted that it had no reason to believe that the

statements offered by the victim's family members and his friend would be inflammatory or inappropriate. The relatively brief statements consisted largely of descriptions of the incident—facts well known to the sentencing court—and requests for a maximum sentence that were cumulative of one another. Defendant argues that his youth and lack of a serious criminal record militated in favor of a shorter sentence and the court's imposition of a significant prison term could only have resulted from the improper influence of the victim impact statements. We are unpersuaded that defendant was unduly prejudiced by the remarks and find it significant that the court did not impose the maximum sentence but chose a term of imprisonment well within the permissible range despite the grave circumstances surrounding defendant's possession of a loaded weapon with the intent to use it unlawfully.

Defendant's argument that his conviction was not supported by sufficient evidence is not preserved for review (*see People v Gray*, 86 NY2d 10, 19 [1995]). As for defendant's contention that he was denied the effective assistance of counsel, we cannot say on this record that defendant's trial counsel, who secured an acquittal on each of the homicide counts, failed to provide meaningful representation.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

Order affirmed.

[808 NE2d 344, 776 NYS2d 209]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH SMITH, Appellant.

Argued February 18, 2004; decided April 1, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (John E.H. Stackhouse, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree and criminal possession of a controlled substance in the seventh degree.

People v Smith, 304 AD2d 375, affirmed.

HEADNOTE

Crimes — Witnesses — Expert Witness — Explanation of Money Handling Aspects of Street-Level Multi-Member Narcotics Operations

In the prosecution of defendant for criminal sale and criminal possession of a controlled substance arising out of his alleged sale of cocaine to an undercover officer in a single transaction, the trial court abused its discretion in permitting the introduction of the officer's expert testimony as to the money handling aspects of street-level, multi-member narcotics operations. There was no evidence that the transaction involved anyone other than defendant. The fact that the prerecorded buy money the officer gave to defendant was not found on defendant when he was arrested could not by itself serve as a basis to offer expert testimony explaining why police do not always recover buy money following buy-and-bust operations. The error in admitting the expert testimony, however, was harmless, in view of the overwhelming evidence of defendant's guilt.

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AM JUR 2d, Expert and Opinion Evidence §§ 22-28, 40-44, 371.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:3197, 172:3198.

NY JUR 2d, Criminal Law §§ 1991, 1994.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI

ANNOTATION REFERENCE

See ALR Index under Expert and Opinion Evidence.

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POINTS OF COUNSEL

Robert E. Carrigan, Hackensack, New Jersey, for appellant. The introduction of expert police testimony outlining how drugs and money are handled in a multiparticipant, street-level drug dealing business, and explaining that the sellers might take various measures to thwart the recovery of buy money and additional drugs, deprived appellant of due process and a fair trial, because the proof depicted a sale made by a single seller, acting alone. (*People v Brown*, 97 NY2d 500; *Cassano v Hagstrom*, 5 NY2d 643; *People v Taylor*, 75 NY2d 277; *People v Cronin*, 60 NY2d 430; *People v Colon*, 238 AD2d 18; *People v Bethea*, 261 AD2d 629; *People v Lee*, 96 NY2d 157; *People v Henson*, 33 NY2d 63; *People v Suya*, 295 AD2d 173; *People v Taylor*, 247 AD2d 277.)

Robert M. Morgenthau, District Attorney, New York City (*Jennifer Chung* and *Donald J. Siewert* of counsel), for respondent. Defendant has failed to preserve his contention that Justice Stackhouse abused his discretion by admitting the undercover officer's expert testimony at the trial. On the merits, the record does not support defendant's claim. Any error in this regard was harmless. (*People v Brown*, 97 NY2d 500; *People v Cronin*, 60 NY2d 430; *People v Kelsey*, 194 AD2d 248; *People v Tevaha*, 84 NY2d 879; *People v Stephens*, 84 NY2d 990; *People v Graves*, 85 NY2d 1024; *People v Garcia*, 83 NY2d 817; *People v Bethea*, 261 AD2d 629; *People v Starling*, 85 NY2d 509; *People v Clark*, 41 NY2d 612.)

OPINION OF THE COURT

CIPARICK, J.

This appeal presents the question whether the trial court abused its discretion in allowing the introduction of expert testimony as to the money handling aspects of street-level, multi-member narcotics operations where the evidence presented was of a single transaction involving only the defendant and an undercover officer. Under the facts presented, we hold that the trial court abused its discretion. We conclude, however, that the error was harmless and, therefore, affirm the Appellate Division order upholding defendant's conviction.

On March 3, 1999, a narcotics “buy-and-bust” field team of three was organized to conduct operations in central Harlem. The team included a primary undercover officer in charge of hand-to-hand drug transactions, a “ghost” undercover officer responsible for ensuring the safety of the primary undercover and an arresting officer.¹ On his way to meet other field team members, the “ghost” undercover officer saw defendant across the street on 128th Street between Lenox and Fifth Avenues. Defendant was standing curbside and looking back and forth. As the undercover walked toward Fifth Avenue, defendant began to walk in the same direction. He then stopped at the street corner to look at the undercover.

Concerned that defendant was suspicious of police activity, the undercover crossed over to defendant and asked him if anyone was “working” the street. He then asked defendant for a “dime,” or \$10 worth of crack cocaine. After some hesitation, defendant responded “I’ll hook you up” and said he had what the officer wanted. The undercover gave defendant \$10 in prerecorded buy money, and defendant reached into his pocket to retrieve a white-topped vial which he gave to the undercover. The vial contained a white powder that later tested positive for cocaine.

After the purchase, the undercover attempted to lure defendant to the location of the other field team members. The undercover told defendant that he needed to get money from his cousin who lived nearby and that, if the “product” was good, he would use the money to buy more. Defendant assured the undercover that he was going to like the cocaine, and the two turned the corner onto Fifth Avenue. After they walked side-by-side about a quarter of the block toward 129th Street, defendant stopped abruptly. Defendant told the undercover that he would “hook up” with him again the following day, and walked back toward 128th Street.

When defendant turned the corner, the undercover radioed his field team that he had made a “positive buy” and described defendant as a black male wearing bright orange pants, a light blue Yankees baseball cap and multiple jackets. He also described the location and direction in which defendant was walking. The field team’s arresting officer arrived minutes later and discovered defendant, who matched the description, standing where the undercover first encountered him. Defendant was

1. At trial only the arresting officer and the “ghost” undercover testified.

arrested and searched. A white-topped vial containing white powder was recovered from defendant's person, but no prerecorded buy money was found. The substance in the vial tested positive for cocaine. Shortly after defendant's arrest, and about five minutes after the drug purchase, the undercover made a drive-by confirmatory identification of defendant as the seller.

Defendant was charged in an indictment with criminal sale of a controlled substance in the third degree (Penal Law § 220.39) and criminal possession of a controlled substance in the third degree (Penal Law § 220.16). In defense counsel's opening remarks to the jury, she suggested that—because the undercover was preparing to “ghost” another transaction at the time he encountered defendant—the buy-and-bust operation was faulty. The People called the “ghost” undercover officer as a witness and he described the intricacies of street-level narcotics operations. Specifically, over defendant's objection, the court permitted him to testify as to the different roles and functions performed by persons involved in multi-member street-level narcotic sales and how these individuals worked together. The undercover used this expert testimony to explain why police do not always recover buy money following buy-and-bust operations.

Defendant was acquitted of criminal possession of a controlled substance in the third degree (Penal Law § 220.16), but convicted of criminal sale of a controlled substance in the third degree (Penal Law § 220.39) and criminal possession of a controlled substance in the seventh degree (Penal Law § 220.03), and sentenced, as a second felony offender, to concurrent terms of 4½ to 9 years and 1 year, respectively. The Appellate Division affirmed the conviction (304 AD2d 375 [2003]). A Judge of this Court granted defendant leave to appeal and we now affirm.

Relying on this Court's recent decision in *People v Brown* (97 NY2d 500 [2002]), defendant argues that the trial court abused its discretion in permitting the introduction of the undercover's expert testimony on street-level narcotics transactions because the evidence presented was that defendant acted alone. There was no evidence of accomplices.²

In *Brown*, the defendant was arrested following a buy-and-bust operation (97 NY2d 500 [2002]). As no drugs or prerecorded buy money were found on her person, the defendant

2. Trial of this matter was held in October 1999, before our *Brown* decision.

argued to the jury that the police misidentified her as the seller (see *Brown*, 97 NY2d at 503). In response to this misidentification defense, the People offered expert testimony regarding multi-level narcotics transactions to explain why those accused of selling narcotics may not have either drugs or prerecorded buy money on their person shortly after a sale (*Brown*, 97 NY2d at 504-505). We held that such expert testimony may be appropriate as “the average juror is [un]aware of the specialized terminology used in the course of narcotics street sales or the intricacies of how drugs and money are shuttled about in an effort to prevent their discovery and seizure by the police” (*Brown*, 97 NY2d at 505 [citations omitted]).

Nonetheless, “[w]e caution[ed] that such expert testimony is not necessarily proper in every drug sale case where a defendant asserts a misidentification defense” (97 NY2d at 506). In *Brown*, an adequate factual basis existed to permit expert testimony on street-level narcotics transactions because the testimony of “the undercover officer detailed the sequence of events and the interactions of the various individuals he encountered before, during and after the cocaine sale” (97 NY2d at 506). The mere absence of drugs or marked money on the accused, however, cannot by itself serve “as an automatic basis to introduce expert testimony addressing the general characteristics of street drug transactions” (97 NY2d at 506).

Here, the undercover did not testify that defendant interacted with other persons before, during or after the sale. Instead, he testified that—at the time of the transaction—“no one but [defendant] was in the area” and that defendant did not “interact” with any other persons. The undercover spoke only with defendant and gave the prerecorded buy money directly to defendant in exchange for a vial that defendant retrieved from his own pocket.³ Given that no evidence existed that the transaction at issue involved anyone other than defendant, the trial court abused its discretion in permitting the expert testimony regarding multi-individual, street-level narcotics operations.

We conclude, however, that this error was harmless because there is otherwise overwhelming proof of the defendant’s guilt and there is no significant probability that the jury would have

3. The arresting officer testified that he also stopped another man that he saw smoking a crack pipe and walking about 20 feet ahead of defendant, but did not observe any interaction between the two men. Neither did this second man have any of the prerecorded buy money in his possession.

acquitted the defendant had it not been for the error that occurred (*People v Crimmins*, 36 NY2d 230, 242 [1975]).

Excising the improper expert testimony, there was overwhelming evidence that defendant was guilty of criminal sale of a controlled substance in the third degree and criminal possession of a controlled substance in the seventh degree. The undercover gave detailed testimony that he purchased the cocaine from defendant, and that he had a fairly extensive interaction with defendant—walking and talking to him for at least a quarter of a street block after the sale—and that he had made a studied observation of defendant’s face. Soon thereafter, the undercover transmitted to his field team that he made a positive buy and described defendant as a black male wearing bright orange pants, a blue Yankees baseball cap and multiple jackets. The arresting officer arrived at the location within minutes and discovered defendant, fitting the description. A few minutes later, the undercover officer made a drive-by confirmatory identification of defendant as the person from whom he had purchased drugs several minutes earlier.

Further, the arresting officer testified that he recovered narcotics from defendant’s person—a white-topped vial of cocaine, which matched the one defendant sold to the undercover. He also testified, without objection, that the failure to locate prerecorded buy money following a transaction is “not uncommon It’s often hidden or gotten rid of real fast” Finally, the police chemist testified that the white substance contained in both the vial used in the sale and the matching vial found on defendant contained cocaine. In light of this overwhelming proof, there is no significant probability that, had it not been for the admission of the undercover’s expert testimony, the jury would have acquitted the defendant (*see Crimmins*, 36 NY2d at 242).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

[809 NE2d 561, 777 NYS2d 332]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
F. CAHILL, III, Appellant.

Argued September 22, 2003; decided November 25, 2003

SUMMARY

APPEAL, pursuant to NY Constitution, article VI, § 3 (b) and CPL 450.70 (1), from a judgment of the Onondaga County Court (William J. Burke, J.), rendered October 5, 1999. The judgment convicted defendant, upon a jury verdict, of murder in the first degree (two counts), assault in the first degree, and criminal possession of a weapon in the fourth degree (two counts), and sentenced defendant, upon a penalty phase jury determination, to death on each count of murder, 12½ to 25 years' imprisonment for the count of assault, and one year on each count of criminal possession of a weapon, to run concurrently.

HEADNOTES**Crimes — Venue — Motion to Change Venue before Voir Dire**

1. Defendant's pre-voir dire motion pursuant to CPL 230.20 for a change of venue in his capital murder prosecution was properly denied. The county in which the case was venued was not deluged by a tidal wave of prejudicial publicity to such an extent that even an attempt to select an unbiased jury would be fruitless.

Crimes — Venue — Motion to Change Venue after Voir Dire

2. Defendant's post-voir dire motion pursuant to CPL 230.20 for a change of venue in his capital murder prosecution was properly denied. Although 86% of the prospective jurors had heard of the case from media accounts, the test for removal is not based on the number of prospective jurors who have heard of the case, but whether media or other accounts have been so inflammatory as to thwart the selection of a fair-minded jury. Here, most of the media coverage tended to be objective, and the publicity was not so sensational or prejudicial as to have tainted the jury pool. The voir dire successfully culled out jurors who may have been biased by pretrial publicity.

Crimes — Search Warrant — Incorporation by Reference in Warrant Application of Material Previously Submitted to Judge

3. The search of a shed on defendant's property was authorized by a search warrant, notwithstanding that it referred only to defendant's house. The warrant explicitly noted that it was an addendum to a warrant issued three days before, which included searches for certain materials in defendant's home or "within any unattached garage or storage shed." The warrant properly incorporated previously submitted materials known to the issuing judge, who signed five search warrants over four consecutive days related to defendant's prosecution.

Crimes — Capital Murder — Defendant Not Entitled to Bench Trial

4. Defendant was not entitled to the option of a bench trial to alleviate the alleged prejudicial effects of pretrial publicity and consolidation of his indict-

ments for assault and capital murder. There was no prejudicial impact from the pretrial publicity or the consolidation of the indictments. Moreover, state constitutional and statutory law prohibited defendant from waiving his right to a jury trial (NY Const, art I, § 2; CPL 320.10), and he did not have a federal constitutional right to a bench trial.

Crimes — Consolidation and Severance — Consolidation of Assault and Capital Murder Indictments

5. The trial court did not abuse its discretion in allowing consolidation of defendant's assault and capital murder indictments for trial. CPL 200.20 (2) (b) permits joinder of offenses based on different criminal transactions if proof of one offense would be material and admissible in a trial for the other offense. Here, defendant was accused of assaulting his wife and then murdering her six months later while she was in the hospital recovering from her injuries. The prosecution based one of its murder charges on the victim's potential testimony in the assault trial, making proof of the assault relevant to the murder case.

Crimes — Consolidation and Severance — Right to Plead Guilty to Part of Consolidated Indictment

6. Defendant, charged initially with assault, and then charged in a consolidated indictment almost seven months later with assault and capital murder, did not have a right to plead guilty to only the assault portion of the indictment. He could have pleaded guilty to assault before the indictments were consolidated. After consolidation, he could have pleaded guilty to the entire indictment, had the prosecution determined not to seek the death penalty, but not to only a portion of it without the consent of the prosecution and the court (CPL 220.10 [2], [4]).

Crimes — Jurors — Selection of Jury — Capital Murder Trial — Ability to Serve Impartially

7. In a capital murder prosecution, the trial court erred in allowing a prospective juror to remain on the panel where he initially indicated that he would be able to serve impartially, but later acknowledged that his views on domestic violence, an issue highly relevant to the case, would impede his ability to consider life without parole instead of death as an appropriate penalty. The test for determining whether a juror in a capital murder prosecution is life and death qualified, prescribed in CPL 270.20 (1) (f), is whether the juror expresses an inability to set aside his or her personal views on the death penalty in deference to the court's instructions. Here, the juror's initial expressions of open-mindedness were undermined by his later responses. The trial court should have granted defendant's challenge for cause, or at least questioned the juror as to whether these deeply held views would preclude him from serving impartially in a penalty phase before allowing him to remain on the panel.

Crimes — Jurors — Selection of Jury — Capital Murder Trial — Death Qualified

8. In a capital murder prosecution, the trial court erred in granting the prosecution's challenge for cause of a prospective juror who stated during voir dire that "in most instances" the death penalty was wrong, but who repeatedly indicated during questioning that she could consider both death and life without parole as possible punishments for defendant. The test for determining whether a juror in a capital murder prosecution is life and death qualified, prescribed in CPL 270.20 (1) (f), is whether the juror expresses an inability to

set aside his or her personal views on the death penalty in deference to the court's instructions. Here, the prospective juror was death qualified. Although she initially may have expressed reservations about the death penalty, after doing so she made it clear that she could follow her oath, act impartially and consider both the death penalty and life without parole.

Crimes — Jurors — Selection of Jury — Capital Murder Trial — Remedy for Penalty-Related Juror Selection Errors

9. In a capital murder prosecution, the trial court's erroneous rulings pertaining to two prospective jurors based on challenges that went only to their ability to deliberate fairly and impartially at the penalty phase did not justify a new guilt-phase trial. The appropriate remedy for an error made in the selection of an unqualified penalty phase juror in a capital murder prosecution is reversal of the sentence, as opposed to the entire trial.

Crimes — Right to be Present at Trial — Waiver — Sidebar Conferences

10. Defendant's statutory right to be present at trial was not violated by his absence at two sidebar conferences during the group voir dire (*see* CPL 260.20). Although a defendant's right to be present at trial extends to sidebar and robing room conferences with prospective jurors regarding possible bias, the right may be waived. Here, defendant waived his right to be present at the sidebar conferences, twice asserting on the record that he accepted and understood the waiver.

Crimes — Capital Murder — Witness Elimination — Applicable Standard

11. In a prosecution for first degree murder based on witness elimination under Penal Law § 125.27 (1) (a) (v), the statute is satisfied if the defendant's motivation to eliminate the victim as a witness is a substantial factor in murdering the victim, even though the defendant may have had mixed motives.

Crimes — Capital Murder — Witness Elimination — Legal Sufficiency of Evidence

12. Defendant's first degree murder conviction based on witness elimination under Penal Law § 125.27 (1) (a) (v) for poisoning his wife with cyanide while she was in the hospital recovering from serious injuries he had inflicted upon her six months earlier was based on legally sufficient evidence. The prosecution established a timeline linking Family Court appearances concerning the parties' children with defendant's search for cyanide, developments in defendant's assault case with his procurement of cyanide, defendant's conversation with his mother about her visit to his wife in the hospital with defendant's first disguised entrance into the hospital, and defendant's upcoming *Huntley* hearing in the assault case with his having committed the murder. Viewed in the light most favorable to the People, the timeline theory established a legally sufficient case.

Crimes — Capital Murder — Witness Elimination — Verdict against Weight of Evidence

13. Defendant's first degree murder conviction based on witness elimination under Penal Law § 125.27 (1) (a) (v) for poisoning his wife while she was in the hospital recovering from serious injuries he had inflicted upon her six months earlier was against the weight of the evidence and must be vacated. Although the prosecution established a legally sufficient case with a timeline

theory linking certain developments in defendant's assault prosecution with his having committed the murder, the weight of the evidence at trial did not support witness elimination as a substantial motive for the murder. Rather, it led to the conclusion that defendant wanted to kill his wife for reasons that had virtually nothing to do with her ability to testify against him.

Crimes — Capital Murder — Murder in Furtherance of Second Degree Burglary — Separate Intent Required

14. Defendant's conviction under Penal Law § 125.27 (1) (a) (vii) for committing first degree murder in the course and in furtherance of second degree burglary by sneaking into his wife's hospital room and poisoning her while she was recovering from serious injuries he had previously inflicted upon her must be vacated, as defendant did not have a felonious intent independent of the murder itself. Defendant's trespass on the hospital premises was merely a prerequisite to his committing the murder—an enabling measure that had no purpose or substance other than to serve his only goal, to kill his victim. Burglary requires an intent to commit a crime in the burglarized premises, and here the prosecutor used defendant's intent to kill his wife to both satisfy the burglary definition and elevate defendant's intentional murder to first degree murder. In order to be eligible for the death penalty, a burglar must have entered the building with the intent to commit a separate crime, such as steal, rob, or rape, and in addition have killed someone intentionally, in the course and in furtherance of the burglary.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 517, 522, 523, 527, 528, 531, 532, 711, 1079–1081; AM JUR 2d, Homicide §§ 39, 40, 44, 64, 201, 202, 205, 218, 447, 452, 477, 483, 484, 497, 551; AM JUR 2d, Indictments and Informations §§ 206, 209; AM JUR 2d, Jury §§ 228–232, 267, 279, 291; AM JUR 2d, Searches and Seizures §§ 167–169, 173.

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LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.4, 16.3, 22.3.

McKINNEY'S, CPL 200.20 (2) (b); 220.10 (2), (4); 230.20, 260.20, 270.20 (1) (f); 320.10; McKINNEY'S, Penal Law § 125.27 (1) (a) (v), (vii); McKINNEY'S, NY Const, art I, § 2.

NY JUR 2d, Criminal Law §§ 318, 326, 334, 337, 339, 1138, 1143, 1192, 1193, 1199, 1202–1204, 1206, 1350, 1351, 1360, 1383, 2224, 2230, 2240, 2241, 2256, 2258, 2278–2283, 2287, 2664.1, 3783, 3803, 3806, 3812.

ANNOTATION REFERENCES

Pretrial publicity in criminal case as ground for change of venue. 33 ALR3d 17.

Beliefs regarding capital punishment as disqualifying juror in capital case—post-Witherspoon cases. 39 ALR3d 550.

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POINTS OF COUNSEL

Kevin M. Doyle, Capital Defender, New York City (Ann M. Parrent, Claudia Van Wyk and Sean J. Bolser of counsel), for appellant. I. Mr. Cahill was denied his right to a fair trial before an impartial jury because inflammatory and prejudicial pretrial publicity saturated the community from which the jury was drawn. (*People v Mateo*, 239 AD2d 965; *People v DiPiazza*, 24 NY2d 342; *People v Boss*, 261 AD2d 1; *People v Brensic*, 136 AD2d 169; *People v Boudin*, 90 AD2d 253; *Sheppard v Maxwell*, 384 US 333; *Irvin v Dowd*, 366 US 717; *People v Arnold*, 96 NY2d 358; *People v Culhane*, 33 NY2d 90; *Rideau v Louisiana*, 373 US 723.) II. The trial court erred in refusing to dismiss four prospective jurors who had formed opinions as to Mr. Cahill's guilt based on the extensive pretrial media coverage of the case. (*People v Bludson*, 97 NY2d 644; *People v Arnold*, 96 NY2d 358; *People v Johnson*, 94 NY2d 600; *People v Culhane*, 33 NY2d 90; *Duncan v Louisiana*, 391 US 145; *Turner v Louisiana*, 379 US 466; *Irvin v Dowd*, 366 US 717; *People v Branch*, 46 NY2d 645; *People v Torpey*, 63 NY2d 361; *People v Blyden*, 55 NY2d 73.) III. The trial court wrongfully refused to dismiss two prospective jurors who could not be fair and impartial due to the influence of their own experiences with domestic violence. (*People v Arnold*, 96 NY2d 358; *People v Bludson*, 97 NY2d 644; *People v Torpey*, 63 NY2d 361; *People v Culhane*, 33 NY2d 90; *People v Johnson*, 94 NY2d 600; *People v Williams*, 63 NY2d 882.) IV. The trial court violated Mr. Cahill's right to a constitutionally selected jury and his full complement of peremptory challenges when it erroneously denied his request to dismiss six prospective jurors whose personal views substantially impaired their ability to render an impartial verdict or discharge their obligations at the penalty phase. (*Morgan v Illinois*, 504 US 719; *Ross v Oklahoma*, 487 US 81; *Woodson v North Carolina*, 428 US 280; *Spaziano v Florida*, 468 US 447; *Eddings v Oklahoma*, 455 US 104; *Lockett v Ohio*, 438 US 586; *People v Culhane*, 33 NY2d 90; *People v Bludson*, 97 NY2d 644; *People v Arnold*, 96 NY2d 358; *Mills v Maryland*, 486 US 367.) V. The trial court's restric-

tions on voir dire prevented Mr. Cahill from demonstrating that prospective jurors should have been dismissed due to their views in favor of the death penalty. (*People v Blyden*, 55 NY2d 73; *People v Rubicco*, 34 NY2d 841; *People v Hosier*, 132 App Div 146, 196 NY 506; *People v Porter*, 226 AD2d 275; *People v Rampersant*, 182 AD2d 373; *People v De Francesco*, 88 AD2d 920; *People v Williams*, 41 AD2d 611; *Morgan v Illinois*, 504 US 719.) VI. The trial court improperly denied Mr. Cahill the opportunity to conduct voir dire of three prospective jurors, instead dismissing them based solely on the death penalty views expressed in their written questionnaires. (*United States v Chanthadara*, 230 F3d 1237; *Gray v Mississippi*, 481 US 648; *People v Provenzano*, 50 NY2d 420; *People v Rowe*, 253 AD2d 831.) VII. The trial court improperly dismissed four prospective jurors based upon expressions of general opposition to the death penalty despite their assurances that their personal views would not preclude them from fairly considering a death sentence in accordance with the New York capital sentencing scheme. (*Gray v Mississippi*, 481 US 648; *Witherspoon v Illinois*, 391 US 510; *Adams v Texas*, 448 US 38; *Wainwright v Witt*, 469 US 412; *People v Finnegan*, 85 NY2d 53; *People v Fernandez*, 301 NY 302; *People v DiPiazza*, 24 NY2d 342; *People v Buford*, 69 NY2d 290; *Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d 148; *People v Cronin*, 60 NY2d 430.) VIII. The trial court wrongly refused to hold hearings on Mr. Cahill's claims that the jury commissioner's methods for selecting grand jurors and trial jurors were arbitrary and illegal. (*People v Chinn*, 234 AD2d 1014; *People v Huffman*, 41 NY2d 29; *People v Guzman*, 60 NY2d 403; *Casteneda v Partida*, 430 US 482; *Peters v Kiff*, 407 US 493; *Campbell v Louisiana*, 523 US 392; *People v Reinhardt*, 193 AD2d 1122; *People v Contrearras*, 227 AD2d 907; *People v Skibinski*, 55 AD2d 48; *People v Arnold*, 96 NY2d 358.) IX. By denying the defense motion for funds to engage a jury consultant for a telephone survey to support the change of venue motion, the trial court denied Mr. Cahill's statutory and constitutional rights. (*Matter of New York State Assn. of Criminal Defense Lawyers v Kaye*, 96 NY2d 512; *People v Boss*, 261 AD2d 1; *People v Brensic*, 136 AD2d 169; *People v Boudin*, 90 AD2d 253; *United States v Durant*, 545 F2d 823; *Ake v Oklahoma*, 470 US 68; *United States v Bass*, 477 F2d 723; *United States v Theriault*, 440 F2d 713; *Little v Armontrout*, 835 F2d 1240; *Ford v Seabold*, 841 F2d 677.) X. The evidence at trial was legally insufficient to prove beyond a reasonable doubt that Mr. Cahill was guilty of first degree felony murder under Penal Law § 125.27

(1) (a) (vii). (*People v Bleakley*, 69 NY2d 490; *Jackson v Virginia*, 443 US 307; *People v Couser*, 94 NY2d 631; *People v Hedgeman*, 70 NY2d 533; *People v P.J. Video, Inc.*, 68 NY2d 296; *People v Case*, 42 NY2d 98; *People v Gottlieb*, 36 NY2d 629; *People v Giordano*, 87 NY2d 441; *Sanders v Winship*, 57 NY2d 391; *People v Hernandez*, 82 NY2d 309.) XI. The court must reverse the felony-murder conviction because the prosecution did not prove the underlying felony of burglary and because it wrongfully charged and attempted to prove, and the trial court improperly instructed on, alternative theories of burglary, denying Mr. Cahill fair notice of the charges and a unanimous verdict. (*People v Gaines*, 74 NY2d 358; *People v Keindl*, 68 NY2d 410; *People v Bailey*, 58 NY2d 272; *People v Morris*, 61 NY2d 290; *People v Wilson*, 252 AD2d 960; *People v Iannone*, 45 NY2d 589; *People v Villani*, 59 NY2d 781; *People v Cobey*, 184 AD2d 1002; *People v Mackey*, 49 NY2d 274; *People v Grega*, 72 NY2d 489.) XII. The evidence at trial was legally insufficient to prove beyond a reasonable doubt that Mr. Cahill was guilty of first degree witness-elimination murder under Penal Law § 125.27 (1) (a) (v), and his conviction is against the weight of the evidence. (*People v Williams*, 84 NY2d 925; *People v Wong*, 81 NY2d 600; *Jackson v Virginia*, 443 US 307; *People v Hedgeman*, 70 NY2d 533; *Lewis v Jeffers*, 497 US 764; *Renz v Grey Adv., Inc.*, 135 F3d 217; *Matter of Great E. Liq. Corp. v State Liq. Auth.*, 25 NY2d 525; *People v Maher*, 89 NY2d 456; *People v Perry*, 277 NY 460; *People v Harris*, 209 NY 70.) XIII. The prosecution's improper attempt to impeach its own witness with her grand jury testimony deprived Mr. Cahill of a fundamentally fair trial. (*People v Saez*, 69 NY2d 802; *People v Fitzpatrick*, 40 NY2d 44; *People v Winant*, 179 Misc 2d 357; *People v Alicea*, 37 NY2d 601; *People v Clark*, 195 AD2d 988; *People v Brazzeal*, 172 AD2d 757; *People v Hickman*, 148 AD2d 937; *People v Dann*, 100 AD2d 909; *People v Jordan*, 59 AD2d 746; *People v Pelchat*, 62 NY2d 97.) XIV. The trial court improperly restricted the cross-examination of a witness regarding the critical disputed matter of the status of the plea negotiations in the assault case. (*People v Kennedy*, 70 AD2d 181; *People v Rowe*, 236 AD2d 637; *People v Gonzalez*, 131 AD2d 873; *People v Bethune*, 105 AD2d 262; *People v Fowler*, 46 AD2d 838, *affd sub nom. People v Broadie*, 37 NY2d 100; *People v Tice*, 131 NY 651; *People v Hadden*, 95 AD2d 725; *Feldsberg v Nitschke*, 49 NY2d 636; *People v Becker*, 210 NY 274; *People v Panetta*, 250 AD2d 710.) XV. Due to their personal knowledge of evidentiary facts, a trial prosecutor, the trial judge, and defense counsel all became

unsworn witnesses before the jury, denying Mr. Cahill his rights to a fair trial, an impartial trial judge, and unconflicted counsel. (*Rose v Clark*, 478 US 570; *People v Tassiello*, 300 NY 425; *Berger v United States*, 295 US 78; *People v Paperno*, 54 NY2d 294; *People v Lovello*, 1 NY2d 436; *People v Malkin*, 250 NY 185; *People v De Jesus*, 42 NY2d 519; *People v Bell*, 38 NY2d 116; *Quercia v United States*, 289 US 466; *People v Wandell*, 75 NY2d 951.) XVI. The trial court's erroneous consolidation of the two indictments and refusal to allow Mr. Cahill to plead guilty to the assault led to the introduction of extensive prejudicial evidence about the assault, depriving him of his right to a fair trial and a reliable sentencing determination. (*People v Lane*, 56 NY2d 1; *People v Pinkas*, 156 AD2d 485; *People v Forest*, 50 AD2d 260; *People v Fox*, 72 AD2d 146; *United States v Jones*, 16 F3d 487; *People ex rel. Janosko v Fay*, 6 NY2d 82; *People v Taylor*, 16 AD2d 944, 13 NY2d 675; *People v Schultz*, 23 Misc 2d 620, 15 AD2d 948, 11 NY2d 1058; *Crane v Kentucky*, 476 US 683; *Webb v Texas*, 409 US 95.) XVII. The trial court's erroneous admission of inflammatory victim photographs and the prosecution's use of them in summation deprived Mr. Cahill of a fair trial by an impartial jury, due process of law, and reliable guilt and sentencing proceedings. (*People v Primo*, 96 NY2d 351; *People v Davis*, 43 NY2d 17; *People v Feldman*, 299 NY 153; *People v Monaco*, 57 NY2d 645; *People v Miller*, 6 NY2d 152; *People v Caruso*, 246 NY 437; *People v Stevens*, 76 NY2d 833; *People v Cronin*, 60 NY2d 430; *People v Williams*, 56 NY2d 236; *People v Mayrant*, 43 NY2d 236.) XVIII. Because the October 31 search warrant authorized a search of Mr. Cahill's house, not his shed, the seizure of property from the shed violated his right to be free of unreasonable searches and seizures. (*People v Arthur*, 175 Misc 2d 742; *People v Brown*, 96 NY2d 80; *People v Darling*, 95 NY2d 530; *People v Rainey*, 14 NY2d 35; *People v Dumper*, 28 NY2d 296; *People v LaDuke*, 206 AD2d 859; *People v Caruso*, 174 AD2d 1051; *People v Sciacca*, 57 AD2d 846, 45 NY2d 122; *People v De Sivo*, 194 AD2d 935; *People v Yusko*, 45 AD2d 1043.) XIX. The trial court's guilt-phase instructions undermined the reliability of the verdict by incorrectly defining the elements of the first degree murder counts and understating the prosecution's burden of proof. (*People v Flynn*, 79 NY2d 879; *People v Lewis*, 64 NY2d 1031; *People v Blacknall*, 63 NY2d 912; *Sullivan v Louisiana*, 508 US 275; *In re Winship*, 397 US 358; *Smith v Horn*, 120 F3d 400; *Carella v California*, 491 US 263; *People v Walsh*, 262 NY 140; *People v Rosario*, 9 NY2d 286; *People v Marendi*, 213 NY 600.) XX. The prosecution improperly argued

and elicited evidence to support the theme of the case as a battle between good and evil, symbolized by the victim and defendant, deflecting the jury's attention from the exacting analysis of the evidence required to determine whether the prosecution had proved the aggravating factors beyond a reasonable doubt. (*People v Ashwal*, 39 NY2d 105; *People v Posner*, 273 NY 184; *People v Calabria*, 94 NY2d 519; *People v Bailey*, 58 NY2d 272; *People v De Jesus*, 42 NY2d 519; *People v Nevedo*, 202 AD2d 183; *People v Damon*, 24 NY2d 256; *People v Miller*, 6 NY2d 152; *People v Caruso*, 246 NY 437; *People v Monaco*, 57 NY2d 645.) XXI. The prosecutor's reference in the grand jury to a statement taken in violation of Mr. Cahill's right to counsel, his apparent failure to voir dire the grand jurors on pretrial publicity, and other potential misconduct impaired the integrity of the grand jury. (*People v Calbud, Inc.*, 49 NY2d 389; *People v Iannone*, 45 NY2d 589; *United States v Calandra*, 414 US 338; *People v Huston*, 88 NY2d 400; *People v Stanton*, 241 AD2d 687; *People v Percy*, 45 AD2d 284, 38 NY2d 806; *People v Sayavong*, 83 NY2d 702; *People v Louissant*, 240 AD2d 433; *People v Richie*, 77 AD2d 667; *People v Landon*, 175 Misc 2d 861.) XXII. Mr. Cahill's absence from the *Wade* hearing and bench conferences with prospective jurors about potential bias violated his statutory rights and his rights under the Confrontation and Due Process Clauses of the State and Federal Constitutions. (*People v Sprowal*, 84 NY2d 113; *Kentucky v Stincer*, 482 US 730; *United States v Wade*, 388 US 218; *People v Roman*, 88 NY2d 18; *People v Epps*, 37 NY2d 343; *Johnson v Zerbst*, 304 US 458; *People v Parker*, 57 NY2d 136; *Beck v Alabama*, 447 US 625; *People v Keen*, 94 NY2d 533; *People v Marino*, 249 AD2d 490.) XXIII. The trial court's denial of Mr. Cahill's motion for a separate sentencing jury ensured that the jury would consider the circumstances of the assault and sympathy for the victim and her family as reasons supporting a death sentence in violation of the New York death penalty statute and Mr. Cahill's right to a fair and reliable sentencing determination. (*Bruton v United States*, 391 US 123; *People v Shapiro*, 50 NY2d 747; *Kyles v Whitley*, 514 US 419; *People v Crimmins*, 36 NY2d 230; *People v Stanard*, 32 NY2d 143; *Simmons v South Carolina*, 512 US 154; *Beck v Alabama*, 447 US 625; *United States v Chanthadara*, 230 F3d 1237; *People v LaSalle*, 95 NY2d 827.) XXIV. The trial court's refusal to conduct an adequate midtrial voir dire deprived Mr. Cahill of his rights to due process, a fair and impartial jury and a fair and reliable sentencing determination. (*People v Buford*, 69 NY2d 290; *Community Bd. 7 of Borough of*

Manhattan v Schaffer, 84 NY2d 148; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151; *People v Finnegan*, 85 NY2d 53; *1605 Book Ctr. v Tax Appeals Trib. of State of N.Y.*, 83 NY2d 240; *People v Arnold*, 96 NY2d 358; *People v Johnson*, 94 NY2d 600; *People v Wongshing*, 245 AD2d 186; *People v Porter*, 226 AD2d 275; *People v De Francesco*, 88 AD2d 920.) XXV. The trial court's penalty-phase instructions deprived Mr. Cahill of a fair and reliable sentencing determination. (*People v LaSalle*, 95 NY2d 827; *Boyde v California*, 494 US 370; *People v Victor*, 62 NY2d 374; *Gregg v Georgia*, 428 US 153; *Furman v Georgia*, 408 US 238; *Godfrey v Georgia*, 446 US 420; *Payne v Tennessee*, 501 US 808; *People v Miller*, 6 NY2d 152; *People v Caruso*, 246 NY 437; *People v Santarelli*, 49 NY2d 241.) XXVI. By preventing defense counsel from asking two deputy sheriffs who had supervised Mr. Cahill in the county jail whether he would be a positive influence in state prison, the trial court excluded relevant mitigating evidence, subjected him to cruel and unusual punishment, and deprived him of due process of law. (*Eddings v Oklahoma*, 455 US 104; *Lockett v Ohio*, 438 US 586; *People v Smith*, 63 NY2d 41; *People v Davis*, 43 NY2d 17; *Skipper v South Carolina*, 476 US 1; *McLain v Calderon*, 134 F3d 1383; *Bryson v Ward*, 187 F3d 1193, 529 US 1058; *Chapman v California*, 386 US 18; *People v Crimmins*, 36 NY2d 230; *People v LaSalle*, 95 NY2d 827.) XXVII. New York's capital sentencing statute, and the court's conforming instructions that a deadlock between death and life without parole would result in a parole-eligible sentence, deprived Mr. Cahill of due process of law and subjected him to cruel and unusual punishment. (*Penry v Lynaugh*, 492 US 302; *California v Brown*, 479 US 538; *Mills v Maryland*, 486 US 367; *McKoy v North Carolina*, 494 US 433; *Woodson v North Carolina*, 428 US 280; *Roberts v Louisiana*, 428 US 325; *Beck v Alabama*, 447 US 625; *People v Santini*, 221 App Div 139, 246 NY 612; *California v Ramos*, 463 US 992; *People v Ali*, 65 AD2d 513, 47 NY2d 920.) XXVIII. The trial court denied Mr. Cahill the right of allocution. (*People v Nesce*, 201 NY 111; *People v Faber*, 199 NY 256; *Messner v People*, 45 NY 1; *People v McClain*, 35 NY2d 483; *People ex rel. Miller v Martin*, 1 NY2d 406; *Green v United States*, 365 US 301; *Couch v United States*, 235 F2d 519; *Arbegas v Board of Educ.*, 65 NY2d 161; *Matter of Mulvaney v Dubin*, 80 AD2d 566, 55 NY2d 668; *FGL & L Prop. Corp. v City of Rye*, 66 NY2d 111.) XXIX. The District Attorney's penalty-phase summation improperly appealed to sympathy for the victim and outrage against defendant on behalf of the community and subverted the legal stan-

dards to suggest that a death sentence was an appropriate vehicle for the jurors' emotional responses to the victim, the defendant and the crime. (*Gardner v Florida*, 430 US 349; *Furman v Georgia*, 408 US 238; *People v Ashwal*, 39 NY2d 105; *Caldwell v Mississippi*, 472 US 320; *Berger v United States*, 295 US 78; *People v Nevedo*, 202 AD2d 183; *Sawyer v Smith*, 497 US 227; *People v Paperno*, 54 NY2d 294; *People v Tassiello*, 300 NY 425; *People v Mott*, 94 AD2d 415.) XXX. The trial court violated Mr. Cahill's statutory and constitutional rights when it responded in writing to two jury notes instead of instructing the jury on the record in Mr. Cahill's presence. (*People v Mehmedi*, 69 NY2d 759; *People v Wiemeier*, 222 AD2d 972; *People v Bonilla*, 186 AD2d 748; *People v Bonamassa*, 160 AD2d 888; *People v Lopez*, 156 AD2d 476; *People v Huarotte*, 134 AD2d 166; *People v Hewlett*, 133 AD2d 417; *People v LaSalle*, 95 NY2d 827.) XXXI. The death sentence was imposed against the weight of the evidence. (*Aldridge v Dugger*, 925 F2d 1320; *Hitchcock v Dugger*, 481 US 393; *Dawson v Delaware*, 503 US 159; *Parker v Dugger*, 498 US 308; *Pursell v Horn*, 187 F Supp 2d 260; *Hargrave v Dugger*, 832 F2d 1528; *Smith v Singletary*, 61 F3d 815; *Jeffries v Blodgett*, 5 F3d 1180, 510 US 1191; *McKenna v McDaniel*, 65 F3d 1483.) XXXII. Because Mr. Cahill was tried and sentenced to death under a statutory scheme that this Court, in *Matter of Hynes v Tomei* (92 NY2d 613 [1998]) declared unconstitutional, his convictions and death sentences must be reversed. (*United States v Jackson*, 390 US 570; *Atkinson v North Carolina*, 403 US 948; *Roseboro v North Carolina*, 403 US 948; *Sanders v North Carolina*, 403 US 948; *Williams v North Carolina*, 403 US 948; *Parker v North Carolina*, 397 US 790; *Matter of Francois v Dolan*, 95 NY2d 33; *Pope v United States*, 392 US 651; *People v Rodriguez*, 71 NY2d 214; *People v Anderson*, 70 NY2d 729.) XXXIII. The trial court, by death qualifying the jury before the guilt phase, selected a guilt-phase jury skewed in favor of the prosecution, conditioned all the jurors to assume guilt, and disproportionately excluded women, thus depriving Mr. Cahill of his federal and state constitutional rights to be tried by an impartial jury, and one drawn from a fair cross section of the community. (*Lockhart v McCree*, 476 US 162; *People v Alvarez*, 70 NY2d 375; *People v Scott*, 79 NY2d 474; *People v P.J. Video, Inc.*, 68 NY2d 296; *People v Branch*, 46 NY2d 645; *People v Johnson*, 94 NY2d 600; *Grigsby v Mabry*, 569 F Supp 1273, 758 F2d 226, *revd sub nom. Lockhart v McCree*, 476 US 162; *Keeten v Garrison*, 578 F Supp 1164, 742 F2d 129; *Morgan v Illinois*, 504 US 719; *People v Kern*, 75 NY2d 638.) XXXIV.

The trial court should have permitted Mr. Cahill the option of a bench trial as a means of avoiding the prejudicial impact of the pretrial publicity and the consolidation of the two indictments. (*Singer v United States*, 380 US 24; *United States v Panteleakis*, 422 F Supp 247; *United States v Braunstein*, 474 F Supp 1; *United States v Lewis*, 638 F Supp 573.) XXXV. New York's death penalty constitutes cruel and unusual punishment and, without compelling state interest, deprives citizens of the fundamental right to life and, thereby, of due process and equal protection. (*Gregg v Georgia*, 428 US 153; *People ex rel. Kemmler v Durston*, 119 NY 569, 136 US 436; *People v Alvarez*, 70 NY2d 375; *Michigan v Long*, 463 US 1032; *People v P.J. Video, Inc.*, 68 NY2d 296; *People v Van Pelt*, 76 NY2d 156; *People v Johnson*, 66 NY2d 398; *People v Davis*, 33 NY2d 221; *People v Broadie*, 37 NY2d 100; *Jackson v Bishop*, 404 F2d 571.) XXXVI. The trial court erred in summarily rejecting Mr. Cahill's challenge to New York's lethal-injection procedures. (*Estelle v Gamble*, 429 US 97; *Jackson v Bishop*, 404 F2d 571; *Ford v Wainwright*, 477 US 399; *Weems v United States*, 217 US 349; *Trop v Dulles*, 356 US 86; *Stanford v Kentucky*, 492 US 361; *Robinson v California*, 370 US 660; *Furman v Georgia*, 408 US 238; *People ex rel. Kemmler v Durston*, 119 NY 569, 136 US 436; *Wilkerson v Utah*, 99 US 130.) XXXVII. The trial court's decision to return the jury foreperson to penalty phase deliberations after she was hospitalized overnight with chest pains, based solely on its ex parte off-the-record conversation with her, denied Mr. Cahill his right to a fair trial by an impartial jury, his right to a fair and reliable sentencing determination, his right to counsel, and his right to be present at trial. (*People v Johnson*, 94 NY2d 600; *Duncan v Louisiana*, 391 US 145; *People v Rodriguez*, 71 NY2d 214; *People v Buford*, 69 NY2d 290; *People v Page*, 72 NY2d 69; *People v Jeanty*, 94 NY2d 507; *People v Ruggiero*, 279 AD2d 538; *People v McClenton*, 213 AD2d 1; *People v South*, 177 AD2d 607; *People v Velasquez*, 227 AD2d 122.) XXXVIII. New York's death penalty scheme allows district attorneys to select capital defendants arbitrarily, inconsistently, and discriminatorily. (*Gregg v Georgia*, 428 US 153; *Furman v Georgia*, 408 US 238; *Godfrey v Georgia*, 446 US 420; *Proffitt v Florida*, 428 US 242; *Jurek v Texas*, 428 US 262; *People v Eboli*, 34 NY2d 281; *Bordenkircher v Hayes*, 434 US 357; *Matter of Haggerty v Himelein*, 89 NY2d 431; *Deal v United States*, 508 US 129; *Nicholas v Kahn*, 47 NY2d 24.)

William J. Fitzpatrick, District Attorney, Syracuse (James P. Maxwell, Victoria M. White, Gary T. Kelder, Domenic F. Trunfio,

Christopher J. Bednarski, Molly A. Cappuccilli, Matthew J. Doran, David A. Rothschild and Bridget A. Scholl of counsel), for respondent. I. Appellant was afforded a fair trial, despite claimed pretrial publicity. (*People v Gray*, 86 NY2d 10; *People v Mateo*, 239 AD2d 965; *People v Chinn*, 231 AD2d 965; *People v Solomon*, 172 AD2d 781, 78 NY2d 975; *Murphy v Florida*, 421 US 794; *Dobbert v Florida*, 432 US 282; *People v McClary*, 150 AD2d 631; *People v Harris*, 98 NY2d 452; *Wainwright v Witt*, 469 US 412; *People v Parker*, 60 NY2d 714.) II. The trial court properly denied appellant's challenges for cause against four prospective jurors who heard media reports about this case. (*People v Williams*, 63 NY2d 882; *People v Genovese*, 10 NY2d 478; *People v Stewart*, 185 AD2d 677; *People v Butts*, 140 AD2d 739; *People v Torpey*, 63 NY2d 361; *People v Johnson*, 94 NY2d 600; *People v Arnold*, 96 NY2d 358; *People v Chambers*, 97 NY2d 417; *People v Culhane*, 33 NY2d 90; *People v Blyden*, 55 NY2d 73.) III. The trial court properly denied appellant's challenges for cause against two additional prospective jurors who had experiences with domestic violence. (*Ross v Oklahoma*, 487 US 81; *People v Maher*, 89 NY2d 318; *People v Roman*, 88 NY2d 18; *People v Johnson*, 94 NY2d 600; *People v Torpey*, 63 NY2d 361; *People v Chambers*, 97 NY2d 417; *People v Arnold*, 96 NY2d 358; *People v Williams*, 63 NY2d 882; *People v Blyden*, 55 NY2d 73; *People v Young*, 298 AD2d 258, 99 NY2d 566.) IV. The trial court acted within its discretion in denying appellant's for-cause challenges to six prospective jurors whose views about the death penalty did not prevent or substantially impair them from impartially serving. (*People v Harris*, 98 NY2d 452; *People v Arnold*, 96 NY2d 358; *People v Gray*, 86 NY2d 10; *People v Bludson*, 97 NY2d 644.) V. The trial court did not improperly restrict appellant's voir dire of prospective jurors. (*People v Clarke*, 81 NY2d 777; *People v Porter*, 226 AD2d 275; *People v Jean*, 75 NY2d 744; *People v Pepper*, 59 NY2d 353; *People v Boulware*, 29 NY2d 135, 405 US 995; *People v Coleman*, 262 AD2d 219, 94 NY2d 798; *People v Swift*, 260 AD2d 157, 93 NY2d 930; *People v Bennett*, 238 AD2d 898, 90 NY2d 855, 890; *People v Woolridge*, 272 AD2d 242; *People v Davis*, 248 AD2d 281, 91 NY2d 1006.) VI. The trial court properly discharged three prospective jurors based solely on their questionnaire responses. (*People v Harris*, 98 NY2d 452; *Wainwright v Witt*, 469 US 412; *People v Santiago*, 184 Misc 2d 403; *People v Boulware*, 29 NY2d 135; *People v Jean*, 75 NY2d 744; *People v Rampersant*, 182 AD2d 373; *People v Pepper*, 59 NY2d 353; *Adams v Texas*, 448 US 38; *Witherspoon v Illinois*, 391 US 510; *United States v Chanthadara*, 230 F3d

1237.) VII. The trial court was correct in dismissing four prospective jurors due to their inability to fairly consider a death sentence in accordance with the New York capital sentencing scheme. (*Frye v Lee*, 89 F Supp 2d 693; *Wainwright v Witt*, 469 US 412; *Adams v Texas*, 448 US 38; *Witherspoon v Illinois*, 391 US 510; *People v Harris*, 98 NY2d 452; *Castro v Ward*, 138 F3d 810.) VIII. The trial court was correct in summarily denying appellant's motions to dismiss the grand and petit jury panels. (*People v Mendoza*, 82 NY2d 415; *People v Guzman*, 60 NY2d 403; *People v Taylor*, 191 Misc 2d 672; *People v Hobson*, 227 AD2d 643, 88 NY2d 986; *Duren v Missouri*, 439 US 357; *Test v United States*, 420 US 28; *People v Chinn*, 234 AD2d 1014; *Matter of Taylor v People*, 277 AD2d 322, 287 AD2d 641; *People v Mateo*, 175 Misc 2d 192; *People v Chestnut*, 26 NY2d 481.) IX. The trial court exercised proper discretion in denying appellant's ex parte motion for funds to hire a jury consultant to conduct a speculative poll. (*People v Gallow*, 171 AD2d 1061, 77 NY2d 995; *Johnson v Harris*, 682 F2d 49, 459 US 1041; *People v Brown*, 136 AD2d 1, 72 NY2d 857, 488 US 897; *Ake v Oklahoma*, 470 US 68.) X. The evidence of first degree felony murder was legally sufficient. (*People v Miller*, 32 NY2d 157; *United States v Loonsfoot*, 905 F2d 116; *People v Mateo*, 175 Misc 2d 192.) XI. The evidence of burglary was legally sufficient to support the conviction for first degree murder, and appellant was given notice of the charges and was convicted by a unanimous verdict. (*People v Basch*, 36 NY2d 154; *People v Miller*, 32 NY2d 157; *People v Charles*, 61 NY2d 321; *People v Gaines*, 74 NY2d 358; *People v Santana*, 172 AD2d 299, 77 NY2d 1000; *People v Nelson*, 176 AD2d 1245, 79 NY2d 861; *People v Doshi*, 93 NY2d 499; *People v Baghai-Kermani*, 84 NY2d 525; *Clemons v Mississippi*, 494 US 738; *People v Harris*, 98 NY2d 452.) XII. Appellant's conviction for a "witness-elimination" murder was based upon legally sufficient evidence and was not against the weight of the evidence. (*People v Smith*, 79 NY2d 309; *People v Bracey*, 41 NY2d 296; *People v Reed*, 265 AD2d 56, 95 NY2d 838; *People v Buckley*, 75 NY2d 843; *People v Rayam*, 94 NY2d 557; *People v Williams*, 84 NY2d 925; *People v Thompson*, 72 NY2d 410; *People v Ford*, 66 NY2d 428; *People v Contes*, 60 NY2d 620; *People v Carr-El*, 99 NY2d 546.) XIII. Appellant was not denied a fair trial by the People's unsuccessful attempt to impeach their own witness. (*People v Logan*, 261 AD2d 172, 93 NY2d 1003; *People v Saez*, 69 NY2d 802; *People v Fitzpatrick*, 40 NY2d 44; *People v Agosta*, 248 AD2d 301, 92 NY2d 892; *People v Russ*, 79 NY2d 173; *People v Alicea*, 37 NY2d 601; *People v Lawrence*, 227 AD2d

893; *People v Ashwal*, 39 NY2d 105; *People v Calabria*, 94 NY2d 519; *People v Brown*, 26 NY2d 88.) XIV. The trial court properly restricted the cross-examination of a witness regarding the status of the plea negotiations in the assault case. (*People v Schwartzman*, 24 NY2d 241, 396 US 846; *People v Dickman*, 42 NY2d 294; *People v Aska*, 91 NY2d 979; *People v Hasenflue*, 252 AD2d 829; *People v Melcherts*, 225 AD2d 357, 88 NY2d 881; *People v Williams*, 81 NY2d 303; *Chambers v Mississippi*, 410 US 284; *People v Hargrove*, 213 AD2d 492; *Delaware v Van Arsdall*, 475 US 673; *Davis v Alaska*, 415 US 308.) XV. The involvement of the trial judge, the prosecutors and defense counsel in the assault case prior to appellant's killing of his wife did not deny appellant his right to a fair trial, an impartial judge and unconflicted counsel. (*People v Bynum*, 70 NY2d 858; *People v Balls*, 69 NY2d 641; *People v Nuccie*, 57 NY2d 818; *People v Menzies*, 255 AD2d 697, 93 NY2d 974; *Matter of Catherine K.*, 256 AD2d 1025; *People v Paperno*, 54 NY2d 294; *People v Tassiello*, 300 NY 425; *People v Lovello*, 1 NY2d 436; *People v Carter*, 40 NY2d 933; *People v Puglisi*, 44 NY2d 748.) XVI. The trial court did not err in consolidating the murder and assault indictments and in refusing to allow appellant to plead guilty to the assault indictment. (*People v Burroughs*, 191 AD2d 956, 82 NY2d 715; *People v Bongarzone*, 69 NY2d 892; *People v Bridgewater*, 242 AD2d 491, 91 NY2d 924; *Matter of Hynes v Tomei*, 92 NY2d 613, 527 US 1015; *People v Lane*, 56 NY2d 1; *People v Knowles*, 88 NY2d 763; *People v Velasco*, 77 NY2d 469; *People v Ingram*, 71 NY2d 474; *People v Till*, 87 NY2d 835; *People v Chase*, 85 NY2d 493.) XVII. The trial court's admission into evidence of photographs of the victim was not an abuse of discretion. (*People v Davis*, 43 NY2d 17, 435 US 998; *People v Murray*, 140 AD2d 949, 72 NY2d 960; *People v Poblner*, 32 NY2d 356, 416 US 905; *People v Wood*, 79 NY2d 958; *People v Stevens*, 76 NY2d 833; *People v Bell*, 63 NY2d 796; *People v Skinner*, 298 AD2d 625; *People v Corbett*, 68 AD2d 772, 52 NY2d 714; *People v Crimmins*, 36 NY2d 230.) XVIII. The search warrants authorized a search of the entire premises and the evidence was legally obtained. (*People v Tambe*, 71 NY2d 492; *People v Hanlon*, 36 NY2d 549; *People v Bachiller*, 159 AD2d 955; *People v Bigelow*, 66 NY2d 417; *People v Migenis*, 167 AD2d 956; *People v Nieves*, 36 NY2d 396; *Massachusetts v Upton*, 466 US 727.) XIX. The court's guilt-phase instructions were proper. (*People v Robinson*, 88 NY2d 1001; *People v Gray*, 86 NY2d 10; *People v Tucker*, 278 AD2d 38, 96 NY2d 788; *People v Stephens*, 84 NY2d 990; *People v Harris*, 98 NY2d 452; *People v Tychanski*, 78 NY2d

909; *People v Coleman*, 70 NY2d 817; *People v Adams*, 69 NY2d 805; *People v Dixon*, 231 NY 111; *People v Russell*, 266 NY 147.) XX. Appellant's claims of prosecutorial misconduct in the guilt phase are unpreserved and without merit. (*People v Tonge*, 93 NY2d 838; *People v Dien*, 77 NY2d 885; *People v Rivera*, 73 NY2d 941; *People v Nuccie*, 57 NY2d 818; *People v Stephens*, 84 NY2d 990; *People v Iannelli*, 69 NY2d 684, 482 US 914; *People v Harris*, 98 NY2d 452; *People v Ashwal*, 39 NY2d 105; *Williams v Brooklyn El. R.R. Co.*, 126 NY 96; *People v Galloway*, 54 NY2d 396.) XXI. The integrity of the grand jury was not impaired. (*People v Oakley*, 28 NY2d 309; *People v Darby*, 75 NY2d 449; *People v Gordon*, 88 NY2d 92; *People v Swamp*, 84 NY2d 725; *People v Brewster*, 63 NY2d 419; *People v Huston*, 88 NY2d 400; *People v Martinez*, 271 AD2d 810; *United States v Calandra*, 414 US 338; *People v McGrath*, 46 NY2d 12; *People v Estenson*, 101 AD2d 687.) XXII. Appellant's waiver of his right to be present at the *Wade* hearing and the juror sidebars was knowing and voluntary, and, in any case, he had no right to be present at the voir dire sidebars with prospective jurors 23 and 798. (*People v Epps*, 37 NY2d 343, 423 US 999; *People v Holland*, 208 AD2d 352, 84 NY2d 1032; *People v Favor*, 82 NY2d 254; *People v Spotsford*, 85 NY2d 593; *People v Underwood*, 201 AD2d 597, 83 NY2d 1008; *People v Mitchell*, 80 NY2d 519; *People v Sprowal*, 84 NY2d 113; *People v Roman*, 88 NY2d 18; *People v Morales*, 80 NY2d 450; *Snyder v Massachusetts*, 291 US 97.) XXIII. The trial court correctly denied appellant's request for a separate sentencing jury. (*People v Davidson*, 98 NY2d 738; *People v Jennings*, 69 NY2d 103; *People v Lawrence*, 64 NY2d 200; *Matter of Bliss v Bliss*, 66 NY2d 382; *Alford v Sventek*, 53 NY2d 743.) XXIV. The trial court conducted an adequate voir dire before the beginning of the sentencing phase to insure that the jurors continued to be qualified to serve. (*Dennis v United States*, 339 US 162; *Morgan v Illinois*, 504 US 719; *United States v McVeigh*, 153 F3d 1166; *United States v Tipton*, 90 F3d 861; *People v McKenzie*, 173 AD2d 493; *People v Torpey*, 63 NY2d 361; *People v Williams*, 63 NY2d 882; *People v Johnson*, 94 NY2d 600; *People v Arnold*, 96 NY2d 358; *People v Chambers*, 97 NY2d 417.) XXV. The trial court's sentencing instructions assured that appellant was reliably sentenced. (*People v Fields*, 87 NY2d 821; *People v Slacks*, 90 NY2d 850; *People v Coleman*, 70 NY2d 817; *Jones v United States*, 527 US 373; *Bryan v United States*, 524 US 184; *California v Brown*, 479 US 538; *United States v Park*, 421 US 658; *Cupp v Naughten*, 414 US 141; *Boyd v United States*, 271 US 104; *People v Greaves*, 94 NY2d 775.) XXVI. Appellant had

no constitutional right to present to the sentencing jury unqualified opinion evidence concerning his potentially “positive influence” in state prison. (*Skipper v South Carolina*, 476 US 1; *People v Gray*, 86 NY2d 10; *People v Robinson*, 36 NY2d 224; *People v Ford*, 66 NY2d 428; *People v Cona*, 49 NY2d 26; *McLain v Calderon*, 134 F3d 1383; *People v Smith*, 194 AD2d 874; *People v Vizzini*, 183 AD2d 302; *People v Hackett*, 228 AD2d 377, 88 NY2d 986; *People v Morgan*, 87 NY2d 878.) XXVII. The penalty-phase deadlock instruction of section 400.27 (10) of the Criminal Procedure Law is valid under both federal and state law. (*People v Owens*, 187 Misc 2d 944; *People v McIntosh*, 178 Misc 2d 427; *People v Mateo*, 175 Misc 2d 192; *People v Harris*, 177 Misc 2d 160, 98 NY2d 452; *People v Liguori*, 149 AD2d 624; *People v Brown*, 48 NY2d 388; *People v Acevedo*, 69 NY2d 478; *People v Owens*, 214 AD2d 480; *People v Berg*, 59 NY2d 294; *Jones v United States*, 527 US 373.) XXVIII. Appellant had no right to allocute to his sentencing jury without being subject to cross-examination. (*People v McClain*, 35 NY2d 483; *McGautha v California*, 402 US 183; *Hill v United States*, 368 US 424; *United States v Barnette*, 211 F3d 803; *United States v Hall*, 152 F3d 381; *United States v Li*, 115 F3d 125; *United States v Coffey*, 871 F2d 39; *United States v Fleming*, 849 F2d 568; *People v Green*, 54 NY2d 878; *People v Mirenda*, 57 NY2d 261.) XXIX. The District Attorney’s penalty-phase summation was proper. (*People v Alicea*, 37 NY2d 601; *People v Galloway*, 54 NY2d 396; *People v Ashwal*, 39 NY2d 105; *People v Marks*, 6 NY2d 67, 362 US 912; *People v Steinhardt*, 9 NY2d 267; *People v Williams*, 46 NY2d 1070; *People v Dean*, 56 AD2d 242, 45 NY2d 651; *People v Safian*, 46 NY2d 181, *cert denied sub nom. Miner v New York*, 443 US 912; *People v Rivera*, 56 AD2d 897.) XXX. The trial court meaningfully responded to two jury notes after conferring with both parties who assisted in fashioning the responses and stated that they had no objection to the court’s written response. (*People v Starling*, 85 NY2d 509; *People v DeRosario*, 81 NY2d 801; *People v Harris*, 98 NY2d 452; *People v Porteous*, 193 AD2d 631, 82 NY2d 758; *People v Tarsia*, 50 NY2d 1; *People v Collins*, 99 NY2d 14; *People v O’Rama*, 78 NY2d 270; *People v Stevens*, 216 AD2d 676, 87 NY2d 908; *People v Cowan*, 169 AD2d 670, 78 NY2d 964; *People v Mehmedi*, 69 NY2d 759.) XXXI. The death sentence was not against the weight of the evidence. (*People v Bleakley*, 69 NY2d 490; *People v Benzinger*, 36 NY2d 29; *People v Gaimari*, 176 NY 84; *People v Nucci*, 162 AD2d 725, 76 NY2d 862; *People v Garafolo*, 44 AD2d 86; *Buchanan v Angelone*, 522 US 269; *Parker v Dugger*, 498 US 308; *Penry v Lynaugh*, 492 US

302; *Hitchcock v Dugger*, 481 US 393; *Eddings v Oklahoma*, 455 US 104.) XXXII. Because the statute in effect at the time of appellant's trial had already been corrected by this Court's decision in *Matter of Hynes v Tomei* (92 NY2d 613 [1998]), appellant's sentences of death are valid. (*United States v Jackson*, 390 US 570; *People v Harris*, 98 NY2d 452; *Matter of Francois v Dolan*, 95 NY2d 33; *People v Edwards*, 96 NY2d 445; *People v Hues*, 92 NY2d 413; *People v Elliott*, 173 Misc 2d 795, 282 AD2d 756, 96 NY2d 901; *People v Mower*, 97 NY2d 239; *Atkinson v North Carolina*, 403 US 948; *Buchanan v Kentucky*, 483 US 402.) XXXIII. The process of pretrial death qualification did not deprive appellant of his right to be tried by a fair and impartial jury. (*People v Harris*, 98 NY2d 452.) XXXIV. The trial court properly denied appellant's request for a bench trial. (*Singer v United States*, 380 US 24; *People ex rel. Rohrlisch v Follette*, 20 NY2d 297; *Bareham v City of Rochester*, 246 NY 140; *People v McIntosh*, 173 Misc 2d 727; *People v Hale*, 173 Misc 2d 140.) XXXV. New York's death penalty does not constitute cruel and unusual punishment. (*Matter of Hynes v Tomei*, 92 NY2d 613, 527 US 1015; *People v Davis*, 43 NY2d 17, 435 US 998, 61 NY2d 670; *Gregg v Georgia*, 428 US 153; *People v Smith*, 63 NY2d 41; *People v Scalza*, 76 NY2d 604; *People v Bright*, 71 NY2d 376; *People v Foley*, 94 NY2d 668; *People v Thompson*, 83 NY2d 477; *United States v Mazurie*, 419 US 544; *People v Broadie*, 37 NY2d 100, 423 US 950.) XXXVI. The trial court properly denied appellant's pretrial challenge to New York's lethal injection procedures. (*Matter of New York State Inspection, Sec. & Law Enforcement Empls. v Cuomo*, 64 NY2d 233; *New York Pub. Interest Research Group v Carey*, 42 NY2d 527; *People ex rel. Kemmler v Durston*, 119 NY 569, writ denied sub nom. *In re Kemmler*, 136 US 436; *People v Kemmler*, 119 NY 580; *City of New York v Long Is. Airports Limousine Serv. Corp.*, 48 NY2d 469; *First Natl. Bank v Shuler*, 153 NY 163; *People v Stevens*, 91 NY2d 270; *People v De Jesus*, 54 NY2d 447; *People v Hernandez*, 93 NY2d 261.) XXXVII. The trial court made a proper determination to continue deliberations upon the return of a juror following a temporary illness. (*People v Buford*, 69 NY2d 290; *People v Page*, 72 NY2d 69; *People v Spivey*, 81 NY2d 356; *People v Rodriguez*, 71 NY2d 214; *People v Williams*, 242 AD2d 917, 91 NY2d 899; *People v Burse*, 299 AD2d 911; *People v Garrow*, 233 AD2d 856, 89 NY2d 985; *People v Kerner*, 299 AD2d 913, 99 NY2d 583; *People v Brown*, 48 NY2d 388; *People v De Lucia*, 20 NY2d 275.) XXXVIII. The prosecutorial discretion provision of CPL 250.40 is constitutional under the United States and New York

Constitutions. (*People v Harris*, 177 Misc 2d 102, 98 NY2d 452; *Matter of Hynes v Tomei*, 92 NY2d 613; *People v Parker*, 41 NY2d 21; *County Ct. of Ulster County v Allen*, 442 US 140; *People v Drayton*, 39 NY2d 580; *People v Merolla*, 9 NY2d 62, 365 US 872; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Gregg v Georgia*, 428 US 153; *McKenzie v Risley*, 842 F2d 1525.)

Eliot Spitzer, Attorney General, New York City (Peter B. Pope, Michael S. Belohlavek, Robin A. Forshaw and Luke Martland of counsel), in his statutory capacity under Executive Law § 71. I. The New York Constitution's cruel and unusual punishment provision is coextensive with the Eighth Amendment of the Federal Constitution, and neither prohibit capital punishment under all circumstances. (*People v P.J. Video, Inc.*, 68 NY2d 296, 479 US 1091; *Gregg v Georgia*, 428 US 153; *People v Broadie*, 37 NY2d 100, 423 US 950; *Trop v Dulles*, 356 US 86; *People v Scott*, 79 NY2d 474; *People ex rel. Kemmler v Durston*, 119 NY 569, writ denied sub nom. *In re Kemmler*, 136 US 436; *People v Patterson*, 39 NY2d 288; *Furman v Georgia*, 408 US 238; *People v Fitzpatrick*, 32 NY2d 499, 414 US 1033; *People v Velez*, 88 Misc 2d 378.) II. The New York capital statute does not violate the federal or state prohibition against cruel and unusual punishment because it contains provisions that ensure that the death penalty will not be imposed in a racially discriminatory manner. (*McCleskey v Kemp*, 481 US 279; *Furman v Georgia*, 408 US 238; *Gregg v Georgia*, 428 US 153; *Pulley v Harris*, 465 US 37; *People v Harris*, 98 NY2d 452; *People v Arroyo*, 178 Misc 2d 653; *People v Hale*, 173 Misc 2d 140; *People v Davis*, 33 NY2d 221, 416 US 973; *People v Kemmler*, 119 NY 580; *People v McCray*, 57 NY2d 542, 461 US 961.) III. The Constitution does not forbid constitutional officers, such as district attorneys, from exercising discretion in the quasi-judicial function of charging criminal offenses. (*Gregg v Georgia*, 428 US 153; *Proffitt v Florida*, 428 US 242; *Jurek v Texas*, 428 US 262; *McCleskey v Kemp*, 481 US 279; *People v Mussenden*, 308 NY 558; *Ring v Arizona*, 536 US 584; *Witherspoon v Illinois*, 391 US 510; *People v Gilmour*, 98 NY2d 126; *Matter of Schumer v Holtzman*, 60 NY2d 46; *People v Zimmer*, 51 NY2d 390.) IV. New York's death penalty statute provides sufficient procedural protections to ensure that innocent defendants will not be executed. (*Herrera v Collins*, 506 US 390; *Beck v Alabama*, 447 US 625; *Gregg v Georgia*, 428 US 153; *People v Faxlanger*, 1 NY2d 393; *Anniston Mfg. Co. v Davis*, 301 US 337; *People v Parker*, 41 NY2d 21; *People v Smith*, 63 NY2d 41; *People v Davis*, 43 NY2d 17, 435 US 998; *People v*

Rensing, 14 NY2d 210; *People v Higgins*, 5 NY2d 607.) V. New York's death penalty statute does not violate the substantive due process guarantees contained in the State Constitution. (*California v Ramos*, 463 US 992; *Eddings v Oklahoma*, 455 US 104; *Gregg v Georgia*, 428 US 153; *Gray v Lucas*, 677 F2d 1086, 461 US 910; *Chapman v United States*, 500 US 453; *People v Harris*, 98 NY2d 452; *Treyball v Clark*, 65 NY2d 589; *People v Hale*, 173 Misc 2d 140; *Cooper v Morin*, 49 NY2d 69; *Wilkinson v Skinner*, 34 NY2d 53.) VI. New York's capital felony murder statute satisfies the Federal and State Constitutions by preventing the arbitrary imposition of death, and it should not be interpreted to require that an underlying burglary have a separate objective from the murder. (*People v Miller*, 32 NY2d 157; *People v Sieteski*, 241 AD2d 926; *People v Spencer*, 212 AD2d 645; *United States v Loonsfoot*, 905 F2d 116; *People v Stokes*, 88 NY2d 618; *Atlantic Cleaners & Dryers v United States*, 286 US 427; *People v Owens*, 185 Misc 2d 490; *People v Mateo*, 175 Misc 2d 192, 249 AD2d 894, 93 NY2d 327; *Arave v Creech*, 507 US 463; *Gregg v Georgia*, 428 US 153.) VII. CPL 400.27 (10) is constitutional and ensures that jurors are fully informed of what will occur in the event of deadlock, thereby minimizing juror speculation and arbitrariness. (*Gregg v Georgia*, 428 US 153; *Furman v Georgia*, 408 US 238; *Lockett v Ohio*, 438 US 586; *Woodson v North Carolina*, 428 US 280; *Beck v Alabama*, 447 US 625; *Gardner v Florida*, 430 US 349; *California v Ramos*, 463 US 992; *Ramdass v Angelone*, 530 US 156; *Simmons v South Carolina*, 512 US 154; *Lowenfield v Phelps*, 484 US 231.) VIII. Defendant's Fifth and Sixth Amendment rights were not impermissibly burdened by the guilty plea provisions of New York's first degree murder statute. (*Matter of Hynes v Tomei*, 92 NY2d 613, 527 US 1015; *United States v Jackson*, 390 US 570; *Matter of Francois v Dolan*, 95 NY2d 33; *People v Harris*, 98 NY2d 452; *Parker v North Carolina*, 397 US 790; *Atkinson v North Carolina*, 403 US 948; *Furman v Georgia*, 408 US 238; *Corbitt v New Jersey*, 439 US 212.) IX. New York's death penalty statute is not unconstitutional in requiring that jurors be death qualified prior to their determination of a defendant's guilt. X. The Department of Correctional Services' lethal injection protocol is not constitutionally flawed. (*Wilkerson v Utah*, 99 US 130; *In re Kemmler*, 136 US 436; *Campbell v Wood*, 18 F3d 662, 511 US 1119; *Louisiana ex rel. Francis v Resweber*, 329 US 459; *Hill v Lockhart*, 791 F Supp 1388.)

Christopher Dunn, New York City, *Arthur N. Eisenberg* and *Donna Lieberman* for New York Civil Liberties Union, amicus

curiae. I. This Court has addressed the prejudicial-publicity, change-of-venue issue in only a limited manner. (*People v Culhane*, 33 NY2d 90; *People v Parker*, 60 NY2d 714; *People v Smith*, 63 NY2d 41; *People v Pepper*, 59 NY2d 353; *People v DiPiazza*, 24 NY2d 342.) II. Decisions by the Supreme Court of the United States require state courts to grant change-of-venue motions when substantial adverse, pretrial publicity precedes a criminal trial. (*Irvin v Dowd*, 366 US 717; *Rideau v Louisiana*, 373 US 723; *Sheppard v Maxwell*, 384 US 333; *Murphy v Florida*, 421 US 794; *Patton v Yount*, 467 US 1025; *Groppi v Wisconsin*, 400 US 505.) III. Professional legal standards and studies provide important information about the impact of prejudicial, pretrial publicity on jurors and about the efficacy of judicial measures to remedy that impact. IV. From the case law and professional standards emerge standards this Court should employ in assessing change-of-venue motions in capital cases, and those standards suggest that it was error to deny defendant's motion in this case. (*People v Harris*, 98 NY2d 452; *Gentile v State Bar of Nev.*, 501 US 1030; *Sheppard v Maxwell*, 384 US 333; *Patton v Yount*, 467 US 1025; *Murphy v Florida*, 421 US 794.)

Stewart F. Hancock, Jr., Syracuse, *Alan J. Pierce* and *Lily K. Lok* for Thomas Aloï and others, amici curiae. I. Under the pre-McCleskey system-based risk analysis approach which this Court should adopt, the New York death penalty statute violates the Cruel and Unusual Punishment Clause of article I, § 5 of the New York Constitution because it imposes constitutionally unacceptable risks of arbitrary and capricious sentencing based on impermissible factors including the situs of the crime, the race of the victim and the race of defendant. (*People v Barber*, 289 NY 378; *People v Alvarez*, 70 NY2d 375; *People ex rel. Arcara v Cloud Books*, 68 NY2d 553; *People v Scott*, 79 NY2d 474; *Sharrock v Dell Buick-Cadillac*, 45 NY2d 152; *People v Bora*, 83 NY2d 531; *People v Harris*, 77 NY2d 434; *People v Torres*, 74 NY2d 224; *People v Griminger*, 71 NY2d 635; *People v P.J. Video, Inc.*, 68 NY2d 296, 479 US 1091.) II. The New York death penalty statute violates the Equal Protection Clause of article I, § 11 of the New York Constitution. (*People v Scott*, 79 NY2d 474; *People v Keta*, 79 NY2d 474; *Immuno AG. v Moor-Jankowski*, 77 NY2d 235; *People v Bolling*, 79 NY2d 317; *People v Kern*, 75 NY2d 638; *Batson v Kentucky*, 476 US 79; *People v McCray*, 57 NY2d 542; *People v Hernandez*, 75 NY2d 350; *Bush v Gore*, 531 US 98; *Shapiro v Thompson*, 394 US 618.) III. New York's death penalty law violates the Civil Rights Clause of article I, § 11 of the New York State Constitution. (*People v*

Kern, 75 NY2d 638; *People v Dieppa*, 158 Misc 2d 584; *Tennessee v Garner*, 471 US 1; *Woods v Nierstheimer*, 328 US 211; *Johnson v Zerbst*, 304 US 458; *People v Isaacson*, 44 NY2d 511; *People v Felder*, 47 NY2d 287; *Matter of Westchester County Med. Ctr. [O'Connor]*, 72 NY2d 517; *Matter of Storar*, 52 NY2d 363, 454 US 858; *Brown v State of New York*, 89 NY2d 172.)

OPINION OF THE COURT

ROSENBLATT, J.

Under New York's capital punishment scheme, a person who commits an intentional (second degree) murder is eligible for a death sentence if any one of 13 aggravating factors is proved (see Penal Law § 125.27 [1] [a] [i]-[xiii]), and if within 120 days after arraignment the prosecution files a notice of intention to seek the death penalty (CPL 250.40 [2]). In the case before us, a jury found defendant guilty of two counts of first degree murder, based on two aggravating factors (witness elimination murder, Penal Law § 125.27 [1] [a] [v], and intentional murder in the course of and in furtherance of second degree burglary, Penal Law § 125.27 [1] [a] [vii]). At the penalty phase of the trial, the jury determined that defendant should be sentenced to death on both counts. For reasons that follow, we conclude that neither of the aggravating factors was proved. This being so, the penalty phase was conducted without legal foundation and the resulting death sentences must be vacated. Defendant's guilt for intentional murder, however, was proved beyond a reasonable doubt, and we therefore reduce defendant's conviction to murder in the second degree and remit the case to the trial court for resentencing.

In early April 1998, defendant and his wife, Jill, signed a separation agreement but continued to live under the same roof at their home in Spafford, Onondaga County. On April 21, during a predawn heated argument, defendant struck Jill repeatedly on the head with a baseball bat. The couple's two young children were nearby and Jill called out, urging them to call the police because their father was trying to kill her. After the attack, defendant phoned his parents for help. They soon arrived at the Cahill residence, along with defendant's brother and a family friend who was a physician. Having been summoned to the scene, the police found Jill lying on the kitchen floor. She was covered in blood, writhing in pain and moaning incoherently. Her left temple was indented from the injury.

Defendant and victim were taken to different hospitals. After hospital personnel treated defendant for minor injuries, the po-

lice brought him to the station house for questioning. At first, he stated that Jill had instigated the argument and attacked him with a knife, causing some cuts and scratches on his body. He claimed he struck her in self-defense. Defendant later admitted that he struck Jill with the bat when she was unarmed and that he cut himself, making it look like self-defense. Defendant added that after the assault, he taped a length of garden hose to the tailpipe of his car in order to poison himself with carbon monoxide, but decided against suicide when he saw a rosary in his vehicle.

In June 1998, a grand jury indicted defendant for assault in the first degree and criminal possession of a weapon in the fourth degree. In the months that followed, he and his attorney prepared for trial. In the meantime, there were custody proceedings in Onondaga Family Court, which placed the children with their maternal grandparents and aunt. In addition, Family Court and Onondaga County Court issued orders of protection prohibiting defendant from seeing his children or entering University Hospital, where Jill was confined.

By one medical estimate, Jill had been hit at least four times in the skull. At the hospital, she underwent emergency surgery to remove a blood clot from her brain. In the ensuing weeks, Jill suffered from brain swelling and a number of life-threatening infections. She began to improve and eventually moved from intensive care to the coma rehabilitation unit, and later to the general rehabilitation unit. Her recovery was slow and by no means complete. By October of 1998—six months after the assault—Jill was able to recall the names of her children and had regained some ability to speak, but could use only short, simple words.

On October 27, 1998, after the hospital was closed to visitors, defendant entered the premises, in disguise. According to several members of the staff, defendant wore a wig and glasses, posing as a maintenance worker, complete with a mop and falsified name tag.¹ Shortly after 10:00 P.M., a nurse detected a strong odor in the room and saw Jill having trouble breathing. The nurse also observed a waxy-looking substance on Jill's chest

1. A nursing assistant also testified that about a week before the murder she saw defendant in the hospital, disguised as a janitor. She noticed defendant because he "looked like he had a wig on" and was not wearing the usual blue uniform of the hospital cleaning staff. When she saw defendant enter Jill's hospital room, she followed him in and asked if she could help him. He answered that he "just came down to say hi to Jill" and left the room.

and that Jill's hospital gown caused a burning sensation when touched. Despite efforts to revive her, Jill died the next morning. She had been poisoned. An autopsy revealed that potassium cyanide was administered through her mouth or feeding tube.

Police promptly arrested defendant for Jill's murder. Employing search warrants, they recovered data from the hard drive of the Cahill home computer revealing Internet searches that used the words "cyanide" and "ordering potassium cyanide." The "slack"² also yielded letters composed on the computer. The letters were purportedly sent from an East Syracuse company called General Super Plating to Bryant Laboratories, placing orders for potassium cyanide. In the area near the shed on the Cahill property police found a half-burned wig and a bottle containing potassium cyanide. Further investigation produced eyewitnesses who saw defendant intercept the delivery of cyanide in the vicinity of General Super Plating in July of 1998.

On November 19, 1998, while the assault charges were pending, a grand jury indicted defendant on two counts of first degree murder and related offenses. One murder count charged defendant with having murdered Jill to prevent her from testifying against him at his trial for the April 1998 assault (Penal Law § 125.27 [1] [a] [v]), the other with intentionally murdering Jill in the course of and in furtherance of a burglary (Penal Law § 125.27 [1] [a] [vii]). The grand jury also indicted defendant on two counts of murder in the second degree, burglary in the second degree, aggravated criminal contempt and criminal possession of a weapon in the fourth degree. On December 30, 1998, the District Attorney filed a CPL 250.40 (2) notice of intention to seek the death penalty. In addition, the prosecution moved to consolidate the murder and assault indictments.³ The trial court granted the motion in January 1999.

Pursuant to CPL 400.27, the court conducted the jury trial in two phases.⁴ In the first phase, the jury found defendant guilty of both counts of first degree murder, first degree assault (based

2. A police investigator testified that slack is data randomly selected by the computer to serve as a buffer in data sectors. A general computer user has no control over this process and does not know what is in the slack. Because the slack takes data from random access memory or the printer spool, the slack will contain data that the user deleted or did not save on the hard drive.

3. The June 12, 1998 indictment contained three counts of assault in the first degree and one count of criminal possession of a weapon in the fourth degree.

4. Defendant filed a motion seeking a declaration that the constitutional and statutory prohibitions against bench trials in capital cases were unconsti-

(n. cont'd)

on the April 1998 beating) and related charges. The penalty phase followed, in which the jury returned with verdicts of death under both first degree murder counts. Pursuant to article VI, § 3 (b) of the State Constitution and CPL 450.70 (1), defendant has appealed directly to our Court.

Although we address several of the 38 points briefed by defendant, our determination turns on three primary issues: jury selection, weight of the evidence supporting first degree (witness elimination) murder under Penal Law § 125.27 (1) (a) (v) and legal sufficiency of first degree murder (based on burglary) under Penal Law § 125.27 (1) (a) (vii). We conclude that the trial court erred in its rulings concerning potential jurors Nos. 23 and 855; that the first degree murder conviction based on witness elimination was against the weight of the evidence; and that the first degree murder conviction premised on burglary was legally insufficient to support a conviction.

I. Pretrial Issues

A. Pretrial Publicity

Defendant argues that extensive, prejudicial pretrial publicity denied him a fair trial before an impartial jury. He contends that the adverse publicity warranted a change of venue, either before or during voir dire. We disagree.

CPL 230.20 authorizes a change of venue when either party shows “reasonable cause to believe that a fair and impartial trial cannot be had in such county” (CPL 230.20 [2]). A motion for change of venue must be made before the Appellate Division department embracing the county in which the superior court is located. In the exercise of its discretion, the Appellate Division can order removal to the superior court of another county (CPL 230.20 [2] [a]) or direct the commissioner of jurors (in consultation with the administrative judge of the judicial district in which the county is located) to expand the jury pool to include people from jury lists of geographically contiguous counties within the judicial district (CPL 230.20 [2] [b]).

It is imperative that prospective jurors be open-minded and unbiased, but they need not “be totally ignorant of the facts and issues involved” (*Irvin v Dowd*, 366 US 717, 722 [1961]). As recognized in *Irvin*, “[i]t is sufficient if the juror can lay aside

tutional or alternatively that the challenged provisions did not apply to the guilt phase of his trial. The court denied the motion (*see* Point I [C] at 42-43).

his impression or opinion and render a verdict based on the evidence presented in court” (*id.* at 723). The Supreme Court has identified a number of conditions that may justify a change of venue, such as televised confessions (*see Rideau v Louisiana*, 373 US 723 [1963]), a media-generated “carnival atmosphere” in the courtroom (*Sheppard v Maxwell*, 384 US 333, 358 [1966]), or a close temporal proximity between the media coverage and the jury selection (*see Patton v Yount*, 467 US 1025, 1032 [1984]).

Disinclined to presume prejudice, our courts have rarely granted motions for change of venue before jury selection.⁵ To succeed, a party must show not only extensive publicity and comment but also that media coverage has aroused “a deep and abiding resentment” in the county (*People v Boudin*, 90 AD2d 253, 259 [2d Dept 1982]; Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, CPL 230.20, at 311). Here, the Appellate Division denied defendant’s pre-voir dire motion for a change of venue, stating that if during voir dire a fair and impartial jury could not be drawn, the defense could renew the motion (261 AD2d 972 [4th Dept 1999]). Defendant did so after jury selection, arguing that the voir dire revealed a level of prejudice that infected the jury pool. The Appellate Division denied that motion as well.

[1, 2] This case did not warrant a pre-voir dire change in venue. Onondaga County was not “deluged by a tidal wave of prejudicial publicity to such an extent that even an attempt to select an unbiased jury would be fruitless” (*Boss*, 261 AD2d at 4). Thus, the Appellate Division properly denied defendant’s first CPL 230.20 motion. Following the denial of a change of venue motion on the ground of prematurity, the proper procedure is to undertake voir dire and attempt to select an impartial jury (*People v Parker*, 60 NY2d 714, 715 [1983]; *People v Smith*, 63 NY2d 41, 69 [1984]). The trial court did so here, and for the reasons that follow we conclude that the Appellate Division did not abuse its discretion in denying defendant’s post-voir dire motion.

This Court has several times addressed the problem of pre-trial publicity in first degree murder cases. In *People v DiPiazza* (24 NY2d 342, 347 [1969]), we upheld the denial of a change of venue, finding it significant that defendant did not exhaust his

5. See *People v Boss* (261 AD2d 1 [1st Dept 1999]) in which the Court granted a pre-voir dire change of venue in the prosecution of police officers accused of murdering Amadou Diallo.

peremptory challenges, but noting that “the court’s discretion will not be disturbed unless the newspaper articles are of such a sensational character as to excite local popular passion and prejudice so that the defendant will not be able to have the fair trial to which he is entitled.” In that case, however, the Herkimer County media coverage was “surprisingly objective” (*id.*). Moreover, less than 25% of the prospective jurors expressed an opinion as to DiPiazza’s guilt (*id.* at 346).

In *People v Culhane* (33 NY2d 90, 110 [1973]), an Ulster County case in which three prisoners killed a deputy sheriff, we observed that the highly localized and incessant nature of the prejudicial publicity surrounding the case “probably” warranted a change of venue. Nevertheless, we reversed the defendant’s conviction due to the bias of prospective jurors who did not make expurgatory oaths required under former Code of Criminal Procedure § 376 (2). In *People v Lynch* (23 NY2d 262, 272 [1968]), this Court affirmed the denial of defendant’s motion for change of venue where voir dire resulted in selection of a jury free of media influence.

This case generated a good deal of pretrial publicity in Onondaga County. According to the juror questionnaires, 86% of the prospective jurors had heard of the case from media accounts (including 8 of the 12 jurors). The test for removal, however, is not based on the number of prospective jurors who heard of the case. If that were the test, juries in highly publicized cases would necessarily consist only of the most reclusive and uninformed segment of the population. What counts is not knowledge of the accusation, but whether that knowledge has shaped the jurors’ attitudes and predispositions. Merely having heard of the case is not enough, if the jurors come into the courtroom knowing no more than they learn when they are told of the charge in open court. The question is whether media or other accounts have been so inflammatory as to thwart the selection of a fair-minded jury.

A review of the media coverage in this case shows that the publicity was not so sensational or prejudicial as to taint the jury pool. Most of the media coverage tended to be objective, including “police blotter” reports and news reports on the court proceedings. The publicity was similar to that in *DiPiazza*, in which we upheld the denial of a change in venue: “The victim’s funeral and the members of her family were sympathetically portrayed and the defendant’s action was described as having caused a widespread reaction and aroused deep feeling. But

there was very little that could be said to be affirmatively hostile to him” (*id.* at 347). Here, although 52% of the jurors came to court with an opinion as to defendant’s guilt or innocence, the voir dire successfully culled out jurors who may have been biased by pretrial publicity. Thus, we hold that, in denying defendant’s motions, the Appellate Division acted within its discretion.

B. Search Warrant

Police found a container of potassium cyanide in a hollow space of a cinder block on the exterior base of the shed on defendant’s property. Defendant argues that the warrant referred only to his house and that the police conducted an impermissible search of the shed. Contrary to defendant’s contention, the search warrant authorized a search of the shed.

When conducting searches, search warrants are preferred, because they contemplate an orderly procedure and authorization by a neutral and detached magistrate (*see United States v Jeffers*, 342 US 48 [1951]; *Johnson v United States*, 333 US 10 [1948]). For that reason, reviewing courts should accord the process proper deference and not defeat search warrants (or discourage law enforcement officials from seeking them) by imposing overly technical requirements or interpreting them incompatibly with common sense (*see United States v Ventresca*, 380 US 102, 108 [1965]). Thus, a court may review the supporting documents to clarify any ambiguity (*see People v De Lago*, 16 NY2d 289, 290-291 [1965]). Also, and especially relevant here, material previously submitted to a judge may be incorporated by reference in a subsequent warrant application “so long as the earlier information was given under oath, is either available to the Magistrate or sufficiently fresh in the Magistrate’s memory so that he or she can accurately assess it and it is available in a form which can be reviewed at a later date” (*People v Tambe*, 71 NY2d 492, 502 [1988]).

The Fourth Amendment requires a search warrant to describe particularly the place to be searched (US Const Fourth Amend; *see* NY Const, art I, § 12), so that the right of privacy is protected from arbitrary police intrusion. To meet the particularity requirement, the warrant must be specific enough to leave no discretion to the police (*see People v Brown*, 96 NY2d 80, 84 [2001]).

[3] Here, the particularity requirement has been met. The warrant that led to the seizure explicitly notes that it is an ad-

dendum to a warrant issued three days before, which included searches for “toxic/caustic materials” in defendant’s home or “within any unattached garages or *storage sheds*” (emphasis ours). Thus, the warrant incorporated previously submitted materials known to the issuing Judge, who, over four consecutive days, signed five search warrants related to this case (see *Tambe*, 71 NY2d at 502). The search was valid and the court properly denied suppression of the evidence.

C. Defendant’s Right to a Bench Trial

[4] Defendant argues that he should have had the option of a bench trial to alleviate the alleged prejudicial effects of pretrial publicity and consolidation of the murder and assault indictments. His argument fails. As noted, we find no prejudicial impact from the pretrial publicity, nor did any result from consolidation of the indictments.⁶ Moreover, “[t]he history of our jurisprudence reveals that *the* fundamental right is the right to a *trial by jury*” (*People ex rel. Rohrlisch v Follette*, 20 NY2d 297, 301 [1967] [emphasis in original]). This tenet is reflected in article I, § 2 of the New York State Constitution, which prohibits waivers of a jury trial in capital cases. Our State Constitution’s ban on jury waivers in capital cases is longstanding and purposeful.

Before 1938, no defendant in a criminal case was allowed to waive trial by jury (see *People v Cosmo*, 205 NY 91, 96 [1912]; *Cancemi v People*, 18 NY 128, 137 [1858]). The 1938 Constitution—our present Constitution—allows bench trials in criminal cases, but pointedly preserves the prohibition in capital cases (*People v Page*, 88 NY2d 1, 6 [1996]). The Bill of Rights Subcommittee to that Constitutional Convention drafted the provision, explaining that “its determination to withhold the jury waiver right from capital defendants derived from the notion ‘that the Constitution will still not permit this choice to a defendant in a capital case, and regards such a prohibition against waiver as a measure for the protection of the defendant.’ ”⁷

Consistent with constitutional commands, CPL 320.10 excludes capital cases from the provisions that govern jury trial

6. We have addressed pretrial publicity in Point I (A) (at 38-41) and will treat consolidation in Point I (D) (at 43-44).

7. Hoffman et al., *Plea Bargaining in the Shadow of Death*, 69 Fordham L Rev 2313, 2334-2335 (2001), quoting 6 New York Constitutional Convention Committee, Problems Relating to Bill of Rights and General Welfare, at 14 (1938); see also Carter, New York State Constitution: Sources of Legislative Intent, article I, § 2, at 2 n 5 (1988).

waivers. Moreover, there is no federal constitutional right to a bench trial (*see Singer v United States*, 380 US 24, 36 [1965]). Thus, defendant was not entitled to one (*see also People v McIntosh*, 173 Misc 2d 727 [Dutchess County Ct 1997]).⁸

D. Consolidation of the Indictments

Defendant contends that the court should not have granted the prosecution's motion to consolidate the assault and murder indictments for trial. He further asserts that after consolidation he had the right to plead guilty to the assault charges over the prosecution's objection and proceed to trial on the murder charges only.

[5] The trial court did not abuse its discretion in allowing consolidation (*see People v Lane*, 56 NY2d 1 [1982]). CPL 200.20 (2) (b) permits joinder of offenses based on different criminal transactions when "such offenses, or the criminal transactions underlying them, are of such nature that either proof of the first offense would be material and admissible as evidence in chief upon a trial of the second, or proof of the second would be material and admissible as evidence in chief upon a trial of the first." The April 1998 assault and October 1998 murder of Jill Cahill fit this provision because the prosecution based one of its murder charges on Jill's potential testimony in the assault trial, making proof of the assault relevant to the murder case. Thus, the offenses were joinable and consolidation was proper (*see People v Bongarzone*, 69 NY2d 892 [1987]).

[6] We also reject defendant's argument that he should have been allowed to plead guilty to only the assault portion of the consolidated indictment. From the time defendant was indicted for assault until the court consolidated the assault and murder indictments—a period of approximately seven months—defendant could have pleaded guilty to the assault indictment. Once the court consolidated the indictments, defendant could plead guilty to the entire indictment (if the prosecution determined

8. In *Singer*, the Supreme Court upheld the constitutionality of Federal Rules of Criminal Procedure rule 23 (a), which conditions a defendant's waiver of the right to a jury trial on the approval of the court and prosecution (*see Gannett Co., Inc. v DePasquale*, 443 US 368, 383 [1979]; *DeLisle v Rivers*, 161 F3d 370, 389 [1998]). The Court reiterated that the defendant's ability to waive a jury does not mean the defendant has a right to a bench trial (*Faretta v California*, 422 US 806, 814 [1975]). In New York, however, a jury waiver in a capital case is not subject to prosecutorial or judicial consent. The State Constitution prohibits it. Thus, defendant has neither a federal nor a state right to a bench trial in a capital case.

that it would no longer seek the death penalty)⁹ but not to only a portion of it (*see* CPL 220.10 [2], [4]).¹⁰ Unless the People and the court consented, such a plea was untenable.

II. Jury Selection

Defendant raises a number of arguments concerning jury selection, and in particular assails the trial court's rulings concerning 16 prospective jurors. We will address only the rulings as to prospective jurors Nos. 23 and 855.¹¹

A. Defendant's For-Cause Challenge of Prospective Juror No. 23

In capital punishment jurisprudence, jurors must be death qualified and life qualified if they are to serve. Broadly put, a juror who is "death qualified" may have misgivings about the death penalty but does not rule out voting for it. Conversely, a juror who is "life qualified" may generally favor the death penalty but does not rule out voting against it.

[7] Defendant claims that prospective juror No. 23 was overly prone toward the death penalty and thus not properly life qualified. He contends that the trial court erroneously denied his challenge for cause under CPL 270.20 (1) (f), requiring the defense to waste a peremptory challenge. Having exhausted his peremptory challenges before the completion of jury selection, defendant seeks redress under CPL 270.20 (2). We agree that the trial court erred in not dismissing prospective juror No. 23 for cause.

In his questionnaire, prospective juror No. 23 said he was "not a total 100% supporter" of capital punishment. He added, however, that a sentence of life without parole could mean that "in some cases the defendant got off easy," and he indicated that he could not consider a sentence of life without parole

9. See *Matter of Hynes v Tomei* (92 NY2d 613 [1998]).

10. See *People v Machare* (264 AD2d 487 [2d Dept 1999], *lv denied* 94 NY2d 864 [1999]); *People v Bell* (245 AD2d 76, 77 [1st Dept 1997], *lv denied* 91 NY2d 939 [1998]); *People v Rosner* (185 AD2d 686 [4th Dept 1992], *lv denied* 80 NY2d 976 [1992], *lv denied upon reconsideration* 81 NY2d 766 [1992]); *People v Melo* (160 AD2d 600 [1st Dept 1990], *lv denied* 76 NY2d 792 [1990]).

11. Defendant's objections as to the other jurors are without merit, as are the related jury selection arguments pertaining to the trial court's voir dire restrictions, denial of funds to engage a jury consultant, denial of a hearing on the selection process for grand jurors and dismissal of jurors based solely on their questionnaires.

because he thought defendant should die, just as the victim did. When questioned individually, however, he made a number of statements attesting to his ability to deliberate fairly. As the prosecution points out, the juror said he was “willing to go along and listen now to hear, you know, what prompted such actions, what happened, what really happened, and see what the story really is.” This seemed reassuring for the moment, but a later exchange was particularly revealing and cast doubt on his previous assertions. When examined by the defense attorney concerning his ability to consider both death and life without parole, juror No. 23 related an incident in his own marriage:

“I had a terrible argument with my wife once, real bad. Almost a knock down drag out. I raised my [h]and to her and I didn’t hit her but I grabbed her and threw her on the couch. You know, I felt sick for doing that because that’s my generation. My generation doesn’t do that. You know, I have never—we have had arguments since, we have had discussions, but, you know, when it comes to that point, it’s time to walk. It’s time to go out the door, get some air, get the hell away. So it’s possible that that could come to mind. As much as I’m sitting here and I’m trying to promise everybody that I’d be fair, I’m still human, I’m still a man, that could come to mind. That’s being honest. . . .

“I’d love to be able to say I could just blank myself out but if the gentleman, if we find the gentleman guilty of First Degree Murder and now comes the penalty phase, as much as I would say, you know, I have to just deal with this, that situation will come up because it still haunts me. It still bothers me.”

Following up on the point, defense counsel asked him if “that life experience of yours . . . is causing you some concern as to whether you’d be able to consider both penalties fairly?” and whether “[t]hat would cause you some problems with being able to consider life without parole as the appropriate penalty other than death?” The juror answered yes to both questions. Defendant immediately challenged him for cause, contending that the juror’s life experience would amount to “an inability at the sentencing phase, the penalty phase, to be able to engage in the statutory weighing process that New York law mandates a juror to engage in.” The trial court denied the challenge.

The test for life and death qualification is prescribed in CPL 270.20 (1) (f). Pursuant to that statute, either party in a capital

case may challenge a prospective juror for cause if the juror “entertains such conscientious opinions either against or in favor of such punishment as to *preclude* such juror from rendering an impartial verdict or from properly exercising the discretion conferred upon such juror by law in the determination of a sentence pursuant to section 400.27” (emphasis supplied). In *People v Harris* (98 NY2d 452, 484 [2002]), we interpreted “preclude” to embody the *Wainwright v Witt* (469 US 412 [1985]) “prevent or substantially impair” standard, and explained that under this criterion jurors must be dismissed if they “express an inability to set aside their personal views on the death penalty in deference to the court’s instructions” (*Harris*, 98 NY2d at 484). The proponent of the challenge must demonstrate through questioning the juror’s inability to fulfill his or her oath (see *Morgan v Illinois*, 504 US 719, 733 [1992]).

Prospective juror No. 23 divulged that an incident in his life involving domestic violence—an issue highly relevant to this case—would strongly color, if not dictate, his views as to the penalty. The People urge that the juror’s earlier statements regarding his ability to serve impartially established his suitability. The juror’s expressions of open-mindedness, however, were undermined by his later responses. Once he acknowledged that his views on domestic violence would impede his ability to consider one of the two sentencing options, his earlier expressions of fitness rang hollow. Rather than grant defendant’s challenge, or at least question the juror as to whether these deeply held views would preclude him from serving impartially in a penalty phase, the court simply allowed the juror to remain on the panel.¹² This was error.

B. The People’s For-Cause Challenge of Prospective Juror No. 855

The People successfully challenged prospective juror No. 855 based on her attitude toward the death penalty. We agree with defendant that this juror was death qualified (see *Wainwright v Witt*, 469 US 412 [1985]) and that the court improperly granted the People’s challenge.

In her questionnaire, prospective juror No. 855 equivocated about her feelings toward capital punishment. In some respon-

¹² In arguing that juror No. 23 should be dismissed, defendant told the trial court that the juror was unable “to engage in the statutory weighing process.” Thus, defendant’s objection was specific and properly preserved, in contrast to the objection in *Harris* as to juror No. 233 (see *Harris*, 98 NY2d at 484-485).

ses she indicated she could not consider death as a sentencing option, but in others said she would consider both death and life without parole. When questioned individually, she said that “[i]n most instances” the death penalty was wrong, but allowed that she could accept it in a few cases. The prosecutor questioned her further on this point, pressing her to give examples of cases in which she thought the death penalty appropriate. She agreed with the prosecutor when he suggested that a case involving multiple victims might justify capital punishment, and said she would consider the death penalty in cases that involved “[s]omething very, very very wrong,” or were “bizarre” or “brutal[.]” She also referred to an instance in which she thought the death penalty warranted, identifying “the case of a mother and daughters that were out in the west.” She declined to give further examples, explaining that she would base her decision on “prayerful consideration and hearing about the situation.”

Furthermore, prospective juror No. 855 answered yes when at different times the prosecutor, defense counsel and the court asked her if she could consider both death and life without parole as possible punishments. Her voir dire concluded when the court asked her if she considered death a possible penalty in this case, and she replied that she “[saw] it as a possible one, sir, yes.” The prosecutor challenged her for cause, arguing that “she refuses to answer a dispositive question,” and the trial court granted the challenge, stating “I don’t think she is in a right mind to be a juror in this case. She is out.”

On this record, juror No. 855 should not have been dismissed for cause. CPL 270.20 (1) (f) and *Harris* (98 NY2d at 484) require dismissal of a juror whose views “prevent or substantially impair” the juror from rendering an impartial verdict or properly exercising sentencing discretion. Drawing on United States Supreme Court precedent dealing with death and life qualification of capital jurors,¹³ we explained that “[w]here jurors express conscientious views concerning the death penalty yet still make clear that they are able to follow their oaths to act impartially, they cannot be excluded for cause from participating on the jury” (*Harris*, 98 NY2d at 484). Prospective juror No. 855 may have expressed reservations about the death penalty but, after doing so, made it clear that she could follow

13. See *Witherspoon v Illinois* (391 US 510 [1968]); *Adams v Texas* (448 US 38 [1980]); *Wainwright* (469 US 412 [1985]); *Morgan* (504 US 719 [1992]).

her oath, act impartially and consider both the death penalty and life without parole. Moreover, the prosecutor made no correlation between this juror's views on capital punishment and his argument that she refused to answer a question (*see id.* at 486-487). In advancing his challenge for cause, the prosecutor maintained that this juror's views on the death penalty were "unknown."

The contrast between prospective jurors Nos. 855 and 23 illustrates the trial court's uneven standard in addressing the challenges based on death or life qualification. Juror No. 23 candidly stated that his experience with domestic violence "still haunts [him]" and that he could not "blank his mind" when considering possible penalties. Though the juror "express[ed] an inability to set aside [his] personal views" (*id.* at 484), the court denied defendant's challenge. On the other hand, juror No. 855 revealed no inability to consider both punishments. She gave examples of cases where she might consider the death penalty, said she would make her decision on penalty after hearing the case, and repeatedly told the parties she would consider both death and life without parole. Nonetheless, the court granted the People's challenge.¹⁴ We caution that the "prevent or substantially impair" standard applies equally to both death and life qualification (*see id.* at 484; *Morgan*, 504 US at 733-734) and that trial courts should employ the test meticulously. The prosecutor based his challenge for cause, at least in part, on his assertion that the juror's views on the death penalty were "unknown." The court dismissed the juror, stating only that "I don't think she is in a right mind." We caution that a trial court should make every effort to couch its ruling with reference to an articulated standard and, most importantly, create

14. The dissenters, while expecting defendant to demonstrate through questioning that juror No. 23 should have been excused, do not hold the People to the same standard with respect to juror No. 855. Rather, it was sufficient for the dissenters that the People claimed that:

"She has an inner moral compass that says *she is opposed to the death penalty except and in quote certain circumstances. Which she is unwilling or unable to tell us what they are.* The only criteria she elaborates on is multiple victims, which makes it obviously her [*sic*] unqualified for this case. What those other inner workings of her own personality are that trigger her consideration of the death penalty are unknown to every person in this courtroom right now." (Emphasis added.)

Thus the dissenters would not require the People to keep "the inquiry properly focused on the juror[']s views as they related to the case at hand" (*Harris*, 98 NY2d at 485 n 11).

a record that permits appellate review. Here, the recorded exchanges among the juror, the court and the attorneys did not justify dismissal.¹⁵

Lastly, and most emphatically, we underscore that the chances of reversal are too great to make risky voir dire rulings that could occasion retrial, with all the needless effort and expense that goes with it (*see e.g. People v Heard*, 31 Cal 4th 946, 966-967, 75 P3d 53, 66 [2003]). We have issued this caution in non-capital criminal cases (*People v Nicholas*, 98 NY2d 749 [2002]), and it is all the more compelling in capital cases.

C. Remedy for Penalty-Related Juror Selection Errors

[9] Defendant urges that pursuant to CPL 270.20 (2) the trial court's errors pertaining to prospective jurors Nos. 23 and 855 compel us to overturn not only the death sentence but the guilt phase verdict as well. We disagree. The errors as to both jurors related to their ability to serve impartially only during the penalty phase. Errors of that type do not infect the guilt phase and by no means warrant a reversal of the entire trial.

CPL 270.20 (2) states that “[a]n erroneous ruling by the court allowing a challenge for cause by the people does not constitute reversible error unless the people have exhausted their peremptory challenges at the time or exhaust them before the selection of the jury.” Subdivision (2) goes on to state that the denial of a defendant's for-cause challenge is not reversible error unless the defendant has exhausted all peremptory challenges or uses a peremptory against the disputed juror and later exhausts all such challenges. In laying out these requirements, the statute contemplates remedial action by the appellate court when the trial court improperly grants or denies a challenge for cause.

Indeed, the loss of a peremptory challenge constitutes harm enough to trigger the statutory remedy contemplated in CPL 270.20 (2) (*see e.g. People v Bludson*, 97 NY2d 644 [2001]; *People v Arnold*, 96 NY2d 358 [2001]). An erroneous denial of a defendant's challenge for cause is not rendered “harmless” merely because the defense later excuses the juror peremptorily (*see People v Culhane*, 33 NY2d 90, 97 [1973]; *People v Chambers*, 97 NY2d 417 [2002]). To the contrary, the defendant's loss of the peremptory challenge constitutes the harm. Where a

15. When challenging juror No. 855, the prosecutor said he felt the juror conveyed adverse “body language.” If the court agreed, it should have noted that on the record.

defendant's peremptory challenges are thereafter exhausted, erroneous denial of the prior challenge for cause constitutes reversible error warranting corrective action (CPL 270.20 [2]).

The precise corrective action, however, depends on the type of trial involved. Capital trials are divided into guilt and penalty phases (*see* CPL 400.27). In the traditional, single-phase criminal trial, the jury decides only the defendant's guilt and not the sentence. Thus, when a trial court rules in violation of CPL 270.20 (1), a new trial is the only possible remedy. The unique, bifurcated structure of a capital trial, however, not only affords the defendant broader protections but also provides alternative remedies for improper rulings. In reviewing the evolution of our statutory law, a number of historical markers support our conclusion that a guilt phase retrial is not required if a juror's bias goes only to the sentencing phase.

Bifurcated capital trials began in New York in 1963, with the amendment of sections 1045 and 1045-a of the former Penal Law (*see* L 1963, ch 994, §§ 1, 2).¹⁶ The bill was proposed because, at the time, New York State was the only American jurisdiction that had retained the mandatory death penalty for murder. Proponents concluded that by providing the jury with a life imprisonment option, the bill would achieve the “worthy objective” of terminating New York's solitary adherence to the mandatory death penalty for murder (*see* Mem of Commn on Revision of Penal Law and Crim Code in Support of L 1963, ch 994, 1963 McKinney's Session Laws of NY, at 2019). It would eliminate “the illogical and wasteful situation arising when a jury determination of guilt is negated by failure to agree upon the penalty or recommendation aspect. Through severance of the two issues and prescription of separate verdicts for each, the primary verdict of guilty stands final and recorded *regardless of any further proceedings or determinations with respect to sentence*” (*id.* at 2020 [emphasis added]).

16. Former Penal Law § 1045-a provided for a penalty phase to determine whether defendant should be sentenced to life imprisonment or to death. The proceeding was to be conducted before the court and the jury that found the defendant guilty, unless the court for good cause discharged that jury and impaneled a new one for the sentencing phase. At that phase, either party could present evidence on any matter relevant to sentencing, including the nature and circumstances of the crime, defendant's background and history, and any aggravating or mitigating circumstances. If the Court of Appeals found substantial error only in the sentencing proceeding, it could set aside the death sentence and remit the case to the trial court for imposition of a life sentence.

Effective 1967, the Legislature revised the Penal Law to make murder a degreeless crime (L 1965, ch 1030, as amended by L 1967, ch 791, § 9), treating intentional killing, depraved indifference murder and felony murder as the same level of offense. Under then-existing Penal Law § 125.30, a defendant convicted of intentional or felony murder¹⁷ was subjected to a second proceeding to determine whether the sentence should be death or life imprisonment.¹⁸

At the time of these enactments, the former Code of Criminal Procedure had been in effect for over a century, well before the United States Supreme Court decided a number of cases that shaped our statutory development. A Historical Note following the text of section 374 of the Code (Cons Laws of NY Ann, Book 66, at 824 [Edward Thompson Co 1958]) states that “[a] major consideration in enacting sections 374-378 [on challenges for cause] was to define that bias which should be the grounds for eliminating a juror, confining it to those degrees of prejudice which would ‘endanger the substantial rights of the prisoner’ ” (citing Report of Commissioners on Practice and Pleadings, at 196, submitted Dec. 31, 1849). A prospective juror could be challenged for “actual bias” when the juror expressed a state of mind such that the juror could not “try the issue impartially and without prejudice to the substantial rights of the party challenging” (Code Crim Pro § 376 [2]).

Additionally, as the Court said in *People v Carolin* (115 NY 658 [1889]), a challenge for “implied bias” could also be made in a capital case when a prospective juror expressed “such conscientious opinions as could preclude his finding the defendant guilty; in which case he shall neither be permitted nor compelled to serve as a juror” (Code Crim Pro § 377 [8]).

In 1968, the United States Supreme Court decided *Witherspoon v Illinois* (391 US 510 [1968])—a case that influenced our

17. According to a drafter’s memorandum, the bill was passed with a drafting error in it. While subdivision (1) of the section, as enacted by Laws of 1967 (ch 791, § 10), reads “murder as defined in subdivision one or two of section 125.25” (intentional and depraved indifference murders) it should have read “subdivision one or three” (intentional and felony murders) (see Mem from Peter J. McQuillan to John Sheehy, Apr. 14, 1967, Bill Jacket, L 1967, ch 791). This error was swiftly corrected (see L 1968, ch 949, § 1).

18. Former Penal Law § 125.35 contained the procedures for conducting the sentencing phase, again permitting the introduction of aggravating and mitigating factors to be considered by the jury, and again requiring a unanimous verdict. The death penalty could be imposed, however, only if the victim was a peace officer killed in the line of duty or if at the time of the offense, the defendant was serving a life sentence.

statutory scheme relating to juror challenges. *Witherspoon* held that in a capital case no state could exclude jurors merely because they expressed general objections to the death penalty. The Court stated that, “[i]n its quest for a jury capable of imposing the death penalty, [Illinois] produced a jury uncommonly willing to condemn a man to die” (*id.* at 520-521).

Soon after, the Legislature added Criminal Procedure Law § 270.20 (1) (f) (L 1970, ch 996, § 1), permitting challenges for cause on the ground that:

“[t]here is a possibility that the crime charged may be punishable by death and the prospective juror entertains such conscientious opinions either against or in favor of the death penalty as to preclude him from rendering an impartial verdict or from properly exercising the discretion conferred upon him by law in the setting of the penalty upon a proceeding conducted pursuant to section 125.35 of the penal law” (*id.*).¹⁹

It also modernized Code of Criminal Procedure § 376 (2), replacing it with CPL 270.20 (1) (b) (L 1970, ch 996, § 1).

At the same time, the Legislature enacted new CPL 270.20 (2), setting out the circumstances in which an erroneous ruling by the trial court on a challenge for cause would amount to reversible error. In *People v Culhane* (33 NY2d 90 [1973]),²⁰ the Court focused on prospective jurors who believed defendants guilty primarily based on media accounts, observing that:

“Although the veniremen did not sit on the jury, because the defendants exercised peremptory challenges, this is of no consequence. It is well settled that an erroneous ruling by the court, denying a challenge for cause, constitutes reversible error when the defendant peremptorily challenges the prospective juror and his peremptory challenges are exhausted before the jury selection process is

19. The year before this legislation was passed, our Court, in *People v DiPiazza* (24 NY2d 342 [1969]), recognized the significance of *Witherspoon*. We stated that legislation would be invalidated if it “allowed for a jury which falls ‘short of that impartiality to which [a defendant] was entitled under the Sixth and Fourteenth Amendments’ ” (*id.* at 354, quoting *Witherspoon*, 391 US at 518).

20. While *Culhane* took note of the new statute, and the relationship between CPL 270.20 (1) (b) and (2), its holding was grounded in Code of Criminal Procedure §§ 376 and 377, in effect at the time of the trial.

complete (*People v. Casey*, 96 N. Y. 115, 123; *People v. Flaherty*, 162 N. Y. 532, 537, 538). This rule of long standing, derived from the common law, has recently been codified in CPL 270.20 (subd. 2).”

It is important to recognize that this common-law rule embodied within CPL 270.20 (2) developed independently, and did not envision challenges for cause pertaining to penalty phase jurors. Indeed, until 1963, there was no such thing as a two-stage capital trial. Rather, CPL 270.20 (2) was concerned with actual bias that could affect a jury’s finding of guilt. By contrast, it is evident—and critical to our determination—that in enacting CPL 270.20 (1) (f), the Legislature was responding only to United States Supreme Court constitutional jurisprudence relating to sentencing phase bias.

This federal-state dialogue concerning the death penalty continued after the passage of CPL 270.20. In *People v Fitzpatrick* (32 NY2d 499, 509-513 [1973]), relying on the Supreme Court’s recent pronouncement in *Furman v Georgia* (408 US 238 [1972]), we held Penal Law § 125.35 (5) unconstitutional as violative of the Cruel and Unusual Punishment Clause because it permitted the jury to impose the penalty with unfettered discretion (*see also Culhane*, 33 NY2d at 95).

In response, the Legislature amended CPL 270.20 (1) (f) to delete the language pertaining to the juror’s exercise of discretion in setting a penalty. A subdivision (1) (f) for-cause challenge was thus limited to whether the juror’s conscientious opinions for or against the death penalty would preclude the juror from rendering an *impartial verdict* (L 1974, ch 367, § 14).²¹

In an about-face from the course it took in 1963, and in response to *Furman*, the Legislature added Penal Law § 60.06, requiring mandatory death sentences for defendants convicted of murder in the first degree (L 1974, ch 367, § 2).²²

That brings us to the present statute. In 1995, the Legislature amended CPL 270.20 (1) (f) (L 1995, ch 1, § 15), embracing Supreme Court standards for life/death qualification (*Harris*, 98

21. The Legislature also amended the first degree murder statute to limit first degree murder to intentional murders of police officers in the line of duty, or correctional facility employees in the course of performing official duties or to murders by defendants serving life sentences (L 1974, ch 367, § 5).

22. Again following Supreme Court precedent, this Court struck down these mandatory provisions (*see People v Smith*, 63 NY2d 41 [1984]; *People v Davis*, 43 NY2d 17 [1977]).

NY2d at 482-485). The Legislature sought to ensure that capital defendants receive the same protections afforded in federal prosecutions. To that end, and to craft an additional means of challenging a capital juror for cause, the lawmakers chose language akin to *Witherspoon*'s requirements regarding life and death qualifications. Indeed, the Legislature has continually responded to Supreme Court rulings in framing the standards for jury selection in capital punishment cases. Based on this progression, and particularly on the passage of the original CPL 270.20 (1) (f) in 1970 in response to *Witherspoon*, we conclude that the remedy intended in the case of an unqualified penalty phase juror is the same as that mandated by Supreme Court jurisprudence—the reversal of the sentence, as opposed to the entire trial.

This conclusion is buttressed by the explicit language of CPL 270.20 (1) (b) and (f). A subdivision (1) (b) challenge pertains to juror views related only to guilt. Inexorably, reversible error necessitates a new trial. By contrast, a subdivision (1) (f) challenge pertains only to jurors' capital sentencing views, and reversible error in that context necessitates a new sentencing proceeding. Indeed, in *People v Harris* (98 NY2d 452 [2002]), we interpreted CPL 270.20 (1) (f)'s "preclude" language to embody the federal "prevent or substantially impair" standard of *Wainwright v Witt* (469 US 412 [1985]). Considering that our interpretation of the standards governing life and death qualification is derived exclusively from federal precedent, a violation should likewise parallel the federal remedy. Moreover, there is no reason to grant a defendant a windfall by ordering a new guilt phase trial when the jury selection error pertains only to sentence.

Here, the erroneous rulings pertaining to prospective jurors Nos. 23 and 855 were based on challenges that went only to their ability to deliberate fairly and impartially at the penalty phase. As to prospective juror No. 23, defense counsel specifically drew the connection between the juror's experience with domestic violence and his difficulty in considering life without parole. Additionally, the court dismissed prospective juror No. 855, erroneously concluding that she was unsuitable for the penalty phase. This error does not justify a new guilt phase trial. Moreover, because we conclude that the penalty phase should not have taken place, these errors are of no consequence.

Procedurally, as Professor Preiser explains, a case is in limbo following reversal "absent specification of corrective action . . .

required to either finally dispose of the case (*e.g.*, dismissal of the indictment) or prescribe the next step or steps to be taken (*e.g.*, new trial)” (Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, Book 11A, CPL 470.10, at 527). Simply put, in a reversal, a reviewing court may employ various types of corrective action. Here, vacatur of the sentence alone is not only apt, but also the norm (*see Gray v Mississippi*, 481 US 648 [1987]; *see also Heard*, 31 Cal 4th at 966-967, 75 P3d at 66; *Farina v State*, 680 So 2d 392, 396 n 3 [Fla 1996]; *Morgan*, 504 US at 739).

D. Defendant’s Absence at Sidebar Conferences During Jury Selection

[10] Citing *People v Antommarchi* (80 NY2d 247 [1992]), defendant argues that his absence from two sidebar conferences during the group voir dire violated his statutory right to be present at the trial (*see* CPL 260.20). We conclude that defendant waived his right to be present at the bench conferences.

CPL 260.20 requires that “[a] defendant must be personally present during the trial of an indictment.” As we recently noted in *People v Foster* (1 NY3d 44 [2003]), this right extends to “sidebar and robing room conferences with prospective jurors regarding possible bias or hostility because they may give counsel input ‘in making discretionary choices during jury selection, based on impressions gained from seeing and hearing the juror’s responses on voir dire’ ” (*id.* at 47, quoting *People v Roman*, 88 NY2d 18, 26 [1996]). “Moreover, although the right is fundamental, it may be waived” (*Foster* at 48, citing *People v Vargas*, 88 NY2d 363, 375-376 [1996]).

Defendant waived his presence twice. First, at a March 1999 court appearance, defense counsel stated that

“I would request now for the record to show that [defendant] does not have to be present, unless a decision is made by his attorneys that he would be present. We think it’s highly prejudicial to bring him in front of the cameras, not allowed to dress in his proper clothing as he has been before, and I see no reason for it and just adds to the problems of this case.

“So I ask at this time the record should reflect, Mr. Cahill, you understand that you’re going to waive your right to be present in future appearances, except for hearings?”

Defendant answered yes. The court assented and asked to be told if defendant changed his mind. On another occasion, defense counsel advised the court that defendant waived his right to be present. The court asked defendant if this was true, and he answered yes. The court emphasized the point: “You’ve talked this over with your lawyer? You know you have an absolute right to be present at every stage of your trial?” Defendant replied: “Yeah, I understand that and I have talked it over with Mr. Priest.” Finally, at the start of group voir dire, defense counsel told the court that defendant “doesn’t wish to participate at the bench conferences.” The conferences in question occurred soon thereafter.

Although “a trial court need not engage the defendant in an on-the-record colloquy to ensure the requisite voluntary, knowing and intelligent nature of the waiver” (*Foster* at 49, citing *People v Spotford*, 85 NY2d 593, 598 [1995]; *People v Epps*, 37 NY2d 343, 350-351 [1975]), defendant twice asserted on the record that he accepted and understood the waiver.²³

III. Guilt Phase

A. Defendant’s Conviction Under Penal Law § 125.27 (1) (a) (v)

Witness elimination murder is committed when a defendant intentionally kills a victim who “was a witness to a crime committed on a prior occasion and the death was caused *for the purpose of* preventing the intended victim’s testimony in any criminal action” (Penal Law § 125.27 [1] [a] [v] [emphasis added]). As a threshold matter, the parties dispute the thrust of the words “for the purpose of.” Defendant argues that the crime is not made out unless a defendant kills the victim for the *sole* purpose of preventing the victim’s testimony. He argues, in essence, that the verdict cannot stand if there was proof that he had any motive for the murder other than his desire to prevent Jill’s testimony. The People contend that evidence of multiple motives may support a conviction for witness elimination murder.

[11] Both parties cite the legislative memorandum, which states:

“Killings must be committed ‘for the purpose’ of preventing, influencing or retaliating for prior testimony. Thus, this provision is applicable when

23. We note also that defendant waived his presence at the *Wade* hearing.

there is both a defined victim characteristic, (witness, family member) and when it can be proven that the defendant's motivation for committing a killing was to prevent or influence the actual testimony of a victim in a criminal proceeding" (Mem of Codes Comm, at 2, Bill Jacket, L 1995, ch 1).

Like the statutory language, however, this recitation does not address mixed motives. We conclude that the statute would have to be read too expansively to authorize a conviction when a defendant's motivation to eliminate a witness is insubstantial or incidental. Conversely, we cannot imagine that the Legislature intended to exclude a defendant—whose motivation to eliminate a witness was a substantial reason for the murder—merely because the defendant may have had other reasons or motives for the murder. Accordingly, the statute is satisfied if defendant's motivation to eliminate Jill as a witness was a substantial factor in murdering her, even though he may have had mixed motives. Applying this standard, we address defendant's claim that his conviction for murder in the first degree based on witness elimination (*see* Penal Law § 125.27 [1] [a] [v]) is both legally insufficient and against the weight of the evidence. We conclude that the evidence adduced on this count is legally sufficient, but that the verdict is against the weight of the evidence.

CPL 470.30 directs that criminal appeals taken directly to our Court are governed by CPL 470.15 and 470.20, which in turn address the scope of our review and the corrective action to be taken upon reversal or modification. Pursuant to CPL 470.15 (2) and (4), reversal or modification may be based on a determination that the evidence adduced at trial is not legally sufficient to establish the defendant's guilt. On the other hand, CPL 470.15 (5) allows for reversal or modification when a verdict is, in whole or in part, against the weight of the evidence.

Legal sufficiency review and weight of the evidence review involve different criteria. In assessing legal sufficiency, a court must "determine whether there is any valid line of reasoning and permissible inferences which could lead a rational person to the conclusion reached by the jury on the basis of the evidence at trial" (*People v Bleakley*, 69 NY2d 490, 495 [1987], citing *Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]). By contrast, weight of the evidence review recognizes that "[e]ven if all the elements and necessary findings are supported by some credible evidence, the court must examine the evidence further" (*Bleak-*

ley, 69 NY2d at 495). An appellate court weighing the evidence “must, like the trier of fact below, ‘weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony’ ” (*id.*, quoting *People ex rel. MacCracken v Miller*, 291 NY 55, 62 [1943]). If “based on all the credible evidence a different finding would not have been unreasonable” and if the “trier of fact has failed to give the evidence the weight it should be accorded,” the appellate court may set aside the verdict (*id.*).²⁴ When an appellate court performs weight of the evidence review, it sits, in effect, as a “thirteenth juror” (*Tibbs v Florida*, 457 US 31, 42 [1982]).

Our dissenting colleagues are critical of our weight of the evidence analysis, claiming that this review is not an “open invitation” to substitute our own judgment for that of the jury. Of course that is true. But on the other hand, weight of the evidence review does not connote an invitation to abdicate our responsibility. A guilty verdict based on a legally sufficient case is not the end of our factual analysis but the beginning of our weight of the evidence review. Indeed, we are not only authorized to conduct this review but also constitutionally compelled to do so (NY Const, art VI, §§ 3, 5). Under the Constitution of our state, “in capital cases in which the sentence of death has been imposed, this court is vested with the power to and must review the facts” (*People v Davis*, 43 NY2d 17, 36 [1977], citing NY Const, art VI, §§ 3, 5; *People v Carbonaro*, 21 NY2d 271, 274 [1967]). In *People v Crum* (272 NY 348 [1936]), we underscored the importance of weight of the evidence review, noting that “[w]e are obliged to weigh the evidence and form a conclusion as to the facts. It is not sufficient, as in most of the cases with us, to find evidence which presents a question of fact; it is necessary to go further before we can affirm a conviction and find that the evidence is of such weight and credibility as to convince us that the jury was justified in finding the defendant guilty beyond a reasonable doubt.” (*Id.* at 350.)²⁵

24. See also *People v Rayam* (94 NY2d 557, 560 [2000]); *People v Smith* (63 NY2d 41, 52 [1984]); *People v Davis* (43 NY2d 17, 36 [1977]); Karger, Powers of the New York Court of Appeals § 134 (b), at 766 (3d ed).

25. This conclusion comports with the intention of the Framers of the 1894 Constitution: “The only thing, Mr. Chairman, I believe, which justifies making any exception to the proposed line of demarcation between [the Court of Appeals and the Appellate Division], one constituted to settle the law, and the other constituted to review the facts, is the sacredness of human life” (see

(n. cont’d)

Thus, because a death sentence appeal comes directly to our Court, we conduct this type of analysis, which is routine in Appellate Division review of criminal cases (CPL 470.15 [5]). There is nothing the least bit novel about Appellate Division weight of the evidence reversals.²⁶

[12, 13] In arguing for witness elimination murder, the People drew upon certain events in defendant's life and matched them with steps he took toward planning Jill's murder. The People linked (1) the May 1998 Family Court appearances with defendant's Internet searches for cyanide; (2) the June and July 1998 developments in defendant's assault case with his procurement of cyanide; (3) defendant's October 1998 conversation with Patricia Cahill, defendant's mother, about her visit to Jill in the hospital with defendant's first disguised entrance into the hospital (in which a nursing assistant discovered defendant in Jill's room); and (4) defendant's upcoming *Huntley* hearing in the assault case with his having committed the murder. Viewed in the light most favorable to the People (*see People v Carr-El*, 99 NY2d 546, 547 [2002]), this timeline theory establishes a legally sufficient case. But it is barely that, and is decidedly against the weight of the evidence.

First, the May 1998 Family Court appearances primarily concerned the Cahill children. At the May 11 hearing, the Assistant District Attorney stated that the criminal court had issued an order of protection on behalf of the children and that they were potential witnesses in the assault case. The only evidence pertaining to the May 19 hearing involved psychological testing for the children. Jill's status as a witness was not mentioned during these hearings—in fact, Jill was not mentioned at all. The better part of the evidence reveals that defendant was motivated to poison his wife because their marriage and family

Bergan, *The History of the New York Court of Appeals, 1847-1932*, at 215 [1985]).

26. Though far from commonplace, there are dozens of such instances (*see e.g. People v Gioeli*, 288 AD2d 488 [2d Dept 2001]; *People v Scott*, 283 AD2d 98 [2d Dept 2001]; *People v Vigliotti*, 277 AD2d 890 [4th Dept 2000]; *People v McCoy*, 266 AD2d 589 [3d Dept 1999]; *People v Alfaro*, 260 AD2d 495 [2d Dept 1999]; *People v Van Akin*, 197 AD2d 845 [4th Dept 1993]; *People v Ruiz*, 162 AD2d 350 [1st Dept 1990]). Of course, this is not a new phenomenon (*see e.g. People v Beuther*, 5 AD2d 1005 [2d Dept 1958]; *People v Moltesen*, 282 App Div 1090 [3d Dept 1953]; *People v Smith*, 234 App Div 728 [4th Dept 1931]).

life were being destroyed, not because he wanted to kill a witness to the assault case.²⁷

Using the prosecution's timeline, a critical feature refutes its witness elimination theory: defendant procured potassium cyanide long before there was any possible belief—on anyone's part—that Jill could ever testify at a trial, given her condition.²⁸ After the assault, Jill suffered from a host of medical complications that utterly incapacitated her as a witness. Further, one doctor testified that as late as August 1998, when Jill entered the coma rehabilitation unit, her cognitive abilities ranked at a five or six on a 25-point scale. Moreover, at the corresponding criminal proceedings, there was no mention that Jill might or possibly could testify against defendant. Indeed, there is not a shred of evidence in this record that Jill had even retained a memory of the assault. Most compellingly, an assistant district attorney testified that up to the date of Jill's murder no law enforcement official had even interviewed her about the assault.

In seeking to prove that defendant knew Jill was able to speak and was afraid of what she would say, the People relied largely on the testimony of Patricia Cahill, defendant's mother. She

27. Judge Graffeo, in her dissent, states that “[a]pproximately one week later, defendant was present for another Family Court proceeding and learned that his children would undergo psychological evaluation. These impending interviews gave defendant reason to believe that his children would be questioned about the assault on their mother and the effect that it had on them. This had the potential to elicit additional information regarding the events surrounding the assault” (dissenting op at 110-111). The only record evidence concerning this court date is a one-page “Family Offense Record of Proceeding.” It notes the appearance of defendant, his counsel, Jill's attorney, the children's law guardian and Jill's parents. It further notes that the purpose of the hearing is an “Original Application” and that the status of the hearing was adjourned to June 18, 1998. A handwritten note states “Dr. Gordon to take psych/test of children (per LG) to set up schedule.” The dissent's contention about the nature of the questioning is speculative. Nothing in this court record indicates that the children's psychological evaluation had anything to do with the criminal case. Rather, they were being evaluated by a psychologist in connection with the Family Court proceeding.

28. Judge Graffeo states that “[t]he timing of pertinent events—when defendant actually ordered the cyanide, when he obtained it, and when he used the poison—forcefully establishes that defendant's actions were inextricably related to the prosecution of the assault charges” (dissenting op at 111). The dissent then mentions that between the date of defendant's arraignment on the assault indictment and his next court appearance, there were numerous conversations between the People and the defense about the assault case. The dissent ignores that defendant first searched the Internet for cyanide information on May 11, 1998, only three weeks *after* the assault and one month *before* he was arraigned on the indictment on June 16, 1998.

merely testified, however, that defendant told her that “ ‘I hope that when this is all concluded that she can tell the truth about what led to the break-up’ of their marriage.” This statement does not evince defendant’s fear of Jill’s possible testimony in the assault trial; it is more a comment about the dissolution of his family. In addition, Patricia Cahill testified that, during a visit, Jill “said something” to the nurses, and also that she told defendant about Jill’s physical condition. But we do not know what Jill said, or what Patricia Cahill told defendant about Jill’s status. Furthermore, Fred Russell, Jill’s father, stated that “there was not a word spoken” during Patricia Cahill’s visit to the hospital. Thus, Patricia Cahill’s testimony does not even suggest, let alone reveal, what defendant knew about Jill’s condition and speaking ability. It does not begin to show that he was afraid that Jill would testify against him at the assault trial.²⁹

Additional factors rebut the witness elimination theory. The very brutality of the April 1998 assault permits the compelling inference that, even as of then, defendant wanted to kill his wife and that ultimately doing so fulfilled his previously formed intent, which sprang from the impending divorce.³⁰

Beyond that, defendant had fully confessed to the assault and the prosecution had a powerful case without Jill’s testimony. In confessing to the assault, defendant admitted that he hit Jill on the head at least three or four times with the baseball bat. He further admitted that he struck her while she was unarmed, thus foreclosing any plausible claim of self-defense. He also confessed to having wounded himself, a deception designed to make it look as if he acted in self-defense, and that he attempted

29. Defendant also argues that the People improperly attempted to impeach Patricia Cahill, their own witness. CPL 60.35 (1) states that when the testimony of a party’s witness on a material issue tends to disprove the party’s position, the party can introduce a contradictory previous written statement signed by the witness or an oral statement given under oath. Defendant objected to the prosecutor’s improper attempts at impeachment and the trial court sustained the objections. Thus there is no cognizable error.

30. Judge Graffeo states that “[i]f it was only hatred and family disruption that impelled defendant’s murderous intent, why didn’t he attempt to kill Jill in August after his parents surrendered custody of the children to Jill’s parents, further removing him from his children?” (Dissenting op at 112.) However, defendant’s parents did not lose all contact with their grandchildren. Rather, an August 20 transcript shows that by stipulation, all of the grandparents agreed that Jill’s parents would take temporary custody of the children and defendant’s parents would have alternate weekend visitation, as well as one school night per week.

suicide after the assault. In light of these candid disclosures, there is scant basis to believe that defendant thought he could avoid an assault conviction by murdering Jill.

In weighing the conflicting inferences that can be drawn from the facts, the proof leads us to conclude that defendant, to put it plainly, wanted to kill Jill at the hospital for reasons that had virtually nothing to do with her ability to testify against him. The weight of the evidence does not support witness elimination as a substantial motive for the murder, and we therefore hold that the conviction for murder in the first degree under Penal Law § 125.27 (1) (a) (v) must be vacated.

B. Defendant's Conviction Under Penal Law § 125.27

(1) (a) (vii)

[14] In addition to witness elimination murder, defendant was convicted under Penal Law § 125.27 (1) (a) (vii). That section elevates intentional murder to capital-eligible murder when a defendant with “intent to cause the death of another person . . . causes the death of such person . . . and . . . the victim was killed while the defendant was in the course of committing or attempting to commit and in furtherance of . . . burglary in the first degree or second degree.” As a matter of statutory interpretation, we conclude that the conviction cannot stand because the burglary carried no intent other than to commit the murder.

Penal Law § 125.27 (1) (a) (vii) is best understood in light of the Legislature's purpose in devising aggravating factors as predicates for the death penalty. In *Tuilaepa v California* (512 US 967, 971-972 [1994]), the Supreme Court held that “[t]o render a defendant eligible for the death penalty in a homicide case . . . the trier of fact must convict the defendant of murder and find one ‘aggravating circumstance’ (or its equivalent) at either the guilt or penalty phase. See, e.g., *Lowenfield v. Phelps*, 484 U.S. 231, 244-246 (1988); *Zant v. Stephens*, 462 U.S. 862, 878 (1983).”

The Legislature drew up a list of aggravating factors to create a subclass of defendants who, in contrast to others who commit intentional murder, it thought deserving of the death penalty. By this device, the lawmakers saw to it that the death penalty could not fall randomly on all murder defendants. The Legislature's factors govern the discretion of courts and juries by limiting capital punishment to certain enumerated categories of

intentional killings, ensuring that the State follows its “constitutional responsibility to tailor and apply its law in a manner that avoids the arbitrary and capricious infliction of the death penalty” (*Godfrey v Georgia*, 446 US 420, 428 [1980]; *see also Zant*, 462 US at 876-878).

Penal Law § 125.27 (1) identifies death-eligible defendants as those who commit intentional murders in the context of one or more of 13 aggravating factors. Five aggravating factors relate to the killing of a member of a specific group (police officers, peace officers, corrections employees, witnesses and judges [subpars (i)-(iii), (v), (xii)]), two relate to the present or past circumstances of the offender (defendants serving life sentences and defendants previously convicted for murder [subpars (iv), (ix)]), four address the circumstances of the killing or criminal transaction (murder committed in furtherance of certain enumerated felonies, multiple murders as part of the same criminal transaction, murder by torture and terrorism [subpars (vii), (viii), (x), (xiii)]). The remaining two involve contract killing and serial murder (subpars [vi], [xi]) (*see* Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law § 125.27, at 386-391).³¹

Among other arguments, defendant contends that he cannot be convicted under Penal Law § 125.27 (1) (a) (vii) because the statute requires that the underlying felony (here, burglary in the second degree) have an objective apart from the intentional murder and that the burglary was merely an act that enabled the murder, one of many anticipatory steps along the way.³²

By the terms of the indictment, defendant was charged with having killed his wife “in the course of committing or attempting to commit and in the furtherance of the crime of Burglary in the Second Degree.”³³ Because our analysis turns on whether defendant’s burglary qualifies as an aggravating factor, we must address the crime of burglary in the setting before us.

31. When defendant was indicted for murder, there were 12 aggravating factors. The thirteenth, dealing with terrorism, was added in 2001 (L 2001, ch 300, § 3).

32. Defendant presents a number of other arguments as to his conviction under this count. He asserts that there was insufficient proof of unlawful entry to the hospital because the evidence did not establish that the hospital was closed to the public, and that the prosecution did not prove that he entered the hospital in violation of an order of protection. In discussing this count we will assume that defendant entered the hospital unlawfully.

33. In addition to burglaries of a dwelling, second degree burglary also prohibits knowing and unlawful entry into any building when the defendant is armed with explosives or a deadly weapon, or causes physical injury to a

(n. cont’d)

Burglary is part of a larger category of criminal behavior that involves intrusion upon property (Penal Law art 140). The statutory hierarchy is relevant. The lowest degree of intrusion is criminal trespass (a violation), by which a person knowingly enters or remains unlawfully in or upon premises (Penal Law § 140.05). From there, a trespass becomes more serious, depending on the nature of the premises and whether the trespasser possesses certain weapons (Penal Law §§ 140.10, 140.15, 140.17). The critical distinction between burglary and trespass is that a trespass in a building or dwelling is complete when a person knowingly enters or remains unlawfully in those premises. Burglary requires more. There can be no burglary unless the trespasser intends to commit a separate crime when entering or remaining unlawfully in a building (*see People v Gaines*, 74 NY2d 358 [1989]). Burglary is thus an aggravated form of criminal trespass, in which the aggravating factor is the trespasser's intent to commit a separate crime (*see People v Henderson*, 41 NY2d 233 [1976]; *see also* CJI2d [NY] Penal Law § 140.25 [1] [b]).

With that in mind, we may better appreciate how burglary fits into the design of Penal Law § 125.27 (1) (a) (vii). The statute begins by declaring that every first degree murder must include an intentional (second degree) murder. An additional aggravating factor—murder “plus”—raises the crime to murder in the first degree. A candidate for first degree murder is the burglar who enters a dwelling to steal or rob or rape and *in addition* kills someone intentionally, in the course and furtherance of the burglary. It is this double crime—murder “plus”—that is the defining core of Penal Law § 125.27 (1) (a) and renders the offender eligible for the death penalty.

The case before us does not fit this statutory paradigm. Burglary requires an intent to commit a crime in the burglarized premises, and here the prosecutor uses defendant's “intent to kill” to satisfy the burglary definition. But the very same mens rea—the intent to kill—also defines intentional murder (Penal Law § 125.25). Thus, the prosecution employs the identical mens rea both to define burglary and to elevate defendant's intentional murder to murder in the first degree. The defense argues that this circularity is impermissible and that the capital murder statute contemplates a felonious intent independent of the murder itself. We agree.

nonparticipant, or uses or threatens immediate use of a dangerous instrument or displays a firearm (Penal Law § 140.25 [1]).

A burglar who intends, for example, both to rob and murder is committing two crimes, both felonies, whose intents are purposively independent of each other. The robbery may be committed in connection with the murder, but as a substantive crime it is distinct from the murder and can be aptly characterized as an aggravating factor that fulfills Penal Law § 125.27 (1) (a) (vii). It is the “plus” (in the “murder plus” formulation) that is necessary to make it a death-eligible crime.

Burglary, however, is different because it is a trespass—a misdemeanor—that becomes a felony only if the trespasser intends to commit a separate crime when entering a building (*see Gaines*). If the burglar intends only murder, that intent cannot be used both to define the burglary and at the same time bootstrap the second degree (intentional) murder to a capital crime. To do so would not narrow the class of those eligible for the death penalty, but would widen it. In promulgating the list of aggravators, the Legislature did not expressly sweep within Penal Law § 125.27 all killings in which the murderer unlawfully entered the victim’s home. We decline to imply such an intent, let alone write one into the statute, in the face of the unswerving legislative goal of narrowing rather than expanding the class of defendants eligible for the death penalty. Nor will we, in the absence of legislative intent or expression, have life or death hinge on whether a defendant engaged in conduct that simply enabled the intended murder and had no point of its own. To do so would spurn rather than follow the Legislature’s objectives.

In arguing that defendant’s burglary satisfies Penal Law § 125.27 (1) (a) (vii), the prosecutors and our dissenting colleagues rely heavily on *People v Miller* (32 NY2d 157 [1973]). They assert that *Miller* applies and that if we read Penal Law § 125.27 (1) (a) (vii) as requiring a felony independent of the murder, we will be overruling a body of felony murder jurisprudence that extends back three decades. This is not so. *Miller* does not govern this case, and the reason is plain: in *Miller*, the Court interpreted Penal Law § 125.25 (3), the felony murder statute. Here, we are reviewing not felony murder but Penal Law § 125.27 (1) (a) (vii), a capital punishment statute directed at those who commit intentional murder, and more. *Miller* is distinguishable on the facts and in its legal premise. By today’s decision, we leave our body of felony murder jurisprudence intact.

In *Miller*, the defendant knocked on the door of Fennell’s apartment intending to assault Fennell. When Fennell opened

the door, Miller stabbed him in the arm. Fennell's roommate, Aleem, intervened and Miller killed Aleem. Miller was convicted of felony murder and manslaughter in the second degree as to Aleem and first degree assault as to Fennell. The Court upheld the felony murder conviction as against Miller's contention that neither the assault on Fennell nor the killing of Aleem could serve as a felony to satisfy the felony murder doctrine.

The defense argues that *Miller* stands at most for the proposition that the defendant's conviction rested on his having killed the roommate, Aleem, to advance an independent, qualifying felony (burglary) and that the rest of the opinion is dicta, pointing out that Judges Jones and Gabrielli concurred in the result. The concurring Judges stated that Miller's conviction for felony murder could properly be sustained on the basis of his having killed Aleem and that the Court need not have addressed the question whether the assault upon Fennell could qualify as a felony under the felony murder statute.³⁴ The prosecution disagrees with defendant's characterization of the case as partly dicta.

The obvious response to this dispute over the reach of *Miller* is that in the case before us we are not in the felony murder arena and need not determine how we would rule if we were. We therefore have no occasion to decide whether in a felony murder case—which this is not—*Miller* should be *extended* to a defendant who enters a building to murder the victim (in contrast to having the intent to assault the victim, as in *Miller*). We did not address that question in *Miller*, let alone decide it, and it would be improvident for us to render an opinion in a hypothetical case under a statute involving concepts and purposes different from the one before us.³⁵

34. Judge Read states that we “seem[] to prefer” the reasoning of the concurrence in *Miller* (dissenting op at 129). Our writing expresses no such preference.

35. Our dissenting colleagues are off the mark in characterizing our decision as a revival and expansion of the “merger doctrine.” We have not used the term because, in relation to felony murder, it had taken on a historical meaning and usage of its own. In cases decided under an earlier incarnation of our felony murder statute, we held that a felonious assault merges into the homicide (because it is an ingredient of the homicide) and therefore cannot be employed as the underlying felony to support a felony murder conviction (see e.g. *People v Huter*, 184 NY 237 [1906]; *People v Spohr*, 206 NY 516 [1912]; *People v Wagner*, 245 NY 143 [1927]; *People v Moran*, 246 NY 100 [1927]; cf. *People v La Marca*, 3 NY2d 452 [1957]). The Legislature amended the felony murder statute to eliminate felonious assault as a basis for felony murder (see

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In contrast to Penal Law § 125.27 (1), felony murder covers nonintentional killings. The very purpose of the felony murder doctrine is to utilize the underlying felony as a substitute for the defendant's murderous intent and thereby raise an unintentional killing to the level of murder (see *People v Chico*, 90 NY2d 585 [1997]; *People v Lytton*, 257 NY 310 [1931]). As we said in *People v Hernandez* (82 NY2d 309, 317 [1993]), "The basic tenet of felony murder liability is that the *mens rea* of the underlying felony is imputed to the participant responsible for the killing. By operation of that legal fiction, the transferred intent allows the law to characterize a homicide, though unintended and not in the common design of the felons, as an intentional killing" (citations omitted).

The felony murder concept was derived from the common law, at which no intent to kill was necessary. It was enough that the victim was killed while the accused was engaged in the commission of a felony.³⁶ Under the common law, the felonious intent was imputed to the committed act, and, if it were homicide, made it murder (see *People v Enoch*, 13 Wend 159 [1834]).³⁷

Penal Law § 125.27 (1) (a) (vii) borrows language from the felony murder statute but is critically different because it deals with intentional, not unintentional, killings. The purposes of

generally Corcoran, Felony Murder in New York, 6 Fordham L Rev 43 [1937]). Our reasoning is analogous to the rationale that underlies the cases above—which were decided to prevent the improper use of one crime as a predicate for another. Here, however, we are not dealing with felony murder based on an underlying assault, but with a death penalty statute predicated on an intent to kill, that has different purposes and is intended to reach different types of homicides. More importantly, we are dealing not with the merger concept, so much as we are with the process of statutory construction to implement the legislative intent of narrowing application of the death penalty.

36. See 3 Stephen, *A History of the Criminal Law of England*, at 20-21, 64-76 (1883); 9 Halsbury's *Laws of England*, at 437 (2d ed 1933); Moreland, *Law of Homicide*, at 42-43 (1952); 2 Bishop on *Criminal Law*, at 527 (1923); Perkins on *Criminal Law*, at 33 (1957); 1 Warren on *Homicide* § 74, at 320-321 (perm ed 1938).

37. In the first Revised Statutes, passed in 1828, New York adopted the felony murder doctrine, providing that the killing of a human being was murder "[w]hen perpetrated without any design to effect death, by a person engaged in the commission of any felony" (2 Rev Stat of NY, part IV, ch I, tit I, § 5 [3], at 657 [1829]). Following a series of amendments, the concept was enacted into the predecessor of today's Penal Law (see Penal Law of 1909 § 1044; see generally Arent and MacDonald, *The Felony Murder Doctrine and its Application Under the New York Statutes*, 20 Cornell L Rev 288, 292-294 [1935]). Of course, the absence of an intent requirement does not limit felony murder to unintentional killings, but indicates that intent to kill is immaterial (see *People v Greenwall*, 115 NY 520 [1889]).

the capital statute and the felony murder statute are distinct, and the felonies covered by them are not the same. For example, under the felony murder statute, the killing need not be committed by one of the people engaged in the commission of the underlying crime (*People v Hernandez*, 82 NY2d 309 [1993]), whereas Penal Law § 125.27 (1) (a) (vii) does not apply where the defendant's liability is based on someone else's conduct (unless the defendant commanded the murder). Moreover, felony murder liability for the death of a victim has been broadly construed (see e.g. *People v Ingram*, 67 NY2d 897 [1986]; *People v Matos*, 83 NY2d 509 [1994]), whereas the Legislature crafted Penal Law § 125.27 (1) (a) to narrow the class of eligible offenders. Conceptually, Penal Law § 125.27 (1) (a) begins with murder in the second degree and builds *on* it. Conversely, felony murder builds *toward* it. Thus, felony murder ends up as murder, whereas Penal Law § 125.27 (1) (a) begins with murder. The two concepts share certain components but have entirely different objectives and constituents, and were statutorily constructed to reach different types of homicides and different categories of defendants.³⁸

For these reasons, the jurisprudence underlying the *Miller* felony murder statute cannot be equated with the goals of Penal Law § 125.27 (1) (a). Furthermore, *Miller* deals with assault and we have not been made aware of a single case in which this Court (or any appellate court in New York) ever discussed whether a felony murder conviction may be based upon a burglary with an underlying intent to kill, let alone held that way.³⁹

The parties cite out-of-state cases dealing with whether the intent to kill can serve as a predicate for burglary when the same intent is used to elevate a murder to a capital offense. It is appropriate that we consider these decisions. The prosecution cites *State v Tillman* (750 P2d 546 [Utah 1987]) and *Smith v*

38. Judge Read's dissent quotes *Miller* for its emphasis on the dwelling as a place where "the likelihood that the assault will culminate in a homicide is significantly increased" (dissenting op at 125). This argument makes good sense in the context of felony murder where the Legislature is effectively warning burglars that if they bring weapons and death accidentally results, they could be answerable for murder. This logic, and the deterrence behind it, does not apply to the burglar who is bent not on burglary, but on murder.

39. In dissent, Judge Read cites *People v Kellogg* (210 AD2d 912 [1994]) as having involved a felony murder (based on burglary with an underlying intent to kill) (dissenting op at 129 n 13). In that case, however, neither the Appellate Division nor our Court addressed the issue before us. Accordingly, *Kellogg* is of no consequence in our analysis. We rely on precedent based on a court's reasoning and discussion, not on points that were never argued or addressed.

State (499 So 2d 750 [Miss 1986]), in which the highest courts of Utah and Mississippi upheld capital sentences where the intentional murders were each aggravated by having been carried out during a burglary with the killing as its objective.⁴⁰

The defense counters with *Parker v State* (292 Ark 421, 731 SW2d 756 [1987]) and *People v Green* (27 Cal 3d 1, 59-62, 609 P2d 468, 504-506 [1980]). In *Parker*, the Arkansas Supreme Court held that the defendant's burglary was a facilitating step along the way in fulfilling his intent to commit murder. Because the underlying burglary had no objective independent of the murder, the court refused to elevate the murder to capital offense status. The *Parker* court stressed that the Arkansas statute required that the murder be committed in the course of and "in furtherance of" the felony. The court pointed out that Parker did not commit the murder "in furtherance of" the burglary and that the very opposite was true: he committed the burglary in furtherance of his intent to kill his victim.

We note also that in the most recent case on this subject the Supreme Court of Delaware reached the same conclusion (see *Williams v State*, 818 A2d 906 [Del 2002]). In reversing a death sentence, the court held that "if the intent of the burglary was to commit murder, the death that occurred was not 'in furtherance of' the burglary" (*id.* at 908). Although it may have been carried out "in the course of" the burglary, it was not "carried out 'in furtherance of' it" (*id.* at 913).

Putting aside the possible differences in the language and legislative histories of the statutes in Utah, Mississippi and New York, we respectfully disagree with the rationale expressed in *Tillman* and *Smith*.⁴¹ As for *Parker* and *Williams*, we note that our statute—like those in Arkansas and Delaware—

40. There are numerous cases holding that a defendant commits felony murder when entering a victim's home unlawfully with assault as the objective (see e.g. *State v Contreras*, 46 P3d 661, 664 [Nev 2002]; *Commonwealth v Claudio*, 418 Mass 103, 634 NE2d 902 [1994]; *State v Reams*, 292 Or 1, 636 P2d 913 [1981]; *State v Foy*, 224 Kan 558, 582 P2d 281 [1978]; *Blango v United States*, 373 A2d 885, 888 [DC 1977]). Some of these cases rely on *Miller* but, like *Miller*, do not involve an unlawful entry made by a defendant with the intent to kill the victim.

41. Neither Utah's nor Mississippi's death statute contains "in furtherance of" language. Utah Code Annotated § 76-5-202 (1) (d) makes an intentional killing the equivalent of first degree murder if "the homicide was committed while the actor was engaged in the commission of . . . arson . . . [or] burglary." Likewise, Mississippi Code Annotated § 97-3-19 (2) (e) defines as a capital murder any killing "[w]hen done with or without any design to effect death, by any person engaged in the commission of . . . burglary."

requires that the murder be in the course of and “in furtherance of” the burglary.⁴² The Supreme Courts of Arkansas and Delaware based their analyses chiefly on the “in furtherance of” requirement and held it cannot be satisfied where the burglary is committed to further the murder, as opposed to the converse.

Because we reach the same result on slightly different grounds, we need not and do not determine whether the prosecution is correct in its assertion that defendant killed his wife “in furtherance of” the burglary. It is certain that the converse is true—defendant committed the burglary to further his intent to kill his wife. That being so, the burglary was not meaningfully independent from the murder. Defendant’s trespass on the hospital premises was merely a prerequisite to his committing the murder—an enabling measure that had no purpose or substance other than to serve his only goal, to kill his victim.

In *Green* (27 Cal 3d at 59-62, 609 P2d at 504-506), the Supreme Court of California addressed a question similar to the one before us. *Green* is pertinent because the California capital punishment statute does not require that the murder be “in furtherance of” the felony. The court therefore did not rely on the “in furtherance” language that influenced the results in *Parker* and *Williams*. Although *Green* involved a robbery, the analysis is germane and bears repetition, considering that we, like the California Supreme Court, hold that the felonious intent must be independent of the murder, if it is to qualify as an aggravating factor:

“The Legislature’s goal is not achieved, however, when the defendant’s intent is not to steal but to kill and the robbery is merely incidental to the murder—‘a second thing to it,’ as the jury foreman here said—because its sole object is to facilitate or conceal the primary crime. In the case at hand, for example, it would not rationally distinguish between murderers to hold that this defendant can be subjected to the death penalty because he took his victim’s clothing for the purpose of burning it later to prevent identification, when another defendant who committed an identical first degree murder could not be

42. New York is one of 11 states that use the phrase “in furtherance of” in these contexts (see 2 LaFave, Substantive Criminal Law § 14.5 [f], at 461 [2d ed 2003]).

subjected to the death penalty if for the same purpose he buried the victim fully clothed—or even if he doused the clothed body with gasoline and burned it at the scene instead. To permit a jury to choose who will live and who will die on the basis of whether in the course of committing a first degree murder the defendant happens to engage in ancillary conduct that technically constitutes robbery or one of the other listed felonies would be to revive ‘the risk of wholly arbitrary and capricious action’ condemned by the high court plurality in *Gregg*.’ (27 Cal 3d at 61-62, 609 P2d at 505-506 [citations omitted].)⁴³

In sum, we reject the approach adopted by Mississippi and Utah and, while aware of the differences among the respective statutes, join Delaware, Arkansas and California in refusing to elevate a case such as this to capital murder status. We acknowledge that Penal Law § 125.27 (1) (a) (vii) could be read differently and conceivably be given the interpretation urged by the prosecution. But to do so we would have to stretch the statute’s meaning and bend the language to encircle the case before us. Requiring an intent independent of the intentional murder of the victim, as we do, is both the most sensible reading of the statute and the one most consonant with the Legislature’s intent in establishing the statute’s aggravating factors.⁴⁴

43. The prosecution points out that *Green* is based on an earlier California case, *People v Wilson* (1 Cal 3d 431, 462 P2d 22 [1969]), which our Court rejected in *People v Miller* (32 NY2d 157, 160 n 3 [1973]). Our continuing disagreement with *Wilson*, however, does not extend to *Green* or its reasoning as it relates to our capital murder statute. In *Wilson*, the defendant committed burglary to assault the victim, and we refused to apply its rationale to our felony murder statute. Here, we are dealing neither with a felony murder statute nor an intent to assault. The case before us involves a capital murder statute and an intent to kill.

44. In her dissent, Judge Graffeo suggests that because the People established a legally sufficient case for witness elimination murder, defendant had a felonious intent independent of the crime that satisfies Penal Law § 125.27 (1) (a) (vii) (dissenting op at 107). She also proposes that the People necessarily proved several lesser included offenses, such as tampering with a witness in the first and second degrees (Penal Law § 215.13 [1]; § 215.12 [1]), and intimidating a victim or witness in the first and second degrees (Penal Law § 215.17 [1]; § 215.16 [1]), and that these somehow satisfy the independent felonious intent requirement. Although these contentions are novel, the People argued only an intent to kill in their summation. Because the People have never relied on these theories and did not even suggest them in their

(n. cont’d)

We are also aware of the dissent's contention that our interpretation could engender results that, on the surface, appear incongruous. The defendant who breaks into a home with the joint intent of killing the occupant and stealing an appliance would, under our interpretation, be death-eligible, but a defendant who breaks into the same home for the sole purpose of killing the occupant would not. This might appear as a surface flaw, but on further analysis the result is fully in keeping with the statutory plan. In the former case, the defendant who burglarizes in order to steal and commits intentional murder would be punished more severely under Penal Law § 125.27 (1) (a) (vii) for having committed both murder and a burglary intended apart from the murder. This result is neither arbitrary nor unjust, and is more faithful to the Legislature's language and design.⁴⁵

IV. Conclusion

Accordingly, the judgment of Onondaga County Court should be modified by reducing defendant's conviction of two counts of murder in the first degree to one count of murder in the second degree and remitting to that court for resentencing on the second degree murder as well as the remaining counts and, as so modified, affirmed.

G.B. SMITH, J. (concurring). I concur with the Court's conclusions that the trial court's failure to grant appropriate cause challenges went to the sentencing phase of the trial and does not require a new trial, and that the convictions for capital murder, murder in the first degree with burglary as the underlying felony and murder in order to eliminate a witness from testifying must be reversed. I join the Court's decision insofar as it concludes that defendant was convicted of intentional mur-

voluminous and comprehensive submissions for this appeal we have no occasion to consider them.

45. Defendant has made a number of other guilt phase arguments. He contends that the Judge and attorneys for both sides stood as unsworn witnesses in the trial based on their earlier participation in the assault proceedings. Also, he argues that the court improperly admitted photographs of Jill's hospital room into evidence. Defendant further asserts that the People made improper remarks throughout the trial, alluding to, among other things, the victim's beauty and courage and defendant's remorselessness. All of these arguments are unpreserved, and were we to address them, without merit. The remaining guilt phase arguments are also without merit. Lastly, we have no occasion to address any of defendant's arguments that do not relate to the guilt phase or are otherwise academic, in view of the result we reach.

der beyond a reasonable doubt and remits for sentencing for murder in the second degree and associated charges.

I address two other issues—the deadlock jury instructions which are required to be given by CPL 400.27 (10) and the arbitrariness of the death penalty statute. Both issues have been raised by the defendant. Moreover, the dissent, while concluding that the judgment should be affirmed, does not address all of the arguments raised by the defendant. While I would prefer that the entire Court, majority and dissents, deal with these issues, I address them because they are central to a determination of the validity of a death penalty prosecution.

Because the provision requiring the jury to receive a particular deadlock instruction is coercive, I would reach that issue. Judge Ciparick joins me in concluding that the deadlock instruction is coercive. I also disagree with the failure of the Court to address the arbitrariness of the death penalty scheme, and would reach that issue.

On April 21, 1998, two weeks after signing a separation agreement with his wife, defendant James F. (Jeff) Cahill assaulted his wife, Jill Cahill, with an aluminum baseball bat. The incident left her unconscious, with severe head injuries for which she spent months in a hospital. Defendant first claimed that she came at him with a knife and he hit her in self-defense. Later he admitted that he continued to hit her after she dropped the knife. “When Jill Cahill fell down in the mud room after [I] hit her, she dropped the knife. After helping her back into the kitchen, [I] retrieved the knife from the mud room and put it on the kitchen floor. Back in the kitchen, the struggle resumed, and [I] hit her with the bat at least twice when she was not holding the knife.” Defendant further admitted that his wounds were self-inflicted. “[I] used a nail to make the scratches on [my] shoulder and arm.”

Defendant was arrested and indicted for assault in the first degree (Penal Law § 120.10) and criminal possession of a weapon in the fourth degree (Penal Law § 265.01). As a result of the arrest and indictment, defendant was not allowed to have contact with his wife or his two children. On October 27, 1998, while Jill was still in the hospital recovering from the assault, defendant entered her room and poisoned her with cyanide.¹ Just before Jill was poisoned, several nurses and other hospital workers saw defendant in the hospital disguised as a janitor.

1. Jill passed away from the effects of the poison on October 28th.

About a week earlier, one of the nursing assistants recalled seeing defendant in the hospital so disguised.²

Defendant was arrested at home on October 27th for the incident at the hospital. The next day the police seized a computer from the Cahills' house. From the computer, the police were able to ascertain evidence of Internet searches for information about cyanide, and a letter on letterhead from a local company ordering cyanide. It was later determined that the letter and the letterhead were forgeries. Additionally, the police recovered a container of cyanide which was hidden near the shed on the property.

Defendant was indicted for one count of murder in the first degree (Penal Law § 125.27 [1] [a] [vii]), with burglary as the underlying felony (Penal Law § 140.25); one count of murder in the first degree (Penal Law § 125.27 [1] [a] [v]), a killing with the intent to prevent a witness from testifying; two counts of murder in the second degree, burglary in the second degree, criminal possession of a weapon in the fourth degree and aggravated criminal contempt (Penal Law § 215.52).³ In January 1999 the two indictments were consolidated.

During the guilt/innocence phase of the trial (August 3 to August 9, 1999), after the People presented their case, defendant called one witness. On August 10, 1999, at the conclusion of the trial, defendant was found guilty of one count of murder in the first degree (Penal Law § 125.27 [1] [a] [vii]), with burglary as the underlying felony (Penal Law § 140.25); one count of murder in the first degree (Penal Law § 125.27 [1] [a] [v]), killing to prevent a witness from testifying; two counts of criminal possession of a weapon in the fourth degree (Penal Law § 265.01); and one count of assault in the first degree (Penal Law § 120.10).

During the penalty phase, August 17 to August 19, 1999, defendant, after the People's case, called 21 witnesses. On August 20, 1999, the jury determined that defendant should be sentenced to death as to each count of murder in the first degree. On October 5, 1999, defendant was sentenced to 12^{1/2} to

2. Nursing assistant Donna Lee Holloway recalled seeing defendant in the hospital on either October 19th or 20th. He was "crouched down" and his head was low, dust mopping the hallway. Instead of a housekeeper's typical blue uniform, defendant wore work boots and white painter pants, and appeared to be wearing a wig with "red highlight."

3. Aggravated criminal contempt (Penal Law § 215.52) was later dismissed on April 27, 1999.

25 years in prison for assault in the first degree and a concurrent sentence of one year on the two counts of criminal possession of a weapon. Pursuant to CPL 450.70 (1), defendant filed his appeal directly to this Court.

The Current Disposition

Four Judges of this Court conclude that defendant was properly convicted of intentional second degree murder. The dissents, without addressing all of the arguments raised by the defendant, conclude that he was properly convicted of both counts of capital murder. In *People v Harris* (98 NY2d 452 [2002]) and again in this case, defendants have raised issues concerning the constitutionality of the capital murder legislation. I believe those issues should be addressed.

I continue to believe that heightened scrutiny must be applied to all aspects of a capital murder case (*see People v Harris*, 98 NY2d at 497-506). Even if that doctrine is not applied here, there are arguments raised by defendant which go to the heart of any case under the capital murder legislation. These include the court's instructions on a deadlocked jury, instructions required by CPL 400.27 (10), and the arbitrariness of the death penalty legislation.

Challenges for Cause to Some Prospective Jurors

A prospective juror must give an unequivocal assurance that he or she can be fair and impartial (*People v Johnson*, 94 NY2d 600 [2000]). In *People v Johnson* this Court stated:

“Thus, from the statute [CPL 270.20] and case law, the guiding principles are perfectly plain: when potential jurors reveal knowledge or opinions reflecting a state of mind likely to preclude impartial service, they must in some form give unequivocal assurance that they can set aside any bias and render an impartial verdict based on the evidence. Obviously, when potential jurors themselves openly state that they doubt their own ability to be impartial in the case at hand, there is far more than a *likelihood* of bias, and an unequivocal assurance of impartiality must be elicited if they are to serve” (94 NY2d at 614 [emphasis in original]).

Thus, a trial court must excuse a prospective juror who displays a disqualifying state of mind unless the juror gives a clear and

unambiguous assurance that he or she can be impartial. “[T]he Trial Judge should require the prospective juror to ‘expressly state that his prior state of mind . . . will . . . not influence his verdict, and . . . that he will render an impartial verdict based solely on the evidence’ ” (*People v Johnson*, 94 NY2d at 613, quoting *People v Biondo*, 41 NY2d 483, 485 [1977]).

A general statement of impartiality that does not explicitly address the specific cause of the preexisting bias is not sufficient. Instead, “jurors must clearly express that any prior experiences or opinions that reveal the potential for bias will not prevent them from reaching an impartial verdict. If there is any doubt about a prospective juror’s impartiality, trial courts should err on the side of excusing the juror, since at worst the court will have ‘replaced one impartial juror with another’ ” (*People v Arnold*, 96 NY2d 358, 362 [2001]).

Defendant argues that the trial court should have dismissed prospective juror No. 23 and should have rejected the People’s cause challenge with respect to prospective juror No. 855. While recognizing that some of the initial answers given by those prospective jurors could arguably reflect on their ability to be impartial on the guilt phase, I join the Court in its conclusion that the potential lack of impartiality of these two prospective jurors affected their impartiality only as to the sentencing phase of the trial.

Anticipatory Deadlock Instruction

Where the death penalty is sought on a first degree murder indictment, if the jury finds the defendant guilty, it must then determine how the defendant’s crime should be punished. To assist the jury with its sentencing responsibilities, CPL 400.27 (10) requires the trial court to instruct the jury that it must unanimously decide whether to impose the death sentence or a sentence of life imprisonment without the possibility of parole. That provision further requires the court to instruct the jury that “in the event the jury fails to reach unanimous agreement with respect to the sentence, the court will sentence the defendant to a term of imprisonment with a minimum term of between twenty and twenty-five years and a maximum term of life.” Defendant argues that this instruction is unconstitutional because of the substantial risk that jurors who believed that a sentence of life without parole was appropriate would be coerced into voting for the death penalty in order to avoid the possibility that the defendant might someday be released from prison.

At the outset, it is necessary to note that because of its severity and irrevocability, the penalty of death is qualitatively different than any other type of sentence, regardless of the length of the period of imprisonment (*see Woodson v North Carolina*, 428 US 280, 305 [1976] [plurality op]). Because of this qualitative difference, the United States Supreme Court has recognized that there is a heightened “need for reliability in the determination that death is the appropriate punishment in a specific case” (*id.*; *see People v Harris*, 98 NY2d at 497-506 [Smith, J., concurring in part and dissenting in part], citing *Furman v Georgia*, 408 US 238, 306 [1972] [Stewart, J., concurring]; *Caldwell v Mississippi*, 472 US 320, 340 [1985]; *California v Ramos*, 463 US 992, 998-999 [1983]). In order to ensure that “the death penalty is indeed imposed on the basis of ‘reason rather than caprice or emotion,’ ” the Court has “invalidated procedural rules that tended to diminish the reliability of the sentencing determination” (*Beck v Alabama*, 447 US 625, 638 [1980]; *see Gardner v Florida*, 430 US 349, 358 [1977]). A jury instruction that introduces a level of uncertainty and unreliability “cannot be tolerated in a capital case” (*Beck* at 643; *see People v Harris*, 177 Misc 2d 160, 162 [Sup Ct, Kings County 1998, Feldman, J.]).

New York leaves the decision of capital sentencing in the hands of the jury. Like the majority of such jurisdictions, New York provides that when a jury is unable to reach a unanimous verdict, the trial judge assumes the responsibility to impose the defendant’s sentence according to its respective statute.

New York is but one of four states that instructs its juries as to the consequences of a failure to decide between death and some determined lesser sentence.⁴ However, in each of the other states that requires such an instruction, the court in the event of deadlock, is required to impose a lesser penalty that the jury *had* been considering. Only in New York is the trial judge required to impose a sentence more lenient than the two sentencing options upon which the jury had deliberated. Such a sentencing scheme is irrational and carries a substantial risk of coercing a unanimous sentencing verdict from a jury, even under circumstances where individual jurors hold a genuine belief that their position, though different than that of their fellow jurors, is the just one. The sentencing scheme to be employed upon a jury deadlock is therefore unconstitutional.

4. *See* NJ Stat Ann § 2C:11-3 (f); Mo Ann Stat § 565.030 (4); Or Rev Stat § 163.150 (2) (a).

While the legislative history of the New York death penalty statute offers no insight into why the only sentence available for the trial court to impose upon a jury deadlock would be a sentence more lenient than the options the jury had been considering, the legislative debates demonstrate that the members of the Legislature were aware of the risk that the jury instruction could result in a coerced verdict but consciously disregarded the risk.⁵ During the State Senate debate over the issue of the anticipatory deadlock instruction, the following exchange took place:

“SENATOR DOLLINGER: . . . [H]ow do you avoid the problem of a jury that is hung up on the issue of either life in prison without parole or the death penalty of putting additional pressure on the jurors, knowing that if they failed to agree they are going to face a penalty that is less than either of the two penalties that they are currently in dispute over?

“SENATOR VOLKER: That’s, I think, the option that they face.” (New York State Senate Debate on Senate Bill S 2850, Mar. 6, 1995, at 1912.)⁶

At a subsequent exchange, the following occurred:

“SENATOR DOLLINGER: . . . But isn’t it inherently coercive to tell them that you have to [reach a consensus on the most severe penalties]; otherwise, there is going to be another penalty imposed?

“SENATOR VOLKER: They don’t have to do anything. I mean what you do have to do, I think, Senator, the problem would be—my own personal feeling is I think there could be a problem if you didn’t inform the jury right up front as to what happens when they fail to make a decision” (*id.* at 1916).

5. Although there is nothing in the debates or the Bill Jacket demonstrating that the legislators harbored a coercive intent, at least one commentator has opined that such an intent is the only inference to be drawn (*see* James S. Liebman, *The Overproduction of Death*, 100 Colum L Rev 2030, 2118 n 215 [2000] [“The only possible reason for having this cockeyed sentencing scheme—and for insisting that capital jurors be informed of it—is to put pressure on minority jurors holding out for life to switch to death so that the defendant is not made eligible for parole as a result of a nonunanimous verdict.”]).

6. Although Senator Volker claimed that there was a constitutional basis for the propriety of his position, he failed to identify it.

Senator Volker has since introduced a bill amending the death penalty statute that, among other things, proposes that the sentence to be imposed by the trial judge upon a jury impasse with regard to sentencing would be the non-death sentence that the jury had been considering—life imprisonment without the possibility of parole (*see* 2001 NY Senate Bill S 5409, New York 224th Annual Legislative Session, introduced May 31, 2001).

The sentencing consequence of a deadlock, as provided by CPL 400.27 (10), creates an intolerable risk of coercion on the jury's deliberative process. Essentially, jurors are informed at the very outset of their deliberations that if they cannot unanimously decide whether the defendant should be sentenced to death or to life imprisonment without the possibility of parole, the judge will impose a prison term of life with the possibility of parole after serving from 20 to 25 years. Such an instruction plainly goes to the heart of one of the chief concerns a deliberating jury would have about the defendant—his or her future dangerousness (*see Simmons v South Carolina*, 512 US 154, 162 [1994] [“a defendant's future dangerousness bears on all sentencing determinations made in our criminal justice system”]; *Jurek v Texas*, 428 US 262, 275 [1976] [“any sentencing authority must predict a convicted person's probable future conduct when it engages in the process of determining what punishment to impose”]).

Future dangerousness of a defendant is such a crucial issue for a jury deciding a defendant's sentence because jurors do not want to be responsible for the release of a defendant they believe will continue to be a societal threat (*see* William J. Bowers and Benjamin D. Steiner, *Death by Default: An Empirical Demonstration of False and Forced Choices in Capital Sentencing*, 77 Tex L Rev 605, 701 [1999] [according to accounts, jurors often impose death, not because they deem the sentence to be retributively appropriate, but for the incapacitative purpose of removing the defendant from society]). According to an empirical study conducted by the Capital Jury Project in South Carolina, one of the most important considerations jurors make in assessing a defendant's future dangerousness is “the probable actual duration of the defendant's prison sentence” if the death penalty is not imposed (Eisenberg and Wells, *Deadly Confusion: Juror Instructions in Capital Cases*, 79 Cornell L Rev 1, 4, 7 [1993]). Jurors perceive a defendant likely to be released after a shorter prison term as more dangerous than the same defendant expected to serve a longer term. Consequently, jurors tend

to sentence to death those defendants expected to serve a shorter term (*see id.*; Laurie B. Berberich, Note, *Jury Instructions Regarding Deadlock in Capital Sentencing*, 29 Hofstra L Rev 1301, 1324 [2001] [“The sooner (jurors) think the defendant will get out of prison, the more likely they are to vote for death”]).⁷

It rationally follows that a jury’s perception of a defendant’s future dangerousness is vastly diminished when the only options for his sentence are death and life imprisonment without the possibility of parole. The availability of a life sentence without the possibility of parole necessarily means that the death penalty is no longer the only way to achieve a defendant’s permanent incapacitation (*see* Bowers and Steiner, *Death by Default*, 77 Tex L Rev at 707 [life without parole and death are “essentially equivalent for incapacitative purposes”]). “Indeed, there may be no greater assurance of a defendant’s future non-dangerousness to the public than the fact that he never will be released on parole” (*Simmons*, 512 US at 163-164).

However, a jury instruction that the failure to reach a unanimous verdict between those two options would result in a parole-eligible life sentence interjects the issue of the defendant’s future dangerousness into the deliberative process where it otherwise would have no place. Where jurors are divided as to which incapacitative sentence to impose, they inevitably are faced with the possibility that if they do not come to a consensus, the defendant will be sentenced to a term that will possibly result in his eventual release from prison—a prospect

7. It is for this reason that the Supreme Court in *Simmons v South Carolina* (512 US 154 [1994]) reversed the death sentence imposed by the jury. In *Simmons*, following the defendant’s capital conviction, the jury was instructed to decide whether the defendant’s sentence should be death or life imprisonment. After it had begun its deliberations, the jury sent a note to the court asking whether the sentence of life imprisonment carried with it the possibility of parole (*see id.* at 160). The judge refused to instruct the jury that under the state law the defendant would not be eligible for parole. The jury subsequently returned a sentence imposing death. The Supreme Court held that the judge had erred. The Court first acknowledged that the defendant’s future dangerousness was a crucial issue in the jury’s sentencing verdict. The Court further recognized that the length of a possible non-death sentence was critical to the jury’s assessment of the defendant’s future dangerousness, and, in turn, his ultimate punishment (*see id.* at 163-164). The Court thus concluded that where the defendant’s future dangerousness is at issue, due process requires that the jury be informed that the defendant would be ineligible for parole (*see id.* at 162, 169).

that the jurors are not being asked to contemplate, and possibly may not want.⁸

8. The People argue that it should not be assumed that jurors deliberating a defendant's sentence would be deciding only between death and life without parole. The People claim that the jury could also properly consider the option of a life sentence with the possibility of parole to be imposed by the judge. For two reasons, the People's argument on this point must fail.

First, the legislative history clearly shows that the legislators intended that the jury consider only the options of death and life without parole, while disregarding the sentence of life with parole, which was solely within the realm of the trial judge's power (*see* New York State Senate Debate on Senate Bill S 2850, Mar. 6, 1995, at 1911, 1913; New York State Assembly Debate on Assembly Bill A 4843, Mar. 6, 1995, at 97-98). At the Senate debate on the death penalty statute, the following exchange took place:

"SENATOR VOLKER: Yes. The judge would instruct the jurors that if they are unable to come to an agreement, a unanimous agreement, for the death penalty and if they are unable to come to a determination on life without parole, in that case the judge would sentence the person to 20 to 25 years to life.

"SENATOR DOLLINGER: So if a jury, Senator, giving due weight to the aggravating and mitigating factors, how does a jury arrive at the fact—can the jury arrive at the third option?

"SENATOR VOLKER: No. A jury cannot arrive at the third option. The third option would only actually be open to the judge. . . .

"SENATOR DOLLINGER: My understanding is that the jury, then, does not get all three options. They only get two.

"SENATOR VOLKER: Two." (Senate Debate at 1911-1913.)

At the Assembly debate, the following exchanges took place:

"MR. DINOWITZ: Mr. Vitaliano, can the jury impose a sentence of life with parole eligibility under this statute?

"MR. VITALIANO: No, Mr. Dinowitz. The jury has only two sentencing options under the bill: either death or life imprisonment without parole. If they should deadlock, then and only then, a sentence of 20 to 25 years minimum to life maximum is imposed by the judge.

"MR. DINOWITZ: But what if the case involves a 19-year-old first offender where there is overwhelming mitigation evidence and the jury unanimously reaches a reasoned, moral judgment that a life sentence with parole eligibility is an appropriate sentence, that all other sentences would be excessive, what happens then?

"MR. VITALIANO: The jury is not empowered to reach that conclusion. . . . [A] regular life sentence is not an available option for the jury to consider." (Assembly Debate at 97-98.)

Second, the People's argument fails because, even if the jury wished that the defendant receive a sentence of life with the possibility of parole, in order to secure the imposition of that sentence, the jury would either have to lie to the judge about the existence of a deadlock or to divide its votes deliberately in order to orchestrate a nonunanimous verdict. Either option would be a

(n. cont'd)

Plainly, the most disturbing risk that the statute poses is that a juror who is in the minority in his or her vote for life without parole would inevitably feel pressured to vote with the majority for the death sentence in order to avoid the possibility of defendant's eventual freedom.⁹ And where the jury vote is substantially in favor of the death sentence, the jurors in the minority no longer are choosing between death and life without parole; they are choosing between death and life with the possibility of parole within 20 to 25 years as a result of creating an impasse. Faced with the possibility that they will not otherwise be able to prevent the defendant's return to society, jurors favoring life without parole may relinquish their conscientiously held beliefs and vote for the death penalty (see Berberich, *Jury Instructions*, 29 Hofstra L Rev at 1325 ["Common sense leads to the conclusion that a juror who would impose death over a life sentence because of his or her fear that a capital offender would be released on parole, would also impose a death sentence if he or she believed that a hung jury would lead to the same result."])).

A unanimous death sentence, secured under these circumstances, would not be the product of reason but rather of uncertainty and coercion; it therefore cannot withstand constitutional scrutiny (see *Beck v Alabama*, 447 US 625 [1980] [where the death penalty was automatic upon conviction of first degree murder and the state statute forbade the jury from considering lesser included offenses, the Supreme Court found the statute unconstitutionally coercive in violation of the Eighth Amendment because rather than determining solely whether the evidence established the defendant's guilt, the statute inevi-

clear violation of the jurors' oaths. Certainly, the statute should be not read in such a manner as to infer that the Legislature had this intent.

9. Empirical studies lead to the conclusion that this problematic scenario is by no means farfetched. According to the data obtained by the Capital Jury Project, the sentencing phase of a capital trial commences with a substantial bias favoring death (see Eisenberg and Wells, *Deadly Confusion*, 79 Cornell L Rev at 12). Indeed, the prosecutor presumably has selected only those defendants for which the ultimate penalty is deemed appropriate; the jury has already found the defendant to be guilty of capital murder and rejected all of his defenses; and most jurors indicate their belief that the defendant's crime was particularly heinous and expect him to be dangerous in the future (see *id.*). According to the study, in cases where the death penalty was imposed, the average initial vote was reported as 9.67 to 2.68 in favor of the death penalty. Moreover, an average of 67% of such cases reported that jurors voting for a life sentence were especially reluctant to go along with the majority (see *id.* at 13-14).

tably forced jurors to take into account whether the defendant would die for his crime or simply go free]).

The People argue that the challenged jury instruction could also have the effect of pressuring jurors who favor the death sentence to vote in favor of life without parole in order to avoid the more lenient deadlock sentence. The People are certainly correct on this point. But for two important reasons, the possibility of such an outcome does not matter. First, as explained above, the finality and irrevocability of a death sentence makes that punishment qualitatively different than any other punishment that may be imposed, no matter how long the period of imprisonment (*see Woodson*, 428 US at 305 [plurality op]). It is the possibility of the death sentence that triggers a heightened scrutiny analysis, not the possibility of a life sentence. Surely, a statutory provision which creates a substantial risk that jurors would be coerced into sentencing a defendant to die cannot be saved by the fact that the provision also creates the risk that the jury would be coerced into sparing his life. These are not comparable outcomes. Moreover, because we can never predict in any given case how the votes of the jury would be configured, we cannot anticipate how the pressure of the deadlock sentence would be applied (*see Harris*, 177 Misc 2d at 164). In any event, the substantial risk of coercion posed by the deadlock sentence cannot be tolerated.

Second, regardless of whether the deadlock provision favors the defendant or the prosecution, it remains coercive. It introduces a measure of uncertainty and unreliability into the deliberative process. Thus, there is a substantial risk that the jury verdict may not reflect the true conscience of the jury. As a constitutional matter, such a result cannot be countenanced in a capital case (*see Beck v Alabama*, 447 US at 643).

“Any criminal defendant, and especially any capital defendant, being tried by a jury is entitled to the uncoerced verdict of that body” (*Lowenfield v Phelps*, 484 US 231, 241 [1988]). However, “when [capital jurors] impose a death sentence because life without parole, the sentence they deemed most appropriate, is not available, death is a forced choice” (Bowers and Steiner, *Death by Default*, 77 Tex L Rev at 611 n 22 [1999]). The result is an unreliable death verdict that does not accurately reflect the collective conscience of the community and seriously offends principles of due process and fundamental fairness. Thus, CPL 400.27 (10) is unconstitutional insofar as it provides that upon the failure of the sentencing jury to reach a unani-

mous verdict, the trial judge must impose a maximum sentence of life imprisonment and a minimum sentence of between 20 and 25 years.

Just as significant, the appropriate cure for this coercive statutory provision is not simply to withhold from the jury the fact that the trial judge could impose a more lenient sentence should the jury fail to reach a unanimous decision. New York has, with good reason, decided that the jury should be made aware of what would happen in the event of a deadlock. Providing such instruction is rooted in the significant interest of minimizing the risk of an arbitrary or capricious action. Indeed, without such an instruction, there is an intolerable likelihood that jurors would speculate as to what would happen to the defendant in the event of a deadlocked jury. Studies have shown that such speculation often tends to favor the imposition of the death sentence because jurors tend to underestimate the severity of the non-death sentencing alternative (*see* Eisenberg and Wells, *Deadly Confusion*, 79 Cornell L Rev at 4; Bowers and Steiner, *Death by Default*, 77 Tex L Rev at 705). Thus, telling jurors nothing about the sentence to be imposed upon a jury deadlock would risk the same unacceptable results that already exist with the instructions provided in the current statute.

Therefore, the only proper way to cure the infirmity of the provision is to strike the deadlock instruction itself. The only constitutionally proper sentence for a judge to impose upon the failure of the jury to decide between death and life imprisonment without parole is the lesser sentence considered by the jury—life imprisonment without parole. Such a result ensures that the jury's verdict expresses the true conscience of the community and is not the result of uncertainty or coercion.

The Arbitrariness of New York's Death Penalty Scheme Prosecutorial Discretion

Defendant has also raised the issue of the arbitrariness of the death penalty statute. While in light of the disposition here, I do not come to a definitive conclusion on the issue of arbitrariness, the argument is a strong one and should be addressed. I write to highlight two aspects of this argument.

Defendant claims that New York's death penalty scheme allows district attorneys to select capital defendants arbitrarily, inconsistently and discriminatorily, in violation of article I, § 5 (cruel and unusual punishment), § 6 (due process of law), and

§ 11 (equal protection of the law) of the New York State Constitution and the Eighth and Fourteenth Amendments to the United States Constitution. Although raised in *Harris*, this Court has not previously addressed this issue (*Harris*, 98 NY2d at 497 n 23).

Traditionally, district attorneys have enjoyed great discretion in making charging decisions. That discretion need not be disturbed by this opinion. However, notice of intent to seek the death penalty pursuant to CPL 250.40 is not the same as a charging decision. By the time this notice is filed, the defendant has already been charged and indicted for first degree murder under Penal Law § 125.27.

CPL 250.40 does not provide any guidelines for when and if a district attorney should seek the death penalty. There is no provision under section 250.40 or any other portion of the CPL mandating that the district attorney set out the reason he or she has or has not sought death. The decision can be based on personal, irrelevant or even improper reasons without preserving a record for appeal.

The arbitrary way in which a defendant becomes exposed to the death penalty may be in violation of a defendant's constitutional rights on both a state and federal level.

The People argue that the defendant failed to allege how the statute "as applied to him violates a constitutional norm" (*People v Parker*, 41 NY2d 21, 24 [1976]). The People call for a specific allegation. In their words, "[a]ppellant only insinuates that the use of prosecutorial discretion to file a notice to seek capital punishment pursuant to CPL 250.40 resulted in his arbitrary, capricious selection as a capital defendant; he does not point to evidence in the record to support an injury in fact." Additionally, the People claim that the figures kept by the Office of Court Administration and the Capital Defender Office do not provide evidence of a per se injury.

According to the figures kept by the Office of Court Administration and the Capital Defender Office, between September 1, 1995 and December 31, 2001, grand juries indicted 376 defendants for first degree murder in New York. During this same period, district attorneys filed death notices in only 43 cases. That is only 11.4% of all first degree murder indictments, according to statistics maintained by the Capital Defender Office.

Without a reason being given by the People, the defendant is at a distinct disadvantage when it comes to making a specific

challenge alleging improper reasoning by the district attorney. Yet the decision made by the district attorney has a direct impact on the defendant.

Under the statute as written, a defendant who is allegedly aggrieved by the People's filing of the CPL 250.40 notice has no recourse and no remedy for improper reasons of the district attorney. Certainly no one would deny a defendant's challenge if he or she could prove, for example, that the reasoning behind the notice was race-based. To deny a defendant's challenge where the district attorney is allowed to conceal reasoning improperly stacks the deck against the defendant. Death is different and a defendant should be allowed to seek out and challenge the action of the district attorney. Failure to permit a challenge to the filing of the death notice stands in direct contradiction to the principles on which our legal system is founded.

The Arbitrariness of New York's Death Penalty Statute

Racial Discrimination

It is a sad and ugly badge of shame that the imposition of death in this country has been tainted with racial prejudice. It is no coincidence that when the Supreme Court in *Furman v Georgia* (408 US 238 [1972]) declared that the death penalty as then enacted constituted a cruel and unusual punishment in violation of the Constitution, the three defendants in the case were Black. The Court's opinion is terse, but the opinions of the individual Justices make the case one of the longest in the United States Reports. The first of the opinions is that of Justice Douglas, who concluded that

“[t]hose who wrote the Eighth Amendment knew what price their forebears had paid for a system based, not on equal justice, but on discrimination. In those days the target was not the blacks or the poor, but the dissenters . . .

“[W]e know that the discretion of judges and juries in imposing the death penalty enables the penalty to be selectively applied feeding prejudices against the accused if he is poor and despised, and lacking political clout, or if he is a member of a suspect or unpopular minority, and saving those who by social position may be in a more protected position” (*id.* at 255).

Examining the raw numbers of those executed, Justice Marshall noted that “Negroes were executed far more often than whites in proportion to their percentage of the population.” (*Id.* at 364.) He then added that “[s]tudies indicate that while the higher rate of execution among Negroes is partially due to a higher rate of crime, there is evidence of racial discrimination” (*id.*).

Although concluding that racial discrimination in the cases before the Court was not established, Justice Stewart referred to Justices Douglas’s and Justice Marshall’s “demonstrat[ion] that, if any basis can be discerned for the selection of these few to be sentenced to die, it is the constitutionally impermissible basis of race” (*id.* at 310). Although Justice Brennan did not mention race, he concluded that the death penalty did not “comport[] with human dignity” because of, among other things, the “strong probability that it is inflicted arbitrarily” (*id.* at 305). Similarly, Justice White concluded that “the death penalty is exacted with great infrequency even for the most atrocious crimes and that there is no meaningful basis for distinguishing the few cases in which it is imposed from the many cases in which it is not.” (*Id.* at 313.)

Furman represents, to varying degrees, a certain distrust of jurors’ ability to consistently make rational and nondiscriminatory judgments as to which defendants are deserving of the ultimate punishment. Just one year before *Furman*, the Court had held, in *McGautha v California* (402 US 183, 207 [1971]), that “[i]n light of history, experience, and the present limitations of human knowledge, we find it quite impossible to say that committing to the untrammelled discretion of the jury the power to pronounce life or death in capital cases is offensive to anything in the Constitution.” To Justice Marshall, one of the dissenters in *McGautha*, the holding “was an open invitation to discrimination” (*Furman*, 408 US at 365).

In his dissenting opinion in *Furman*, Chief Justice Burger stressed “the assumption underlying the *McGautha* ruling is that juries ‘will act with due regard for the consequences of their decision’ ” (*Furman*, 408 US at 387-388). He added that jurors are the “conscience of the community” (*id.* at 388) and that “to assume from the mere fact of relative infrequency that only a random assortment of pariahs are sentenced to death, is to cast grave doubt on the basic integrity of our jury system” (*id.* at 388-389). Chief Justice Burger did seem to concede that the studies presented to the Court showed that jurors had

discriminated in imposing death, but he brushed them aside by noting that they “cover[ed] periods when Negroes were systematically excluded from jury service and when racial segregation was the official policy in many States” (*id.* at 389 n 12).

Justice Powell, the author of another dissenting opinion, also conceded that the death penalty had been applied in a discriminatory manner in the past, but concluded that this did not justify invalidating death penalty sentences “in all cases in which sentences were handed out to members of the class discriminated against.” (*Id.* at 450.) Expressing a rather optimistic view, he stated that “[t]he possibility of racial bias in the trial and sentencing process has diminished in recent years” (*id.*).

Four years later, in *Gregg v Georgia* (428 US 153, 198 [1976]), the Court condoned Georgia’s revised sentencing procedures in death penalty cases because jurors were required to make specific findings “as to the circumstances of the crime or the character of the defendant.” In addition, the Georgia Supreme Court was required to compare a sentence to other similarly situated defendants to ensure that it was not disproportionate. Although the Court did not focus on race, it is fair to say that, in light of *Furman*, the purpose of limiting jury discretion was to ensure that it would not be exercised in a discriminatory manner.

One would expect then that after *Furman* and *Gregg*, there would be a change in the statistical landscape of those who are subjected to the death penalty and those who are not. It has not occurred. The jury discretion limits imposed by Georgia in 1972, after *Furman*, did not have an immediate profound effect on the collective racial consciousness of Georgia jurors. This was shown by an academic study spearheaded by Professor David C. Baldus which analyzed data on about 2,500 homicides committed in Georgia from 1973 to 1979. Taking into account 230 nonracial variables, Professor Baldus made the following findings, as noted by the Supreme Court in *McCleskey v Kemp* (481 US 279 [1987]):

“[T]he death penalty was assessed in 22% of the cases involving black defendants and white victims; 8% of the cases involving white defendants and white victims; 1% of the cases involving black defendants and black victims; and 3% of the cases

involving white defendants and black victims. Similarly, Baldus found that prosecutors sought the death penalty in 70% of the cases involving black defendants and white victims; 32% of the cases involving white defendants and white victims; 15% of the cases involving black defendants and black victims; and 19% of the cases involving white defendants and black victims.” (*McCleskey* at 286-287.)

The numbers seem to make clear that in a significant number of cases, the taking of a White life by a Black defendant deserved a harsher punishment, namely death, than any other type of case.

By a slim majority, the Supreme Court rejected *McCleskey*’s equal protection and Eighth Amendment challenges to the Georgia statute. Of course, *McCleskey* could not prove directly that the jurors who sentenced him to death did so because of his race. But he relied on the study to show an inference of discrimination in cases involving White victims and Black defendants. As in *Furman*, the argument was a salvo aimed at jury discretion, the heart of the criminal justice system. In an opinion by Justice Powell, the Supreme Court rejected the argument by finding as follows:

“Because discretion is essential to the criminal justice process, we would demand exceptionally clear proof before we would infer that the discretion has been abused. The unique nature of the decisions at issue in this case also counsels against adopting such an inference from the disparities indicated by the Baldus study. Accordingly, we hold that the Baldus study is clearly insufficient to support an inference that any of the decisionmakers in *McCleskey*’s case acted with discriminatory purpose” (481 US at 297).

Addressing jury and prosecutorial discretion in the context of the Eighth Amendment challenge, the Court found that:

“[w]here the discretion that is fundamental to our criminal process is involved, we decline to assume that what is unexplained is invidious. In light of the safeguards designed to minimize racial bias in the process, the fundamental value of jury trial in our criminal justice system, and the benefits that discretion provides to criminal defendants, we hold that

the Baldus study does not demonstrate a constitutionally significant risk of racial bias affecting the Georgia capital sentencing process.” (*McCleskey* at 313.)

The Court also stated that an acceptance of *McCleskey*’s claim would place into jeopardy cases not involving race and noncapital cases. For example, the Court reasoned, unattractive people could make an argument similar to that of *McCleskey*. Finally, the Court ended with the caution that *McCleskey*, or rather those who supported his arguments, should appeal to the legislatures.

It is noteworthy that *Furman*, *Gregg*, and *McCleskey* all dealt with Georgia defendants. The Court in *Furman* analyzed data from the entire nation, while *Gregg* and *McCleskey* were limited to Georgia defendants. While many other states do not share the same legacy of institutional racism common to Georgia (see *McCleskey*, 481 US at 328-330 [dissenting op of Brennan, J.]) and the rest of the South, when it comes to the application of the death penalty, Georgia and the other states with death penalty statutes are not so far apart.

That much can be gathered from a report, entitled “Death Penalty Sentencing: Research Indicates Pattern of Racial Disparities,” prepared by the United States General Accounting Office (GAO), an independent and nonpartisan agency, pursuant to the Anti-Drug Abuse Act of 1988 (Pub L 100-690).¹⁰ The report evaluated 28 carefully selected studies covering the pe-

10. See also Gross and Mauro, *Death & Discrimination. Racial Disparities in Capital Sentencing*, at 109 (Northeastern University Press 1989) (concluding that “there has been racial discrimination in the imposition of the death penalty under post-*Furman* statutes in the eight states [Georgia, Florida, Illinois, Oklahoma, North Carolina, Mississippi, Virginia, and Arkansas] that we examined. The discrimination is based on the race of the victim, and it is a remarkably stable and consistent phenomenon.”); Mark Costanzo, *Just Revenge, Costs and Consequences of the Death Penalty*, at 84 (St. Martin’s Press 1997) (drawing the following conclusion from several studies: “Those who are accused of murdering a white victim are more likely to be charged with a capital crime; those convicted of killing a white victim are more likely to receive a sentence of death; black defendants who are convicted of killing a white person are the group most likely to receive the death penalty; white defendants who murder black victims are the group least likely to receive the death sentence; and the effects of race are most pronounced in southern states like Texas, Georgia, Louisiana and Florida.”); Ronald J. Tabak, *Is Racism Irrelevant? Or Should the Fairness in Death Sentencing Act Be Enacted to Substantially Diminish Racial Discrimination in Capital Sentencing?*, 18 NYU Rev L & Soc Change 777, 780 n 9 (1991) (citing studies showing racial discrimination based on the race of the victim).

riod of post-*Furman* to 1988. The report undertook this approach because of the availability of “both . . . sufficient quality and quantity [of research concerning discrimination] to warrant the evaluation synthesis approach” (at 2). The synthesis showed “a pattern of evidence indicating racial disparities in the charging, sentencing, and imposition of the death penalty.” (At 5.)

With respect to the race of the victim, the evidence was clear:

“In 82 percent of the studies, race of victim was found to influence the likelihood of being charged with capital murder or receiving the death penalty, i.e., those who murdered whites were found to be more likely to be sentenced to death than those who murdered blacks. This finding was remarkably consistent across data sets, states, data collection methods, and analytic techniques. . . .

“The evidence for the race of victim influence was stronger for the earlier stages of the judicial process (e.g., prosecutorial decision to charge defendant with a capital offense, decision to proceed to trial rather than plea bargain) than in later stages. This was because the earlier stages were comprised of larger samples allowing for more rigorous analyses. However, decisions made at every stage of the process necessarily affect an individual’s likelihood of being sentenced to death. . . .

“The analyses show that after controlling statistically for legally relevant variables and other factors thought to influence death penalty sentencing (e.g., region, jurisdiction), differences remain in the likelihood of receiving the death penalty based on race of victim” (at 5-6).

With respect to the race of the defendant, the findings were not as clear cut. The report determined that “more than half of the studies found that race of defendant influenced the likelihood of being charged with a capital crime or receiving the death penalty,” and that three fourths of these studies “found that black defendants were more likely to receive the death penalty.” (At 6.) The report cautioned, however, that the relationship between race and outcome was complex. For example, in rural areas Black defendants were more likely to receive death sentences, but in urban areas White defendants were

more likely to receive death sentences. A few studies revealed “that the black defendant/white victim combination was the most likely to receive the death penalty.” (At 6.)

The GAO report is now 15 years old. Since its publication, a number of additional studies have been prepared. Many of these studies have concluded that race, whether of the victim or the defendant, or both, plays a role in the imposition of the death penalty.¹¹ Others have found no statistically significant evidence that race plays a role in capital sentencing.¹²

11. State of Connecticut Commission on the Death Penalty Commissioned by the Connecticut General Assembly (<<http://www.opm.state.ct.us/pdpd1/CDP/CDP-FinalReport.htm>>) (“one disparity that is suggested by the data is in the race of the victim in those cases in which the defendant has been sentenced to death. Six [6] of the 7 death sentences have been imposed for the murder of a white victim and no death sentence has been imposed for the murder of a black victim.”); Report of the Governor’s Commission on Capital Punishment (Ill 2002) (<<http://www.idoc.state.il.us/ccp/ccp/reports/index.html>>) (“When certain facts in aggravation, such as previous criminal history of the defendant, are controlled for, there is evidence that the *race of the victim* influences who is sentenced to death. In other words, defendants of any race who murder white victims were more likely to receive a death sentence than those who murdered black victims. . . . [T]here was no statistically significant evidence of disparate treatment based upon the *race of the defendant*, once aggravating factors were held constant. In other words, despite the fact that minorities comprise most of Death Row in Illinois, they are not sentenced to death at greater rates than whites.” [ch 14, “General Recommendations”]); An Empirical Analysis of Maryland’s Death Sentencing System With Respect to the Influence of Race and Legal Jurisdiction (<<http://www.urhome.umd.edu/newsdesk/pdf/finalrep.pdf>>) (identifying statewide patterns including “statistically significant effects for geographic, race of victim, and joint offender-victim race groups on the imposition of death sentences in Maryland” [at 41]); Final Report of the Pennsylvania Supreme Court Committee on Racial and Gender Bias in the Justice System (<<http://www.courts.state.pa.us/Index/Supreme/BiasCmte/FinalReport.pdf>>) (prepared by the Pennsylvania Supreme Court) (researchers in Philadelphia “found that African American defendants were sentenced to death at a significantly higher rate than similarly situated non-African Americans” [at 201]); see also Legislative Commission’s Subcommittee to Study the Death Penalty and Related DNA Testing (Nev 2002); Capital Punishment: Mentally Retarded and Race Basis, prepared by Legislative Research Commission (NC 2001).

12. The Federal Death Penalty System: Supplementary Data, Analysis and Revised Protocols for Capital Case Review (2001) (<<http://www.usdoj.gov/dag/pubdoc/deathpenaltystudy.htm>>) (“The proportion of minority defendants in federal capital cases exceeds the proportion of minority individuals in the general population. The information gathered by the Department indicates that the cause of this disproportion is not racial or ethnic bias, but the representation of minorities in the pool of potential federal capital cases.”); The Disposition of Nebraska Capital and Non-Capital Homicide Cases (1973-1999); A Legal and Empirical Analysis, Commissioned by the Nebraska Legislature (<<http://www.nol.org/home/crimecom/homicide/execsum.pdf>>); Report to the

(n. cont’d)

The GAO report did not include New York. While the imposition of the death penalty in New York is older than the state itself,¹³ the last execution took place in 1963, several years before *Furman*. When the death penalty was in place, New York was often a leader in the number of executions carried out.¹⁴ Unlike Georgia, however, New York has often been a leader in enacting legislation prohibiting discrimination.¹⁵ Yet New York is no less deserving of a badge of shame for the role race has played in capital punishment. An analysis of those executed from 1888, the year capital punishment was centralized, to 1963, reveals the following:

“[W]hile in the 1920s Blacks comprised only 1.9% of New York’s population, they represented 14% of those executed. Similarly, during the 1930s the Black population in New York accounted for only 3.28% of all New York residents, yet Black men constituted 17% of all persons executed during this time. . . . By the 1960s, Black people comprised 80% of all capital defendants executed in New York while representing only 8.45% of the state’s population.”¹⁶

As to the makeup of the race of the victims, the statistics are not much different. In 90.4% of the cases resulting in executions in New York since 1890, the victims were White. On the other hand, “only 6.3% of the victims were Black and 3.3% . . . were from other racial groups.”¹⁷ Moreover, “[w]hile there have been ninety-six cases where a Black person was executed for killing a White person (14% of all cases), there has been only a single case in New York where a White person was executed for killing a Black person (0.1% of all cases).”¹⁸

Supreme Court: Systemic Proportionality Review Project (NJ 2001) (<<http://www.judiciary.state.nj.us/baime/baimereport.pdf>>); Review of Virginia’s System of Capital Punishment, Commissioned by General Assembly (2002) (<<http://jlarc.state.va.us/Meetings/December01/capital.pdf>>).

13. James R. Acker, *Legal and Historical Perspectives: New York’s Proposed Death Penalty Legislation; Constitutional and Policy Perspectives* (54 Alb L Rev 515 [1990]); Michael Lumer and Nancy Tenney, *The Death Penalty in New York: An Historical Perspective* (4 J L & Pol’y 81 [1995]).

14. Lumer and Tenney (4 J L & Pol’y at 82 n 6).

15. See Hancock, McCullough and Farley, *Race, Unbridled Discretion, and the State Constitutional Validity of New York’s Death Penalty Statute—Two Questions* (59 Alb L Rev 1545, 1551-1554 [1996]).

16. Lumer and Tenney (4 J L & Pol’y at 102-103).

17. *Id.* at 105.

18. *Id.*

The foregoing numbers, of course, involve a time before *Furman*. As the People point out, the current death penalty statute contains numerous safeguards against racial discrimination. During voir dire, parties may question jurors on “the possibility of racial bias” (CPL 270.16 [1]). Upon a conviction of first degree murder, but before the sentencing stage, the court must “determine whether any juror has a state of mind that is likely to preclude the juror from rendering an impartial decision based upon the evidence adduced during the proceeding” (CPL 400.27 [2]). On direct appeal, this Court must determine whether the sentence “was imposed under the influence of passion, prejudice, or any other arbitrary or legally impermissible factor including whether the imposition of the verdict or sentence was based upon the race of the defendant or a victim of the crime” (CPL 470.30 [3] [a]). Similarly, in determining whether the sentence was excessive or disproportionate in comparison to other cases, the Court must, if requested by the defendant, “review whether the sentence of death is excessive or disproportionate to the penalty imposed in similar cases by virtue of the race of the defendant or a victim of the crime for which the defendant was convicted.” (CPL 470.30 [3] [b].)

Yet, it is questionable whether racial prejudice can really be extirpated from capital proceedings. It is undeniable that racial prejudice is alive in many aspects of society, and no one expects it to die any time soon. There are numerous laws and agencies charged with stamping out discrimination from employment, housing and public accommodation. Yet, discrimination in those areas continues. The criminal justice system, of course, is supposed to be different. Prominently carved on top of the United States Supreme Court building are the powerful words “Equal Justice Under Law.” But we must acknowledge that equality under the law is an ideal the system strives for, not a reality.

Despite the well-established mass of jurisprudence, from Congress, the New York State Legislature, the United States Supreme Court, and this Court, prohibiting discrimination in the criminal justice system, as recently as 1988, a study conducted by the New York State Judicial Commission on Minorities, established by the then-Chief Judge of this Court, concluded

“that there are two justice systems at work in the courts of New York State, one for Whites, and a very different one for minorities and the poor.

“The system serving most minorities does not conform to our society’s notion of individualized justice, of hallowed halls, of impartial, reflective decision-making. Many minorities in our courts receive ‘basement justice’ in every sense of the phrase . . .

“[I]nequality, disparate treatment and injustice remain hallmarks of our state justice system.”

Moreover, a study by the New York State Division of Criminal Justice Services, entitled “Disparities in Processing Felony Arrests in New York State, 1990-1992,” concluded that similarly situated minorities and Whites were not treated equally, with the former held in jail on indictment and sentenced to incarceration more often, particularly in counties outside of New York City.

There is no doubt that conditions have improved, but try as it might, the justice system cannot immunize itself against racial prejudice. At the heart of the system are jurors with a great deal of discretion. It is probably the case that no safeguards are needed to ensure that many jurors exercise their discretion in a nondiscriminatory manner. But how many jurors who hold views determined largely by race, which can range from virulent to latent, will publicly acknowledge their views during voir dire? And can it be said that such jurors who sit in judgment of minority defendants will invariably put their views aside and decide the case on the law? Can the justice system realistically protect minority defendants against jurors who hold these views?¹⁹ In noncapital cases, the claims that sentencing determinations were race-influenced are generally not pursued or investigated. But should the danger be tolerated in cases where the penalty is death? Does the need to have the death penalty as a punishment outweigh the danger that it will be applied in a discriminatory manner? Are the efforts of the Legislature to insure that a death sentence will not be imposed because of race sufficient in light of the history of capital punishment in New York State?

Under *McCleskey*, the importance of jury discretion outweighs the danger that it could be used in a discriminatory manner. Al-

19. Baldus, Woodworth and Pulaski, *Reflections on the “Inevitability” of Racial Discrimination in Capital Sentencing and the “Impossibility” of its Prevention, Detection, and Correction*, 51 Wash & Lee L Rev 359, 419 (1994) (arguing that “the tools are available to prevent racially motivated death sentences,” but noting that following *McCleskey* is not one of them).

though the Supreme Court has said that death is different, in *McCleskey* it made no distinction between death and other penalties.²⁰

Another ignored imperfection of the criminal justice system is a difference in the treatment of similarly situated defendants that results from prosecutorial discretion. Like jurors, prosecutors can use their “broad discretion” (*United States v Goodwin*, 457 US 368 [1982]) in a discriminatory manner. While it may not be difficult to imagine a juror whose vote for death may be tainted by views on race, it jars the mind to think that the race of a defendant or victim would influence a prosecutor’s decision to seek the death penalty. The difficulty is diminished, however, if determinative views on race, whether blatant or latent, exist in the collective consciousness of the community that elected the prosecutor. The Supreme Court has had to “repeatedly state[] that prosecutorial discretion cannot be exercised on the basis of race” (*McCleskey*, 481 US at 309 n 30).

Perhaps the most prominent example of a curb on prosecutorial discretion in order to protect minority defendants is *Batson v Kentucky* (476 US 79 [1986]) which held that prosecutors may not exclude jurors on account of race. Up until then, prosecutors had the unfettered discretion to peremptorily exclude jurors without having to offer any reasons. After *Batson*, upon a defendant’s showing of a prima facie case of discrimination, a prosecutor must offer race-neutral reasons for a peremptory challenge to a juror. If prosecutors—public officials—never used their discretion to discriminate, *Batson* would not be needed. The important interests served by peremptory challenges gave way to the need to ensure that prospective jurors are not excluded based on race.

While a prosecutor’s decision to seek the death penalty is limited by the nature of the crime, within the class of death-eligible homicides (first degree murders as defined in Penal Law § 125.27), prosecutors retain broad discretion. There is no safeguard to ensure that race plays no role in the decision to

20. (481 US at 315 [(“If we accepted *McCleskey*’s claim that racial bias has impermissibly tainted the capital sentencing decision, we would soon be faced with similar claims as to other types of penalty.”). According to the dissent of Justice Brennan, “[T]o reject *McCleskey*’s powerful evidence on this basis is to ignore both the qualitatively different character of the death penalty and the particular repugnance of racial discrimination, considerations which may properly be taken into account in determining whether various punishments are ‘cruel and unusual’ ” (*id.* at 339-340).

seek the death penalty. In addition, other factors, such as the availability of the resources to prosecute a death penalty case, may also play a role. When the death penalty is sought against a defendant in one county, but not against a similarly situated defendant in another county, the decision as to who gets the death penalty may be said to be arbitrary. The death penalty statute does not prohibit this kind of arbitrariness.

It must be acknowledged that so far there is no apparent indication that the race of the defendant has played a role in the determination to seek the death penalty in New York under the present statute. According to raw numbers compiled by the New York Capital Defender Office, from 1995 to 2001, district attorneys across the state filed death notices in 43 cases.²¹ Nineteen of those cases involved Black defendants, who were a subgroup of the larger group of about 194 Black defendants who were indicted for first degree murder. The number of White defendants against whom a death notice was filed was 18, although the larger group of eligible defendants was about 65. The race of the victims, however, is a different matter. Of the 43 cases in which prosecutors sought the death penalty, 21 (or 48.8%) of the victims were White, while only 11 (or 25.6%) were Black. Thus, of the victims of defendants charged with first degree murder whose race is known, the number of Black victims is half the number of White victims. Concededly, these are raw numbers, but they are startling nevertheless.

The numbers for geographic disparities are even more startling: “Although upstate counties experience approximately 19% of all homicides, they nonetheless account for 61% of all capital prosecutions.” (*Id.*)

The question in death penalty cases is whether the New York State Constitution should provide more protection against the risk of racial discrimination than *McCleskey*. Historically, the New York Constitution has at times provided greater guarantees for individuals than those provided by the Federal Constitution (*People v Scott*, 79 NY2d 474, 491 [1992]; *People v Bora*, 83 NY2d 531, 535 [1994]; *People v Harris*, 77 NY2d 434, 437-441 [1991]; *People v Torres*, 74 NY2d 224, 226 [1989] *People v Griminger*, 71 NY2d 635, 637-639 [1988]; *People v P.J. Video, Inc.*, 68 NY2d 296, 304 n 4 [1986]). As this Court stated in *People v Barber* (289 NY 378, 384 [1943]):

21. Capital Punishment in New York State: Statistics from Six Years of Representation (<<http://www.nycdo.org>>).

“[I]n determining the scope and effect of the guarantees of fundamental rights of the individual in the Constitution of the State of New York, this court is bound to exercise its independent judgment and is not bound by a decision of the Supreme Court of the United States limiting the scope of similar guarantees in the Constitution of the United States.” (See also *People v Alvarez*, 70 NY2d 375, 379 [1987]; *Sharrock v Dell Buick-Cadillac*, 45 NY2d 152, 159 [1978].)

New York must remain committed to the ideal of equality under the law. A defendant should not have to show direct evidence of discrimination, as effectively required by *McCleskey*. While the administration of the death penalty in New York was tainted with racial and ethnic bias, and minorities have not always received equal justice, New York has been particularly steadfast in its condemnation of racial discrimination. Both the Federal and State Constitutions prohibit the denial of equal protection. Article I, § 11 of the New York Constitution provides as follows:

“No person shall be denied the equal protection of the laws of this state or any subdivision thereof. No person shall, because of race, color, creed or religion, be subjected to any discrimination in his or her civil rights by any other person or by any firm, corporation, or institution, or by the state or any agency or subdivision of the state.”

Under the New York State Constitution, the death penalty cannot be imposed if the risk that race played a role in its imposition is significant.

Thus, I conclude, along with Judge Ciparick, that the deadlock jury instruction required by CPL 400.27 (10) is coercive and unconstitutional. While I make no determination on the issue of the arbitrariness of the death penalty, I conclude that before a death sentence can be imposed, the issue must be addressed and resolved.

GRAFFEO, J. (concurring in part and dissenting in part). I concur with Point I of the majority’s opinion. But I believe the jury’s determination of James Cahill’s guilt of murder in the first degree, based on two statutory aggravating factors—felony murder (see Penal Law § 125.27 [1] [a] [vii]) and witness elimination (see Penal Law § 125.27 [1] [a] [v])—should be up-

held. In my view, a majority of this Court now rewrites the first-degree felony-murder statute in a manner contrary to the plain language of the provision and clear public policy enacted into law by our elected representatives. Equally disturbing, the majority concludes that the witness elimination murder charge was supported by sufficient proof, yet reverses that conviction without explaining why the jury, which had the ability to assess the credibility of witnesses, could not have found beyond a reasonable doubt that—regardless of whatever else motivated defendant—he intended to eliminate Jill Cahill as a potential witness. In addition, I cannot agree with the majority that the trial court erred in life and death qualification of the prospective jurors and fully concur with Judge Read’s jury selection analysis. I therefore dissent from so much of the majority decision that overturns defendant’s first-degree murder convictions.

I. Penal Law § 125.27 (1) (a) (vii): First-Degree Felony Murder

The majority’s holding that the evidence against defendant was legally insufficient to establish his guilt of felony murder in the first degree rests upon two separate, yet intertwined legal theories: an application of the so-called “merger” doctrine (although the majority does not use that term) and an implicit interpretation of the “in furtherance of” requirement in the first-degree murder statute. I cannot accept either analysis. There are certain well-settled principles of statutory construction—construing laws in accord with the plain meaning of the language chosen by the Legislature, avoiding irrational results and adopting interpretations that do not undermine the constitutionality of a statute—that this Court adheres to in order to effectuate the legislative intent of a law. These rules should apply in all cases, including capital cases.

The fundamental flaw in the majority’s analysis is its disregard of these rules and of the clear and unequivocal language of the felony-murder aggravator. The majority declines to interpret the statutory provision in accord with its plain language on the basis that it “would have to stretch the statute’s meaning” (majority op at 71). I strongly disagree.

The carefully selected language of the first-degree felony-murder statute should inform the outcome in this case. Penal Law § 125.27 (1) (a) (vii) provides, in relevant part:

“[a] person is guilty of murder in the first degree when . . . [w]ith intent to cause the death of another person, he causes the death of such person or

of a third person; and . . . the victim was killed while the defendant was *in the course of* committing or attempting to commit *and in furtherance of* robbery, *burglary in the first degree or second degree*, kidnapping in the first degree, arson in the first degree or second degree, rape in the first degree, sodomy in the first degree, sexual abuse in the first degree, aggravated sexual abuse in the first degree or escape in the first degree, or in the course of and furtherance of immediate flight after committing or attempting to commit any such crime or in the course of and furtherance of immediate flight after attempting to commit the crime of murder in the second degree” (emphasis added).

Our function as judges is to interpret this law. “The governing rule of statutory construction is that courts are obliged to interpret a statute to effectuate the intent of the Legislature” (*People v Finnegan*, 85 NY2d 53, 58 [1995]). The “ ‘clearest indicator of legislative intent’ ” is the statute itself (*People v Robinson*, 95 NY2d 179, 182 [2000], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). If the language chosen by the State Legislature is clear and unambiguous, and “involves no absurdity or contradiction, there is no room for construction and courts have no right to add to or take away from that meaning” (*Tompkins v Hunter*, 149 NY 117, 123 [1896]; see *People ex rel. Harris v Sullivan*, 74 NY2d 305, 309 [1989]). When this doctrine is violated, a court impermissibly encroaches upon the legislative and executive domains and thereby violates the foundation of the separation of powers doctrine (see *People v Finnegan*, 85 NY2d at 58).

The statute encompasses first- or second-degree burglary charges, both of which may be premised upon the intent to commit any crime (see Penal Law §§ 140.25, 140.30). We have recognized that in enacting the burglary and felony-murder statutes, the Legislature “intended that the definition be ‘satisfied if the intruder’s intent, existing at the time of the unlawful entry or remaining, is to commit *any* crime’ ” (*People v Miller*, 32 NY2d 157, 161 [1973] [emphasis in original], quoting Denzer and McQuillan, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, at 355). “[A]ny crime” obviously includes murder.

The majority asserts that “the Legislature did not expressly sweep within Penal Law § 125.27 all killings in which the

murderer unlawfully entered the victim's home" (majority op at 65). This is true in one respect—only intentional murders are included, not "all killings" (majority op at 65). But by specifying first- and second-degree burglary in the felony-murder provision, the Legislature certainly intended to include within the ambit of the statute intentional murderers who unlawfully enter another person's dwelling with the intent to kill (*see* Penal Law § 125.27 [1] [a] [vii]).

This is consistent with additional language in the statute—the requirement that the murder must occur "in the course of . . . and in furtherance of" the burglary. To satisfy these elements, the People must prove that the homicide not only occurred during "the course of" a burglary, but that the killing was logically related to the unlawful intrusion as well. The latter requirement has long been part of New York law. As we explained in *People v Wood* (8 NY2d 48 [1960]), interpreting a predecessor felony-murder provision:

"a felony murder embraces not any killing incidentally coincident with the felony . . . but only those committed by one of the criminals in the *attempted execution of the unlawful end*. Although the homicide itself need not be within the common design . . . the *act* which results in death must be *in furtherance of the unlawful purpose*" (*id.* at 51 [emphasis added]).

Significantly, the Legislature echoed the terminology we articulated in *Wood* when it added the phrase "in furtherance of" to the felony-murder statute in 1965. This phraseology was then carried forward in the felony-murder provision of the 1995 death penalty act. Because the Legislature chose to use a phrase first adopted by this Court when it enacted the felony-murder provision in 1965 and then used the identical language in the 1995 capital felony-murder provision, it is reasonable to conclude that the Legislature intended to incorporate the *Wood* rule into the death penalty statute.

Consistent with *Wood*, courts have interpreted the "in furtherance of" element as requiring a logical nexus between a murder and a felony (*see People v Lewis*, 111 Misc 2d 682, 686 [Sup Ct, NY County 1981] [citing *Wood* for the proposition that "'in furtherance' places a relation requirement between the felony and the homicide . . . the nexus must be one of logic or plan"]; *see also State v Young*, 191 Conn 636, 642, 469 A2d

1189, 1193 [1983] [citing *Wood*: “(w)e agree with the New York courts that the phrase ‘in furtherance of’ was intended to impose the requirement of a relationship between the underlying felony and the homicide beyond that of mere causation in fact, similar to the concept of proximate cause in the law of torts”)].¹ Thus, by requiring that a rational relationship be established between the perpetrator’s actions and the homicide, the Legislature expressed its intent to exclude deaths that are merely coincidental to the occurrence of a felonious event or completely unrelated to a defendant’s purpose or conduct (see *People v Hernandez*, 82 NY2d 309, 317 [1993]).

Wood therefore established that a murder is logically related to and thereby furthers another crime when, among other possibilities, it is designed to help achieve the purpose of the other crime. In this case, the “unlawful end” (*People v Wood*, 8 NY2d at 51) that prompted defendant to commit the burglary was the murder of his wife. Thus, under the *Wood* analysis, the murder of Jill Cahill furthered the unlawful entry into her hospital room.

The majority entirely avoids addressing the “in furtherance of” requirement and adopts a rule that is inconsistent with this statutory language. Indeed, although the majority asserts that its analysis is “more faithful to the Legislature’s language and design” and is consistent with “the statutory plan” (majority op at 72), it never actually interprets the language of the statute. Nor does it cite any legislative history in support of its conclusions (nothing in the legislative history supports either the conclusion the majority has reached or the untraditional review it engages in to get there). Instead, the majority concludes that if the purpose of a predicate felony is to commit murder, there is no “independent criminal objective” for the felony; the burglary necessarily furthers the homicide but the burglary may not be furthered by the killing. Thus, in the

1. This interpretation is consistent with cases that involve the deaths of firefighters caused by arson. If “in furtherance of” can mean only “advance or facilitate” as defendant argues, there are numerous felony-murder convictions that should have been vacated. For example, in *People v Zane* (152 AD2d 976 [4th Dept 1989], *lv denied* 74 NY2d 900 [1989]), the defendant was convicted of felony murder “for having caused the death of a fireman in the course of and in furtherance of the crime of arson” (*id.* at 976)—even though the firefighter died after the arson had been completed. In this situation, the firefighter’s death obviously did not “advance or facilitate” the arson but it was logically related to that crime and, therefore, satisfied the in furtherance of requirement (see also *People v Corey*, 233 AD2d 773 [3d Dept 1996]).

absence of an independent criminal purpose, the majority reasons that the underlying felony is an integral component of the killing and is thereby subsumed within the homicide, precluding a capital felony-murder conviction.

This is, in effect, the “merger” rule that many other states—including New York (*see People v Miller*, 32 NY2d 157 [1973])—have rejected.² Clearly, “there is no logic or reason to preclude a felony murder charge from being based upon a burglary charge that, in turn, is premised upon either an intent to assault or an intent to murder” (*People v Lewis*, 791 P2d 1152, 1154 [Colo Ct App 1989]; *see also State v Tillman*, 750 P2d 546, 581 [Utah 1987] [Stewart, Assoc. Ch. J., concurring]). The California Supreme Court—the court that invented this analytical theory—has characterized as “artificial” and “anomalous” the notion that “a felon who acts with a purpose other than specifically to inflict injury upon someone—for example, with the intent to sell narcotics for financial gain . . .—is subject to greater criminal liability for an act resulting in death than a person who actually intends to injure the person of the victim” (*People v Hansen*, 9 Cal 4th 300, 315, 885 P2d 1022, 1030 [1994]).

The majority contends that the holding in this case does not undermine this Court’s precedent in *People v Miller*. If this is true, there are now two different “merger” rules in this state—one for first-degree felony murder and one for second-degree felony murder—despite the fact that the language of those statutes is *identical* in all relevant respects. Before today, those statutes had the same meaning. But where the first-degree murder provision currently reads “burglary in the first degree or

2. The majority’s discussion of how other states’ courts have treated the merger doctrine warrants only brief discussion in my writing because I concur with Judge Read’s thorough and well-reasoned analysis of this issue. Suffice it to say, the new rule adopted by the majority is supported only by California jurisprudence (*see e.g. People v Green*, 27 Cal 3d 1, 59-62, 609 P2d 468, 504-506 [1980]; *People v Wilson*, 1 Cal 3d 431, 462 P2d 22 [1969]; *People v Ireland*, 70 Cal 2d 522, 450 P2d 580 [1969]). Tellingly, the majority is unable to identify any other state that has a merger doctrine similar to the one applied in this case. The cases from Delaware and Arkansas cited by the majority do not rely on the merger doctrine but engage in a plain language analysis of their statutes—specifically, their “in furtherance of” requirements (*see Williams v State*, 818 A2d 906, 910-913 [Del 2002]; *Parker v State*, 292 Ark 421, 425-427, 731 SW2d 756, 758-759 [1987]). In fact, the Delaware Supreme Court, in the recent decision cited by the majority, explicitly rejected a “merger” argument substantially similar to the one posed in this case (*see Williams v State*, 818 A2d at 909-910; *see also Steckel v State*, 711 A2d 5, 12 [Del 1998]).

second degree,” in light of the majority’s decision, the statute will now be subject to an additional, judicially-imposed restriction—“except where the underlying intent is to kill”—a particularly strange limitation for a capital murder statute.

The majority adopts this new limitation because it concludes that the statute as written by the Legislature does “not narrow the class of those eligible for the death penalty, but . . . widen[s] it” (majority op at 65). The majority’s conclusion stems from a mischaracterization of the Supreme Court’s narrowing principle and a failure to give weight to the constitutional concept that narrowing must rationally distinguish between defendants who are and are not subject to the possibility of capital punishment.

“[A] capital sentencing scheme must ‘genuinely narrow the class of persons eligible for the death penalty and must reasonably justify the imposition of a more severe sentence on the defendant compared to others found guilty of murder’ ” (*Lowenfield v Phelps*, 484 US 231, 244 [1988], quoting *Zant v Stephens*, 462 US 862, 877 [1983]). In other words, states must make “‘the death penalty . . . an available sentencing option—even potentially—for a smaller class of murders’ ” (*Lowenfield v Phelps*, 484 US at 245-246, quoting *Jurek v Texas*, 428 US 262, 271 [1976]) and must make “a principled distinction between those who deserve the death penalty and those who do not” (*Lewis v Jeffers*, 497 US 764, 776 [1990]; see *Gregg v Georgia*, 428 US 153, 198 [1976]).

In New York, the Legislature specified certain aggravating factors that a jury must find proven beyond a reasonable doubt before it may consider whether a sentence of death or life without parole is warranted (see Penal Law § 125.27 [1] [a] [i]-[xiii]; CPL 400.27 [11] [a]). Because the first-degree felony-murder statute applies to only intentional murders, it necessarily excludes unintentional felony murders. Thus, the statute restricts death eligibility to limited categories of homicides and identifies a subclass of felony murder for which capital punishment and life imprisonment are authorized.³

The Legislature also drew a distinction for aggravating factor purposes between burglary in the first and second degrees, and

3. The majority explicitly recognizes that the first-degree murder statute applies to only a portion of defendants who commit felony-murder in the second degree (majority op at 67, 68 [acknowledging that the first-degree statute “is critically different because it deals with intentional, not unintentional, killings” and “does not apply where the defendant’s liability is based on someone else’s conduct (unless the defendant commanded the murder)”]). The ma-

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burglary in the third degree. Burglary in the third degree covers the unlawful entry of any building, even if it is not a dwelling, and does not require that the perpetrator be armed with a weapon (see Penal Law § 140.20). By excluding burglary in the third degree from the class of felonies underlying the capital felony-murder provision, the Legislature indicated its desire to punish more severely illegal entry into dwellings or entry while armed with a dangerous weapon. Thus, in crafting the capital statute, the Legislature fulfilled its narrowing responsibility by incorporating our State's historic preservation of the sanctity of a home (see *e.g. People v Miller*, 32 NY2d at 160). Because crimes committed in dwellings can rapidly escalate to violence, the Legislature adopted a reasonable demarcation among possible burglary-murder scenarios. As we determined in *People v Harris*, it is rational for the Legislature to consider “the inherent potential for violence and physical injury” in making distinctions between capital-eligible and noncapital-eligible offenses (98 NY2d 452, 477 [2002]). By including first- and second-degree burglary as predicate felonies but excluding third-degree burglary, the Legislature did just that: there was a “‘meaningful basis for distinguishing the few cases in which (the death penalty) is imposed from the many cases in which it is not’ ” (*id.* at 476, quoting *Gregg v Georgia*, 428 US at 198).

The majority overlooks the requirement that narrowing, while necessary, must be rational. Under the majority's interpretation, an intruder who unlawfully enters a dwelling with the intent to steal—a television, for instance—and intentionally kills an occupant in furtherance of that burglary may be indicted on a capital murder charge. In sharp contrast, an intruder who unlawfully enters a dwelling with the intent to murder—someone like defendant who obtained a toxic chemical known for its ability to kill, violated an order of protection by surreptitiously entering his wife's hospital room, wore a disguise to avoid detection and, in a face-to-face encounter, poured cyanide down her throat, inducing a particularly painful death—confronts a parole-eligible prison sentence. It is inconceivable that the Legislature intended such an irrational delineation between capital- and noncapital-eligible defendants.

In adopting its “independent criminal objective” rule the majority addresses only felony murder based on burglary. But it is

majority nonetheless fails to connect those limitations to the federal constitutional definition of the narrowing requirement.

possible that the majority could extend its analysis to other crimes included in the first-degree felony-murder statute, such as kidnapping, arson and robbery, thereby creating additional “merger” distinctions contrary to the clear language of New York’s first-degree felony-murder statute. Did the Legislature intend that a murderer who kidnaps to extort money may face a capital charge, but a murderer who kidnaps in order to transport a victim to a secluded location for the killing falls outside the statute?⁴ Or that a defendant who sets fire to a house in order to kill the occupants receives a parole-eligible prison sentence, but a defendant who sets a fire in order to obtain insurance money or to drive the occupants outside and murder them in person can be indicted for first-degree murder?⁵

I therefore question whether the majority’s version of the merger analysis “rationally distinguish[es]” (*Spaziano v Florida*, 468 US 447, 460 [1984]) between death-eligible defendants on a “principled basis” (*People v Harris*, 98 NY2d at 476). If additional violent felonies such as kidnapping, arson and robbery were to be excised from the statute along with the class of burglaries the majority excises, few qualifying felony-murder offenses would remain. The majority’s rationale thus creates a potential conflict with our reasoning in *People v Harris* (98 NY2d at 476-477) where, in response to a constitutional challenge to the felony-murder provision, we held that New York’s death penalty statute was not irrationally underinclusive. There, we noted that “[t]he Legislature made the assessment that the predicate felonies for first-degree felony murder should be those that are potentially the most violent and involve a substantial risk of physical injury,” and concluded that the “decision to exclude felonies of a similar grade, but lacking the inherent potential for violence and physical injury, was . . . rational” (*id.* at 476, 477). In *Harris*, we recognized that it was the Legislature’s prerogative to determine, as a matter of public policy, that a certain crime—including, I would argue, the illegal entry of a dwelling with the intent to kill and while armed with a deadly weapon—is a “violent” offense that “involves a substantial risk of physical injury” justifying its inclusion as an aggravating factor for jury consideration (*id.* at 476). I would adhere to that determination.

4. See *People v Weidert*, 39 Cal 3d 836, 842, 705 P2d 380, 383 (1985); *Ario v Superior Ct.*, 124 Cal App 3d 285, 289-290, 177 Cal Rptr 265, 267-268 (Ct App 1981).

5. See *People v Clark*, 50 Cal 3d 583, 606-609, 789 P2d 127, 142-144 (1990). But see *State v Grant*, 67 Ohio St 3d 465, 473-474, 620 NE2d 50, 62 (1993).

Even applying the majority's new merger rule, I believe there was sufficient proof that defendant committed felony murder in the first degree—he did, in fact, have an independent criminal objective. The majority concedes that its analysis does not apply to a defendant who has more than one purpose for committing the underlying felony (majority op at 65). Thus, a felony-murder conviction will be sustained where the purpose of the predicate felony is not exclusively to kill but also to commit some other offense, such as concealing evidence of another crime (*see People v Mendoza*, 24 Cal 4th 130, 183-184, 6 P3d 150, 183 [2000]).

In this case, the majority holds that the evidence was legally sufficient to prove that one of the reasons defendant killed his wife was to eliminate her as a witness to the April assault (majority op at 59)—a point with which I concur. That determination necessarily means that the evidence was sufficient to prove several, lesser included felony offenses, including tampering with a witness in the first and second degrees (Penal Law § 215.13 [1]; § 215.12 [1]), and intimidating a victim or witness in the first and second degrees (Penal Law § 215.17 [1]; § 215.16 [1]). Hence, defendant intended to commit the crime of tampering with a witness in the first degree by “intentionally caus[ing] serious physical injury to” Jill Cahill “for the purpose of . . . preventing . . . the giving of testimony in a criminal proceeding by [her]” (Penal Law § 215.13 [1]). The majority does not dispute that the People offered sufficient evidence that, at the moment defendant unlawfully entered Jill Cahill's hospital room, he possessed the intent to commit crimes that require “a felonious intent independent of the murder” (majority op at 64). This is precisely the “double crime—murder ‘plus’ ” that the majority claims is required for first-degree felony murder (majority op at 64).

For all of these reasons, I cannot join the majority's discussion of the first-degree felony-murder provision. The majority's analysis is undeniably contrary to the language in the statute, produces irrational results and fails to give proper weight to the principled narrowing choices made by the Legislature. In my view, it is evident that the Legislature intended to apply the felony-murder rule to egregious cases like this. Even if I disagreed with that legislative determination, my personal belief as to whether this defendant is an appropriate candidate for first-degree murder would be irrelevant for one very basic reason—I am a judge, not a legislator.

II. Penal Law § 125.27 (1) (a) (v): Witness Elimination Murder

The majority sets aside defendant's conviction of witness elimination murder because it believes that the jurors, who had the opportunity to see and hear the witnesses and assess their credibility, failed to properly evaluate the evidence presented at trial. In doing so, the majority substitutes its view of the evidence, based on the cold record, for that of the jurors who sat in judgment of defendant. Because I cannot agree that the jury failed to properly weigh the evidence in this domestic violence case, I would uphold defendant's conviction under Penal Law § 125.27 (1) (a) (v).

According to the majority, a critical factor in assessing the weight of the evidence in this case is whether "defendant thought he could avoid an assault conviction by murdering Jill" (majority op at 62). The witness elimination statute, however, is unconcerned with the probability of a conviction. The plain language of the statute requires only proof that the murder was committed to "prevent[] the intended victim's testimony" (Penal Law § 125.27 [1] [a] [v]).⁶ Our task is to determine whether the jury's assessment of this statutory requirement was against the weight of the evidence.

People v Bleakley (69 NY2d 490 [1987]) provides the standard for weight of the evidence review:

"If based on all the credible evidence a different finding would not have been unreasonable, then the appellate court must, like the trier of fact below, 'weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony' If it appears that the trier of fact has failed to give the evidence the weight it should be accorded, then the appellate court may set aside the verdict" (*id.* at 495).

This is not an open invitation for a court to substitute its judgment for that of the jury. *Bleakley* commands that "[g]reat deference" be accorded to the jury's resolution of factual issues (*id.*), a principle the majority fails to even mention. Deference is an integral ingredient of the weight of the evidence analysis

6. The relevant statutory text reads: "[a] person is guilty of murder in the first degree when . . . [w]ith intent to cause the death of another person, he causes the death of such person or of a third person; and . . . the intended victim was a witness to a crime committed on a prior occasion and the death was caused for the purpose of preventing the intended victim's testimony in any criminal action or proceeding."

because it is the “fact-finder[]” that has the “opportunity to view the witnesses, hear the testimony and observe demeanor” (*id.*).

Thus, although an appellate court engaging in weight of the evidence review has been described as fulfilling the role of a “thirteenth juror” (see *Tibbs v Florida*, 457 US 31, 42 [1982]; *People v Rayam*, 94 NY2d 557, 560 [2000]), this shorthand is not a literal description of the court’s appropriate analytical process. To the contrary, there are “[w]ithout question . . . differences between what the jury does and what the appellate court does in weighing evidence” (*People v Bleakley*, 69 NY2d at 495), which is apparent given that a jury’s ability to assess credibility and weigh competing inferences is far superior to that of an appellate court working with only a “printed record” (*People v Cohen*, 223 NY 406, 423 [1918]). Jurors use all of their senses to evaluate testimony and evidence presented at trial—only they “are able and entitled to assess, at first hand, the credibility and reliability of the witnesses” because they have the opportunity to actually see, hear and feel the evidence in person (*People v De Tore*, 34 NY2d 199, 206 [1974]). A healthy respect for the jury’s unanimous assessment of the evidence is therefore a necessary component of a proper weight of the evidence review.

Applying the *Bleakley* standard in its entirety, I cannot concur with the majority’s conclusion that the jury verdict on the witness elimination count was against the weight of the evidence. The People presented compelling evidence that defendant intentionally killed his wife to prevent her from challenging his version of “the truth” about the circumstances leading to the assault on April 21, 1998. As the majority recognizes, the evidence overwhelmingly established that defendant intended to kill Jill when he assaulted her with a baseball bat, crushing her skull. But defendant offered a different explanation at the time of the assault and at trial, claiming that Jill attacked him first and he initially responded in self-defense.⁷ This is the factual

7. Defendant initially gave the following statement to the police: “Around 4 or 4:15 AM this morning April 21, 1998 I was awakened by Jill. She grabbed my face and wrenched me over and then grabbed my arms and held me down. She was saying words to the effect, I’m not going to live here . . . indicating she no longer had a life here. I then got up and went downstairs. She followed me down and was yelling at me. . . . I had went in the kitchen and was standing near the refrigerator. Jill came into the kitchen. The argument continued, Jill went to the opposite side of the room Jill picked up a knife . . . sort

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rendition of the assault that defendant wanted the world to hear and believe.

Yet, Jill Cahill survived the first attack. Over the next six months, she fought back from the brink of death to the point that she was able to respond and speak. The testimony of medical personnel and her family members clearly relayed to the jury that Jill was beginning to communicate in October 1998. What would she have testified to had she been given the chance—that she did not attack defendant with a knife and initiate the assault? We will never know. But we do know that, once defendant learned Jill could speak—after his mother visited Jill in the hospital in October 1998—he immediately executed his plan to permanently prevent her from attempting to contradict his account of “the truth.”

In overturning the jury verdict on this count, the majority overlooks a number of significant facts and fails to identify the important connections between them that the jury may have found determinative. During the May 11, 1998 Family Court hearing, an assistant district attorney announced the People’s intention to indict defendant for the April assault and advised defendant that his children were potential witnesses. The same day, defendant began to search the Internet for Web sites relating to “cyanide.” Approximately one week later, defendant was present for another Family Court proceeding and learned that his children would undergo psychological evaluation. These impending interviews gave defendant reason to believe that his

of like a fillet [*sic*] knife with maybe a 6 to 7 inch tapered b[la]de. . . . I tried to take the knife from her. She struck at me cutting my left forearm. I got a hold of her, in a position with her facing away from me with my arms around her and forced her out the back door of the house into a mud room. I [*sic*] As we were going out she was calling to the children, call the police, your father is trying to kill me. I pushed her to the floor and we wrestled a bit. She continued to call to the children. I pushed up and turned to get away, she was on the floor face down. I saw several baseball bats hanging on the wall and grabbed one. I turned to face her again and she was getting up facing me with her hands about chest high. She still had the knife in her right hand. I swung with the bat hitting her on the left side of the head. As I swung she raised her hands alongside her head. She started to move backwards and I swung again. This time she went backwards falling out of the back door onto a concrete patio”

In his later statement, however, defendant stated: “after she pulled the knife . . . I got Jill in a bear hug type position with her back to me. I got Jill out to the mud room and down on the floor. I got up got the baseball bat and Jill was on her feet with the knife in her right hand I swung the bat twice at her and on the second swing, I hit Jill on the head. Jill fell back and out the door”

children would be questioned about the assault on their mother and the effect that it had on them. This had the potential to elicit additional information regarding the events surrounding the assault. After the Family Court appearance, defendant returned home and searched the Internet for information on “ordering potassium cyanide.”

The timing of pertinent events—when defendant actually ordered the cyanide, when he obtained it, and when he used the poison—forcefully establishes that defendant’s actions were inextricably related to the prosecution of the assault charges. Between the date defendant was arraigned on an indictment charging him with three counts of first-degree assault and his next court appearance, defense counsel and the prosecutor had “numerous conversations” about the case, including plea negotiations. Defendant’s decision to order cyanide on the forged letterhead of a local manufacturing company on July 8 occurred only a day before the People’s plea offer was officially placed on the record. The offer, under which defendant would have had to serve at least 10 years in prison, was not accepted by defendant, making a trial increasingly certain.

Most importantly, although defendant intercepted the shipment of cyanide on July 17 by approaching the delivery person and taking possession of the package from the supplier he had contacted, he did not use the poison to kill his wife until three months later. Why? The evidence presented to the jury pointed to a logical explanation: defendant did not execute his homicidal plan until he was able to confirm that Jill was conscious and had recovered sufficiently to be a “threat.”

Defendant’s mother supplied defendant (and the jury) with the information that provided the impetus for him to carry out Jill’s murder.⁸ During a visit with Jill Cahill in the hospital on October 5, Mrs. Cahill observed a “conversation” between Jill and two nurses. Significantly, Jill actually spoke to the nurses. Defendant’s mother told her son about these “physical observations” of Jill about two weeks later. Defendant’s response to his mother demonstrates that he appreciated the significance of this information and knew that Jill was regaining her ability to communicate: “‘I hope that when this is all concluded that she can tell the truth about what led to the break-up’ of the[] marriage.” For the first time since the April assault, defendant

8. The record does not suggest that defendant’s mother intended to assist her son and she was never charged with any crime.

became aware that Jill could speak and, therefore, posed a threat as a possible witness against him at trial. Defendant immediately put his murderous plan into action.

Within days of learning of Jill's improved condition and ability to speak, defendant—disguised as a janitor—was found in Jill's hospital room by a nurse's assistant. He quickly departed without incident but returned one week later, again in disguise. This time he was able to bring his plan to fruition—he murdered Jill by poisoning her with cyanide. Defendant had successfully eliminated the primary witness to the April baseball bat attack.⁹ A hearing to determine whether defendant's confessions could be used at the assault trial was only days away.

Giving due deference to the jurors' assessment of the evidence presented, this sequence of events amounted to compelling evidence supporting the conclusion the jury unanimously reached—defendant killed Jill Cahill to prevent her from communicating with the authorities and testifying at the impending assault trial. The trigger for the murder was defendant's awareness of the fact that Jill had regained her ability to speak, and with that ability, Jill may have refuted defendant's account of the events on the night of the assault.

Indeed, no other rationale accounts for defendant's timing in carrying out his plan for murder. The majority posits that defendant was motivated “to poison his wife because their marriage and family life were being destroyed, not because he wanted to kill a witness to the assault case” (majority op at 59-60). Defendant may have been motivated to kill because of the deterioration of his family life but the proof does not support the conclusion that this was his only motivation. And what other evidence was presented to the jury to explain why defendant waited three months after he acquired cyanide to carry out his plan to poison Jill? If it was only hatred and family disruption that impelled defendant's murderous intent, why didn't he attempt to kill Jill in August after his parents surrendered custody of the children to Jill's parents, further removing him from his children? In the absence of any plausible reason

9. According to defendant's confessions, his children saw defendant beat their mother in the head with the baseball bat and heard her pleas for help. At one point, Jill called out to her daughter, begging her “to call the police, your father is trying to kill me.” However, nothing in the record suggests that the children witnessed (or defendant believed that they had witnessed) what transpired between defendant and Jill before he began attacking her with the bat.

explaining why defendant waited until mid-October to attempt to administer the cyanide—notably, just a day or two after his mother informed him of Jill’s improved condition and shortly before the pretrial *Huntley* hearing scheduled for November 2—the jury was entitled to conclude that defendant’s motivation was to prevent Jill from communicating her version of the facts underlying the assault. Hence, the jury could reasonably infer that, whatever else may have driven defendant to take Jill’s life, he intended to eliminate Jill as a witness. Therefore, giving “[g]reat deference” to the jury’s findings (*People v Bleakley*, 69 NY2d at 495), I conclude that defendant’s conviction of witness elimination murder was not against the weight of the evidence.

The majority’s reasons for disregarding the jury’s resolution of these issues focus on facts that were not known to defendant and therefore shed no light on his motivation. For example, there is no basis in the record to suppose that defendant was aware about the fact the majority finds “[m]ost compelling[]”—that Jill had never been interviewed by the police or a prosecutor (majority op at 60)—nor was there any proof that defendant knew whether Jill had or had not retained her memory of the events surrounding the assault (majority op at 60). These facts are meaningless to the witness elimination analysis because defendant’s motives for acting could not have been influenced by that which he did not know. What is pertinent is that the jury heard evidence permitting the inference that defendant believed Jill posed a risk and he killed her to prevent her from testifying.

Similarly unavailing is the majority’s decision to discount the importance of the evidence provided by defendant’s mother. The majority claims that her “testimony does not even suggest, let alone reveal, what defendant knew about Jill’s condition and speaking ability” (majority op at 61). That assertion is not borne out in the record. Defendant’s mother testified that she told defendant about her observations of Jill’s physical condition. This testimony came moments after she described to the jury what she had observed—that Jill spoke to the nurses. It is irrelevant that “we do not know what Jill said” (majority op at 61)—what is significant is that Jill could communicate and defendant was aware of this critical fact.

The majority also places undue emphasis on its conclusion that “there is scant basis to believe that defendant thought he could avoid an assault conviction by murdering Jill” (majority

op at 62). The witness elimination statute does not require proof that defendant intended to avoid a criminal conviction. Rather, the statute requires only that a defendant seeks to “prevent[] the intended victim’s testimony” (Penal Law § 125.27 [1] [a] [v]). The facts of this case highlight the difference between the plain language of the statute and the majority’s interpretation. It is true that defendant admitted that he beat Jill with a baseball bat during the April assault, although this was not a full confession since defendant maintained he did so in self-defense. The prosecution clearly had a “powerful case without Jill’s testimony” (majority op at 61)—defendant confessed to wounding himself and acknowledged striking Jill after she had been incapacitated, thereby severely undermining if not “foreclosing any plausible claim of self-defense” (majority op at 61). But in order to convict defendant of witness elimination murder, the jury was not required to find that defendant hoped (either reasonably or unreasonably) that by killing Jill he could avoid a criminal prosecution. The jury had only to conclude that defendant intended to prevent her testimony.

In this case, the jury could logically infer from all the evidence that defendant was driven by a desire to convince everyone, including his children, that Jill initiated the incident; that she attacked him with a knife; and that, in the course of protecting himself, defendant simply “snapped.” This is the story defendant told the police in April 1998 and this is the explanation that was ultimately presented to the jury. While this account would not avoid a criminal prosecution and might not engender jury leniency sufficient to produce an acquittal—and it did not in this case—defendant did succeed in preventing the jury from hearing the whole story. With Jill’s death, defendant knew that there would be no one left to directly dispute his version of the events on the night of the assault. Defendant committed the ultimate act of domestic violence and, by killing the prime witness, he also impeded the truth-seeking function of a trial, which is precisely why witness elimination murder is among the crimes most strongly condemned in New York State. In my view, if we faithfully apply the weight of the evidence standard of review in this case and give deference to the jury’s unanimous finding, there is no basis to set aside defendant’s conviction of witness elimination murder in the first degree (*see* Penal Law § 125.27 [1] [a] [v]).

III. Conclusion

The extreme disagreement that envelops the members of this Court stems from three general ideas and differing philosophies

about how we should exercise the power that the State Constitution vests in this institution. By failing to respect the plain language of the first-degree felony-murder provision, the majority has substituted its “wisdom” and public policy choices for those of the Legislature when it enacted the statute. The majority also rejects the jury’s assessment of the probative value of the evidence and the reasonable inferences derived therefrom. Finally, the majority sets aside the conclusions reached by the Trial Judge, who had the ability to actually see and hear the prospective jurors discuss their ability to fairly consider possible sentences, reinterpreting the statements made during the life and death qualification process from the cold record. In this case, I would respect, rather than second guess, the life/death qualification assessments of the Trial Judge, the factual findings of the jury and the public policy choice made by the Legislature.

Accordingly, I would affirm both first-degree murder convictions. Due to the majority’s holding in this case, it is unnecessary for me to address the penalty phase issues raised in defendant’s brief and I therefore express no view on those issues or the propriety of the sentence imposed.

READ, J. (concurring in part and dissenting in part). In order to reverse defendant’s conviction for murder in the first degree under Penal Law § 125.27 (1) (a) (vii) (capital felony murder, here predicated on burglary in the second degree), the majority rewrites clear statutory language and disregards our 30-year-old precedent in *People v Miller* (32 NY2d 157 [1973]). The majority also discovers jury selection error where none reasonably exists. I respectfully dissent.

I. The Burglary Aggravating Factor

The People charged defendant with first-degree felony murder, for which the underlying felony was second-degree burglary. As relevant here, first-degree felony murder occurs when a defendant, “[w]ith intent to cause the death of another person, . . . causes the death of such person . . . ; and . . . the victim was killed while the defendant was in the course of committing . . . and in furtherance of . . . burglary in the . . . second degree” (Penal Law § 125.27 [1] [a] [vii]). In turn, and again as relevant here, “[a] person is guilty of burglary in the second degree when he knowingly enters or remains unlawfully in a building with intent to commit a crime therein, and . . . [t]he building is a dwelling” (Penal Law § 140.25 [2]).

The People contend that defendant committed burglary in the second degree because he “knowingly enter[ed]” or “remain[ed] unlawfully” in his wife’s “dwelling,” her hospital room (it was after visiting hours; an order of protection forbade defendant from seeing his wife, although he contests notice of it) “with intent to commit a crime therein”; namely, intentional murder. Further, “inten[ding] to cause [her] death,” and “caus[ing] [her] death,” defendant killed his wife while “in the course of committing” and “in furtherance of” the burglary when he forced potassium cyanide down her throat as she lay virtually helpless on her hospital bed. Hence, the People argue, defendant committed first-degree felony murder, a capital offense in this case. The jury agreed.

Defendant contests his conviction for first-degree felony murder on two grounds. First, he argues that the phrase “in furtherance of” in Penal Law § 125.27 (1) (a) (vii) requires a murder to “advance” or “facilitate” the commission of the predicate felony. In the circumstances of this case, he contends, it is logically impossible for the murder to “advance” or “facilitate” the burglary because the two crimes share the identical criminal objective, intentional murder.

Second, principally relying on *People v Green* (27 Cal 3d 1, 609 P2d 468 [1980]), defendant asserts that absent an independent criminal objective, the burglary “merged” into the murder; therefore, the burglary cannot serve as an aggravating factor without contravening the Eighth Amendment’s mandate that any aggravating factor must genuinely narrow the class of defendants eligible for a capital sentence.

The majority skirts defendant’s “in furtherance of” argument and, instead, grounds its opinion on the felony murder merger (or “merger”) doctrine, holding that the burglary aggravating factor may not be predicated solely on the intent to commit intentional murder. The majority reaches this conclusion principally (it would appear) because of an inability to believe that the Legislature meant what it actually said (*see* majority op at 65).

Further, the majority labors mightily to slip the strictures of our precedent by belittling *Miller* as a traditional, not a first-degree, felony murder case, which dealt with an assaultive, not

murderous intent.¹ Then the majority treats the holding in *Miller* as virtual dictum since the two concurring judges—although obviously unsuccessfully—promoted a narrower basis for reaching the result. Finally, the majority relies on Arkansas and Delaware cases; and, while pointing out the Legislature’s unquestioned resolve to enact a death penalty statute satisfying the requirements of the Eighth Amendment as enunciated in *Gregg v Georgia* (428 US 153 [1976]), extensively discusses *Green*, a case in which the California Supreme Court judicially narrowed that state’s circa-1970’s capital felony murder “special circumstance” to conform with *Gregg*.

A. Statutory Interpretation

First and foremost, this case presents us with a pure issue of statutory interpretation. As a general rule, “[t]he primary consideration of courts in interpreting a statute is to ‘ascertain and give effect to the intention of the Legislature’ ” (*Riley v County of Broome*, 95 NY2d 455, 463 [2000], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 92 [a], at 177). Moreover, the plain meaning of the statutory text is the best evidence of legislative intent and, in fact, the only authoritative basis for interpretation (*Riley v County of Broome*, 95 NY2d at 463 [“Of course, the words of the statute are the best evidence of the Legislature’s intent. As a general rule, unambiguous language of a statute is alone determinative”]).

Reiterating the statutory language relevant here, a defendant commits first-degree felony murder when “[w]ith intent to cause the death of another person, he causes the death of such person . . . ; and . . . the victim was killed while the defendant was in the course of committing . . . and in furtherance of . . . burglary in the . . . second degree” (Penal Law § 125.27 [1] [a] [vii]). Further, a defendant “is guilty of burglary in the second degree when he knowingly enters or remains unlawfully in a building with intent to commit a crime therein, and . . . [t]he building is a dwelling” (Penal Law § 140.25 [2]).

Obviously, nothing in the wording of the first-degree felony murder statute in any way limits the type of crime that a burglar must intend to commit or, put another way, excludes

1. *Miller* involved the degreeless crime of “murder” under Penal Law § 125.25 (3), which, at the time, was potentially a capital crime in circumstances not present in *Miller* (see L 1965, ch 1030 [adding Penal Law § 125.25]; L 1968, ch 949 [amending Penal Law § 125.30]). In 1974, the Legislature amended the Penal Law by creating first-degree murder and classifying section 125.25 as second-degree murder (see L 1974, ch 367, §§ 4, 5).

intentional murder as the sole criminal objective of a second-degree burglary. Relatedly, the second-degree burglary statute manifestly fails to limit the type of crime that a burglar must intend to commit or to exclude intentional murder from those crimes.

Moreover, we have—until today—always construed the second-degree burglary statute as broadly as its unambiguous language demonstrates the Legislature intended (*see e.g. People v Mackey*, 49 NY2d 274, 279 [1980] [holding that a defendant charged with burglary in the second degree is not entitled to a bill of particulars specifying which crime he intended to commit within the building since “the Revised Penal Law’s definition of burglary is satisfied if the intruder’s intent, existing at the time of the unlawful entry or remaining, is to commit *any* crime” (internal quotation marks omitted; emphasis added)]). We must presume that the Legislature was aware of our decisions interpreting the second-degree burglary statute as broadly as its words naturally allow (*see e.g. People v Robinson*, 95 NY2d 179, 184 [2000]).

Further, when “words hav[e] a precise and well settled legal meaning in the jurisprudence of the state[, they] are to be understood in such sense when used in statutes, *unless a different meaning is plainly indicated*” (McKinney’s Cons Laws of NY, Book 1, Statutes § 233, at 396 [emphasis added]). For the “different meaning” to which the majority subscribes to have been “plainly intended” here, the Legislature would have to have (as it easily could have) drafted the first-degree felony murder provision to exclude burglary predicated on intentional murder from its ambit. That the Legislature did not make this particular drafting choice is telling in light of the numerous ways in which the first-degree felony murder provision was, in fact, limited or, in the language of *Gregg*, “narrowed” by the Legislature.

That is, the Legislature created the first-degree felony murder provision by borrowing the language of the second-degree felony murder provision, with its well settled legal meanings, and then limiting or narrowing this language in several key respects. Most importantly, first-degree felony murder, unlike second-degree felony murder, requires an intentional killing. First-degree felony murder also provides for more limited acces-

social liability;² and includes a predicate felony not found in the second-degree felony murder provision; namely, an intentional killing while in immediate flight from attempting second-degree murder.

Significantly, the Legislature also cut back on the underlying felonies upon which first-degree (as opposed to second-degree) felony murder may be predicated, including, as is especially relevant for present purposes, the types of burglary. That is, second-degree felony murder may be predicated on any degree of “burglary,” while first-degree felony murder can rest only on first- or, as in this case, second-degree burglary. By excluding third-degree burglary (which references entry into a building), the Legislature deliberately limited first-degree felony murder to those burglaries that expressly involve invasions of a dwelling, the place where a citizen reasonably expects to be most secure and is, in fact, most vulnerable to serious injury or death when cornered by an intruder bent on murder, as happened here.

In short, the Legislature, while carefully limiting the scope of the first-degree felony murder provision with respect to the types of burglary covered, otherwise did not see fit to exclude a burglary committed with intentional murder as its criminal objective. While the majority may find this hard to accept, the choice is the Legislature’s—not ours—to make.

B. Merger and the *Miller* Case

The felony murder merger doctrine—a judicial gloss developed in the context of traditional (that is, unintentional) felony murder—bars felony murder when the predicate felony is subsumed in the homicide. With the advent of the revised Penal Law, we cast off merger in *Miller*. By holding that first-degree felony murder predicated on burglary must have a criminal objective independent of intentional murder, the majority has now revived (and, in fact, expanded) merger in our jurisprudence in ways that the Legislature could never have anticipated.

2. Normally, a nonslaying defendant faces accessorial liability when, acting with the requisite mental state necessary to commit an offense, “he solicits, requests, commands, importunes, or intentionally aids” another person to commit the offense (Penal Law § 20.00); however, for first-degree felony murder, the Legislature restricted accessorial liability to a defendant who “command[s] another person to cause the death of the victim or intended victim” (Penal Law § 125.27 [1] [a] [vii]). The Legislature did not similarly restrict accessorial liability for the other 12 subdivisions of the first-degree murder statute.

1. The Scope of the Merger Doctrine in New York

We developed and discussed our own distinctive brand of merger in several key cases decided in the late nineteenth and early twentieth centuries, when felony murder, even if unintentional, was punishable by death. In *Buel v People* (78 NY 492 [1879]), the defendant, who apparently strangled his victim while raping her, contended that the felony (the rape) merged with the homicide since violence was a requisite element of the rape; therefore, the defendant argued, the rape was not a separate and distinct offense from the killing and so the judge should not have instructed the jury on felony murder.³ We disagreed: “While force and violence constitute an important element of the crime of rape, they do not constitute the entire body of that offence. The unlawful or carnal knowledge is *the essence* of that crime; and without this, no matter what degree of force or violence may be employed, rape is not established” (*id.* at 497 [emphasis added]).

The defendant in *People v Huter* (184 NY 237 [1906]), after fleeing from premises in which he had committed a burglary, shot and killed a police officer who was pursuing him. When the defendant was convicted of felony murder predicated on burglary,⁴ we were asked to review. Concluding that the defendant had ceased to be engaged in the commission of a burglary at the time of the murder, we reversed the judgment and conviction. We then turned our attention to the “much mooted” question of whether the assault in which the defendant was engaged at the time of the killing merged into the homicide, a question that would “doubtless” come up upon retrial (*id.* at 242-243).

3. The evidence showed that the victim was strangled with a strap or rope drawn around her neck by the defendant while he was attempting to rape her. There was also evidence that the victim suffered a violent blow to the head. The judge charged the jury on premeditated and deliberate murder, and also instructed that “if the [victim] resisted, and the [defendant] overcame that resistance by putting the rope around her neck, and thus made her incapable of resistance, and under these circumstances committed the offense, even although he did not intend to take her life, . . . , and she died while he was thus engaged in that act,” then it was felony murder (*Buel v People*, 78 NY at 496). The statute in effect at the time defined felony murder as homicide “perpetrated by a person engaged in *the commission of any felony*” (2 Rev Stat of NY, part IV, ch I, tit I, § 5 [3], at 657 [1st ed], as amended by L 1873, ch 644, § 1, and by L 1876, ch 333 [emphasis added]).

4. Section 183 of the Penal Code defined felony murder at the time as homicide committed “without a design to effect death, by a person engaged in *the commission of, or in an attempt to commit a felony*, either upon or affecting the person killed or otherwise” (emphasis added).

Citing *Buel*, we stated that “[i]n order . . . to constitute [felony murder], . . . the violence may constitute a part of the homicide, yet the other elements constituting the felony in which [the defendant] is engaged must be so distinct from that of the homicide as not to be *an ingredient* of the homicide, indictable therewith or convictable thereunder” (*Huter*, 184 NY at 244 [emphasis added]).

In *People v Wagner* (245 NY 143 [1927]), the proprietor of a boarding house detected a lodger acting suspiciously. When she confronted the lodger outside the bathroom on the boarding house’s second floor, he suddenly struck her in the head with a “blackjack.” The proprietor cried out for help, and another occupant of the boarding house rushed to her assistance. The rescuer struck the defendant a blow, and the proprietor broke free and ran down the stairs and out the front door, shouting for help. She heard shots and ran back into the boarding house and upstairs, where she saw the defendant and her rescuer lying side by side on the floor. When the proprietor took off her shoe and began to beat the defendant about the head with it, he arose, struck her in the face and made his escape. Her rescuer died of gunshot wounds that the defendant had inflicted on him.

The trial court, among other things,⁵ charged the jury that defendant was guilty of felony murder⁶ if he killed the victim while engaged in a felonious assault upon either the victim or the proprietor. Citing *Huter*, we held that the trial court erred in charging the jury regarding the assault on the victim, which was an “ingredient” of the resulting homicide and therefore not an independent crime. The error was harmless, though, because the homicide was committed when the felonious assault on the proprietor was still in progress, and this assault was an independent felony.

Our decision in *Wagner* also relied on *People v Patini* (208 NY 176 [1913]), another case in which a Good Samaritan intervened in an assault on someone else only to lose his own life (*see also People v Giblin*, 115 NY 196 [1889] [wife killed when she rushed

5. The trial court charged the jury on deliberate and premeditated murder as well as felony murder predicated on any of three crimes: burglary, grand larceny and assault. The defendant appealed only so much of the charge as related to assault.

6. The applicable statute, section 1044 (2) of the former Penal Law, was derived from and worded identically to the felony murder provision of section 183 of the Penal Code.

into store to assist her husband, who was scuffling with gunman who had shot him in altercation over payment for purchases]). *Patini*, which involved a felonious assault upon the brother of the victim, was grounded at least in part on our interpretation of the word “otherwise” in section 1044 (2) of the former Penal Law to “include[] a felony upon a person other than the one killed” (*Patini*, 208 NY at 178; *see also People v Miles*, 143 NY 383 [1894]).

In *People v Moran* (246 NY 100 [1927]), the defendant, after he and his companions were halted by two policemen, drew a revolver and fired two shots at one officer and a third at the other, killing them both. The trial judge charged the jury upon the single theory of felony murder, which we held to be error in light of the merger doctrine. That is, if, as was charged, the defendant shot the second officer while trying to escape after having shot the first officer, then the first felony—the assault upon the first officer—was over, while the second felony—a felonious assault upon the second officer—was not independent of the homicide, “[i]t was the homicide itself” (*id.* at 103).

With Chief Judge Cardozo speaking for a unanimous Court, we explained the purpose of the merger doctrine:

“Homicide is murder in the first degree when perpetrated with a deliberate and premeditated design to kill, or, without such design, while engaged in the commission of a felony. To make the quality of the intent indifferent, it is not enough to show that the homicide was felonious, or that there was a felonious assault which culminated in homicide. *Such a holding would mean that every homicide, not justifiable or excusable, would occur in the commission of a felony, with the result that intent to kill and deliberation and premeditation would never be essential.* The felony that eliminates the quality of the intent must be one that is *independent of the homicide and of the assault merged therein, as, e.g., robbery or larceny or burglary or rape*” (*id.* at 102 [emphasis added and citations omitted]).

In other words, the merger doctrine prevented prosecutors from using felony murder to sidestep proof of a culpable mental state in the majority of cases.

Next, the jury in *People v La Marca* (3 NY2d 452 [1957]) convicted the defendant, who kidnapped a one-month-old infant later found dead in a wooded area, of kidnapping and of having

killed the infant while engaged in the commission of the kidnapping. The defendant urged that the felony murder count should have been dismissed because the acts constituting the kidnapping merged into the homicide.

In rejecting this argument, we first noted that while other jurisdictions limited felony murder to specified felonies, our Legislature had chosen a different path, decreeing a homicide to be a capital offense if perpetrated in the commission or attempted commission of *any* felony. As a result, “[o]ne necessary qualification . . . engrafted” by us on New York’s felony murder rule was the merger doctrine; i.e., “that the underlying felony must be independent of the homicide” because “otherwise, every homicide, not justifiable or excusable, would occur in the commission of a felony—namely, the assault which ended in death—with the result that premeditation, deliberation and intent to kill would never have to be established” (*id.* at 465). We cited *Huter*, *Wagner* and *Moran* for this proposition.

We reasoned in *La Marca* that the underlying felony of kidnapping was independent of the murder. Just as in *Buel*, while force and violence were an important element of the kidnapping, its “essence” was something altogether separate, i.e., “[a] taking or detaining of the infant with intent to keep or conceal . . . or to extort . . . money” (*La Marca*, 3 NY2d at 466).

To sum up, the merger doctrine developed as a limitation that we “engrafted” on felony murder in order to maintain distinctions between culpable mental states. This was necessary because the felony murder statutes at the time encompassed assault as a predicate crime, potentially converting every homicide into capital felony murder since assault is an “ingredient” of every homicide. We consistently declined to expand merger to crimes in addition to assault since the “essence” of crimes such as rape, kidnapping, robbery, larceny or burglary is independent of the homicide.⁷ In several cases, we sustained a conviction for felony murder notwithstanding merger when the underlying assault was committed on someone other than the murder victim.

7. See Note, *The Doctrine of Merger in Felony-Murder and Misdemeanor-Manslaughter*, 35 St John’s L Rev 109, 126 (1960) (“Assault merges with the homicide because it is a necessary ingredient of the homicide, and, for this reason, when one is on trial for murder and manslaughter, he is also on trial for assault. In New York and similar jurisdictions all felonies with the exception of assault have been held not to merge with the homicide” [emphasis added]).

This result, however, was premised at least in part on language (the word “otherwise”) appearing in both section 183 of the Penal Code and its successor provision, section 1044 (2) of the former Penal Law. Thus, the status of our merger jurisprudence in 1973 when we decided *Miller*.

2. *People v Miller*

Miller barged uninvited into Fennell’s apartment to assault him with a spray can (apparently to disable him with choking gas) and a butcher knife, and wound up killing Fennell’s roommate, Aleem, who came to Fennell’s aid. In other words, the facts were essentially indistinguishable from those of our Good Samaritan cases, such as *Wagner*, *Patini* and *Giblin* (see also *People v Luscomb*, 292 NY 390 [1944]). The statute under which Miller was prosecuted was, however, quite different as was the People’s theory.

Miller was indicted for and convicted of, among other things, felony murder predicated on burglary to commit an assault. The trial court set aside this conviction on the ground that the People had not established burglary. The trial court, the majority in the Appellate Division and Miller all subscribed to the view that assault, the target crime of the burglary, was actually the underlying felony; therefore, the conviction could not stand because the felony murder statute, Penal Law § 125.25 (3), did not list assault as a predicate crime. Accordingly, we phrased the issue upon appeal as “whether a burglary based upon the crime of assault can properly serve as the predicate for a felony-murder conviction” (*Miller*, 32 NY2d at 158).

As we correctly saw it, Miller was urging us to “extend” the merger doctrine so that neither the assault against Fennell nor the assault against Aleem would qualify as the target crime of the burglary. This we refused to do, noting that the considerations prompting us to “announce” the merger doctrine in the first place were no longer germane because the Legislature had amended the Penal Law to remove the “fundamental defect” that merger was designed to cure (*id.* at 159).

Specifically, under the old felony murder statutes (section 1044 [2] of the former Penal Law and its predecessors) *any* felony, including assault, could be the predicate for murder. Thus, “[s]ince, a fortiori, every homicide, not excusable or justifiable, occurs during the commission of assault, every homicide would constitute a felony murder” (*Miller*, 32 NY2d at 160). The Legislature remedied this “fundamental defect” in the

revised Penal Law (Penal Law § 125.25 [3]), however, by enumerating specific felonies, not including assault and “all involving violence or substantial risk of physical injury,” which were the predicate crimes for felony murder (*id.*). “The legislative purpose for this limitation was ‘to exclude from felony murder, cases of accidental or not reasonably foreseeable fatality occurring in an unlikely manner in the course of a non-violent felony’ ” (*id.* [citation omitted]).

We further described—in detail—the Legislature’s obvious motivation or purpose for including burglary in the list of enumerated predicate crimes for felony murder:

“[P]ersons within domiciles are in greater peril from those entering the domicile with criminal intent, than persons on the street who are being subjected to the same criminal intent. Thus, the burglary statutes prescribe greater punishment for a criminal act committed within the domicile than for the same act committed on the street. Where, as here, the criminal act underlying the burglary is an assault with a dangerous weapon, the likelihood that the assault will culminate in a homicide is significantly increased by the situs of the assault. When the assault takes place within the domicile, the victim may be more likely to resist the assault; the victim is also less likely to be able to avoid the consequences of the assault, since [the] paths of retreat and escape may be barred or severely restricted by furniture, walls and other obstructions incidental to buildings. Further, it is also more likely that when the assault occurs in the victim’s domicile, there will be present family or close friends who will come to the victim’s aid and be killed” (*id.* at 160-161).

Since the Legislature “did not exclude from the definition of burglary, a burglary based upon the intent to assault, but intended that the definition be ‘satisfied if the intruder’s intent, existing at the time of the unlawful entry or remaining, is to commit *any* crime’ ” (*id.* at 161 [citation omitted; emphasis in original]), we concluded that any burglary, even one premised on an intent to assault, could support a felony murder conviction.

Tellingly, in *Miller* we also expressly “reject[ed]” the “reasoning and holding” of *People v Wilson* (1 Cal 3d 431, 462 P2d 22 [1969]) (*Miller*, 32 NY2d at 161 n 3). Along with its California

progeny, *Wilson* anchors the majority's holding that capital felony murder predicated on burglary must have a criminal objective independent of intentional murder.

In *Wilson*, the defendant, armed with a shotgun, broke a glass window in the outside door of his estranged wife's apartment building and entered her apartment, where she and three men were present. Initially, the defendant shot two of the men, killing one. He placed the muzzle of his shotgun against the door of the bathroom into which his wife had fled in a futile search for refuge, and shot the door off its hinges. The defendant's wife was found dead in the bathtub, having been shot twice in the chest at close range.

The defendant was eventually found guilty of first-degree felony murder of his wife based on the crime of burglary, and second-degree felony murder of the other victim, based on assault with a deadly weapon.⁸ The California Supreme Court reversed both convictions with merger as the rationale.

As to the second-degree felony murder count, this result followed directly from traditional merger principles, adopted by the court in *People v Ireland* (70 Cal 2d 522, 539-540, 450 P2d 580, 589-590 [1969] [second-degree felony murder improperly predicated on crime of assault with a deadly weapon because this felony was an integral part of the homicide]). The court reversed the first-degree murder count because the burglary was not independent of the assault, however, and thereby expanded merger. Moreover, in support of this expansion, the court purported to follow New York merger doctrine.

Specifically, the court noted that in *Ireland* (70 Cal 2d at 540, 450 P2d at 591) it had overruled, in relevant part, *People v Hamilton* (55 Cal 2d 881, 901, 362 P2d 473, 485 [1961]) and *People v Talbot* (64 Cal 2d 691, 703, 414 P2d 633, 641 [1966]), both of which had "indicated that . . . the New York 'merger' doctrine . . . is *not to be applied* in this jurisdiction [i.e., California] to preclude a first degree felony-murder instruction based

8. In California, first-degree felony murder is statutory whereas second-degree felony murder is apparently largely left for the judiciary to define (see e.g. J.K. Van Patten, Comment, *Merger and the California Felony-Murder Rule*, 20 UCLA L Rev 250, 251-254 [1972]; see also Tomkovicz, *The Endurance of the Felony-Murder Rule: A Study of the Forces That Shape Our Criminal Law*, 51 Wash & Lee L Rev 1429, 1464-1466 nn 143, 144, 147 [1994] [commenting generally on the California Supreme Court's "hostility" towards felony murder in the 1960's, 1970's and early 1980's, and the consequent judicial restrictions, such as merger, placed by the court on its scope and operation]).

upon a burglary as to which the intended felony is the homicide itself or an offense included therein” (*Wilson*, 1 Cal 3d at 439-440, 462 P2d at 27-28 [emphasis added]).⁹ This statement implies that our traditional merger doctrine in fact *would* have precluded felony murder based upon a burglary as to which homicide or assault was the target crime.

As previously discussed, however, we never broadened merger beyond assault proper. Indeed, Chief Judge Cardozo specifically cited burglary as an example of a felony “independent” of the homicide and therefore not merged in it for purposes of felony murder (*see Moran*, 246 NY at 102; *see also La Marca*, 3 NY2d at 466). And in *Miller*, of course, we declared the merger doctrine nugatory anyway in light of revised Penal Law § 125.25 (3). We also specifically (and directly contrary to *Wilson*) held that a burglary premised on an intent to assault *would* support a felony murder conviction. No wonder, then, that we made an emphatic point in *Miller* to disassociate ourselves from *Wilson*.

Of course, today the majority completely reverses field, embracing *Wilson* and its progeny, which unquestionably sup-

9. In *Hamilton*, the challenged felony murder instruction informed the jury that the killings were of the first degree if committed by the defendant in the perpetration of or attempt to perpetrate a burglary; and that the burglary consisted of entering a dwelling with the intent to commit a felony therein, namely felonious assault. The California Supreme Court upheld the instruction, noting as follows: “[D]efendant urges that where, as here, the felony itself (burglary) results from the existence of the very intent necessary to establish the homicide, that the element of causation necessary for application of the [felony murder] doctrine is not present. It is the theory of the defendant that the ‘felony-murder’ rule should only be applied when the felony involved is an independent felony and not an integral part of a homicide plan. While it is true that this independent felony test has apparently been adopted in New York [citing *Huter*], and that a reasonable argument can be made that such should be the rule, it is not the rule that has been applied in California. . . . The rule as adopted in this state is not clearly wrong, nor is the New York rule clearly right. Either conclusion is equally reasonable. There is no sound reason why California should change its rule at this late date” (*Hamilton*, 55 Cal 2d at 901, 362 P2d at 485). In *Talbot*, the defendant bludgeoned the victim to death in the kitchen of a house where the victim was staying overnight. The question on appeal was whether the evidence was sufficient to warrant instructions on murder committed in the perpetration of a burglary, and the court decided that it was. The defendant had contended that he entered with intent to assault, not to kill, and that the felony murder rule was inapplicable because the felony intended upon his entry was an integral ingredient of the murder. In rejecting this contention, the court noted that a similar argument had been rejected in *Hamilton*, and quoted the passage from *Hamilton* in which it had declined to adopt what it referred to as New York’s “independent felony test” (*Talbot*, 64 Cal 2d at 703, 414 P2d at 641).

port its holding,¹⁰ and backing away furiously from *Miller*, which unquestionably does not. Accordingly, the majority advances a number of superficial distinctions designed to distance itself from *Miller*.

First, the majority contends, *Miller* obviously does not “govern” because there we interpreted Penal Law § 125.25 (3) whereas this case involves Penal Law § 125.27 (1) (a) (vii) (majority op at 65). But, of course, the operative language in these two provisions is identical. The Legislature concededly “borrow[ed]” (majority op at 67) from the language of Penal Law § 125.25 (3) to fashion a narrower version of it as Penal Law § 125.27 (1) (a) (vii). We must presume that the Legislature was aware of *Miller* when adopting the first-degree murder statute (see e.g. *People v Robinson*, 95 NY2d at 184). Thus, the only reasonable inference to draw is that the Legislature intended (and expected) a burglary underlying a charge of first-degree felony murder to encompass “any crime” (*People v Miller*, 32 NY2d at 161 [internal quotation marks omitted; emphasis in original]; see also *Mackey*, 49 NY2d at 279); and “any crime” manifestly includes intentional murder.

Further, the Legislature would have had no reason to expect (and indeed would have had every reason *not* to expect) us to find *Wilson* and California-style merger¹¹ suddenly persuasive, and to revive and expand the merger doctrine so as to restrict the scope of burglary under the first-degree felony murder statute. Moreover, given the purpose of the merger doctrine—to preserve the distinctions among the culpable mental states of murder—the majority’s revival and expansion of it for first-degree felony murder, where intent must always be proven, but

10. The California Supreme Court continues to hew the *Wilson* line. Most recently, the court opined in *People v Seaton* (26 Cal 4th 598, 646, 28 P3d 175, 202 [2001]), which cites *Wilson*, that “[a]lthough the intent to commit any felony or theft, including the intent to unlawfully kill or to commit felonious assault, would support a burglary conviction, the felony-murder rule and the burglary-murder special circumstance do not apply to a burglary committed for the sole purpose of assaulting or killing the homicide victim” (emphasis added; see also *People v Garrison*, 47 Cal 3d 746, 778, 765 P2d 419, 435 [1989] [(“A)n entry with the specific intent to commit murder cannot support a felony-murder conviction under the doctrine of merger explained in *People v. Ireland* (citation omitted) and *People v. Wilson* (citation omitted)”]).

11. As the People and the Attorney General observe, the majority of states reject California-style merger, preferring the far narrower version of the merger doctrine pioneered in New York.

not for second-degree felony murder, which may be unintentional, makes no logical sense.¹²

Next, the majority opines, *Miller* is different because it dealt with assault, not murder, and so we would, in fact, be “extend[ing]” *Miller* if we were to decide that a burglary based upon the crime of intentional murder can properly serve as the predicate for first-degree (or, for that matter, second-degree)¹³ felony murder (majority op at 66 [emphasis omitted]). The dispute in *Miller* was, indeed, whether a burglary based upon an assault would support a conviction for felony murder; however, this was because, it was argued, the assault merged in the murder and so the assault and the murder became one and the same. We rejected merger, and concluded that the criminal objective of the predicate burglary could be *any crime*, which surely includes intentional murder as well as assault. I fail to see how we would be “extend[ing]” *Miller* by reading the decision to mean what it manifestly says.

Finally, the majority seems to prefer the reasoning of the concurrence in *Miller*, and to accept defendant’s argument that the majority opinion in that case swept too broadly, or at least more broadly than was necessary to support the result (majority op at 66). To state the obvious, though, *Miller*’s holdings are to be found in the majority opinion, not the concurrence; the reasoning of the concurrence was not accepted by the *Miller* majority. Further, the concurrence’s rationale is problematic.

12. Our colleagues chide Judge Graffeo and me for supposedly mischaracterizing their decision “as a revival and expansion of the ‘merger doctrine’ ” (majority op at 66 n 35). I can only reply that expanding “merger” is what we called what we refused to do in *Miller* and what the majority does here; and that when the California Supreme Court did exactly what the majority now does, that court talked in terms of “merger” (see n 10, *supra*). “If it looks like a duck, walks like a duck and quacks like a duck, then it just may be a duck” (The Oxford Dictionary of Quotations 624:17 [1999]).

13. Although the majority is “[un]aware of a single case in which [any New York court has] ever *discussed* whether a felony murder conviction may be based upon a burglary with an underlying intent to kill, let alone held that way” (majority op at 68 [emphasis added]), this is not to say that prosecutors have hesitated to charge second-degree felony murder on this theory when the facts warrant (see e.g., *People v Kellogg*, 210 AD2d 912 [1994] [defendant charged with being, and convicted as an accessory to second-degree felony murder premised on burglary with intentional murder as its sole criminal objective]). I agree with the majority that no cases appear to have *discussed* the issue, which presumably means only that felony murder has been infrequently charged on this basis and/or has not been challenged when it has been charged. Certainly, the defendant in *Kellogg* did not think to appeal her conviction for this reason.

Specifically, the concurrence would have “predicated [the result] on the narrower ground that even under the old law, when the doctrine of merger was in full bloom, a conviction of felony murder was sustained where the underlying offense was assault if the assault was committed on a person other than the one killed” (*Miller*, 32 NY2d at 161 [Jones, J., concurring]). *Wagner* and the other cases cited for this unexceptionable proposition,¹⁴ however, were all decided under the “old law” (section 1044 [2] of the former Penal Law), and so their holdings were grounded in statutory language superseded in the revised Penal Law (see discussion at 120-124). Additionally, these were all assault cases, not burglary-predicated-on-assault cases, as *Miller* was. It bears repeating that “even . . . when the doctrine of merger was in full bloom” (*Miller*, 32 NY2d at 161), we consistently declined to extend merger beyond assault to other crimes (e.g., rape, kidnapping, larceny, robbery or burglary). Although force and violence were (or might be) an element of these other crimes, their “essence” (e.g., for burglary, the unlawful entering or remaining in a building) was independent of homicide.

C. Foreign Cases

Lacking support in New York statutes and precedent, the majority finally retreats to foreign cases to support its holding that capital felony murder must have a criminal objective independent of the intentional murder (majority op at 69). As the majority acknowledges, two of these sister-state cases—*Williams v State* (818 A2d 906 [Del 2002]) and *Parker v State* (292 Ark 421, 731 SW2d 756 [1987])—are nothing more than interpretations of Delaware’s and Arkansas’ rather different capital statutes. Additionally, *Williams* and *Parker* both deal with capital felony murder statutes that are closer to our traditional (second-degree) felony murder statute than to our first-degree felony murder statute.

14. The year after *Wilson* was decided, the California Supreme Court explicitly rejected our *Wagner* rationale: “[I]n New York it has been held that, although the felony-murder rule does not apply where a defendant intentionally assaults each of his two victims who die as a result of the assaults, the rule is applicable if the defendant assaulted one person but killed another who came to the first’s defense [citing *Moran* and *Wagner*] [W]e are satisfied that the distinction made by the New York cases is untenable in the light of ordinary principles of culpability. It would be anomalous to place the person who intends to attack one person and in the course of the assault kills another inadvertently or in the heat of battle in a worse position than the person who from the outset intended to attack both persons and killed one or both” (*People v Sears*, 2 Cal 3d 180, 188-189, 465 P2d 847, 852 [1970]).

Specifically, these statutes do not require an intentional killing, and instead appear designed “to reduce the disproportionate number of accidental homicides which occur during the commission of the enumerated predicate felonies” (*Miller*, 32 NY2d at 161). Indeed, Delaware requires a “reckless[]” murder (see Del Code Ann, tit 11, § 636 [a] [2]), while in Arkansas, the killing had to have been “under circumstances manifesting extreme indifference to the value of human life” (*Parker*, 292 Ark at 425, 731 SW2d at 758).

It is, thus, quite surprising that the majority considers *Parker* and *Williams* so convincing. After all, the majority views our own traditional felony murder jurisprudence in *Miller* as irrelevant mainly because that crime, like the crimes addressed in *Williams* and *Parker*, does not require an intentional murder (majority op at 65). By contrast, the Arkansas Supreme Court itself considered *Miller* entirely relevant, but rejected the *Miller* distinction between a murder committed in an occupied dwelling as opposed to out of doors. The court concluded that what might make sense in New York did not automatically make sense in Arkansas because of its different statutes (*Parker*, 292 Ark at 426-427, 731 SW2d at 759).

The majority cannot have it both ways. If *Miller* is of no value here, as the majority contends, then *Williams* and *Parker* are at least equally useless. Alternatively, if it is legitimate to rely on foreign cases dealing with statutes similar to the statute underlying *Miller*, then *Miller* must be relevant here.

Ultimately, the majority rests its conclusion principally upon the opinion of the California Supreme Court in *People v Green* (27 Cal 3d 1, 609 P2d 468, *supra*) (majority op at 70-71). Our decisions in *Miller* and *People v Harris* (98 NY2d 452 [2002]), however, undermine any reliance on *Green*.

In *Green*, the California Supreme Court justified the need for an “independent objective” by reference to Eighth Amendment narrowing concepts. In *Harris*, however, we expressly rejected a claim that the first-degree felony murder statute did not comport with the narrowing requirements of the Eighth Amendment (*Harris*, 98 NY2d at 475-477). There is no reason for us to shrink from that conclusion here.

We noted in *Miller* that it was “apparent that the Legislature, in including burglary as one of the enumerated felonies as a basis for felony murder, recognized that persons within domiciles are in greater peril from those entering the domicile

with criminal intent, than persons on the street who are being subjected to the same criminal intent” (*Miller*, 32 NY2d at 160). The concern for preventing violence in domiciles that led the Legislature to include burglary in the second-degree felony murder statute informs the first-degree statute under consideration here.

As discussed earlier, the traditional, second-degree statute is predicated upon “burglary” of any degree (*see* Penal Law § 125.25 [3]). But when the Legislature “borrowed” from that statute, it slightly narrowed intentional felony murder so as to include only first-degree or second-degree burglary (*see* Penal Law § 125.27 [1] [a] [vii]). Significantly, only those two degrees of burglary expressly encompass crimes committed in a “dwelling” (*see* Penal Law § 140.25 [2]; § 140.30); third-degree burglary references only a “building” (*see* Penal Law § 140.20). Thus, the Legislature clearly structured the first-degree felony murder statute to deter and punish intentional killings in a “dwelling.”

The legislative goal of protecting the citizens of our state from burglars with a murderous intent nullifies any Eighth Amendment fears. As just discussed, we took note in *Miller* of the extremely rational legislative “recogni[tion]” of the “greater peril” faced by persons in their homes (*Miller*, 32 NY2d at 160). Because of that “greater peril,” the Legislature ensured that “the burglary statutes prescribe greater punishment for a criminal act committed within the domicile than for the same act committed on the street” (*Miller*, 32 NY2d at 160).

The “greater punishment” for committing the “same act” in a dwelling rather than “on the street” obviates the need for the burglary here to have had an objective independent of murder. The Legislature quite rationally concluded that a burglar—like defendant—who fulfills a specific murderous intent is deserving of “greater punishment” than a defendant who commits the “same act . . . on the street” (*id.*). Thus, providing the death penalty for the crime committed here in no way runs afoul of the Eighth Amendment (*Harris*, 98 NY2d at 476). Indeed, it is not merely an intent to kill, but rather burglarizing a dwelling to fulfill that murderous intent which differentiates (and correspondingly narrows) this murder from its lesser included offense of second-degree intentional murder.

Simply put, the Eighth Amendment concerns expressed by the California Supreme Court in *Green* are not present here.¹⁵ The Eighth Amendment does not require that a burglary underlying a felony murder (especially an intentional murder) be predicated upon an independent criminal objective (see e.g. *State v Tillman*, 750 P2d 546, 571 [Utah 1987]; *Smith v State*, 499 So 2d 750, 754 [Miss 1986]; see also *State v Dann*, 205 Ariz 557, 568 n 7, 74 P3d 231, 242 n 7 [2003] [implying that merger doctrine would not preclude capital felony murder conviction for burglary premised on intent to kill]).

II. Jury Selection

I cannot agree that the trial court erred in its rulings under CPL 270.20 (1) (f) regarding prospective jurors Nos. 23 and 855. The trial court's rulings, viewed in light of the entire voir dire for these prospective jurors, comported with the standards for life/death qualification that we just enunciated in *Harris* (98 NY2d at 485-487). The majority spotlights selected snippets from a lengthy record. We were not there; the Trial Judge was. As we recognized long ago when construing section 377 of the former Code of Criminal Procedure (the statutory predecessor of CPL 270.20 [1] [f]), "it was for the court to say, from the whole examination of the juror, including his appearance and demeanor, whether he was fit and competent to perform fairly and impartially" (*People v Carolin*, 115 NY 658, 659 [1889]).¹⁶

15. In my view, the *Green* case does not, in any respect, "address[] a question similar to the one before us" (majority op at 70). As the majority acknowledges, *Green* involved robbery, not burglary. It has subsequently been cited for the proposition that, in order to establish California's robbery-murder special circumstance for capital murder, "the People had to prove that [the] defendant formed the intent to steal before or while killing [the victim]" (*People v Yeoman*, 31 Cal 4th 93, 127, 72 P3d 1166, 1194 [2003]; cf. *People v Bornholdt*, 33 NY2d 75, 82 [1973]; *People v Joyner*, 26 NY2d 106, 109 [1970]; *People v Rice*, 61 AD2d 758 [1st Dept 1978]).

16. Subdivision (8) of section 377 of the former Code of Criminal Procedure provided a for-cause challenge to a prospective juror for "[i]f the crime charged may be punished with death, the entertaining of such conscientious opinions as would preclude . . . finding the defendant guilty." Significantly, the Legislature incorporated the former Code section into subdivision (1) (f) of CPL 270.20 "without substantial change" (Comm'n Staff Notes, reprinted following CLS, Book 7D, CPL 270.20). Because of that, I do not agree with the majority that the Legislature adopted subdivision (1) (f) as a "response" to *Witherspoon v Illinois* (391 US 510 [1968]). In fact, subdivision (1) (f) simply continued, virtually verbatim, this State's long-standing death qualification provision (see e.g. 2 Rev Stat of NY, part IV, ch II, tit V, § 12, at 734 [1st ed 1829]; see also 1 Laws of NY, § XXVIII, at 335 [1813]). Moreover, the

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In the end, this Trial Judge presided over eminently fair, error-free jury selection, in which he correctly applied subdivision (1) (f) in an even-handed manner. Indeed, the trial court and the parties went to extraordinary lengths to impanel a fair and impartial jury: jury selection involved over 900 prospective jurors, took more than two months, and included a comprehensive written questionnaire followed, as necessary, by extensive individual and then group voir dire.¹⁷ We should not upset this handiwork because we might have asked prospective jurors more or different or better questions during voir dire or might have otherwise created a fuller record; or because some of the prospective jurors strike us as more or less qualified than the Trial Judge reasonably assessed them to be in the immediacy of a trial setting. Jury selection is not a mechanical exercise. In a capital case, in particular, jury selection is necessarily exhaustive and emotional. We do not want to discourage trial courts from independently assessing a prospective juror's credibility and sincerity; we do not want to force trial courts to rely on rote assurances of impartiality whether or not they "ring true." Nor do we want to convey a sense that jury selection errors are inevitable in every capital case because of our willingness to parse the record so as to make them so.

Legislature built on the Code, and went well beyond *Witherspoon* by including a life qualification provision (*see* L 1970, ch 996) more than two decades before the Supreme Court so mandated (*see Morgan v Illinois*, 504 US 719 [1992]). The Legislature also expanded a for-cause challenge based on death penalty views to include a prospective juror's inability to deliberate at a separate sentencing proceeding (*Witherspoon* involved a single-stage capital trial, and a challenge under the Code pertained only to a guilt verdict, not to the bifurcated penalty proceeding). The adoption of subdivision (1) (f) represented yet another step in the Legislature's traditional, long-standing commitment to ensuring an effective and fair death penalty scheme. That is not to say that the Legislature ignored *Witherspoon* when adopting CPL 270.20. Surely, the Legislature contemplated that *Witherspoon* would apply when a capital case trial court committed a jury selection error, thus making remedial action necessary. Accordingly, I agree with the majority that a jury selection error going solely to a prospective juror's ability to determine penalty results in reversal of the sentence only, and not a conviction, under subdivision (2) of CPL 270.20. This is exactly the remedy that the *Witherspoon* court held was necessary; it is consistent with what the Legislature did, considering its expansion of subdivision (1) (f) to cover penalty phase, as well as guilt phase, deliberations.

17. The prospective jurors filled out questionnaires on May 26, 1999. During the month of June, the parties and the trial court reviewed the questionnaires and dismissed some prospective jurors on the basis of their written responses. Then the remaining prospective jurors returned to court on July 1, 1999. The voir dire took place during 11 full court days in July 1999 and one day in August 1999.

A. Prospective Juror No. 23

Under the standards for life/death qualification explained in *Harris*, the trial court properly concluded that prospective juror No. 23 had been life qualified. Certainly, prospective juror No. 23 never expressly “rule[d] out voting against” the death penalty (majority op at 44). Indeed, prospective juror No. 23 repeatedly and consistently assured the parties and the trial court that he could consider both death and life. Responding to the prosecutor, for example, he unequivocally stated that he would “fulfill my [sentencing] responsibility[] fairly and impartially,” and that he could consider both sentences “[e]qually.” Prospective juror No. 23 then made similar assurances during a colloquy with defense counsel.

The majority’s conclusion that prospective juror No. 23 had not been life qualified rests entirely upon his voluntary disclosure of a personal near experience with domestic violence. By zeroing in on that lone section of the lengthy voir dire, the majority deems irrelevant prospective juror No. 23’s prior voir dire assurances that he could, indeed, consider a life verdict. Significantly, in *Harris* we rejected an essentially indistinguishable challenge to the life qualification of prospective juror No. 233.

Prospective juror No. 233 expressed “strong skepticism” regarding the defendant’s proposed mitigating factor of child abuse (*Harris*, 98 NY2d at 485). The defendant subsequently challenged prospective juror No. 233 for cause under subdivision (1) (f), and the trial court rejected the challenge (*id.* at 486). In holding that the trial court ruled properly, we determined that subdivision (1) (f) required a “connection” between a proposed juror’s death penalty views “and its effect on that juror’s consideration of the appropriate sentence” (*id.* at 486, 487). We noted that the “[d]efendant made no correlation between Juror No. 233’s views on child abuse and her views on the death penalty or her ability to exercise sentencing discretion conferred by statute” (*id.* at 487).

While defendant here may have established some “correlation” between prospective juror No. 23’s views and his sentencing ability, defendant never demonstrated the link that we viewed as “[c]ritical[]” in *Harris* (*id.* at 486). Specifically, as was the case with prospective juror No. 233 in *Harris*, prospective juror No. 23 “was never asked if . . . []he could still vote to give defendant life without parole” (*id.*).

No doubt, defendant took prospective juror No. 23 right up to the brink of that question. The voir dire ended with prospective juror No. 23's acknowledgment that, as defendant phrased it, this "life experience . . . is causing you *some concern* as to whether you'd be able to consider both penalties fairly"; and "[t]hat would cause you *some problems* with being able to consider life without parole as the appropriate penalty other than death" (emphasis added). But having "some concern" or "some problems" does not translate into an affirmative statement that prospective juror No. 23 could not "vote to give defendant life without parole" (*Harris*, 98 NY2d at 486). Thus, here, as in *Harris*, "defendant has failed to make a claim that his for-cause challenge against Juror No. 23[] pursuant to CPL 270.20 (1) (f) should have been granted" (*id.* at 487).

The majority unfairly takes the trial court to task for supposedly failing to pose additional questions (*see* majority op at 46). But, as the majority recognizes, "[t]he proponent of the challenge must demonstrate through questioning the juror's inability to fulfill his or her oath" (majority op at 46, citing *Morgan*, 504 US at 733). Thus, defendant bore the burden of making the necessary record to support his subdivision (1) (f) challenge. The trial court heard nothing that merited continued questioning or granting defendant's challenge. Again, the facts of the voir dire are instructive.

The record reveals someone struggling with his emotions, informing the court and parties honestly that he had every intention of following his obligations if selected. Indeed, prospective juror No. 23 expressly stated that "it's possible that [my life experience] could come to mind. As much as I'm sitting here and I'm trying to promise everybody that I'd be fair, I'm still human, I'm still a man, that could come to mind. That's being honest." Thus, the record—far from showing a juror who was not life qualified—bespeaks someone caught up in the assuredly emotional context of a capital case. In fact, the trial court specifically cited prospective juror No. 23's candid and heartfelt disclosures as a basis for rejecting defendant's challenge. Following group voir dire, defendant renewed his challenge. The trial court adhered to its original ruling, noting that prospective juror No. 23 had actually been crying when he related his life experience.

Prospective juror No. 23's emotional reflections and the depth of his feelings did not constitute grounds for his exclusion. Construing subdivision (1) (f) in *Harris*, we concluded that "[w]e

understand the word ‘preclude’ to relate to the ability of a prospective juror to perform his or her duty to act impartially and to follow a court’s instructions in accordance with the law and not as a measurement of the strength or sincerity of an individual’s feelings on the death penalty” (*Harris*, 98 NY2d at 484). As we also noted in *Harris*, under controlling Supreme Court precedent “‘[n]either nervousness, emotional involvement, nor inability to deny or confirm any effect whatsoever is equivalent to an unwillingness or an inability on the part of the jurors to follow the court’s instructions and obey their oaths, regardless of their feelings about the death penalty’ ” (*id.* at 483, quoting *Adams v Texas*, 448 US 38, 50 [1980]).

If anyone is to blame for any lack of follow-up in this case, it is defendant, not the trial court or the People. While the majority states that defendant “immediately” challenged prospective juror No. 23, that is not the case. After eliciting only that prospective juror No. 23 could have “some concern[s],” defendant asked for “just a minute.” After the consequent pause in the proceedings, defendant asked no further questions; specifically, defendant did not ask prospective juror No. 23 if he could vote for life, the question that we found to be critical in *Harris*.

In sum, prospective juror No. 23 never expressed any “unwillingness or an inability” to obey his oath. At most, he indicated “some” concerns premised on his emotions, nothing more. The trial court properly took into account prospective juror No. 23’s “appearance and demeanor”—specifically noting that he had been crying—when rejecting defendant’s for-cause challenge under CPL 270.20 (1) (f) (*Carolin*, 115 NY at 659; see also *Harris*, 98 NY2d at 486-488). Accordingly, the trial court did not err when it denied defendant’s subdivision (1) (f) challenge to prospective juror No. 23.

B. Prospective Juror No. 855

The trial court also did not err when it granted the People’s subdivision (1) (f) challenge to prospective juror No. 855. The full voir dire and questionnaire of this juror reveal someone who was not death qualified. Furthermore, the record completely belies the majority’s assertion that the trial court somehow favored the People in this instance.

In *People v Carolin* (115 NY 658, *supra*), the trial court granted several challenges by the People to prospective jurors, each of whom had “said, in substance, that his scruples were such as would render him ‘extremely reluctant to find the de-

defendant guilty of murder in the first degree' ” (*id.* at 659). Later, the jurors’ statements were “attenuated and somewhat modified by further examination” (*id.*). We held that the trial court properly granted the People’s challenges because—despite the statements of impartiality by the jurors—“it was for the court to say, from the whole examination of the juror, including his appearance and demeanor, whether he was fit and competent to perform fairly and impartially” (*id.*).

Here, by contrast, the prospective juror was more than “extremely reluctant” to impose the death penalty. Pointing to prospective juror No. 855’s questionnaire, the majority states merely that she “equivocated” in her views regarding the death penalty (majority op at 46). Indeed, at times, prospective juror No. 855 checked boxes marked “yes” to indicate that she could deliberate impartially and consider the death penalty. Those generic answers, however, must be juxtaposed against her initial, express written statement (unmentioned by the majority) that “[i]n my heart I do not believe I have or could condone death for another person for [*sic*] punishment.”

Several other answers and written statements (again, all unmentioned by the majority) similarly reveal a juror who appears unwilling to impose the death penalty. For instance, in the first question requiring a checked answer regarding the death penalty *in this case*, prospective juror No. 855 checked “no” when asked “[i]f the People prove the defendant guilty beyond a reasonable doubt of Murder in the First Degree, could you consider the death penalty as one of the available punishments.”

Then, prospective juror No. 855 indicated that she would not be able to “set aside [her] own views and conscientiously apply the law to the facts of this case in accordance with the Judge’s instructions” “[i]f the law, as presented to [her] by the Judge in this case, is contrary to [her] present personal beliefs concerning the death penalty.” Explaining this answer, prospective juror No. 855 wrote that “I am morally responsible for my own actions and decisions.”

As if these answers were not sufficient reason to disqualify prospective juror No. 855, another of her responses could only have caused the People and the trial court grave apprehension. Specifically, prospective juror No. 855 did not consider it “wrong for a juror to go through the whole trial and then during the penalty phase deliberations express for the first time that they would never or always vote for the death penalty regardless of the facts of the case.”

Thus, the trial court was confronted with a potential “stealth” juror; i.e., a juror who believed that her personal opposition to capital punishment trumped any obligation to comply with her oath, and also allowed her to seek to be selected so that she could ensure a non-death sentence; in short, a juror willing to sabotage the trial. This had to make the Trial Judge seriously question the credibility of those questionnaire answers in which prospective juror No. 855 indicated that she would deliberate fairly. Similarly, even if this juror later said all the “right things” during voir dire, her questionnaire responses could only cause the trial court to view her with some skepticism if not outright suspicion.

Indeed, when challenging prospective juror No. 855 the People expressly pointed out to the Trial Judge that, “[f]irst of all you have the ability to have seen her body language and her in person.” And, contrary to the majority’s view of the record, the People never asked for prospective juror No. 855’s exclusion because her death penalty views were “unknown” (majority op at 48). The People expressed concern that prospective juror No. 855 “has an inner moral compass that says she is opposed to the death penalty except . . . in quote certain circumstances [w]hich she is unwilling or unable to tell us what they are.” The People then noted that “[t]he only criteria she elaborates on is multiple victims.” The only thing “unknown,” according to the People, was “[w]hat those other inner workings of her own personality are that trigger her consideration of the death penalty”; not prospective juror No. 855’s death penalty views.

The People challenged prospective juror No. 855 because of the reasonable belief that she was irrevocably opposed to capital punishment except perhaps in a case involving multiple victims. Contrary to the majority’s conclusion, the People never invited the trial court to exclude prospective juror No. 855 on the basis of her “unknown” views of the death penalty. Instead, the People focused on prospective juror No. 855’s inability to credibly indicate that she could vote for death “in this case” (*Harris*, 98 NY2d at 485 n 11).¹⁸

The majority also ignores and misconstrues the trial court’s reason for granting the People’s challenge. In fact, the majority

18. The majority claims that I would free the People from challenging prospective juror No. 855 on her views regarding the suitability of the death penalty in this case (*see* majority op at 48 n 14). To the contrary, the People were concerned about this juror precisely because of an inability to discern if she could vote for death in this case as opposed to the vague, hypothetical case involving multiple victims, which is what she kept citing. Moreover, defendant

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never mentions that the trial court premised the exclusion of prospective juror No. 855 on the facts that “I have listened to [her], I have formed my opinion.” And the trial court had to be “listen[ing]” to prospective juror No. 855 and observing her “body language” during voir dire, while inevitably mindful of her dubious questionnaire responses (*see Carolin*, 115 NY at 659). As we have long recognized, even if a prospective juror’s “extreme[] reluctan[ce]” to impose the death penalty is “attenuated and somewhat modified by further examination, it was for the court to say, from the whole examination of the juror, including his appearance and demeanor, whether he was fit and competent to perform fairly and impartially his duty as a trier of the issues which involved such result” (*id.*). This is exactly what the trial court did here.¹⁹

Nor did the trial court apply different standards to prospective jurors Nos. 23 and 855. In reaching a contrary conclusion, the majority does not acknowledge that the trial court in both instances took into consideration “appearance and demeanor” (*Carolin*, 115 NY at 659), and was in a position—as we most decidedly are not—to assess these jurors’ questionnaire and voir dire answers in that light.

The trial court took pains to note that prospective juror No. 23 had been crying while relating his life experience. The trial court concluded that prospective juror No. 23 was serious about carrying out his oath if selected. By contrast, the trial court considered prospective juror No. 855, who had indicated a willingness to deceive the court and parties regarding her true intentions, to be unworthy of belief after “listen[ing]” to her and watching her “body language.” The trial court did not apply different standards to each party’s for-cause challenge; applying the same standard, he reasonably reached different

contributed to the People’s lack of knowledge: defense counsel successfully objected when the District Attorney attempted to question the juror regarding penalty “in this case.”

19. Even under the “unequivocal assurance” standard of CPL 270.20 (1) (b), we recognize that a prospective juror’s words alone are not enough, and that the trial court must determine whether the juror is speaking credibly (*see e.g. People v Johnson*, 94 NY2d 600, 611 [2000], citing *People v Culhane*, 33 NY2d 90, 107 [1973]). Indeed, whether a prospective juror is qualified under subdivision (1) (b) is “a determination committed largely to judgment of the Trial Judge with his peculiar opportunities to make a fair evaluation” (*Johnson*, 94 NY2d at 613), and one to which we “should defer” (*People v Johnson*, 92 NY2d 976, 978 [1998]). Moreover, when determining whether a prospective juror is qualified to sit under subdivision (1) (b), the voir dire must be analyzed in its entirety, not selectively (*see e.g. Johnson*, 94 NY2d at 615).

conclusions about each prospective juror's credibility and ability to deliberate impartially.

As the majority cautions, trial courts must scrupulously guard against jury selection errors, especially in a resource-intensive capital case. Of course, the trial court here properly excluded prospective juror No. 855 precisely because seating her might have led to a waste of resources. Indeed, a "stealth" juror bent on determining the outcome of a capital case forces both the parties and the judiciary to expend resources needlessly. A "stealth" juror poses an equal danger of injustice to a capital defendant, the People, and the justice system.

III. Conclusion

The majority opinion is a remarkable piece of judicial legerdemain, shot through with after-the-fact analysis. Legitimate choices made by the Legislature, by the *Miller* court and by the Trial Judge are vigorously second-guessed and overthrown from the safe remove of our appellate aerie. Finally, of course, the majority overturns the measured, reasoned verdict that 12 citizens of our state undoubtedly struggled to reach in what was likely the most solemn responsibility they will ever have to undertake.

For all the reasons stated, I would affirm defendant's conviction for first-degree felony murder. For the reasons stated by Judge Graffeo, I would also affirm defendant's conviction for first-degree witness elimination murder. I respectfully dissent from the majority's conclusion in Part II regarding prospective jurors Nos. 23 and 855, and from the reversal of defendant's first-degree murder convictions in Part III.

Finally, the majority's disposition of this case renders the sentencing issues academic (*see Harris*, 98 NY2d at 497; *see also People v Davis*, 43 NY2d 17, 29 [1977], *cert denied* 435 US 998 [1978]). We are constitutionally and prudentially precluded from issuing advisory opinions (*see Harris*, 98 NY2d at 497).

Chief Judge KAYE and Judge CIPARICK concur with Judge ROSENBLATT; Judge G.B. SMITH concurs in result in a separate opinion in which Judge CIPARICK concurs insofar as it addresses deadlock jury instructions; Judge GRAFFEO concurs in part and dissents in part in another opinion in which Judge READ concurs; Judge READ concurs in part and dissents in part in an opinion in which Judge GRAFFEO concurs.

Judgment modified, etc.

[808 NE2d 1260, 777 NYS2d 1]

In the Matter of CLASSIC REALTY LLC, as Agent for RAM I LLC,
Appellant, v NEW YORK STATE DIVISION OF HOUSING AND
COMMUNITY RENEWAL, Respondent.

Argued February 12, 2004; decided March 30, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 7, 2003. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Eileen Bransten, J.), entered in a proceeding pursuant to CPLR article 78, which had denied the petition to annul respondent's determination denying petitioner's application for a high-income deregulation order and dismissed the proceeding.

Matter of Classic Realty v New York State Div. of Hous. & Community Renewal, 309 AD2d 205, reversed.

HEADNOTE

Landlord and Tenant — Rent Regulation — High-Income Deregulation

Respondent Division of Housing and Community Renewal's decision denying petitioner landlord's high-income deregulation application upon review of the tenant's amended tax return reflecting household income below the statutory maximum for the preceding two years was arbitrary and capricious and affected by an error of law. The tenant never challenged the accuracy or validity of the original verification made by the Department of Taxation and Finance (DTF), which indicated that her household income was in excess of the statutory maximum for the applicable period. She instead filed an amended tax return after the original verification was made, and then utilized the statutory comment period to bring the amended return to respondent's attention. Respondent's blind acceptance of the amended return was irrational. The high-income deregulation procedures contemplate a single verification of a tenant's income, the result of which is binding on all parties unless it can be shown that DTF made an error. In the absence of such a showing here, deregulation was required.

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By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant §§ 1069, 1074.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT INCLUDING SUMMARY PROCEEDINGS (4th ed) § 2:40.

NY JUR 2d, Landlord and Tenant §§ 421, 499–501.

NEW YORK REAL PROPERTY SERVICE §§ 74:49–74:52.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Rent.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: high-income /s tenant /s de-regulat! /p verification

POINTS OF COUNSEL

Borah, Goldstein, Altschuler Schwartz & Nahins, P.C., New York City (*Jeffrey R. Metz* and *Neil Ritter* of counsel), for appellant. I. In the absence of any statutory authority, the Division of Housing and Community Renewal should not have authorized a reverification of Lacher's tax return upon receiving notice during the comment period that tax returns had been amended. (*Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359; *Matter of Rosen v Public Empl. Relations Bd.*, 72 NY2d 42; *Matter of Pooler v Public Serv. Commn.*, 89 Misc 2d 700; *City of New York v Maltbie*, 274 NY 90; *Matter of Jones v Berman*, 37 NY2d 42; *Matter of Trump-Equitable Fifth Ave. Co. v Gliedman*, 57 NY2d 588; *Matter of Bates v Toia*, 45 NY2d 460; *Matter of Schwartzfigure v Hartnett*, 83 NY2d 296.) II. Since the tenant's tax return was amended only after the Department of Taxation and Finance found that the tenant's household income exceeded the threshold for deregulation under luxury decontrol, the Division of Housing and Community Renewal should have granted Classic's request and directed a hearing as to all aspects of the tenant's filing of an amended return. (*Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359.) III. The Division of Housing and Community Renewal should have granted the request to reopen and review prior and subsequent luxury decontrol proceedings to determine whether relevant tax returns had been amended as a consequence of the 1999 amendment to the 1996 and 1997 tax returns. (*Dusenbery v United States*, 534 US 161; *Skyline Agency v Ambrose Coppotelli, Inc.*, 117 AD2d 135; *Goldberg v Kelly*, 397 US 254.)

Roderick J. Walters, New York City, *Marcia P. Hirsch* and *Carl Eckstein* for respondent. A rational basis supports the Rent Commissioner's determination which affirmed the Rent Administrator's denial of the owner's petition to deregulate. (*Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359; *Matter of Giffuni Bros. v New York State Div. of Hous. & Community Renewal*, 293 AD2d 402;

Matter of Nestor v New York State Div. of Hous. & Community Renewal, 257 AD2d 395; *Matter of 89 Christopher v Joy*, 35 NY2d 213; *La Guardia v Cavanaugh*, 53 NY2d 67; *City of New York v New York State Div. of Hous. & Community Renewal*, 97 NY2d 216; *Sulnac v Whalen*, 49 NY2d 224; *Stone v Goldberg*, 215 AD2d 180; *Matter of Evans v Monaghan*, 306 NY 312; *Matter of Cupo v McGoldrick*, 278 App Div 108.)

OPINION OF THE COURT

CIPARICK, J.

This dispute centers on a rent-stabilized apartment located in a cooperative building on 84th Street and Park Avenue in Manhattan. Petitioner Classic Realty is agent for the owner of the shares of the subject apartment. The tenant occupies the 10-room, three-bathroom apartment with her husband and son. It is undisputed that the monthly rent-stabilized rent is currently \$3,949.73.*

On April 14, 1998, Classic served tenant with an income certification form pursuant to the Rent Stabilization Law. On May 11, 1998, tenant certified on the form that the family's income was \$175,000 or less in either of the two preceding years—1996 and 1997. Tenant noted that while the 1996 tax return was on file, the 1997 return had not yet been filed and was “on extension.” Thereafter, on June 4, 1998, Classic contested tenant's income certification and filed a petition for high-income deregulation with the Division of Housing and Community Renewal (DHCR). Classic contested the amount of income certified by the tenant and requested that DHCR obtain a verification of income by the Department of Taxation and Finance (DTF).

DTF reported that the household income was over \$175,000 for both 1996 and 1997. As a result, on February 18, 1999, DHCR issued a notice of proposed deregulation and afforded each party the opportunity to comment on the results of the verification. Classic responded on February 23, 1999 and asked that DHCR issue a deregulation order at the expiration of the comment period. The tenant responded on March 17, 1999, stating the tax returns would verify that the total annual income for the household was not in excess of \$175,000 in 1996 and 1997. The following day the tenant submitted a supplemental

* At the time the petition was brought, the monthly rent was \$3,726.16. Petitioner's reply brief requests that we take judicial notice that the apartment has a fair market rental value of \$11,500 per month, and a fair market sales value of \$7.35 million. This has not been contested by respondent.

answer “to clarify that the [tax] return on file is an amended return.”

DHCR then asked that DTF verify the household income a second time. The results of the second verification indicated that the household income was below the \$175,000 limit in one or both of the subject years. On July 8, 1999, DHCR notified the parties of DTF’s finding and again offered them the opportunity to comment. Classic again responded, challenging whether DHCR had statutory authority to reverify income and requesting a hearing to explore the circumstances of the amended return as well as any possible income shifting in prior years. On September 23, 1999, the DHCR Rent Administrator issued an order denying Classic’s request for a hearing and its petition for luxury deregulation. Thereafter, Classic filed a petition for administrative review of the Rent Administrator’s order, which DHCR denied.

Classic then commenced this CPLR article 78 proceeding to annul the DHCR order. Supreme Court denied the petition and dismissed the proceeding. The Appellate Division affirmed, concluding that the Rent Administrator had discretion to reverify the household income after receiving notice of the amended return. Two Justices dissented, finding it arbitrary and capricious for DHCR to deny the petition for luxury deregulation solely on the basis of the amended return, without further inquiry. We now reverse.

Discussion

The Rent Stabilization Law sets forth the procedure for luxury deregulation (*see* Rent Stabilization Law [Administrative Code of City of NY] § 26-504.3). Rent-stabilized apartments that have a legal regulated rent of at least \$2,000 per month are eligible for deregulation if the occupants’ combined statutory threshold income exceeds \$175,000 for each of the two years preceding an owner’s petition (*see* Rent Stabilization Law [Administrative Code of City of NY] § 26-504.1). The owner of an eligible apartment may furnish the tenant with an income certification form and the tenant must certify whether the combined household income was above \$175,000 for each of the two previous years (*see* Administrative Code § 26-504.3 [b]).

If the tenant certifies that the income was below the threshold amount and the owner contests such certification, the owner may ask DHCR to verify the household income (*see* Administrative Code § 26-504.3 [c] [1]). DHCR must then request the nec-

essary information from the tenant to allow DTF to verify the household income (*see* Administrative Code § 26-504.3 [c] [1]). DTF is only authorized to determine whether or not the income is within the statutory threshold (*see* Administrative Code § 26-504.3 [c] [1]; Tax Law § 171-b [3] [a], [b]). In the event DTF determines the income surpasses \$175,000 for each of the two previous years, DHCR must notify the parties and allow them 30 days to comment on the results (*see* Administrative Code § 26-504.3 [c] [2]). Thereafter, “[w]ithin forty-five days after the expiration of the comment period, the division shall, where appropriate, issue an order providing that such housing accommodation shall not be subject to the provisions of this law upon the expiration of the existing lease” (Administrative Code § 26-504.3 [c] [2]).

Our review of an administrative agency’s action is limited to “whether a determination was made in violation of lawful procedure, was affected by an error of law or was arbitrary and capricious or an abuse of discretion” (CPLR 7803 [3]; *see also Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144, 149 [2002]; *Matter of Nehorayoff v Mills*, 95 NY2d 671, 675 [2001]). We conclude that it was arbitrary and capricious for DHCR to deny deregulation under the circumstances presented, and furthermore, the determination was affected by an error of law. Here, tenant filed an amended tax return after DTF verified that the tenant’s income exceeded \$175,000. The tenant never challenged the accuracy or validity of the original verification that had been submitted, which reflected that the income was over \$175,000 for the subject years. Rather, tenant utilized the statutory comment period to bring the amended return to DHCR’s attention. Tenant simply noted that an amended tax return would support her assertion that the apartment was not eligible for deregulation. She did not provide an explanation as to why an amended return had been filed or how the amended return differed from the return on file at the time of DTF’s original verification. Tenant’s answer essentially amounted to a request for a “do-over,” rather than a comment on DHCR’s proposed order.

DHCR’s ruling cannot stand as it invites abuse of the luxury decontrol procedures which contemplate a single verification, the result of which is binding on all parties unless it can be shown that DTF made an error. No such showing is present here, and deregulation is therefore required. As the Appellate Division dissent observed, DHCR’s “blind acceptance” of the

amended return was irrational (309 AD2d 205, 214 [2003]). We agree and conclude that the order denying the owner's petition to annul the determination was both arbitrary and capricious and affected by an error of law.

Like the Appellate Division, we recognize that there may exist legitimate reason to amend a given tax return. We also appreciate that the practice allowed below could cause delay in the administration of DHCR luxury decontrol proceedings, and at worst permit a tenant seeking to avoid deregulation to manipulate the timing and filing of tax returns or shift income to earlier years not under consideration. An aggrieved tenant will always have a remedy. Such tenant will have the comment period to contest a proposed order. If still aggrieved, administrative review procedures are available and ultimately an article 78 proceeding.

In light of this disposition, it is not necessary to address Classic's remaining contentions.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court with instructions to remand to the New York State Division of Housing and Community Renewal for an order of deregulation and further proceedings in accordance with this opinion.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[809 NE2d 645, 777 NYS2d 416]

KAREN BROADNAX et al., Appellants, v FREDERICK A. GONZALEZ et al., Respondents.

DEBRA A. FAHEY et al., Appellants, v ANTHONY C. CANINO et al., Respondents.

Argued February 12, 2004; decided April 1, 2004

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 28, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Westchester County (Orazio R. Bellantoni, J.), which had been entered upon a directed verdict in favor of the defendants and against the plaintiffs.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 24, 2003. The Appellate Division affirmed an order of the Supreme Court, Broome County (Phillip R. Rumsey, J.; op 2002 NY Slip Op 40038[U]), which had granted a motion by defendants Anthony C. Canino and Patrick F. Ruggiero for summary judgment dismissing the complaint.

Broadnax v Gonzalez, 304 AD2d 781, reversed.

Fahey v Canino, 304 AD2d 1069, reversed.

HEADNOTES

Physicians and Surgeons — Malpractice — Emotional Distress Resulting from Miscarriage or Stillbirth of Child

1. Medical malpractice resulting in miscarriage or stillbirth, even in the absence of an independent injury to the expectant mother, is a violation of a duty of care to the expectant mother entitling her to damages for emotional distress. In treating a pregnancy, medical professionals owe a duty of care to both the developing fetus and the expectant mother.

Physicians and Surgeons — Malpractice — Emotional Distress Resulting from Miscarriage or Stillbirth of Child

2. *Tebbutt v Virostek* (65 NY2d 931 [1985]), which held that a mother could not recover for emotional injuries when medical malpractice caused a stillbirth or miscarriage, absent a showing that she suffered a physical injury that was both distinct from that suffered by the fetus and not a normal incident of childbirth, is no longer good law and should not be followed.

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By the Publisher's Editorial Staff

AM JUR 2d, Physicians, Surgeons, and Other Healers §§ 185, 258, 259, 342.

NY JUR 2d, Malpractice §§ 111, 112, 247, 348.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI 2:150.

PROSSER AND KEETON, TORTS (5th ed) §§ 53, 55.

ANNOTATION REFERENCE

Recovery for mental or emotional distress resulting from injury to, or death of, member of plaintiff's family arising from physician's or hospital's wrongful conduct. 77 ALR3d 447.

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Query: medical /2 malpractice /p miscarr! stillb! /p emotional /s mother

POINTS OF COUNSEL

Margaret C. Jasper, South Salem, for appellants in the first above-entitled action. I. The case law requiring plaintiff mother to prove an independent injury as a condition precedent to recovering for the emotional distress she suffered resulting from the loss of her full-term baby due to medical malpractice should be changed. (*Endresz v Friedberg*, 24 NY2d 478; *Tebbutt v Virostek*, 65 NY2d 931; *Kaniecki v Yost*, 166 Misc 2d 408; *Johnson v Verrilli*, 134 Misc 2d 582; *Carlstrand v Kerwin*, 204 AD2d 1080; *Correa v Maimonides Med. Ctr.*, 165 Misc 2d 614; *Battalla v State of New York*, 10 NY2d 237.) II. The lower court should have applied the zone of danger rule and allowed plaintiff mother to recover for her emotional distress resulting from the loss of her full-term baby due to medical malpractice. (*Bovsun v Sanperi*, 61 NY2d 219; *Haught v Maceluch*, 681 F2d 291.)

Hancock & Estabrook, LLP, Syracuse (*Janet D. Callahan* of counsel), for respondents in the first above-entitled action. I. The law, which does not permit a parent to recover for emotional distress alone stemming from the loss of a fetus, should not be changed in the context of this obstetrical malpractice case to permit recovery where the creation of a new duty imposing such liability would constitute a radical change in tort law in New

York. (*Lauer v City of New York*, 95 NY2d 95; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053; *Tebbutt v Virostek*, 65 NY2d 931; *Vaccaro v Squibb Corp.*, 52 NY2d 809; *Johnson v State of New York*, 37 NY2d 378; *Tobin v Grossman*, 24 NY2d 609; *Woods v Lancet*, 303 NY 349; *Endresz v Friedberg*, 24 NY2d 478; *Howard v Lecher*, 42 NY2d 109; *Bovsun v Sanperi*, 61 NY2d 219.) II. The law requiring proof of an independent physical injury to the mother is not an appropriate issue for review by this Court in this case, since a failure to prove such injury was not the ground for the trial court's dismissal of the case. (*Prete v Rafla-Demetrious*, 224 AD2d 674.) III. Assuming the application of *Bovsun v Sanperi* (61 NY2d 219 [1984]) to childbirth cases, plaintiffs did not establish the requisite elements for recovery under a zone of danger theory. (*Miller v Chalom*, 269 AD2d 37; *Parsons v Chenango Mem. Hosp.*, 210 AD2d 847, 86 NY2d 778; *Prado v Catholic Med. Ctr. of Brooklyn & Queens*, 145 AD2d 614.) IV. Where plaintiff failed to prove that she suffered a physical injury that was not an aspect of the childbirth procedure itself, as required under *Tebbutt v Virostek* (65 NY2d 931 [1985]), her action was properly dismissed. (*Miller v Chalom*, 269 AD2d 37; *James v Middletown Community Health Ctr.*, 278 AD2d 280; *Njoku v City of New York*, 254 AD2d 223; *Saguid v Kingston Hosp.*, 213 AD2d 770; *Parsons v Chenango Mem. Hosp.*, 210 AD2d 847, 86 NY2d 778; *Scott v Capital Area Community Health Plan*, 191 AD2d 772, 82 NY2d 656; *Bubendey v Winthrop Univ. Hosp.*, 151 AD2d 713; *Sceusa v Mastor*, 135 AD2d 117, 72 NY2d 909; *Farago v Shulman*, 104 AD2d 965, 65 NY2d 763; *Howard v Lecher*, 42 NY2d 109.)

O'Connor, Gacioch, Leonard & Cummings, LLP, Binghamton (Patricia A. Cummings of counsel), for appellants in the second above-entitled action. I. The sui generis relationship of the fetus and mother contradicts application of New York bystander law in obstetrical malpractice cases. (*Tebbutt v Virostek*, 65 NY2d 931; *Woods v Lancet*, 303 NY 349; *Tobin v Grossman*, 24 NY2d 609; *Howard v Lecher*, 42 NY2d 109; *Becker v Schwartz*, 46 NY2d 401; *Park v Chessin*, 46 NY2d 401; *Vaccaro v Squibb Corp.*, 52 NY2d 809; *Endresz v Friedberg*, 24 NY2d 478; *Ferrara v Bernstein*, 179 AD2d 79, 81 NY2d 895; *Canty v New York City Health & Hosps. Corp.*, 158 AD2d 271.) II. Plaintiff met the zone of danger exception to the bystander law. Her complaint should not have been dismissed. (*Bovsun v Sanperi*, 61 NY2d 219.)

Hancock & Estabrook, LLP, Syracuse (Janet D. Callahan of

counsel), for respondents in the second above-entitled action. I. The law, which does not permit a parent to recover for emotional distress alone stemming from the loss of a fetus, should not be changed in the context of this obstetrical malpractice case to permit recovery where the creation of a new duty imposing such liability would constitute a radical change in tort law in New York. (*Lauer v City of New York*, 95 NY2d 95; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053; *Tebbutt v Virostek*, 65 NY2d 931; *Vaccaro v Squibb Corp.*, 52 NY2d 809; *Johnson v State of New York*, 37 NY2d 378; *Tobin v Grossman*, 24 NY2d 609; *Woods v Lancet*, 303 NY 349; *Endresz v Friedberg*, 24 NY2d 478; *Howard v Lecher*, 42 NY2d 109; *Bovsun v Sanperi*, 61 NY2d 219.) II. Assuming the application of *Bovsun v Sanperi* (61 NY2d 219 [1984]) to childbirth cases, plaintiffs did not establish the requisite elements for recovery under a zone of danger theory. (*Miller v Chalom*, 269 AD2d 37; *Parsons v Chenango Mem. Hosp.*, 210 AD2d 847, 86 NY2d 778; *Prado v Catholic Med. Ctr. of Brooklyn & Queens*, 145 AD2d 614.) III. Where plaintiff failed to raise a factual issue as to whether she suffered a physical injury that was not an aspect of the childbirth procedure itself, as required under *Tebbutt v Virostek* (65 NY2d 931 [1985]), the dismissal of her complaint was proper. (*Miller v Chalom*, 269 AD2d 37; *James v Middletown Community Health Ctr.*, 278 AD2d 280; *Njoku v City of New York*, 254 AD2d 223; *Saguid v Kingston Hosp.*, 213 AD2d 770; *Parsons v Chenango Mem. Hosp.*, 210 AD2d 847, 86 NY2d 778; *Scott v Capital Area Community Health Plan*, 191 AD2d 772, 82 NY2d 656; *Bubendey v Winthrop Univ. Hosp.*, 151 AD2d 713; *Sceusa v Mastor*, 135 AD2d 117, 72 NY2d 909; *Farago v Shulman*, 104 AD2d 965, 65 NY2d 763.)

OPINION OF THE COURT

ROSENBLATT, J.

These two cases call upon us to revisit a question we last addressed in *Tebbutt v Virostek* (65 NY2d 931 [1985]): whether, absent a showing of independent physical injury to her, a mother may recover damages for emotional harm when medical malpractice causes a miscarriage or stillbirth.

I.

A. *Broadnax*

While pregnant, plaintiff Karen Broadnax was under the care of defendants Frederick Gonzalez, an obstetrician, and Georgia Rose, a certified nurse-midwife. On September 25, 1994, at 1:45 A.M., plaintiff telephoned Rose to say that her water had broken

and that she had expelled a large amount of blood. Rose advised plaintiff and her husband, Jeffrey, to meet her at defendant Westchester Birth Center. When she arrived there, at approximately 3:00 A.M., plaintiff again experienced vaginal bleeding. She and her husband asked Rose whether they should go across the street to St. John's Riverside Hospital for immediate treatment. Rose telephoned Dr. Gonzalez, who directed that plaintiff be transported to the Columbia Presbyterian Allen Pavilion in Manhattan.

Accompanied by Rose, the Broadnaxes reached the Allen Pavilion at about 3:45 A.M. Dr. Gonzalez had not yet arrived. In his absence, however, Rose did not contact the on-call doctor. About 45 minutes later—almost two hours after plaintiff arrived at the Westchester Birth Center—Dr. Gonzalez examined plaintiff and detected fetal heart rate decelerations. Rather than performing an emergency cesarean section, Dr. Gonzalez conducted a vaginal and pelvic examination. He then performed a sonogram, but could no longer detect a fetal heartbeat. Approximately half an hour later, around 5:15 A.M., Dr. Gonzalez undertook a cesarean section, delivering a full-term stillborn girl. Autopsy reports indicated that a placental abruption caused the fetus to die before delivery.

The Broadnaxes sued defendants, alleging that their failure to recognize and properly treat plaintiff's placental abruption supported a cause of action for medical malpractice and related claims. At the close of plaintiffs' case, Supreme Court granted defendants' motion pursuant to CPLR 4401 for judgment as a matter of law. The Appellate Division affirmed, holding that *Tebbutt v Virotek* barred plaintiff from recovering damages for emotional or psychological harm stemming from the stillbirth because she adduced no evidence of having suffered a legally cognizable physical injury distinct from the fetus's.

B. Fahey

Plaintiff Debra Ann Fahey became an obstetrical patient of Dr. Anthony C. Canino, of defendant OBGYN Health Care Associates, P.C. (OBGYN). In August 1999, Dr. Canino informed her that she was carrying twins. On October 28, 1999, on a follow-up visit with Dr. Canino's partner, defendant Dr. Patrick F. Ruggiero, plaintiff complained of lower abdominal pains and cramping. Based on an ultrasound, Dr. Ruggiero concluded that one of the twins was pressing against plaintiff's sciatic nerve. Two days later, during the eighteenth week of pregnancy,

plaintiff called Dr. Canino and complained of increasingly intense pain along with nausea. Relying on Dr. Ruggiero's examination, Dr. Canino advised plaintiff to lie down, explaining that the pain was likely related to her sciatic nerve and the nausea probably resulted from something she ate for lunch. Less than two hours later, while sitting on the toilet, plaintiff gave birth to one of the twins. Still linked to the fetus by the umbilical cord, she went by ambulance to the hospital, where she delivered the second twin. Neither twin survived.

Other doctors later diagnosed plaintiff as having an "incompetent cervix." In a subsequent pregnancy, she underwent a cerclage procedure to suture her cervix, and thereby prevent the premature expulsion of the fetus. Plaintiff delivered a six-week premature daughter the following year.

The Faheys brought this action for medical malpractice asserting that defendants negligently failed to diagnose and treat plaintiff's cervical condition. Supreme Court granted defendants' motion for summary judgment dismissing the complaint. With one Justice dissenting, the Appellate Division, also citing *Tebbutt*, affirmed on the ground that defendants' alleged malpractice did not cause the mother an independent physical injury.

We now reverse the Appellate Division orders in both cases.¹

II.

In *Tebbutt v Virostek* (65 NY2d 931 [1985]), we held that a mother could not recover for emotional injuries when medical malpractice caused a stillbirth or miscarriage, absent a showing that she suffered a physical injury that was both distinct from that suffered by the fetus and not a normal incident of childbirth. Plaintiffs assert that *Tebbutt* is arbitrary and unfair, and should be overturned.

Tebbutt reflected our longstanding reluctance to recognize causes of action for negligent infliction of emotional distress, especially in cases where the plaintiff suffered no independent physical or economic injury. Its holding was in keeping with our view that tort liability is not a panacea capable of redressing every substantial wrong. Although these concerns weigh heavily on us today, we are no longer able to defend *Tebbutt*'s logic or reasoning.

1. We take no position on the ultimate merits of either case. We note only that, on the records before us, the cases were sufficient to withstand respectively a motion for a trial order of dismissal and a motion for summary judgment.

As its dissenters recognized, the rule articulated in *Tebbutt* fits uncomfortably into our tort jurisprudence. Infants who are injured in the womb and survive the pregnancy may maintain causes of action against tortfeasors responsible for their injuries (see *Woods v Lancet*, 303 NY 349 [1951]). Further, a pregnant mother may sue for any injury she suffers independently. A parent, however, cannot bring a cause of action for wrongful death when a pregnancy terminates in miscarriage or stillbirth (see *Endresz v Friedberg*, 24 NY2d 478 [1969]).

Injected into this common-law framework, *Tebbutt* engendered a peculiar result: it exposed medical caregivers to malpractice liability for in utero injuries when the fetus survived, but immunized them against any liability when their malpractice caused a miscarriage or stillbirth. In categorically denying recovery to a narrow, but indisputably aggrieved, class of plaintiffs, *Tebbutt* is at odds with the spirit and direction of our decisional law in this area. The *Endresz* court, for example, justified its holding—barring parents from suing in wrongful death on behalf of an unborn child—in part on the assumption that parents would have some legal recourse for a miscarriage or stillbirth resulting from negligent conduct (*id.* at 486).²

On its own terms, *Tebbutt* may make formal sense, but it created a logical gap in which the fetus is consigned to a state of “juridical limbo” (65 NY2d at 933 [Jasen, J., dissenting]). It is time to fill the gap. If the fetus cannot bring suit, “it must follow in the eyes of the law that any injury here was done to the mother” (65 NY2d at 940 [Kaye, J., dissenting]).

Defendants maintain that *Tebbutt* states a sensible rule, one worth preserving, because the defendant physician in that case did not violate a duty to the expectant mother. We are not persuaded. In *Ferrara v Bernstein* (81 NY2d 895 [1993]), we permitted a plaintiff to recover damages for emotional distress when she miscarried, following an unsuccessful abortion, on the ground that the treating physician violated a duty of care to his patient. Defendants would have us distinguish *Ferrara*, arguing that, in the cases before us, their alleged conduct injured only the fetuses, and, accordingly, they did not violate a duty to the expectant mothers. Defendants’ reasoning is tortured. Although,

2. In *Endresz*, an automobile accident both caused injuries to the mother and resulted in her miscarrying. The Court reasoned that no cause of action should lie in wrongful death because the damages recoverable by the mother for her independent physical injuries would “afford ample redress for the wrong done” (*id.*).

in treating a pregnancy, medical professionals owe a duty of care to the developing fetus (as we impliedly recognized in *Woods v Lancet*, 303 NY 349 [1951]), they surely owe a duty of reasonable care to the expectant mother, who is, after all, the patient. Because the health of the mother and fetus are linked, we will not force them into legalistic pigeonholes.³

[1] We therefore hold that, even in the absence of an independent injury, medical malpractice resulting in miscarriage or stillbirth should be construed as a violation of a duty of care to the expectant mother, entitling her to damages for emotional distress.⁴

3. The treating physician owes no duty of care to the expectant father. It of course remains true that, where the mother has a cause of action, her husband may recover for loss of services and consortium if the facts support such a claim.

4. In rejecting *Tebbutt*, we recognize that a majority of jurisdictions permit some form of recovery for negligently caused stillbirths or miscarriages (see e.g. *Eich v Town of Gulf Shores*, 293 Ala 95, 300 So 2d 354 [1974]; *Summerfield v Superior Ct. In & For Maricopa County*, 144 Ariz 467, 698 P2d 712 [1985]; *Gorke v Le Clerc*, 23 Conn Supp 256, 181 A2d 448 [Super Ct, Hartford County 1962]; *Worgan v Greggo & Ferrara, Inc.*, 50 Del 258, 128 A2d 557 [Super Ct, New Castle County 1956]; *Simmons v Howard Univ.*, 323 F Supp 529 [D DC 1971]; *Shirley v Bacon*, 154 Ga App 203, 267 SE2d 809 [1980]; *Seef v Sutkus*, 205 Ill App 3d 312, 562 NE2d 606 [1st Dist 1990]; *Bolin v Wingert*, 764 NE2d 201 [Ind 2002]; *Hale v Manion*, 189 Kan 143, 368 P2d 1 [1962]; *Mitchell v Couch*, 285 SW2d 901 [Ky 1955]; *State, Use of Odham v Sherman*, 234 Md 179, 198 A2d 71 [1964]; *Wascom v American Indem. Corp.*, 383 So 2d 1037 [La App, 1st Cir 1980]; *Mone v Greyhound Lines, Inc.*, 368 Mass 354, 331 NE2d 916 [1975]; *O'Neill v Morse*, 385 Mich 130, 188 NW2d 785 [1971]; *Verkennes v Corniea*, 229 Minn 365, 38 NW2d 838 [1949]; *Rainey v Horn*, 221 Miss 269, 72 So 2d 434 [1954]; *Strzelczyk v Jett*, 264 Mont 153, 870 P2d 730 [1994]; *White v Yup*, 85 Nev 527, 458 P2d 617 [1969]; *Poliquin v MacDonald*, 101 NH 104, 135 A2d 249 [1957]; *Giardina v Bennett*, 111 NJ 412, 545 A2d 139 [1988]; *Salazar v St. Vincent Hosp.*, 95 NM 150, 619 P2d 826 [Ct App 1980]; *Hopkins v McBane*, 427 NW2d 85 [ND 1988]; *Werling v Sandy*, 17 Ohio St 3d 45, 476 NE2d 1053 [1985]; *Evans v Olson*, 1976 OK 64, 550 P2d 924 [1976]; *Libbee v Permanente Clinic*, 268 Or 258, 518 P2d 636 [1974]; *Amadio v Levin*, 509 Pa 199, 501 A2d 1085 [1985]; *Presley v Newport Hosp.*, 117 RI 177, 365 A2d 748 [1976]; *Fowler v Woodward*, 244 SC 608, 138 SE2d 42 [1964]; *Parvin v Dean*, 7 SW3d 264 [Tex Ct App 1999]; *Vaillancourt v Medical Ctr. Hosp. of Vt., Inc.*, 139 Vt 138, 425 A2d 92 [1980]; *Moen v Hanson*, 85 Wash 2d 597, 537 P2d 266 [1975]; *Baldwin v Butcher*, 155 W Va 431, 184 SE2d 428 [1971]; *Kwaterski v State Farm Mut. Auto. Ins. Co.*, 34 Wis 2d 14, 148 NW2d 107 [1967]). Unlike most of these jurisdictions, however, we limit a mother's recovery only to damages for the emotional distress attending a stillbirth or miscarriage caused by medical malpractice. We do not depart from our holding in *Endresz v Friedberg* (24 NY2d 478 [1969]) barring wrongful death actions under these circumstances.

[2] Our dissenting colleague has expressed concern over the possible repercussions of what she concedes to be a “modest” advance in our tort jurisprudence. Significantly, on this appeal, no one from any quarter came forward to support any such concerns. While we are well aware of the importance of precedent, *Tebbutt* has failed to withstand the cold light of logic and experience. To be sure, line drawing is often an inevitable element of the common-law process, but the imperative to define the scope of a duty—the need to draw difficult distinctions—does not justify our clinging to a line that has proved indefensible.

Accordingly, the orders of the Appellate Division should be reversed, with costs, and the cases remitted to Supreme Court for further proceedings consistent with this opinion.

READ, J. (dissenting). In 1985, we were asked whether a woman may recover damages for emotional distress where medical malpractice causes her to suffer a stillbirth. We concluded in *Tebbutt v Virotek* (65 NY2d 931 [1985]) that no recovery could be had in the absence of an independent physical injury, thus clearly and reasonably circumscribing a medical caregiver’s duty to a pregnant patient. Appellants now invite us to reconsider and revise our holding in *Tebbutt*. Unlike the majority, I would decline the invitation.

True, the new rule articulated by the majority expands existing law sparingly. The new rule does not alter the legal rights or status of a fetus; it does not create any new duties on the part of a physician. Nonetheless, the majority’s justification for redefining the duty of care owed to a pregnant woman by her medical caregivers is insufficient for me to vote to overrule a 20-year-old precedent.

Stare decisis teaches that “common-law decisions should stand as precedents for guidance in cases arising in the future” for substantial reasons of stability and legitimacy (*People v Damiano*, 87 NY2d 477, 488 [1996] [Simons, J., concurring]). As Judge Simons also observed, however, stare decisis is not “inflexible,” and our holdings are “always open to reexamination if there is some evidence that the policy concerns underlying them are outdated or if they have proved unworkable” (*id.* at 489). Here, there is no suggestion that the *Tebbutt* rule is unworkable. To the contrary, *Tebbutt* established a bright-line rule, which is easily applied. The majority considers *Tebbutt* outdated, however, because a “narrow, but indisputably ag-

grieved, class of plaintiffs” (majority op at 154) is denied recovery, creating a gap in the law. But this same gap was manifest in 1985 when we decided to limit a physician’s exposure to damages for emotional distress to those cases in which the woman sustains a physical injury distinct from that suffered by the fetus. Nor does the majority’s new rule do away with all seeming gaps. As we acknowledged in *Bousun v Sanperi* (61 NY2d 219, 228 [1984]), “arbitrary distinctions are an inevitable result of the drawing of lines which circumscribe legal duties.”

Today’s ruling exposes medical caregivers to additional liability for the treatment they provide to pregnant women. Juries will be asked to quantify the emotional distress that a woman feels upon suffering a miscarriage or stillbirth. Importantly, there is no way for us to predict or assess the potential effect of this expansion of liability, however modest it may appear, on the cost and availability of gynecological and obstetrical services in New York State.

No one disputes the heartache experienced by a woman who miscarries or delivers a stillborn fetus. Nonetheless, *Tebbutt* established a rational and workable rule to limit the scope of duty in obstetrical malpractice. I see insufficient reason to overrule *Tebbutt* and create a different rule. Accordingly, I would affirm the orders of the Appellate Division.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO and R.S. SMITH concur with Judge ROSENBLATT; Judge READ dissents and votes to affirm in a separate opinion.

In *Broadnax v Gonzalez*: Order reversed, with costs, and case remitted to Supreme Court, Westchester County, for further proceedings in accordance with the opinion herein.

In *Fahey v Canino*: Order reversed, with costs, and the motion of defendants Canino and Ruggiero for summary judgment denied.

[808 NE2d 1263, 777 NYS2d 4]

RJC REALTY HOLDING CORP., Doing Business as PURE MAXIMUS
SPA/SALON, Appellant, v REPUBLIC FRANKLIN INSURANCE
COMPANY et al., Respondents, et al., Defendants.

Argued February 11, 2004; decided April 1, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 17, 2003. The Appellate Division (1) dismissed, as subsumed in the appeal from the judgment, an appeal from an order of the Supreme Court, New York County (Edward W. McCarty, III, J.), which had granted plaintiff's motion for summary judgment and denied a cross motion by defendants Republic Franklin Insurance Company and Utica National Insurance Group for summary judgment, (2) reversed, on the law, a judgment of that Supreme Court which had declared that defendants Republic Franklin Insurance Company and Utica National Insurance Group were obligated to defend and indemnify plaintiff in the action instituted against it by defendants Marie Harrison and Thomas Harrison in Supreme Court, Nassau County, under index No. 01-011145, (3) denied plaintiff's motion, (4) granted defendants' cross motion, and (5) declared that defendants were not obligated to defend and indemnify plaintiff in the underlying action.

RJC Realty Holding Corp. v Republic Franklin Ins. Co., 303 AD2d 573, reversed.

HEADNOTES**Insurance — Duty to Defend and Indemnify — Exclusions — Sexual Assault by Insured's Employee as "Accident"**

1. The alleged sexual assault of a massage client of plaintiff beauty salon/health spa by a masseur employed by plaintiff was an "accident" within the meaning of the insurance policy issued to plaintiff by defendant insurer. The policy exclusion for injuries "expected or intended" from the insured's standpoint did not apply, rendering defendant obligated to defend and indemnify plaintiff in the underlying action brought by the assault victim. Although the assault was expected and intended by the masseur, his expectation and intention were not attributable to plaintiff. The masseur departed from his duties for solely personal motives unrelated to the furtherance of plaintiff's business.

Insurance — Duty to Defend and Indemnify — Exclusions — Sexual Assault by Insured's Employee as "Accident"

2. The exclusion in the insurance policy issued to plaintiff beauty salon/health spa for bodily injuries "arising out of . . . [b]ody massage" did not ap-

ply to relieve defendant insurer from its obligation to defend and indemnify plaintiff in the underlying action brought by a client of plaintiff's who was allegedly sexually assaulted by her masseur during a body massage. The policy did not exclude coverage for all alleged conduct during a body massage, but only for injuries "arising out of" a body massage. The exclusion was reasonably read to refer to a bruise or similar injury inflicted by a massage itself, and not the emotional or physical injury resulting from a sexual assault by a masseur.

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By the Publisher's Editorial Staff

AM JUR 2d, Insurance §§ 667, 672, 673, 678.
 COUCH ON INSURANCE (3d ed) §§ 127:24–127:28.
 NY JUR 2d, Insurance §§ 1540, 1541, 1567, 1568.

ANNOTATION REFERENCE

Construction and application of provision of liability insurance policy expressly excluding injuries intended or expected by insured. 31 ALR4th 957.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: liability /2 insur! /p sexual /2 assault /p accident

POINTS OF COUNSEL

Shayne, Dachs, Stanisci, Corker & Sauer; Mineola (Norman H. Dachs of counsel), for appellant. I. Where an insurance policy does not contain an "assault and battery" exclusion, the insurer must defend and indemnify an insured employer whose employee commits an assault not expected or intended from the standpoint of the insured employer. (*Agoado Realty Corp. v United Intl. Ins. Co.*, 95 NY2d 141; *Miller v Continental Ins. Co.*, 40 NY2d 675; *Landress v Phoenix Mut. Life Ins. Co.*, 291 US 491; *Park Terrace Arms Corp. v Nationwide Ins. Co.*, 268 AD2d 297; *Slayko v Security Mut. Ins. Co.*, 285 AD2d 875, 98 NY2d 289; *Jubin v St. Paul Fire & Mar. Ins. Co.*, 236 AD2d 712; *Pistolesi v Nationwide Mut. Fire Ins. Co.*, 223 AD2d 94, 88 NY2d 816; *Pecker Iron Works of N.Y. v Traveler's Ins. Co.*, 99 NY2d 391; *Greaves v Public Serv. Mut. Ins. Co.*, 5 NY2d 120; *Morgan v Greater N.Y. Taxpayers Mut. Ins. Assn.*, 305 NY 243.) II. In any event, respondent's disclaimer was untimely as a matter of law. The right to disclaim was, therefore, waived. (*Matter of Firemen's Fund Ins. Co. of Newark v Hopkins*, 88 NY2d 836; *Wasserheit v New York Cent. Mut. Fire Ins. Co.*, 271 AD2d 439; *North Country Ins. Co. v Tucker*, 273 AD2d 683; *Mount Vernon*

Fire Ins. Co. v Gatesington Equities, 204 AD2d 419; *Matter of Brandon [Nationwide Mut. Ins. Co.]*, 284 AD2d 886, 97 NY2d 491; *West 16th St. Tenants Corp. v Public Serv. Mut. Ins. Co.*, 290 AD2d 278; *Matter of Colonial Penn Ins. Co. v Pevzner*, 266 AD2d 391; *Matter of Nationwide Mut. Ins. Co. v Steiner*, 199 AD2d 507; *Poluliah v Fidelity High Income Fund*, 102 AD2d 720; *Alvarez v Prospect Hosp.*, 68 NY2d 320.)

Lustig & Brown, LLP, Buffalo (Randolph E. Sarnacki of counsel), for respondents. I. The alleged incident of sexual assault does not represent an “occurrence” under the Republic Franklin Insurance Company/Utica National Insurance Company business owners general liability insurance policy issued to RJC Realty Holding Corp. (*Allstate Ins. Co. v Mugavero*, 79 NY2d 153; *Board of Educ. of E. Syracuse-Minoa Cent. School Dist. v Continental Ins. Co.*, 198 AD2d 816; *Public Serv. Mut. Ins. Co. v Camp Raleigh*, 233 AD2d 273, 90 NY2d 801; *Green Chimneys School for Little Folk v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 244 AD2d 387; *General Acc. Ins. Co. v 35 Jackson Ave. Corp.*, 258 AD2d 616; *Matter of Sormani v Orange County Community Coll.*, 263 AD2d 511; *Sweet Home Cent. School Dist. v Aetna Commercial Ins. Co.*, 263 AD2d 949, 94 NY2d 915; *Agoado Realty Corp. v United Intl. Ins. Co.*, 95 NY2d 141; *Miller v Continental Ins. Co.*, 40 NY2d 675; *American Natl. Gen. Ins. Co. v Ryan*, 274 F3d 319.) II. The Appellate Division properly determined that coverage for the incident of sexual assault alleged in the underlying litigation is excluded pursuant to the exclusion for “bodily injury . . . expected or intended from the standpoint of the insured.” (*Gibbs v CNA Ins. Cos.*, 263 AD2d 836, 94 NY2d 755; *Riviello v Waldron*, 47 NY2d 297; *Judith M. v Sisters of Charity Hosp.*, 93 NY2d 932; *Kladstrup v Westfall Health Care Ctr.*, 183 Misc 2d 11; *Matijiw v New York Cent. Mut. Fire Ins. Co.*, 292 AD2d 865; *Slayko v Security Mut. Ins. Co.*, 285 AD2d 875, 98 NY2d 289; *Allstate Ins. Co. v Mugavero*, 79 NY2d 153; *Pistolessi v Nationwide Mut. Fire Ins. Co.*, 223 AD2d 94, 88 NY2d 816; *Mattress Discounters of N.Y. v United States Fire Ins. Co.*, 251 AD2d 384, 92 NY2d 817; *Park Terrace Arms Corp. v Nationwide Ins. Co.*, 268 AD2d 297.) III. Coverage for the alleged sexual assault is excluded pursuant to the exclusion for bodily injury or personal injury arising out of body massage other than facial massage. (*U.S. Underwriters Ins. Co. v Val-Blue Corp.*, 85 NY2d 821; *Mount Vernon Fire Ins. Co. v Creative Hous.*, 88 NY2d 347; *Agoado Realty Corp. v United Intl. Ins.*, 95 NY2d 141.) IV. Republic Franklin Insurance Company/Utica National Insurance Group properly and timely

issued its disclaimer. (*Hartford Ins. Co. v County of Nassau*, 46 NY2d 1028, 47 NY2d 951; *Allstate Ins. Co. v Gross*, 27 NY2d 263; *Silk v City of New York*, 203 AD2d 103, 84 NY2d 810; *Aetna Cas. & Sur. Co. v Brice*, 72 AD2d 927, 50 NY2d 958; *Brooklyn Hosp. Ctr. v Centennial Ins. Co.*, 258 AD2d 491, 93 NY2d 814; *Sphere Drake Ins. Co. v Block 7206 Corp.*, 265 AD2d 78; *Matter of Nationwide Mut. Ins. Co. v Steiner*, 199 AD2d 507; *Matter of Colonial Penn Ins. Co. v Pevzner*, 266 AD2d 391; *West 16th St. Tenants Corp. v Public Serv. Mut. Ins. Co.*, 290 AD2d 278, 98 NY2d 605; *Wasserheit v New York Cent. Mut. Fire. Ins. Co.*, 271 AD2d 439.) V. The timeliness of Republic Franklin Insurance Company/Utica National Insurance Group's disclaimer is irrelevant since RJC Realty Holding Corp. has failed to demonstrate that the insuring agreement of the Republic Franklin Insurance Company/Utica National Insurance Group policy provided coverage for the incident at bar. (*Schiff Assoc. v Flack*, 51 NY2d 692; *Zappone v Home Ins. Co.*, 55 NY2d 131; *Handelsman v Sea Ins. Co.*, 85 NY2d 96; *Markevics v Liberty Mut. Ins. Co.*, 97 NY2d 646; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208.)

OPINION OF THE COURT

R.S. SMITH, J.

The issue here is whether a liability insurer is obligated to defend and indemnify its insured, a “beauty salon/health spa,” in an action brought against the insured based on an alleged sexual assault by the insured’s employee. We hold that the alleged assault was an “accident” within the meaning of the policy, and that the policy’s exclusions for injuries expected or intended from the standpoint of the insured and for bodily injury arising out of body massage do not apply. We therefore hold that the insurer is obligated to defend and indemnify.

Facts and Procedural History

Appellant, RJC Realty Holding Corp., doing business as “Pure Maximus Spa/Salon,” obtained an insurance policy including “Businessowners Liability Coverage” from respondent Republic Franklin Insurance Co.¹ In the policy, Republic agreed to

1. Utica National Insurance Group, apparently Republic’s parent or affiliate, is also a party in this case. It appears from the record that Republic is the corporation that actually issued the policy. “Republic” in this opinion refers both to Republic and to Utica National.

indemnify and defend RJC against claims for “bodily injury”² caused by an “occurrence” as defined in the policy. “Occurrence” is defined as “an accident, including continuous or repeated exposure to substantially the same general harmful conditions.”

Two exclusions in the policy are also relevant here. The policy states that it is not applicable to “‘[b]odily injury’ . . . expected or intended from the standpoint of the insured” or to “‘[b]odily injury’ . . . arising out of . . . [b]ody massage other than facial massage.”

Marie and Thomas Harrison brought an action against RJC and a masseur employed by RJC, alleging that the masseur performed a body massage on Marie Harrison and that Marie Harrison “was the victim of improper sexual contact.” The Harrisons alleged that RJC was liable to them for negligently hiring and retaining the masseur, and for failing properly to supervise his activities.

RJC notified Republic of the alleged sexual assault, and subsequently provided Republic with a copy of the Harrison complaint. Republic responded by disclaiming coverage, relying on the definition of “occurrence” and the two exclusions quoted above.³

RJC sued Republic, seeking a declaratory judgment that Republic was obligated to defend and indemnify RJC in the Harrison action. On cross motions for summary judgment, Supreme Court ruled in RJC’s favor. Supreme Court found the issue under the “expected or intended” exclusion to be controlled by our decision in *Agoado Realty Corp. v United Intl. Ins. Co.* (95 NY2d 141 [2000]) and stated: “Since the conduct was not intentional on the part of the insured, the exclusion does not apply.” Supreme Court found the issue under the “body massage” exclusion a “closer question,” but decided that question in the insured’s favor also.

On Republic’s appeal, the Appellate Division reversed, holding that the “expected or intended” exclusion applied. In the view of the Appellate Division, the decisive fact was that the Harrison complaint alleged “an intentional sexual assault by

2. The policy’s definition of “bodily injury” includes “[s]hock, mental anguish or mental injury.” It is not disputed that the injury involved in this case is “bodily injury” within the meaning of the policy.

3. RJC raises an issue as to the timeliness of Republic’s disclaimer. That issue is moot in light of our holding.

RJC's employee," which the Appellate Division held "falls within the exclusionary language of the policy." (303 AD2d 573, 574 [2003].) We granted RJC's motion for leave to appeal, and now reverse the Appellate Division order and reinstate the Supreme Court judgment.

Discussion

A. The "Accident" and "Expected or Intended" Issues

The questions of whether the alleged sexual assault was an "accident" and therefore an "occurrence" within the meaning of the policy, and whether it was excluded from coverage as an act "expected or intended from the standpoint of the insured" are both controlled by *Agoado*, where we construed a policy containing identical language.

In *Agoado*, the issue was whether the insurer was required to indemnify its insureds, the landlords of a building, against a claim brought by the estate of a tenant who had been murdered in the building by an unknown assailant. We held that the murder, though obviously intended from the murderer's point of view, was an "accident" within the meaning of the policy. Relying on *Miller v Continental Ins. Co.* (40 NY2d 675 [1976]), we said that: "in deciding whether a loss is the result of an accident, it must be determined, *from the point of view of the insured*, whether the loss was unexpected, unusual and unforeseen." (95 NY2d at 145 [emphasis in original].) Since the landlords in *Agoado* obviously did not expect or intend the tenant's murder, we held that it was an "accident" from their point of view. We also held that—as seems self-evident on the facts of *Agoado*—the murder was not within the policy exclusion for conduct "expected or intended from the standpoint of" the landlords (*id.* at 146).

The only significant difference between this case and *Agoado* is that here the alleged perpetrator of the assault was the insured's employee. If—as we must assume for present purposes—the assault occurred at all, it was obviously expected and intended by the masseur, and was not an accident from his point of view. Thus, the critical question is whether the masseur's expectation and intention in committing the assault should be attributed to his employer, RJC.

This question is answered in the negative by our decision in *Judith M. v Sisters of Charity Hosp.* (93 NY2d 932 [1999]). In that case, a hospital patient sued the hospital for a sexual as-

sault allegedly committed by the hospital's employee. The patient claimed that the hospital was vicariously liable under the doctrine of respondeat superior. We rejected this contention, saying:

“The doctrine of respondeat superior renders an employer vicariously liable for torts committed by an employee acting within the scope of the employment. Pursuant to this doctrine, the employer may be liable when the employee acts negligently or intentionally, so long as the tortious conduct is generally foreseeable and a natural incident of the employment (*Riviello v Waldron*, 47 NY2d 297, 304). If, however, an employee ‘for purposes of his own departs from the line of his duty so that for the time being his acts constitute an abandonment of his service, the master is not liable’ (*Jones v Weigand*, 134 App Div 644, 645, quoted in *Baker v Allen & Arnink Auto Renting Co.*, 231 NY 8, 13). Assuming plaintiff's allegations of sexual abuse are true, it is clear that the employee here departed from his duties for solely personal motives unrelated to the furtherance of the Hospital's business (see, *Mataxas v North Shore Univ. Hosp.*, 211 AD2d 762, 763). Accordingly, the courts below properly dismissed plaintiff's respondeat superior cause of action.” (93 NY2d at 933 [emphasis added].)

[1] Under *Judith M.*, the masseur's alleged act here could not be attributed to RJC for purposes of the respondeat superior doctrine. Here too, if the allegation of sexual abuse is true, the masseur “departed from his duties for solely personal motives unrelated to the furtherance of [RJC's] business.” We see no reason not to apply the same test to the question of whether the masseur's expectations or intentions should be attributed to RJC in determining the applicability of Republic's insurance policy.

The parties here agreed that the policy would cover only an “accident” and would not apply to certain acts “expected or intended” by RJC. When they did so, they could reasonably have anticipated that the rules of respondeat superior would govern the question of when a corporate entity is deemed to expect or intend its employee's actions. Since the masseur's actions here were not RJC's actions for purposes of the respondeat superior doctrine, they were “unexpected, unusual and

unforeseen” from RJC’s point of view, and were not “expected or intended” by RJC. Accordingly, they were an “accident,” within the coverage of the policy, and were not excluded by the “expected or intended” clause.

B. The “Body Massage” Issue

Like Supreme Court, we find the question of whether the “bodily injury” for which the Harrisons sued RJC arose out of a “body massage” to be a closer one, but like Supreme Court we resolve it in RJC’s favor.

[2] It is true that the alleged act for which the Harrisons sued RJC occurred during a body massage.⁴ The insurance policy, however, does not exclude coverage for all alleged conduct during a body massage, but only for “*injury . . . arising out of . . . [b]ody massage.*” (Emphasis added.) We think the words of the exclusion are most plausibly read to refer to a bruise or similar injury inflicted on the customer by a massage itself, not to the emotional or physical injury resulting from a sexual assault by a masseur. At least that is a reasonable reading of the words, and an exclusion in an insurance policy can negate coverage only where it is stated “in clear and unmistakable language [and] is subject to no other reasonable interpretation.” (*Continental Cas. Co. v Rapid-American Corp.*, 80 NY2d 640, 652 [1993].) We therefore hold the “body massage” exclusion to be inapplicable here.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the judgment of Supreme Court reinstated.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO and READ concur; Judge ROSENBLATT taking no part.

Order reversed, etc.

4. The Harrisons’ complaint alleges that the masseur gave Mrs. Harrison a body massage and that he committed sexual assault, but does not specifically say that the two acts were simultaneous. That is the likeliest inference from the complaint, however, and the letter from RJC’s attorney notifying Republic of the claim specifically refers to “sexual abuse involving a customer during the course of a massage.”

[809 NE2d 651, 777 NYS2d 422]

In the Matter of EXCELLUS HEALTH PLAN, INC., Respondent, v
GREGORY V. SERIO, as Superintendent of Insurance, Appel-
lant.

Argued February 11, 2004; decided April 6, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 13, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (George L. Cobb, J.), entered in a proceeding pursuant to CPLR article 78, which had vacated and annulled a letter determination dated November 13, 2001 that implemented new and additional review procedures for Insurance Law § 4308 (g), and vacated and annulled a letter determination dated January 10, 2002 to the extent it sought to alter premium rates that were in compliance with the requirements of Insurance Law § 4308 (g).

Matter of Excellus Health Plan v Serio, 303 AD2d 864, affirmed.

HEADNOTE**Insurance — Premiums — Health Insurers and Health Maintenance Organizations — Approval of Rate Increases**

Respondent Superintendent of Insurance was not authorized to exercise his premium rate review and approval authority to disapprove or modify rate increases submitted by petitioner health insurer and deemed approved under the file and use provisions of Insurance Law § 4308 (g) (1). Under subsection (g) (1), a rate filing or application accompanied by the requisite actuarial certification “shall be deemed approved” once it is received by respondent. Although respondent may act to ensure that initial contract terms and premiums are not “excessive, inadequate or unfairly discriminatory” under Insurance Law § 4308 (b), that standard of review is not set forth in subsection (g) (1). To interpolate such an exception into subsection (g) (1) would create a forced and unnatural interpretation of the phrase “shall be deemed approved” by making approval by operation of law, in fact, contingent upon respondent’s assent. Neither the statutory language nor the legislative history intimate that the Legislature expected respondent to exercise his traditional rate review powers with respect to premium rates “deemed approved.”

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By the Publisher’s Editorial Staff

AM JUR 2d, Insurance §§ 31, 34, 40–42.

COUCH ON INSURANCE (3d ed) §§ 2:7, 2:8, 2:14, 2:31, 2:33.
McKINNEY'S, Insurance Law § 4308 (b), (g) (1).
NY JUR 2d, Insurance §§ 10–12, 36, 39.

ANNOTATION REFERENCE

See ALR Index under Insurance and Insurance Companies.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: insurance /2 superintendent /s health /2 insurance
/s rate & certification

POINTS OF COUNSEL

Eliot Spitzer, Attorney General, Albany (Victor Paladino, Caitlin J. Halligan, Daniel Smirlock and Nancy A. Spiegel of counsel), for appellant. Insurance Law § 4308 (b) vests the Superintendent of Insurance with the authority to review health insurance premium rate applications filed under the file and use provisions and to approve, deny or modify the proposed rates. (*Matter of New York State Pub. Interest Research Group v New York State Dept. of Ins.*, 66 NY2d 444; *Matter of Levko v Corcoran*, 158 AD2d 416; *Weingarten v Board of Trustees*, 98 NY2d 575; *Huang v Johnson*, 96 NY2d 599; *Matter of Sun Beach Real Estate Dev. Corp. v Anderson*, 98 AD2d 367, 62 NY2d 965; *Matter of Medical Socy. of State of N.Y. v State of New York Dept. of Health*, 83 NY2d 447; *Matter of State Farm Fire & Cas. Co. v Superintendent of Ins. of State of N.Y.*, 162 AD2d 313.)

Hinman Straub P.C., Albany (Bartley J. Costello, III, Kimberly C. Lawrence and David W. Novak of counsel), for respondent. I. The Superintendent of Insurance has no authority under Insurance Law § 4308 (b) or elsewhere to review and modify premium health insurance rate changes filed pursuant to section 4308 (g), because rates filed pursuant thereto and complying therewith are deemed approved by operation of law upon filing. (*Boreali v Axelrod*, 130 AD2d 107, 71 NY2d 1; *Matter of Beer Garden v New York State Liq. Auth.*, 79 NY2d 266; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Guido v New York State Teachers' Retirement Sys.*, 94 NY2d 64; *Matter of Gruber [New York City Dept. of Personnel—Sweeney]*, 89 NY2d 225; *Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98; *State Div. of Human Rights [Valdemarsen] v Genesee Hosp.*, 50 NY2d 113; *Town of E. Hampton v Cuomo*, 179 AD2d 337; *Matter of*

U.S. Healthcare v Curiale, 162 Misc 2d 833; *Rozell v Rozell*, 256 App Div 61, 281 NY 106.) II. The rules adopted by the Superintendent of Insurance violate the State Administrative Procedure Act. (*People v Cull*, 10 NY2d 123; *Long Is. Coll. Hosp. v New York State Dept. of Health*, 151 Misc 2d 370, 203 AD2d 292; *Matter of Eden Park Health Servs. v Axelrod*, 114 AD2d 721; *Matter of Roman Catholic Diocese of Albany v New York State Dept. of Health*, 109 AD2d 140, 66 NY2d 948; *People v Fogerty*, 18 NY2d 664; *Matter of Hudson Val. Nursing Ctr. v Axelrod*, 130 AD2d 862; *Matter of Connell v Regan*, 114 AD2d 273; *Matter of Cordero v Corbisiero*, 80 NY2d 771; *Matter of Robinson v Perales*, 166 AD2d 594.)

OPINION OF THE COURT

READ, J.

This appeal calls upon us to decide whether the Superintendent of Insurance may exercise his premium rate review and approval authority to disapprove or modify rate increases or decreases deemed approved under file and use provisions. For the reasons that follow, we conclude that he may not.

I.

In 1995, the Legislature enacted Insurance Law §§ 4321 and 4322 (L 1995, ch 504, § 12), which were intended to make affordable health care coverage available to individuals who buy their own health insurance. These provisions mandate all Insurance Law article 43 not-for-profit health insurers and health management organizations (HMOs) certified under Public Health Law article 44 (for purposes of this decision, referred to collectively as “insurers”) to offer, on an open enrollment,¹ community-rated basis,² individual direct-payment HMO contracts and point-of-service (POS) contracts providing comprehensive and standardized benefits.³

At the time sections 4321 and 4322 were enacted, Insurance Law § 4308 required the Superintendent to approve all insur-

1. Under open enrollment, the insurer must provide health insurance coverage to all willing purchasers.

2. A community rate is determined by the insurer’s average cost per person in the relevant geographic area. Insurers consequently charge subscribers uniform rates regardless of individual health risks or medical history.

3. Insurers are thus required to offer two forms of direct-payment contract: the usual HMO contract to cover statutorily specified services from hospitals and physicians approved by the HMO; or a point-of-service contract, where, in addition, the same benefits are available from the hospital or physician of the enrollee’s choosing, typically covered at a percent of the fee.

ance contracts as well as initial premium rates and subsequent rate modifications before they became effective. As is relevant on this appeal, subsection (b) authorized the Superintendent to disapprove proposed initial premiums upon finding that they were “excessive, inadequate or unfairly discriminatory” (*see* Insurance Law § 4308 [b]). After approval, premiums could only be modified after public hearings and the Superintendent’s prior written approval, a lengthy and often costly process prescribed by subsection (c) (*see* Insurance Law § 4308 [c] [1]-[3]).

As part of the 1995 amendments, however, the Legislature enacted new subsections (g) through (j), dubbed the file and use provisions. Under the file and use methodology, insurers seeking to increase or decrease premiums may submit a rate filing or application to the Superintendent, which “*shall be deemed approved*, provided that . . . the anticipated incurred loss ratio for [the] contract form [falls within prescribed minimum and maximum loss ratios (between 80% and 105% for individual direct-payment contracts) as certified by an actuary]” (Insurance Law § 4308 [g] [1]; [j] [emphasis added]).

A loss ratio is determined by dividing claims incurred by premiums earned. The “anticipated incurred loss ratio” is an actuarial prediction of the loss ratio for the upcoming calendar year. Insurers annually report their actual loss ratio for the previous calendar year (*see* Insurance Law § 4308 [h] [1]). If the actual loss ratio is below 80%, the insurer must issue a refund to its subscribers or credit a dividend against future premiums by September 30th of the year following the year in which the loss ratio requirements were not satisfied (*see* Insurance Law § 4308 [h] [2]). Conversely, if the actual loss ratio exceeds 105%, the insurer must increase its premium rates accordingly (*see id.* § 4308 [h] [3]).

Because the file and use provisions require insurers to give each subscriber at least 30 days written notice of a premium rate increase (*see* Insurance Law § 4308 [g] [2]), insurers typically submit rate filings to the Superintendent and notify their subscribers simultaneously at year-end. A cap limiting premium increases or decreases to 10% per year was in force from 1996 through 1999 (*id.*).

By letter dated November 13, 2001, the Superintendent informed Excellus, which provides health care coverage in 45 upstate counties, that he was modifying his review procedures for certain file and use rate applications “to provide [him] with

sufficient time to make the necessary determination that the requested premium rates [were] in compliance with the requirements of Section 4308.” The Superintendent also advised Excellus that premium rate adjustments for individual direct-pay HMO and POS contracts could “not be implemented until the [Superintendent’s] review [was] completed and the company [was] so advised in writing”; however, Excellus “should continue to provide the required 30 day written notice to [its] subscribers based upon the requested effective date.”

In late November 2001, Excellus submitted its rate filing for new premium rates effective January 1, 2002, accompanied by the required actuarial certifications. On November 30, 2001, the Superintendent acknowledged receipt of Excellus’s submission; stated that the requested rates were being reviewed for compliance with section 4308; asked for further information; and cautioned that “the requested premium adjustments . . . may not be implemented until the [Superintendent’s] review is completed and [Excellus] receives a written confirmation that the requested rates have been placed on file.”

By letter dated January 10, 2002, the Superintendent notified Excellus that he had reviewed the rates and was modifying some of them by reducing increases and, in two instances, denying any increase at all. Excellus thereafter commenced this CPLR article 78 proceeding to challenge the Superintendent’s actions.

Excellus argued that the Superintendent’s actions ran afoul of the file and use statutory scheme by improperly conditioning a premium rate change on his review and approval. The Superintendent took the position that he acted properly because section 4308 (b) authorizes him to disapprove any premium that is “excessive, inadequate or unfairly discriminatory.” He asserted that he properly reviewed Excellus’s filed rates under subsection (b), given the “steep” increases and wide discrepancies in premium rates, the sharp decline in direct-pay subscribers and the largely competition-free insurance market involved. The Superintendent also argued that his review was necessary because many rate filings were based on extremely small populations, not reflecting a true basis for community rating. Since insurers use certain market stabilization mechanisms, which may provide them with additional funds to offset losses, the Superintendent further contended that he needed to verify whether the actuaries properly accounted for recoveries from these programs in their rate analysis.

Supreme Court annulled the Superintendent's letters and determined that Excellus's filed rates were approved as a matter of law, effective on January 1, 2002. The Appellate Division unanimously affirmed, relying on a plain language analysis (303 AD2d 864 [3d Dept 2003]). The Court observed that "[h]ad the Legislature wished to require [the Superintendent's] subsequent approval of a rate filing or application, it could have done so through appropriate wording" and concluded that "[the Superintendent's] interpretation, however laudable its purpose, imports a policy not expressed in the plain words of the statute" (*id.* at 868). We granted the Superintendent leave to appeal.

II.

When interpreting a statute, we turn first to the statutory text as the best evidence of the Legislature's intent. "As a general rule, unambiguous language of a statute is alone determinative" (*Riley v County of Broome*, 95 NY2d 455, 463 [2000] [citation omitted]). Further, although an agency's rational construction of a statute is normally entitled to deference, "a determination by the agency that runs counter to the clear wording of a statutory provision is given little weight" (*Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98, 103 [1997] [internal quotation marks and citations omitted]).

Here, the "clear wording" of section 4308 (g) (1) unambiguously states that a rate filing or application submitted to the Superintendent "shall be deemed approved," provided that it is accompanied by an actuarial document certifying that the anticipated loss ratios fall within the statutorily prescribed range. Thus, once the Superintendent receives a new premium rate filing, accompanied by the requisite actuarial certification, the rates specified in the filing are approved by operation of law.

The Superintendent and the dissent would read the statute to mandate approval of file and use rates under the requirements of subsection (g) unless (and, in the case of the dissent, until) the Superintendent subsequently disapproves these rates as "excessive, inadequate or unfairly discriminatory," which is the standard under subsection (b). We decline to interpolate into subsection (g) an exception unexpressed by the Legislature. This reading of the statute would create a "forced [and] unnatural interpretation[]" of "shall be deemed approved" by making approval by operation of law, in fact, contingent upon the Superintendent's assent (*see Castro v United Container Mach.*

Group, 96 NY2d 398, 401 [2001]; *see also* McKinney's Cons Laws of NY, Book 1, Statutes § 94 [legislative intent must be ascertained "according to its natural and most obvious sense, without resorting to an artificial or forced construction"]).

Our interpretation comports not only with the statute's plain language, but also with its legislative history and overall purpose. In enacting the file and use provisions, the Legislature sought to "reform[] the costly and time-consuming system for the approval of [] premium rates . . . , *allow appropriate rate increases* to be implemented on a more timely basis and also *help assure that rates are equitable*" (Governor's Approval Mem No. 72, Bill Jacket, L 1995, ch 504, at 6 [emphasis added]). To implement timely rate increases that are fair to consumers, the Legislature established anticipated loss ratios as the gauge of reasonableness, and provided for automatic refunds or credits if actual loss ratios were less.

A letter from former Superintendent Muhl to the Governor's Counsel—noting that the Insurance Department participated in the drafting of the bill and recommending its approval—emphasizes that the file and use methodology not only "ensures that appropriate rate increases or decreases will be implemented on a timely basis . . . and enables HMOs and insurers to recognize savings in administrative costs" but also "*assures that rates are equitable*" and "*is beneficial to [both] consumers and carriers*" (Letter of Superintendent Muhl to Honorable Michael C. Finnegan, Counsel to the Governor, dated July 19, 1995, Bill Jacket, L 1995, ch 504, at 15 [emphasis added]). Indeed, the Department's regulations state that using a preapproved loss ratio is a proper method to determine the propriety of rates:

"One method of determining whether benefits are reasonable, in relation to the premium charged, is to determine the percentage of the premium collected which is expected to be returned to all policyholders in the form of benefits. This percentage of return is known as the expected loss ratio. In order to prevent the insurer from retaining an unreasonable percentage of the premiums collected for expenses, commissions and profit, minimum expected loss

ratio standards have been established” (11 NYCRR 52.1 [f] [emphasis added]).⁴

In short, the legislative history of the file and use provisions is consonant with the statutory language. Neither intimates that the Legislature expected the Superintendent to exercise his traditional rate review powers with respect to premium rates “deemed approved.” The Superintendent protests that the file and use statutory scheme, unmoderated by his review and potential intervention, undercuts affordable health care for direct-pay customers. Even if this is so, we must hew to the statute’s text. The remedy sought by the Superintendent on grounds of public policy lies with the Legislature, not with the courts.⁵

Finally, we note that the Superintendent may always act to ensure that *initial* contract terms and premiums are not “excessive, inadequate or unfairly discriminatory” under subsections (a) and (b) of section 4308, as previously discussed. He may review rates pursuant to the “excessive management salary” provision of subsection (b)⁶ or the audit provisions of subsections (d) through (f).⁷ The Superintendent may ensure that the file and use actuarial certifications are correct, and he may is-

4. The Department’s regulations establish specified loss ratios for different insurance products to ensure that rates are equitable. In many instances, those loss ratios are lower than the 80% allowed by the Legislature in the file and use context (*see e.g.* 11 NYCRR 52.15 [allowing loss ratios as low as 60% for specified disease coverage]).

5. Notably, in recent years the Legislature has created or expanded several health care programs aimed at solving the complicated problem of New York’s uninsureds (*see* L 1996, ch 639 [New York Health Care Reform Act of 1996]; L 1999, ch 1 [New York Health Care Reform Act of 2000]).

6. Section 4308 (b) provides, in relevant part, that “[n]otwithstanding any other provision of law, the superintendent, as part of the rate increase approval process, may defer, reduce or reject a rate increase if, in the judgment of the superintendent, the salary increases for senior level management executives . . . are excessive or unwarranted given the financial condition or overall performance of such corporation.”

7. Section 4308 (e) provides that “[n]otwithstanding any other provision of law, the superintendent shall have the power to require independent management and financial audits of corporations subject to the provisions of this article whenever in the judgment of the superintendent, losses sustained by a corporation jeopardize its ability to provide meaningful coverage at affordable rates or when such audit would be necessary to protect the interests of subscribers.” Section 4308 (f) provides that “[t]he superintendent shall have the authority to direct the corporation in writing to implement any recommendations resulting from the audit that the superintendent finds to be necessary and reasonable . . . Upon any application for a rate adjustment . . . , the superintendent shall review the corporation’s compliance with the direc-

(n. cont’d)

sue regulations regarding how loss ratio certifications are to be prepared.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

GRAFFEO, J. (concurring in part and dissenting in part). Since 1934, the Superintendent of Insurance has been authorized to review rates charged by health insurance providers (L 1934, ch 595). The majority nonetheless holds that the Superintendent may no longer review rate increases to determine whether they are excessive, inadequate or discriminatory when a health insurance provider uses the “file and use” procedure set forth in Insurance Law § 4308 (g). Because subsection (g) contains no language clearly stripping the Superintendent of this power, I respectfully dissent from that part of the majority’s analysis.

Although I agree with the majority that by adopting the file and use procedure, the Legislature clearly intended to expedite rate increases for certain health insurance providers, I find nothing in the statute or its history supporting the majority’s conclusion that the Legislature also intended to divest the Superintendent of his authority to review rates to determine if they are “excessive, inadequate or unfairly discriminatory” as authorized in Insurance Law § 4308 (b). In fact, the plain language of subsection (g) suggests otherwise. The Legislature merely referred to the file and use methodology as an “alternate procedure” to the lengthy and costly public hearing process required by subsection (c) of the provision. No mention was made of a new standard for reviewing rates—much less the elimination of the Superintendent’s review authority altogether. And, critically, by its plain terms subsection (g) did not supplant or limit the Superintendent’s authority under subsection (b) to review rates to determine whether they are excessive, inadequate or discriminatory.

Like the statutory language, the legislative history is devoid of any indication that the Superintendent’s power to oversee health insurance rates was being diminished. The purpose of the 1995 legislation was to make health insurance more affordable and available for direct pay consumers (*see* L 1995, ch 504). The legislation created two new standardized health insurance products for these consumers, an HMO plan and a point of ser-

tions and recommendations made previously by the superintendent, as a result of the most recently completed management or financial audit and shall include such findings in any written decision concerning such application.”

vice plan, and mandated that such plans be offered by certain health insurance providers, including Excellus. Governor Pataki, who submitted the reform package as part of his insurance program, stated that the legislation was intended to address problems faced by direct pay consumers, who had “limited choices” in health insurance coverage because most insurers did not offer direct pay policies (Governor’s Approval Mem, Bill Jacket, L 1995, ch 504, at 5). As for those consumers who already had insurance, the Governor observed: “Because of continuing rate increases, this critical coverage is becoming more and more expensive for the existing policyholders” (*id.*).

The streamlined procedure for establishing rate changes was but one aspect of this comprehensive health insurance reform legislation. In discussing the new file and use method, the Governor noted that

“[t]he bill also reforms the costly and time-consuming system for the approval of the premium rates offered by HMOs and Blue Cross Plans on their community-rated business. *At the same time, it also preserves certain consumer protections.* The adoption of a file and use rating methodology for community rated contracts of HMOs and Article 43 corporations with minimum and maximum loss ratios will yield savings in administrative costs, allow appropriate rate increases to be implemented on a more timely basis and also help assure that rates are equitable” (Governor’s Approval Mem, Bill Jacket, L 1995, ch 504, at 6 [emphasis added]).

It appears that the Governor expected the amendment to create an alternative to the costly, time-consuming public hearing prior-approval procedure of subsection (c) while preserving “consumer protections” that would help assure equitable rates. Since the subsection (b) standard provides the framework for assuring such protections for consumers, I am unpersuaded that the file and use procedure was intended to repeal that subsection—particularly since the Legislature could have easily so provided.

Though not a model of clarity, the statute’s provisions can be read together in a manner that gives meaning to each of its terms and effect to the overriding intent of the 1995 legislation. And where a statute’s terms can be harmonized, the canons of statutory construction require that we do so (*see generally, Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals*, 97 NY2d

86, 91 [2001]). While the majority gives great weight to subsection (g)'s "deemed approved" language,¹ this is just one phrase in a lengthy statute. There is no basis to conclude that the "deemed approved" language vitiates the long-standing "excessive, inadequate or unfairly discriminatory" standard set forth in subsection (b). Both subsections can and should be given effect.

As I read the statute, the 1995 amendment offers insurers a more efficient and cost-effective means of securing rate approval. If rate increases fall within the minimum and maximum loss ratios established in subsection (g), the rates are "deemed approved," meaning that insurance providers can collect the new rates from consumers. Thus, under the file and use method, the Superintendent is precluded from requiring insurance companies to submit to prior review or approval by the Insurance Department before rate increases go into effect.² If the Superintendent decides to exercise his review authority under subsection (b) and finds that the rates are excessive, inadequate or discriminatory, the rates may no longer be charged prospectively, although the Superintendent's determination can be challenged in a CPLR article 78 proceeding (as occurred in this case).³ This interpretation of the statute gives effect to all of its terms and is consistent with the history of the reform legislation as a whole and of subsection (g) in particular.

1. In prior cases, this Court has interpreted a statute containing the phrase "deemed approved" in a manner consistent with and appropriate to its context. For example, in *Matter of King v Chmielewski* (76 NY2d 182 [1990]), we rejected the argument that a subdivision application was automatically approved by operation of law 45 days after the public hearing even though Town Law § 276 (4) provided that the application would be "deemed approved" if not acted upon within that period. Instead of reading the phrase "deemed approved" in isolation, we considered it in the context of other relevant provisions of law, declining to adopt a narrow interpretation of the statute that "would be inconsistent with the legislative design" (*id.* at 188; *see also*, *Matter of Sun Beach Real Estate Dev. Corp. v Anderson*, 98 AD2d 367 [2d Dept 1983], *aff'd* 62 NY2d 965 [1984] [Town Law's 45-day "deemed approved" provision must be harmonized with SEQRA's more extended review process]).

2. This confers a significant benefit. For several years after the file and use procedure was adopted, the Superintendent apparently saw no need to exercise his review power at all and providers' rates were not disturbed once filed.

3. Given my reading of the statute, I concur with the majority holding insofar as it annuls the Superintendent's November 2001 letter because it attempted to impose a prior approval requirement on providers who use the subsection (g) file and use procedure. I would also strike that portion of the Superintendent's rate review determination directing retroactive application of the Superintendent's rate modifications.

Excellus' argument that the minimum and maximum loss ratios, used to calculate rates under the file and use procedure, will protect consumers from excessive or discriminatory rates does not withstand scrutiny. In the absence of the Superintendent's intervention, the file and use procedure has produced HMO rates for direct pay consumers that increased 69.3% between 1999 and 2002 (testimony of Gregory V. Serio, Superintendent of Insurance, before the New York State Senate Standing Committee on Insurance, Apr. 15, 2003). The climb in point of service contract rates was even more precipitous: 82.7% during the same time frame (*id.*).

In addition to resulting in exponential rate increases, the file and use procedure has apparently led to divergences in rates from county to county which, according to the Superintendent, are not justified by regional differences in health care costs. While the loss ratios restrict the percentage of rate increase adopted for a particular plan, they do not require that a provider take a uniform approach to rate increases from plan to plan or region to region. Consequently, as long as rate increases fall within the loss ratios, the file and use procedure does not prevent a provider from increasing rates 50% in one county and not at all in the adjoining county. Absent review, a provider could charge divergent rates without justification and compound the differences in the next filing—even if the rates are patently discriminatory.

Left unchecked, the file and use procedure can lead to precipitous rate fluctuations and unjustified regional discrepancies that could thwart the underlying purpose of the 1995 legislation. While the Superintendent retains the authority to order an independent management and financial audit under the majority's reading of the statute, audit review may come too late to meaningfully protect direct pay consumers who must meet premium payments each month. If this class of vulnerable insurance subscribers cannot afford the increased rates, they will drop off the insurance rolls and join the ranks of the uninsured—a result completely contrary to the overriding legislative motivation to increase availability of coverage for direct pay consumers.

The Superintendent has alleged that misuse of the file and use procedure was precisely what prompted him to exercise his review authority to reduce Excellus' rate increases in January 2002. The merits of this determination were never reviewed because the lower courts each concluded that the “deemed ap-

proved” language divested the Superintendent of rate increase review authority. Because I believe the Superintendent retains authority under subsection (b), I would remit this matter to Supreme Court to assess whether the Superintendent’s prospective alteration of Excellus’ rate increases was arbitrary or capricious, i.e., whether the Superintendent rationally concluded that the provider’s rate increases were excessive, inadequate or discriminatory.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT and R.S. SMITH concur with Judge READ; Judge GRAFFEO concurs in part and dissents in part in a separate opinion.

Order affirmed, with costs.

[809 NE2d 1102, 777 NYS2d 794]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMAL
MASSIE, Appellant.

Argued February 19, 2004; decided April 6, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 1, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Renee A. White, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Massie, 305 AD2d 116, affirmed.

HEADNOTE

Crimes — Identification of Defendant — Admissibility of Precluded Evidence upon Opening of Door by Defense

In a robbery prosecution where evidence of a witness's photographic identification and subsequent lineup identification of defendant was inadmissible, Supreme Court was within its discretion in ruling that, if defendant chose to cross-examine the witness about the first identification, the door would be open to evidence of the second. A trial court should decide "door-opening" issues by considering whether, and to what extent, the evidence or argument said to open the door is incomplete and misleading, and what if any otherwise inadmissible evidence is reasonably necessary to correct the misleading impression. Here, defendant wanted to bring out before the jury the suggestive nature of the photographic identification and the witness's initial uncertainty in order to attack the witness's in-court identification of defendant. This tactic would, however, mislead the jury, which would not know that the witness had made a second pretrial identification that was not suggestive.

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By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 995, 996; AM JUR 2d, Evidence §§ 560, 561, 563.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:3235, 172:3236, 172:3245, 172:3247.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 7.1, 9.3.

NY JUR 2d, Criminal Law §§ 1888, 1890, 1898, 1899.

ANNOTATION REFERENCE

Admissibility of evidence of photographic identification as affected by allegedly suggestive identification procedures.
39 ALR3d 1000.

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Database: NY-ORCS

Query: photo! /4 identification /s suggestive! & line-up /p
inadmissible

POINTS OF COUNSEL

Center for Appellate Litigation, New York City (*Jonathan M. Kirshbaum* and *Robert S. Dean* of counsel), for appellant. The trial court violated appellant's due process right to a fair trial when it erroneously held that questioning the eyewitnesses about the circumstances surrounding the photo identification procedures would open the door to admit the constitutionally suppressed lineups as direct evidence of guilt. The admission of the lineups would not have been necessary to rebut any unfair prejudice to the People, and the defense was not seeking to take extraordinary advantage of the fact of suppression. (*Delaware v Van Arsdall*, 475 US 673; *Davis v Alaska*, 415 US 308; *Pointer v Texas*, 380 US 400; *People v Hudy*, 73 NY2d 40; *Chambers v Mississippi*, 410 US 284; *United States v Wade*, 388 US 218; *People v Fernandez*, 82 AD2d 922; *People v Burts*, 156 AD2d 1010; *People v Gonzalez*, 145 AD2d 923, 73 NY2d 1015; *People v Gaddy*, 115 AD2d 658; *People v Mosley*, 110 AD2d 937.)

Robert M. Morgenthau, District Attorney, New York City (*Sylvia Wertheimer* and *Susan Gliner* of counsel), for respondent. Defendant's arguments before the trial court were not made with sufficient specificity to preserve his present claim for appellate review. In any event, the disputed evidentiary ruling was consistent with the balance of values underlying the exclusionary rule. (*People v Mahone*, 206 AD2d 263; *People v Robinson*, 88 NY2d 1001; *People v Waters*, 90 NY2d 826; *People v Reed*, 84 NY2d 945; *People v Davidson*, 98 NY2d 738; *People v Padro*, 75 NY2d 820; *People v Shabazz*, 99 NY2d 634; *People v Melendez*, 55 NY2d 445; *People v Rojas*, 97 NY2d 32; *United States v Gambino*, 59 F3d 353, 517 US 1187.)

OPINION OF THE COURT

R.S. SMITH, J.

The issue here is whether Supreme Court correctly applied the rule that otherwise inadmissible evidence may become admissible where the adverse party has "opened the door" to it by offering evidence, or making an argument based on the evidence, which might otherwise mislead the factfinder (*People v*

Melendez, 55 NY2d 445 [1982]; *People v Rojas*, 97 NY2d 32 [2001]). In this case, a witness to a robbery identified defendant as the robber on two occasions before trial; the prosecution conceded that evidence as to both pretrial identifications was inadmissible. Supreme Court held that, if defendant chose to cross-examine the witness about the first of the two identifications, the door would be opened to evidence of the second. We hold that Supreme Court did not abuse its discretion.

Facts

A McDonald's restaurant was robbed at gunpoint on October 10, 1998. There were three witnesses to the robbery: Alloma Stewart, the cashier, Teodora Castro, the store manager, and Penelope Gamble, a customer.

On October 16, 1998, Stewart and Castro selected defendant's picture from a number of computer images they viewed at the police station. Stewart and Castro viewed the images together, with no police officer present, and discussed their selection of defendant's photograph with each other. Stewart testified at a pretrial hearing that when she first saw defendant's photograph, "it was 50/50, it could have been him, it could have been other people." After she and Castro put a piece of paper on the picture to simulate a cap, visualized defendant with a brown leather jacket, a white T-shirt and facial hair, and compared the photograph to several others, Stewart became "a hundred percent sure it was him." Stewart and Castro reported their selection of defendant's picture to Detective Brian Costello.

Costello subsequently learned that defendant had been arrested on another charge, and was in jail. He obtained a judicial "take-out order" to remove defendant from Rikers Island and place him in a lineup, but he made no attempt to contact an attorney for defendant; the lineup took place on January 24, 1999 with no defense counsel present. Stewart picked out defendant as the robber, as did Gamble, who had not been present at the viewing of the photographs. Castro did not attend the lineup.

Evidence of the photographic identifications was clearly inadmissible (see e.g., *People v Caserta*, 19 NY2d 18 [1966]; *People v Baker*, 23 NY2d 307 [1968]). The prosecution conceded that the absence of counsel at the lineup rendered evidence of the lineup identifications inadmissible also (*People v Coleman*, 43 NY2d 222 [1977]; *People v Sugden*, 35 NY2d 453 [1974]), and consented to an "independent source" hearing (*People v Dodt*, 61 NY2d 408, 417 [1984]). After holding such a hearing,

Supreme Court found that Stewart and Gamble had an independent source for their in-court identifications of defendant, and denied a motion to suppress those in-court identifications.

Following the independent source hearing, defendant's counsel made the strategic judgment that it would do defendant more good than harm if the jury learned about the arguably suggestive viewing of the photographs on October 16—as long as the jury did not also learn about the January 24 lineup. Defendant therefore requested an in limine ruling from the trial judge:¹ “If I were to question Miss Stewart or Miss Castro or bring out the fact that there was that type of identification procedure based on the photographs, would that open up the door to the lineup testimony?” Supreme Court ruled that it would, saying that to inform the jury about the photographic identification and not the lineup would be to give it “incomplete information.” Defense counsel then said that he would not ask any questions that would open the door, and he did not refer to the photographic identification at trial. Defendant was convicted and his conviction was affirmed by the Appellate Division.² A Judge of this Court granted defendant leave to appeal, and we now affirm.

Discussion

The leading case in this Court on “opening the door” is *People v Melendez* (55 NY2d 445 [1982]). That was a murder case in which the key prosecution witness was a man named Marrero. Marrero had previously been a suspect: a “concerned citizen”

1. Defendant was tried twice because his first trial ended in a hung jury. The in limine ruling at issue here was made in connection with the second trial; the judge at the first trial made a similar ruling on a similar application.

2. There is some confusion in the rulings of both Supreme Court and the Appellate Division. Supreme Court referred to “a lineup in which each individually I presume without reference to the other picked the defendant out of a group of similar-looking people.” Thus, the trial judge apparently thought that she was ruling on whether the door was opened to two lineup identifications. Similarly, the Appellate Division memorandum refers to “lineup identifications” in the plural (305 AD2d 116, 116 [2003]). In fact, Castro did not make a lineup identification and Gamble, who did, had no involvement in the viewing of the photographs. Only Stewart was involved in both events, and thus inquiry into the photographic identification could have “opened the door” only to evidence of Stewart's lineup identification, not Gamble's. Defendant did not complain of this apparent confusion below and does not rely on it here. The record indicates that defense counsel was not going to inquire about the viewing of photographs if it opened the door to any testimony about the lineup.

had told the police that both Melendez and Marrero were involved in the crime (*id.* at 449).

The arresting officer who had spoken to the “concerned citizen” testified at trial, but of course did not relate under direct examination the informant’s hearsay statement (*id.* at 448). On cross-examination of the detective, Melendez’s counsel brought out that Marrero “was a suspect” at one point in the investigation (*id.*). On redirect, the prosecutor asked on what basis Marrero was a suspect, and the detective was permitted, over objection, to relate the “concerned citizen[’s]” detailed allegations about both Marrero (who, apparently, the informant had confused with Melendez’s codefendant) and Melendez (*id.* at 449-450).

We held in *Melendez* that the cross-examination had “open[ed] the door” to some, but not all, of the hearsay testimony: it was appropriate for the detective to repeat the statements of the informant about Marrero, showing that the police suspicion of him resulted from mistaken identity, but not the informant’s accusation of Melendez (*id.* at 452-453). Noting that “[t]he extent of redirect examination is, for the most part, governed by the sound discretion of the trial court,” we made the following observations about when, and how far, questions asked on direct examination may open the door to otherwise inadmissible evidence on redirect:

“The ‘opening the door’ theory must necessarily be approached on a case-by-case basis. As a result, this principle is not readily amenable to any prescribed set of rules. (See McCormick, Evidence [2d ed], § 57.) Nonetheless, it does have its limitations. By simply broaching a new issue on cross-examination, a party does not thereby run the risk that all evidence, no matter how remote or tangential to the subject matter opened up, will be brought out on redirect. Rather, the trial court must limit the inquiry on redirect to the ‘subject-matter of the cross-examination [which] bear[s] upon the question at issue.’ (*People v Buchanan*, 145 NY 1, 24, *supra*.) Moreover, the court should only allow so much additional evidence to be introduced on redirect as is necessary to ‘meet what has been brought out in the meantime upon the cross-examination.’ (6 Wigmore, Evidence [Chadbourn rev ed], § 1896, p 737; accord *People v Schlessel*, 196 NY 476, 481, *supra*;

People v Lewis, 18 AD2d 277, 279-280.) . . . and the trial court should normally ‘exclude *all evidence which has not been made necessary by the opponent’s case in reply.*’ (6 Wigmore, § 1873, p 672 [emphasis in original].)” (*Id.* at 451, 452.)

While *Melendez* discussed only the issue of when cross-examination questions open the door to redirect examination, we have employed a similar analysis in deciding other “opening the door” issues. For example, in *People v Rojas* (97 NY2d 32 [2001]), we held that the door was opened to evidence of a prior alleged crime by the defendant, a prison inmate, when he tried to show that his placement in segregation within the prison was a harsh and unjustifiable punishment that led to the conduct for which he was on trial. These cases establish that a trial court should decide “door-opening” issues in its discretion, by considering whether, and to what extent, the evidence or argument said to open the door is incomplete and misleading, and what if any otherwise inadmissible evidence is reasonably necessary to correct the misleading impression.

Following the approach taken in *Melendez* and *Rojas*, we conclude that Supreme Court’s ruling here was within its discretion.³ Defendant wanted to bring out before the jury the suggestive nature of the photographic identifications and Stewart’s initial uncertainty on viewing the photographs.⁴ The point of doing this, of course, was to attack Stewart’s in-court identification of defendant as the robber—specifically, to suggest to the jury that Stewart could not confidently identify him without being helped or coached. Indeed, defendant’s counsel made that suggestion in closing argument at trial even without the help of the photographic identifications: “look at the setting. We’re here in a courtroom. I’m the defense attorney. I’m asking the

3. Defendant contends that the *Melendez/Rojas* approach is unacceptable here, and that a different and stricter rule should be followed, because the evidence to which the door was held to be opened—Stewart’s lineup identification of defendant—was obtained in violation of defendant’s constitutional rights. Defendant did not present this argument to Supreme Court. The issue is not preserved for our review, and we do not address it.

4. Defendant’s counsel, in presenting the motion in limine, detailed for the judge the facts he wanted to elicit: that Stewart was “only fifty percent sure,” that “she and Miss Castro . . . put a piece of paper over his head to simulate the hat . . . and imagine[d] what he would look like in a brown leather coat,” and that “[s]ubsequent to that they looked at a few more photographs, four or five. They imagined a few others with a brown leather coat and a piece of paper over their head[s] and went back to Mr. Massie and made a determination Mr. Massie was the perpetrator of the crime.”

questions. He is sitting next to me. Who else are they going to identify in this courtroom?” If evidence of the photographic identifications, but not the lineup, had been admitted, counsel would have been free to argue that the suggestive in-court identification was preceded by a suggestive viewing of photographs—while the jury remained ignorant that a lineup identification, not in any way suggestive as far as the record shows, occurred between the two.

Supreme Court was well within its discretion in concluding that the course defendant wanted to take would mislead the jury, and that the jury should hear about both of Stewart’s pre-trial identifications, if it heard about either of them. This is not a case where, to use the words of *Melendez*, the prosecution offered evidence that was “remote” or “tangential” to the subject matter the defendant brought up. The lineup evidence would have directly contradicted the impression given by the evidence about the viewing of photographs, that Stewart had always needed help to identify defendant as the robber. Thus Supreme Court had ample basis for concluding that the lineup evidence was “necessary to meet” the evidence defendant proposed to introduce.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order affirmed.

[810 NE2d 393, 778 NYS2d 111]

MARIA N. PELAEZ, as Mother and Natural Guardian of SERVANDO R. PELAEZ and Another, Infants, Appellant, v LAURA SEIDE et al., Defendants, and COUNTY OF PUTNAM et al., Respondents.

ASHLEY HARRIS, an Infant, by Her Mother and Natural Guardian, DEBBIE HARRIS, et al., Appellants, v PHILLIP LLEWELLYN, Defendant, and CITY OF NEW YORK, Respondent.

Argued February 10, 2004; decided March 25, 2004

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 16, 2002. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, Putnam County (S. Barrett Hickman, J.), as had denied defendants County of Putnam and County of Putnam Department of Health's motion for summary judgment, (2) granted the motion, (3) dismissed the complaint insofar as asserted against them, and (4) severed the action against the remaining defendants.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 28, 2002. The Appellate Division affirmed so much of an order of the Supreme Court, Kings County (James W. Hutcherson, J.), which had granted defendant City of New York's cross motion for summary judgment dismissing the complaint as against it.

Pelaez v Seide, 300 AD2d 461, affirmed.

Harris v Llewellyn, 298 AD2d 556, affirmed.

HEADNOTES

Municipal Corporations — Tort Liability — Special Relationship — Lead Paint Poisoning — Violation of Statutory Duty

1. In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through breach of a statutory duty that would render defendants liable for plaintiffs' injuries. A private right of action is not available under the Lead Poisoning Prevention Act (Public Health Law §§ 1370-1376). Although plaintiffs are members of the class to be benefit-

ted by the act, and a private right of action might promote the ultimate legislative purpose of reducing lead paint hazards, creation of a private right of action does not comport with the legislative scheme. The legislation is designed to encourage municipalities to cooperate administratively, while placing the ultimate responsibility for compliance with owners.

Municipal Corporations — Tort Liability — Special Relationship — Lead Paint Poisoning — Voluntary Assumption of Duty

2. In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through assumption of an affirmative duty upon which plaintiffs could justifiably rely that would render defendants liable for plaintiffs' injuries. Although municipal officials had direct contact with plaintiffs that included home visits, testing, and advice, they did not go beyond the mandates of the lead paint laws. Neither municipality took on an affirmative duty to act on plaintiffs' behalf.

Municipal Corporations — Tort Liability — Special Relationship — Lead Paint Poisoning — Assumption of Positive Direction or Control

3. In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through assumption of positive direction or control in the face of a known, blatant, and dangerous safety violation that would render defendants liable for plaintiffs' injuries. Although defendants had personal contact with plaintiffs, they did not take positive direction and control of either situation. The landlords were in immediate control of the abatement process, which was monitored, but never controlled, by defendants. Moreover, defendants' provision of health and hygiene advice did not constitute positive direction and control.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

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AM JUR 2d, Health § 32; AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 84–86, 102–106, 136, 171.

McKINNEY'S, Public Health Law §§ 1370–1376.

NY JUR 2d, Government Tort Liability §§ 12–15, 198; NY JUR 2d, Health and Sanitation §§ 155, 156, 158.

PROSSER AND KEETON, TORTS (5th ed) §§ 36, 53.

ANNOTATION REFERENCE

See ALR Index under Lead Poisoning; Municipal Corporations.

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POINTS OF COUNSEL

Nancy Fairchild Sachs, P.C., New York City (*Nancy Fairchild Sachs* of counsel), for appellant in the first-above entitled action. I. Summary judgment was improperly granted as there exist genuine issues of material fact regarding the applicability of the doctrine of sovereign immunity. (*Rotuba Extruders v Ceppos*, 46 NY2d 223; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Capelin Assoc. v Globe Mfg. Corp.*, 34 NY2d 338; *Cruz v American Export Lines*, 67 NY2d 1, cert denied sub nom. *Bussanich v United States Lines Inc.*, 476 US 1170; *Glick & Dolleck v Tri-Pac Export Corp.*, 22 NY2d 439; *Cohn v Lionel Corp.*, 21 NY2d 559; *Patrolmen's Benevolent Assn. v City of New York*, 27 NY2d 410; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851.) II. A municipality may be held liable for the improper performance of its governmental functions where there exists a special relationship between the municipality and an injured party. (*Cuffy v City of New York*, 69 NY2d 255, 70 NY2d 667; *Garrett v Holiday Inns*, 58 NY2d 253; *Herron v Long Beach Hous. Auth.*, 284 AD2d 499, 97 NY2d 604; *Gibbs v Paine*, 280 AD2d 517, 96 NY2d 714; *Messam v Williams*, 284 AD2d 437; *Valencia v Lee*, 55 F Supp 2d 122, 123 F Supp 2d 666, 316 F3d 299; *Carrero v New York City Hous. Auth.*, 295 AD2d 230; *Curry v Davis*, 241 AD2d 924; *Bargy v Sienkiewicz*, 207 AD2d 606; *Thomas v City of New York*, 180 AD2d 588, 80 NY2d 753.) III. The enforcement of lead paint abatement regulations is not discretionary so as to shield defendants from liability for improper enforcement. (*Curry v Davis*, 241 AD2d 924; *Bargy v Sienkiewicz*, 207 AD2d 606; *Thomas v City of New York*, 180 AD2d 588, 80 NY2d 725; *New York City Coalition to End Lead Poisoning v Koch*, 138 Misc 2d 188, 139 AD2d 404, 170 AD2d 419; *Niesig v Team I*, 76 NY2d 363; *Valencia v Lee*, 55 F Supp 2d 122, 123 F Supp 2d 666, 316 F3d 299; *Klostermann v Cuomo*, 61 NY2d 525; *Tango v Tu-levech*, 61 NY2d 34; *Garrett v Holiday Inns*, 58 NY2d 253.) IV. The Appellate Division erred in granting summary judgment as there exist issues of fact regarding the municipal defendants' misfeasance in carrying out their governmental duties. (*Bernardine v City of New York*, 294 NY 361; *Carroll v City of New York*, 287 AD2d 430; *Persaud v City of New York*, 267 AD2d 220; *Office Park Corp. v County of Onondaga*, 64 AD2d 252, 48 NY2d 765; *Haggarty v Diamond*, 251 AD2d 455, 92 NY2d 814.) V. Summary judgment was improperly granted where a reasonable jury could find that defendants made negligent misrepresentations, upon which plaintiff foreseeably relied to the detriment of

her children. (*Heard v City of New York*, 82 NY2d 66; *International Prods. Co. v Erie R.R. Co.*, 244 NY 331; *Eiseman v State of New York*, 70 NY2d 175.)

Servino Santangelo & Randazzo LLP, White Plains (Anthony J. Servino of counsel), for respondents in the first above-entitled action. I. Since the alleged acts or omissions asserted against the County of Putnam and the Putnam County Department of Health as a basis for liability involve matters which are primarily governmental in nature, the Appellate Division was correct in reversing the lower court decision; these public entities remain immune from negligence claims arising out of the performance of such governmental functions. (*De Long v County of Erie*, 60 NY2d 296; *Florence v Goldberg*, 44 NY2d 189; *Riss v City of New York*, 22 NY2d 579; *Motyka v City of Amsterdam*, 15 NY2d 134; *O'Connor v City of New York*, 58 NY2d 184; *Garrett v Holiday Inns*, 58 NY2d 253.) II. Since plaintiff has not established the existence of a special duty which is created by statute or voluntary assumption by the municipal defendants, the Appellate Division was correct in reversing the lower court decision. (*Cuffy v City of New York*, 69 NY2d 255, 70 NY2d 667; *Shinder v State of New York*, 62 NY2d 945; *Sorichetti v City of New York*, 65 NY2d 461; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Tammaro v County of Suffolk*, 224 AD2d 406; *O'Connor v City of New York*, 58 NY2d 184; *Valencia v Lee*, 55 F Supp 2d 122, 123 F Supp 2d 666, 316 F3d 299; *Kenavan v City of New York*, 70 NY2d 558; *Sheehy v Big Flats Community Day*, 73 NY2d 629; *Gibbs v Paine*, 280 AD2d 517, 96 NY2d 714.)

Northern Manhattan Improvement Corporation Legal Services, New York City (Kenneth Rosenfeld, Matthew J. Chachère and Andrea L. Rodriguez of counsel), for New York City Coalition to End Lead Poisoning and others, amici curiae in the first above-entitled action. The Second Department's decision is contrary to public policy and should be reversed. (*Matter of New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337; *Williamsburg Around the Bridge Block Assn. v Giuliani*, 223 AD2d 64; *New York City Coalition to End Lead Poisoning v Koch*, 138 Misc 2d 188, 139 AD2d 404, 170 AD2d 419, 216 AD2d 219; *New York City Coalition to End Lead Poisoning v Giuliani*, 245 AD2d 49; *Juarez v Wavecrest Mgt. Team*, 212 AD2d 38, 88 NY2d 628; *City of New York v Lead Indus. Assn.*, 190 AD2d 173; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053; *Lauer v City of New York*, 95 NY2d 95; *Crosland v New York City Tr. Auth.*, 68 NY2d 165; *Waters v New York City Hous. Auth.*, 69 NY2d 225.)

Anthony P. Rivizzigno, County Attorney, Syracuse (*Karen A. Bleskowski* of counsel), for County of Onondaga, amicus curiae in the first above-entitled action. For liability to attach a duty must exist. (*Lauer v City of New York*, 95 NY2d 95; *Sheehy v Big Flats Community Day*, 73 NY2d 629; *Arteaga v State of New York*, 72 NY2d 212; *Weiss v Fote*, 7 NY2d 579; *Tango v Tulevich*, 61 NY2d 34; *Chapman v Silber*, 97 NY2d 9.)

O'Connell and Aronowitz, Albany (*Peter Danziger*, *James E. Nixon* and *Mark G. Richter* of counsel), for New York State Trial Lawyers Association, amicus curiae in the first above-entitled action. I. Sovereign immunity is the exception, not the rule. (*Principality of Monaco v Mississippi*, 292 US 313; *Bloom v Jewish Bd. of Guardians*, 286 NY 349; *Runkel v City of New York*, 282 App Div 173; *Motyka v City of Amsterdam*, 15 NY2d 134.) II. The Lead Poisoning Prevention Act was enacted to protect young children. (*Williamsburg Around the Bridge Block Assn. v Giuliani*, 167 Misc 2d 980, 223 AD2d 64; *Juarez v Wavecrest Mgt. Team*, 88 NY2d 628; *New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337.) III. The county failed to tender sufficient evidence to demonstrate the absence of material issues of fact. (*Di Menna & Sons v City of New York*, 301 NY 118; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Zuckerman v City of New York*, 49 NY2d 557; *Friends of Animals v Associated Fur Mfrs.*, 46 NY2d 1065; *Matter of Suffolk County Dept. of Social Servs. v James M.*, 83 NY2d 178; *Blake-Veeder Realty v Crayford*, 110 AD2d 1007; *Rotuba Extruders v Ceppos*, 46 NY2d 223.) IV. The county failed to establish that it exercised "reasoned judgment" as a matter of law. (*Curry v Davis*, 241 AD2d 924; *Bargy v Sienkiewicz*, 207 AD2d 606; *Thomas v City of New York*, 180 AD2d 588, 80 NY2d 725; *New York City Coalition to End Lead Poisoning v Koch*, 138 Misc 2d 188, 139 AD2d 404, 170 AD2d 419; *Haddock v City of New York*, 75 NY2d 478; *Ford Motor Credit Co. v State of New York*, 133 AD2d 980; *Kagan v State of New York*, 221 AD2d 7; *Tango v Tulevech*, 61 NY2d 34; *Boland v State of New York*, 218 AD2d 235; *Weiss v Fote*, 7 NY2d 579.) V. Material issues of fact of a special duty between the municipality and the injured party preclude summary judgment. (*Lauer v City of New York*, 95 NY2d 95; *Haddock v City of New York*, 75 NY2d 478; *Tango v Tulevech*, 61 NY2d 34; *Kagan v State of New York*, 221 AD2d 7; *Boland v State of New York*, 218 AD2d 235; *Garrett v Holiday Inns*, 58 NY2d 253; *Car-rero v New York City Hous. Auth.*, 295 AD2d 230; *Thomas v City of New York*, 180 AD2d 588, 80 NY2d 725; *Bargy v Sienkiewicz*, 207 AD2d 606; *Curry v Davis*, 241 AD2d 924.) VI. There is no

immunity for discretionary acts if the municipality fails to establish that it exercised “reasoned judgment.” (*Haddock v City of New York*, 75 NY2d 478.) VII. Governmental immunity does not apply to proprietary acts. (*Rattray v State of New York*, 223 AD2d 356; *Amadon v State of New York*, 182 AD2d 955, 81 NY2d 701; *D’Avolio v Prado*, 277 AD2d 877; *Canty v New York City Health & Hosps. Corp.*, 158 AD2d 271; *Matter of Karedes v Colella*, 100 NY2d 45; *Sebastian v State of New York*, 93 NY2d 790; *Schrempf v State of New York*, 66 NY2d 289; *Miller v State of New York*, 62 NY2d 506.) VIII. In childhood lead poisoning cases, the balancing of equities does not favor granting municipal immunity as a matter of law. (*Lauer v City of New York*, 95 NY2d 95; *Boland v State of New York*, 218 AD2d 235.)

Athari Law Office, Utica (*Mo Athari* of counsel), amicus curiae in the first above-entitled action. Given that the conduct of the County of Putnam was operational in nature, the infant plaintiffs have raised an issue of fact as to whether a special duty existed to protect the infants from further severe lead poisoning. (*Moch Co. v Rensselaer Water Co.*, 247 NY 160; *Bernardine v City of New York*, 294 NY 361; *Weiss v Fote*, 7 NY2d 579; *Urquhart v City of Ogdensburg*, 91 NY 67; *Riss v City of New York*, 22 NY2d 579; *Messineo v City of New York*, 17 NY2d 523; *Lauer v City of New York*, 95 NY2d 95; *Tango v Tulevech*, 61 NY2d 34; *Garrett v Holiday Inns*, 58 NY2d 253; *Tarter v State of New York*, 68 NY2d 511.)

Fitzgerald & Fitzgerald, P.C., Yonkers (*John M. Daly*, *John E. Fitzgerald*, *Eugene S.R. Pagano*, *Alberto Casadevall* and *Mitchell Gittin* of counsel), for appellants in the second above-entitled action. I. The city assumed a voluntary duty to plaintiffs. (*Sorichetti v City of New York*, 65 NY2d 461; *Bargy v Sienkiewicz*, 207 AD2d 606; *Florence v Goldberg*, 44 NY2d 189; *De Long v County of Erie*, 60 NY2d 296; *Valencia v Lee*, 123 F Supp 2d 666, 316 F3d 299; *Morales v Reyes*, 187 Misc 2d 390; *Juarez v Wavecrest Mgt. Team*, 88 NY2d 628; *New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337; *Kircher v City of Jamestown*, 74 NY2d 251; *Cuffy v City of New York*, 69 NY2d 255.) II. The city violated a law enacted for the benefit of a special class. (*Garrett v Holiday Inns*, 58 NY2d 253; *Van Gaasbeck v Webatuck Cent. School Dist. No. 1*, 21 NY2d 239; *Chapin v City of White Plains*, 104 AD2d 785; *Gibbs v Paine*, 280 AD2d 517, 96 NY2d 714; *Davis v Owens*, 259 AD2d 272, 93 NY2d 810; *Valencia v Lee*, 123 F Supp 2d 666.) III. The city took direction and control of a blatantly dangerous situation. (*Smullen v City*

of New York, 28 NY2d 66; *Valencia v Lee*, 123 F Supp 2d 666; *Henderson v City of New York*, 178 AD2d 129.) IV. The city breached its duty to plaintiffs. (*Heard v City of New York*, 82 NY2d 66; *Sorichetti v City of New York*, 65 NY2d 461.) V. Other courts have imposed municipal liability in similar cases. (*Thomas v City of New York*, 180 AD2d 588, 80 NY2d 753; *Carrero v New York City Hous. Auth.*, 295 AD2d 230; *Bargy v Sienkiewicz*, 207 AD2d 606; *Curry v Davis*, 241 AD2d 924; *Valencia v Lee*, 123 F Supp 2d 666; *Pelaez v Seide*, 300 AD2d 461, 100 NY2d 503; *Rivera v Village of Spring Val.*, 284 AD2d 521; *Herron v Long Beach Hous. Auth.*, 284 AD2d 499, 97 NY2d 604; *Messam v Williams*, 284 AD2d 437; *Gibbs v Paine*, 276 AD2d 743, 280 AD2d 517.) VI. The city is liable for misfeasance. (*Rodriguez v City of New York*, 189 AD2d 166; *Schuster v City of New York*, 5 NY2d 75; *Sorichetti v City of New York*, 65 NY2d 461; *Cuffy v City of New York*, 69 NY2d 255; *Florence v Goldberg*, 44 NY2d 189; *Heard v City of New York*, 82 NY2d 66; *Eiseman v State of New York*, 70 NY2d 175; *Junius Constr. Corp. v Cohen*, 257 NY 393; *Brass v American Film Tech., Inc.*, 987 F2d 142; *Sheridan Drive-In v State of New York*, 16 AD2d 400.)

Michael A. Cardozo, Corporation Counsel, New York City (*Janet L. Zaleon* and *Kristin M. Helmers* of counsel), for respondent in the second above-entitled action. The Appellate Division properly held, as a matter of law, that the evidence was insufficient to establish the existence of a special relationship between plaintiffs and the New York City Department of Health. Thus, the court properly granted summary judgment to the City because, without a special relationship, the City cannot be held liable in negligence for allegedly failing to enforce requirements for lead-paint abatement. (*Gonzalez v 98 Mag Leasing Corp.*, 95 NY2d 124; *Matter of New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337; *Bargy v Sienkiewicz*, 207 AD2d 606; *Sanchez v Village of Liberty*, 42 NY2d 876, 44 NY2d 817; *O'Connor v City of New York*, 58 NY2d 184; *Garrett v Holiday Inns*, 58 NY2d 253; *Rivera v Village of Spring Val.*, 284 AD2d 521; *Messam v Williams*, 284 AD2d 437; *Gibbs v Paine*, 280 AD2d 517, 96 NY2d 714; *Davis v Owens*, 259 AD2d 272, 93 NY2d 810.)

D'Agostino, Krackeler, Baynes & Maguire, P.C., Menands (*Arete K. Sprio* of counsel), for County of Albany, amicus curiae in the first and second above-entitled actions. There exists no liability as against a municipality absent a special relationship. (*Cardona v County of Albany*, 188 Misc 2d 440; *Cuffy v City of*

New York, 69 NY2d 255; *Milliken & Co. v Consolidated Edison Co.*, 84 NY2d 469; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *Moch Co. v Rensselaer Water Co.*, 247 NY 160; *Hamilton v Berretta USA Corp.*, 96 NY2d 222; *Church v Callanan Indus.*, 99 NY2d 104; *Espinal v Melville Snow Contrs.*, 98 NY2d 136; *Herron v Long Beach Hous. Auth.*, 284 AD2d 499; *Newhook v Hallock*, 215 AD2d 804.)

OPINION OF THE COURT

ROSENBLATT, J.

In these two cases, we must decide whether plaintiffs—children injured by exposure to lead paint—may hold a municipality liable in tort based on certain inspection and health counseling services. As a rule, municipalities are immune from tort liability when their employees perform discretionary acts involving the exercise of reasoned judgment. In a narrow exception to the rule, we have upheld tort claims when plaintiffs have established a “special relationship” with the municipality. In the appeals before us, plaintiffs have not made such a showing, and we therefore affirm the dismissal of both complaints against the municipal defendants.¹

I.

Pelaez v Seide

Maria Nancy Pelaez gave birth to twin boys, plaintiffs Christopher and Servando, in January 1994. In November, the family moved into a house on Center Street in Brewster, Putnam County. Defendants Gary and Laura Seide owned the property and employed defendant Peter Glass as caretaker.

Soon after moving in, Christopher and Servando experienced a host of medical problems, including stomach aches, diarrhea and vomiting. Eventually, they underwent blood tests. Servando’s blood lead level tested at 20 micrograms per deciliter (mcg/dl), and his physician notified the County of the results.² On March 2, 1995, Susan Ortiz, a registered nurse who served as Childhood Lead Poisoning Prevention Program Coordinator for the Putnam County Department of Health (PCDOH), learned of Servando’s elevated blood lead level and sent Pelaez an infor-

1. The nonmunicipal defendants are not involved in either of these appeals.

2. Under the Putnam County protocols, children who have blood lead levels at or above 10 mcg/dl are entered into the Health Department case management system.

mational pamphlet about lead poisoning. She also contacted Lawrence Werper, a public health engineer for the PCDOH, so that he could inspect the premises.

In March 1995, Werper visited the home several times to test for lead paint. No one was home on his first visit, but he took paint samples from the outside of the house, and they tested positive for lead. A few days later, Werper tested paint samples from inside the home and determined that the property contained no lead-safe rooms. On March 14, the County issued a notice and demand for discontinuance, ordering abatement by April 7.

Werper visited again on March 29, accompanied by Ortiz. While Ortiz spoke with Pelaez and the children, Werper inspected the premises and saw that abatement had not yet begun. According to Pelaez, Ortiz told her to follow a regimen that would help the children's condition, such as feeding them vegetables, removing the carpet and mopping the floors instead of sweeping them. Ortiz also performed a developmental assessment of the children—in her words, she picked them up and noted that although they were small for their age, they could raise their arms, look at her when she spoke to them, hear her properly and support their own weight. Pelaez stated that Ortiz did not advise her that lead poisoning “was a very dangerous thing,” or suggest that she move her family from the premises.

Ortiz and Werper continued to watch the situation over the next few months. On April 24, Werper returned to the residence and found that abatement was proceeding inadequately. He issued a notice of hearing to the landlord, but later cancelled the hearing when a June inspection showed progress. Although Werper admitted that he did not aggressively press the owners or discuss the dangers of lead poisoning with Pelaez, Ortiz returned to the home in April to make sure that Pelaez was following her instructions. She also sent Pelaez a letter in May 1995, after further testing showed that Servando's blood lead levels dropped to 13 mcg/dl. In the letter, Ortiz applauded the improvement and said that Servando did not need to be retested until September.

Werper reinspected the premises on August 9 and September 14. He determined that abatement was not proceeding well enough and reissued the notice of hearing for October 11, 1995 before a Putnam County administrative hearing officer. At the hearing, the judge ordered defendant Glass to relocate the children immediately.

The children were retested the very next day. Christopher's blood lead level was 50 mcg/dl, and Servando's measured 70 mcg/dl. Recognizing that these levels constitute medical emergencies, Ortiz had the children admitted to the hospital, where they underwent chelation treatment. The day after the children entered the hospital, Werper had the house condemned as unfit for human habitation.

Plaintiffs commenced this personal injury action against the Seides, Glass, Putnam County and its DOH, claiming that the children suffered neurological and behavioral injury based on defendants' negligence and dereliction. The Putnam defendants moved for summary judgment, which Supreme Court denied, determining that there were questions of fact as to the existence of a special relationship.

The Appellate Division reversed and dismissed the complaint against the County defendants, holding that the employees' conduct involved discretion and judgment, which could not result in liability even if their actions were negligent. Further, the Court found that no special relationship existed. It also determined that because the Public Health Law was enacted for the benefit of the general public—and not to protect a special class of persons, such as children—the County violated no statutory duty. Lastly, the Court concluded that plaintiffs did not raise issues of fact that the County voluntarily assumed either a duty to protect the children, or assumed a positive direction or control over the situation.

Harris v Llewellyn

In 1988, Debbie Harris moved to an apartment on Newkirk Avenue in Brooklyn. She gave birth to her daughter, plaintiff Ashley, four years later. In September 1996, Ashley's blood lead level tested at 33 mcg/dl, triggering intervention by the City of New York. A City Department of Health public health advisor (PHA) visited the Harrises at home and provided nutritional and hygienic advice to help lower Ashley's lead levels. Also, a City DOH public health sanitarian (PHS) inspected the apartment using an x-ray fluorescence machine, finding that many painted surfaces in the apartment contained hazardous levels of lead.

In October 1996, City DOH issued an order to abate nuisance, but when a PHS and PHA reinspected the apartment in November, they determined that abatement had not begun. In the meantime, the PHA provided Harris with further nutritional

and hygienic counseling. Later that month, the Harrises temporarily relocated to another apartment while the landlord abated the condition. In January 1997, the landlord told Harris that the process was complete and that she and Ashley could return to the apartment, which they did. On the 17th, a PHS inspected the apartment again. She observed that the landlord appeared to be in compliance and took a single dust wipe sample that tested negative for lead dust. According to Harris, the PHS told her that all lead had been removed from the apartment.

Over the next year, Ashley's blood lead levels remained elevated. In January 1997, she tested at 28 mcg/dl, prompting a PHA to visit Ashley's pediatrician to discuss the situation. The PHA returned to the Harris home in February 1997, noting in his report that the apartment had been fully abated but that Ashley's blood lead levels still remained high. For several months in 1997, Ashley continued to show elevated lead levels, and she eventually entered a lead poisoning treatment program. Ashley's hospital records for these treatments reveal that her mother believed all lead violations had been abated as of January 1997, and that the DOH had personally confirmed the abatement.

In May 1997, the Harrises sued the City and the landlord, alleging negligence and related causes of action. Although Ashley's blood lead levels dropped below 20 mcg/dl³ after November 1997, they hovered in the teens in tests administered through 1998. In September 2000, when plaintiffs had the apartment tested by an independent environmental consulting company, the results revealed that 31 of 45 surfaces tested contained hazardous levels of lead.

In 2001, plaintiffs and the City moved for summary judgment. Supreme Court granted the City's motion, and the Appellate Division affirmed, concluding that the city lead paint regulations protected the general public and not a specific class of persons as needed to establish a special relationship. The Court further held that the City did not undertake a duty to plaintiffs by giving them nutritional and hygienic advice and did not assume positive direction and control of a known hazardous situation. We now affirm in both cases.

3. New York City Health Code (24 RCNY) § 173.13 (d) (2), defines lead poisoning as blood lead levels of 20 mcg/dl or higher.

II.

This Court has recognized lead paint poisoning as a “serious health problem,” especially for young children (*Matter of New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337, 342-343 [2003]). Even at low levels, lead paint poisoning can harm the central nervous system and cause health problems such as impaired growth, hearing loss and limited attention span.⁴ In 1992, the Legislature passed the Lead Poisoning Prevention Act (Public Health Law §§ 1370—1376-a) “to prevent lead poisoning in children and others” (Governor’s Program Bill Mem, Bill Jacket, L 1992, ch 485, at 6). As relevant here, Public Health Law § 1370-a (1) requires the DOH to “exercise any and all authority” to create programs that establish and coordinate activities to prevent lead poisoning and minimize the risk of exposure to lead. Subdivision (2) specifies certain required actions, such as screening for children and pregnant women, monitoring children and pregnant women who have elevated blood lead levels, and the development of public education and community outreach programs on lead exposure, detection and risk reduction (*see* Public Health Law § 1370-a [2] [a]-[d]).

Pursuant to the legislation, Putnam County and New York City have developed programs addressing the problem of lead paint. Putnam County received state approval and funding to establish a Childhood Lead Poisoning Prevention Program (CLPP) and developed a plan to help reduce the prevalence of elevated blood lead levels in children under six years of age. The County drafted guidelines for screening, case management, documentation and reporting, case review and quality assurance. Also, the protocols provide for home visits by a public health nurse. They supply a “home visit packet” that includes questionnaires “used to assess the child for signs and symptoms of lead poisoning,” a nutritional assessment sheet, an environmental source checklist and educational materials for the family.

The County has also produced a worksheet entitled “Prevention is Everyone’s Responsibility,” asking parents of children with lead poisoning to “take the following precautions in your

4. *See* Rechtschaffen, *The Lead Poisoning Challenge: An Approach for California and Other States*, 21 Harv Envtl L Rev 387 (1997); *see also* Jensen, *From Tobacco to Health Care and Beyond—A Critique of Lawsuits Targeting Unpopular Industries*, 86 Cornell L Rev 1334, 1364-1371 (Sept. 2001).

home for your child's safety to help lower his/her blood lead level to normal limits." The worksheet instructs parents, for example, to wash the child's hands frequently, to be sure that their child's diet includes ample iron and calcium, to keep children away from areas being renovated and to clean with a wet mop or rags, rather than a broom or vacuum cleaner.

For its part, the New York City Health Code regulates intervention by the City DOH on behalf of a lead-poisoned child (see 24 RCNY 173.13). As of January 1, 1997, subdivision (d) (2) allows the City DOH to order the abatement of lead paint hazards when "there is a child under 18 years of age with a blood-lead level of 20 micrograms per deciliter or higher residing in any dwelling," and the DOH determines that the lead paint poses a hazard to the child. Before January 1, 1997, this subdivision afforded this protection to "any person," as opposed to just children under age 18 (see *Valencia v Lee*, 123 F Supp 2d 666, 674 [ED NY 2000]).⁵ Against this statutory and regulatory background, we address the issue of municipal liability in damages for alleged negligence.

III.

We are often called upon to determine the existence of a duty in negligence cases. When it comes to municipal liability, we note that 75 years ago the State waived its immunity from liability when it enacted former section 12-a (now section 8) of the Court of Claims Act (see L 1929, ch 467). Although that liability extends to the State's political subdivisions,⁶ it is not absolute.⁷

As we noted in *Lauer v City of New York* (95 NY2d 95, 99 [2000]), "[a] public employee's discretionary acts—meaning conduct involving the exercise of reasoned judgment—may not result in the municipality's liability even when the conduct is negligent." To impose liability, there must be a duty that runs from the municipality to the plaintiff. We have recognized a narrow class of cases in which a duty is born of a special rela-

5. We note that the City recently enacted Local Law No. 1 of 2004, the New York City Childhood Lead Poisoning Prevention Act of 2003 (Proposed Intro No. 101-A), to become effective August 2, 2004.

6. See *Becker v City of New York*, 2 NY2d 226 (1957); *Bernardine v City of New York*, 294 NY 361, 365 (1945).

7. See *Motyka v City of Amsterdam*, 15 NY2d 134 (1965); *Weiss v Fote*, 7 NY2d 579 (1960); see generally Stewart F. Hancock, Jr., Symposium: Municipal Liability, *Municipal Liability Through a Judge's Eyes*, 44 Syracuse L Rev 925 (1993).

tionship between the plaintiff and the governmental entity. When such a relationship is shown—and it is plaintiff’s burden to establish it—the government is under a duty to exercise reasonable care toward the plaintiff (see *Garrett v Holiday Inns*, 58 NY2d 253, 261 [1983]).⁸

A special relationship can be formed in three ways: (1) when the municipality violates a statutory duty enacted for the benefit of a particular class of persons; (2) when it voluntarily assumes a duty that generates justifiable reliance by the person who benefits from the duty; or (3) when the municipality assumes positive direction and control in the face of a known,

8. While the existence of a special relationship depends on the facts, a plaintiff has a heavy burden in establishing such a relationship. As a result, we have dismissed most such claims as a matter of law (see e.g. *Lauer*, 95 NY2d 95 [2000] [complaint dismissed after judgment for plaintiff]; *Merced v City of New York*, 75 NY2d 798 [1990] [complaint dismissed]; *Kircher v City of Jamestown*, 74 NY2d 251 [1989] [summary judgment]; *Cuffy v City of New York*, 69 NY2d 255 [1987] [complaint dismissed after judgment for plaintiff]; *Helman v County of Warren*, 67 NY2d 799 [1986] [summary judgment]; *Yearwood v Town of Brighton*, 64 NY2d 667 [1984] [complaint dismissed after judgment for plaintiff]; *Quinn v Nadler Bros.*, 59 NY2d 914 [1983] [summary judgment]; *O’Connor v City of New York*, 58 NY2d 184 [1983] [complaint dismissed after judgment for plaintiff]; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175 [1982] [summary judgment]; *Malerba v Incorporated Vil. of Huntington Bay*, 54 NY2d 863 [1981] [summary judgment]; *Sanchez v Village of Liberty*, 42 NY2d 876 [1977] [complaint dismissed for failure to state cause of action]; *Pinkney v City of New York*, 40 NY2d 1004 [1976] [affirming dismissal of complaint at close of evidence]; *Evers v Westerberg*, 32 NY2d 684 [1973] [affirming dismissal of complaint against municipality after verdict for plaintiff]; *Bass v City of New York*, 32 NY2d 894 [1973] [affirming dismissal of complaint after judgment for plaintiff]; *Riss v City of New York*, 22 NY2d 579 [1968] [affirming dismissal at close of evidence]; *Motyka v City of Amsterdam*, 15 NY2d 134 [1965] [affirming dismissal of complaint at close of plaintiff’s case]).

In several of the most egregious situations, we sustained judgments for plaintiffs or found questions of fact precluding summary judgment (see e.g. *Mastroianni v County of Suffolk*, 91 NY2d 198 [1997] [reversing grant of summary judgment for defendant]; *Sorichetti v City of New York*, 65 NY2d 461 [1985] [affirming judgment for plaintiff]; *De Long v County of Erie*, 60 NY2d 296 [1983] [affirming judgment for plaintiff]; *Garrett v Holiday Inns*, 58 NY2d 253 [1983] [reversing grant of summary judgment for municipality]; *Florence v Goldberg*, 44 NY2d 189 [1978] [affirming judgment for plaintiff]; *Smullen v City of New York*, 28 NY2d 66 [1971] [reinstating judgment for plaintiff]; *Schuster v City of New York*, 5 NY2d 75 [1958] [reversing dismissal of complaint]; see also *Crosland v New York City Tr. Auth.*, 68 NY2d 165 [1986] [affirming denial of defendant’s summary judgment motion]).

blatant and dangerous safety violation (*see id.* at 261-262). None apply here.⁹

A. Violation of a Statutory Duty

To form a special relationship through breach of a statutory duty, the governing statute must authorize a private right of action. One may be fairly implied when (1) the plaintiff is one of the class for whose particular benefit the statute was enacted; (2) recognition of a private right of action would promote the legislative purpose of the governing statute; and (3) to do so would be consistent with the legislative scheme (*see Sheehy v Big Flats Community Day*, 73 NY2d 629, 633 [1989]). If one of these prerequisites is lacking, the claim will fail. Thus, in *O'Connor v City of New York* (58 NY2d 184 [1983]), we rejected the plaintiff's argument that the City violated a statutory duty by issuing a "blue card" approving a faulty gas piping system that later exploded and killed several people. Although it was obvious that blue card approval should not have been granted, we determined that a private right of action was unavailable. The regulations, we held, were intended to protect the general public—as opposed to a particular class of persons—and plaintiff therefore could not satisfy the first *Sheehy* prong.

In *Uhr v East Greenbush Cent. School Dist.* (94 NY2d 32 [1999]), we noted that the first two *Sheehy* prongs were satisfied, but dismissed the claim based on the plaintiff's failure to satisfy the third prong, requiring that a private right of action be consistent with the legislative scheme. The case involved a student diagnosed with scoliosis who claimed that her school district—which was mandated to administer scoliosis examinations—was negligent in failing to test for the condition. We recognized that the Education Law could be enforced administratively, and that the Legislature's failure to amend the statute and provide for a private cause of action was strong evidence of

9. Other courts, both state and federal, have addressed municipal liability in lead paint cases. Some have held that plaintiffs raised triable issues of fact based on special relationships (*see e.g. Carrero v New York City Hous. Auth.*, 295 AD2d 230 [1st Dept 2002]; *Curry v Davis*, 241 AD2d 924 [4th Dept 1997]; *Bargy v Sienkiewicz*, 207 AD2d 606 [3d Dept 1994]; *Cardona v County of Albany*, 188 Misc 2d 440 [Sup Ct, Albany County 2001]; *see also Valencia v Lee*, 123 F Supp 2d 666 [ED NY 2000], *vacated on jurisdictional grounds* 316 F3d 299 [2d Cir 2003]).

Other courts have granted summary judgment to the municipality because the plaintiffs did not establish a special relationship (*see Gibbs v Paine*, 280 AD2d 517 [2d Dept 2001]; *Ubiera v Housing Now Co.*, 184 Misc 2d 846 [Sup Ct, Bronx County 2000]).

its contrary intent, in light of decisional law denying liability where a school district had failed to administer scoliosis tests.

[1] Given our precedents and the thrust of the Lead Poisoning Prevention Act, we conclude that a private right of action is not available under the statute. Therefore, plaintiffs may not assert a special relationship based on a claimed violation of a statutory duty.

Clearly, plaintiffs meet the first prong, as part of the class to be benefitted. The Lead Poisoning Prevention Act specifically mentions children and pregnant women as the statutory beneficiaries (*see e.g.* Public Health Law § 1370-a [2] [a]). Moreover, the Bill Jacket is filled with references to the protection of children (*see e.g.* Governor's Program Bill Mem, Bill Jacket, L 1992, ch 485, at 12; Mem of Assembly Member Eve, *id.* at 17; Governor's Approval Mem, *id.* at 27). Indeed, the Putnam County protocols list children under the age of six as the class of persons they intend to protect. In New York City, the pertinent regulation (24 RCNY 173.13 [d] [2]) was amended effective January 1, 1997, to apply to children under age 18, and it was during that month the city inspector told the Harrises that the apartment was lead-free.

Creation of a private right of action, however, is not consistent with the legislative scheme, and thus fails under the third *Sheehy* prong. While a private right of action might, at least indirectly, promote the ultimate legislative purpose—reducing lead paint hazards—and thus satisfy the second *Sheehy* prong, it does not comport with the legislative scheme. The enactment contemplates a program of oversight in which the role of government is, in the main, administrative and advisory. Municipalities participate by conducting lead screening, compiling a statewide registry for children with elevated lead levels, and developing public education and community outreach programs (*see* Public Health Law § 1370-a [2]). Insofar as they can compel property owners to abate the nuisance, municipalities have a hand in enforcement (*see* Public Health Law § 1373), but in all, the Public Health Law is best read to assure that owners, not government, bear the ultimate responsibility for compliance.

Opening municipalities to liability for carrying out their duties imperfectly could even disserve the statutory objective by causing municipalities to withdraw or reduce services in dealing with lead paint. Lawsuits are not the only way to deal with the problem. We read the legislative design as encouraging munici-

palities to cooperate administratively, while preserving the tort remedy against owners, when appropriate.

B. Voluntary Assumption of a Duty

Most of our municipal special relationship cases have centered on whether a municipality has assumed an affirmative duty that generated justifiable reliance by the plaintiff. We laid out the test in *Cuffy v City of New York* (69 NY2d 255 [1987]). It requires (1) an assumption by a municipality, through promises or actions, of an affirmative duty to act on behalf of the injured party; (2) knowledge on the part of a municipality's agents that inaction could lead to harm; (3) some form of direct contact between the municipality's agents and the injured party; and (4) that party's justifiable reliance on the municipality's affirmative undertaking (*id.* at 260).

[2] Undisputedly, the officials in both cases had direct contact with the plaintiffs. Their claims fail, however, because neither municipality voluntarily assumed a duty on which plaintiff could justifiably rely. In retrospect, the municipal employees in both cases may have carried out their duties imperfectly, and it surely would have been far better—and the harm perhaps avoided—had the Putnam authorities been more aggressive and the New York officials more thorough. But that is not the test. If it were, municipalities in all their governmental functions would be insurers of the safety of their citizens and be open to liability whenever it can be shown that they could have or should have done better.

The Pelaez plaintiffs argue that the County exceeded its responsibilities and took on affirmative duties by offering advice as to nutrition and hygiene. They also fault the County for eliciting medical information about the children, for promising to conduct reinspections and ensure abatement, and for following up with visits and letters erroneously advising them that it was not necessary to take Servando for testing until September. The Harris plaintiffs similarly argue that the health and hygienic advice provided by the City went beyond the purview of the Public Health Law. We disagree. On this record, we cannot say that in their contacts with plaintiffs either municipality took on an affirmative duty to act on plaintiffs' behalf. Indeed, when dealing with plaintiffs, the officials did not go beyond the mandates of the lead paint laws.

The Public Health Law calls for the inspection and counseling activities undertaken by the municipalities. Public Health

Law § 1370-a (1) directs that lead poisoning prevention programs “be responsible for establishing and coordinating activities to prevent lead poisoning and to minimize risk of exposure to lead.” Further, subdivision (2) (d) mandates the development and implementation of “public education and community outreach programs on lead exposure, detection and risk reduction.” Providing advice on health and hygiene issues is a governmental activity meant “to prevent lead poisoning and to minimize risk of exposure to lead.” It also constitutes education and outreach, thus falling well within the statute.

Moreover, the Putnam County protocols expressly provide for home visits and follow-ups by public health nurses. Thus, Ortiz’s follow-up visit and letter were not over and above the protocols. Indeed, the home visit packet contains a questionnaire “used to assess the child for signs and symptoms of lead poisoning.” The questionnaire includes medically-related queries, such as whether the child exhibits pica, has convulsions, or has problems hearing or speaking clearly. Thus, the developmental assessment was plainly within the protocols. Moreover, any promises by the inspector did not fall outside the inspection and enforcement tasks the statute contemplated.

In light of our holding that the County and City did not voluntarily assume an affirmative duty, we need not address whether the plaintiffs justifiably relied on the County’s and City’s actions.

C. Positive Direction and Control

Lastly, a special relationship may be formed when a municipality assumes positive direction and control in the face of a known, blatant and dangerous safety violation. *Smullen v City of New York* (28 NY2d 66 [1971]) is the prototypical case for this exception. Applying the criterion, we found a special relationship between the municipality and a worker who was killed when a trench collapsed. Before entering the trench, a city inspector, who was in control of the site and had the power to stop work, assured the worker the trench was “solid.” (*Id.* at 69.) Indeed, the trial court instructed the jury that there could be no recovery against the City in the absence of a finding that “the inspector assumed control and direction of the work and that such a conclusion could only be arrived at if it could be found that he gave decedent ‘an order or affirmative instruction to enter the excavation.’ ” (*Id.*) The trench, however, had not been braced or shored as required by regulation. We sustained a

verdict for the plaintiff, “because of the city’s actual knowledge of the dangerous condition and its failure to do anything about it at a time when the inspector was directly on hand as the peril heightened” (*id.* at 71).

[3] Here, however, neither municipality assumed positive direction or control in the face of a known, blatant and dangerous safety violation. The Pelaez plaintiffs argue that the County took control of the situation by failing to inform Pelaez of the dangers of abatement and allowing her to believe that the implementation of health and hygiene measures would protect her children. She also contends that the County promised to perform further inspections and ensure abatement, but instead took no action for several months even though the landlord did not properly comply. Similarly, the Harris plaintiffs argue that the City took control by identifying violations, ordering abatement, providing health and hygiene counseling, and assuring them the apartment was safe, although a later inspection showed that abatement had not been successful.

The record reveals that, although the municipalities had personal contact with plaintiffs, they did not take positive direction and control of either situation. By way of contrast, the city inspector in *Smullen* had the power to prevent the worker from entering the trench, and could have halted the work altogether (*see id.* at 73). We recognize that municipalities have certain enforcement mechanisms at their disposal, such as the ability to issue a notice and demand for discontinuance (*see* Public Health Law § 1373), but property owners must first fail to comply before the municipality can take steps, such as applying for a receivership (*see* Public Health Law § 1374). Here, the landlords, as opposed to the municipalities, were in immediate control of the abatement process and had shown some level of compliance. The municipalities monitored the process and urged it along but did not take control of abatement.

Moreover, providing health and hygiene advice does not constitute positive direction and control. The actions of the officials in both instances were largely advisory. In any event, although they proved insufficient, the suggested measures—implementing certain cleaning procedures and feeding children a diet rich in iron and calcium—cannot be equated with the actions of the city official in *Smullen*.

Unlike the blatant hazard in *Smullen*, the hazard in the Harris apartment had ostensibly been abated, as confirmed by a

private company's inspection in December 1996. Thus, the lead paint hazard would not have been readily apparent.

IV.

In conclusion, we cannot adopt plaintiffs' argument without expanding the boundaries of special relationships under our decisional law. As we stated in *Lauer* (95 NY2d at 100), courts have been cautious about opening the public purse. Of course, the Legislature may extend the orbit of duty, but it has not done so. Most of this Court's special relationship cases have in common that the government is potentially open to liability even though it did not directly cause the plaintiff's injuries. For example, in the police cases (which all but occupy the special relationship field) the police were not directly responsible for the plaintiffs' injuries.¹⁰ Similarly, the fire department in *Helman* (67 NY2d 799 [1986]) did not cause the fire, much as the inspectors in *Garrett* (58 NY2d 253 [1983]) and *O'Connor* (58 NY2d 184 [1983]) did not cause the conflagrations. In this sense municipal responsibility is different from—and a less obvious basis for liability than—instances in which the government employee directly causes the injury, as where a police officer negligently shoots or otherwise injures someone.¹¹

In the special relationship cases we are generally asked to impose liability on the government because it failed to prevent the acts of third persons who are the *primary* wrongdoers. This involves a form of secondary liability which we have restricted, out of respect for the public treasury. While, on occasion, the government's failure to act is so severe as to render it liable, no government could possibly exist if was made answerable in dam-

10. See *Mastroianni*, 91 NY2d 198 (1997); *Merced*, 75 NY2d 798 (1990); *Kircher*, 74 NY2d 251 (1989); *Cuffy*, 69 NY2d 255 (1987); *Sorichetti*, 65 NY2d 461 (1985); *Yearwood*, 64 NY2d 667 (1984); *De Long*, 60 NY2d 296 (1983); *Weiner*, 55 NY2d 175 (1982); *Malerba*, 54 NY2d 863 (1981); *Florence*, 44 NY2d 189 (1978); *Evers*, 32 NY2d 684 (1973); *Bass*, 32 NY2d 894 (1973); *Riss*, 22 NY2d 579 (1968); *Schuster*, 5 NY2d 75 (1958); see also *Shinder v State of New York*, 62 NY2d 945 (1984); *Napolitano v County of Suffolk*, 61 NY2d 863 (1984); see generally 1 Dobbs, Torts § 272, at 728-731 [2001]; 18 McQuillin, Municipal Corporations § 53.04.25, at 193-197; § 53.04.30, at 209-213 [3d ed rev]; Annotation, *Liability of Municipality or Other Governmental Unit for Failure to Provide Police Protection from Crime*, 90 ALR5th 273.

11. See *Jones v State of New York*, 33 NY2d 275 (1973); *Flamer v City of Yonkers*, 309 NY 114 (1955); *Bernardine v City of New York*, 294 NY 361 (1945); see generally Annotation, *Municipality Liability for Personal Injuries Resulting From Police Officer's Use of Excessive Force in Performance of Duty*, 88 ALR2d 1330.

ages whenever it could have done better to protect someone from another person's misconduct. Illustrations (and damages) would be infinite, varying only in the degree of harm. Here, the municipalities are not charged with having caused the lead paint injuries. If that were the case, as where the municipality owned the premises, it would be answerable to same extent as any other owner or landlord.¹²

Accordingly, in each case the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

In each case: Order affirmed, with costs.

12. See e.g. *Miller v State of New York*, 62 NY2d 506 (1984); *Preston v State of New York*, 59 NY2d 997 (1983).

[810 NE2d 405, 778 NYS2d 123]

NEW YORK STATE ASSOCIATION OF NURSE ANESTHETISTS, Respondent, v ANTONIA C. NOVELLO, as Commissioner of Health, et al., Appellants.

Argued February 17, 2004; decided March 30, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 23, 2003. The Appellate Division affirmed an order of the Supreme Court, Albany County (Bernard J. Malone, J.; op 189 Misc 2d 564), which had granted a motion by plaintiff for summary judgment declaring that the Clinical Guidelines for Office-based Surgery promulgated by defendants and published on the New York State Department of Health Web site during December of 2000 were null and void and of no force and effect, and had granted plaintiff a permanent injunction prohibiting the defendants from publishing, distributing, or enforcing the guidelines.

New York State Assn. of Nurse Anesthetists v Novello, 301 AD2d 895, reversed.

HEADNOTE

Parties — Standing — Organizational Standing — Challenge to Clinical Guidelines for Office-Based Surgery

Plaintiff, a not-for-profit corporation representing more than 750 certified registered nurse anesthetists (CRNAs), lacked standing to challenge the Clinical Guidelines for Office-based Surgery issued by the Department of Health. Although plaintiff alleged that the guidelines would effectively prohibit CRNAs from performing anesthesia services in an office-based setting, plaintiff failed to show injury in fact. Its argument that CRNAs would likely be injured was founded on speculation that the guidelines would be rigorously enforced as regulations and that, as such, they would effectively harm CRNAs. While the recommended procedures might affect the employment of CRNAs in physicians' offices, it is not certain that any CRNA would in fact be injured.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Parties §§ 25, 40.

CARMODY-WAIT 2d, Parties §§ 19:9, 19:10, 19:13.

NY JUR 2d, Declaratory Judgments and Agreed Case § 143;

NY JUR 2d, Parties §§ 15, 16.

SIEGEL, NY PRAC § 136.

ANNOTATION REFERENCE

See ALR Index under Nurses and Nursing; Parties.

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POINTS OF COUNSEL

Eliot Spitzer, Attorney General, Albany (Evelyn M. Tenenbaum, Caitlin Halligan, Daniel Smirlock and Peter H. Schiff of counsel), for appellants. I. Plaintiff lacks standing to sue. (*Rudder v Pataki*, 93 NY2d 273; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Colella v Board of Assessors*, 95 NY2d 401; *Matter of New York State Conference of Blue Cross & Blue Shield Plans v Muhl*, 253 AD2d 158; *Matter of Professional Ins. Agents of N.Y. State v New York State Ins. Dept.*, 197 AD2d 258; *Matter of Sun-Brite Car Wash v Board of Zoning & Appeals*, 69 NY2d 406; *Matter of Lasalle Ambulance v New York State Dept. of Health*, 245 AD2d 724, 91 NY2d 810; *Mahoney v Pataki*, 98 NY2d 45; *Matter of MFY Legal Servs. v Dudley*, 67 NY2d 706; *Matter of Gilkes v New York State Div. of Parole*, 192 AD2d 1041.) II. The Department of Health acted within its legislative authority in issuing guidelines recommending an appropriate standard of care for office-based surgery. (*Matter of Roman Catholic Diocese of Albany v New York State Dept. of Health*, 66 NY2d 948; *Matter of Sturman v Ingraham*, 52 AD2d 882; *Matter of Connell v Regan*, 114 AD2d 273; *Matter of New York City Tr. Auth. v New York State Dept. of Labor*, 88 NY2d 225; *Matter of Trustees of Masonic Hall & Asylum Fund v Axelrod*, 174 AD2d 199; *Matter of Sheehan v Ambach*, 136 AD2d 25, 72 NY2d 804; *Spensieri v Lasky*, 94 NY2d 231; *Diaz v New York Downtown Hosp.*, 99 NY2d 542; *Gallo v Linkow*, 255 AD2d 113; *Masucci v Feder*, 196 AD2d 416.)

Boies, Schiller & Flexner LLP, Albany (George F. Carpinello and Martin G. Deptula of counsel), for respondent. I. The guidelines are ultra vires and invalid. (*Smirlock Realty Corp. v Title Guar. Co.*, 63 NY2d 955; *Huntley v State of New York*, 62 NY2d 134; *People v De Tore*, 34 NY2d 199; *Matter of Wood v Axelrod*, 203 AD2d 645; *Clifton Springs Sanitarium Co. v Axelrod*, 115 AD2d 949; *People v Dobbs Ferry Med. Pavillion*, 40 AD2d 324, 33 NY2d 584; *People v Cull*, 10 NY2d 123; *Matter of Mohawk Val. Ambulance Corps v New York State Dept. of Health*, 164 AD2d 968; *Matter of Amsterdam Nursing Home Corp. v Ax-*

elrod, 135 AD2d 331; *Matter of Schenkman v Dole*, 148 AD2d 116.) II. Plaintiff has standing to maintain this action. (*Matter of Dental Socy. of State of N.Y. v Carey*, 61 NY2d 330; *Matter of New York State Assn. of Community Action Agency Bd. Members v Shaffer*, 119 AD2d 871; *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6; *Subcontractors Trade Assn. v Koch*, 62 NY2d 422; *Matter of New York State Nurses Assn. v Axelrod*, 152 AD2d 888; *Community Serv. Socy. v Cuomo*, 167 AD2d 168; *Matter of Save Our Main St. Bldgs. v Greene County Legislature*, 293 AD2d 907; *Matter of Sun-Brite Car Wash v Board of Zoning & Appeals*, 69 NY2d 406; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Rex Paving Corp. v White*, 139 AD2d 176.) III. The guidelines are ripe for judicial review. (*Abbott Labs. v Gardner*, 387 US 136; *Columbia Broadcasting Sys. v United States*, 316 US 407; *Church of St. Paul & St. Andrew v Barwick*, 67 NY2d 510, 479 US 985; *Matter of Dental Socy. of State of N.Y. v Carey*, 61 NY2d 330; *Matter of MacGilfrey v Pugh*, 217 AD2d 888; *Community Hous. Improvement Program v New York State Div. of Hous. & Community Renewal*, 175 AD2d 905; *Matter of New York State Socy. of Obstetricians & Gynecologists v Corcoran*, 138 Misc 2d 591.)

Higgins, Roberts, Beyerl & Coan, PC., Schenectady (Charles J. Assini, Jr., of counsel), and *Squire, Sanders & Dempsey L.L.P.*, Washington, D.C. (Scott T. Kragie of counsel), for American Society of Anesthesiologists and others, amici curiae. I. The Department of Health is not prohibited from issuing guidelines promoting patient safety. II. The guidelines do not require participation by an anesthesiologist.

Nutter, McClennen & Fish, LLP, Boston, Massachusetts (Gene A. Blumenreich and Ronald E. Cahill of counsel), for American Association of Nurse Anesthetists, amici curiae. I. The guidelines limit certified registered nurse anesthetists by effectively requiring participation by an anesthesiologist in office-based practices. II. The guidelines remain unsupported by medical evidence and justification and are contrary to the public interest.

OPINION OF THE COURT

Chief Judge KAYE.

Defendant New York State Department of Health routinely issues guidelines and advisories on a variety of health-related topics. Challenged on this appeal are the Department of Health's "Clinical Guidelines for Office-based Surgery." Plaintiff—a not-

for-profit corporation that represents more than 750 certified registered nurse anesthetists (CRNAs), nurses specially trained to administer anesthesia—seeks a declaration that these Guidelines are null and void because they are in fact regulations and defendants, the Department of Health, Commissioner of Health and Public Health Council, are without authority to regulate services provided in private physicians' offices. We conclude that plaintiff lacks standing to maintain this action and reach no other issue.

The Guidelines

In 1997, defendants created a Committee on Quality Assurance in Office-Based Surgery in order to establish standards of care for the burgeoning, but unregulated, practice of surgeries performed in physicians' offices. In December 2000—with defendants' endorsement—the Committee issued the Guidelines that are the subject of this action.

The stated intent and goal of the Guidelines is to “ensure that the public is adequately protected when undergoing surgery/invasive procedures in private offices of health care practitioners.” The Guidelines include a broad range of recommendations for the qualification of practitioners and staff, equipment, facilities, ancillary services, and policies and procedures for patient admission, monitoring, discharge and emergency care. Most directly relevant to the present litigation, the Guidelines contain specifications regarding anesthesia administered in private offices—from conscious to unconscious/deep sedation and general anesthesia. Among other things, the Guidelines suggest that CRNAs administering anesthesia to patients in doctors' offices be supervised by a physician, dentist or podiatrist who is “physically present, [and] qualified by law, regulation or hospital appointment to perform and supervise the administration of the anesthesia and who has accepted responsibility for supervision.” The Guidelines also recommend that the supervising physician perform a preanesthetic examination, prescribe the anesthesia, remain physically present during the surgery and be “available for diagnosis, treatment and management of anesthesia-related complications or emergencies.”

Shortly before issuance of the Guidelines, plaintiff initiated this action seeking a declaration that the Guidelines are null and void because defendants' authority to regulate surgery is limited under Public Health Law article 28 to hospital settings.

In their motion to dismiss, defendants urged both that the case was not ripe for review and that plaintiff lacked standing to mount this challenge. Assuming standing, Supreme Court denied defendants' motion to dismiss, granted plaintiff summary judgment, and declared the Guidelines null and void as exceeding defendants' authority. The Appellate Division correctly recognized that a grant of relief to plaintiff first requires resolution of the standing issue; explicitly found that plaintiff had standing; and agreed with Supreme Court that the Guidelines are regulations beyond defendants' purview and thus illegal. In opposition to defendants' appeal to this Court as of right under CPLR 5601 (b) (1), plaintiff argued that "[i]t is the statutory issue, *i.e.*, whether the Department of Health exceeded the clear limits of its statutory authority, that is dispositive." We dismissed defendants' appeal as of right (100 NY2d 534 [2003]), granted their motion for leave to determine this issue (100 NY2d 510 [2003]) and now reverse.

Analysis

Standing is, of course, a threshold requirement for a plaintiff seeking to challenge governmental action. The two-part test for determining standing is a familiar one. First, a plaintiff must show "injury in fact," meaning that plaintiff will actually be harmed by the challenged administrative action. As the term itself implies, the injury must be more than conjectural. Second, the injury a plaintiff asserts must fall within the zone of interests or concerns sought to be promoted or protected by the statutory provision under which the agency has acted (*see Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 773 [1991]; *Matter of Colella v Board of Assessors*, 95 NY2d 401, 409-410 [2000]). To establish standing, an organizational plaintiff—such as plaintiff here—must show that at least one of its members would have standing to sue, that it is representative of the organizational purposes it asserts and that the case would not require the participation of individual members. (*See e.g. Rudder v Pataki*, 93 NY2d 273, 278 [1999]; *Matter of Dental Socy. of State of N.Y. v Carey*, 61 NY2d 330, 333-334 [1984]; *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6, 9 [1975].)

Although the Appellate Division determined standing by first looking to "zone of interests," concluding that plaintiff's members fall within the class of individuals protected by the constitutional and statutory provisions that are the basis for suit, we begin our analysis with the critical element of in-fact

injury—the requirement that plaintiff have an actual legal stake in the matter in dispute. Because we conclude that plaintiff has not shown in-fact injury entitling it to challenge defendants’ authority to issue the Guidelines, we need not reach the other components of standing.

The core of plaintiff’s assertion of in-fact injury is that the Guidelines “effectively” require CRNAs to be supervised by anesthesiologists; that physicians would find it cost prohibitive to have both CRNAs and anesthesiologists during surgery; and that the Guidelines therefore “effectively” prohibit CRNAs from performing anesthesia services in an office-based setting. In short, according to plaintiff, the Guidelines “[o]bviously . . . restrict the scope of a CRNA’s area of practice.” Plaintiff’s asserted injury rests on the following extract from the Guidelines:

“Anesthesia should be administered only by a licensed, qualified and competent practitioner. Registered professional nurses (RNs) who administer anesthesia as part of a medical, dental or podiatric procedure (including but not limited to CRNAs) should have training and experience appropriate to the level of anesthesia administered, and function in accordance with their scope of practice. Supervision of the anesthesia component of the medical, dental or podiatric procedure should be provided by a physician, dentist or podiatrist who is physically present, who is qualified by law, regulation or hospital appointment to perform and supervise the administration of the anesthesia and who has accepted responsibility for supervision. The physician, dentist or podiatrist providing supervision should:

- “1. perform a preanesthetic examination and evaluation;
- “2. prescribe the anesthesia;
- “3. assure that qualified practitioners participate;
- “4. remain physically present during the entire perioperative period and immediately available for diagnosis, treatment and management of anesthesia-related complications or emergencies; and
- “5. assure the provision of indicated postanesthesia care.”

The Appellate Division accepted plaintiff's assumption that CRNAs will likely be injured as "reasonable and sufficient to demonstrate a likelihood of actual injury" (301 AD2d 895, 898 [3d Dept 2003]). We conclude, however, that plaintiff's assumption lacks the concreteness required for "injury *in fact*."

Plaintiff's argument that CRNAs will likely be injured is founded on two layers of speculation—that the Guidelines will be rigorously enforced as regulations and that, as such, they will effectively harm CRNAs. At this juncture, it is not at all "obvious" that, even if enforced as regulations, the Guidelines would in fact injure any of plaintiff's members as claimed.

The Guidelines themselves do not explicitly restrict a CRNA's area of practice; nor do they express any intent to do so. Rather, they explicitly provide for the continued employment of CRNAs so long as they have "training and experience appropriate to the level of anesthesia administered." When executing a medical regimen, all nurses—including CRNAs working in a physician's office—already must be supervised "by a licensed physician, dentist or other licensed health care provider legally authorized under this title" (Education Law § 6902 [1]; *see also* 1948 Ops Atty Gen 203 ["a nurse working under a physician, is entitled to administer general anesthesia"]; 48 State Dept Rep 137, 138 [1933] [a nurse does not violate the law if the nurse administers anesthesia "under the direction of a physician"]).

The Guidelines do not require anesthesiologist supervision, and do not prohibit operating physicians from themselves supervising CRNAs as they administer anesthesia. On the contrary, the Guidelines specifically recommend that the minimum number of available personnel during administration of conscious sedation should be two: "the practitioner performing the surgery and the individual monitoring the patient," with analogous recommendations for regional and general anesthesia. Since the Guidelines allow nurses to administer all types of anesthesia, it is clear that the operating doctor can also be the supervising doctor. Furthermore, as defendants point out, the Guidelines recommend that the supervising physician be *qualified by law* to perform and supervise the administration of anesthesia, and a license to practice medicine under Education Law article 131 is the only credential required *by law* to perform a

medical procedure, including the administration of anesthesia.¹ These physicians may, as the Guidelines explicitly suggest, elect to participate in continuing education training in order to maintain high standards of quality.

The recommended procedures might, or might not, actually affect the employment of CRNAs in physicians' offices. At this point, there is no certainty whatsoever that any CRNA would in fact be injured. That some physicians do not routinely or ordinarily perform measures now recommended in the Guidelines (as plaintiff argues) does not mean that physicians could not and would not themselves choose to do so, as opposed to firing CRNAs and hiring anesthesiologists.

Plaintiff's speculation about the future course the Guidelines might take cannot, under our precedents, supply the missing ingredient of in-fact injury. In *Dental Society*, we recognized the standing of an organization of licensed dentists to challenge a Medicaid dental fee reimbursement schedule, where dentist-members receiving reimbursements necessarily suffered actual economic loss from defendants' failure over nearly 20 years to update the schedule. In *Rudder*, by contrast, there was no showing that any member of plaintiff organizations would be deprived of opportunities or entitlements. As we noted in affirming the dismissal of plaintiffs' declaratory judgment action, standing requires a showing of "cognizable harm," meaning that an individual member of plaintiff organizations "has been or will be injured"; "'tenuous' and 'ephemeral' harm . . . is insufficient to trigger judicial intervention" (93 NY2d at 279).

While the record leads us to a different conclusion from the dissent, we are unanimous in our commitment to predictability in the law of standing, starting with the element of in-fact injury.² Consistent with our precedents, we conclude that, on this record, plaintiff has failed to demonstrate an in-fact injury sufficient to meet the first prong of the test for standing. That

1. Defendants do not suggest that the Guidelines are "meaningless" or "redundan[t]" (dissenting op at 219, 220), only that they would not operate as plaintiff projects, underscoring the abstract quality of plaintiff's complaint.

2. Addressing the dissent, we note that standing may indeed be a complicated subject, posing close and difficult issues that divide the Court. Our jurisprudence, however, represents not a black box from which we conjure a desired result, but an effort to articulate, and consistently apply, sound, logical principles that assure that courts' decisions will be neither abstract nor advisory. That may at times mean dismissing a well-intentioned plaintiff who prematurely commences suit, or agreeing with a defendant who, in its briefs, places greater emphasis on other issues.

in the future the hypothesized harm might befall CRNAs does not at this time entitle plaintiff to maintain this action.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the complaint dismissed.

R.S. SMITH, J. (dissenting). The Commissioner of Health has promulgated “Guidelines,” which say that certified registered nurse anesthetists (CRNAs) should provide certain services in connection with office-based surgery only when they are subject to what the Commissioner considers appropriate supervision. Plaintiff, an association of New York CRNAs, challenges the Guidelines, asserting that they are regulations in disguise. I think it is clear that the Guidelines will injure CRNAs’ opportunities for employment, and I therefore dissent from the majority’s conclusion that CRNAs lack standing because they have not shown that the Guidelines will injure them.

The Facts

The pertinent portion of the Guidelines is quoted in full in the majority opinion (majority op at 212). The Guidelines say that, when a CRNA administers anesthesia in an office setting, “[s]upervision . . . should be provided by a physician, dentist or podiatrist who is physically present, who is qualified by law, regulation or hospital appointment to perform and supervise the administration of the anesthesia and who has accepted responsibility for supervision.” The Guidelines go on to itemize five things that the person providing supervision should do, including “perform a preanesthetic examination and evaluation” and “remain physically present during the entire perioperative period.” The majority opinion does not describe the evidence provided by plaintiff of the economic harm that these provisions of the Guidelines will do to its members. This is a striking omission, for plaintiff’s showing of injury is powerful, detailed and virtually un rebutted.

The complaint alleges that the Guidelines change the status quo in several ways that limit what a CRNA can do. The complaint says that CRNAs now commonly work under the supervision of surgeons who are not “qualified . . . to perform the administration of anesthesia,” and that the Guidelines will change this by “effectively requir[ing] the presence of an anesthesiologist [i.e. a doctor specializing in anesthesia] at all office-based surgeries.” The complaint also alleges that the “pre-anesthetic examination and evaluation” are now performed routinely by CRNAs, and that requiring a physician to be pres-

ent during the “entire perioperative period” effectively “necessitates the presence of an anesthesiologist since the surgeon routinely does not directly monitor the patient during the periods before and after the operation.” As a result, according to the complaint, “[b]ecause it is cost-prohibitive for both CRNAs and anesthesiologists to be present during surgery, the [G]uidelines effectively prohibit CRNAs from performing anesthesia services in an office-based setting.”

The allegations of harm in the complaint were amplified in affidavits submitted to Supreme Court. Sandra Tunajek, a CRNA and the Director of Practice of the American Association of Nurse Anesthetists, testified: “I can state unequivocally that the effect of these Guidelines will be to require the presence of an anesthesiologist whenever regional or general anesthesia are administered in the office-based setting.” Tunajek’s affidavit did not merely state this conclusion, but explained the basis for it in detail, dealing first with the impact of the requirement that the CRNA’s supervisor be a “physician, dentist or podiatrist . . . qualified . . . to perform and supervise the administration of the anesthesia.” The gist of her explanation is that most surgeons lack these qualifications, and must hire either an anesthesiologist or a CRNA to administer anesthesia; the Guidelines would effectively force them to choose an anesthesiologist. Tunajek’s testimony on this point is extensive, and I quote it only in part:

“Guideline G (1) (a) specifically requires that the supervising physician must be ‘qualified by law, regulation or hospital appointment to perform . . . the administration of anesthesia.’ Operating physicians who are qualified by law, regulation or appointment to actually *perform* the administration of anesthesia are extremely rare. Most physicians who perform surgery in the hospital, ambulatory surgery or office setting are not qualified to administer anesthesia. These physicians rely upon the expertise of a CRNA or an anesthesiologist, both of whom are trained to administer anesthesia. While operating physicians are qualified to deal with surgical complications, and may have limited knowledge of anesthesia complications, they are not qualified to administer anesthesia.”

In addition, Tunajek testified that, of the five steps which the Guidelines require a physician to perform, “four . . . are

routinely performed by CRNAs or anesthesiologists.” Again, she set forth the basis for her conclusion in clear and persuasive detail, and again I quote only an excerpt, relating to one of the requirements—that of the supervisor’s physical presence:

“[T]he Guidelines require the physician to remain physically present during the entire ‘perioperative period’ and immediately available for management of ‘anesthesia-related complications or emergencies.’ In virtually all surgeries, the operating surgeon does not remain present with the patient during the entire perioperative period. It is the job of the CRNA or the anesthesiologist to remain with the patient to assure that the patient is recovering properly from the effects of the anesthesia. Further, the CRNA or the anesthesiologist is specifically trained to deal with complications or emergencies arising from the administration of anesthesia.”

Again, Tunajek explained, the effect of the Guidelines is to require the presence of an anesthesiologist at office-based surgeries. Tunajek concluded:

“If an anesthesiologist’s presence is compulsory, the CRNA would have no role in the office-based setting. It is simply not economically feasible to have both an anesthesiologist and a CRNA involved in an office-based surgery. Virtually all office-based surgeries conducted throughout the United States involve the presence of a CRNA or an anesthesiologist, not both.”

Plaintiff also submitted the affidavit of an eye surgeon, Kenneth Anthone. Dr. Anthone testified that he and his partner “have routinely used CRNAs since 1994”; that “[n]either I nor my partner consider ourselves to be able to ‘perform’ anesthesia”; and that “[w]e do not remain physically present with the patient during the post-operative period.” Dr. Anthone concluded: “Since there would be no reason to have both a CRNA and an anesthesiologist present during the procedure, and the cost of such duplication of services would be prohibitive, the net effect of the application of the Guidelines to our practice would be the elimination of all positions for CRNAs.”

In defendants’ factual submissions to Supreme Court, their response to all this evidence of harm was virtual silence. Defendants’ answer denied plaintiff’s allegation that the

Guidelines “effectively require [CRNAs] to be supervised by anesthesiologists,” but the more specific allegations of the complaint that I quoted or summarized above were met either with a reference “to the guidelines themselves as the best evidence of their contents” or with a denial of “sufficient knowledge or information to form a basis for responding.”¹ In the affidavits submitted below, defendants presented no evidence on the “injury in fact” issue except one conclusory and ambiguous sentence in the affidavit of Wayne Osten, Director of the Office of Health Systems Management. Osten testified: “The Guidelines do not require anesthesiologist supervision as alleged by plaintiff, and I am aware of no objective information to substantiate plaintiff’s economic concerns.”² Osten added that the Guidelines served worthy goals which “far outweigh potential economic impacts upon [CRNAs]”—thus virtually admitting that such “potential economic impacts” exist.

On this record, the majority concludes that plaintiff has failed to show that CRNAs will be injured by the Guidelines.

Discussion

The majority opinion correctly states the two-part test for determining standing—plaintiff must show “injury in fact” and must also show that the injury is within the “zone of interest” appropriate to confer standing. The first part of the test is of course the easier to satisfy, and common sense suggests that it will be satisfied in most cases. People do not usually spend the time and money to bring lawsuits challenging actions that do not in fact injure them.

Here, as I pointed out above, plaintiff made a powerful factual showing of injury in Supreme Court, and defendants submitted no contrary evidence of substance. But defendants now argue that “injury in fact” is lacking. The gist of their argument is that the Guidelines could not possibly injure CRNAs because the Guidelines, to the extent plaintiff complains of them, are meaningless.

1. As to one paragraph of the complaint (§ 30), defendants’ answer first admitted it in part, and referred the court to the Guidelines as to the remainder; then, later, denied the entire paragraph. The reason for this inconsistency is not apparent.

2. This statement is even less impressive than it appears on its face because of the use of the word “require.” It is defendants’ position that the Guidelines are only recommendations and do not “require” anything. Thus Osten’s statement could be literally true, in his own opinion, even if the Guidelines’ “recommendations” include anesthesiologist supervision.

Defendants claim that the requirement for supervision of anesthesia by “a physician . . . who is qualified by law, regulation or hospital appointment to perform and supervise the administration of the anesthesia” requires only supervision by “a physician” and that the “who is qualified” clause is tautological. Defendants point out that there is no separate legal requirement for the credentialing of an anesthesiologist, and they conclude from this that “all M.D.s are qualified by law to perform anesthesia and therefore qualify under the Guidelines to supervise CRNAs.” Thus, defendants say that “[w]ith respect to physicians, this guideline adds nothing to the parameters of medical practice.” Why the Commissioner would write a guideline that “adds nothing” remains a mystery.³

I find defendants’ reading of this portion of the Guidelines completely unpersuasive. Plaintiff’s evidence shows, and defendants do not dispute, that there are physicians who are not in fact qualified to administer anesthesia. Indeed, one such physician submitted an affidavit to that effect below. To say that all physicians—even those who could not administer anesthesia without endangering a patient’s life—are “qualified by law” within the meaning of the Guidelines because there is no law that *prohibits* them from administering anesthesia strikes me as a bit of verbal cleverness devised by lawyers for litigation purposes.

There is not a hint in the Guidelines themselves, or in the extensive materials submitted to Supreme Court concerning the development of the Guidelines, to the effect that the words “physician . . . who is qualified” were intended as a mere redundancy. On the contrary, an e-mail generated during the drafting of the Guidelines shows that the author of the clause thought it did have meaning: the head of the relevant subcommittee said in the e-mail that, while the words of the Guidelines did not “specify . . . an anesthesiologist,” they implied that “only someone with qualifications as outlined” should supervise

3. Defendants say that the clause requiring a “physician, dentist or podiatrist . . . who is qualified” was included “because the Guidelines also apply to dentists and podiatrists.” This leaves unanswered the question of why the clause was made applicable to physicians. If defendants are correct, the Guidelines should read “by a physician, or by a dentist or podiatrist . . . who is qualified.”

CRNAs. If, as defendants now claim, all physicians have these qualifications, this e-mail does not make sense.⁴

Thus the essential meaninglessness of the “who is qualified” language, as applied to doctors, was apparently first discovered by the lawyers defending this lawsuit.⁵ But it does not really matter whether defendants are right or wrong about the “who is qualified” clause, for defendants do not even attempt to answer plaintiff’s demonstration that CRNAs will be injured by other provisions of the Guidelines. For example, there is uncontradicted proof in the record, quoted above, that a supervising physician does not ordinarily perform “preanesthetic examination and evaluation” and is not present during the “entire perioperative period,” as the Guidelines require. If the Guidelines are implemented, supervising physicians who are not able, or do not choose, to take on these added responsibilities will have to hire anesthesiologists to perform them—making CRNAs superfluous. Defendants nowhere even assert that this is not so.

In short, defendants’ response to plaintiff’s position on the “injury in fact” issue is partly unpersuasive and partly nonexistent. The majority opinion does not remedy any of the deficiencies in defendants’ argument.

The majority says that plaintiff’s claim of injury is founded on “two layers of speculation” (majority op at 213). The first “layer” is “that the Guidelines will be rigorously enforced as regulations”⁶ (majority op at 213). But the question of whether the Guidelines are recommendations or regulations is the question presented by this case on the merits—the question that plaintiff is asking us to decide, and that we are refusing to decide on standing grounds. Plaintiff need not show it would win on the merits in order to establish its standing (*see e.g. Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 780 [1991] [inappropriate to consider the merits in determining standing]; *Matter of Dairy Lea Coop. v Walkley*, 38 NY2d 6, 9 [1975] [same]).

4. I assume that—as the author’s e-mail seems to suggest—some nonanesthesiologists could meet the criteria specified for supervisors in the Guidelines, and that plaintiff’s claim that the Guidelines would require an anesthesiologist at *all* office-based surgeries is therefore overstated. But this does not affect the thrust of plaintiff’s “injury in fact” argument—that the Guidelines will compel many physicians to hire anesthesiologists instead of CRNAs.

5. It will be interesting to see whether, having prevailed on their argument that the language is meaningless, defendants will now interpret it that way in practice.

6. The majority’s reference to “rigorous” enforcement is pure surplusage. CRNAs will be injured if the Guidelines are enforced at all—the “rigor” of the enforcement would affect only the extent, not the fact, of their injury.

The majority's second "layer[] of speculation" is that the Guidelines, if enforced, "will effectively harm CRNAs" (majority op at 213). But to label plaintiff's expectation of harm as "speculation" is simply to ignore the extensive evidence I described above. The majority does ignore this evidence; and it does not analyze either side's argument on the "injury in fact" issue in any detail.

The majority says that it is "not at all 'obvious' that, even if enforced as regulations, the Guidelines would in fact injure any of plaintiff's members as claimed." (Majority op at 213.) It bolsters this remark with a very brief review of the Guidelines, largely ignoring plaintiff's explanations of why the Guidelines are harmful, and swallowing whole, without noting its flaws, defendants' interpretation of the "who is qualified" phrase. The majority also says that physicians who "do not routinely or ordinarily perform measures now recommended in the Guidelines" might "themselves choose to do so, as opposed to firing CRNAs and hiring anesthesiologists" (majority op at 214). There are two answers to this: First, the record shows that the reason most physicians do not themselves perform these "measures" is that most of them are not qualified to perform them; secondly, even if some do choose to perform the tasks themselves, it is most unlikely, based on the evidence in this record, that so few will turn to anesthesiologists that CRNAs will suffer no injury.

The majority's conclusion is agnostic: "The recommended procedures might, or might not, actually affect the employment of CRNAs in physicians' offices." (Majority op at 214.) The majority's reasoning seems to suggest that any doubt about the existence of plaintiff's injury is a sufficient reason to deny standing. I do not think this is, or ever has been, the law—and in any event, for the reasons I have stated, I do not think there is any doubt about the injury to the CRNAs here.

The injury in fact issue here is controlled by *Matter of Dental Socy. of State of N.Y. v Carey* (61 NY2d 330 [1984]), in which an organization of licensed dentists was held to have standing to challenge a Medicaid dental fee reimbursement schedule. The plaintiff alleged, and the record demonstrated, that among its members were some who would receive less compensation because of the inadequate fee schedule; this was enough to show injury in fact. The present case differs only in that the facts relevant to the injury to plaintiff's members are more complicated; the record, as described above, overwhelmingly demonstrates that at least some CRNAs will lose the opportunity for work if the Guidelines are implemented.

The only case cited by the majority as supporting its holding is *Rudder v Pataki* (93 NY2d 273 [1999]). In *Rudder*, an association of social workers and a union of health and human services workers were among the plaintiffs who challenged an Executive Order of the Governor. That order had prevented the Department of Health from instituting a requirement that certain hospital positions be held only by people having a Master's degree in social work (MSW). Some members of the organizational plaintiffs held MSWs, and the Court acknowledged that those members "will not have the benefit of increased job prospects" because of the Executive Order in issue (*id.* at 279). But, the Court said, "this does not mean that any one individual member with an MSW has been or will be injured" (*id.*). The Court concluded that the anticipated injury to the association members was "[a]t best . . . only 'tenuous' and 'ephemeral' " (*id.*).

I admit I find this portion of the *Rudder* opinion difficult to explain; I can no more understand why people holding MSWs were not injured in *Rudder* than I can understand how the CRNAs are not injured here. I believe that *Rudder* was more soundly based on its second alternative holding—that since the organizational plaintiffs represented both social workers with MSWs and social workers without them, "the interests of the organizations . . . are not entirely germane to the relief they seek . . ." (*id.*). In any event, even if it could be shown that *Rudder* rests on a logical error, I would not regard that as justification for being equally illogical in the present case.

I find decisions like the present one, and like the first alternative holding in *Rudder*, to be troubling because they render the law of standing unpredictable. Indeed, I am convinced from a reading of the briefs that no party expected this case to be dismissed on "injury in fact" grounds.⁷ Standing is a complicated subject at best, and there is always the danger that it will become a black box, from which a judicial conjurer can extract the desired result at will. I do not say that any such thing has happened in this case; but I do say that such things have happened before, and will probably happen again. Today's decision can only increase that unfortunate likelihood.

7. Defendants' "injury in fact" argument is not only extremely weak, as I pointed out above; it is presented in perfunctory and unenthusiastic fashion. Though "injury in fact" is logically a threshold issue, defendants do not discuss it until after a lengthy argument on the "zone of interests" issue. They then devote three pages of their 46-page brief to "injury in fact."

Because I am convinced that injury in fact is present and because I believe that CRNAs are within the “zone of interests” protected by the statutes and legal doctrines plaintiff is seeking to enforce (*see Dental Socy.*, 61 NY2d 330 [1984]), I would hold that plaintiff has standing to maintain this action. Since the majority concludes otherwise, the merits of the action are moot, and I do not address them.

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur with Chief Judge KAYE; Judge R.S. SMITH dissents in a separate opinion.

Order reversed, etc.

[809 NE2d 1106, 777 NYS2d 798]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY A. LEWIS, Appellant.

Argued February 18, 2004; decided April 6, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order (treated as an appeal from two orders) of that Court, entered May 2, 2003. The orders affirmed two judgments of the Steuben County Court (Marianne Furfure, J.), rendered upon jury verdicts, that had convicted defendant of criminal possession of a controlled substance in the fourth degree, criminal possession of a controlled substance in the third degree (two counts), and criminal sale of a controlled substance in the third degree.

People v Lewis, 305 AD2d 993, reversed.

People v Lewis, 305 AD2d 996, reversed.

HEADNOTE

**Crimes — Right to Counsel — Effective Representation —
Counsel's Testimony against Defendant at *Sirois* Hearing**

Defendant was denied effective assistance of counsel when his counsel testified against him at a *Sirois* hearing. When the prosecution expressed its intention to call defendant's counsel as a witness, he should have objected and raised the potential conflict. By giving testimony against his client without protest, defense counsel crossed the line, and a new trial was required.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1223–1227.

CARMODY-WAIT 2d, Criminal Procedure § 172:1881.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 11.9.

NY JUR 2d, Criminal Law § 882.

ANNOTATION REFERENCE

See ALR Index under Attorney or Assistance of Attorney.

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POINTS OF COUNSEL

D.J. & J.A. Cirando, Syracuse (*John A. Cirando, Lisa M. Cirando, Susan R. Rider and Mickelle A. Olawoye* of counsel), for

appellant. I. The *Sirois/Hellenbrand* ruling was improper. (*People v Geraci*, 85 NY2d 359; *People v Green*, 78 NY2d 1029; *People v Gonzalez*, 54 NY2d 729; *Matter of Holtzman v Hellenbrand*, 92 AD2d 405; *United States v Thai*, 29 F3d 785, 513 US 977; *United States v Aguiar*, 975 F2d 45; *United States v Potamitis*, 739 F2d 784, 469 US 918; *United States v Mastroangelo*, 693 F2d 269, 467 US 1204; *Steele v Taylor*, 684 F2d 1193, 460 US 1053; *United States v Thevis*, 665 F2d 616, *cert denied sub nom. Evans v United States*, 456 US 1008.) II. The search warrant was defective and its execution improper. (*People v Taylor*, 73 NY2d 683; *People v Davis*, 36 NY2d 280, 423 US 876; *People v Hanlon*, 36 NY2d 549; *People v Fino*, 14 NY2d 160; *People v Bigelow*, 66 NY2d 417; *People v Harper*, 236 AD2d 822, 89 NY2d 1094; *People v Coles*, 275 AD2d 995, 95 NY2d 962; *People v Migenis*, 167 AD2d 956, 77 NY2d 880; *People v Griminger*, 71 NY2d 635; *Aguilar v Texas*, 378 US 108.) III. The evidence was not sufficient to support the jury's verdict. (*People v Bleakley*, 69 NY2d 490; *People v Blake*, 5 NY2d 118; *People v Harris*, 306 NY 345; *People v Way*, 59 NY2d 361; *People v Benzinger*, 36 NY2d 29; *People v Cleague*, 22 NY2d 363; *People v Manini*, 79 NY2d 561; *People v Francis*, 79 NY2d 925; *People v Pearson*, 75 NY2d 1001; *People v Diaz*, 112 AD2d 311.) IV. Appellant was denied the effective assistance of counsel. (*People v Rivera*, 71 NY2d 705; *People v Robinson*, 71 AD2d 1008; *People v Baldi*, 54 NY2d 137; *People v Harris*, 131 AD2d 142; *People v Session*, 34 NY2d 254; *Strickland v Washington*, 466 US 668; *People v Salters*, 20 AD2d 731; *People v Hobot*, 84 NY2d 1021; *People v Benn*, 68 NY2d 941; *People v Bennett*, 29 NY2d 462.) V. Officer Palmer's expert testimony was improper, and served to impermissibly bolster the People's case. (*De Long v County of Erie*, 60 NY2d 296; *People v Cronin*, 60 NY2d 430; *People v McCart*, 157 AD2d 194; *Kulak v Nationwide Mut. Ins. Co.*, 40 NY2d 140; *People v Wright*, 283 AD2d 712, 96 NY2d 926; *People v Brown*, 97 NY2d 500; *People v Benedetto*, 294 AD2d 958; *People v Becraft*, 177 AD2d 945, 79 NY2d 853; *People v Jackson*, 124 AD2d 975; *People v Crimmins*, 36 NY2d 230.)

John C. Tunney, District Attorney, Bath, for respondent. I. The court's *Sirois/Hellenbrand* ruling was correct. (*People v Cotto*, 92 NY2d 68; *People v Geraci*, 85 NY2d 359; *People v Brown*, 95 NY2d 942; *People v Berroa*, 99 NY2d 134.) II. The search warrant was properly issued. (*People v Parris*, 83 NY2d 342; *People v Kirby*, 168 AD2d 981; *People v Doyle*, 222 AD2d 875; *People v Carpenter*, 213 AD2d 747; *People v Allen*, 209 AD2d 425; *People v Delarosa*, 215 AD2d 496; *People v Boatswain*, 210

AD2d 798; *People v Letendre*, 94 NY2d 939.) III. The search warrant was properly executed. (*People v Villanueva*, 161 AD2d 552; *People v Givens*, 21 NY2d 929; *People v Brown*, 96 NY2d 80; *People v Rivas*, 214 AD2d 996.) IV. The verdict was supported by sufficient evidence. V. Defendant received meaningful representation. (*People v Alfinito*, 16 NY2d 181; *People v Dunn*, 155 AD2d 75, 77 NY2d 19; *People v Kellar*, 213 AD2d 1063; *People v Biller*, 270 AD2d 883; *People v Harris*, 99 NY2d 202; *People v Ming Li*, 91 NY2d 913; *People v Paperno*, 54 NY2d 294.) VI. The receipt of expert testimony was appropriate. (*People v Brown*, 97 NY2d 500; *People v Wright*, 283 AD2d 712; *People v Edwards*, 273 AD2d 249; *People v Gaynor*, 257 AD2d 494, 93 NY2d 970; *People v Rivera*, 209 AD2d 151; *People v Garcia*, 196 AD2d 433, 83 NY2d 817; *People v Crimmins*, 36 NY2d 230.)

OPINION OF THE COURT

ROSENBLATT, J.

On this appeal, we reverse defendant's conviction because his attorney testified against him at a *Sirois* hearing (see *Matter of Holtzman v Hellenbrand* [*Sirois*], 92 AD2d 405, 415 [2d Dept 1983]).

I.

Defendant was indicted for possessing and selling controlled substances. The charges were based, in part, on the seizure of drugs and paraphernalia pursuant to a search warrant covering defendant's premises. In addition to the seized evidence, the People planned to introduce testimony from a witness who had bought cocaine from defendant and returned to the premises when the police executed the warrant. The witness signed a statement to that effect.

Shortly after jury selection, the prosecution furnished the defense with a copy of the statement. Within an hour, the witness received a threatening telephone call. The following day, the witness contacted the police and reported that he had been threatened and would not testify. The prosecution brought this to the attention of the court, asserting that defendant was out on bail and behind the threats. The People argued that by threatening the witness, defendant had forfeited his right of confrontation (see *People v Cotto*, 92 NY2d 68, 76 [1998]; *People v Geraci*, 85 NY2d 359, 366 [1995]) and that the witness's statement should therefore be revealed to the jury. In response,

defendant's attorney denied that his client was involved in any witness intimidation. He said he had shared the statement with defendant because he wanted defendant to know of it, but that defendant responded indifferently, dismissing the statement as too recent and unreliable to be of any concern.

To test the People's claim, the court began a *Sirois* hearing. The prosecutor called a State Police investigator, who testified that he spoke with the witness. The witness told the investigator that he received a call from an unknown male, telling him he had better not testify, adding that he knew where the witness and his family lived. The threat served its purpose; the witness said he would rather go to jail than testify. With that, the prosecution rested. Defendant then took the stand and acknowledged that his attorney had shown him the statement. He denied, however, conveying or arranging for any threats to the witness. He said he told only one person, "[m]y friend Dale over there," about the witness's statement, but did not reveal who the witness was (implying that Dale could not have made the threat because he would not know whom to threaten). Defendant added that the statement was "bogus" and did not worry him.

Both sides told the court they had no other witnesses. The prosecutor then asked to call defendant's attorney to the stand. Counsel did not object, nor did the court suggest that there was anything improper about the People calling defendant's attorney as a witness against defendant. The prosecutor asked defendant's attorney: "Did you tell anybody other than [defendant] about this statement, that is the, either the identity of the declarant or the substance of the statement?" Defendant's attorney answered no. With that testimony, the prosecution sought to enhance the circumstantial proof against defendant by showing that only defendant was aware of the statement (his attorney testified he told no one else) and therefore was obviously the author of the threats. The prosecutor pointed out that no one other than defendant and his friend knew of the statement and only defendant had something to gain by either delivering or arranging for the threat. The court agreed, placed the blame for the threats at defendant's doorstep and ruled the witness's statement admissible.

After a jury found defendant guilty, a divided Appellate Division affirmed defendant's conviction (305 AD2d 993 [2003]). A dissenting Justice of that Court granted leave to appeal. Defendant challenges his conviction on several grounds. He asserts

that the search warrant was not based on probable cause and that it was executed improperly. He also contends that the proof at the *Sirois* hearing was insufficient as a matter of law for the trial court to have concluded that defendant was responsible for the threat. While we reject these contentions, we agree with defendant, and with the Appellate Division dissenters, that because he was denied effective assistance of counsel, his conviction must be reversed, requiring a new trial.

II.

In reaching this result, we need look no further than *People v Berroa* (99 NY2d 134 [2002]). There, two defense witnesses testified that the defendant was in Philadelphia when the crime was committed. The prosecutor objected because the defense had not served an alibi notice. In response, the defendant's attorney stated that the alibi testimony came as a surprise to her as well. Perceiving a problem, the court and the parties discussed the undesirable possibility of the defendant's attorney being called as a witness to refute the alibi. Confronted with the dilemma, the defendant's attorney stipulated, before the jury, that when she spoke with the witnesses, neither said anything about the defendant's having been in Philadelphia at the time of the crime. In reversing the defendant's conviction, we held that he was denied effective assistance of counsel. The stipulation, we determined, converted the defendant's attorney into a defense witness who undermined the defendant's other witnesses.

Here, in effect, much the same happened. Instead of stipulating, defendant's attorney testified adversely to his client and thereby transformed himself from defendant's advocate into his adversary. Because defense counsel's testimony was in conflict with defendant's position, defendant was denied effective representation. As we pointed out in *Berroa*, attorneys should withdraw when called to testify against their client on a significant issue.¹ When the prosecution expressed its intention to call defendant's lawyer as a witness, the lawyer should have ob-

1. See Code of Professional Responsibility DR 5-102 (d) (22 NYCRR 1200.21 [d]); *People v Paperno*, 54 NY2d 294, 299-300 (1981); Prince, Richardson on Evidence § 6-114, at 324 (Farrell 11th ed).

jected²—or the court itself should have interceded—and raised the potential conflict.

As we stated in *Berroa*, “when a lawyer is called to testify against the client’s interest the conflict is obvious” (99 NY2d at 140). Here, had the court or the defense attorney pointed out the potential conflict, the prosecutor would have disclosed that he wanted testimony from defendant’s attorney to close the circumstantial loop and prove that only defendant knew of the statement and the identity of the witness. Because counsel’s testimony, however, went unprotested, the prosecutor was able to make his point and, with the help of defense counsel, prevail at the *Sirois* hearing. Our dissenting colleagues agree that the prosecution should not have been permitted to call defendant’s attorney as a witness at the *Sirois* hearing but would, at most, order a new *Sirois* hearing. In our view, a new trial is also required because defense counsel crossed the line when, without protest, he gave testimony against his client. True, the testimony was an addendum to the informal remarks he made earlier, but by testifying, he became a witness for the prosecution. We agree with the dissenters that the testimony was neither earth-shattering nor insignificant (dissenting op at 231). That being so, it is inapt for us to weigh the importance of the testimony and draw fine distinctions as to where on the spectrum of harm it falls. If, as we all agree, the attorney’s testimony had at least some significance, it was enough to rupture the attorney-client relationship not only for the *Sirois* hearing but for the balance of the trial itself. Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

R.S. SMITH, J. (dissenting). I agree that the prosecutor should not have been permitted to call defense counsel as a witness at the *Sirois* hearing. I do not agree, however, that the error deprived defendant of the effective assistance of counsel at the *Sirois* hearing. And even if it did, I see no basis for requiring a new trial, as opposed to a new *Sirois* hearing. I therefore dissent.

The majority opinion states the facts fairly, but I will reemphasize some of them, because I think it is important to understand that Supreme Court, and both counsel, were dealing

2. Where the failure to object is the basis for a claim of ineffective assistance of counsel, that claim, by its very nature, will ordinarily be made for the first time on appeal (see *People v Jones*, 55 NY2d 771, 773 [1981]).

with an issue of great importance and urgency; and that facts within the knowledge of defense counsel were relevant to that issue. The prosecution claimed that defendant had threatened physical violence against a witness and the witness's family—a charge which, if true, called for swift action to protect the integrity of the trial. The prosecutor sought not only the admission into evidence of the witness's written statement, but defendant's immediate incarceration. Supreme Court was obviously correct in proceeding at once to a hearing to decide the truth or falsity of the charge. This was not a matter that would wait.

No one suggested that defense counsel had any culpable involvement in the alleged threat to the witness, but it was alleged that the threat followed within an hour and a half after the prosecution gave defense counsel the witness's name. The prosecutor said: "I believed I noticed [defense counsel] and Mr. Lewis in one of the conference rooms. . . . It is my belief that [defense counsel] would have talked to his client about . . . [the witness's] statement. . . . [O]ther than [defense counsel] and Mr. Lewis, to my knowledge, no one else other than [the witness] knew about this statement."¹ The inference the prosecutor asked the court to draw was that defense counsel had given the information to the client and the client had misused it. An inquiry into the prosecutor's allegation had to touch on facts within defense counsel's personal knowledge.

Defense counsel did not have to say anything about his communications with his client, of course; but he decided to disclose the facts as he knew them. He made an informal and unsworn representation in open court, without any objection from the prosecutor, to the effect that he had told his client about the witness and that the client had been completely unperturbed. On this basis, he argued that there was no reason to believe his client was the source of the threat. This was not an overwhelmingly persuasive argument, but I do not think defense counsel can be criticized—and the majority does not criticize him—for making the argument, or for making the factual disclosure on

1. The dissent in the Appellate Division states that by his remarks the prosecutor "[i]n effect . . . became a witness at the *Sirois* hearing" and should have been disqualified (305 AD2d 993, 996 [2003]). I disagree. The prosecutor's statement was merely an explanation of why he was requesting a *Sirois* hearing. The evidence on which the prosecutor relied at the hearing was the testimony of a police officer. The consequences for the efficient conduct of trials will be severe if every prosecutor who makes factual representations outside the jury's presence to explain the basis for an application to the court must be disqualified as a "witness."

which it was based. Counsel was doing his best, under difficult circumstances, to present his client to the court as an innocent man with nothing to hide.

The *Sirois* hearing then proceeded. A police officer described the witness's report of a threat, and defense counsel called defendant, whose testimony was consistent with the representations made earlier by defense counsel. Defendant also testified that he had nothing to do with any threat. The prosecutor then called defense counsel and asked him a single question—whether he had told anyone other than defendant about the identity of the witness or the substance of the witness's statement. Defense counsel answered no.

Since neither defense counsel nor the court questioned the calling of defense counsel as a witness, the record does not show the prosecutor's grounds for seeking this departure from normal procedure. It is possible to construct an argument for what was done, however: since defense counsel had already made factual representations favorable to his client's cause, it was arguably unfair to let him withhold a less favorable fact; the question the prosecutor asked was relevant, and did not invade the attorney-client privilege; defense counsel's testimony took place outside the presence of the jury; and it was extremely brief.

The majority implicitly holds, and I agree, that this argument should not prevail. Code of Professional Responsibility DR 5-102 (d) (22 NYCRR 1200.21 [d]) provides:

“If after undertaking employment in contemplated or pending litigation, a lawyer learns or it is obvious that the lawyer or a lawyer in his or her firm may be called as a witness on a significant issue other than on behalf of the client, the lawyer may continue the representation until it is apparent that the testimony is or may be prejudicial to the client at which point the lawyer and the firm must withdraw acting as an advocate before the tribunal.”

The rule appears to say that an attorney must *always* withdraw as soon as it is apparent that he must give testimony on a significant issue that is prejudicial to his client. The testimony here was not earth-shattering, but it cannot be called insignificant, and such impact as it had was prejudicial to counsel's client. Withdrawal was an undesirable solution: it would have caused delay, both in the resolution of the witness-intimidation issue and in the trial itself, and it would have com-

pelled appellant to proceed with a lawyer who arrived on the scene in midtrial. The appropriate course here was to get along without the attorney's testimony if possible—and it was possible. The single word of testimony the attorney gave was relevant, but it was not vital to a resolution of the witness-intimidation issue.²

For this reason, it is my view that defense counsel should have objected when the prosecutor sought to call him as a witness, and Supreme Court should have sustained the objection. But no objection was made, and therefore no error is preserved for our review unless, as the majority holds, the error deprived defendant of his constitutional right to the effective assistance of counsel—a deprivation which is not, for obvious reasons, subject to the rule that it is waived when counsel does not object. (See *People v Jones*, 55 NY2d 771, 773 [1981].)

What occurred here does not come close to “ineffective assistance” in the ordinary sense. Ordinarily, ineffective assistance occurs only where counsel has not provided “meaningful representation.” (*People v Hobot*, 84 NY2d 1021, 1022 [1995]; *People v Baldi*, 54 NY2d 137, 147 [1981].) Even where counsel is subject to a conflict of interest, prejudice—a necessary ingredient of ineffective assistance—“is presumed only if the defendant demonstrates that counsel ‘actively represented conflicting interests’ and that ‘an actual conflict of interest adversely affected his lawyer’s performance.’ ” (*Strickland v Washington*, 466 US 668, 692 [1984] [quoting *Cuyler v Sullivan*, 446 US 335, 350 (1980)].)

The majority does not suggest that these tests are met here, but relies entirely on *People v Berroa* (99 NY2d 134 [2002]). The majority apparently reads *Berroa* as creating a per se rule that, wherever a defendant's attorney is the source of facts adverse to his or her client, the client has been deprived of effective assistance. The majority reads *Berroa* too broadly.

The error in *Berroa* was much more serious than the error here, for two reasons: (1) in *Berroa*, the attorney became, in ef-

2. There is no need to consider here whether, in an extreme case, an exception might be made to the rule that an attorney must withdraw if he must give testimony prejudicial to his own client. Certainly, such exceptions should be rare if they exist at all. But it might be possible to imagine a case in which the need for the attorney's testimony was so compelling, the consequences of disqualifying the attorney so disastrous, and the prejudice to his client from the testimony so slight, that an exception to the rule could be made. This is not such a case.

fect, a witness before the jury on an issue touching her client's guilt or innocence; and (2) in *Berroa* the only facts the attorney provided were adverse to her client. Here, at a hearing outside the presence of the jury on a collateral issue, defense counsel was permitted to make factual representations in support of his client's cause, and then was required to answer a single question which served to place his representations in context. There was, as I have pointed out above, a legitimate argument that could have been made for requiring defense counsel to testify. Under these circumstances, I do not find that requiring him to testify was so gross a deviation from acceptable practice as to render his assistance to his client at the *Sirois* hearing "ineffective."

But even if the majority is correct on that issue, I see no basis for holding that the "ineffective assistance" that the majority finds tainted not only the *Sirois* hearing, but the whole trial. The testimony defense counsel gave was out of the jury's presence and had nothing to do with any issue the jury considered. The jury presumably never knew that defense counsel had taken the stand. I find nothing in the record to suggest that defense counsel became a less effective advocate after his testimony. He presented a competent, aggressive defense throughout the trial.

I can only surmise that the majority believes that counsel became ineffective at trial because it thinks the relationship between counsel and his client was irretrievably damaged when counsel became a witness. Since there is no evidence in the record of any damage to the relationship, and since the majority does not direct a hearing on the issue, the majority seems to be creating another per se rule—that no attorney-client relationship can survive an attorney's testimony against his client, no matter how brief and no matter what the circumstances.

I see no justification for such a rule, which reflects a tenderness toward the attorney-client relationship quite at odds with the approach taken in a number of other cases. This Court has held that the relationship may survive where a defendant's attorney informs the court that defendant perjured himself (*People v DePallo*, 96 NY2d 437 [2001]); where an attorney, seeking to support an insanity defense, testifies that his client has confessed to prior murders (*People v Baldi*, 54 NY2d 137 [1981]); where defendant's attorney had previously represented the chief prosecution witness (*People v Lombardo*, 61 NY2d 97 [1984]); and where the attorney had simultaneously represented an informer who turned out to be providing information about the

defendant (*People v Harris*, 99 NY2d 202 [2002]). It seems plain to me that the impairment of the attorney-client relationship here did not exceed, or even equal, the impairment in the cases I have just cited, and therefore I do not see any reason why defense counsel in this case could not continue to represent appellant at the trial.

In sum, I conclude that appellant was not deprived of effective assistance of counsel. Since I believe that the evidence of his involvement in the threat to the witness was sufficient under the applicable legal standard and that his other claims of error are insubstantial, I dissent from the reversal of his conviction.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK and GRAFFEO concur with Judge ROSENBLATT; Judge R.S. SMITH dissents in a separate opinion in which Judge READ concurs.

Order reversed, etc.

[810 NE2d 415, 778 NYS2d 133]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY
JONES, Appellant.

Argued February 19, 2004; decided April 6, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 10, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Sheldon Greenberg, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Jones, 302 AD2d 476, affirmed.

HEADNOTE

Crimes — Identification of Defendant — Lineup Conducted after Arrest of Defendant in Violation of *Payton* — State Constitution

In a robbery prosecution where a lineup was conducted after police arrested defendant at his residence without a warrant or consent to enter, in violation of *Payton v New York* (445 US 573 [1980]), but with probable cause for the arrest, evidence of the eyewitness lineup identifications was not required to be suppressed under the New York Constitution. Although the Search and Seizure Clause of the New York Constitution (art I, § 12) generally requires the suppression of incriminating statements elicited during a custodial interrogation conducted without counsel following a *Payton* violation, that rule is premised on the principle that an arrestee has an absolute right to remain silent during custodial interrogation. By contrast, a person lawfully in custody does not have a concomitant right to refuse to participate in a lineup. Here, allowing evidence of the lineup identifications to be admitted did not put the People in a better position than they would have been if the *Payton* violation had not occurred. In the absence of a causal relationship between the *Payton* violation and the lineup identifications, the identifications did not have to be suppressed.

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AM JUR 2d, Criminal Law §§ 995, 1138; AM JUR 2d, Evidence §§ 560, 561, 563.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:540, 172:718, 172:3245, 172:3250.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 7.1, 7.2.

McKINNEY'S, NY Const, art I, § 12.

NY JUR 2d, Criminal Law §§ 100, 101, 544, 655, 657-659, 1891.

ANNOTATION REFERENCE

See ALR Index under Arrest; Lineups; Self-Incrimination.

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POINTS OF COUNSEL

Legal Aid Society, New York City (*Kerry Elgarten* and *Laura R. Johnson* of counsel), for appellant. I. The lineup identification testimony should have been suppressed as the tainted fruit of a *Payton* violation. (*Payton v New York*, 445 US 573; *People v Harris*, 77 NY2d 434; *People v Conyers*, 68 NY2d 982; *People v Johnson*, 66 NY2d 398; *People v LaFontaine*, 92 NY2d 470; *People v Romero*, 91 NY2d 750; *People v Goodfriend*, 64 NY2d 695; *United States v Leon*, 468 US 897; *Nardone v United States*, 308 US 338; *Murray v United States*, 487 US 533.) II. The photographic identification procedure was unduly suggestive since it contained the photos of only three men, on 8½ by 11 inch pieces of paper headed “mugshot pedigree” and further, of the three, appellant was the only one whose appearance was at all consistent with the described robber. (*People v Jackson*, 98 NY2d 555; *People v Chipp*, 75 NY2d 327; *People v Adams*, 53 NY2d 241; *United States v Wade*, 388 US 218; *Simmons v United States*, 390 US 377; *People v Gee*, 99 NY2d 158; *United States v Wiseman*, 172 F3d 1196; *United States v Sanchez*, 24 F3d 1259; *United States v Rosa*, 11 F3d 315; *People v Grate*, 130 AD2d 590.)

Charles J. Hynes, District Attorney, Brooklyn (*Scott J. Splittergerber* and *Leonard Joblove* of counsel), for respondent. I. The *Payton* violation did not warrant suppression of the subsequent lineup identifications, because the lineup identifications were not the product of the *Payton* violation. (*Payton v New York*, 445 US 573; *New York v Harris*, 495 US 14; *People v Medina*, 161 Misc 2d 484; *People v Burr*, 70 NY2d 354; *People v Arnau*, 58 NY2d 27, 468 US 1217; *People v Rogers*, 52 NY2d 527, 454 US 898; *People v Blake*, 35 NY2d 331; *People v Hawkins*, 55 NY2d 474, 459 US 846; *People v Hobson*, 39 NY2d 479; *People v Conyers*, 68 NY2d 982.) II. The photographic identification procedure was not unduly suggestive. (*People v Jackson*, 98 NY2d 555; *People v Evans*, 94 NY2d 499; *People v Chipp*, 75 NY2d 327, 498 US 833; *Neil v Biggers*, 409 US 188; *People v Adams*, 53 NY2d 241; *Stovall v Denno*, 388 US 293; *People v Berrios*, 28 NY2d

361; *People v Williams*, 143 AD2d 162; *People v Ludwigsen*, 128 AD2d 810; *People v Rahming*, 26 NY2d 411.)

OPINION OF THE COURT

GRAFFEO, J.

The issue in this appeal is whether the State Constitution prohibits the introduction in evidence of eyewitness lineup identifications, where the lineup was conducted after police arrested defendant at his residence without a warrant or consent to enter, in violation of *Payton v New York* (445 US 573 [1980]; see *People v Levan*, 62 NY2d 139 [1984]). Under the circumstances of this case, we conclude that the exclusionary rule does not require the suppression of the identification evidence.

In October 1998, a woman was accosted in her apartment building by a man who followed her onto an elevator. The man confronted her, stated that he had just been in a shootout and asked for money so he could flee from the area. When the woman refused, the man tore a chain from her neck, took her watch and put his hand in her pocket. The assailant fled after the woman began spraying him with Mace.

Another woman was robbed under similar circumstances later that month. While she and her children were entering an elevator in their apartment building, a man approached her, claimed that he had been in a shootout and shot someone, and declared that he “needed cab fare to get away.” After the woman told him that she couldn’t help him, the man reached under his jacket and apologized to her, stating “I wouldn’t do this, if I didn’t have to, but I’m desperate.” Although the woman initially refused to give him anything, she eventually handed over \$30. When the man tried to reach into her pocket, the woman slapped his hand away. Placing his hand on the shoulder of her child, the man told the woman not to make him do “nothing [he didn’t] want to do.” He then ripped a necklace from the woman and demanded her earrings. She gave him one but tossed the other onto the floor of the elevator. The man picked up the earring and fled from the elevator.

Eventually the victim of the second robbery met with a detective who arranged for her to view computerized mug shot photographs. She examined six photographs at a time for approximately 20 minutes, but did not find anyone who resembled the man that robbed her. The detective then produced three additional photographs that he printed from the computer. The woman identified one of the men—defendant—as her assailant.

Based on that identification, defendant's photograph was inserted into a six-person photographic array that was shown to the victim of the first robbery. She also identified defendant as the man who accosted her.

Having probable cause to believe that defendant was the perpetrator of both robberies, but without obtaining an arrest warrant, the detective and several police officers went to the apartment where defendant lived with his mother. When defendant's mother answered the door, the detective told her that he was looking for her son. She left the front door open as she went back into the apartment to find defendant. The police officers followed her inside, located defendant and placed him under arrest. Approximately five hours later, police placed defendant in a lineup and the two robbery victims separately identified him.

Defendant was subsequently indicted for a variety of crimes stemming from the two incidents, including two counts of robbery in the first degree. He moved to suppress identification evidence at trial, claiming that the photographic identification procedure employed with the second victim was unduly suggestive. Defendant also argued that because the police entered his home without consent or an arrest warrant in violation of *Payton v New York* (445 US 573 [1980]), the lineup identifications should be suppressed as the tainted product of the illegal entry.

Supreme Court denied the motion to suppress identification evidence, initially determining that the photographic identification procedure was not unduly suggestive. The court further ruled that, although the police had violated the *Payton* rule when they entered defendant's home and arrested him in the absence of consent or a warrant, the lineup identifications did not stem from the *Payton* violation and, as such, suppression was not warranted. Supreme Court adhered to its decision upon reargument.

After the presentation of evidence at trial, including the victims' in-court identifications of defendant and testimony concerning the lineup identifications,¹ defendant was convicted of one count of robbery in the first degree relating to the second incident. The jury, however, was unable to render a unanimous

1. After the victim of the second robbery identified defendant in court and completed her testimony, defendant absconded and was absent for the remainder of the trial. As a result, the victim of the first robbery had to identify defendant from a photograph.

verdict on the charges related to the first robbery. The Appellate Division affirmed defendant's conviction and a Judge of this Court granted leave to appeal.

As a threshold matter, it is undisputed that the arrest of defendant in his home, although supported by probable cause due to the victims' photographic identifications, was effectuated unlawfully. The Fourth Amendment clearly "prohibits the police from making a warrantless and nonconsensual entry into a suspect's home in order to make a routine felony arrest" (*Payton v New York*, 445 US at 576) in the absence of "exigent circumstances" (*Kirk v Louisiana*, 536 US 635, 638 [2002]). Here, the People never argued that an emergency justified the warrantless entry and Supreme Court expressly found that defendant's mother did not provide consent before the police entered the residence. Because the People do not challenge Supreme Court's undisturbed findings of fact, we accept that a *Payton* violation occurred.²

The primary question before us is whether the exclusionary rule bars the People's use of lineup identifications conducted in the absence of counsel subsequent to an arrest made in violation of the *Payton* doctrine. In *People v Harris* (77 NY2d 434 [1991]), we held that the Search and Seizure Clause of the State Constitution generally requires the suppression of incriminating statements elicited during a custodial interrogation conducted without counsel following a *Payton* violation. We are now asked to determine whether the rationale of *Harris* carries equal strength in post-*Payton* lineup identification situations.³

The resolution of this issue requires an examination of the factual and procedural context of *Harris* in our Court, both

2. We note, however, that Supreme Court did not ascribe any nefarious intent to the police when they went to defendant's home. Although defendant's mother did not expressly consent to entry by the police, by leaving her front door open she arguably gave them the impression that they did not have to wait outside. Moreover, the police did not barge in unannounced or draw their weapons at any time. Because Supreme Court did not find that the police intended to violate *Payton*, we respectfully disagree with the dissent that the police purposefully violated defendant's constitutional rights in order to conduct the lineup without counsel (*see* dissenting op at 248).

3. The *Payton* rule precluding warrantless arrests in a suspect's home involves the violation of search and seizure rights under the Fourth Amendment of the United States Constitution (*Payton v New York*, 445 US at 576). In *Harris*, this Court framed the issue before it as follows: "whether evidence submitted in support of defendant's conviction, though admissible under Federal standards, should be suppressed under our State constitutional provision prohibiting unlawful searches and seizures" (77 NY2d at 435). The same issue is presented in this case, except here defendant sought suppression of

(n. cont'd)

before and after the United States Supreme Court reviewed the case. In our initial decision, we concluded that the Federal Constitution required suppression of “any verbal statements obtained as a direct result of an unlawful invasion” unless the statements were attenuated from the *Payton* violation (*People v Harris*, 72 NY2d 614, 619 [1988]). The Supreme Court, however, ruled that suppression was unwarranted and reversed (*New York v Harris*, 495 US 14, 21 [1990]). The Court explained that the exclusionary rule was inapplicable “because the rule in *Payton* was designed to protect the physical integrity of the home; it was not intended to grant criminal suspects . . . protection for statements made outside their premises where the police have probable cause to arrest” (*id.* at 17). Thus, under the Fourth Amendment of the Federal Constitution, evidence procured after the police leave an arrestee’s residence is not considered to be “the product of” a *Payton* violation (*id.* at 19).

On remand, we considered whether suppression was necessary under article I, § 12 of the State Constitution—the provision prohibiting unlawful searches and seizures. We determined that the “State Constitution requires that statements obtained from an accused following a *Payton* violation must be suppressed unless the taint resulting from the violation has been attenuated” (77 NY2d at 437). The justification for a more protective rule was rooted in the unique protections guaranteed by New York’s Right to Counsel Clause, which is “‘far more expansive than the Federal counterpart’ ” (*id.* at 439, quoting *People v Bing*, 76 NY2d 331, 339 [1990]).⁴ We noted that “[u]nder both Federal and State law, the right to counsel attaches once criminal proceedings have commenced” and, of particular relevance, in New York “criminal proceedings must be instituted before the police can obtain a warrant” because CPL 120.20 requires an accusatory instrument to be filed before an arrest warrant may be issued (*People v Harris*, 77 NY2d at 439, 440). In this state, therefore, the indelible right to counsel attaches whenever an arrest warrant is issued and the “police may not question a suspect in the absence of an attorney” (*id.* at 440). Due to this prohibition on interrogation without counsel that arises

identification evidence rather than statements made during custodial interrogation.

4. The Right to Counsel Clause, set forth in article I, § 6 of the State Constitution, provides that “[i]n any trial in any court whatever the party accused shall be allowed to appear and defend in person and with counsel as in civil actions.”

when a defendant is arrested under the authority of a warrant, we recognized that police in our state may have an incentive “to violate *Payton* . . . because doing so enables them to circumvent the accused’s indelible right to counsel” (*id.*). Thus, we held that the exclusionary rule applies to statements elicited after a *Payton* violation in order to deter law enforcement from violating one constitutional protection (unreasonably entering and seizing an accused in the home) for the purpose of circumventing another (the indelible right to counsel).

Here, as in *Harris*, we are again confronted with the “interplay between the right to counsel rules established by New York law and the State’s search and seizure” protections (*id.*). Relying on *Harris*, defendant argues that suppression of the lineup evidence is necessary to remove any incentive the police have to violate *Payton*—namely, the benefit of obtaining a lineup identification in the absence of counsel on behalf of a defendant. The People claim that suppression is unwarranted because, unlike the post-*Payton* statements at issue in *Harris*, application of the exclusionary rule to lineups would have little or no deterrent effect on police conduct and the role of counsel at a lineup is less active than the participatory function of counsel during custodial interrogation.

The exclusionary rule “was originally created to deter police unlawfulness by removing the incentive” to disregard the law, but also “serves to insure that the State itself, and not just its police officers, respect the constitutional rights of the accused” (*People v Payton*, 51 NY2d 169, 175 [1980]; see *United States v Leon*, 468 US 897, 906 [1984]). Nevertheless, “[t]he heavy sanction exacted by the exclusionary rule” (*People v Martinez*, 37 NY2d 662, 670 [1975])—“the price paid by society in particular cases for the greater value of deterring future police wrongdoing” (*People v Burr*, 70 NY2d 354, 362 [1987], *cert denied* 485 US 989 [1988])—“has never been considered a fundamental right . . . requiring automatic application” every time the police infringe upon federal or state constitutional protections (*People v Young*, 55 NY2d 419, 425 [1982], *cert denied* 459 US 848 [1982]).

Whether the rule should apply “depend[s] ‘upon a balancing of its probable deterrent effect against its detrimental impact upon the truth-finding process’ ” (*id.*, quoting *People v McGrath*, 46 NY2d 12, 21 [1978], *cert denied* 440 US 972 [1979]). But, “it has never been enough to show that evidence must be suppressed simply because it was discovered subsequent to an ille-

gal arrest” (*People v Rogers*, 52 NY2d 527, 535 [1981], *cert denied* 454 US 898 [1981]). Rather, the prosecution must have “somehow exploited or benefited from its illegal conduct” such that “there is a connection between the violation of a constitutional right and the derivative evidence” obtained by the police (*People v Burr*, 70 NY2d at 362; *see United States v Crews*, 445 US 463, 471 [1980] [exclusionary rule applies to “evidence (that) is in some sense the product of illegal governmental activity”]).

Our *Harris* rule is premised on the venerable principle that an arrestee has an absolute right—guaranteed by both the Federal and State Constitutions—to remain silent during custodial interrogation, and when the indelible right to counsel has attached, it cannot be waived in the absence of counsel (*see e.g. People v Grice*, 100 NY2d 318, 320-321 [2003]). But a person lawfully in custody does not have a concomitant right to refuse to participate in a lineup (*see People v Hawkins*, 55 NY2d 474, 486 n 5 [1982], *cert denied* 459 US 846 [1982]).⁵ Regardless of whether the police arrest a suspect on the street or obtain a warrant and make an arrest in a residence, neither the arrestee nor counsel has the authority to prevent a lineup as long as the police had probable cause for the arrest. While an accused, in consultation with counsel, can decide whether to make a statement to the police, it is the police who alone decide whether a lineup will occur, select the procedure that will be used, determine when and where the identification is held, and choose the other persons who, along with the suspect, will be included in the lineup. Thus, the underlying purpose of the “fruit of the poisonous tree doctrine”—to “preclude[] the use of evidence which would not have been obtained had the illegal search or seizure not occurred”—will not always be served when lineup identifications are at issue (Kamins, *New York Search and Seizure*, at 13 [14th ed 2004]). Here, allowing evidence of the lineup identifications to be admitted does not put the People “in a better position than [they] would have been in if no illegality had transpired” (*Nix v Williams*, 467 US 431, 443 [1984]) since the requisite “connection between the violation of a constitutional right and the derivative evidence” is absent (*People v Burr*, 70 NY2d at 362).

5. The dissent overlooks this important distinction. One of the fundamental concerns in *Harris* was that a *Payton* violation could undermine an arrestee’s privilege against self-incrimination (*see* 77 NY2d at 438-439). Significantly, neither the Fifth Amendment nor its state constitutional counterpart are implicated in lineup identifications (*see e.g. United States v Wade*, 388 US 218, 221-222 [1967]; *People v Wilson*, 89 NY2d 754, 758 [1997]).

Furthermore, it is well established that there are distinctions between the role of counsel at a custodial interrogation compared to a lineup. Certainly, although “the assistance of counsel is not completely valueless” during a corporeal viewing (*People v Hawkins*, 55 NY2d at 486), the benefits of counsel’s presence at a lineup are more limited than at an interrogation (see *People v Hobson*, 39 NY2d 479, 485 [1976]; *People v Blake*, 35 NY2d 331, 337 [1974]). Stated another way,

“[d]uring interrogations, counsel may take an active role on behalf of his client, both in advising a suspect on whether to remain silent and in counseling a suspect on whether to answer particular questions once the right to remain silent has been waived In contrast, during a lineup counsel plays the relatively passive role of an observer Counsel may not actively advise his client during the lineup itself” (*People v Hawkins*, 55 NY2d at 485 [citations omitted]; see also *People v Settles*, 46 NY2d 154, 165 [1978]).

Another important factor is that the police had probable cause to arrest defendant, unlike in the cases relied on by defendant—*People v Dodt* (61 NY2d 408 [1984]) and *People v Gethers* (86 NY2d 159 [1995]). When the police arrest an individual on less than probable cause, the authorities are unreasonably and unconstitutionally exercising custody over the person and may not lawfully force the individual to participate in a lineup (*People v Dodt*, 61 NY2d at 417). In *Payton* scenarios, however, the police have probable cause to arrest and, as such, it is only the means of effecting the arrest that are unlawful, not the detention itself.⁶ Hence, unlike a lineup arising from an arrest without probable cause, a lineup subsequent to a *Payton* violation is not an “identification [that] follow[s] directly from the illegal . . . detention of [the] defendant” (*People v Dodt*, 61 NY2d at 417), nor can it be said that “the police exploited the illegal [entry] in such a way as to establish that it was the [entry] which produced the challenged” lineup identifications (*People v Rogers*, 52 NY2d at 535). Here, the identifications of defendant were not “the product of” the *Payton* violation (*United States v Crews*, 445 US at 471; *New York v Harris*, 495 US at 19) but of the police having probable cause to believe that defendant was the perpetra-

6. It is for this reason that we disagree with the dissent’s characterization of defendant’s apprehension as an “illegal arrest” (dissenting op at 245, 246, 248; see *People v Harris*, 72 NY2d at 625-626 [Titone, J., concurring]).

tor of the robberies based on the photographic identifications by the two victims. Due to the lack of a causal relationship between the *Payton* violation and the lineup identifications in this case, the lineups were not the “fruit of the poisonous tree.”

Moreover, we have acknowledged that “corporeal lineups, properly conducted, generally provide a reliable pretrial identification procedure and are properly admitted unless it is shown that some undue suggestiveness attached to the procedure” (*People v Chipp*, 75 NY2d 327, 335 [1990], *cert denied* 498 US 833 [1990]). As an added measure of protection to the accused, “the People have the initial burden of establishing the reasonableness of the police conduct” (*People v Jackson*, 98 NY2d 555, 559 [2002]), as well as “the lack of any undue suggestiveness in a pretrial identification procedure” (*People v Chipp*, 75 NY2d at 335). And, if the suggestiveness of a lineup is called into question,

“it is important to remember that . . . the resolution of this issue will not come down to a credibility contest between the accused and the police. . . . [W]ith each lineup identification there will be an eyewitness who can be examined and cross-examined at the *Wade* hearing and at the trial as to whether any improper conduct was resorted to. In this sense, lineups are fundamentally different from interrogations and thus the protective devices surrounding each may be different” (*People v Hawkins*, 55 NY2d at 486 n 4 [emphasis in original]).

In addition, law enforcement authorities have an extremely meaningful deterrent not to violate *Payton*—the *Harris* rule itself, which renders any uncounseled, unattenuated incriminating statements inadmissible at trial (77 NY2d at 440). Other disincentives exist as well, such as the possibility of a federal civil suit brought under 42 USC § 1983 against the arresting authority premised on the violation of a clearly established Fourth Amendment right (see e.g. *Loria v Gorman*, 306 F3d 1271, 1283-1284 [2d Cir 2002]; see also *Wilson v Layne*, 526 US 603, 609-611, 614-615 [1999]). Because the law already incorporates existing protections that sufficiently minimize “incentive[s] to the police to violate” *Payton* and “the consequences flowing from the police illegality” have a minimal impact on lineup identifications (*People v Harris*, 77 NY2d at 438), we hold that the State Constitution does not require the suppression of evidence of a lineup identification made after an arrest

based on probable cause but in violation of *Payton*. Based on this determination and because we have concluded that the lineups in this case were not the “fruit of the poisonous tree,” we have no reason to address the parties’ arguments regarding the attenuation doctrine. Supreme Court therefore properly admitted evidence of the lineup identifications of defendant.

Finally, Supreme Court’s determination that the pre-arrest photographic identification procedure was not unduly suggestive, undisturbed by the Appellate Division, is supported by record evidence and is therefore beyond our powers of review (see e.g. *People v Jackson*, 98 NY2d at 559).

Accordingly, the order of the Appellate Division should be affirmed.

CIPARICK, J. (dissenting). Because Supreme Court erred as a matter of law when it denied suppression of a lineup identification procedure conducted after an illegal arrest made in violation of *Payton v New York* (445 US 573 [1980]) and in the absence of counsel, I respectfully dissent.

Defendant was charged with two unrelated robberies, which were tried jointly. Both victims testified as to lineup procedures. One victim made an in-court identification of defendant as the perpetrator. Defendant was convicted of one count of first degree robbery and the jury hung on the charges related to the second robbery.

Prior to trial, defendant moved to suppress evidence of the lineup procedure and any prospective in-court identification by the two complainants. The issues of probable cause, the legality of the arrest, and the suggestiveness of the identification procedures employed by the police—both the photo array and the resulting lineup—were the subject of a combined *Dunaway/Payton/Wade* hearing conducted by Supreme Court.

The hearing court made certain findings which are undisturbed by the Appellate Division. Supreme Court first found that there existed probable cause to make the arrest because defendant had been identified by both witnesses at separate photographic identification procedures. Second, the court found that the warrantless, nonconsensual entry into defendant’s home to effect his arrest constituted an intentional *Payton* violation. Third, it concluded that neither the photo identification procedures nor the lineup were unduly suggestive. Finally, the court concluded that the lineup identifications were sufficiently attenuated from the illegal arrest and on that basis denied suppression.

It is well settled that under both the Federal and State Constitutions, the right to counsel attaches upon the commencement of criminal proceedings. In New York, however, CPL 120.20 requires an accusatory instrument to be filed before an arrest warrant may issue. Thus the indelible right to counsel attaches when an arrest warrant issues (*see People v Harris*, 77 NY2d 434, 440 [1991]). Here, the warrantless arrest of defendant resulted in a violation of his state constitutional right to counsel, which is “far more expansive than the Federal counterpart” (*People v Bing*, 76 NY2d 331, 339 [1990] [citations omitted]). To deter police from circumventing this right to counsel by bypassing the warrant procedure and illegally arresting a defendant in his home, we have traditionally employed the sanction of the exclusionary rule, precluding the admission of evidence acquired as a result of such a violation (*see Harris*, 77 NY2d at 440). Were this evidence to consist of incriminating statements made by defendant after a *Payton* violation, the majority would agree under *Harris* that such statements would be subject to suppression if the taint were not sufficiently attenuated.

Defendant asks us to apply this same rule in the context of identification evidence—here a lineup—procured as a result of an illegal arrest. In effect, defendant requests that we extend our holding in *Harris* to apply to these circumstances. *Harris* addressed the suppression of a statement elicited after a *Payton* violation, and we held that the exclusionary rule applied. Defendant posits that there is no logical reason to conclude that a different result is warranted when the right to counsel at a lineup is thwarted—as here by means of a *Payton* violation—as opposed to when a similar violation occurs at a custodial interrogation. To adopt any other rule, defendant contends, is inconsistent with the rationale of *Harris*. I agree.

The rule proposed by the People and adopted by the majority today shifts the emphasis from the illegal warrantless entry into a person’s home to a probable cause analysis. It employs the balancing test of deterrent effect against impact upon the truth-finding process and finds in favor of the truth-finding process, creating a distinction—warranting a different result from *Harris*—“between the role of counsel at a custodial interrogation compared to a lineup” (majority op at 243).

We have characterized the right to counsel as “a matter of singular concern in New York” (*Harris*, 77 NY2d at 439). It “is a ‘cherished principle’ worthy of the ‘highest degree of [judicial]

vigilance’ ” (*People v Ramos*, 99 NY2d 27, 32 [2002] [citations omitted]). Where we have previously determined that counsel is constitutionally required, the relative degree of significance of that role—at a lineup as opposed to during police interrogation—is simply irrelevant.

We have recognized “that the application and scope of the exclusionary rule is ascertained by balancing the foreseeable deterrent effect against the adverse impact of suppression upon the truth-finding process” (*People v Drain*, 73 NY2d 107, 110 [1989], citing *People v Harris*, 72 NY2d 614, 621-622 [1988]; *People v McGrath*, 46 NY2d 12, 21 [1978]; *People v Boodle*, 47 NY2d 398, 404 [1979]). However, “various constitutional rules limit the means by which government may conduct this search for truth in order to promote other values embraced by the Framers and cherished throughout our Nation’s history” (*James v Illinois*, 493 US 307, 311 [1990]). That the lineup was conducted in violation of defendant’s right to counsel necessarily cuts against any potential benefit to the truth-seeking function. The majority’s holding balances these values in favor of admissibility. I would weigh them in favor of exclusion.

I would apply the *Harris* rule here where the placement of defendant in a lineup followed directly from a Fourth Amendment *Payton* violation and would find the lineup to be a suppressible fruit of a poisonous tree. But for defendant’s arrest, there would not have been a lineup. The police had obtained photo identifications of defendant and had knowledge of his address three weeks prior to the unlawful arrest. Nothing prevented them from seeking a warrant. They further violated defendant’s rights by placing him in an uncounseled lineup.

Moreover, there is no record support for the suppression court’s determination that the lineup was attenuated from the arrest (*see People v Conyers*, 68 NY2d 982, 984 [1986]). In determining whether a suppressible fruit is sufficiently attenuated from the taint of the illegality to exempt it from the exclusionary rule, courts must consider three factors: the temporal proximity between the arrest and the statement; any intervening factors that may break the chain of events; and the purpose and nature of the illegal police conduct (*see Harris*, 77 NY2d at 440-441; *Conyers*, 68 NY2d at 983).

The fact that defendant’s photo was on file and had been identified by the witnesses prior to the arrest is irrelevant—serving only to identify defendant as a suspect in the two rob-

beries. Finding that the lineup identification is the result of those previous photographic identifications—establishing probable cause—rather than the *Payton* violation, fails completely to consider the unlawful arrest and misapprehends the attenuation. The taint from the arrest cannot be attenuated by factors that existed prior to the arrest. Otherwise, suppression of any evidence, including statements, could never be warranted after a *Payton* violation if the police had probable cause for the arrest. This is clearly not the law, and is in fact the very notion we rejected in *Harris*. The suppression court here confused an independent source analysis with attenuation. The police had the opportunity to circumvent the attachment of the right to counsel for the purpose of conducting a lineup unencumbered by counsel's participation, and in fact did so. Neither does the passage of the intervening several hours attenuate the taint of illegality. Nothing happened during that time other than the police calling the witnesses to the precinct and rounding up fillers from a local homeless shelter.

In conclusion, I find a causal relationship between the illegal arrest and the lineup identification. I disagree with the People and the majority that a different rule can be applied to lineups as opposed to custodial interrogations when dealing with right to counsel violations, and that the taint of the *Payton* violation was attenuated. One purpose of the illegal arrest—indeed, perhaps the only purpose—was clearly to place defendant in a lineup. Here, once the right to counsel attached, defendant had the right to counsel's presence at the lineup. Finally, there is no support in the record for Supreme Court's attenuation finding, which was based solely on the previous photo identifications. There was nothing here that cleansed the taint of the warrantless, nonconsensual seizure of defendant from his home. The lineup evidence acquired as a result of this constitutional violation should have been suppressed. As a result, I would reverse defendant's conviction and remit for a new trial to be preceded by an independent source hearing.

Judges G.B. SMITH, ROSENBLATT, READ and R.S. SMITH concur with Judge GRAFFEO; Judge CIPARICK dissents and votes to reverse in a separate opinion in which Chief Judge KAYE concurs.

Order affirmed.

[810 NE2d 864, 778 NYS2d 412]

In the Matter of GENERAL ELECTRIC CAPITAL CORPORATION, Appellant, v NEW YORK STATE DIVISION OF TAX APPEALS, TAX APPEALS TRIBUNAL, et al., Respondents.

Argued February 17, 2004; decided April 1, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 16, 2003, in a proceeding pursuant to CPLR article 78 (initiated in the Appellate Division pursuant to Tax Law § 2016). The Appellate Division confirmed a determination of respondent Tax Appeals Tribunal which had sustained the denial of a sales tax refund and dismissed the petition.

Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib., 301 AD2d 819, affirmed.

HEADNOTES

Taxation — Sales and Use Taxes — Refund of Taxes on Uncollectible Debts — Assignee of Retail Vendor Not Entitled to Refund

1. The Division of Taxation's denial of the application made by petitioner financial services company for a refund of sales taxes paid by retail vendors on debts that were assigned to petitioner and proved to be uncollectible was not arbitrary or capricious. Although the vendors themselves would have been entitled to apply for a refund, petitioner, as a third-party assignee of the vendors, was precluded from applying by 20 NYCRR 534.7 (b) (3). That regulation is consistent with the enabling legislation, Tax Law § 1132 (e), which provides that the Division of Taxation "may," by regulation, provide refunds for sales taxes paid on uncollectible debts. The Commissioner articulated a rational explanation for distinguishing between who is and who is not permitted to seek sales tax refunds.

Taxation — Sales and Use Taxes — Refund of Taxes on Uncollectible Debts — Assignee of Retail Vendor Not Entitled to Refund

2. 20 NYCRR 534.7 (b) (3), which restricts the assignment of sales tax refund claims, precluding a refund for a transaction which is financed by a third party or for a debt which has been assigned to a third party, does not violate the broad assignment provisions in General Obligations Law § 13-101. Although claims lawfully transferred are generally enforceable, General Obligations Law § 13-105 provides an exception to that rule where, as here, the rights of a party to a transferred claim are regulated by special provision of law.

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By the Publisher's Editorial Staff

AM JUR 2d, Sales and Use Taxes §§ 266, 270.

McKINNEY'S, General Obligations Law §§ 13-101, 13-105;
Tax Law § 1132 (e).
20 NYCRR 534.7 (b) (3).
NY JUR 2d, Assignments §§ 5, 66, 82; NY JUR 2d, Taxation
and Assessment §§ 1814, 1839.

ANNOTATION REFERENCE

See ALR Index under Sales and Use Taxes.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: sales /2 tax /s refund /s assignee

POINTS OF COUNSEL

McDermott, Will & Emery, New York City (*Arthur R. Rosen* and *Richard A. Leavy* of counsel), for appellant. I. The General Obligations Law allows appellant, as an assignee, to be treated in the same manner as its assignor. (*People v Hawkins*, 157 NY 1; *Matter of Walker*, 64 NY2d 354; *Kraut v Morgan & Brother Manhattan Stor. Co.*, 38 NY2d 445; *Clark v Cuomo*, 66 NY2d 185; *Matter of Abraham & Straus v Tully*, 47 NY2d 207; *Matter of Yonkers Plumbing & Heating Supply Corp. v Tully*, 62 AD2d 18; *Kenyon v See*, 94 NY 563; *Zack Metal Co. v International Nav. Corp. of Monrovia*, 112 AD2d 865, 67 NY2d 702, 892, 68 NY2d 664.) II. The regulation prohibiting the assignment of a claim for a refund of sales and use tax on uncollectible receivables deprives appellant of rights conferred by the General Obligations Law and must be struck down. (*Zack Metal Co. v International Nav. Corp. v Monrovia*, 112 AD2d 865, 67 NY2d 702, 892, 68 NY2d 664; *Matter of Harbolic v Berger*, 43 NY2d 102; *Brown v University of State of N.Y.*, 242 App Div 85, 266 NY 598; *Servomation Corp. v State Tax Commn.*, 51 NY2d 608; *Frost v Jones*, 207 Misc 1086; *New York City Hous. Auth. v Watson*, 23 Misc 2d 408, 27 Misc 2d 618; *Clark v Cuomo*, 66 NY2d 185; *Matter of County of Oneida v Berle*, 49 NY2d 515.) III. The regulation prohibiting the assignment of a claim for a refund of sales and use tax on uncollectible receivables is in direct conflict with the holding of this Court in *Matter of Abraham & Straus v Tully* (47 NY2d 207 [1979]) and must be struck down. (*Matter of Yonkers Plumbing & Heating Supply Corp. v Tully*, 62 AD2d 18; *Matter of Nicholas v Kahn*, 47 NY2d 24; *Matter of Good Humor Corp. v McGoldrick*, 289 NY 452; *Gautier v Ditmar*, 204 NY 20.)

Eliot Spitzer, Attorney General, Albany (*Julie S. Mereson*, *Cait-*

lin J. Halligan, Daniel Smirlock and Nancy A. Spiegel of counsel), for respondents. I. Tax Law § 1132 (e) limits the Commissioner of Taxation and Finance's authority to provide refunds and credits on uncollectible receipts to vendors. (*Matter of Abraham & Straus v Tully*, 47 NY2d 207; *Matter of Yonkers Plumbing & Heating Supply Corp. v Tully*, 62 AD2d 18.) II. The General Obligations Law does not require that petitioner receive a tax refund when the express language of the Tax Law renders petitioner ineligible. (*Maloney v Stone*, 195 AD2d 1065; *Weimer v Board of Educ. of Smithtown Cent. School Dist. No. 1*, 52 NY2d 148; *Matter of Nieves v Haera*, 165 AD2d 201; *National Org. for Women v Metropolitan Life Ins. Co.*, 131 AD2d 356.)

OPINION OF THE COURT

GRAFFEO, J.

The issue presented in this case is whether the State Department of Taxation and Finance exceeded its authority when it denied the sales tax refund claims of a financial services company that did not pay the sales taxes underlying the refund requests. We conclude that denial of the refund claims was authorized by the sales tax statutory and regulatory scheme and we therefore affirm the judgment of the Appellate Division confirming the determination of the Tax Appeals Tribunal.

Petitioner General Electric Capital Corporation provided financing services for private label credit cards issued by retail vendors. Typically, the retail vendors offered credit cards to their customers under their store names. When the customers used the credit cards to purchase merchandise from the vendors, the vendors remitted the sales taxes due on the retail transactions to the Division of Taxation of the New York State Department of Taxation and Finance.

In account purchase agreements entered into between 1990 and 1996, particular retail vendors assigned their rights under credit agreements with their customers to petitioner. Petitioner purchased these accounts for the face amount of the total indebtedness, which included any sales taxes financed by the vendors at the time of the purchases—taxes the vendors had already paid to the Division. After unsuccessfully attempting to collect the debts owed from the customers, petitioner ultimately determined that certain accounts were uncollectible. It charged off these “bad debts” on its own financial records and deducted the amounts of the uncollectible debts from its income for federal income tax purposes.

In February 1997 and April 1998, petitioner filed claims with the Division seeking refunds in the amount of \$3,076,247 for sales taxes paid by retail vendors relating to the uncollectible accounts. The Division denied the refund claims in July 1998 on the ground that petitioner was not the vendor at the original taxable sales or the party that had paid the sales taxes to the State. Petitioner protested, challenging the validity of 20 NYCRR 534.7 (b) (3), the regulation relied on by the Division in denying the refund claims. That regulation expressly precludes third-party assignees such as petitioner from applying for a refund for sales taxes arising from a bad debt. Petitioner asserted that the regulation was inconsistent with the enabling legislation, Tax Law § 1132 (e), and argued that the General Obligations Law provisions regarding assignments precluded denial of a refund claim made by an assignee of a retail vendor who would have been eligible to apply for a sales tax refund.

The Administrative Law Judge denied the protest petition and petitioner appealed to the Tax Appeals Tribunal, which also upheld the Division's decision denying the refunds. The Tribunal explained that, unlike the retail vendors, a third-party finance company has no trustee relationship with the State with respect to the collection of sales taxes. The State, therefore, has no concomitant obligation to refund sales taxes paid on transactions that later became uncollectible debts. Referencing Tax Law § 1139 (a), which sets forth the procedure for pursuing a sales tax refund claim, the Tribunal noted that petitioner did not fall within any of the categories of applicants eligible to seek a sales tax refund, each of which had a more direct connection to the purchase transaction that gave rise to the sales tax obligation in the first instance. Absent such a connection, the Tribunal noted that the field of entities that could potentially seek a sales tax refund "would be virtually limitless and the orderly administration of the sales tax rendered unworkable, at best."

Unsuccessful on administrative appeal, petitioner commenced this original proceeding in the Appellate Division challenging the determination of the Tax Appeals Tribunal. That Court confirmed the determination denying the sales tax refund claim, concluding that 20 NYCRR 534.7 (b) was consistent with Tax Law § 1132 (e), and its restriction on the class of applicants eligible to seek a sales tax refund was not precluded by the assignment provisions in the General Obligations Law. This Court granted petitioner's application for leave to appeal and we now affirm.

Tax Law § 1132, enacted in 1965 (L 1965, ch 93), deals with the collection of sales taxes from customers. Subdivision (e) provides:

“The tax commission may provide, by regulation, for the exclusion from taxable receipts, amusement charges or rents of amounts representing sales where the contract of sale has been cancelled, the property returned or the receipt, charge or rent has been ascertained to be uncollectible or, in case the tax has been paid upon such receipt, charge or rent, for refund of or credit for the tax so paid. . . .”

As the word “may” suggests, the statute does not require that the Division grant refunds on uncollectible debts to any class of applicants.

Consistent with the explicit grant of authority to issue regulations, the Commissioner of Taxation and Finance promulgated 20 NYCRR 534.7 (b) (1), which states that “[w]here a receipt . . . has been ascertained to be uncollectible, either in whole or in part, the vendor of the tangible personal property . . . may apply for a refund or credit of the tax paid on such receipt.” Under the regulation, a leased department or concession of the vendor, or a finance company wholly owned by the vendor (referred to as a captive finance company), is recognized as standing in the shoes of the vendor for purposes of pursuing a refund request. A refund is not available, however, “for a transaction which is financed by a third party or for a debt which has been assigned to a third party” (20 NYCRR 534.7 [b] [3]).

Petitioner acknowledges that it is neither a leased concession or department of the retail vendors nor a captive finance company, but is a third party as that term is used in 20 NYCRR 534.7 (b) (3). Thus, petitioner does not dispute that its refund request falls squarely within the prohibition designated in the regulation. Rather, it asserts that the Division erred in denying the refund because the regulatory restriction is not authorized by Tax Law § 1132 (e), and because it violates the broad assignment provisions in the General Obligations Law. We disagree with both arguments.

We interpreted a predecessor regulation in *Matter of Abraham & Straus v Tully* (47 NY2d 207 [1979]), a case involving a refund claim filed by a retail vendor. There, we concluded that the State Tax Commission’s method of computing the extent of a refund based on the vendor’s uncollectible debts was irrational.

Rather than proportionately allocating partial payments to the percentage of debt arising from sales taxes, the Commission's auditors credited partial payments received from customers first toward the total amount of sales taxes owed on the transaction, thereby reducing the amount of the sales tax refund a vendor could claim on an uncollectible debt. Because the Commission's procedure for calculating the refund amount made the vendor disproportionately liable for sales taxes, we affirmed the judgment of the Appellate Division annulling the determination. We therefore held in *Abraham & Straus* that if the State decides to authorize a particular entity to seek a refund, it must calculate that refund fairly. But since the case involved a claim filed by a vendor who remitted sales taxes to the State, it did not address the issue presented in this case: whether the regulation precluding third parties from obtaining sales tax refunds is enforceable.

"The cornerstone of administrative law is derived from the principle that the Legislature may declare its will, and after fixing a primary standard, endow administrative agencies with the power to fill in the interstices in the legislative product by prescribing rules and regulations consistent with the enabling legislation" (*Matter of Nicholas v Kahn*, 47 NY2d 24, 31 [1979]). In so doing, an agency can adopt regulations that go beyond the text of that legislation, provided they are not inconsistent with the statutory language or its underlying purposes (*Goodwin v Perales*, 88 NY2d 383, 395 [1996]).

This regulatory authority is, of course, not unbridled. "As an arm of the executive branch of government, an administrative agency may not, in the exercise of rule-making authority, engage in broad-based public policy determinations" (*Rent Stabilization Assn. of N.Y. City v Higgins*, 83 NY2d 156, 169 [1993], *cert denied* 512 US 1213 [1994]), and may adopt only rules and regulations which "are in harmony with the statute's over-all purpose" (*Goodwin v Perales*, 88 NY2d at 395). That being said, where an agency adopts a regulation that is consistent with its enabling legislation and is not "so lacking in reason for its promulgation that it is essentially arbitrary" (*Matter of Bernstein v Toia*, 43 NY2d 437, 448 [1977] [citation omitted]), the rule has the force and effect of law (*see Molina v Games Mgt. Servs.*, 58 NY2d 523, 529 [1983]).

[1] Here, the Legislature enacted a statute—Tax Law § 1132 (e)—that permitted but did not require the Division to provide

refunds for sales taxes paid on uncollectible debts.¹ This legislation expressly directed the Commissioner to formulate regulations establishing the circumstances, if any, under which uncollectible debts would be excluded from taxable receipts. 20 NYCRR 534.7 (b) does just that; it indicates what entities are eligible to apply for a sales tax refund and under what circumstances a refund will be granted.

The regulation narrowly addresses sales tax refunds arising from uncollectible debts, subject matter specifically referenced in the enabling legislation. Unquestionably, by its terms, Tax Law § 1132 (e) allows the Division to exclude uncollectible debts from “taxable receipts.” With respect to the underlying purchase transactions in this case, the retail vendors were the only entities who had taxable receipts—they alone were responsible for paying sales taxes to the Division at the time of the taxable transactions (*see* Tax Law § 1101 [b] [3]; § 1105 [a]).

Having determined that the statute granted the Commissioner authority to promulgate regulations regarding refunds for uncollectible debts, we turn to whether the Commissioner articulated a rational explanation for distinguishing between who is and who is not permitted to seek sales tax refunds. The Commissioner contends that the limitation on the assignment of sales tax refund claims to third parties is necessary to avoid excessive administrative burden and facilitate the orderly administration of the sales tax. The rationality of this explanation is manifest when it is considered in the context of the sales tax statutory scheme.

1. The dissent suggests that we are placing too much emphasis on the use of the word “may” in section 1132 (e) (dissenting op at 260). But this is, in part, a statutory construction case, requiring us to carefully parse the language chosen by the Legislature. We have previously recognized that the term “may” is permissive (*see e.g. Matter of Scoglio v County of Suffolk*, 85 NY2d 709 [1995]) and, in *Abraham & Straus*, we did not reject the view that the Commissioner had discretion under section 1132 (e) to decide whether to provide any party with a refund arising from an uncollectible debt (47 NY2d at 214). We see no reason now to decline to give effect to the Legislature’s selective terminology, particularly since mandatory language appears in another sales tax refund provision enacted at the same time. In contrast to the use of the word “may” in section 1132 (e), the Legislature directed that the Division “*shall* refund or credit any tax, penalty or interest erroneously, illegally or unconstitutionally collected or paid,” provided the taxpayer files a timely application (Tax Law § 1139 [a] [emphasis added]). Thus, if sales tax was never owed in the first place, the Commissioner must refund it but when the tax was properly collected as occurred here, refunds are allowed but not required. We will not presume that the Legislature meant “shall” when it said “may.”

Retail vendors collect taxes as “trustee[s] for and on account of the state” (Tax Law § 1132 [a] [1]). They are subject to special registration and record-keeping requirements (Tax Law §§ 1134, 1135) and are “personally liable for the tax imposed, collected or required to be collected under [the sales tax] article” (Tax Law § 1133 [a]). Offering retail vendors the benefit of a refund or credit on sales taxes for uncollectible debts offsets the significant responsibilities imposed on them and fosters the trustee relationship between the vendors and the State, thereby encouraging accurate reporting of taxable sales and prompt payment of sales taxes.

Third-party finance companies do not carry the burden of collecting sales taxes as a trustee of the State, nor does the Division have any trustee relationship with assignees such as petitioner to provide a basis for tracking the underlying transactions giving rise to the debts acquired by these companies. Thus, it was not arbitrary or capricious for the Commissioner to authorize retail vendors to pursue refund claims pertaining to debts that eventually became uncollectible while precluding third parties, who do not have taxable receipts and never paid the taxes in the first instance, from doing so.

Indeed, the regulatory restriction at issue corresponds with a provision in the general sales tax refund statute, Tax Law § 1139, which addresses the procedure for filing a refund claim. Section 1139 (a), applicable to refund claims arising from uncollectible debts (*see* Tax Law § 1139 [e]), identifies three types of sales tax refund applicants, each of whom paid sales taxes (either to the retail vendor, who then forwarded the taxes to the Division, or directly to the Division). Consistent with section 1139 (a), 20 NYCRR 534.7 allows a party who remitted sales taxes to seek a refund. The rule is therefore rational, entirely consistent with sections 1132 (e) and 1139 (a), and does no more than “fill in the interstices in the legislative product” (*Matter of Nicholas v Kahn*, 47 NY2d at 31). As a duly promulgated regulation in harmony with its enabling legislation, 20 NYCRR 534.7 has the force and effect of law and the Division properly relied on it to deny the refund claims.

Petitioner’s contention that Tax Law § 1132 (e) “merely gives the . . . Commissioner the right to universally allow refunds and credits on uncollectible receivables” (appellant’s brief, at 30-31) finds no support in the language or legislative history of that provision (*see* L 1965, ch 93). The Legislature’s grant of authority to the Commissioner in this instance was both

specific—an explicit direction to issue regulations addressing sales tax refunds for uncollectible debts—and broad, with the Commissioner authorized to make the determination whether any party would be eligible to receive such a refund. Tax Law § 1132 (e) places no limitation on the Commissioner’s power to determine the types of parties that could qualify for this benefit. Here, the Commissioner’s decision to foreclose refunds by parties who never paid taxes and are removed from the taxable retail transaction was neither irrational nor inconsistent with Tax Law § 1132 (e). We therefore have no basis to disturb it.

Petitioner also maintains that the regulation violates the broad assignment provisions in General Obligations Law § 13-101, which states that “[a]ny claim or demand can be transferred” except in certain enumerated circumstances not relevant here, or when such a transfer is “expressly forbidden” by statute or “would contravene public policy.” (§ 13-101 [3].) Asserting that no statute expressly precludes the assignment of a sales tax refund claim, petitioner submits that the retail vendors were free to assign the debts and, once the debts became uncollectible, it assumed their entitlement to apply for refunds, thereby standing in the shoes of the retail vendors.²

[2] This argument fails to account for General Obligations Law § 13-105, which clarifies under what circumstances a transferred claim can be enforced in an action or special proceeding. Section 13-105 states that where a claim is lawfully transferred, it is generally enforceable with one important caveat: “this section does not apply, where the rights or liabilities of a party to a claim or demand, which is transferred, are regulated by special provision of law.” In this case, the rights of parties to apply for sales tax refunds from the Division are closely regulated under Tax Law § 1132 (e), § 1139 (a) and 20 NYCRR 534.7. By the plain terms of General Obligations Law § 13-105, where there is a conflict between a “special provision of law” and the general assignment statute, the former governs

2. It should be noted that the underlying contracts later assigned to petitioner were between the customers and the retail vendors—the Division of Taxation was not a party. For purposes of this appeal, we assume, without deciding, that as between petitioner and the retail vendors, the agreement assigning the right to collect the debts from the customers was intended also to assign the ancillary right to file a sales tax refund claim with the Division. This assumption is central to this dispute for petitioner claims that it obtained from the retail vendors the right to *apply* for the refunds directly from the Division, not merely the right to receive any proceeds of refund claims filed by the vendors.

enforcement of the transferred claim. Here, even if we assume that the claims were lawfully assigned, the relevant Tax Law statute and regulation would govern petitioner's eligibility to apply for a sales tax refund.

General Obligations Law § 13-101 itself contains exceptions that recognize that its provisions can be trumped by specific statutes or public policy concerns and we have relied on those exceptions in rejecting a similar challenge to a regulation. In *Matter of Medical Socy. of State of N.Y. v Serio* (100 NY2d 854, 871-872 [2003]), we held that section 13-101 did not preclude the Superintendent of Insurance from promulgating a regulation that prohibited no-fault claimants from assigning benefits for non-health-related services, even though no statute expressly prohibited transfer of such claims. We noted that the Superintendent possessed special expertise in the closely-regulated arena of no-fault benefits and the rule furthered the State's public policy by discouraging fraud.

Like the no-fault benefits at issue in *Medical Society*, this case involves a purely statutory benefit (without Tax Law § 1132 [e] and 20 NYCRR 534.7, no taxpayer would be entitled to obtain a sales tax refund arising from an uncollectible debt) in a closely-regulated arena where the Legislature has relied on the Commissioner's special expertise. Here, the Legislature's delegation of authority was especially broad in that the Commissioner was vested with the discretion to decide whether refunds should ever be allowed for bad debts. We have already concluded that the regulation is valid and has the force and effect of law and, since we look to statutes and their implementing regulations to ascertain public policy (see *Matter of Economico v Village of Pelham*, 50 NY2d 120, 126 [1980]; see e.g. *Slayko v Security Mut. Ins. Co.*, 98 NY2d 289, 295 [2002]), the restriction on the assignment of refund claims falls within the exception to the general assignment provisions set forth in General Obligations Law § 13-101 (3).

Contrary to petitioner's assertion, our holding does not result in a "windfall" for the State. By statute, sales taxes are due in full at the time of the taxable transaction, which is completed upon the transfer of title or possession of the tangible personal property to the customer (Tax Law § 1101 [b] [5]). The taxable event is the retail sale, regardless of whether the customer pays the taxes in cash or the taxes become a portion of the amount financed by the retail vendor (see Tax Law § 1101 [b] [3]; § 1105

[a]).³ In this case, the customers took possession of the merchandise at the time of the retail sale. Although the customers later defaulted on their obligations to repay the amounts borrowed, the transactions giving rise to the sales taxes were not voided. Thus, the Division lawfully collected the sales taxes when the retail sales occurred—before petitioner bought the accounts from the retail vendors—and nothing has occurred that changed the status of the underlying transactions from taxable to nontaxable. As such, there is no “windfall.”

The dissent asserts that by refusing to entertain refund claims by parties who never paid sales taxes, the Commissioner is somehow making those parties “bear the sales tax burden” or seeking to collect a tax on a sale that was “never consummated”⁴ in circumstances where “there is no sales transaction” (dissenting op at 261, 262, 263). This argument misapprehends both the facts and the statutory scheme. In this case, petitioner purchased commercial paper (undifferentiated debt) from retail vendors in transactions that did not involve the transfer of tangible personal property and therefore were not subject to the application of sales taxes. Petitioner has not borne any sales tax burden, nor is the Commissioner attempting to collect anything

3. The dissenter’s argument that the Legislature could not have conceived of sales taxes being paid in circumstances where a purchaser paid nothing is refuted by express language in the sales tax statutes. Tax Law § 1105 (a) states that “there is hereby imposed and there shall be paid a tax of four and one-quarter percent upon . . . [t]he receipts from every retail sale of tangible personal property.” Receipts are defined as “[t]he amount of the sale price of any property and the charge for any service taxable under this article, . . . valued in money, *whether received in money or otherwise, including any amount for which credit is allowed by the vendor to the purchaser*” (Tax Law § 1101 [b] [3] [emphasis added]). And a retail sale encompasses “[a]ny transfer of title or possession or both . . . conditional or otherwise, in any manner or by any means whatsoever for a consideration, *or any agreement therefor*” (Tax Law § 1101 [b] [5]; [b] [4] [emphasis added]). Under these statutes, sales taxes are due when property is transferred in exchange for an agreement to pay in the future, even though the purchaser pays nothing at the time of the sale transaction. Although the dissent is skeptical that a receipt can include money not actually received, the definitions adopted by the Legislature so provide.

4. This “unconsummated sale” phraseology is drawn from an Appellate Division decision (*see Matter of Yonkers Plumbing & Heating Supply Corp. v Tully*, 62 AD2d 18 [3d Dept 1978], *appeal dismissed* 44 NY2d 949 [1978]) and not from any statute or decision of this Court. Although *Tully* was decided before *Abraham & Straus*, this Court did not adopt the “unconsummated sale” rationale. Rather, the transactions are taxable—the sales are “consummated” for sales tax purposes—when property is transferred to the customers.

from petitioner. To the contrary, it is petitioner who wishes to collect a tax refund from the Commissioner.

Accordingly, the judgment of the Appellate Division should be affirmed, with costs.

R.S. SMITH, J. (dissenting). Regulations of the Department of Taxation and Finance, promulgated pursuant to Tax Law § 1132 (e), provide for the refund or credit of sales tax payments where the purchase price of the item sold proves uncollectible. At issue here is the validity of one section in those regulations, 20 NYCRR 534.7 (b) (3), which provides: “A refund or credit is not available for a transaction which is financed by a third party or for a debt which has been assigned to a third party, whether or not such third party has recourse to the vendor on that debt.” I believe that section 534.7 (b) (3) is inconsistent with both the Tax Law and the General Obligations Law, and so is invalid on two independent grounds. I therefore dissent.

I

The basis for my view that the regulation violates the Tax Law is that the sales tax imposed by Tax Law § 1105 was designed to be a tax whose burden falls upon purchasers. It was not intended as a direct burden on vendors or their successors in interest. Yet the regulation challenged here permits the state treasury to retain, and prohibits a vendor’s assignee from recovering, $4\frac{1}{4}\%$ (or more, where the sales tax is higher) of the amount a purchaser was *supposed* to pay, in situations where the purchaser has not paid a penny. Section 534.7 (b) (3) thus contradicts the thrust of the sales tax statute, while accomplishing no discernable purpose except the enrichment of the State.

Although vendors are required to collect and pay sales tax as a matter of administrative convenience, the statute makes quite clear that the pocketbook being targeted is the purchaser’s. The tax is imposed upon the vendor’s “receipts” (Tax Law § 1105 [a]), and while “receipt[s]” is defined to include “any amount for which credit is allowed by the vendor to the purchaser” (Tax Law § 1101 [b] [3]), nothing in the statute suggests an intention to tax as “receipts” sums that the vendor never in fact receives. On the contrary, Tax Law § 1132 (e) says that the State Tax Commission “may provide, by regulation, for the exclusion from taxable receipts . . . of amounts representing sales where the contract of sale has been cancelled, the property returned or the receipt . . . has been ascertained to be uncollectible.” (As I explain below, I think the majority reads too much into the word “may” in this section of the statute.)

The statute not only permits, but requires, the vendor to pass on the burden of the tax to the purchaser. Under Tax Law § 1132 (a) (1): “[e]very person required to collect the tax shall collect the tax from the customer If the customer is given any sales slip, invoice, receipt or other statement or memorandum of the price . . . the tax shall be stated, charged and shown separately” Vendors are forbidden to “advertise or hold out to the public in any manner, directly or indirectly, that the tax is not considered as an element in the price . . . payable by customers” (Tax Law § 1133 [d]).

Thus, when a vendor parts with merchandise that a customer has paid for, the vendor does not directly bear the burden of the sales tax. (Of course the sales tax often burdens vendors indirectly, by reducing their sales or impelling them to charge lower prices, but this kind of indirect consequence is not the same as the direct burden of paying the tax.) And obviously, where the vendor retains his merchandise and receives no payment—i.e., where no sale takes place—the vendor does not bear the burden of any tax. It would be neither fair nor sensible to make the vendor bear the burden of the tax where it is in the worst possible situation—where it has parted with the merchandise and received nothing in exchange—and the State has never, so far as I am aware, sought to do so. But it is equally anomalous, where the vendor has passed the risk of collection on to a third-party assignee, to make that assignee bear the sales tax burden in cases where the customer pays nothing. By promulgating 20 NYCRR 534.7 (b) (3), respondent Commissioner of Taxation and Finance has created just this anomaly.

We rejected an effort by the State Tax Commission to achieve a similarly irrational result in *Matter of Abraham & Straus v Tully* (47 NY2d 207 [1979]). In that case, the State Tax Commission did not go as far as the Commissioner has done in this case; it did not try to collect a tax where the purchaser paid nothing, but it did try to collect more than the appropriate percentage of what the purchaser paid. In cases where customers had paid only part of the purchase price, the Commission allocated the payments to sales tax first and to the purchase price thereafter. Thus, as we said in our opinion, if the purchase price of an item subject to a 5% tax were \$100, but the customer paid only \$20, the State Tax Commission would allocate \$5 to sales tax and \$15 to the purchase price. As a result, we explained, “the effective tax rate on the portion of the purchase price actually received will be 33⅓%” (47 NY2d at 213).

We rejected this approach as inconsistent with both the statute (Tax Law § 1132 [e]), and the regulation implementing it (20 NYCRR 525.5 [a]). We said:

“The interpretation placed on [subdivision (e)] of section 1132 of the Tax Law and on regulation 525.5 (a) by the Sales Tax Bureau and by the State Tax Commission in this proceeding would all but emasculate the statute and regulation. The statute and the regulation obviously intend that a vendor shall be relieved of sales tax liability to the extent that the receipt from a sale proves uncollectible, so that the taxes which the vendor is required to remit will most closely reflect the tax due *on moneys actually received* on sales of personal property. The method employed by the bureau and approved by the commission, by which it is assumed that the first cash received by a vendor on a credit sale is for the entire sales tax due on the sale, would have quite the contrary result and, by reason of the fact that the receipts under consideration are by their nature not fully collectible, would inevitably produce a liability for sales taxes which would deviate from the statutory sales tax rate” (*id.* at 212-213 [emphasis added]).

We found the State Tax Commission’s interpretation of the statute and regulation in *Abraham & Straus* to be “irrational and unreasonable” (*id.* at 214). In this case, the Commissioner has embodied his interpretation of the statute in a regulation, but his interpretation is no less unreasonable. The Commissioner refuses to reduce tax liability “to the extent that the receipt from a sale proves uncollectible” and is collecting not just a tax in excess of the statutory rate “on moneys actually received,” but a tax where no money is received at all.

Our decision in *Abraham & Straus* followed the logic of an earlier Appellate Division case raising the same issue, *Matter of Yonkers Plumbing & Heating Supply Corp. v Tully* (62 AD2d 18 [3d Dept 1978]). There the Court, rejecting the State Tax Commission’s view that “100% of the tax must be collected before a vendor receives any money” said: “It is inconceivable that the Legislature intended to tax a sale never consummated” (62 AD2d at 20). I agree, and I believe that is the implication of our holding in *Abraham & Straus*.

Respondents argue, however, and the Court today agrees, that the Legislature did authorize collection of tax on purchase

prices that are never paid. This conclusion is based on the word “may” in Tax Law § 1132 (e): “The tax commission *may* provide, by regulation, for the exclusion from taxable receipts . . . of amounts representing sales where the contract of sale has been cancelled, the property returned or the receipt . . . has been ascertained to be uncollectible or, in case the tax has been paid upon such receipt . . . for refund of or credit for the tax so paid.” (Emphasis added.)

The majority reads this language as authorizing the Commissioner (the successor to the State Tax Commission) to make no provision at all for such exclusions, refunds or credits if he chooses—thus producing the result, “inconceivable” to the *Yonkers Plumbing* court, of a sales tax where there is no sales transaction. According to the majority, the Commissioner could, simply by not issuing the regulations which section 1132 (e) says he “may” issue, exact tax on money never received. It is implicit in the majority’s logic that the Commissioner could require payment of tax not only where a debt is uncollectible, but “where the contract of sale has been cancelled” or “the property returned.” The Commissioner has not imposed such a tax, but by not doing so, in the majority’s view, the Commissioner is doing vendors a favor—the majority describes it as a “benefit” which “offsets the significant responsibilities imposed on [vendors] and fosters the trustee relationship between the vendors and the State” (majority op at 256). The Commissioner is under no obligation, the majority reasons, to do a similar favor for assignees who are not trustees for the receipt of sales tax.

I think the majority misreads the statutory scheme. The whole policy of the statute, as reflected in the provisions I summarized above, is to tax the purchaser, not the vendor. It is a tax on “receipts.” The statute does indeed define “receipts” to include amounts for which credit is extended, but it is quite another thing to include amounts for which credit is extended *that are never paid*. It would be a very strange definition of “receipts” that included amounts never received at all, and I see no basis for believing that the Legislature intended such a definition. On the contrary, I conclude from reading the statutes that a sales tax on a nonsale was as “inconceivable” to the Legislature as it was to the Court in *Yonkers Plumbing*, and that the Legislature assumed that, one way or another, sales tax proceeds would come only out of the prices that purchasers actually paid.

The Legislature did not provide the mechanism by which the collection of tax on unconsummated transactions should be avoided. Instead, it provided in Tax Law § 1132 (e) that the Tax Commission “may” devise whatever mechanisms it thought suitable—exclusion from receipts, refunds and credits. The word “may” was surely intended to give the Tax Commission (and now, the Commissioner) much flexibility. Not only “may” the Commissioner make reasonable choices among the mechanisms—exclusion, credit and refund—mentioned in the statute, but I have no doubt that he “may” adopt administratively convenient shortcuts, even if they do not achieve theoretically perfect results. For example, the Commissioner could require vendors to use a simple and intelligible formula for calculating uncollectible amounts, even if that formula did not perfectly exclude every penny that was not collected. I cannot believe, however, that the word “may” was intended to let the Commissioner reverse the plain intent of the legislation he is enforcing by in effect imposing a tax on vendors who are unlucky enough to be stiffed by their customers.¹

In short, I do not believe that it would have been within the discretion of the Commissioner to decide to permit *no* exclusions, credits or refunds for uncollectible debts. If I am right in this, the basis for the majority’s conclusion in this case falls away. The Commissioner’s decision to allow, by regulation, credits or refunds for uncollectible debts cannot be interpreted as a gracious favor given by the Commissioner to vendors, which he can withhold from those who are not vendors and therefore not “trustees.”

It remains to consider whether any other justification warrants what the Commissioner purports to do in 20 NYCRR 534.7 (b) (3): to deny a refund or credit, and thus effectively tax an unconsummated sale, in those cases where the transaction has been financed by, or a debt assigned to, a third party.

Respondents argue that Tax Law § 1132 (e) not only permits, but requires, the distinction that section 534.7 (b) (3) makes between vendors and vendors’ assignees; that assignees are not, under the statute, eligible for a refund when debts are uncollectible. The majority does not accept this argument; indeed, it

1. We said in *Abraham & Straus* that “we do not reject the view . . . that it was within the discretion of the Tax Commission whether to provide for any credit or refund resulting from uncollectible credit transactions” (47 NY2d at 214). We did not say, however, “we accept the view.” We did not reach the question.

implicitly rejects it, for it upholds section 534.7 (b) (3) as a proper exercise of the Commissioner's discretion, not as obedience to a statutory command. I believe the respondents' argument is without merit.

Respondents' theory is that section 1132 (e), in authorizing regulations that provide for exclusion, refund or credit of taxes paid on uncollectible debts, limits the benefit of such regulations to "vendors" and excludes vendors' assignees. The first problem with this argument is that the word "vendors" does not appear in section 1132 (e). However, that statute refers to exclusion from taxable "receipts," and respondents argue that only vendors can have "receipts" within the meaning of the statute. Tax Law § 1101 (b) (3) defines "receipt" as "[t]he amount of the sale price of any property and the charge for any service taxable under this article . . . valued in money, whether received in money or otherwise" and goes on to state certain specific inclusions in, and an exclusion from, this definition. Thus, the essential definition of "receipt" does not use the word "vendor." The specified inclusions do; they qualify the definition of "receipts" as "including any amount for which credit is allowed by the vendor to the purchaser . . . and also including any charges by the vendor to the purchaser for shipping or delivery . . . regardless of whether such shipping or delivery is provided by such vendor or a third party." If the definition is read literally and with care it does not say that only "vendors" can have "receipts." It says only that "receipts" are inclusive of certain credits or charges allowed or imposed by "vendors." Thus even on a literal level, respondents' argument fails.

Ignoring this, respondents infer from the mere mention of the word "vendor" in Tax Law § 1101 (b) (3) an intention by the Legislature that the exclusion from taxable "receipts" authorized by Tax Law § 1132 (e), and the credits and refunds also authorized by that statute, can benefit only vendors themselves and not their assignees. I believe the idea the Legislature was trying to communicate such a limitation when it included the word "vendor" in subordinate clauses of the definition of "receipts" is absurd.

Indeed, even if Tax Law § 1132 (e) said that the Commissioner was authorized to allow "vendors" to exclude bad debts from their receipts, respondents' argument would still be a weak one. When a statute gives a person a right of action it is ordinarily understood to imply the same right in that person's successors in interest, including assignees. Even apart from

General Obligations Law § 13-101, which I discuss below, the normal presumption in the law is that a person entitled to payment may assign his or her rights, where no contrary intention is expressed. (*Melino v National Grange Mut. Ins. Co.*, 213 AD2d 86, 88 [3d Dept 1995]; *Scarfe v Lorom*, 141 NYS2d 196, 197-198 [Sup Ct, Onondaga County 1955] [the law favors free assignability of choses in action unless expressly forbidden by statute or against public policy]; *Puget Sound Natl. Bank v State Dept. of Revenue*, 123 Wash 2d 284, 868 P2d 127 [1994] [holding sales tax refund claims to be assignable]; *People ex rel. Stone v Nudelman*, 376 Ill 535, 539-540, 34 NE2d 851, 853 [1940] [holding credit issued for erroneous payment of tax assignable].)

There is not the slightest indication in Tax Law § 1132 (e) that the Legislature intended to exclude assignees, or that it gave any thought to the question. Respondents surely would not even contend that all successors in interest to “vendors” are excluded: obviously, if a vendor is an individual and dies, the refund can be collected by his or her executors; if the vendor is a corporation that is merged out of existence, the refund can be collected by the successor entity. Nothing in the statute indicates that an assignee should be on any different footing.

I consider one final possible argument in support of the validity of 20 NYCRR 534.7 (b) (3) under the Tax Law. As I have explained above, while I believe that the Legislature intended to impose sales tax only on transactions in which a purchase price was actually paid, I recognize that practical considerations might trump the perfect attainment of that goal. Thus I think we should seriously consider an argument that the Commissioner’s disparate treatment of cases where there is an assignment and cases where there is not is justified by some administrative reason.

But respondents’ brief in this Court makes no such argument, and the issue of administrative convenience is barely touched on in the decisions of the Administrative Law Judge and respondent Tax Appeals Tribunal rejecting petitioner’s claim. The Tribunal, at the end of its lengthy opinion, does say that without a “connection between an applicant [for refund], the person responsible for collecting the tax and the underlying transaction, the field of potential refund or credit applicants . . . would be virtually limitless and the orderly administration of the sales tax rendered unworkable.” But the Tribunal neither states the facts underlying this conclusion nor explains how it was arrived at. Similarly, at the oral argument in this

Court, respondents' counsel, in response to questioning, asserted in conclusory fashion that it would be "unwieldy" for the Department to pursue assignees, because the pursuit could involve unraveling numerous complex transactions. The oral argument by petitioner's counsel on the same subject was more specific and more persuasive: he said that the Department of Taxation and Finance now deals with 640,000 vendors; that there are no more than a few dozen assignees, chiefly large credit card companies who purchase debt from many vendors; and that it would in fact be administratively easier for the Department to deal with assignees than vendors.

In any event—even assuming we could consider a justification for the regulation that is supported by no more than conclusory assertions—the “administrative convenience” argument is not viable. Section 534.7 (b) (3), on its face, is not designed just to save the Department whatever added trouble there may be in dealing with assignees rather than vendors. The regulation does not say that only a vendor may apply for a refund or credit; if it said that, presumably vendors and their assignees could structure their transactions so that the vendor would get the refund and pay it to the assignee. The regulation flatly forbids any refund or credit to anyone in a “transaction which is financed by a third party or for a debt which has been assigned to a third party.” Thus, the regulation requires that in all such transactions, the applicable percentage of the customer's unpaid obligation will remain in the state treasury.

I therefore conclude that administrative convenience and efficiency are not the reasons for, and do not justify, section 534.7 (b) (3). Indeed, I can think of only one reason for the regulation: it effectively transfers money from private firms to the State.² I am not shocked that the Commissioner of Taxation and Finance finds this an attractive result, but I do not believe the Legislature has authorized the Commissioner to accomplish that result in this case. I therefore conclude that section 534.7 (b) (3) is invalid because it is inconsistent with the Tax Law.

2. I am bemused by the majority's suggestion that “[p]etitioner has not borne any sales tax burden” (majority op at 259). The State has obviously collected and retained a sales tax; the purchasers have borne no burden, for they paid nothing; and, by the majority's reasoning, the whole point of the regulation is to avoid burdening trustee-vendors. If the assignees are bearing no burden, the State has apparently achieved a miracle—it has collected a tax without burdening anyone.

II

I also believe that section 534.7 (b) (3) is inconsistent with General Obligations Law § 13-101, which provides:

“Any claim or demand can be transferred, except in one of the following cases:

“1. Where it is to recover damages for a personal injury;

“2. Where it is founded upon a grant, which is made void by a statute of the state; or upon a claim to or interest in real property, a grant of which, by the transferrer, would be void by such a statute;

“3. Where a transfer thereof is expressly forbidden by: (a) a statute of the state, or (b) a statute of the United States, or (c) would contravene public policy.”

I find it hard to imagine a regulation more directly contrary to this statute than one that says, as 20 NYCRR 534.7 (b) (3) does, that a refund or credit otherwise available “is not available . . . for a debt which has been assigned to a third party.” Indeed, the decisions in this case of both the Administrative Law Judge and the Tax Appeals Tribunal appear to acknowledge that section 534.7 (b) (3) is inconsistent with General Obligations Law § 13-101, and the Appellate Division assumed, without deciding, that that was correct. Nevertheless, all three found section 534.7 (b) (3) to be valid. The Tax Appeals Tribunal and the Appellate Division based this holding on the theory that Tax Law § 1132 (e), which in their view authorized the promulgation of section 534.7 (b) (3), was enacted subsequent to General Obligations Law § 13-101, and thus superseded it. In other words, the Tax Appeals Tribunal and the Appellate Division held that section 1132 (e) impliedly repealed section 13-101, insofar as section 13-101 applied to claims for sales tax refunds. Respondents’ brief also argues that section 1132 (e) is a “later-enacted, specific” provision which “governs” to the extent it conflicts with section 13-101.

It is well established that repeals by implication are not favored (see *Matter of Consolidated Edison Co. of N.Y. v Department of Env'tl. Conservation*, 71 NY2d 186, 195 [1988]; *Alweis v Evans*, 69 NY2d 199, 204 [1987]; *People v Newman*, 32 NY2d 379, 390 [1973]). Unless there is clear evidence of a legislative design to repeal an earlier piece of legislation, “we must, if at

all possible, give full effect to both statutes” (*Newman*, 32 NY2d at 389). It is only when the statutes “are in such conflict that both cannot be given effect” that a repeal by implication may be found (*Matter of Board of Educ. v Allen*, 6 NY2d 127, 142 [1959]).

With respect, I find the idea that Tax Law § 1132 (e) so clearly contradicts General Obligations Law § 13-101 that the former impliedly repeals the latter to be extremely farfetched. Section 13-101 is a statute dealing with the transferability, or assignability, of claims. Section 1132 (e) says not a word on that subject. The logic by which respondents find an implied repeal in section 1132 (e) is the same chain of reasoning that I described above, in which respondents argue that assignees are not eligible for refunds under section 1132 (e). That is, respondents start from the word “receipts” in section 1132 (e), find the word “vendor” in two subordinate clauses in the definition of “receipt,” and infer from that that only a vendor, and not a vendor’s assignee, can have “receipts”; thus respondents conclude, assignees may not benefit from section 1132 (e). As I said above, I see not the slightest warrant for believing that is what the Legislature was thinking when it wrote section 1132 (e). A fortiori, section 1132 (e) is not the sort of clear prohibition on assignment that would justify finding an implied repeal of the General Obligations Law section.

In addition to making the implied repeal argument, respondents argue that the prohibition on assignment contained in 20 NYCRR 534.7 (b) (3) is valid under the “public policy” exception of General Obligations Law § 13-101 (3). Respondents’ “public policy” argument, however, is but another iteration of their theory that section 1132 (e) is a prohibition on assignment. I find it no less difficult to find an anti-assignment “public policy” in section 1132 (e) than I do to find an implied repeal.

The majority’s discussion of General Obligations Law § 13-101 does not track either respondents’ “implied repeal” or “public policy” argument. But the majority does find that section 534.7 (b) (3) is within the public policy exception in General Obligations Law § 13-101 (3). The majority’s reasoning, if I understand it correctly, is that, since (in the majority’s view) section 534.7 (b) (3) is consistent with the Tax Law, that regulation “has the force and effect of law” and is therefore an embodiment of “public policy” (majority op at 258). I believe this is a bootstrap argument which contradicts the plain intent of General Obligations Law § 13-101.

Section 13-101 (3) contains two exceptions to the general rule of assignability: one “[w]here a transfer . . . is *expressly* forbidden by . . . statute” and another where it “would contravene public policy.” No one can argue that Tax Law § 1132 (e) expressly forbids assignment of claims for refund or credit of sales tax. The majority holds only that it implicitly authorizes the Commissioner to promulgate a regulation forbidding such assignments. If a regulation, promulgated pursuant to implicit statutory authorization, is enough by itself to invoke the second, “public policy,” exception, then the restrictive language the Legislature used to define the first exception is meaningless. Why did the authors of General Obligations Law § 13-101 (3) require “express” statutory language if a regulation, not “expressly” authorized, is all that is needed to create “public policy”?

The majority relies on General Obligations Law § 13-105 and on *Matter of Medical Socy. of State of N.Y. v Serio* (100 NY2d 854 [2003]). I believe the reliance on section 13-105 to be erroneous, for section 13-105 applies only “[w]here a claim or demand *can* be transferred.” (Emphasis added.) Section 13-105 provides, in substance, that a claim, once transferred, can be litigated in the same manner as though it had not been transferred, except where the issue is “regulated by special provision of law.” Since the regulation that the majority upholds provides that claims for sales tax refunds *cannot* be transferred, I do not see how section 13-105 comes into the picture.³ In any event, I do not believe that Tax Law § 1132 (e), or any of the other provisions of law the majority cites, can be read as governing the way in which transferred claims may be litigated.

As for *Medical Society v Serio*, I find it relevant here only by contrast. The claims at issue in *Medical Society* were claims of beneficiaries of no-fault insurance to “benefits for non-health-related services (typically housekeeping and transportation expenses)” (100 NY2d at 871). The Superintendent of Insurance had determined that “questionable claims for transportation or housekeeping expenses” were being assigned to health care providers and that a prohibition on such assignments was “necessary to reduce [such] abuses” (*id.* at 871-872). This seems to me a classic example of the sort of restriction on assignment

3. Respondents cite section 13-105 in their brief, but only to argue that this provision “does not help [petitioner’s] argument.” Respondents do not argue that it helps their own.

that the “public policy” exception in General Obligations Law § 13-101 (3) permits. *Medical Society* does not suggest, as the majority does here, that the mere existence of a regulation created a “public policy”; rather, *Medical Society* identified an important public policy that made the regulation appropriate. Here, as I have explained, I cannot see any meaningful “public policy” that is served by the regulation under attack—unless the goal of collecting more tax money than the statute authorizes could be called a “public policy.”

Accordingly, I would reverse the order of the Appellate Division and direct that petitioner’s refund claims be granted.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK and ROSENBLATT concur with Judge GRAFFEO; Judge R.S. SMITH dissents and votes to reverse in a separate opinion; Judge READ taking no part.

Judgment affirmed, with costs.

[810 NE2d 879, 778 NYS2d 427]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICKY MITCHELL, Appellant.

Argued March 25, 2004; decided May 4, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 12, 2002. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Robert L. Cohen, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts).

People v Mitchell, 299 AD2d 187, affirmed.

HEADNOTE

Crimes — Right to Counsel — Right of Parent to Invoke on Child's Behalf

The mother of a 15-year-old defendant arrested for armed robbery did not invoke the right to counsel at a lineup on her son's behalf by informing the police that he had a lawyer and asking whether the police wanted the lawyer's phone number. Although the parent or legal guardian of a juvenile delinquent or juvenile offender may invoke the right to counsel on the child's behalf, the invocation must be unequivocal. The remarks made by defendant's mother were consistent with a variety of interpretations and did not alert the police that the presence of counsel at the lineup was specifically requested.

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AM JUR 2d, Criminal Law §§ 995, 1186, 1192, 1193, 1210;
AM JUR 2d, Juvenile Courts and Delinquent and Dependent Children §§ 76, 78.

CARMODY-WAIT 2d, Proceedings Involving Abused and Neglected Children, Juvenile Delinquents, and Persons in Need of Supervision §§ 119A:219, 119A:226; CARMODY-WAIT 2d, Criminal Procedure §§ 172:1700, 172:1705–172:1707.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 7.3.

NY JUR 2d, Criminal Law §§ 655, 764, 765; NY JUR 2d, Domestic Relations § 1334.

ANNOTATION REFERENCE

See ALR Index under Attorney or Assistance of Attorney;

Juvenile Courts and Delinquent and Dependent Children;
Lineups.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: right /4 counsel attorney /s invo! /p line-up & juvenile minor

POINTS OF COUNSEL

Lawrence T. Hausman, New York City, and *Laura R. Johnson* for appellant. Given that the mother of the 15-year-old appellant communicated to the police her interest in having appellant's lawyer from an unrelated case attend the investigatory lineup, the police violated appellant's right to counsel by conducting the lineup without affording that attorney an opportunity to attend. (*People v Hawkins*, 55 NY2d 474; *People v Blake*, 35 NY2d 331; *People v LaClere*, 76 NY2d 670; *People v Coates*, 74 NY2d 244; *People v Lee*, 155 Misc 2d 337; *United States v Wade*, 388 US 218; *Gilbert v California*, 388 US 263; *People v Oakley*, 28 NY2d 309; *Kirby v Illinois*, 406 US 682; *People v Cunningham*, 49 NY2d 203.)

Robert T. Johnson, District Attorney, Bronx (*Andrew N. Sacher*, *Joseph N. Ferdenzi* and *Peter D. Coddington* of counsel), for respondent. I. Defendant's guilt of robbery in the first degree was proved beyond a reasonable doubt. (*People v Kello*, 96 NY2d 740; *People v Johnson*, 57 NY2d 969; *People v Shedrick*, 66 NY2d 1015.) II. Defendant was not entitled to have counsel present at his preindictment investigatory lineup. (*People v Hawkins*, 55 NY2d 474; *Kirby v Illinois*, 406 US 682; *United States v Wade*, 388 US 218; *Matter of Jamal C.*, 75 NY2d 893; *People v Hernandez*, 70 NY2d 833; *People v Grice*, 100 NY2d 318; *People v Bing*, 76 NY2d 331; *People v Wilson*, 89 NY2d 754; *People v LaClere*, 76 NY2d 670; *People v Coates*, 74 NY2d 244.)

OPINION OF THE COURT

Chief Judge KAYE.

This appeal calls upon us to decide whether the parent of a juvenile offender can invoke the right to counsel on the child's behalf.

Defendant was 15 years old when he was arrested at his high school for armed robbery. Prior to placing defendant in a lineup, the investigating officer called defendant's mother to ask whether she could attend the planned identification procedure.

At a suppression hearing, defendant's mother testified that she told the officer she was unable to attend because she had a young baby, but added that defendant had a lawyer and asked, "Do you want a number?" Although defendant's mother did not remember the officer's response, the record reflects (and Supreme Court found) that the police were already aware that defendant was represented by counsel in a pending, unrelated case. The officer did not, however, attempt to contact defendant's lawyer or otherwise afford counsel an opportunity to attend the lineup, at which defendant was identified by two eyewitnesses as the perpetrator of the robbery. Defendant's motion to suppress the uncounseled lineup and any in-court identification was denied, and, upon his trial as a juvenile offender, a jury convicted him of two counts of robbery in the first degree. The Appellate Division affirmed, as do we.

Discussion

The constitutional right to counsel generally attaches upon the commencement of a criminal action or other adversary judicial proceedings.¹ There is thus no automatic entitlement to counsel at pre-accusatory, investigatory lineups, including in the context of juvenile delinquency proceedings.² As a result, "law enforcement authorities ordinarily are not required to notify counsel of an impending investigatory lineup absent a specific request to do so."³

Even before the commencement of formal proceedings, however, the right to counsel at an investigatory lineup will attach in either of two circumstances. The first is when counsel has actually entered the matter under investigation.⁴ The second is when a defendant in custody, already represented by counsel on an unrelated case, invokes the right by requesting his or her attorney.⁵ Once the right to counsel has been triggered, the police may not proceed with the lineup without at least apprising the defendant's lawyer of the situation and affording the lawyer

1. See *People v Settles*, 46 NY2d 154 (1978); *People v Blake*, 35 NY2d 331 (1974); *People v Coleman*, 43 NY2d 222 (1977); *People v Sugden*, 35 NY2d 453 (1974).

2. See *People v Hawkins*, 55 NY2d 474 (1982); *Blake*, 35 NY2d 331; *Matter of Jamal C.*, 75 NY2d 893 (1990).

3. *People v Coates*, 74 NY2d 244, 249 (1989).

4. See *People v LaClere*, 76 NY2d 670 (1990); *People v Wilson*, 89 NY2d 754 (1997).

5. See *Coates*, 74 NY2d at 249; *People v Thomas*, 76 NY2d 902 (1990).

a reasonable opportunity to appear. A specific request that the lineup not proceed until counsel is so notified need not be made.

The question presented here is whether defendant's mother could invoke the right to counsel on his behalf. We hold that she could, but did not in this case.

The police are not required to secure counsel for an unrepresented suspect being placed in a pre-accusatory, investigatory lineup, even when the suspect requests that counsel be provided.⁶ Rather, a request for counsel at such a lineup will cause the right to attach only when the police are or become aware that the suspect is actually represented by counsel in a pending case. "When an accused, at any stage, . . . to the knowledge of the law enforcement agencies, already has counsel, his right or access to counsel may not be denied."⁷ Here, the undisturbed finding of the suppression court, supported by the record, was that the police were already aware that defendant was represented by counsel on a pending, unrelated case, even before defendant's mother so informed them. In these circumstances, the question becomes simply whether defendant's mother could invoke counsel by requesting it on his behalf.

Although a third party cannot invoke counsel on behalf of an adult defendant,⁸ the considerations may be different when a juvenile is involved. Juveniles charged with delinquency can be as young as seven.⁹ Children of tender years lack an adult's knowledge of the probable cause of their acts or omissions and are least likely to understand the scope of their rights and how to protect their own interests. They may not appreciate the ramifications of their decisions or realize all the implications of the importance of counsel. Indeed, the need for counsel "has been recognized as all the more vital with respect to the unsophisticated, who are often uneducated in the ways of the criminal justice system and unaware of the role counsel can play in protecting their interests."¹⁰ Consistent with these principles, New York law requires that parents be notified of certain criminal proceedings involving an accused under 16 years old.¹¹

6. See *Hawkins*, 55 NY2d at 487.

7. *Blake*, 35 NY2d at 338.

8. See *People v Grice*, 100 NY2d 318, 324 n 2 (2003).

9. See Family Court Act § 301.2 (1).

10. *Settles*, 46 NY2d at 160.

11. See CPL 1.20 (42); 140.20 (6) (police must notify parent of arrest and whereabouts of a juvenile offender); Family Court Act § 305.2 (2), (3), (7) (par-

(n. cont'd)

While the parent or legal guardian of a juvenile delinquent or juvenile offender may invoke the right to counsel on his or her child's behalf,¹² the undisturbed finding that defendant's mother did not do so here has support in the record and is thus beyond our further review. In order for the right to attach, the invocation of counsel by an uncharged defendant—or by a parent standing in the defendant's shoes—must be unequivocal. Whether a particular request is or is not unequivocal “must be determined with reference to the circumstances surrounding the request including the [speaker's] demeanor, manner of expression and the particular words found to have been used.”¹³ While no magic words are required, an unequivocal invocation—even when uttered by a layperson understandably upset at the arrest of her child—must alert the police that the presence of counsel at the lineup is specifically requested. A suggestion that counsel might be desired;¹⁴ a notification that counsel exists;¹⁵ or a query as to whether counsel ought to be obtained¹⁶ will not suffice. Here, defendant's mother merely informed the police that defendant had a lawyer and asked whether the police wanted that lawyer's number. Because her remarks are consistent with a variety of interpretations, we cannot conclude that the suppression court erred as a matter of law in finding that she did not unequivocally invoke her son's right to counsel.

Accordingly, the order of the Appellate Division should be affirmed.

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

ent must be given notice, *Miranda* warnings and an opportunity to attend custodial interrogation of children under 16 years old arrested for juvenile delinquency).

12. Of course, as made clear above, in the context of a pre-accusatory, investigatory lineup, the right to counsel may be invoked only when the defendant is already represented in a pending case.

13. *People v Glover*, 87 NY2d 838, 839 (1995).

14. *See People v Fridman*, 71 NY2d 845 (1988).

15. *See People v Roe*, 73 NY2d 1004 (1989).

16. *See People v Hicks*, 69 NY2d 969 (1987).

[810 NE2d 883, 778 NYS2d 431]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLAY-
TON STULTZ, Appellant.

Argued April 1, 2004; decided May 4, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 7, 2003. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate an order of that Court dated June 4, 2001 (284 AD2d 350), which had affirmed a judgment of the Nassau County Court (Joseph C. Calabrese, J.). The judgment had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Stultz, 304 AD2d 593, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Standard for Appellate Counsel

1. The appropriate standard for measuring effective assistance of appellate counsel is the same "meaningful representation" standard set forth for trial counsel in *People v Baldi* (54 NY2d 137 [1981]). Under that standard the focus is on the fairness of the proceedings as a whole, and a defendant's showing of prejudice is a significant but not indispensable element in assessing meaningful representation. Appellate counsel, like trial counsel, enjoy a wide latitude in defending their clients. In general, however, their representation must reflect a competent grasp of the facts, the law and appellate procedure, supported by appropriate authority and argument.

Crimes — Right to Counsel — Effective Representation — Appellate Counsel

2. Defendant's appellate counsel was not ineffective for having failed to assail trial counsel's performance. Although trial counsel did not try to get into evidence sworn statements given by an unavailable witness that were exculpatory and material, the statements were not reliable enough to be admitted. Appellate counsel had no basis to castigate trial counsel for what would have been a losing argument.

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AM JUR 2d, Criminal Law §§ 1217, 1223-1227.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:1814,
172:1834, 172:1956.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 11.10.

NY JUR 2d, Criminal Law §§ 783, 810, 812, 815–818.

ANNOTATION REFERENCE

Adequacy of defense counsel's representation of criminal client regarding appellate and postconviction remedies. 15 ALR4th 582.

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Query: effective! /s appellate /3 counsel attorney /p meaningful /2 representation

POINTS OF COUNSEL

Norman A. Olch, New York City, for appellant. I. Defendant was denied the effective assistance of appellate counsel when his attorney did not make the clearly arguable claim that trial counsel failed defendant by not placing in evidence the admissible sworn statements of an unavailable eyewitness identifying another man as the murderer. (*Smith v Robbins*, 528 US 259; *People v Stokes*, 95 NY2d 633; *Chambers v Mississippi*, 410 US 284; *People v Robinson*, 89 NY2d 648; *Rosario v Kuhlman*, 839 F2d 918; *Washington v Texas*, 388 US 14; *In re Oliver*, 333 US 257; *Pettijohn v Hall*, 599 F2d 476; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137.) II. Defendant was denied the effective assistance of appellate counsel because counsel failed to raise on appeal the preserved claim that critical prosecution testimony denied defendant his constitutional right of confrontation. (*Idaho v Wright*, 497 US 805; *Barber v Page*, 390 US 719; *Pointer v Texas*, 380 US 400; *People v Kello*, 96 NY2d 740; *Ohio v Roberts*, 448 US 56; *People v Maldonado*, 97 NY2d 522; *People v James*, 93 NY2d 620; *Telaro v Telaro*, 25 NY2d 433.)

Denis Dillon, District Attorney, Mineola (*Edward Miller* and *Peter A. Weinstein* of counsel), for respondent. I. Defendant received the effective assistance of appellate counsel. (*People v Hobot*, 84 NY2d 1021; *People v Benevento*, 91 NY2d 708; *People v Berroa*, 99 NY2d 134; *People v Baldi*, 54 NY2d 137; *People v Ellis*, 81 NY2d 854; *People v Henry*, 95 NY2d 563; *People v Rivera*, 71 NY2d 705; *People v Angelakos*, 70 NY2d 670; *People v Taylor*, 1 NY3d 174; *People v Ortiz*, 76 NY2d 652.) II. Appellate counsel was not ineffective when, in claiming that the trial

court erred in admitting testimony identifying the number assigned to a particular telephone, he argued that this evidence was inadmissible under the hearsay rule without also arguing that its introduction violated defendant's constitutional right of confrontation. (*People v Angelakos*, 70 NY2d 670; *People v Taylor*, 1 NY3d 174; *People v Stuart*, 100 NY2d 412; *People v Qualls*, 55 NY2d 733; *People v Martin*, 50 NY2d 1029; *People v Tutt*, 38 NY2d 1011; *People v Love*, 307 AD2d 528; *People v Chaparro*, 303 AD2d 277; *People v Massillon*, 289 AD2d 103; *Delaware v Fensterer*, 474 US 15.)

OPINION OF THE COURT

ROSENBLATT, J.

Defendants in criminal cases have a constitutional right to effective assistance of counsel (US Const 6th Amend; NY Const, art I, § 6). In *People v Baldi* (54 NY2d 137 [1981]), we set the standard for claimed ineffective assistance of trial counsel, holding that the constitutional requirements are met when the defense attorney provides "meaningful representation." We are now called upon, for the first time, to set a standard for claimed ineffective assistance of appellate counsel. We conclude that the same standard—meaningful representation—should be applied and that in the case before us appellate counsel met the test. In so holding, we reject defendant's claim that appellate counsel was ineffective for having failed to assail trial counsel's performance. Accordingly, we affirm the Appellate Division's denial of defendant's motion for coram nobis relief.

I.

A Nassau County jury found defendant guilty of murder in the second degree and criminal possession of a weapon in the second degree, for which the court sentenced him to concurrent prison terms of 25 years to life and 7½ to 15 years.

At trial, the People introduced proof that defendant and an accomplice shot and killed Todd Biggins in a park in Uniondale. A park employee testified that just before the shooting she had seen the victim talking on a payphone alongside a park administration building. Shortly after the phone call, two men—defendant and an accomplice—walked past her, toward the victim. From a distance of five or six feet she watched defendant for about 25 seconds. She saw defendant and his companion pull out handguns and shoot the victim several times before fleeing by car. Several months later, she picked defendant out of

a photo array and a lineup.¹ She stated that, when killing the victim, defendant had a smirk on his face that she would “never, ever forget.”

The People also proved that, while searching the deceased’s room, police found a paper containing the name “Noey” and a phone number that police linked to defendant.² Further, by using a digital code, police identified the telephone number of the park payphone and learned that on the date of the murder three calls were placed from that phone to defendant’s beeper. Also, a police detective testified that several weeks after the shooting he saw a car parked in defendant’s driveway. The vehicle resembled the getaway car and was registered to defendant’s mother.

Shortly before trial, almost two years after the murder and about a year after defendant’s arrest, Michelle Dolberry told the Nassau County police that she had witnessed the killing and knew the shooter to be Anthony Anderson, and not defendant. She gave the police a signed, sworn statement to that effect and in a sworn videotaped account repeated it to the prosecutors. The prosecution turned this material over to defense counsel to whom Dolberry reiterated that Anderson was the killer. Anderson’s brother, she said, was with him at the time. Although Dolberry was in jail on an unrelated charge, both sides expected her to testify, and when authorities brought her into court, the trial judge assigned her a Legal Aid lawyer. She refused to testify, asserting her privilege against self-incrimination.

At that, defendant argued that Dolberry’s testimony was critical because it supported his claim of mistaken identity. The defense asked the prosecution to grant Dolberry immunity, urging that without her testimony defendant would be denied due process and a fair trial. The prosecutor, however, declined and, despite defense counsel’s protestations over the prospect of losing Dolberry as a witness, the trial court did not ask her why she felt in danger of self-incrimination. Ultimately, the court concluded that it could not compel her to testify. Defense counsel did not try to get Dolberry’s statements admitted into evidence.

1. For several months after the killing, defendant was at large. He was apprehended when a police officer stopped him for a traffic violation and learned of the warrant for his arrest.

2. After his arrest, defendant revealed his nickname, “Noey,” and his beeper number, which matched the one found in the deceased’s room.

After the guilty verdict and sentence, defendant appealed his conviction to the Appellate Division. That Court affirmed (284 AD2d 350 [2001]), and we denied leave (96 NY2d 942 [2001]). Defendant then applied to the Appellate Division for a writ of error coram nobis, arguing that appellate counsel was ineffective for not attacking trial counsel's failure to offer Dolberry's statement into evidence. The Appellate Division denied the application (304 AD2d 593 [2003]), and a Judge of this Court granted defendant leave to appeal. We now affirm.

In advancing his claim that appellate counsel was ineffective, defendant contends that this Court should apply the *Baldi* "meaningful representation" standard, and that appellate counsel did not meet it. We will consider these contentions in order.

The Standard for Evaluating Claims of Ineffective Assistance of Appellate Counsel

In *People v Bachert* (69 NY2d 593 [1987]), we noted that there was no comprehensive statutory mechanism to address collateral claims of ineffective assistance of appellate counsel and called on the Legislature to remedy the problem.³ We held, however, that a defendant who claims to be aggrieved by appellate counsel's failures could proceed by writ of error coram nobis before the appellate court in which the allegedly deficient representation took place. In the absence of a statutory scheme, this Court recognized that it had no power to entertain appeals from appellate orders granting or denying coram nobis relief (see *People v Marsicoveteri*, 79 NY2d 913 [1992])⁴ and could not establish a standard for claims of ineffective assistance of appellate counsel. The Legislature remedied the problem by amending CPL 450.90 (L 2002, ch 498), authorizing appeals (by permission) to this Court from appellate orders granting or denying coram nobis relief based on claims of ineffective assistance or wrongful deprivation of appellate counsel.

Now presented with the opportunity to review these claims, we must set the appropriate standard. We begin with the

3. By that time, however, it had long been established that a defendant who by statute had an absolute right to appeal was entitled to assigned counsel (see *People v Hughes*, 15 NY2d 172 [1965]).

4. See also *People v Claudio* (77 NY2d 988 [1991]) in which we dismissed a petition for coram nobis relief, holding that there was no authority for initiating it in the Court of Appeals. (See generally Abramovsky, Criminal Law and Procedure, *New York's Last Common-Law Criminal Procedure: The Writ of Error Coram Nobis*, NYLJ, Mar. 31, 2000, at 3, col 1.)

premise that defendants in criminal cases have a federal and state constitutional right to effective assistance of appellate counsel.⁵ Twenty-three years ago, in *Baldi*, we went through a similar exercise when addressing claims of ineffective assistance of trial counsel and concluded that a “meaningful representation” criterion comports with both the Sixth Amendment and our own state constitutional sensibilities. The road to *Baldi* extended over several decades. Because that analysis leads us to the same result in fashioning a rule for evaluating appellate effectiveness, it is important to recognize some of the turns along the way. Equally important is that we have retained *Baldi* in preference to the federal (*Strickland v Washington*, 466 US 668 [1984]) standard in evaluating claims of ineffective assistance of trial counsel.

Although appellate lawyers have increasingly challenged the effectiveness of trial counsel (as a basis for reversing convictions), the right to effective trial counsel is not new.⁶ In the earliest such cases—late 19th and early 20th century decisions—a few courts addressed claims relating to counsel’s abject incompetency and, once in a great while (based generally on the court’s supervisory powers), ordered new trials.⁷

In New York, we have long recognized the importance of adequate counsel in criminal cases (see e.g. *People v Silverman*, 3 NY2d 200 [1957]; *People v McLaughlin*, 291 NY 480, 483 [1944]), but it was not until 1960 that we began to articulate something approaching a constitutional basis for claims of attorney ineffectiveness (see *People v Tomaselli*, 7 NY2d 350, 353-354 [1960]). In *Tomaselli*, we held that a defendant is entitled to reversal when counsel’s representation rendered the trial “a farce and a mockery of justice” (*id.* at 354). We adhered to that

5. See *Anders v California*, 386 US 738, 744 (1967); *Jones v Barnes*, 463 US 745 (1983); *People v Gonzalez*, 47 NY2d 606 (1979); *People v Bachert*, 69 NY2d 593 (1987).

6. See e.g. *Glasser v United States*, 315 US 60, 69-70 (1942); *Avery v Alabama*, 308 US 444, 446 (1940); *Powell v Alabama*, 287 US 45, 57 (1932); *Adams v United States*, 317 US 269, 275-276 (1942). For a history of the right to effective assistance of counsel, see, generally, Schwarzer, *Dealing with Incompetent Counsel—The Trial Judge’s Role* (93 Harv L Rev 633, 639-640 [1980]; *Finer, Ineffective Assistance of Counsel*, 58 Cornell L Rev 1077 [1973]).

7. See e.g. *State v Gunter*, 30 La Ann 536 (1878); *Roper v Territory*, 7 NM 255, 33 P 1014 (1893); *People v Schulman*, 299 Ill 125, 132 NE 530 (1921); see Annotation, *Incompetency, Negligence, Illness or the Like of Counsel as Ground for New Trial or Reversal in Criminal Case*, 24 ALR 1025, 64 ALR 436.

standard⁸ and in assigned counsel cases reversed some convictions under it on constitutional grounds.⁹ In 1976 and 1979, this Court in two cases found counsel's representation ineffective and thus constitutionally unacceptable (*see People v Droz*, 39 NY2d 457 [1976]; *People v Bell*, 48 NY2d 933 [1979]), but did not use the "farce or mockery" test or even refer to the cases that established it.

Finally, in *Baldi*, we departed from the "farce or mockery" test and articulated a new standard of "meaningful representation." We recognized, in essence, that a criminal trial should be more efficient, and fairer, than one that rises just above the level of farce. But we have been careful to distinguish between true ineffectiveness and losing tactics or unsuccessful efforts in advancing appropriate defenses (*see People v Henry*, 95 NY2d 563, 565 [2000]; *People v Berroa*, 99 NY2d 134 [2002]).

In *Strickland v Washington* (466 US 668 [1984]), the Supreme Court established a standard for evaluating defendants' Sixth Amendment claims of ineffective assistance of trial counsel. To prevail, the defendant must prove that trial counsel did not render reasonably competent assistance and that there is a reasonable probability that, but for the counsel's inadequacy, the outcome of the trial would have been different. *Strickland's* prejudice prong is what chiefly separates it from *Baldi*.

From time to time, we have referred to the *Strickland* standard and measured counsel's performance under it,¹⁰ but have never applied it with such stringency as to require a defendant to show that, but for counsel's ineffectiveness, the outcome would probably have been different. Under our *Baldi* standard, we are not indifferent to whether the defendant was or was not prejudiced by trial counsel's ineffectiveness. We would, indeed,

8. Other courts did as well (*see e.g. Commonwealth v Bernier*, 359 Mass 13, 267 NE2d 636 [1971]; *United States v Wight*, 176 F2d 376, 379 [2d Cir 1949]; *Diggs v Welch*, 148 F2d 667 [DC Cir 1945]; *see generally* Gilles, *Effective Assistance of Counsel: The Sixth Amendment and the Fair Trial Guarantee*, 50 U Chi L Rev 1380 [1983]).

9. *See e.g. People v Jones*, 25 NY2d 637 (1969); *People v Bennett*, 29 NY2d 462 (1972); *People v LaBree*, 34 NY2d 257 (1974); *see generally* Donnino, New York Court of Appeals on Criminal Law § 11:10 (2d ed). In assessing claims of ineffective assistance of counsel, we had at one time distinguished between retained and assigned attorneys (*see People v Hernandez*, 8 NY2d 345, 347 [1960]), but no longer do so (*see generally* Waltz, *Inadequacy of Trial Defense Representation as a Ground for Post-Conviction Relief in Criminal Cases*, 59 Nw U L Rev 289 [1964]).

10. *See e.g. People v Taylor*, 1 NY3d 174 (2003); *People v Ford*, 86 NY2d 397 (1995).

be skeptical of an ineffective assistance of counsel claim absent any showing of prejudice. But under our *Baldi* jurisprudence, a defendant need not fully satisfy the prejudice test of *Strickland*. We continue to regard a defendant's showing of prejudice as a significant but not indispensable element in assessing meaningful representation. Our focus is on the fairness of the proceedings as a whole.

[1] Based in part on our State Constitution, this Court had decided *Baldi* three years before *Strickland*, and in two later cases¹¹ declined to abandon the *Baldi* standard for *Strickland*'s.¹² We now decide that we should apply the *Baldi* standard in connection with claims of ineffective assistance of appellate counsel.

To begin with, it is inapt to have one standard for trials and another for appeals. We are confident that the appellate courts will be able to apply the *Baldi* standard appropriately when dealing with allegations of appellate counsel's ineffectiveness. Appellate courts are uniquely suited to evaluate what is meaningful in their own arena.

Allegations relating to trial counsel's performance are difficult to measure based on a cold record. A trial lawyer's decision to adopt one course or another often rests on strategies that cannot be gleaned from the record on appeal. For that reason, appellate courts usually can't tell whether trial counsel's approach was the result of a tactic that does not appear on the record. For example, to the uninitiated eye, it may appear that an attorney should have called a particular witness. Often, however, the trial record will not reveal that the attorney may have had a very good reason, known only to the defense, for not doing so. An appellate court cannot fault the attorney until after the nonrecord proof has been aired.

This is in contrast to appellate argument, which must be based on the record. The appellate court is eminently suited to evaluate appellate counsel's product because the court examines

11. See *People v Benevento*, 91 NY2d 708 (1998); *People v Henry*, 95 NY2d 563, 565 (2000).

12. Of course, in *Baldi* we did not create a state standard of ineffectiveness more difficult to prove than required under the Federal Constitution. In interpreting their own constitutions, states are free to provide greater protection than the Federal Constitution requires (see *California v Ramos*, 463 US 992 [1983]). In this sense, the Federal Constitution sets forth a minimum level of rights—a floor—to which states must adhere, but may surpass (see generally 1 Friesen, *State Constitutional Law: Litigating Individual Rights, Claims, and Defenses* § 1-3[d] [3d ed]).

the very same record and ordinarily requires no proof beyond its four corners.

In delineating what is meaningful, however, it would be unwise and possibly misleading to create a grid or carve in stone a standard by which to measure effectiveness. Just as defense attorneys enjoy a wide latitude in defending clients at the trial level, appellate lawyers vary in style and approach. A lengthy brief may be a virtue in some instances but not in others. Some arguments properly emphasize two or three cogent issues while others may raise a multiplicity of claims. There can be no rules about these appellate tactics, but there are certain general guidelines.¹³ Appellate advocacy is meaningful if it reflects a competent grasp of the facts, the law and appellate procedure, supported by appropriate authority and argument. Effective appellate representation by no means requires counsel to brief or argue every issue that may have merit. When it comes to the choice of issues, appellate lawyers have latitude in deciding which points to advance and how to order them. With that in mind, we turn to the claim before us.

Application of the Standard

On his direct appeal to the Appellate Division, defendant submitted a 53-page brief, prepared by two lawyers highly experienced in criminal law and appeals. Their brief reflects it.

In advancing their legal contentions, appellate counsel argued first that defendant's constitutional right to a fair trial was violated by the prosecution's refusal to grant immunity to Dolberry and the court's failure to learn why she invoked the Fifth Amendment. They supported their contention with nine pages of compelling argument, citing relevant state and federal constitutional provisions and decisional law.

Second, and in comparable length and detail, they argued that the court erred in refusing to suppress defendant's statements in which he revealed his nickname and pager number. The briefs contained pertinent case law dealing with *Miranda*, the pedigree exception, the commencement of judicial proceedings, the right to counsel and the test for what constitutes interrogation.

Third, defendant's appellate counsel asserted that the court should not have admitted police hearsay testimony regarding

13. While there are American Bar Association guidelines for defense trial counsel (see e.g. ABA Standards for Criminal Justice 4-1.2 [3d ed 1993]), there are none for appellate counsel.

the telephone number of the payphone in the park. Fourth, they contended that the court prejudiced the jury by allowing it to learn of defendant's aliases, and lastly, that the court should have suppressed the photographic and lineup identifications as unduly suggestive. All arguments were fortified by an abundance of authorities, statutes, record references and clear writing.¹⁴

[2] Notwithstanding these well-developed arguments, defendant asserts that appellate counsel should have attacked trial counsel as ineffective for not having tried to get Dolberry's statements into evidence. We disagree.

People v Robinson (89 NY2d 648 [1997]) does not support defendant's contention that the statements were arguably admissible. In *Robinson*, we held that the trial court erred in excluding grand jury testimony of an unavailable witness. Evidence of this type, we held, must be admitted when it is material, exculpatory and has sufficient indicia of reliability.

We agree with defendant that by invoking the Fifth Amendment Dolberry was "unavailable" (see *People v Settles*, 46 NY2d 154, 167 [1978]) and that her sworn statements were exculpatory and material. Putting aside that Dolberry was a year off in dating the event and incorrect as to the location of the body, her statements were utterly unreliable. First, she was a convicted felon who, rather than make statements against her penal interests, may have hoped that by coming forward, she would enhance her chances of parole.

Moreover, the circumstances under which Dolberry invoked her privilege against self-incrimination are highly suspect. It is fair to ask what possible reason she would have to invoke the privilege against self-incrimination. Incrimination from what? She was not a suspect in the murder and there is not the slightest suggestion that she could ever be even remotely answerable for it. The most obvious explanation is that she balked because she did not want to face perjury charges. That was the only crime for which she stood to incriminate herself.

14. Appellate counsels' brief was a model of organization and clarity. It contains a CPLR 5531 statement, a two-page table of contents, a preliminary statement describing the proceedings below with a synopsis of the arguments to follow, a list of five "questions presented," a 15-page factual statement with four headings and eight subheadings detailing the pretrial hearing and trial testimony, followed by 32 pages of legal argument covering five points. We do not suggest that presentations of this type (or defendant's excellent brief on the appeal before us) are required to meet the "meaningful representation" standard. Obviously, many briefs will exceed it.

Given their aroma, the statements bore none of the reliability markings that qualify under *Robinson*. Trial counsel had no proper grounds on which to offer them and, more to the point, appellate counsel had no basis to castigate trial counsel for failing to advance a losing argument.

Dolberry's statements were inadmissible and we are unwilling to assume that any trial judge, in the exercise of discretion, would have admitted them. Had trial counsel attempted to get the statements before the jury, he would undoubtedly have been rebuffed, and we cannot fault him for not trying. A defendant is not denied effective assistance of trial counsel merely because counsel does not make a motion or argument that has little or no chance of success.

We recognize that in making appellate arguments, attorneys must evaluate the performance of trial counsel and, when appropriate, raise claims of ineffective representation. Although it involves a kind of Monday morning quarterbacking, there are instances—unusual, to be sure, but on occasion merited—when trial counsel's representation is derelict. The case before us involves a second layer of review, in which the Tuesday morning quarterback assails the Monday morning quarterback for not assailing the quarterback who actually played the game. While there may be instances in which a claim of this type will justify relief,¹⁵ this is not one of them.

We have considered defendant's other contentions and find them to be without merit.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

15. See e.g. *Greer v Mitchell*, 264 F3d 663 (6th Cir 2001).

[810 NE2d 894, 778 NYS2d 442]

RAM KRISHNA MAHESHWARI et al., Appellants, v CITY OF NEW YORK et al., Respondents, et al., Defendants.

Argued March 25, 2004; decided May 6, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 7, 2003. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Marcy S. Friedman, J.), which had denied a motion by defendant Delsener/Slater Enterprises, Ltd. for summary judgment, (2) granted the motion, and (3) directed entry of a judgment in favor of defendants Delsener/Slater Enterprises, Ltd. and City of New York dismissing the complaint as against them.

Maheshwari v City of New York, 307 AD2d 797, affirmed.

HEADNOTE

Negligence — Foreseeability — Proximate Cause — Failure to Provide Adequate Security in Concert Parking Lot

Plaintiff, having sustained injuries as the result of a random and unprovoked attack by four unidentified men in the parking lot of a public park during a rock concert, could not hold the municipal owner of the park and the concert producer liable. Defendants took reasonable measures to deal with the issues of crowd control and other forms of disorderliness short of unprovoked criminal acts. The brutal attack on plaintiff was not a foreseeable result of any security breach.

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By the Publisher's Editorial Staff

AM JUR 2d, Premises Liability §§ 31, 37, 45, 48.

NY JUR 2d, Premises Liability §§ 24–28, 42–47, 336.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI 2:12, PJI 2:70, PJI 2:90.

PROSSER AND KEETON, TORTS (5th ed) §§ 41–43.

ANNOTATION REFERENCE

See ALR Index under Assault and Battery; Foreseeability; Premises Liability.

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security /p attack! assault

POINTS OF COUNSEL

Nitkewicz & McMahon, LLP, Commack (*Edward J. Nitkewicz* and *Jinan M. Arafat* of counsel), for appellants. I. Defendants-respondents had notice of criminal activity in connection with their rock concerts and therefore had a duty to provide minimal security measures which they failed to meet. (*Provenzano v Roslyn Gardens Tenants Corp.*, 190 AD2d 718; *Iannelli v Powers*, 114 AD2d 157; *Balsam v Delma Eng'g Corp.*, 139 AD2d 292; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Basso v Miller*, 40 NY2d 233; *Miller v State of New York*, 62 NY2d 506; *Jacqueline S. v City of New York*, 81 NY2d 288; *Riss v City of New York*, 22 NY2d 579; *Palsgraf v Long Is. R.R. Co.*, 248 NY 339; *Rotz v City of New York*, 143 AD2d 301.) II. Common contemporary experience gives rise to a duty of care to protect users of the permitted premises from disorder, unruliness, a melee or a riot erupting from a cause ignited by the vagaries of individuals brought together in a heightened atmosphere such as an all-day rock concert with drinking, marijuana smoking and “tailgating.” (*Rotz v City of New York*, 143 AD2d 301; *Pulka v Edelman*, 40 NY2d 781; *Palsgraf v Long Is. R.R. Co.*, 248 NY 339.) III. Defendants-respondents failed to provide any security to the sunken meadow parking field and thus failed to meet their duty of care. (*Curry v Baisley Park Assoc.*, 162 Misc 2d 436.) IV. Whether defendants-respondents’ failure to provide any security to the parking field known as “Sunken Meadow” was a proximate cause of the assault upon plaintiff-appellant is a question of fact for jury determination. (*Garrett v Twin Parks Northeast Site 2 Houses*, 256 AD2d 224; *Burgos v Aqueduct Realty Corp.*, 92 NY2d 544; *Rotz v City of New York*, 143 AD2d 301; *Burgundy Basin Inn v Watkins Glen Grand Prix Corp.*, 51 AD2d 140; *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308.) V. The criminal assault upon plaintiff-appellant at a rock concert was foreseeable and therefore not an intervening act which severs the liability of defendants-respondents for negligent security. (*Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Kush v City of Buffalo*, 59 NY2d 26; *Parvi v City of Kingston*, 41 NY2d 553; *Stephenson v Johnson & Son*, 168 Misc 2d 528; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507.) VI. Defendant-respondent City of New York is not entitled to an order of summary judgment based upon issues not presented in the motion papers to

the trial court below. (*Dunham v Hilco Constr. Co.*, 89 NY2d 425; *Frank v City of New York*, 211 AD2d 478; *Marshall v New York City Health & Hosps. Corp.*, 186 AD2d 542; *Conroy v Swartout*, 135 AD2d 945; *Mercedes-Benz Credit Corp. v Dintino*, 198 AD2d 901; *Sebastian v State of New York*, 93 NY2d 790; *Matter of Richardson v Fiedler Roofing*, 67 NY2d 246; *People v Rodriguez y Paz*, 58 NY2d 327; *Sega v State of New York*, 60 NY2d 183; *Carnegie Hall Corp. v City Univ. of N.Y.*, 286 AD2d 214.) VII. The duty originally assigned to Delsener/Slater Enterprises, Ltd. under the stadium use agreement was not governmental but proprietary, and when the City of New York later reassumed the duty it remained proprietary. VIII. The City of New York's failure to provide security to the crime-infested parking fields of its stadium where a rock concert was being held for profit was an omission which fell within its proprietary function. (*Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Miller v State of New York*, 62 NY2d 506; *Preston v State of New York*, 59 NY2d 997; *Bass v City of New York*, 38 AD2d 407, 32 NY2d 894; *Basso v Miller*, 40 NY2d 233; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Levy v State of New York*, 262 AD2d 230; *Rashed v State of New York*, 232 AD2d 394; *Ruchalski v Schenectady County Community Coll.*, 239 AD2d 687.)

Michael A. Cardozo, Corporation Counsel, New York City (Julian L. Kalkstein and Larry A. Sonnenshein of counsel), for City of New York, respondent. I. The duty owed to plaintiff at a concert attended by 25,000 people did not include a guarantee of protection from a random act of violence. Failure to provide security from such an indiscriminate, stealthy assault was not the proximate cause of plaintiff's injury. (*Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *Lauer v City of New York*, 95 NY2d 95; *Tobin v Grossman*, 24 NY2d 609; *Mason v U.E.S.S. Leasing Corp.*, 96 NY2d 875; *Di Ponzio v Riordan*, 89 NY2d 578; *Greene v Sibley, Lindsay & Curr Co.*, 257 NY 190; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Leyva v Riverbay Corp.*, 206 AD2d 150; *Florman v City of New York*, 293 AD2d 120.) II. Delsener/Slater Enterprises, Ltd. had a contractual duty with the City of New York to provide security in the parking areas. Delsener was not absolved of any of that duty by any security the City agreed to undertake. (*Florman v City of New York*, 293 AD2d 120; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157; *Readco, Inc. v Marine Midland Bank*, 81 F3d 295; *A.H.A. Gen. Constr. v New York City Hous. Auth.*, 92 NY2d 20; *Modell & Co. v City of New York*, 159 AD2d 354, 76 NY2d 845; *Granada Bldgs. v City of King-*

ston, 58 NY2d 705; *Public Improvements v Board of Educ.*, 56 NY2d 850; *Matter of Parkview v City of New York*, 71 NY2d 274, 995, 488 US 801.) III. The municipal defendants cannot be held liable for the failure to adequately perform a governmental function. (*Balsam v Delma Eng'g Corp.*, 90 NY2d 966; *Kircher v City of Jamestown*, 74 NY2d 251; *Cuffy v City of New York*, 69 NY2d 255; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Riss v City of New York*, 22 NY2d 579; *Price v New York City Hous. Auth.*, 92 NY2d 553; *Bonner v City of New York*, 73 NY2d 930; *Vitale v City of New York*, 60 NY2d 861; *Krakower v City of New York*, 217 AD2d 441; *Akinwande v City of New York*, 260 AD2d 586.)

Law Office of Ted M. Tobias, New York City (Milagros A. Matos of counsel), for Delsener/Slater Enterprises, Ltd., respondent. I. Delsener/Slater Enterprises, Ltd. had no duty to provide security because it had no notice of criminal activity in the area. (*Florman v City of New York*, 293 AD2d 120; *Karp v Saks Fifth Ave.*, 225 AD2d 1014.) II. Defendant met its obligation to provide minimal security and therefore plaintiff failed to establish that inadequate security was the proximate cause of his injuries. (*Burgos v Aqueduct Realty Corp.*, 92 NY2d 544; *Brewster v Prince Apts.*, 264 AD2d 611, 94 NY2d 875; *Karp v Saks Fifth Ave.*, 225 AD2d 1014; *Leyva v Riverbay Corp.*, 206 AD2d 150.) III. Delsener/Slater Enterprises, Ltd. had no duty to provide greater security because there was no indication that plaintiff's assailants were dangerous. (*Florman v City of New York*, 293 AD2d 120; *Rotz v City of New York*, 143 AD2d 301.) IV. If there was inadequate security in the ballfield, liability rests with the City of New York and not with Delsener/Slater Enterprises, Ltd. (*Florman v City of New York*, 293 AD2d 120; *Burgos v Aqueduct Realty Corp.*, 92 NY2d 544.)

OPINION OF THE COURT

ROSENBLATT, J.

Randomly and without provocation, four unidentified hoodlums attacked plaintiff in the parking lot at a music festival in a New York City park. We must decide whether plaintiff may hold the City and the concert producer liable.

On July 10 and 11, 1996, defendant Delsener/Slater produced a Lollapalooza concert at Downing Stadium, a facility owned by defendant City of New York, on Randall's Island. The festival included heavy metal and rap acts such as Metallica, Soundgarden, Wu Tang Clan and the Ramones. Delsener entered into a

stadium use agreement with the City, by which Delsener was to provide “supervision of the parking areas for the Event,” including “sufficient trained security personnel as may be necessary” to police the stadium and additional facilities, ensure the orderly entrance and exit of patrons, manage the parking and traffic flow, and safeguard the property.

In addition, the contract called on Delsener to “prepare and submit a site and operations plan” detailing “public vehicular and pedestrian traffic circulation, parking control, and security from the Triborough Bridge ramps and the access roads to the designated ballfields to be used for parking and access to the stadium area.” The agreement also obligated Delsener to furnish a plan for the “number, location and hours of deployment of licensed security personnel assigned to the . . . parking fields.”

Several weeks before the event, representatives of those involved in the planning (including Delsener, the Police Department, the Parks Department and other private security companies) attended an “all-agency meeting” to discuss logistics. The participants agreed that the City, through the Police Department and the Parks Department Parks Enforcement Police (PEP), would provide security in the parking areas. On the days of the concert, the security plan was in place: 24 police officers, three sergeants and approximately two dozen PEP officers patrolled the parking areas. Police were assigned to maintain the island during the concert and to move the crowd of 25,000 people safely in and out of the stadium. PEP’s role was to patrol the parking areas in search of illegal vendors, alcohol, open fires and littering. Delsener also contracted with another firm to maintain the traffic flow and direct parking in the parking areas.

On July 10, 1996, plaintiff went to the concert to distribute pamphlets on behalf of the International Society for Krishna Consciousness. While in the Sunken Meadow parking area, four unidentified young men assaulted him without provocation. When the attack occurred, officers were stationed at certain parts of the parking fields, but apparently none were in the Sunken Meadow parking area. Plaintiff suffered serious personal injury at the hands of his attackers, whom he described as “heavily drunk, red eyes, bottles in their hand, smelling.” As the Appellate Division noted, “[a]lthough plaintiff did not see any police officers or anybody on horseback in the parking lot, he saw people in uniform directing traffic” (307 AD2d 797, 798-

799 [1st Dept 2003]). At a deposition, a police officer testified that, according to his “post list,” no police officer had been assigned to the Sunken Meadow parking area.

In his complaint, plaintiff (and his wife derivatively) sued Delsener and the City for not providing adequate security.¹ Delsener moved for summary judgment, claiming in essence that it owed plaintiff no duty to prevent a random criminal act of this kind. Supreme Court denied the motion and Delsener appealed. By a divided court, the Appellate Division reversed and granted summary judgment not only to Delsener but to the City as well.² The Court based its decision on *Florman v City of New York* (293 AD2d 120 [1st Dept 2002]), in which another plaintiff was injured in the parking area at the same Lollapalooza concert. In assuming that the injury in *Florman* was the result of a willful attack, the Court concluded that plaintiff had failed to raise a triable issue of fact as to foreseeability and proximate cause.

Two Justices dissented, believing there to be questions of fact as to the predictability of criminal assaults at a Lollapalooza concert. They referred to a journalist’s description of the event as attended by “a moshing crowd of bare-chested, sweating, staggeringly drunk and stoned ‘Beavis and Butt-Head’ types.” (307 AD2d at 801.) We now affirm the order of the Appellate Division.

In arguing that the City and Delsener breached their duty to provide adequate security in the parking area, plaintiff seeks to hold Delsener liable under the stadium use agreement and the City in its proprietary capacity as the owner of Downing Stadium and Randall’s Island. Plaintiff maintains that the crime was foreseeable because defendants had notice of criminal activity at previous Lollapalooza festivals, and that defendants’ negligence in providing security was a proximate cause of his injury.

Plaintiff essentially argues that Lollapalooza attracts concertgoers who are predictably prone to criminal behavior. In support, he presented statistics from previous Lollapalooza concerts

1. The remaining defendants—Randall’s Island Sports Foundation, Inc., Keith Kevan Organization, Inc. and Keith Kevan—are not parties to this appeal. Supreme Court dismissed all claims against the Kevan defendants.

2. Although the City did not appeal from Supreme Court’s order, the Appellate Division had the authority to search the record and grant summary judgment to the City under CPLR 3212 (b) (see *Merritt Hill Vineyards v Windy Hgts. Vineyard*, 61 NY2d 106 [1984]).

in which arrests were made for disorderly conduct, misdemeanor assault, criminal mischief, resisting arrest and possession of stolen property. He also claims that defendant knew that one of the musical acts, Wu Tang Clan, had violent incidents at previous concerts. Further, plaintiff argues that defendants knew that tailgating occurred in the parking areas before and during the concert. Tailgating, he contends, increases the chances that criminal activity will occur, presumably because tailgaters may drink alcoholic beverages.

Defendants argue that any duty they owed to plaintiff did not include a guarantee of protection from a random act of violence. They assert that the indiscriminate, spontaneous assault upon plaintiff was not proximately caused by any deficiency in security. We conclude that the Appellate Division was correct in accepting defendants' arguments.

We have long held that "New York landowners owe people on their property a duty of reasonable care under the circumstances to maintain their property in a safe condition" (*Tagle v Jakob*, 97 NY2d 165, 168 [2001]; see *Basso v Miller*, 40 NY2d 233, 241 [1976]). Although landlords and permittees have a common-law duty to minimize foreseeable dangers on their property, including the criminal acts of third parties, they are not the insurers of a visitor's safety (see *Burgos v Aqueduct Realty Corp.*, 92 NY2d 544, 548 [1998]; *Jacqueline S. v City of New York*, 81 NY2d 288, 292-293 [1993], *rearg denied* 82 NY2d 749 [1993]; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507, 519 [1980]). As we have noted, however, foreseeability and duty are not identical concepts. Foreseeability merely determines the scope of the duty once the duty is determined to exist (see *Pulka v Edelman*, 40 NY2d 781, 785 [1976]). In cases arising out of injuries sustained on another's property, the scope of the possessor's duty is defined by past experience and the "likelihood of conduct on the part of third persons . . . which is likely to endanger the safety of the visitor" (*Nallan*, 50 NY2d at 519, quoting Restatement [Second] of Torts § 344, Comment f).

Here, the brutal attack was not a foreseeable result of any security breach. The types of crimes committed at past Lollapalooza concerts are of a lesser degree than a criminal assault, and would not lead defendants to predict that such an attack would occur or could be prevented. By all accounts, defendants took reasonable measures to deal with issues of crowd control and other forms of disorderliness short of unprovoked criminal acts. A random criminal attack of this nature is not a predictable result of the gathering of a large group of people.

The Appellate Division concluded, as do we, that the record reveals no failure by the organizers of the event to provide adequate control or security. The concert was host to thousands of people over a large area. Security officers cannot be everywhere at once. As the Appellate Division stated in *Florman*, “[i]t is difficult to understand what measures could have been undertaken to prevent plaintiff’s injury except presumably to have had a security officer posted at the precise location where the incident took place or wherever pedestrians were gathered, surely an unreasonable burden” (293 AD2d at 127).

Plaintiff and the Appellate Division dissenters rely heavily on *Rotz v City of New York* (143 AD2d 301 [1st Dept 1988]). There, the Appellate Division denied summary judgment to defendants after the plaintiff sustained injury at a concert in Central Park when a stampeding crowd trampled over him. While we do not express an opinion on the merits of that case, it is enough to say that it is, in any event, distinguishable from the one before us. The Appellate Division correctly recognized that *Rotz* involved crowd control, which is not the issue here.

We also agree with the Appellate Division’s conclusions that even assuming a lapse in the security in the parking lot, plaintiff’s injuries were not the result of any such lapse, but were caused by an independent, intervening criminal act. To establish a prima facie case of proximate cause, a plaintiff must show “that the defendant’s negligence was a substantial cause of the events which produced the injury” (*Derdiarian v Felix Contr. Corp.*, 51 NY2d 308, 315 [1980]). “Where the acts of a third person intervene between the defendant’s conduct and the plaintiff’s injury, the causal connection is not automatically severed. In such a case, liability turns upon whether the intervening act is a normal or foreseeable consequence of the situation created by the defendant’s negligence” (*id.*). An intervening act may break the causal nexus when it is “extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from the defendant’s conduct” (*id.*). Here, as an independent act far removed from defendants’ conduct, the criminal assault broke the causal nexus. The attack was extraordinary and not foreseeable or preventable in the normal course of events.

Inasmuch as we agree with the Appellate Division’s dismissal of the action against the City on the lack of foreseeability and on the absence of causation, we need not address the City’s argument that it is immune from liability based on its claim

that it acted in a governmental, and not proprietary, capacity. In addition, plaintiff's remaining arguments are without merit.

Accordingly, the Appellate Division order should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed, with costs.

[810 NE2d 890, 778 NYS2d 438]

In the Matter of REAL HOLDING CORP., Respondent, et al.,
Petitioner, v ALAN LEHIGH et al., Appellants.

Argued March 24, 2004; decided May 6, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 7, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Westchester County (Francis A. Nicolai, J.), entered in a proceeding pursuant to CPLR article 78, which had granted a petition to review the respondents' determination denying petitioners' request for an area variance, annulled the determination, and remitted the matter to respondents for further proceedings.

Matter of Real Holding Corp. v Lehigh, 304 AD2d 583, affirmed.

HEADNOTE

Municipal Corporations — Zoning — Special Use Permit — Authority to Grant Area Variance from Special Use Permit Requirements

Respondent zoning board of appeals (ZBA) had the authority to grant petitioner's request for an area variance from two distance standards for a gasoline filling station special use permit. Town Law § 274-b (3) vests a ZBA with authority to grant an area variance from any requirement in a zoning regulation, including requirements for a special use permit. This authority is clear from the plain language of the statute, and is consistent with the statutes and case law emphasizing that ZBAs are vested with the exclusive power to grant or deny a variance from zoning ordinances.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Zoning and Planning §§ 807–814, 857, 859, 866.
CARMODY-WAIT 2d, Proceeding Against a Body or Officer
§§ 145:1445, 145:1450.
McKINNEY'S, Town Law § 274–b (3).
NY JUR 2d, Buildings, Zoning, and Land Controls §§ 345–
352, 368, 372–374, 382, 383.
NEW YORK REAL PROPERTY SERVICE §§ 48:60, 48:97.

ANNOTATION REFERENCE

See ALR Index under Variances; Zoning.

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POINTS OF COUNSEL

Vergilis, Stenger, Roberts, Pergament & Viglotti, LLP, Wappingers Falls (*Karen P. MacNish* and *Albert P. Roberts* of counsel), for appellant. I. This Court should look to the legislative history of Town Law § 274-b because section 274-b (3) and (5) are in apparent conflict. II. The legislative history, prior case law, and dictionary meanings of “dimensional” and “physical” support a finding that a zoning board of appeals may not grant an area variance from specific special use permit criteria without the zoning board of appeals first being granted such authority by the town board. (*Matter of Knadle v Zoning Bd. of Appeals of Town of Huntington*, 121 AD2d 447; *Matter of Jewish Reconstructionist Synagogue of N. Shore v Levitan*, 34 NY2d 827; *Matter of Cappadoro Land Dev. Corp. v Amelkin*, 78 AD2d 696, 54 NY2d 833; *Matter of Cathedral of Incarnation v Glimm*, 97 AD2d 409; *Matter of Wegmans Enters. v Lansing*, 72 NY2d 1000; *Matter of Tandem Holding Corp. v Board of Zoning Appeals of Town of Hempstead*, 43 NY2d 801; *Matter of Retail Prop. Trust v Board of Zoning Appeals of Town of Hempstead*, 98 NY2d 190.) III. The Appellate Division, Second Department, erroneously determined that the Zoning Board of Appeals of the Town of Wappinger has authority to waive specific special use permit criteria enumerated in the Town’s zoning code pursuant to Town Law § 274-b (3). (*Matter of AA&L Assoc. v Casella*, 207 AD2d 1012; *Matter of Jewish Reconstructionist Synagogue of N. Shore v Levitan*, 34 NY2d 827; *Matter of Knadle v Zoning Bd. of Appeals of Town of Huntington*, 121 AD2d 447; *Wisoff v Amelkin*, 123 AD2d 623.)

Keane & Beane, P.C., White Plains (*Judson K. Siebert* of counsel), for respondent. New York State Town Law § 274-b (3) authorizes a zoning board of appeals to issue an area variance from special use permit requirements. (*Matter of State of New York v Ford Motor Co.*, 74 NY2d 495; *Doctors Council v New York City Employees’ Retirement Sys.*, 71 NY2d 669; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Drelich v Kenlyn Homes*, 86 AD2d 648; *Dennis v Zoning Bd. of Appeals of Vil. of Briarcliff Manor*, 167 Misc 2d 555; *Matter of Sasso v Osgood*, 86 NY2d 374; *Matter of AA&L Assoc. v Casella*, 207 AD2d 1012.)

OPINION OF THE COURT

READ, J.

We are asked to decide whether Town Law § 274-b (3)

authorizes a zoning board of appeals (ZBA) to grant area variances from special use permit requirements. For the reasons that follow, we hold that Town Law § 274-b (3) vests a ZBA with authority to grant an area variance from any requirement in a zoning regulation, including those for a special use permit.

I.

In 1992, Real Holding Corp. (RHC) acquired a one-half-acre parcel of land situated within a “Highway Business District” as shown on the Town of Wappinger’s zoning map. This parcel had served since the mid-1960’s as the site of a gasoline filling station, which closed shortly before RHC’s purchase of the land. After cleaning up the property to the satisfaction of state environmental authorities, RHC opted to develop a new gasoline filling station on it.

In order to undertake this proposed use, RHC was obliged by the Town Code to obtain a “gasoline filling station” special use permit from the Town Planning Board; however, RHC was unable to satisfy two distance standards for this permit. Specifically, the applicable Town Code provisions mandated 1,000 feet between a gasoline filling station and the boundary line of certain residentially zoned lands, and 2,500 feet between gasoline filling stations. In 1995, RHC asked the Town’s ZBA for variance relief from these two standards. The ZBA turned RHC down in early 1996, opining that it lacked jurisdiction to waive or modify zoning requirements specific to a special use permit.

In 2000, RHC revived its campaign to reestablish a gasoline filling station on the property by applying to the Planning Board for a special use permit. The Planning Board denied the application for failure to conform with several zoning requirements, including the two distance standards for the special use permit, and advised RHC to seek variances from the ZBA.

RHC requested the necessary variances, and the ZBA voted to entertain the application. After several months of review, however, the ZBA concluded that it was powerless to grant an area variance from special use permit requirements absent an express grant of authority therefor from the Town Board. Accordingly, on June 19, 2001, the ZBA denied RHC’s application.

RHC then commenced this CPLR article 78 proceeding to seek annulment of the ZBA’s determination and a judgment directing the ZBA to hear and decide its application for area variances. Supreme Court granted RHC’s petition and remitted the matter to the ZBA for further proceedings, holding that

Town Law § 274-b (3) explicitly authorizes a ZBA to grant area variances from special use permit requirements. Upon the ZBA's appeal, the Appellate Division affirmed (304 AD2d 583 [2d Dept 2003]). We granted the ZBA leave to appeal, and now affirm.

II.

In the early 1990's, the Legislature authorized the Joint Legislative Commission on Rural Resources to develop recommendations for recodifying local zoning laws. In 1991, the provisions concerning ZBAs in the Town Law were substantially revised as a result (*see* L 1991, ch 692, §§ 1-4; Town Law §§ 267—267-c). The following year the Legislature enacted companion legislation, which, as relevant here, included new Town Law § 274-b (*see* L 1992, ch 694, § 2). This provision defines and governs approval of special use permits, a widely used zoning device previously unmentioned in state statute.

Two subdivisions of section 274-b come into play on this appeal. The first—subdivision (3)—addresses the circumstances under which application may be made to a ZBA for an area variance from special use permit requirements:

“Application for area variance. Notwithstanding any provision of law to the contrary, where a proposed special use permit contains one or more features which do not comply with the zoning regulations, application may be made to the zoning board of appeals for an area variance pursuant to section two hundred sixty-seven-b of this article,¹ without the necessity of a decision or determination of an administrative official charged with the enforcement of the zoning regulations” (§ 274-b [3]).

The second—subdivision (5)—addresses the waiver of special use permit requirements:

“Waiver of requirements. The town board may further empower the authorized board to, when reasonable, waive any requirements for the approval,

* An “[a]rea variance” is defined as “the authorization by the zoning board of appeals for the use of land in a manner which is not allowed by the dimensional or physical requirements of the applicable zoning regulations” (Town Law § 267 [1] [b]). Contrary to the position taken by the ZBA, the distance standards at issue here, which specify how many feet must separate a gasoline filling station from certain residentially zoned areas and from other gasoline filling stations, are clearly “dimensional or physical requirements” subject to area variance relief.

approval with modifications or disapproval of special use permits submitted for approval. Any such waiver, which shall be subject to appropriate conditions set forth in the ordinance or local law adopted pursuant to this section, may be exercised in the event any such requirements are found not to be requisite in the interest of the public health, safety or general welfare or inappropriate to a particular special use permit” (§ 274-b [5]).

In the ZBA’s view, subdivisions (3) and (5) clash and, at most, establish that a ZBA may grant an area variance from general zoning requirements, but not from a special use permit requirement unless express authorization to do so has been bestowed by a town board in the town’s zoning code. We disagree.

First, subdivision (3) plainly states that “application may be made to the [ZBA] for an area variance” in those cases “where a proposed special use permit . . . do[es] not comply with the zoning regulations.” Moreover, a ZBA may grant these area variances “[n]otwithstanding any provision of law to the contrary.”

Next, subdivision (3) refers to “zoning regulations” without qualification. Nothing in the statute’s language suggests that area variances for special use zoning regulations should be treated differently than area variances from general, so-called bulk, zoning requirements. To hold that a ZBA may vary certain zoning provisions only if expressly empowered to do so by the town board overlooks the entire purpose of the ZBA, which is to provide relief in individual cases from the rigid application of zoning regulations enacted by the local legislative body.

Finally, section 274-b is entitled “Approval of special use permits,” and subdivision (3) directs that application for an area variance may be made to the ZBA “pursuant to” section 267-b (entitled “Permitted action by board of appeals”), which supplies the procedures for a ZBA to follow when issuing an area variance (*see* Town Law § 267-b [3]). Thus, section 274-b authorizes ZBAs to issue area variances from special use permit requirements, following the statutory procedures applicable to ZBAs in the exercise of their area variance jurisdiction. This is not only clear, but entirely consistent with the statutes and case law emphasizing that ZBAs are “vested with the exclusive power to grant or deny, in the first instance, a variance from the zoning ordinances” (*Matter of Commco, Inc. v Amelkin*, 62 NY2d 260, 266 [1984]; *see also Jewish Reconstructionist Synagogue of*

N. Shore v Incorporated Vil. of Roslyn Harbor, 40 NY2d 158, 162 [1976] [“(T)he board of zoning appeals is a quasi-judicial body created by State law . . . It provides a forum for the mitigation of harsh effects which zoning laws may have in exceptional cases”]).

Nor does subdivision (5) in any way conflict with subdivision (3), or diminish a ZBA’s independent jurisdiction under subdivision (3). Subdivision (5) vests a town board with discretion to empower an “authorized board” to waive any requirement of a special use permit. The waiver authority in subdivision (5) is broader than a ZBA’s authority in subdivision (3), which is restricted to granting area variances. The “authorized board” referred to in subdivision (5) is “the planning board or such other administrative body that [the town board] shall designate” (see Town Law § 274-b [2]). In effect, subdivision (5) allows a town board to establish one-stop special use permitting if it so chooses. As Supreme Court observed, where a town board exercises its discretion under subdivision (5), an applicant may have “two avenues to address an inability to comply with a given . . . requirement in connection with a special use permit,” but this overlap “does not create discord in the Town Law or render either [subdivision (3) or subdivision (5)] superfluous.”

Because we rely on the plain meaning of the relevant statutory text, we need not consult legislative history. Not surprisingly, however, section 274-b’s legislative history clearly contemplates the distinct purposes of subdivisions (3) and (5). Specifically, Senator Cook’s memorandum in support notes that this legislation was intended to “authorize[] town . . . boards to empower their planning board (or other authorized body) to waive, subject to appropriate conditions, any requirements for the approval of site plans” (Sponsor’s Mem, Bill Jacket, L 1992, ch 694, at 6). In addition, “in the event local site plan or special use permit requirements present dimensional difficulties to a particular applicant, an area variance may be applied for to the zoning board of appeals” (*id.*). Further, “by allowing appeal to the zoning board of appeals the bill provides applicants faced with dimensional difficulty an opportunity for administrative relief” (*id.* at 7).

Finally, section 274-b’s legislative history does not, as the ZBA argues, portray any intention to incorporate existing case law wholesale. Indeed, this case law was not entirely consistent (compare *Matter of Holy Spirit Assn. for Unification of World Christianity v Rosenfeld*, 91 AD2d 190, 195 [2d Dept 1983] [“the

zoning board had no authority, *absent an application for a variance*, to waive or modify the explicit conditions laid down in the town code” for a special use permit (emphasis added)] *with Matter of Knadle v Zoning Bd. of Appeals of Town of Huntington*, 121 AD2d 447 [2d Dept 1986] [ZBA has no authority to waive or modify a setback requirement for a special use permit in the guise of a variance]). The ZBA cites *Matter of Jewish Reconstructionist Synagogue of N. Shore v Levitan* (34 NY2d 827 [1974]) for the proposition that a ZBA may not waive or modify any of the explicit conditions mandated by a town or village board for a special use permit; however, in this memorandum decision we expressly declined to address whether a ZBA might have authority to issue a variance from special use permit requirements, noting that the issue was not presented on the appeal (*id.* at 829).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and R.S. SMITH concur.

Order affirmed, with costs.

[810 NE2d 899, 778 NYS2d 447]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RAMON
APONTE, Respondent.

Argued March 25, 2004; decided May 11, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 5, 2003. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree, and (2) remanded the matter for a new trial.

People v Aponte, 306 AD2d 42, affirmed.

HEADNOTE**Crimes — Instructions — Supplemental Instruction to Deadlocked Jury**

Supreme Court's supplemental instruction to the deadlocked jury at defendant's trial was unbalanced and coercive so as to deprive defendant of a fair trial. The instruction overemphasized the need to get a result, suggested that the jurors were failing in their duty, stressed that "something happened" in the case, presented jurors with the prospect of prolonged deliberations, and failed to caution jurors not to surrender their conscientiously held beliefs. The combined effect of these flaws required reversal of defendant's conviction. Moreover, the swiftness of the guilty verdict, returned only five minutes after the supplemental instruction was given, suggested that the jury was coerced.

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By the Publisher's Editorial Staff

AM JUR 2d, Trial §§ 1588–1591.

CARMODY-WAIT 2d, Criminal Procedure § 172:3781.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.9.

NY JUR 2d, Criminal Law § 2522.

ANNOTATION REFERENCE

See ALR Index under Hung Jury; Instructions to Jury.

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Query: jury /3 deadlock! /s supplement! /3 instruction &
coerc!

POINTS OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City (Sheryl Feldman, Frank Glaser, Sylvia Wertheimer and Mark Dwyer of counsel), for appellant. The trial court properly urged the jurors to reach a unanimous verdict, emphasizing that there was a particular standard of proof and that it was the jurors' task to determine whether or not that standard had been met. (*Early v Packer*, 537 US 3; *Lowenfield v Phelps*, 484 US 231; *People v Alvarez*, 211 AD2d 425, 86 NY2d 761; *People v Antommarchi*, 80 NY2d 247; *People v Pagan*, 45 NY2d 725; *People v Ali*, 65 AD2d 513, 47 NY2d 920; *People v Graham*, 48 AD2d 646, 39 NY2d 775; *People v Faber*, 199 NY 256; *People v Sheldon*, 156 NY 268; *Allen v United States*, 164 US 492.)

Clifford Chance US LLP, New York City (James M. Hosking of counsel), and Office of the Appellate Defender (Richard M. Greenberg and Sara Gurwitch of counsel), for respondent. In this factually straightforward case, the Appellate Division correctly decided that the supplemental instruction to the jury in response to its second deadlock note was coercive, shaming and unbalanced and—as demonstrated by the jury's immediate guilty verdict—deprived Ramon Aponte of a fair trial and an uncoerced jury verdict. (*Lowenfield v Phelps*, 484 US 231; *People v Alvarez*, 211 AD2d 425, 86 NY2d 761; *People v Antommarchi*, 80 NY2d 247; *Allen v United States*, 164 US 492; *Matter of Plummer v Rothwax*, 63 NY2d 243; *People v Cowen*, 249 AD2d 560; *Smalls v Batista*, 191 F3d 272; *People v Huarotte*, 134 AD2d 166; *Jenkins v United States*, 380 US 445; *People v Pagan*, 55 AD2d 1055, 45 NY2d 725.)

OPINION OF THE COURT

CIPARICK, J.

The question presented by this appeal is whether Supreme Court's supplemental instruction to a deadlocked jury was unbalanced and coercive so as to deprive defendant of a fair trial. We conclude that it was.

Defendant was charged in a single-count indictment with criminal sale of a controlled substance in the third degree (Penal Law § 220.39), arising from a buy and bust operation in Manhattan. His trial consisted of approximately three hours of testimony from three witnesses, two for the prosecution and one for the defense. The only issue at trial was the identity of defendant as the seller.

On the morning of April 30, 2001, following summations, the trial judge charged the jury and it began its deliberations. After

about five hours, and having requested exhibits and readback of testimony, the jury sent a note at 4:05 P.M. claiming that it was “deadlock[ed] at this time.” The jurors were brought back into the courtroom and, the trial judge instructed them to “[c]ontinue deliberating. We await your verdict.”¹ The jurors were subsequently excused until 9:30 A.M. the next morning.

On the second day of deliberations, the jurors again made a request for testimony to be read back. At 3:30 P.M., after about five more hours of deliberations, the jurors sent a second deadlock note to the court, stating that “we are not able to come up with a unanimous decision.” Defense counsel’s request for a mistrial was rejected and the jurors were brought into the courtroom. The trial judge then delivered the following supplemental instruction:

“When we started, you heard me describe a couple of different ways in the preliminary remarks and in the jury selection what the point of this was. Other countries do it a different way. You heard me describe how some countries don’t have juries. Some countries don’t have trials. We collectively for over 200 years have decided that we’re not leaving it to a group of military officers. We’re not leaving it to the single judge. We’re not leaving it to a panel of judges but you folks are doing it. The point of this process is to get a result.

“Something happened in this case. It was proven or not. The standard was met or it was not. The tree that fell made a noise or it didn’t. The bell that was rung with nobody around—sorry. Something hit the bell probably and with nobody around. Only you

1. The full text of this first supplemental instruction, not being challenged as coercive, is as follows:

“Just generally asking, ever go to a doctor and you are really upset about something. Your health is obviously the most important thing in your life. You ever find yourself describing a situation to the doctor that is obviously very very problematic and it’s [*sic*] sort of eats you up. It is the most important thing going on in your life at that point and describe this very important personal problem. The doctor is sitting there, nodding and not saying a word because the doctor has heard it before.

“I don’t know what you expected when you signed on for jury service. You’ve heard me in one way or [] another say I’ve been doing this for 18 years and this is jury deliberations. Continue deliberating. We await your verdict.”

folks can tell us was there a gong, a ding, a ping or nothing.

“When I started to tell you what the law was so you could deliberate, almost certainly I said, if not these words, close to these words: Now I’m going to tell you what the law is to put you in a position to do what you said you would do when we started which is to decide this case. You heard me saying during jury selection no judge can say to defendant nor a prosecutor I’m tired of this case, plead guilty, I’m tired of this case, dismiss it. It stays in a drawer until a jury decides it.

“Something happened in this case. It was not a non-event. The standard was met or it was not and there is no other entity on the face of the earth that can tell us what the answer is to that.

“Your note says: At 3:30 you, on May the 1st, [‘]we are not able to come up with a unanimous decision.’

“Whether there is a rare occurrence—of course, it happens but it is a rare occurrence—whether there is in this case the rare occurrence of a jury unable to resolve a case is not a factual decision. It’s a legal decision. It is not your decision. It is mine. We are nowhere near at the point where I would begin to consider the possibility that you folks might not be able to resolve this case. Continue your deliberations please.”

Defense counsel immediately registered an objection to this instruction on the ground that it was an improper *Allen* charge (see *Allen v United States*, 164 US 492 [1896]), arguing that the supplemental instruction was coercive, would shame the jurors into a guilty result, and would create undue pressure on any dissenting jurors. The court denied counsel’s objection, and the jury continued deliberating, returning a verdict of guilty in just five minutes.

Supreme Court convicted defendant, upon the verdict, of criminal sale of a controlled substance in the third degree and sentenced him, as a second felony offender, to a term of 6 to 12 years. The same court denied defendant’s CPL 330.30 motion to set aside the verdict made on the ground that the jury instruction was improper and coercive and therefore deprived him of

his right to a fair trial.² The Appellate Division, with two Justices dissenting, reversed and remanded to Supreme Court for a new trial, holding that the supplemental jury instruction was unbalanced and coercive. Specifically, the Appellate Division found that the trial court's charge (1) overemphasized the need to get a result, (2) suggested that the jurors were failing in their duty, (3) stressed that "[s]omething happened" in the case, (4) presented jurors with the prospect of prolonged deliberations, and (5) failed to caution jurors not to surrender their conscientiously held beliefs. We agree and affirm the order of the Appellate Division.

While perhaps no one of these five flaws would alone be enough to warrant reversal, their combined effect requires it. We have long approved supplemental charges that encourage a verdict after the jury has reported a deadlock (*see People v Ford*, 78 NY2d 878, 880 [1991]; *see also People v Pagan*, 45 NY2d 725, 726 [1978]). "[A] trial court may properly discharge its responsibility to avoid mistrials by encouraging jurors to adhere to their oaths and make one final effort to review the evidence and reach a verdict one way or the other" (*Pagan*, 45 NY2d at 727). However, a court "'must not attempt to coerce or compel the jury to agree upon a particular verdict, or any verdict'" (*Pagan*, 45 NY2d at 726, quoting *People v Faber*, 199 NY 256, 259 [1910]). Supplemental charges that coerce jurors "with untoward pressure to reach an agreement will not be countenanced" (*Pagan*, 45 NY2d at 727 [citations omitted]).

Here, Supreme Court's supplemental instruction overemphasized the jury's obligation to return a verdict. It told the jury: "The point of this process is to get a result. Something happened in this case. It was proven or not. The standard was met or it was not." The court continued in this vein to state that it had instructed jurors as to the law so as "to put you in a position to do what you said you would do when we started which is to decide this case." Limited in scope to the importance of returning a verdict and suggesting that the jurors were failing in their duty to reach a decision, the court's supplemental instruction as a whole was unbalanced and coercive (*see Ford*, 78 NY2d at 880). The trial court's admonition that it was "nowhere near" considering that the jurors would be unable to

2. The trial judge maintained at trial and in a written opinion that he "gave the jury additional non-*Allen* instructions." On this appeal, both sides agree that this supplemental instruction is subject to the *Allen* charge standard of review.

reach a decision added to the pressure to return a verdict, presenting jurors with the prospect of prolonged deliberations well beyond the two days they had already deliberated over the three-hour trial. Finally, the supplemental jury instruction failed to advise the jurors that they should not surrender a conscientiously held belief.

While an *Allen* charge is not “unbalanced or coercive for its failure to emphasize that ‘the verdict must be the verdict of each individual juror, and not a mere acquiescence in the conclusion of [a juror’s] fellows’ ” (see *Ford*, 78 NY2d at 880, quoting *Allen*, 164 US at 501), the charge here did not include any encouraging language to balance its instruction that the jury needed to “decide this case.” In giving supplemental jury instructions to a deadlocked jury, trial courts should follow up the importance of reaching a verdict with a clarifying statement to the effect that it is the jurors’ “duty to decide the case *if* they [can] conscientiously do so” (*Allen*, 164 US at 501 [emphasis added]); jurors should not surrender their honest convictions “for the mere purpose of returning a verdict” (1 CJI[NY] 42.60, at 1019 [1983]). Contrary to the court’s supplemental instruction, the object of the jury system is not to “get a result,” it is “to secure unanimity by a comparison of views, and by arguments among the jurors themselves” (*Allen*, 164 US at 501).

The jury here, after a three-hour trial, two full days of deliberations and a second deadlock note, returned a verdict of guilty only five minutes after the supplemental instruction was given. While the swiftness of the verdict is not dispositive, it suggests that the jury was coerced (*Lowenfield v Phelps*, 484 US 231, 240 [1988]; see also *United States v United States Gypsum Co.*, 438 US 422, 462 [1978]). The supplemental charge here fails to negate this coercive implication. Defendant was entitled to an uncoerced, unanimous jury verdict, not one tainted by the improper jury instructions given here. On retrial, the court should be mindful that criminal “jury instructions generally are not fertile ground for innovation during trial” (*People v Owens*, 69 NY2d 585, 589 [1987]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

[811 NE2d 13, 778 NYS2d 751]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant,
v ISRAEL NIEVES, Appellant-Respondent.

Argued March 24, 2004; decided May 6, 2004

SUMMARY

CROSS APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 12, 2003. The Appellate Division modified, on the law, a judgment of the Westchester County Court (Kenneth H. Lange, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a weapon in the third degree, imposed sentence, and issued two orders of protection to remain in effect until October 12, 2007. The modification consisted of deleting from the orders of protection the provisions that they remain in effect until October 12, 2007, and remitting the matter to Westchester County Court for a new determination of the duration of the orders of protection. The Appellate Division affirmed the judgment as modified.

People v Nieves, 305 AD2d 520, affirmed.

HEADNOTES

Crimes — Appeal — Challenge to Duration of Order of Protection

1. Permanent orders of protection entered “[u]pon conviction” under CPL 530.13 (4) may be challenged by a defendant in an appeal from the judgment of conviction. Although the CPL article generally addressing criminal appeals does not explicitly reference orders of protection, CPL 450.10 authorizes a defendant to appeal from a judgment in a criminal case, which brings up for review many of the orders and rulings that precede or are part of it. Permanent orders of protection are part of the final adjudication of a criminal action. The better practice, however, would be for a defendant seeking adjustment of such an order to request relief from the issuing court in the first instance, resorting to the appellate courts only if necessary.

Crimes — Appeal — Preservation of Issue for Review — Duration of Order of Protection

2. Defendant’s challenges to the duration and scope of the permanent orders of protection issued against him at his sentencing, raised for the first time on appeal, did not fall within the illegal sentence exception to the preservation requirement. Although the orders were issued at the sentencing proceeding, they were not a part of defendant’s sentence. Even if they were defective in duration and scope, those defects did not render defendant’s sentence of incarceration invalid, and the orders were not reviewable by the Court of Appeals.

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By the Publisher’s Editorial Staff

AM JUR 2d, Appellate Review §§ 222, 690, 691.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:4327, 172:4342, 172:4343, 172:4345.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 27.5.
MCKINNEY'S, CPL 450.10, 530.13 (4).
NY JUR 2d, Criminal Law §§ 3125, 3126, 3136.5; NY JUR 2d, Domestic Relations § 1636.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Criminal Procedure Rules; Protective Orders.

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Query: permanent /2 order /3 protection /s challeng! /p convict!

POINTS OF COUNSEL

Legal Aid Society of Westchester County, White Plains (Salvatore A. Gaetani and Stephen J. Pittari of counsel), for appellant-respondent. I. A challenge to the scope of a final order of protection concerns a defendant's right to be sentenced as provided by law and is therefore not subject to the preservation rule. Since it is part of the judgment of conviction, it is reviewable on direct appeal. (*People v Debo*, 234 AD2d 944; *People v Warren*, 280 AD2d 75; *People v Holmes*, 294 AD2d 871; *People v Eaddy*, 302 AD2d 473; *People v Samms*, 95 NY2d 52; *People v Fuller*, 57 NY2d 152; *People v Hernandez*, 93 NY2d 261; *People v Wheeler*, 268 AD2d 448; *People v Stevens*, 91 NY2d 270; *People v Bleau*, 276 AD2d 131.) II. The final orders of protection issued by the court on behalf of the "designated witnesses" were beyond the scope of CPL 530.13 (4), since that statute by its own terms limits a final order of protection on behalf of a "designated witness" to a stay away order under paragraph (a). (*People v Travis OO.*, 237 AD2d 646; *People v Walker*, 81 NY2d 661; *People v Boston*, 75 NY2d 585; *People v Ryan*, 82 NY2d 497; *People v Robinson*, 95 NY2d 179; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151.)

Jeanine Pirro, District Attorney, White Plains (Richard L. Hecht and Lois Cullen Valerio of counsel), for respondent-appellant. I. The Appellate Division had no authority on a direct appeal from a judgment of conviction to entertain defendant's claims concerning the parameters of a CPL 530.13 (4) order of

protection. (*Matter of Santangelo v People*, 38 NY2d 536; *People v Callahan*, 80 NY2d 273; *People v Pollenz*, 67 NY2d 264; *People v Stephens*, 55 NY2d 778; *People v Stevens*, 91 NY2d 270; *People v Laing*, 79 NY2d 166; *People v De Jesus*, 54 NY2d 447; *People v Garris*, 159 Misc 2d 586, 166 Misc 2d 362, 88 NY2d 1020; *People v Franklin*, 236 AD2d 556; *People v Person*, 256 AD2d 1232, 93 NY2d 856.) II. The terms of the orders of protection issued at sentencing do not exceed the scope of the authorizing statute (CPL 530.13 [4]). (*People v Kinchen*, 60 NY2d 772; *People v Hale*, 93 NY2d 454; *People v Letterlough*, 86 NY2d 259.)

OPINION OF THE COURT

GRAFFEO, J.

In these cross appeals, we must determine whether orders of protection issued during a sentencing proceeding in a criminal case can be challenged on direct appeal from the judgment of conviction and, if so, whether defendant's arguments on appeal to this Court had to be raised before the sentencing court under our preservation rule. Although we hold that the permanent orders of protection in this case were appealable as part of the judgment, we conclude that defendant's unpreserved claims are not reviewable in this Court.

Defendant Israel Nieves was involved in an altercation in which he shot and injured two men. As a result of the incident, he was charged with criminal use of a firearm in the first degree, criminal possession of a weapon in the second degree, reckless endangerment and two counts of assault in the first degree. The People offered evidence at a nonjury trial that defendant encountered two female friends just after the women had been ejected from a nightclub for fighting with a male patron. Armed with a loaded weapon, defendant drove the women back to the nightclub where they found the patron they had been fighting with standing outside the club with a male friend. During the street confrontation that erupted among defendant, the patron and at least one of his friends, defendant shot the patron and the male friend, causing serious injuries. Defendant then left the scene in his car but was later apprehended by the police after they saw him attempt to dispose of the handgun.

Asserting that the two men had been the aggressors and had initiated the violent confrontation, defendant presented a justification defense at his bench trial. The two women corroborated defendant's account of the incident. The trial court acquitted defendant of the assault-related offenses but convicted

him of criminal possession of a weapon in the third degree, a lesser included offense of criminal possession of a weapon in the second degree.

On October 12, 2001, defendant was sentenced as a second felony offender to a determinate term of three years incarceration, the minimum sentence available. During the sentencing proceeding, the court issued two orders of protection under CPL 530.13 (4), one for each of the men shot in the course of the incident. The statute provides that “[t]he duration of such an order shall be fixed by the court and, in the case of a felony conviction, shall not exceed the greater of: (i) five years from the date of such conviction, or (ii) three years from the date of the expiration of the maximum term of an indeterminate or the term of a determinate sentence of imprisonment actually imposed” (CPL 530.13 [4]). In this case, the orders of protection, directing defendant to “[s]tay away” from the men and to refrain from harassing them, were to expire on October 12, 2007—precisely three years from the date the sentencing court expected defendant to be released from prison on completion of his determinate sentence. Defendant raised no objection to the issuance of the permanent orders of protection.¹

In his direct appeal to the Appellate Division, defendant claimed for the first time that the orders of protection exceeded both the duration and the scope authorized in CPL 530.13 (4). With respect to duration, defendant noted that after he was remanded to state custody following sentencing, the Department of Correctional Services (DOCS) calculated his jail time credit, accounting for the time he had been incarcerated while the criminal action was pending.² As a result of such credit, defendant’s release from prison would occur earlier than the sentencing court had expected and, if the expiration dates on the orders of protection were not adjusted, he contended that the orders would remain effective beyond the maximum time period allowed by CPL 530.13 (4). Defendant also asserted that the orders were flawed in scope because they had been issued to protect the two men he shot. Due to his acquittal on each of the

1. Orders issued upon conviction are characterized as “permanent” to distinguish them from the temporary orders that may be issued pursuant to CPL 530.13 (1) while the criminal action is pending.

2. Here, defendant did not take issue with the jail time credit calculation itself, a determination that could have been challenged in a civil CPLR article 78 proceeding against DOCS (*see e.g. Matter of Bottom v Goord*, 96 NY2d 870 [2001]).

assault-related offenses, defendant argued that these individuals were not victims but were, instead, witnesses who were entitled to less protection under the statute.

The People objected to the fact that defendant was raising these issues on direct appeal, taking the position that defendant should have brought a motion in the sentencing court seeking adjustment of the orders of protection. On the merits, the People did not dispute that the orders needed to be amended to reflect the jail time credit calculation but contended that the orders were appropriate in scope because CPL 530.13 grants a court broad discretion to determine the conditions to impose on a defendant when issuing orders of protection, regardless of whether the orders protect victims or witnesses.

The Appellate Division modified the judgment, concluding that the expiration date on the orders of protection must be changed to reflect the jail time credit calculation but otherwise rejecting defendant's remaining arguments. The Court remitted the matter to the sentencing court to issue amended orders of protection with corrected expiration dates. A Judge of this Court granted the cross applications of defendant and the People for leave to appeal.

I.

The threshold question is whether the orders of protection defendant challenges fall within the class of determinations in criminal cases that may be appealed. Appealability of determinations adverse to a defendant cannot be presumed because “a defendant's right to appeal within the criminal procedure universe is purely statutory” (*People v Stevens*, 91 NY2d 270, 278 [1998] [citations omitted]). CPL 530.13 does not contain a provision addressing whether orders of protection are appealable and CPL article 450, the provision generally addressing criminal appeals, also does not explicitly reference orders of protection. But CPL 450.10 authorizes a defendant to appeal from a judgment in a criminal case, which brings up for review many of the orders and rulings that precede or are part of it.

In *Stevens*, this Court held that postjudgment risk level determinations under the Sex Offender Registration Act (SORA) were not appealable because they “are not a part of the criminal action or its final adjudication” (91 NY2d at 277 [citations omitted]). In contrast, in *People v Hernandez* (93 NY2d 261 [1999]), we ruled that certification as a sex offender under SORA—a determination issued at the time of sentencing—was

appealable as part of the judgment of conviction.³ In reaching that result, we noted that the Legislature mandated that SORA certification occur “upon conviction” (Correction Law § 168-d [1] [a]) and had contemplated that such a determination would be part of the final adjudication of the criminal proceedings against defendant.

[1] Like the SORA certification at issue in *Hernandez*, CPL 530.13 (4) authorizes a court to issue permanent orders of protection for the benefit of victims and witnesses “[u]pon conviction of any offense.” By using this language, the Legislature signaled that orders of protection issued at sentencing are part of the final adjudication of the criminal action involving defendant. We therefore conclude that permanent orders of protection entered “[u]pon conviction” under CPL 530.13 (4) are among the orders and rulings that a defendant may challenge in an appeal from the judgment of conviction. As such, the orders in this case were subject to appellate review pursuant to CPL 450.10 and the Appellate Division did not err in declining to dismiss defendant’s appeal.

II.

[2] Having decided that permanent orders of protection are appealable, we turn to defendant’s challenges to the contents of the orders. Because this Court’s jurisdiction is limited to review of issues of law, our first task is to assess whether the arguments raised on appeal present questions that were preserved by specific objection in the trial court. Here, defendant acknowledges that he did not object to the orders of protection at sentencing but nonetheless contends that his arguments are reviewable because his claims fall within the illegal sentence exception to the preservation requirement. We disagree.

We have recognized “a narrow exception to the preservation rule” (*People v Samms*, 95 NY2d 52, 56 [2000]) where a court exceeds its powers and imposes a sentence that is illegal in a respect that is readily discernible from the trial record. Commonly referred to as the “illegal sentence” exception, this rule allows this Court to review certain issues despite the absence of a timely objection at the trial court level. But not all claims arising during a sentencing proceeding fall within the exception.

3. After *Stevens* and *Hernandez* were decided, the Legislature amended SORA to provide the People and the defendant the right to bring a civil appeal challenging a risk level determination (*see* Correction Law § 168-d [3]; L 1999, ch 453, § 6).

For example, challenges to the court's procedures, evidentiary disputes and claims that rely on documents or facts not otherwise developed in the record must be preserved by timely objection in the sentencing court (*id.* at 57-58; see *People v Horne*, 97 NY2d 404, 414 n 3 [2002]; *People v Smith*, 73 NY2d 961 [1989]; *People v Oliver*, 63 NY2d 973 [1984]; see generally *People v Gonzalez*, 99 NY2d 76, 83 [2002]).

Here, although the orders of protection were issued at the sentencing proceeding, it is evident from the statutory scheme that the orders were not a part of defendant's sentence. CPL 530.13 (4) does not characterize permanent orders of protection as a component of sentencing. Furthermore, CPL 530.13 authorizes a court to issue temporary orders during the pendency of the criminal proceeding, establishing that the Legislature could not have intended orders of protection to be punitive in nature. In fact, the provisions addressing the scope of temporary orders are substantially the same as those applying to permanent orders, suggesting the purpose of the legislation was to assist victims and witnesses (*compare* CPL 530.13 [1] [a], [b] with CPL 530.13 [4] [a], [b]), not to punish the accused. The legislative history of a recent amendment to CPL 530.13 indicates that the primary intent of the statute is to ensure that victims and "witnesses who have the courage and civic responsibility to cooperate with law enforcement officials are afforded the maximum protection possible" (Governor's Mem approving L 1998, ch 610, 1998 McKinney's Session Laws of NY, at 1485).

Further confirmation that the Legislature did not create a new sentence when it enacted CPL 530.13 (4) can be found by reference to the Penal Law provisions governing sentencing for criminal offenses. Title E of the Penal Law, entitled "Sentences," encompasses articles 55, 60, 65, 70, 80 and 85, and comprehensively addresses sentencing alternatives, ranging from youthful offender adjudication to incarceration, restitution and reparation, and the imposition of fines. No reference is made in any of these provisions to an order of protection as a permissible sentence. In light of this statutory scheme, we conclude that an order of protection issued incident to a criminal proceeding is an ameliorative measure intended to safeguard the rights of victims and witnesses both prior to and after conviction—it is not a part of the sentence imposed.

Thus, even if the orders of protection in this case are defective as defendant argues, those defects do not render defendant's

sentence of incarceration invalid and they are not reviewable under the illegal sentence exception to the preservation requirement. Although the Appellate Division had authority to address defendant's unpreserved challenges to the orders in the exercise of its interest of justice jurisdiction, this Court is without power to do so and we therefore may not consider defendant's arguments on the merits.

III.

[1] As a practical matter, although we have determined that permanent orders of protection are appealable, we note that an appeal is neither the only nor the most desirable means for resolving an expiration date issue. CPL 530.13 mandates that the duration of an order of protection be "fixed by the court" and further directs that "[a]n order of protection issued under this section shall plainly state the date that such order expires" (CPL 530.13 [4], [5]). The statute requires that any order of protection issued must be filed with law enforcement authorities to provide for effective enforcement. Needless to say, it is imperative that orders of protection contain specific and correct expiration dates to provide certainty for defendants, the protected victims and witnesses, and law enforcement authorities who may be called to enforce them.

A sentencing court cannot predict the extent of allowable jail time credit before such calculations are made by DOCS. If alerted to the fact that jail time credit will arise, however, the court can retain jurisdiction over the matter so that adjustments necessitated by subsequent events can be made as efficiently as possible. Because sentencing courts are in the best position to amend permanent orders of protection, the better practice—and best use of judicial resources—is for a defendant seeking adjustment of such an order to request relief from the issuing court in the first instance, resorting to the appellate courts only if necessary. By returning to the issuing court, defendant can expeditiously obtain correction of the orders and, even if not successful, will have created a record that will facilitate appellate review (*see generally People v Kinchen*, 60 NY2d 772 [1983]).⁴

This case demonstrates the point. The only issues defendant raised on appeal related to the orders of protection. Defendant

4. The People argue that the record was inadequate to support appellate review in this case because the jail time credit documents on which defendant relied were never properly made part of the record and, due to defendant's failure to object to the scope of the orders, the court never articulated whether

(n. cont'd)

and his counsel knew at the time of sentencing that he had been incarcerated while the criminal action was pending and therefore knew he would receive jail time credit. If the defense had raised the issue at sentencing, the court would undoubtedly have directed defendant to return after DOCS calculated his jail time credit so that the orders could be amended to reflect changes in defendant's release date, if appropriate. Had defendant sought correction of the orders in the trial court, amended orders would likely have already been issued in this case, obviating the expenditure of time and resources associated with an appeal.

Accordingly, on defendant's appeal, the order of the Appellate Division, insofar as appealed from, should be affirmed. The People's appeal should be dismissed upon the ground that the Appellate Division modification was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification" (CPL 450.90 [2] [a]; *People v Dercole*, 52 NY2d 956 [1981]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

Order affirmed, People's appeal dismissed, etc.

it considered the subjects of the orders to be victims or witnesses. Having concluded that the preservation rule bars review in any event, we have no occasion to determine whether the record presented would have been adequate to support such review.

[811 NE2d 19, 778 NYS2d 757]

JOSEPH BRUNI, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendant.

Argued March 24, 2004; decided May 6, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 24, 2003. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Kings County (David B. Vaughan, J.), in favor of plaintiff, which had found defendant City of New York 100% at fault and awarded plaintiff the sum of \$1,623,054.50; (2) granted defendant City of New York's oral application pursuant to CPLR 4401 for judgment as a matter of law made at the close of the evidence; and (3) dismissed the complaint.

Bruni v City of New York, 302 AD2d 545, reversed.

HEADNOTES

Municipal Corporations — Notice of Street Defect — Sufficiency of Written Acknowledgment

1. In an action to recover damages for injuries plaintiff sustained when he stepped into a hole in the street adjacent to a defective catch basin, internal documents prepared prior to plaintiff's accident by the New York City Department of Environmental Protection (DEP) regarding the defective catch basin and the need to repair it constituted a "written acknowledgment from the city" within the meaning of the City's "Pothole Law" (Administrative Code of City of NY § 7-201 [c] [2]). The documents indicate that DEP, the agency responsible for the repair, had knowledge of the condition and the danger it presented. Although the Pothole Law was designed with New York City Department of Transportation (DOT) in mind, the "written acknowledgment" contemplated by paragraph (2) can come from an agency other than DOT if that other agency is performing the function, normally performed by DOT, of remedying an unsafe condition in the roadway.

Negligence — Comparative Negligence — Failure to Charge Jury

2. In an action to recover damages for injuries plaintiff sustained when he stepped into a hole in the street adjacent to a defective catch basin, the issue of whether plaintiff was negligent, and if so to what extent his negligence contributed to causing the accident, should have been submitted to the jury. There were at least two ways in which a reasonable jury could have inferred from the evidence presented at trial that plaintiff, who was walking in darkness in an unfamiliar area and looking straight ahead at the time he stepped in the hole, failed to exercise due care.

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AM JUR 2d, Highways, Streets, and Bridges §§ 121, 135,

136; AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 99 113, 250; AM JUR 2d, Negligence § 954.

CARMODY-WAIT 2d, Actions By and Against Public Bodies and Public Officers § 144:157.

NY JUR 2d, Government Tort Liability §§ 7, 28, 102, 316, 325; NY JUR 2d, Highways, Streets, and Bridges §§ 400, 465, 548, 561.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI 2:36, PJI 2:225.

PROSSER AND KEETON, TORTS (5th ed) § 67.

ANNOTATION REFERENCE

See ALR Index under Comparative Negligence; Municipal Corporations; Pothole.

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Query: pot-hole /2 law /s city /s acknowledgment

POINTS OF COUNSEL

Godosky & Gentile, P.C., New York City (*David Godosky* and *Richard Godosky* of counsel), and *Pollack, Pollack, Isaac & De Cicco* (*Brian J. Isaac* of counsel), for appellant. I. The liability verdict was correct, since the Department of Environmental Protection was exclusively responsible for maintaining the catch basin and its records constituted written acknowledgment of notice pursuant to the Pothole Law. (*Friedman v State of New York*, 67 NY2d 271; *Lopes v Rostad*, 45 NY2d 617; *Weiss v Fote*, 7 NY2d 579; *Annino v City of Utica*, 276 NY 192; *Holt v City of Tioga*, 56 NY2d 414; *Fullerton v City of Schenectady*, 285 App Div 545, 309 NY 701, 305 US 980; *MacMullen v City of Middletown*, 187 NY 37; *Barry v Niagara Frontier Tr. Sys.*, 35 NY2d 629; *Doremus v Incorporated Vil. of Lynbrook*, 18 NY2d 362; *Sherman v Robinson*, 80 NY2d 483.) II. The trial court properly refused to give a comparative negligence charge. (*Clifford v Dam*, 81 NY 52; *Delaney v Philhern Realty Corp.*, 280 NY 461; *Rossmann v La Grega*, 28 NY2d 300; *Manley v New York Tel. Co.*, 303 NY 18; *Eaton v New York Cent. & Hudson Riv. R.R. Co.*, 195 NY 267; *Loudoun v Eighth Ave. R.R. Co.*, 162 NY 380; *Wartels v County Asphalt*, 29 NY2d 372; *Chiodi v Soliman*, 174 AD2d 329; *Perla v New York Daily News*, 123 AD2d 349; *Weber v City of New York*, 101 AD2d 757, 63 NY2d 886.)

Michael A. Cardozo, Corporation Counsel, New York City

(*Norman Corenthall* and *Kristin M. Helmers* of counsel), for respondent. I. Prior written notice was not provided to the City of New York as required by Administrative Code of the City of New York § 7-201. Constructive or actual notice is not recognized as an exception to the requirement of prior written notice. (*Holt v County of Tioga*, 56 NY2d 414; *Barry v Niagara Frontier Tr. Sys.*, 35 NY2d 629; *Poirier v City of Schenectady*, 85 NY2d 310; *Amabile v City of Buffalo*, 93 NY2d 471; *Katz v City of New York*, 87 NY2d 241; *Woodson v City of New York*, 93 NY2d 936; *Doremus v Incorporated Vil. of Lynbrook*, 18 NY2d 362; *Brill v City of New York*, 305 AD2d 525, 1 NY3d 501; *MacMullen v City of Middletown*, 187 NY 37; *Blake v City of Albany*, 48 NY2d 875.) II. The Department of Environmental Protection form and work order do not constitute a written acknowledgment within the meaning of the statute. (*Laing v City of New York*, 71 NY2d 912; *Camenson v Town of N. Hempstead*, 298 AD2d 543; *Poirier v City of Schenectady*, 85 NY2d 310; *Cenname v Town of Smithtown*, 303 AD2d 351; *Levbarg v City of New York*, 282 AD2d 239; *Gee v City of New York*, 304 AD2d 615; *Meltzer v City of New York*, 156 AD2d 124; *Fraser v City of New York*, 226 AD2d 424; *Garrison v City of New York*, 300 AD2d 14; *Sparrock v City of New York*, 242 AD2d 289.) III. To the extent that causation or creation may constitute an exception to the prior written notice law, plaintiff did not plead or adequately prove that the City of New York caused or created a defective condition. (*Amabile v City of Buffalo*, 93 NY2d 471; *Monteleone v Incorporated Vil. of Floral Park*, 74 NY2d 917; *Kiernan v Thompson*, 73 NY2d 840; *Muszynski v City of Buffalo*, 33 AD2d 648, 29 NY2d 810; *Miller v City of New York*, 217 AD2d 537; *Shaw v City of Auburn*, 91 AD2d 817, 59 NY2d 780; *Parella v Levin*, 111 AD2d 750; *Cattani v Incorporated Vil. of Ocean Beach*, 252 AD2d 533; *Price v Village of Phoenix*, 222 AD2d 1079; *Carbo v City of New York*, 275 AD2d 439.) IV. The trial court improperly failed to include an instruction on comparative negligence, therefore requiring a new trial in the event of reversal. (*Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Cohen v Hallmark Cards*, 45 NY2d 493; *Orellana v Merola Assoc.*, 287 AD2d 412.) V. The damages were excessive, and in the event of a reversal, the matter should be remitted for a determination of the issue of damages by the Appellate Division.

OPINION OF THE COURT

R.S. SMITH, J.

The principal issue presented by this case is whether certain

internal documents prepared by the New York City Department of Environmental Protection (DEP) constituted a “written acknowledgement from the city” within the meaning of the City’s “Pothole Law” (Administrative Code of City of NY § 7-201 [c]). We hold that the documents did constitute such an acknowledgement, and therefore we reverse the Appellate Division order dismissing plaintiff’s complaint. We also hold that Supreme Court erred in failing to submit the issue of plaintiff’s comparative negligence to the jury.

Facts and Procedural History

On July 10, 1997, someone contacted the Central Complaint Bureau of the Bureau of Sewers, which is a part of DEP, about a problem at 11th Avenue and 62nd Street in Brooklyn. According to the complaint ticket generated as a result of the call, the problem was a “c/b SUNKEN/DAMAGED/RAISED AFFECTING STREET.” “C/B” is an abbreviation for “catch basin,” which is essentially an open box set into the street and covered by a metal grate. Its purpose is to collect water. The maintenance of catch basins is DEP’s responsibility.

Expert testimony at trial explained how a defective catch basin could affect the street. The grate covering a catch basin is held in place by a metal frame, which sits on bricks that make up the upper portion of the catch basin walls. The brick walls are wider than the frame, and therefore the bricks also support a part of the adjacent pavement. If bricks are removed or fall away, the pavement will be unsupported, and any weight placed on it will cause that portion of the street to cave in.

The DEP document reflecting the July 10 complaint was forwarded to Samuel Gomez, a Bureau of Sewers supervisor, who inspected the catch basin and adjacent area on July 18, 1997. Gomez filled out a “Foreman’s Report” in which he stated: “Repair defective C/B unit . . . is missing bricks on the wall stock due to caving. Loc. safe at this time.” Gomez testified that “caving” meant “a hole in the street.”¹ He also testified that “Loc. safe at this time” meant that he had set up a sawhorse and traffic cones around the hole. Gomez’s report included a sketch, showing that the problem area was located in the street next to the sidewalk.

1. Gomez’s report seems to indicate that the hole in the street caused the catch basin wall to be missing bricks. However, an engineer called by plaintiff testified without contradiction that the normal course of events would be the other way around—the loss of bricks would cause the street to cave in.

Gomez testified that it was his practice to refer some complaints about defects in the roadway to the New York City Department of Transportation (DOT), which is generally responsible for street repairs. In this case, however, since the catch basin was defective, Gomez determined that DEP, not DOT, would be responsible for the repair. He also determined that the problem required a major repair—beyond the sort of routine maintenance that he personally might handle—and he therefore filled out another form, a “Request for Repairs Work Order,” also dated July 18, 1997. The request was approved on July 23, 1997, but DEP did not do the work until September 16. DOT did not need to be, and was not, involved at any stage in identifying or remedying the problem.

Plaintiff lived at 11th Avenue and 67th Street, five blocks from the catch basin. On August 26, 1997—39 days after Gomez inspected the site and prepared his report and work order, and 21 days before the hole was repaired—plaintiff left his apartment before sunrise and walked to a grocery store on 61st Street between 12th and 13th Avenues. As was his custom, he took a slightly indirect route to the store, in order to pass by a church which he found to be “an interesting structure.” At the grocery store, plaintiff discovered that he had left his wallet home and set out to retrieve it. On his homeward journey, he chose to take a different route because it was “a little shorter,” and thus found himself walking on 11th Avenue between 61st and 62nd Streets, an area where he had never walked in the dark before.

The lighting was poor, and plaintiff therefore walked in the middle of 11th Avenue, where there was some illumination from a nearby train station. At 11th Avenue and 62nd Street the lighting got better, and plaintiff decided to go up on the sidewalk. As he crossed toward the corner of 11th Avenue and 62nd Street he was “looking straight ahead” and, as a result, did not see the hole adjacent to the catch basin until he stepped in it. The sawhorse and traffic cones that Gomez said he put around the hole on July 18 were not present.

Plaintiff suffered a broken jaw and other injuries, and sued the City for negligence. Supreme Court denied the City’s motion for a directed verdict based upon the Pothole Law, and also denied the City’s request for a jury charge on comparative negligence. The jury returned a verdict for plaintiff in the amount of \$1.6 million.

Supreme Court entered judgment in accordance with the verdict, but the Appellate Division reversed and dismissed the

complaint, holding that “the intra-departmental work order submitted by a supervisor with the NYCDEP . . . does not constitute a ‘written acknowledgement from the city’ of the defective condition within the meaning of the Pothole Law” (302 AD2d 545, 546 [2003].) We granted leave to appeal and now reverse.

Discussion

A. The Pothole Law

The Pothole Law provides in relevant part:

“2. No civil action shall be maintained against the city for damage to property or injury to person or death sustained in consequence of any street, highway, bridge, wharf, culvert, sidewalk or crosswalk, or any part or portion of any of the foregoing including any encumbrances thereon or attachments thereto, being out of repair, unsafe, dangerous or obstructed, unless it appears that written notice of the defective, unsafe, dangerous or obstructed condition, was actually given to the commissioner of transportation or any person or department authorized by the commissioner to receive such notice, or where there was previous injury to person or property as a result of the existence of the defective, unsafe, dangerous or obstructed condition, and written notice thereof was given to a city agency, or there was written acknowledgement from the city of the defective, unsafe, dangerous or obstructed condition, and there was a failure or neglect within fifteen days after the receipt of such notice to repair or remove the defect, danger or obstruction complained of, or the place otherwise made reasonably safe. . . .

“4. Written acknowledgement shall be given by the department of transportation of all notices received by it.” (Administrative Code § 7-201 [c].)

Thus paragraph (2) of the law lists three alternative prerequisites to an action: (1) “written notice . . . actually given to the commissioner of transportation” or his designee; (2) “previous injury to person or property . . . and written notice . . . given to a city agency”; or (3) “written acknowledgement from the city of the defective, unsafe, dangerous or obstructed condition.” Plaintiff here relies on the third alternative, contending that the DEP documents described above constituted “written

acknowledgement from the city.” The City argues that the documents cannot be such an acknowledgement because they “do not evince an awareness by the City of a hole in the street”; because they originate with DEP, not DOT;² and because they are internal documents.

[1] We reject all three of the City’s arguments and hold that a written statement showing that the city agency responsible for repairing a condition had first-hand knowledge both of the existence and the dangerous nature of the condition is an “acknowledgement” sufficient to satisfy the Pothole Law.

The City’s first argument, that the DEP’s documents do not show that the City knew there was a hole in the street, is frivolous. The report prepared by Gomez based on his personal observation specifically refers to “caving,” which Gomez testified meant “a hole in the street.” Gomez’s work order called for the use of “Cold Patch”—a reference, according to expert testimony, to “coal patch,” which is commonly used to replace asphalt. The sketch in Gomez’s report shows that the problem area was in the street. The report also states: “Loc[ation] safe at this time”—which meant, according to Gomez’s testimony, that he had protected the area with a sawhorse and traffic cones. Thus the documents show beyond any question that the City was aware both that there was a hole in the street and that it was dangerous.

The issue of whether the “acknowledgement” referred to in paragraph (2) of the Pothole Law must be from DOT was raised, but not decided, in our only previous case dealing with the “acknowledgement” provision of paragraph (2), *Laing v City of New York* (71 NY2d 912 [1988]). That case concerned a crack in the sidewalk. The plaintiff in *Laing* claimed that a tree inspection report of the Department of Parks and Recreation, on which the word “Cracked” appeared on the line for “Sidewalk Conditions,” was an “acknowledgement from the city” within the meaning of the Pothole Law. (*Id.* at 914.) We rejected the claim on the ground that “[t]he tree inspection report . . . was completed by the Parks Department in connection with tree-pruning, not in connection with any sidewalk condition.” (*Id.*) We added: “We thus do not reach the question whether a ‘writ-

2. The City says it is unnecessary to reach the question of whether an “acknowledgement” sufficient to satisfy the Pothole Law can come only from DOT, though it implies that the answer to the question is yes. The City does argue that DEP work orders, by their nature, cannot qualify as acknowledgements because their function is to initiate sewer repairs, not roadway repairs.

ten acknowledgement from the city' under the Pothole Law must come only from the Department of Transportation" (*Id.*)

This case is the opposite of *Laing* in a key respect: The documents involved in this case were prepared in connection with the hole in the street of which plaintiff complains. DEP, which prepared the documents, was responsible for fixing the hole—and it did fix it, after plaintiff's accident, without giving notice to DOT or involving DOT in any way. Thus this case presents the question not reached in *Laing*: whether the "written acknowledgement" contemplated by paragraph (2) can ever come from an agency other than DOT. We hold that it can where, as here, that other agency is performing the function (normally performed by DOT) of remedying an unsafe condition in the roadway.

The language of paragraph (2) does not support the theory that "written acknowledgement from the city" means "written acknowledgement from DOT" in all cases. The first of the three alternatives listed in paragraph (2) of the Pothole Law expressly requires written notice "to the commissioner of transportation or any person or department authorized by the commissioner to receive such notice." The third alternative could have used parallel language—"acknowledgement from the commissioner of transportation or any person or department authorized by the commissioner to give such acknowledgement"—but it refers to "acknowledgement from the city" instead. The language thus implies that the category of entities which can give an acknowledgement is larger than the category which can receive notice.

Nor would it serve the purpose of the "written acknowledgement" requirement to hold that acknowledgements can come only from DOT. Clearly, the Pothole Law was designed with DOT in mind. The City concedes, however, that in certain cases—such as this pavement cave-in—DOT is not responsible for the repair. We cannot conclude that the City Council intended to shield the City from liability in all such cases. While the purpose of the acknowledgement provision is not explained in the legislative history, we interpret it as permitting a lawsuit where there is documentary evidence showing, as clearly as written notice to DOT would show, that the City knew of the hazard and had an opportunity to remedy it. That purpose is fulfilled by a written acknowledgement from the responsible agency showing that it had knowledge of the condition and the

danger it presented. The purpose is no less served in the exceptional case where the responsible agency is one other than DOT.

Nor do we accept the City's argument that an internal document cannot constitute an "acknowledgement." The City bases this argument on definitions it finds in law dictionaries and in *Willis v Mott* (36 NY 486, 491 [1867]), which suggest that "acknowledgement" is a synonym for admission, confirmation, concession, recognition or avowal. *Willis v Mott* says that one meaning of "acknowledge" is "to declare openly." (*Id.*) But these are not the only possible definitions of "acknowledgement"; one of the definitions of "acknowledge" in Merriam-Webster's Collegiate Dictionary (10th ed 1993) is simply "to take notice of." And in any event, the definitions the City relies on do not necessarily imply that internal documents cannot be acknowledgements. There is no reason why employees of a city agency may not admit, confirm, concede, recognize or avow something to other employees of the same agency. One of the definitions of "acknowledge" quoted by the City—"to recognize one's acts, and assume the responsibility therefor" (Black's Law Dictionary 21 [5th ed 1979])—is a reasonable description of what the DEP documents at issue in this case do.

We find the purpose of the law more helpful than dictionaries in deciding the meaning to be given "acknowledgement" in this context. As we said above, the "acknowledgement" alternative in paragraph (2) of the Pothole Law appears to be designed to make written notice to DOT unnecessary where there is documentary evidence that serves the same function—to demonstrate that the responsible city agency knew of the hazard and had an opportunity to remedy it. This purpose can be served as well by an internal document as an external one.

In short, we hold that the documents relied on by plaintiff satisfy the "acknowledgement" requirement of paragraph (2) of the Pothole Law. The Appellate Division's dismissal of the complaint, which was based on a contrary holding, should therefore be reversed.

B. Comparative Negligence

[2] The City argued in the Appellate Division both that the case should be dismissed under the Pothole Law and that, if it were not dismissed, a new trial should be ordered because of Supreme Court's failure to charge comparative negligence. The Appellate Division accepted the first of these arguments and did

not have to reach the second.³ Since we reverse on the first issue, we do reach the second, and find that we agree with the City's contention.

The issue of negligence, whether of the plaintiff or defendant, is usually a question of fact. It should be submitted to the jury if there is a valid line of reasoning and permissible inferences from which rational people can draw a conclusion of negligence on the basis of the evidence presented at trial. (*Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507, 517 [1980].) Here, there are at least two ways in which a reasonable jury could infer from the evidence that plaintiff failed to exercise due care. First, a jury could conclude that a reasonable person in plaintiff's position would not have chosen to walk in darkness a route he had never walked at night before, when a more familiar, only slightly longer, route was available. Secondly, a jury could conclude that plaintiff, walking in an unfamiliar, ill-lighted area, should not have been looking "straight ahead" but should have been attentive to the ground in front of his feet. We do not suggest that those are the only possible grounds on which a jury might find that plaintiff failed to exercise due care; nor do we suggest that the facts compel a finding of negligence by plaintiff. We do hold, however, that the jury should have been asked whether plaintiff was negligent, and if so to what extent his negligence contributed to causing the accident.

Accordingly, the order of the Appellate Division should be reversed, with costs, and a new trial ordered.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order reversed, etc.

3. The Appellate Division also did not reach the question of whether the \$1.6 million damage award was excessive. That question is moot in light of our decision.

[811 NE2d 8, 778 NYS2d 746]

PAUL A. KROHN, Respondent-Appellant, and ALLI KATT, Respondent, v NEW YORK CITY POLICE DEPARTMENT et al., Appellants-Respondents.

Argued March 23, 2004; decided May 4, 2004

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.17, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Can a person claiming gender-based employment discrimination recover punitive damages from the City of New York under section 8-502(a) of the New York City Human Rights Law, N.Y.C. Admin. Code § 8-502(a)?”

HEADNOTE

Civil Rights — Discrimination in Employment — New York City Human Rights Law — Municipality Not Liable for Punitive Damages

A person claiming gender-based employment discrimination under New York City Human Rights Law (Administrative Code of City of NY) § 8-502 (a) may not recover punitive damages from the City of New York. A municipality is not liable for punitive damages flowing from its employees’ misconduct in the absence of express legislative authorization to the contrary. The code provision at issue does not clearly, expressly and specifically waive the City’s sovereign immunity. Although the provision does expressly reference punitive damages, the reference is insufficient to constitute a waiver. There is no specific reference to the municipality in the provision itself, and the provision begins with the phrase, “[e]xcept as otherwise provided by law.” Nor is there any indication that the City Council discussed, debated, or even contemplated exposing the City to punitive damages or the potential fiscal impact of punitive damages on the City.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Damages § 599; AM JUR 2d, Job Discrimination §§ 135, 2660.

NY JUR 2d, Civil Rights §§ 11–13, 66; NY JUR 2d, Government Tort Liability § 11.

ANNOTATION REFERENCE

Recovery of exemplary or punitive damages from municipal corporation. 1 ALR4th 448.

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& punitive exemplary /2 damage /s city municipal!**POINTS OF COUNSEL**

Dechert LLP, Princeton, New Jersey (*David A. Kotler* of counsel), and *Kirkland & Ellis*, New York City (*Scott R. Samay* of counsel), for respondent-appellant. I. Under this Court's decision in *Sharapata v Town of Islip* (56 NY2d 332 [1982]), the New York City Council can, by statute, waive the City of New York's common-law immunity from punitive damages for its acts of gender-based employment discrimination so long as the statute does so "expressly." (*Thoreson v Penthouse Intl.*, 80 NY2d 490.) II. The New York City Human Rights Law does expressly subject the City of New York to punitive damages liability for its acts of gender-based employment discrimination. (*Bracker v Cohen*, 204 AD2d 115; *Matter of Levy v City Commn. on Human Rights*, 85 NY2d 740; *Thoreson v Penthouse Intl.*, 80 NY2d 490; *Hartford Acc. & Indem. Co. v Village of Hempstead*, 48 NY2d 218; *Matter of Aaron J.*, 80 NY2d 402; *Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Katt v City of New York*, 151 F Supp 2d 313; *Home Ins. Co. v American Home Prods. Corp.*, 75 NY2d 196; *Ciraolo v City of New York*, 216 F3d 236; *Matter of Society of N.Y. Hosp. v Del Vecchio*, 70 NY2d 634.) III. The trial court both erroneously interpreted *Sharapata v Town of Islip* (56 NY2d 332 [1982]) and erroneously applied *Sharapata* to the New York City Human Rights Law. (*Katt v City of New York*, 151 F Supp 2d 313; *Matter of Petterson v Daystrom Corp.*, 17 NY2d 32; *Rust v Reyer*, 91 NY2d 355; *People v Cooper*, 219 AD2d 426, 90 NY2d 292.)

Michael A. Cardozo, Corporation Counsel, New York City (*Scott Shorr* and *Leonard Koerner* of counsel), for appellants-respondents. I. Under *Sharapata v Town of Islip* (56 NY2d 332 [1982]), New York City Human Rights Law (Administrative Code of City of NY) § 8-502 does not waive the City of New York's immunity from punitive damages liability. (*Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382; *Katt v City of New York*, 151 F Supp 2d 313; *Hayes v State of New York*, 80 Misc 2d 498, 50 AD2d 693, 40 NY2d 1044; *Smith v State of New York*, 227 NY 405; *City of Newport v Fact Concerts, Inc.*, 453 US 247.) II. This Court should reject *Katt's* and *Gurian's* attempt to infer, from various New York City Human Rights Law provi-

sions, that the City Council implicitly waived the City of New York's immunity from punitive damages liability. (*Juarez v Wavecrest Mgt. Team*, 88 NY2d 628; *Sharapata v Town of Islip*, 56 NY2d 332; *Katt v City of New York*, 151 F Supp 2d 313; *Hayes v State of New York*, 80 Misc 2d 498; *Smith v State of New York*, 227 NY 405; *Bracker v Cohen*, 204 AD2d 115; *Morris v Snappy Car Rental*, 84 NY2d 21; *West v American Tel. & Tel. Co.*, 311 US 223; *Conlon v Union Dime Sav. Bank*, 195 App Div 509; *Matter of Levy v City Commn. on Human Rights*, 85 NY2d 740.) III. This Court should also reject Katt's and Gurian's attempts to infer a waiver from the New York City Human Rights Law's "overall statutory scheme." (*Katt v City of New York*, 151 F Supp 2d 313; *Thoreson v Penthouse Intl.*, 80 NY2d 490.) IV. Similarly, this Court should reject Katt's and Gurian's speculative inferences that never-enacted and later-enacted bills somehow reveal an implicit waiver of immunity in New York City Human Rights Law (Administrative Code of City of NY) § 8-502 (a). (*Sharapata v Town of Islip*, 56 NY2d 332; *Katt v City of New York*, 151 F Supp 2d 313; *People v Nogueros*, 42 NY2d 956; *People v Phyfe*, 136 NY 554; *New York City Health & Hosps. Corp. v Council of City of N.Y.*, 303 AD2d 69.) V. The State Constitution's gift provisions bar the City Council from using public money for punitive damages awards. (*People v Westchester County Natl. Bank*, 231 NY 465; *Ruotolo v State of New York*, 83 NY2d 248; *Angelone v City of Rochester*, 72 AD2d 445, 52 NY2d 982; *Katt v City of New York*, 151 F Supp 2d 313; *Babcock v State of New York*, 190 App Div 147, 231 NY 560; *Farrington v State of New York*, 248 NY 112; *Matter of Evans v Berry*, 262 NY 61; *Matter of Chapman v City of New York*, 168 NY 80; *City of Newport v Fact Concerts, Inc.*, 453 US 247; *Matter of Antonopoulou v Beame*, 32 NY2d 126.) VI. Exposing the City of New York to punitive damages liability under the New York City Human Rights Law would violate public policy. (*Sharapata v Town of Islip*, 82 AD2d 350, 56 NY2d 332; *Costich v City of Rochester*, 68 App Div 623; *City of Newport v Fact Concerts, Inc.*, 453 US 247; *Ciraolo v City of New York*, 216 F3d 236, 531 US 993; *Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382; *Katt v City of New York*, 151 F Supp 2d 313; *International Bhd. of Elec. Workers v Foust*, 442 US 42; *Hartford Acc. & Indem. Co. v Village of Hempstead*, 48 NY2d 218; *Walker v Sheldon*, 10 NY2d 401; *James v Powell*, 19 NY2d 249.)

J. Wade Beltramo, Albany, and *William L. Gibson, Jr.*, Binghamton, for New York State Conference of Mayors and Municipal Officials and another, amici curiae. Public policy dictates

that punitive damages may be imposed against municipalities only when stated clearly in the text of the state statute or local law imposing such punishment. (*Sharapata v Town of Islip*, 56 NY2d 332; *Berger v City of New York*, 260 App Div 402; *Miller v Town of Irondequoit*, 243 App Div 240; *Montalto v Westchester St. Transp. Co.*, 102 AD2d 816; *Hamilton v Third Ave. R.R. Co.*, 53 NY 25; *Reid v Terwilliger*, 116 NY 530; *Buck v Hooker Chems. & Plastics Corp.*, 117 Misc 2d 496; *Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382.)

Craig Gurian, Brooklyn, for Anti-Discrimination Center of Metro New York, Inc., and another, amici curiae. I. Both the language of Administrative Code of the City of New York § 8-502 (a) and the legislative history of Local Law No. 39 (1991) of the City of New York demonstrate that the clear import of the enactment was to permit the punitive damages to be awarded against the City of New York where warranted. (*Sharapata v Town of Islip*, 56 NY2d 332; *Katt v City of New York*, 151 F Supp 2d 313; *Juarez v Wavecrest Mgt. Team*, 88 NY2d 628; *Matter of Levy v City Commn. on Human Rights*, 85 NY2d 740; *Umansky v Masterpiece Intl.*, 276 AD2d 692; *Levin v Yeshiva Univ.*, 96 NY2d 484.) II. The New York City Human Rights Law offers both the City and all other discrimination defendants ample opportunity to mitigate punitive damages, mitigation provisions that are designed as a well-thought-through system of incentives and disincentives for all defendants. (*Katt v City of New York*, 151 F Supp 2d 313.) III. Defendant's attempt to analogize city law to either state or federal civil rights law is misguided and misleading. (*Matter of 119-121 E. 97th St. Corp. v New York City Commn. on Human Rights*, 220 AD2d 79; *Levin v Yeshiva Univ.*, 96 NY2d 484; *Mohamed v Marriott Intl.*, 905 F Supp 141; *Matter of Pace Univ. v New York City Commn. on Human Rights*, 200 AD2d 173, 85 NY2d 125; *Matter of Buckhout v New York City Commn. on Human Rights*, 203 AD2d 67.) IV. The suggestion that the City of New York is somehow not an "employer" for punitive damages purposes is entirely without merit. (*Katt v City of New York*, 151 F Supp 2d 313.)

OPINION OF THE COURT

CIPARICK, J.

Plaintiff Alli Katt¹ sued her former employer, the New York

1. The named plaintiff, Paul A. Krohn, is the bankruptcy trustee for plaintiff Alli Katt and was substituted during the course of the litigation.

City Police Department (the City), and Police Lieutenant Anthony DiPalma alleging that she was subjected to sexual harassment and a sexually hostile and abusive work environment in violation of state and federal law and the New York City Human Rights Law. Katt, a civilian employee, worked as a police administrative aide in the Seventh Precinct.

This action was commenced roughly nine years ago, in 1995, and has an extensive procedural history. The complaint originally named three additional individual defendants and alleged several causes of action. At the time of trial, plaintiff's only remaining claims were for violations of 42 USC § 1983, the New York State Human Rights Law (Executive Law § 290 *et seq.*) and New York City Human Rights Law (Administrative Code of City of NY) § 8-502, against the City and DiPalma.

After trial in the United States District Court for the Southern District of New York, the jury delivered a verdict in plaintiff's favor, awarding \$400,000 in compensatory damages against both defendants and \$1,000,000 in punitive damages against the City. In response to defendants' motions for judgment as a matter of law (*see* Fed Rules Civ Pro rule 50 [b]) or, in the alternative, for a new trial (*see* Fed Rules Civ Pro rule 59), the court struck the punitive damages award against the City, and otherwise directed entry of judgment for the plaintiff in the amount of \$400,000. The court determined that punitive damages were not authorized under section 8-502 of the New York City Human Rights Law because the statute does not contain an unequivocal indication of legislative intent to waive the City's common-law immunity from liability for such damages (151 F Supp 2d 313, 345 [US Dist Ct, SD NY 2001]). The court subsequently denied plaintiff's motion for reconsideration.²

Defendants appealed the District Court's denial of their motion for a new trial, which the United States Court of Appeals for the Second Circuit affirmed. Plaintiff cross-appealed from the portion of the District Court's order vacating the punitive damages award. Determining that there was insufficient guidance from this Court to resolve the issue, which raises significant state law public policy concerns, the Second Circuit certified the following question: "Can a person claiming gender-

2. Plaintiff's motion for reconsideration was supported by a letter to the District Court by Craig Gurian, a lawyer who identified himself as the principal author of the 1991 revisions to the New York City Human Rights Law—including the provision at issue.

based employment discrimination recover punitive damages from the City of New York under section 8-502(a) of the New York City Human Rights Law, N.Y.C. Admin. Code § 8-502(a)?” (341 F3d 177, 182 [2003].) We accepted certification (100 NY2d 605 [2003]) and now answer that question in the negative.

Analysis

Plaintiff claims gender-based employment discrimination under section 8-502 (a) of the New York City Human Rights Law, which states that:

“Except as otherwise provided by law, any person claiming to be aggrieved by an unlawful discriminatory practice as defined in chapter one of this title . . . shall have a cause of action in any court of competent jurisdiction for damages, including punitive damages, and for injunctive relief and such other remedies as may be appropriate” (Administrative Code of City of NY § 8-502 [a]).

Under the Code, it is an unlawful discriminatory practice for an employer “to discriminate against [a] person in compensation or in terms, conditions or privileges of employment” because of the person’s gender (*see* Administrative Code § 8-107 [1] [a]).

The Code then defines “employer” by excluding those employers with three employees or less (*see* Administrative Code § 8-102 [5]), and does not differentiate between public and private employers. Although the definition of “person”³ includes “governmental bodies or agencies,” section 8-502 (a) uses “person” to refer to those aggrieved by discriminatory treatment, rather than those subject to liability for damages (*see* Administrative Code § 8-102 [1]; § 8-502 [a]). Plaintiff argues since this Court has previously determined that the New York City Transit Authority was an “employer” within the definition of the New York City Human Rights Law (*see Matter of Levy v City Commn. on Human Rights*, 85 NY2d 740, 744 [1995]), that the City should also be considered an “employer” here. However, holding the City to be an “employer” for the purposes of the Human Rights Law, does not of itself constitute legislative authorization for punitive damages liability (*see Sharapata v Town of Islip*, 56 NY2d 332, 336 n 5 [1982]).

3. “The term ‘person’ includes one or more natural persons, proprietorships, partnerships, associations, group associations, organizations, governmental bodies or agencies, corporations, legal representatives, trustees, trustees in bankruptcy, or receivers” (Administrative Code § 8-102 [1]).

In *Sharapata*, we addressed whether the State of New York was liable for punitive damages under section 8 of the Court of Claims Act and held that the waiver of sovereign immunity contained in that statute was alone insufficient to subject the State to punitive damages liability.⁴ First, “a statute in derogation of the sovereignty of a State must be strictly construed, waiver of immunity by inference being disfavored” (*id.* at 336). Although “express legislative authorization” would be necessary to subject the State (here the municipality) to punitive damages, section 8 did not make any specific reference to such damages (*id.* n 5). Second, we found it significant that the legislative history did not give any indication that the Legislature had considered the issue of punitive damages. Finally, we observed that “the twin justifications for punitive damages—punishment and deterrence—are hardly advanced when applied to a governmental unit” since it is the taxpayers who are ultimately penalized (*id.* at 338; *see also Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382, 388 [1987] [holding that the Long Island Rail Road should be exempt from liability for punitive damages because a large portion of its funding came from public sources and it served an “essential, governmental purpose” and, as a result, the burden would actually fall upon the taxpayers]).

Here, by contrast to *Sharapata*, the language of the Code provision expressly references punitive damages. The question is whether that reference is sufficient to imply the City’s waiver of immunity to liability for punitive damages. Under plaintiff’s reading of the provision, since the City is within the definition of “employer” under section 8-102 (5), and an “employer” is prohibited from engaging in unlawful discriminatory practices under section 8-107 (1) (a), the City is expressly subject to punitive damages under section 8-502. We agree, however, with the District Court that this language is not an unambiguous expression of legislative authorization to subject the City to liability for punitive damages (*see* 151 F Supp 2d at 342-343) and is insufficient to waive the City’s immunity to punitive damages liability. The absence of any specific reference to the municipality in the provision itself supports the interpretation that there

4. The same rule applies to political subdivisions of the State, including municipalities (*see Sharapata*, 56 NY2d at 334).

is neither a waiver of sovereign immunity nor express legislative authorization for punitive damages liability.⁵

Further, the statute begins with the phrase, “[e]xcept as otherwise provided by law” (Administrative Code § 8-502 [a]). It has been a common-law principle in this State that a municipality is not liable for punitive damages flowing from its employees’ misconduct in the absence of express legislative authorization to the contrary (*see Sharapata*, 56 NY2d at 336). Thus, “we must presume that the City Council was aware of the common-law rule and abrogated it only to the extent indicated by the clear import of its enactment” (*Juarez v Wavecrest Mgt. Team*, 88 NY2d 628, 646 [1996] [citations omitted]; *see also* McKinney’s Cons Laws of NY, Book 1, Statutes § 301 [b]). The absence of any specific reference to the municipality, combined with the “[e]xcept as otherwise provided by law” language, suggest that the City Council in fact intended to preserve the principle of municipal immunity from punitive damages. At best, the provision is ambiguous as to imposition of punitive damages liability upon the City and thus cannot be considered express legislative authorization or abrogation of this well-settled principle.

In addition, as was the case in *Sharapata*, here there is no indication that the City Council discussed, debated or even contemplated exposing the City to punitive damages or the potential fiscal impact of punitive damages on the City. In fact, the Fiscal Impact Statement from the Finance Division of the City Council included in the Local Law Bill Jacket does not include potential punitive damages in its estimated impact on expenditures (*see* Local Law Bill Jacket, Local Law No. 39 [1991] of City of New York). The Statement did, however, mention that the proposed provision authorized civil penalties and calculated such penalties as revenue to the City (*see* Local Law Bill Jacket, Local Law No. 39 [1991]).

The general statements that the provision was intended to give “enhanced protection against discrimination” and should be liberally construed do not provide conclusive support for the

5. “In the overwhelming majority of jurisdictions which have considered the question, it is now firmly established that exemplary or punitive damages are not recoverable unless expressly authorized by statute or through statutory construction” (18 McQuillin, *Municipal Corporations* § 53.18.10, at 314 [3d rev ed 2003]; *see also City of Newport v Fact Concerts, Inc.*, 453 US 247, 260 [1981]; Annotation, *Recovery of Exemplary or Punitive Damages from Municipal Corporation*, 1 ALR4th 448 [municipal liability for punitive damages is disfavored by most courts]).

proposition that the City Council intended to abrogate the long-standing common-law principle that New York municipalities are immune from punitive damages liability and impose such liability on the City (*see* Report of Legal Div, Comm on Gen Welfare, at 2, 12-13, Local Law Bill Jacket, Local Law No. 39 [1991]). These statements merely reflect the broad policy behind the local law to discourage discrimination (*see* Administrative Code § 8-101 [“there is no greater danger to the health, morals, safety and welfare of the city and its inhabitants than the existence of groups prejudiced against one another and antagonistic to each other because of their actual or perceived differences”]; *see also* Administrative Code § 8-130 [the Code provisions should be liberally construed]).

Plaintiff asks us to infer a waiver from the overall statutory scheme including the civil penalty provisions. The civil penalties are merely part of the Code’s alternative method of recovery for victims of discrimination. A person may file a complaint with the Commission on Human Rights provided that he or she has not previously instituted a civil action or started a proceeding before an administrative agency, or filed a complaint with the State Division of Human Rights relating to the same grievance (*see* Administrative Code § 8-109 [a], [f]). In addition to such remedies as compensatory damages and back pay (*see* Administrative Code § 8-120 [a] [8], [2]), the Commission is authorized to impose civil penalties not to exceed \$100,000 (*see* Administrative Code § 8-126 [a]). Instead of being paid to the complainant, however, the civil penalties are paid into a general fund (*see* Administrative Code § 8-127 [a]). The Code specifies that civil penalties received from a city agency are to be paid into a separate fund to “be used solely to support city agencies’ anti-bias education programs, activities sponsored by city agencies that are designed to eradicate discrimination or to fund remedial programs that are necessary to address the city’s liability for discriminatory acts or practices” (Administrative Code § 8-127 [b]). It makes little sense, given scarce public resources, that the City Council would put a cap on civil penalties that would be paid into a city fund, yet allow for open-ended punitive damages liability to be paid to a plaintiff.

Plaintiff’s argument that a previous proposed version of the provision specifically excluded the City from a private right of

action under section 8-502 is not conclusive.⁶ It certainly seems probable that the City Council's intent in furthering the purpose behind the legislation—to discourage discrimination—allowed the City, as well as private entities, to be liable for compensatory damages. The omission of the language from the previous proposal, without more, cannot amount to express legislative authorization necessary to subject the City to punitive damages.

In short, persons claiming gender-based employment discrimination cannot recover punitive damages pursuant to section 8-502 as the provision does not clearly, expressly and specifically waive New York City's sovereign immunity. In light of this determination, it is not necessary to address the City's constitutional argument.

Accordingly, the certified question should be answered in the negative.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.17 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.17), and after hearing argument by counsel for the parties and consideration of the briefs and the record submitted, certified question answered in the negative.

6. The proposed version stated:

"Except as otherwise provided by law, any person claiming to be aggrieved by an unlawful discriminatory practice as defined in chapter one of this title, *other than unlawful discriminatory practices alleged to have been committed by the city or any agency thereof or other entity performing a governmental function to which entity this chapter applies, or any officer or employee of the city or of such agency or entity*, shall have a cause of action in any court of competent jurisdiction for damages and for injunctive relief and such other remedies as may be appropriate, unless such person has filed a complaint with the city commission on human rights or with the state division of human rights with respect to such alleged unlawful discriminatory practice" (Council of City of NY Intro No. 1266, § 2, proposing amendment to Administrative Code § 8-502 [a] [June 13, 1989] [emphasis supplied]).

[811 NE2d 25, 778 NYS2d 763]

In the Matter of ROBERT J., a Person Alleged to be a Juvenile
Delinquent, Appellant.

In the Matter of KAREEM R., a Person Alleged to be a Juvenile
Delinquent, Appellant.

Argued April 1, 2004; decided May 11, 2004

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 27, 2003. The Appellate Division (1) dismissed as superseded an order of disposition of the Family Court, Kings County (Paula J. Hepner, J.), dated March 19, 2001, which had adjudicated respondent a juvenile delinquent, upon a fact-finding determination that appellant had committed an act which, if committed by an adult, would have constituted the crime of criminal possession of a weapon in the third degree, and had placed him on probation, and (2) affirmed an order of that court dated April 2, 2002, which had revoked the order of disposition and placed respondent in the custody of the New York State Office of Children and Family Services for 18 months.

APPEAL, in the second above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 27, 2003. The Appellate Division affirmed an order of the Family Court, Kings County (Fran L. Lubow, J.), which had (1) revoked an order of disposition of that court adjudicating respondent a juvenile delinquent and placing him on probation, upon a fact-finding determination that respondent had committed an act which, if committed by an adult, would have constituted the crime of criminal trespass in the third degree, and (2) placed him with the New York State Office of Children and Family Services for 12 months.

Matter of Robert J., 305 AD2d 680, affirmed.

Matter of Kareem R., 305 AD2d 688, affirmed.

HEADNOTE

Infants — Juvenile Delinquents — Family Court Authorized to Order Placement for Juvenile over 18

Family Court may order the placement of a juvenile delinquent with the Office of Children and Family Services (OCFS) for a period that extends beyond

the juvenile's 18th birthday. Here, both respondents were placed with OCFS in accordance with Family Court Act § 353.3 after violating the conditions of their probation. Although an extension of placement under Family Court Act § 355.3 may not be made beyond the respondent's 18th birthday without his or her consent, the initial placement statute, Family Court Act § 353.3, does not contain such age-restricting language. The Legislature, having adopted two placement statutes with distinct titles and terms, intended to distinguish between initial placement and extension of placement in juvenile delinquency cases. By doing so it strengthened probation as a viable option for juveniles approaching the age of 18, in that those juveniles, knowing that placement remains an alternative available to Family Court, have a greater incentive to adhere to the conditions of their probation.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Juvenile Courts and Delinquent and Dependent Children §§ 54, 58.

CARMODY-WAIT 2d, Proceedings Involving Abused and Neglected Children, Juvenile Delinquents, and Persons in Need of Supervision §§ 119A:415, 119A:418–119A:420.

6 LAW AND THE FAMILY NEW YORK (2d ed) §§ 11:99, 11:119.

McKINNEY'S, Family Ct Act §§ 353.3, 355.3.

NY JUR 2d, Domestic Relations §§ 1462, 1472, 1489.

ANNOTATION REFERENCE

See ALR Index under Juvenile Courts and Delinquent Children.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: family /5 353.3 /p placement /s eighteen! 18th

POINTS OF COUNSEL

Legal Aid Society, New York City (*Raymond E. Rogers*, *Monica Drinane*, *Oscar Finkel* and *Daniel Greenbaum* of counsel), for appellants in the first and second above-entitled proceedings. Family Court Act § 355.3 (6)—which concerns non-designated felony acts and which provides that “no placement may be made or continued beyond respondent's eighteenth birthday without the child's consent”—prohibits the Family Court from involuntarily placing a juvenile beyond his or her eighteenth birthday. (*Matter of Jude F.*, 291 AD2d 165; *People ex rel. Maxian v Brown*, 77 NY2d 422; *Matter of Hearst Corp. v Clyne*, 50 NY2d 707; *Matter of Mickie PP.*, 279 AD2d 943; *Matter of Luis V.*, 169 Misc 2d 865; *Matter of Lloyd v Grella*, 83 NY2d

537; *People v Cypress Hills Cemetery*, 208 AD2d 247; *People v Finnegan*, 85 NY2d 53, 516 US 919; *Matter of Richmond Constructors v Tishelman*, 61 NY2d 1; *Matter of Rodriguez v Perales*, 86 NY2d 361.)

Michael A. Cardozo, Corporation Counsel, New York City (*Dona B. Morris* and *Francis F. Caputo* of counsel), for respondent in the first and second above-entitled proceedings. Family Court Act §§ 352.2 and 353.3 authorize Family Court to place juvenile delinquents without their consent beyond their eighteenth birthday. (*Matter of Judge Rotenberg Educ. Ctr. v Maul*, 91 NY2d 298; *Alifieris v American Airlines*, 63 NY2d 370; *Matter of Sutka v Connors*, 73 NY2d 395; *Matter of Luis V.*, 169 Misc 2d 865; *Matter of Albano v Kirby*, 36 NY2d 526; *Matter of General Reins. Corp. v Pink*, 269 NY 347; *People v Ercole*, 308 NY 425; *People v Molyneux*, 40 NY 113; *Effective Communications W. v Board of Coop. Educ. Servs. of Sole Supervisory Dist.*, 57 AD2d 485; *Footte v People*, 56 NY 321.)

OPINION OF THE COURT

GRAFFEO, J.

We are asked in these appeals to determine whether Family Court may order the placement of a young person, who has been adjudicated a juvenile delinquent, with the Office of Children and Family Services for a period that extends beyond the youth's 18th birthday. Under the circumstances presented in these cases, we conclude that the Family Court Act authorizes such placements and therefore affirm the order of the Appellate Division in each case.

Robert J.

In March 2001, respondent Robert J., who was then 15 years old, was adjudicated a juvenile delinquent based on a finding that he committed an act that, if committed by an adult, would constitute the crime of criminal possession of a weapon in the third degree. Family Court ordered probation and directed that Robert obey various conditions, including attending school regularly, complying with specific curfews, reporting to a probation officer, completing 100 hours of community service and attending a teen awareness program.

The presentment agency filed a petition in July 2001 alleging that Robert had failed to meet the conditions of his probation. At an interim hearing, respondent, who had quit high school, was instructed to resume attending school pending further

proceedings. Thereafter, a hearing was held at which the presentment agency argued that Robert should be placed in the custody of the Office of Children and Family Services (OCFS) in his own best interests and to protect the community. The agency noted that he had failed to attend school regularly or report to his probation officer and his parents had indicated that he was not complying with curfews or obeying their rules at home.

Family Court found that respondent had violated his probation and that placement with OCFS was warranted. The court directed that respondent, who was 16 years old at that time, be placed for 18 months, a period that would extend three months beyond his 18th birthday. His attorney objected, arguing that the Family Court Act did not authorize placement of a youth beyond the age of 18.

Kareem R.

Kareem R. was adjudicated a juvenile delinquent in January 2001, when he was 16 years old, for having committed an act that would constitute the crime of criminal trespass in the third degree if committed by an adult. Family Court ordered a period of probation on the condition that respondent attend school regularly, complete 100 hours of community service, attend counseling and report to his probation officer.

In June 2002, the presentment agency filed a petition alleging that Kareem had violated his probation by failing to report to his probation officer on 10 occasions and community service on 11 occasions, and refusing to attend counseling. At an August hearing, respondent admitted that he had violated his probation as alleged and the Probation Department was directed to conduct an investigation to determine the appropriate disposition. In the meantime, Kareem was placed in interim detention with OCFS.

At the dispositional hearing conducted in October 2002, respondent's attorney advised the court that respondent had turned 18 years of age in May and, thus, argued that he could not be placed in OCFS custody due to his age. The presentment agency asserted that placement was necessary because respondent's mother had been unable or unwilling to appropriately supervise him when he was in her care. Noting that he had thrived during the period he spent in interim detention pending the dispositional hearing, Family Court concluded that Kareem should be placed with OCFS for a period of 12 months, less the period of time he had already spent in detention.

Both juveniles appealed the orders to the Appellate Division, contending that Family Court Act § 355.3 (6) did not allow the placement of a juvenile delinquent with OCFS beyond the age of 18 unless the juvenile consented or had committed a designated felony, which was not the case for either of these youths. The presentment agency acknowledged that the Family Court Act restricts an extension of placement beyond the age of 18 but claimed that Family Court's initial placement of a juvenile in OCFS custody could extend beyond the 18th birthday under Family Court Act §§ 352.2 and 353.3. Since these cases involved initial placements and not extensions, the presentment agency asserted that Family Court had not exceeded its authority. The Appellate Division agreed with the presentment agency and affirmed the Family Court order in each case, relying on its prior decision in *Matter of Jude F.* (291 AD2d 165 [2d Dept 2002]).

Discussion

The sole issue presented on these appeals is whether the Family Court Act authorizes a court to order an initial placement of a juvenile with OCFS for a period that extends beyond the age of 18 when the juvenile has not committed a designated felony as addressed in Family Court Act § 353.5. To resolve this question, we review the pertinent statutes, the relevant legislative history and the policy concerns underlying the statutory scheme (*see generally Matter of Dutchess County Dept. of Social Servs. [Day] v Day*, 96 NY2d 149 [2001]; *Matter of Jose R.*, 83 NY2d 388 [1994]).

Family Court Act § 352.2 authorizes five dispositions of a youth who has been adjudicated a juvenile delinquent: conditional discharge, probation, placement with OCFS, placement in a mental hygiene facility and, in the case of a juvenile who has committed a designated felony, restrictive placement pursuant to Family Court Act § 353.5. Here, after violating the conditions of probation, respondents were placed with OCFS, a disposition allowed under Family Court Act § 352.2 (1) (c). Section 352.2 (1) (c) indicates that placement shall be in accord with section 353.3, entitled "Placement," which provides, in part:

"If the respondent has committed a felony the initial period of placement shall not exceed eighteen months. If the respondent has committed a misdemeanor such initial period of placement shall not

exceed twelve months. If the respondent has been in detention pending disposition, the initial period of placement ordered under this section shall be credited with and diminished by the amount of time spent by the respondent in detention prior to the commencement of the placement unless the court finds that all or part of such credit would not serve the needs and best interests of the respondent or the need for protection of the community” (Family Ct Act § 353.3 [5]).

This initial placement statute does not contain a maximum age limitation. However, Executive Law § 507-a (2) states that “only those youth who have reached the age of seven but who have not reached the age of twenty-one may be placed in, committed to or remain in [OCFS] custody.” It is therefore evident that every form of placement with OCFS must cease upon a young person’s 21st birthday.

In submitting that an initial placement in OCFS custody cannot extend beyond the age of 18 if the youth objects, respondents rely on Family Court Act § 355.3, entitled “Extension of Placement.” Subdivision (6) of that statute states: “Successive extensions of placement under this section may be granted, *but no placement may be made or continued beyond the respondent’s eighteenth birthday without the child’s consent* and in no event past the child’s twenty-first birthday” (emphasis added). Respondents assert that the term “placement” in the second clause of the sentence refers to initial placements as well as extensions, even though the age restriction language appears only in the extension statute.

The presentment agency counters that respondents were placed pursuant to section 352.2 (1) (c), which directs the court to the initial placement provision without reference to the extension of placement statute. Noting that Family Court would have no reason to consult the extension statute when initially placing a juvenile, the agency urges that the age limitation in the extension statute has no bearing on initial placements.

To explain their reliance on the extension of placement statute, respondents emphasize that initial placements and extensions were once covered in a single statute. Since they claim that the age-limiting language in section 355.3 originally applied to both initial placements and extensions, they argue that there is no basis to conclude that the Legislature intended to alter the application of the restriction when it restructured the statutory scheme.

Even if we assume that respondents' interpretation of the former version of the statute is correct, we are unpersuaded that the history of these statutes supports their interpretation of the present statutory structure. When the Family Court Act was first adopted in 1962, there was no article dedicated exclusively to juvenile delinquency proceedings (*see* L 1962, chs 686, 700). Article 7 encompassed both juvenile delinquency matters and persons in need of supervision (PINS). Placements and extensions of placement were addressed in one statute—former Family Court Act § 756. In language similar to that now appearing in section 355.3, the extension of placement statute on which respondents rely, former section 756 prohibited placement of a youth beyond the 18th birthday in the case of a male or 20th birthday in the case of a female (the provision was later amended to provide a uniform age 18 limitation for both genders).

In the 1982 recodification of the Family Court Act, the Legislature made two changes that are significant in resolving the issue here: it created a new Family Court Act article 3 devoted exclusively to juvenile delinquency matters and it enacted two separate statutes within that article, one dealing with initial placement, the other with extension of placement (L 1982, ch 920). Only the latter contains age-limiting language.

Prior to the 1982 recodification, the Legislature adopted the designated felony placement provision now codified at Family Court Act § 353.5 (*see* L 1976, ch 878, § 16), including an age restriction explicitly applicable to both initial placements and extensions of placement. A juvenile delinquent who has committed a designated felony cannot be placed—either initially or pursuant to an extension—for a term beyond the age of 21 (Family Ct Act § 353.5 [4] [d]), a limitation which dovetails with the language in Executive Law § 507-a restricting the authority of OCFS to custody of individuals under the age of 21 in any circumstance. It is clear that the Legislature knew how to include age-restricting language in a juvenile delinquency placement provision when it wanted to do so, yet no such language was inserted in section 353.3, the initial placement provision relied on by Family Court when placing these respondents. In view of the evolution of this legislative framework, we cannot presume that the Legislature, having adopted two statutes with distinct titles and terms, nonetheless had no intent to distinguish between initial placement and extension of placement in juvenile delinquency cases, particularly since there is a rational policy-based explanation for the Legislature's decision.

By authorizing Family Court to place a young person adjudicated as a juvenile delinquent with OCFS beyond the age of 18, the Legislature has strengthened probation as a viable option for older juveniles. Family Court can attempt to keep a young person in the home environment and order probation (as occurred in these cases), rather than resorting to placement as the initial disposition, because placement can be tried later if probation proves ineffective. By the same token, individuals approaching the age of 18 who are on probation have a greater incentive to adhere to the conditions imposed by Family Court, knowing that if they do not abide the conditions, placement remains an alternative available to the court. Under the interpretation respondents recommend, just the opposite would be true—a young person could ignore the conditions of probation without serious consequences because Family Court’s only redress under Family Court Act § 352.2 would be to continue probation or grant a conditional discharge. We see no evidence that the Legislature intended such a result, which would be “at variance with the policy and purpose of the legislation” (*Matter of Jose R.*, 83 NY2d at 393 [citations omitted]).

The overriding intent of the juvenile delinquency article is to empower Family Court to intervene and positively impact the lives of troubled young people while protecting the public. There are circumstances when it is in the best interests of a juvenile to be placed in OCFS custody, even if the individual is 18 years of age or older, because OCFS is in a position to ensure that youths in custody attend school, obey curfews, take part in counseling and vocational training, and participate in other programs aimed at rehabilitation.

As these cases demonstrate, OCFS can sometimes make a difference where a young person’s family has been unable to do so. In *Kareem R.*, for example, Family Court noted that respondent—who had not been attending school or complying with other rules while living at home—thrived during the interim detention period. Thus, Kareem benefitted from OCFS placement, even though he had reached the age of 18. Youths who have committed acts bringing them into the juvenile justice system deserve every chance to obtain an education and change the direction of their lives. The Legislature has reasonably determined that if Family Court finds placement with OCFS is the best means to achieve that goal, it should be authorized to employ that measure once, even if the juvenile is age 18 or older at the time placement is ordered.

In light of the statutory structure, the legislative history of the pertinent provisions and the unique policy concerns arising in juvenile delinquency matters, the decision to include the age-limiting language in the extension statute but not in the initial placement statute must be given effect (*see generally Matter of Tabitha LL.*, 87 NY2d 1009 [1996]). We hold that Family Court is authorized to order an initial placement that extends beyond a youth's 18th birthday, as occurred in each of the cases under review, and have no basis to disturb the placement orders.

Accordingly, the orders of the Appellate Division should be affirmed, without costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

In each case: Order affirmed, without costs.

[811 NE2d 30, 778 NYS2d 768]

DENISE HANFORD, Appellant, v PLAZA PACKAGING CORP. et al.,
Defendants, and MORTON LANDOWNE, Respondent.

Argued March 30, 2004; decided May 13, 2004

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 20, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Dianne Renwick, J.), which had granted a motion by defendant Morton Landowne for summary judgment dismissing the complaint as against him. The following question was certified by the Appellate Division: “Was the order of Supreme Court, as affirmed by this Court, properly made?”

Hanford v Plaza Packaging Corp., 305 AD2d 241, reversed.

HEADNOTE**Workers’ Compensation — Exclusiveness of Remedy — Intentional Tort by Coemployee**

An action for an intentional tort is not barred by the plaintiff’s receipt of workers’ compensation benefits where both parties were employees of the same firm, but the defendant’s alleged misconduct arose from purely personal motives and was not in furtherance of the employer’s business. The same event may be “accidental” from the employer’s point of view, thus justifying a workers’ compensation award, and intentional from the point of view of the perpetrator. A coemployee, to have the protection of the exclusivity provision of Workers’ Compensation Law § 29 (6), must himself have been acting within the scope of his employment and not have been engaged in a willful or intentional tort.

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By the Publisher’s Editorial Staff

AM JUR 2d, Workers’ Compensation §§ 86–88.

MCKINNEY’S, Workers’ Compensation Law § 29 (6).

NY JUR 2d, Workers’ Compensation § 100.

ANNOTATION REFERENCE

Willful, wanton, or reckless conduct of coemployee as
ground of liability despite bar of workers’ compensation law.
57 ALR4th 888.

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Database: NY-ORCS

Query: worker! /2 compensation /5 exclusiv! & intentional
/s co-worker co-employee

POINTS OF COUNSEL

Alexander J. Wulwick, New York City, and *Ginarte, O'Dwyer, Winograd & Laracuente*, Newark, New Jersey, for appellant. Plaintiff is not barred by her receipt of workers' compensation benefits, or by res judicata, from maintaining a tort action against her coemployee, based on his commission of an intentional wrong outside the scope of his or plaintiff's employment. (*Maines v Cronomer Val. Fire Dept.*, 50 NY2d 535; *Mazarredo v Levine*, 274 App Div 122; *Bardere v Zafir*, 102 AD2d 422, 63 NY2d 850; *Werner v State of New York*, 53 NY2d 346; *Macchirole v Giamboi*, 97 NY2d 147.)

Blecher Mendel & Fedele, New York City (*Daniel P. Lund* of counsel), for respondent. Plaintiff's application for, acceptance of and retention of benefits for an accidental injury have a res judicata effect barring her duplicative claim for alleged intentional harm against plaintiff's coemployee. (*Macchirole v Giamboi*, 97 NY2d 147; *Maines v Cronomer Val. Fire Dept.*, 50 NY2d 535; *Werner v State of New York*, 53 NY2d 346; *O'Connor v Midiria*, 55 NY2d 538; *Orzechowski v Warner-Lambert Co.*, 92 AD2d 110; *Cunningham v State of New York*, 60 NY2d 248; *Martin v Casagrande*, 159 AD2d 26, 76 NY2d 1018; *Lowe v Kinn*, 199 AD2d 743, 83 NY2d 753; *Wilson v Gerstenzang, Weiner & Gerstenzang*, 245 AD2d 859.)

OPINION OF THE COURT

R.S. SMITH, J.

The issue presented is whether an action for an intentional tort is barred by the plaintiff's receipt of workers' compensation benefits where both parties were employees of the same firm, but the defendant's alleged misconduct arose from purely personal motives and was not in furtherance of the employer's business. We answered this question in the negative in *Maines v Cronomer Val. Fire Dept.* (50 NY2d 535 [1980]), and *Maines* compels a reversal here.

Denise Hanford brings this action against Morton Landowne,¹ alleging that Landowne concealed a video camera in a locker room on the premises of their employer, in an unsuccessful at-

1. Hanford's claims against other defendants are not in issue on this appeal.

tempt to tape Hanford while she changed her clothes. Hanford's complaint charges Landowne with violations of the New York Human Rights Law, intentional infliction of emotional distress, and discrimination and sexual harassment "as prima facie tort." Hanford applied for and received workers' compensation benefits arising out of the incident.

Supreme Court dismissed Hanford's action against Landowne on the basis of the exclusivity provisions of the Workers' Compensation Law, and the Appellate Division affirmed, two Justices dissenting. Inexplicably, the Appellate Division majority opinion does not cite *Maines*, though the dissent points out that it is this Court's leading decision on the subject.

Maines was an action by a firefighter against fellow firefighters who had thrown him into a garbage dumpster as a prank. The defendant firefighters moved to dismiss under the Volunteer Firefighters' Benefit Law; section 20 of that law incorporates by reference Workers' Compensation Law § 29.² Section 29 (6) of the Workers' Compensation Law provides in part: "The right to compensation or benefits under this chapter, shall be the exclusive remedy to an employee . . . when such employee is injured . . . by the negligence or wrong of another in the same employ" In *Maines*, we held this provision inapplicable, saying:

"[T]he words 'in the same employ' as used in the Workers' Compensation Law are not satisfied simply because both plaintiff and defendant have the same employer; a defendant, to have the protection of the exclusivity provision, must himself have been acting within the scope of his employment and not have been engaged in a willful or intentional tort." (50 NY2d at 543.)

Maines is indistinguishable from this case, and Landowne does not attempt to distinguish it. He does argue that *Maines* has been "narrowed" in subsequent cases, but his argument is ill-founded.

Landowne relies on *Werner v State of New York* (53 NY2d 346 [1981]) and *O'Connor v Midiria* (55 NY2d 538 [1982]). In those cases we held that, where the Workers' Compensation Board

2. We noted in *Maines* that the relevant provisions of the Volunteer Firefighters' Benefit Law and the Workers' Compensation Law were different in some respects, but we expressly declined to predicate our ruling in *Maines* on the differences.

has determined that certain injuries were suffered accidentally and in the course of employment, a subsequent action *against the employer* for an intentional tort based on the same event is barred by the exclusive remedy and finality provisions of the Workers' Compensation Law, and by principles of *res judicata*. In *O'Connor* we also dismissed an action against a supervisory employee of the same employer, who was not himself accused of intentional misconduct, but was sued on the theory that he knew of the offender's "propensity" for such misconduct (55 NY2d at 540).

Neither in *Werner* nor in *O'Connor* did we contradict or question the holding of *Maines*—that an employee who commits an intentional tort outside of the scope of his employment is not protected by Workers' Compensation Law § 29. We explained in *Maines*, as the Appellate Division dissent notes, that the same event may be "accidental" from the employer's point of view (thus justifying a workers' compensation award) and intentional from the point of view of the perpetrator. Thus there is no tension between the holding of *Maines* and the holding of *Werner* and *O'Connor*. Indeed, we noted in *Werner*, with a citation to *Maines*: "[I]t is clear that subdivision 6 of section 29 of the Workers' Compensation Law does not bar an employee who has accepted compensation benefits from suing a coemployee who has committed an intentional assault upon him" (53 NY2d at 351 n 1.)

Under *Maines*, Hanford's complaint against Landowne was erroneously dismissed.³

Accordingly, the order of the Appellate Division should be reversed, with costs, the complaint reinstated against defendant Landowne and the certified question answered in the negative.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order reversed, etc.

3. This does not mean, of course, that Hanford can recover twice for the same injuries. To the extent that she recovers damages from Landowne her recovery may be subject to recoupment by the workers' compensation carrier, as with any recovery by a workers' compensation claimant against a third party. (See Workers' Compensation Law § 29 [1].)

[811 NE2d 1103, 779 NYS2d 449]

BERTHA WILLIAMS, Individually and as Mother and Natural Guardian of TENNILLE WILLIAMS, an Infant, et al., Appellants, v CITY OF NEW YORK, Respondent, et al., Defendants.

ELIZABETH M. MCCORMICK, Individually and as Executrix of JOHN F. MCCORMICK, Deceased, Appellant, v CITY OF NEW YORK et al., Respondents.

Argued March 30, 2004; decided May 11, 2004

SUMMARY

APPEAL, in the first above-entitled action, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 7, 2003. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Orin R. Kitzes, J.), entered upon a jury verdict in favor of all plaintiffs in the consolidated action, which had awarded plaintiffs Bertha Williams and Tennille Williams damages against defendant City of New York in the principal sum of \$5,260,252, and had awarded plaintiffs Madeline Guerzon, Christopher Guerzon, Steven Guerzon, Richard Guerzon, Jr., and Mark Guerzon damages against defendant City of New York in the principal sum of \$8,975,625, (2) granted that branch of defendant's postverdict motion to set aside the jury verdict, and (3) dismissed the complaints.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 31, 2003. The Appellate Division affirmed an order of the Supreme Court, New York County (Sherry Klein Heitler, J.), which had granted defendants' motion for summary judgment dismissing the complaint.

Williams v City of New York, 304 AD2d 562, affirmed.

McCormick v City of New York, 307 AD2d 231, affirmed.

HEADNOTES

Negligence — Injuries to Police Officers — Alleged Violation of Justification Defenses

1. A claim brought pursuant to General Municipal Law § 205-e seeking damages for a police officer whose injury or death results from another's violation of certain statutes, ordinances, rules, orders, or requirements may not be premised solely on a violation of the justification defenses found in the Penal Law or the CPL.

Negligence — Injuries to Police Officers — Alleged Violation of Penal Law

2. A claim brought pursuant to General Municipal Law § 205-e seeking damages for a police officer whose injury or death results from another's violation of certain statutes, ordinances, rules, orders, or requirements may be predicated on a violation of Penal Law sections that prohibit specific acts. Although a conviction is not necessary to find a violation of the Penal Law for purposes of section 205-e liability, a defendant not charged with a crime is entitled to summary judgment where a reasonable view of the evidence supports the conclusion that either no prohibited conduct took place, or that a justification defense exists. Here, plaintiff, whose husband was fatally wounded by a bullet shot from a fellow officer's gun during a confrontation between two officers and an armed criminal suspect, failed to rebut the presumption that the officers did not violate the Penal Law. It was reasonable to conclude that it was necessary for the officers to use deadly physical force to defend themselves, and that neither officer was "reckless" or "criminally negligent" as those terms are used in the Penal Law.

Negligence — Injuries to Police Officers — Alleged Violation of Labor Law

3. In an action to recover damages pursuant to General Municipal Law § 205-e brought by the families of two detectives shot and killed by a prisoner they were transporting after the prisoner removed a gun from a locker in the detective squad's locker room, plaintiffs failed to establish a violation of Labor Law § 27-a for purposes of section 205-e liability. The Labor Law provision defendants were alleged to have violated is not a specific workplace safety standard but rather a "general duty" clause requiring employers to provide a place of employment free from recognized hazards. It does not cover the special risks faced by police officers because of the nature of police work. Nor did plaintiffs establish a violation of Administrative Code of the City of New York §§ 27-127 and 27-128, provisions requiring the safe maintenance of buildings.

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AM JUR 2d, Criminal Law § 158; AM JUR 2d, Employment Relationship § 238; AM JUR 2d, Municipal County, School, and State Tort Liability § 186; AM JUR 2d, Negligence §§ 696-699, 701, 709.

McKINNEY'S, General Municipal Law § 205-e; McKINNEY'S, Labor Law § 27-a.

NY JUR 2d, Criminal Law § 2478; NY JUR 2d, Employment Relations § 204; NY JUR 2d, Government Tort Liability §§ 126, 135, 197; NY JUR 2d, Negligence §§ 68-76, 78.

ANNOTATION REFERENCE

See ALR Index under Firemen's Rule; Municipal Corporations; Police and Law Enforcement Officers.

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POINTS OF COUNSEL

Queller Fisher Dienst Serrins Washor & Kool LLP, New York City (*Richard A. Dienst* and *Barry Washor* of counsel), and *Seligson Rothman & Rothman* (*Martin S. Rothman* and *Alyne I. Diamond* of counsel), for appellants in the first above-entitled action. I. The City of New York's radical alteration of the locker room into a makeshift detention cell gravely increased and aggravated the "recognized hazards" in decedents' "employment and [] place of employment" and failed to "provide reasonable and adequate protection to the[ir] lives [and] safety" (Labor Law § 27-a [3] [a] [1]) thereby rendering viable plaintiffs' General Municipal Law § 205-e actions against the City. (*Matter of Asman v Ambach*, 64 NY2d 989; *Balsamo v City of New York*, 287 AD2d 22; *Hartnett v New York City Tr. Auth.*, 86 NY2d 438; *Gonzalez v Iocovello*, 93 NY2d 539; *Schiavone v City of New York*, 92 NY2d 308; *Ruotolo v State of New York*, 83 NY2d 248; *Giuffrida v Citibank Corp.*, 100 NY2d 72; *Criscione v City of New York*, 97 NY2d 152; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Castro v United Container Mach. Group*, 96 NY2d 398.) II. Administrative Code of the City of New York §§ 27-127 and 27-128 are firm predicates under the law and the facts for the verdict rendered. (*Guzman v Haven Plaza Hous. Dev. Fund Co.*, 69 NY2d 559; *Chaffee v Union Dry Dock Co.*, 68 App Div 578; *Lombardi v Stout*, 80 NY2d 290; *Farrington v City of New York*, 240 AD2d 697; *Corbisiero v City of New York*, 240 AD2d 694; *Sergio v Benjolo*, 168 AD2d 235; *Grawin v Tudor Place Assoc.*, 260 AD2d 314; *O'Grady v New York City Hous. Auth.*, 259 AD2d 442; *Giuffrida v Citibank Corp.*, 100 NY2d 72; *Simons v City of New York*, 252 AD2d 451.)

Michael A. Cardozo, *Corporation Counsel*, New York City (*Barry P. Schwartz* and *Leonard Koerner* of counsel), for respondent in the first above-entitled action. I. Assuming arguendo, that Labor Law § 27-a (3) (a) (1) and Administrative Code of the City of New York §§ 27-127 and 27-128 were even factually applicable here, plaintiffs nonetheless failed to make out a prima facie showing as to their violation. This is because the safety of the Queens County District Attorney Detective Squad detectives in the securing and detaining of prisoners was readily and easily ensured separately by handcuffing both of a prisoner's hands to the pipe installed to the locker room's center table for that purpose, and by the other available and simple procedures

or practices of (a) not leaving a prisoner alone there; (b) performing a frisk before leaving the premises with the prisoner; (c) either rear-handcuffing or front-handcuffing with a security belt, prior to placing the prisoner in a vehicle's back seat; and (d) thereafter having a detective sit next to that individual. (*Hartnett v New York City Tr. Auth.*, 86 NY2d 438; *Matter of New York State Inspection, Sec. & Law Enforcement Empls. v New York State Indus. Bd. of Appeals*, 103 AD2d 489; *National Realty & Constr. Co. v Occupational Safety & Health Review Commn.*, 489 F2d 1257; *Magma Copper Co. v Marshall*, 608 F2d 373; *General Dynamics Corp. v Occupational Safety & Health Review Commn.*, 599 F2d 453; *Usery v Marquette Cement Mfg. Co.*, 568 F2d 902; *Getty Oil Co. v Occupational Safety & Health Review Commn.*, 530 F2d 1143; *Brennan v Occupational Safety & Health Review Commn.*, 502 F2d 946; *REA Express, Inc. v Brennan*, 495 F2d 822; *Tai Tran v New Rochelle Hosp. Med. Ctr.*, 99 NY2d 383.) II. At any rate, the Appellate Division majority correctly ruled that, as a matter of law, these cases did not fall within the purview of Labor Law § 27-a (3) (a) (1). The decision by Queens County District Attorney Detective Squad commander Lieutenant Franceschini, made in consultation with and on the recommendation of his squad's two supervising sergeants, to install the pipe for prisoner detention was an exercise of reasoned professional judgment and discretion as to which the statute was not intended to apply. That aside, both the legislative history of section 27-a (3) (a) (1) and common sense in light of the inherent as well as unpredictable dangerous nature of police duties, overwhelmingly demonstrate that the statute only encompasses physical and environmental hazards in the workplace and not the danger at issue here regarding the intentional infliction of harm. (*Cosgriff v City of New York*, 93 NY2d 539; *Balsamo v City of New York*, 287 AD2d 22; *Maiello v City of New York*, 273 AD2d 284; *Matter of New York State Inspection, Sec. & Law Enforcement Empls. v Cuomo*, 64 NY2d 233; *McKechnie v New York City Tr. Police Dept.*, 130 AD2d 466; *Lauer v City of New York*, 95 NY2d 95; *Mon v City of New York*, 78 NY2d 309; *McCormack v City of New York*, 80 NY2d 808; *Harland Enters. v Commander Oil Corp.*, 64 NY2d 708; *Saarinen v Kerr*, 84 NY2d 494.) III. All five Appellate Division Justices properly held that, as a matter of law, the Administrative Code of the City of New York §§ 27-127 and 27-128 requirement that owners keep their buildings "safe," does not encompass these lawsuits. This is because (a) the liability sought to be imposed is not based on harm which occurred on

the subject premises; (b) the harm, in any event, did not arise from a structural or design defect or any other construction-related concern; and (c) those types of defects in no way include plaintiffs' theory at trial that was, by contrast, predicated only on how the Queens County District Attorney Detective Squad locker room was used and the alleged transient condition of a lock on one of its lockers. (*Gordon v American Museum of Natural History*, 67 NY2d 836; *Aversa v New York City Hous. Auth.*, 233 AD2d 217; *Lombardi v Stout*, 80 NY2d 290; *Kush v City of Buffalo*, 59 NY2d 26; *Luce v Hartman*, 6 NY2d 786; *Caldwell v Village of Is. Park*, 304 NY 268; *Holgerson v South 45th St. Garage*, 16 AD2d 255, 12 NY2d 1011; *Matter of Guardian Cas. Co.*, 253 App Div 360, 278 NY 674; *Daggett v Keshner*, 284 App Div 733; *Morales v City of New York*, 70 NY2d 981.) IV. If this Court should nonetheless determine that the relied-on Labor Law and/or Administrative Code of the City of New York provisions are applicable here and were violated, reinstatement of the judgment is still not warranted. Instead, there should be a remand to the Appellate Division for resolution of the other issues raised by the City of New York on its appeal to, but not addressed by, that Court. (*Rabinowitz v City of New York*, 286 AD2d 724; *Capotosto v City of New York*, 288 AD2d 419, 98 NY2d 602; *Criscione v City of New York*, 97 NY2d 152; *O'Connor v City of New York*, 280 AD2d 309, 96 NY2d 716; *Schiavone v City of New York*, 92 NY2d 308; *Mittl v New York State Div. of Human Rights*, 100 NY2d 326; *Matter of P.M.S. Assets v Zoning Bd. of Appeals*, 98 NY2d 683; *Bluebird Partners v First Fid. Bank*, 97 NY2d 456; *Sena v Town of Greenfield*, 91 NY2d 611; *Urquhart v New York City Tr. Auth.*, 85 NY2d 828.)

The Breakstone Law Firm, P.C., Bellmore (Jay L.T. Breakstone of counsel), for Detectives' Endowment Association, amicus curiae in the first above-entitled action. Labor Law § 27-a is a proper predicate for General Municipal Law § 205-e liability. (*Balsamo v City of New York*, 287 AD2d 22; *Matter of New York City Tr. Auth. v New York State Dept. of Labor*, 88 NY2d 225.)

Levy & Levy, New York City (Susan J. Levy and Judith R. Levy of counsel), for appellant in the second above-entitled action. I. Because the First Department's holding is a clear departure from well-established precedent, completely misconstrues General Municipal Law § 205-e, and is fundamentally unfair by vesting total discretion in the District Attorney's hands, it abrogates plaintiff's rights under General Municipal Law § 205-e, and therefore the decision should be reversed

herein. (*Giuffrida v Citibank Corp.*, 100 NY2d 72; *Carlson v City of Tonawanda*, 221 AD2d 1011; *Galapo v City of New York*, 219 AD2d 581; *Baiamonte v Buongiovanni*, 207 AD2d 324; *Healy v Moeller*, 242 AD2d 366; *Malsky v Towner*, 196 AD2d 532; *Costantini v Benedetto*, 190 AD2d 888; *Vertucci v Diaz*, 192 AD2d 703; *People v Cruz*, 48 NY2d 419; *Matter of Bath & Hammondsport R.R. Co. v New York State Dept. of Envtl. Conservation*, 73 NY2d 434.) II. Because the Penal Law alleged herein, sections 125.15, 125.10 and 35.30, and Criminal Procedure Law § 120.80 (3) and § 690.50 (3) fall squarely under the standards set forth in *Desmond v City of New York* (88 NY2d 455 [1996]), *Gonzalez v Iocovello* (93 NY2d 539 [1999]), *Cosgriff v City of New York* (93 NY2d 539 [1999]) and *Galapo v City of New York* (95 NY2d 568 [2000]), as well as General Municipal Law § 205-e (3), these statutes should be recognized as valid predicates, thus reversing the lower court's holding and reinstating plaintiff-appellant's complaint herein. (*People v Shack*, 86 NY2d 529; *People v Cruz*, 48 NY2d 419; *People v Kealey*, 33 NY2d 818; *Rodriguez v City of New York*, 189 AD2d 166; *Carlson v City of Tonawanda*, 221 AD2d 1011; *People v Sullivan*, 68 NY2d 495; *People v Cameron*, 244 AD2d 350, 91 NY2d 940; *People v Soto*, 266 AD2d 245; *People v Kealey*, 33 NY2d 818; *People v Pena*, 169 Misc 2d 75.) III. Because one of the specific goals of General Municipal Law § 205-e is to provide equivalent rights for injured or deceased police officers and ordinary citizens, the First Department's narrow holding herein should not stand and this case should be reinstated herein. (*Giuffrida v Citibank Corp.*, 100 NY2d 72; *Mullen v Zoebe, Inc.*, 86 NY2d 135; *O'Connor v City of New York*, 280 AD2d 309, 96 NY2d 716; *Lubecki v City of New York*, 304 AD2d 224; *Summerville v City of New York*, 257 AD2d 566; *Rodriguez v City of New York*, 189 AD2d 166; *McCummings v New York City Tr. Auth.*, 81 NY2d 923; *Velez v City of New York*, 157 AD2d 370; *Wilkes v City of New York*, 308 NY 726; *Lubelfeld v City of New York*, 4 NY2d 455.) IV. Because another important goal underlying General Municipal Law § 205-e is to enforce the statutes and ordinances of New York through civil remedies as provided in General Municipal Law § 205-e, the First Department's holding was clearly erroneous as it prevents the enforcement of the Penal Law and Criminal Procedure Law in civil proceedings. (*Giuffrida v Citibank Corp.*, 100 NY2d 72; *Manning v Brown*, 91 NY2d 116; *Barker v Kallash*, 63 NY2d 19; *Gaither v City of New York*, 300 AD2d 255; *Masone v Unishops of Modell's Inc.*, 73 AD2d 611; *Adamowicz v Shafer*, 155 Misc 2d 695; *Henningsen v Markowitz*, 132 Misc 547; *Reed v State of*

New York, 78 NY2d 1; *Kalra v Kalra*, 149 AD2d 409; *Johnson v State of New York*, 253 AD2d 274.) V. Because the legislative history shows the legislative intent to provide broad remedial rights under General Municipal Law § 205-e, the First Department's novel interpretation of section 205-e, which superimposes the requirement for a criminal conviction prior to allowing the Penal Law to serve as predicate, serves to rewrite section 205-e, thereby eviscerating plaintiff's remedial rights under section 205-e in direct contravention of its legislative history. Therefore, the lower court's decision should be reversed and the complaint should be reinstated herein. (*Santangelo v State of New York*, 71 NY2d 393; *Healy v Moeller*, 242 AD2d 366; *St. Jacques v City of New York*, 88 NY2d 920; *Schiavone v City of New York*, 92 NY2d 308; *Gonzalez v Iocovello*, 93 NY2d 539.) VI. Because the trial court failed to apply the proper standards for summary judgment, and rather determined issues of fact in favor of the movant, the trial court's granting of summary judgment is also clear error and should be reversed herein. (*McCummings v New York City Tr. Auth.*, 81 NY2d 923; *McCauley v New York City Hous. Auth.*, 232 AD2d 614; *Velez v City of New York*, 157 AD2d 370; *People v Goetz*, 68 NY2d 96.

Michael A. Cardozo, Corporation Counsel, New York City (Julie Steiner and Barry P. Schwartz of counsel), for respondents in the second above-entitled action. I. The Appellate Division correctly held that the Penal Law and Criminal Procedure Law provisions regarding the justified use of deadly physical force are not legally sufficient predicates for a General Municipal Law § 205-e claim, because they do not establish a standard of care upon which a civil cause of action can be based. (*Brocato v City of New York*, 294 AD2d 281; *Brunelle v City of New York*, 269 AD2d 347; *McCummings v New York City Tr. Auth.*, 81 NY2d 923, 510 US 991; *People v McManus*, 67 NY2d 541; *Lubecki v City of New York*, 304 AD2d 224; *McCauley v New York City Hous. Auth.*, 232 AD2d 614; *Herring v City of Syracuse*, 63 AD2d 833.) II. The Appellate Division was also correct that none of the other Penal Law statutory provisions asserted by plaintiff here pertaining to assault and criminally negligent and reckless behavior may be proper predicates. This is because (1) they are broad-based, general provisions that do not give rise to a private right of action for private citizen plaintiffs; and (2) they all are subject to and, therefore, incorporate by necessary implication the Penal Law § 35.30 provisions on the justified police use of deadly physical force, which incorporate and permit the exercise of professional judgment and discretion. (*Sega v*

State of New York, 60 NY2d 183; *Matter of Richardson v Fiedler Roofing*, 67 NY2d 246; *Telaro v Telaro*, 25 NY2d 433; *Matter of Rivera v Smith*, 63 NY2d 501; *American Sugar Ref. Co. of N.Y. v Waterfront Commn. of N.Y. Harbor*, 55 NY2d 11, appeal dismissed sub nom. *New York Shipping Assn., Inc. v Waterfront Commn. of N.Y. Harbor*, 458 US 1101; *Burns Jackson Miller Summit & Spitzer v Lindner*, 59 NY2d 314; *Sheehy v Big Flats Community Day*, 73 NY2d 629; *Uhr v East Greenbush Cent. School Dist.*, 94 NY2d 32; *Mark G. v Sabol*, 93 NY2d 710; *Carrrier v Salvation Army*, 88 NY2d 298.) III. In any event, even if the claimed Penal Law provisions could be valid predicates for plaintiff's General Municipal Law § 205-e cause of action, plaintiff's complaint was nonetheless properly dismissed, because both Officer Huvane and Officer Curran were, as a matter of law, justified in firing their weapons at an armed perpetrator who struggled with Huvane, never dropped her weapon, and fired twice. (*Schiavone v City of New York*, 92 NY2d 308; *Rodriguez v City of New York*, 189 AD2d 166; *Summerville v City of New York*, 257 AD2d 566, 94 NY2d 755; *Galapo v City of New York*, 95 NY2d 568; *Brunelle v City of New York*, 269 AD2d 347; *Salim v Proulx*, 93 F3d 86.)

OPINION OF THE COURT

READ, J.

These appeals involve the tragic deaths of three New York City police officers killed in the line of duty. Plaintiffs seek recovery under General Municipal Law § 205-e, which creates a statutory right of action where an officer's injury or death is caused by a violation of certain statutes, ordinances, rules, orders and requirements of a governmental entity. In each case, the Appellate Division dismissed plaintiffs' claims, finding that section 205-e liability could not be sustained. For the reasons that follow, we now affirm in both cases.

I.

A. *McCormick*

On April 27, 1988, a team of 19 police officers from the Bronx Narcotics Unit executed a no-knock search warrant for a drug raid at an apartment in Manhattan. The officers, dressed in plain clothes with police badges displayed around their necks or police vests over their clothing, repeatedly yelled "Police, open the door," as they forced the apartment's door open with a battering ram. Officer John P. Huvane, who wielded the battering ram, rushed into the apartment in the lead as part of the six-

member entry team. He threw the battering ram in the direction of a barking pit bull, later discovered to be tied up, and unholstered his service revolver.

Huvane immediately encountered an unarmed woman, whom he readily apprehended after she had fled to the bedroom in the back of the apartment. He quickly handed her off to other members of the entry team as he caught sight of a second woman, Mercedes Perez, standing behind the bedroom door with a gun in her hand. When Huvane called out "Police. Drop the gun," Perez, who stood slightly over five-feet tall and weighed approximately 100 pounds, aimed the gun point-blank at Huvane's head. In the flash that Huvane saw Perez, he did not notice that she was visibly pregnant.

Huvane, who was six-feet, two-inches tall and weighed 210 pounds, initially "swatted" or pushed Perez's gun away from his face with his hand, as he had been trained to do to protect himself. He did not succeed in disarming her in this fashion, however, and a scuffle ensued. Perez's gun discharged, causing a burn mark on Huvane's wrist, and Huvane fired two rounds at Perez. As Perez, gun in hand, continued to "come[] at" Huvane, he retreated and bumped up against the bed. Falling off balance, Huvane fired a third round at Perez. Huvane testified that, as he came to rest partway on the bed, he thought for certain that he was about to die.

Officer James P. Curran, another member of the entry team, heard the burst of gunfire as he was running into the bedroom behind Huvane, whom he observed "grappling" with Perez. As Huvane was falling backwards toward the bed, Curran stepped between Perez and Huvane and fired two shots at Perez "to stop her from shooting again at Huvane." Perez slumped forward and Curran caught her and propped her up against the wall, but did not disarm her. After he heard another gunshot, which came from Perez's direction, Curran flung himself on top of Huvane, who was supine on the bed. Curran noticed Perez, crouched over but moving rapidly, leaving the bedroom, still armed. Perez, who suffered two gunshot wounds, was soon caught and disarmed by another member of the entry team. The time elapsed from the first until the last shot fired was a matter of seconds.

Plaintiff's decedent, Sergeant John F. McCormick, was fatally wounded by a bullet fired from one of the officers' guns during

their confrontation with Perez.¹ This bullet traveled through the bedroom door and lodged in McCormick's neck. Plaintiff brought a wrongful death action alleging, among other things, that the City was liable for decedent's death based on General Municipal Law § 205-e. As relevant here, plaintiff predicated section 205-e liability on alleged violations of provisions of the Criminal Procedure Law and the Penal Law relating to the defense of justification, as well as on sections of the Penal Law pertaining to assault, criminally negligent homicide, reckless endangerment and manslaughter.

The City moved for summary judgment and dismissal for failure to state a claim, arguing that the officers were justified in using deadly physical force. Supreme Court granted the City's motion and dismissed the complaint. Quoting extensively from the officers' EBT and trial testimony, Supreme Court observed that "[a]s sad as this case is, the police officers who fired had a loaded gun pointed in their direction. In these circumstances there is no issue of fact as to whether the police conduct was legally justified." The trial court concluded that "in the absence of any contested material issue of fact the use of deadly physical force by the officers, under these circumstances, was justified and not a violation of the Penal Law."

Observing that the justification statutes "do not establish a standard of care upon which a civil cause of action can be based, but rather a defense to a *criminal* prosecution" (307 AD2d 231, 232 [1st Dept 2003] [emphasis in original; internal quotation marks omitted]), the Appellate Division affirmed on an alternative basis. Specifically, the Appellate Division concluded that "[m]erely an 'alleged violation' of [other] provisions of the Penal Law, which are as yet unproven in a criminal proceeding, cannot serve as a predicate for a civil claim under General Municipal Law § 205-e, as a matter of law" (*id.*).

B. *Williams*

On November 13, 1989 while assigned to the Queens County District Attorney Detective Squad, Detectives Keith Williams and Richard Guerzon took custody of a prisoner, Jay "Stoney" Harrison, pursuant to a "takeout order," and transported him from the Rikers Island Correctional Facility to the District At-

1. Perez was charged with and tried for various crimes stemming from this incident. At her criminal trial, she denied that she had intentionally fired her gun, which she kept "to intimidate somebody," but conceded that "it could have gone off." Perez was acquitted of all crimes related to the death of McCormick, except for criminal possession of a weapon.

torney's (DA) office for a polygraph test. Upon arrival at the DA's office, Harrison was placed in the Detective Squad's locker room, which doubled as a detention area. Harrison was seated at the table in the locker room, with one of his hands cuffed to a metal pipe installed for just this purpose. The pipe was mounted several inches above the table's surface, and ran the table's length. Despite being handcuffed, Harrison, while left alone, managed to remove a service revolver from one of the nearby lockers and conceal it on himself. On the return trip to Rikers Island, he shot and killed Williams and Guerzon with the stolen revolver.²

Plaintiffs brought separate civil actions alleging, among other things, that the City was liable for decedents' deaths based on General Municipal Law § 205-e. As relevant here, plaintiffs predicated section 205-e liability on Labor Law § 27-a, entitled "Safety and health standards for public employees," and Administrative Code of the City of New York §§ 27-127 and 27-128, which require that buildings be maintained in a safe condition and hold owners responsible for such maintenance.

The cases were consolidated and proceeded to trial on April 21, 1999, 10 years after the officers' deaths. Plaintiffs' theory was that "the locker room was improperly used as a prisoner detention area and that the prisoner had gained access to the locker containing the gun because its lock was either open or defective" (304 AD2d 562, 563 [2d Dept 2003]). Plaintiffs' expert, a former assistant chief with the New York City Police Department, opined that the locker room was "[t]otally inadequate" as a detention facility.

The jury found the City liable for violating Labor Law § 27-a as well as the Code provisions, and returned verdicts of \$5,260,252 for the Williams plaintiffs, and \$8,975,625 for the Guerzon plaintiffs. The City renewed its motion to dismiss for failure to establish a prima facie case, on which the trial court had reserved decision, and moved to set aside the verdict for legally insufficient evidence. Supreme Court denied the motions and the City appealed.

A divided Appellate Division reversed the judgment, on the law, granting the City's motion to set aside the verdicts and dismissing the complaints. The majority found that there was

2. Harrison was apprehended and convicted of four counts of second-degree murder (*People v Harrison*, 207 AD2d 359 [2d Dept 1994], *lv denied* 84 NY2d 936 [1994]).

no evidence that “the locker room was maintained in an unsafe condition within the meaning of” Administrative Code §§ 27-127 and 27-128 (304 AD2d at 564). The Appellate Division also found that the hazard causing decedents’ deaths was “the practice of holding prisoners in proximity to lockers where firearms were kept” (*id.* at 565). Accordingly, Labor Law § 27-a (3) (a) (1) was not implicated because it “encompasses physical and environmental hazards in the workplace, not the use to which a room is put” (*id.*). The dissenting Justices agreed with the majority that the Code provisions were not violated, but considered section 27-a (3) (a) (1) applicable because it was not limited to physical and environmental hazards, and placed a general duty on employers to “prevent hazardous conditions from developing, either in employment or the place of employment” (*id.* at 567).

II.

Common law barred a police officer from recovering in tort for injuries suffered in the line of duty (*see Santangelo v State of New York*, 71 NY2d 393, 397 [1988]). In 1989, the Legislature modified the common law by adding section 205-e to the General Municipal Law (L 1989, ch 346); and in 1996, the Legislature “largely abolishe[d]” the common law by enacting section 11-106 of the General Obligations Law (*see Giuffrida v Citibank Corp.*, 100 NY2d 72, 78 [2003]). The latter provision allows police officers to bring tort claims for most work injuries that occur in the line of duty. Importantly, however, section 11-106 maintains the common-law bar on tort claims against “the police officer’s . . . employer or co-employee” (General Obligations Law § 11-106 [1]). Thus, while a police officer can assert a common-law tort claim against the general public, liability against a fellow officer or employer can only be based on the statutory right of action in General Municipal Law § 205-e.

To make out a claim under section 205-e, a plaintiff must “[1] identify the statute or ordinance with which the defendant failed to comply, [2] describe the manner in which the [police officer] was injured, and [3] set forth those facts from which it may be inferred that the defendant’s negligence directly or indirectly caused the harm” (*see Giuffrida*, 100 NY2d at 79 [internal quotation marks omitted]). These appeals involve the first requirement of that standard; namely, whether the defendants failed to comply with a statute or ordinance.

Section 205-e (1) creates a statutory cause of action where a police officer is injured by another’s failure “to comply with the

requirements of *any* of the statutes, ordinances, rules, orders and requirements of the federal, state, county, village, town or city governments or of any and all their departments, divisions and bureaus” (emphasis added). While this language is seemingly limitless, “it is well settled that the statute cannot reasonably be applied literally in accordance with its broad language. . . . Rather, as a prerequisite to recovery, a police officer must demonstrate injury resulting from negligent noncompliance with a requirement found in a well-developed body of law and regulation that imposes clear duties” (*Galapo v City of New York*, 95 NY2d 568, 574 [2000] [internal quotation marks omitted], quoting *Desmond v City of New York*, 88 NY2d 455, 463, 464 [1996]). At the same time, a series of amendments to section 205-e teaches us that we should apply this provision “expansively” so as to favor recovery by police officers whenever possible (see *Gonzalez v Iocovello*, 93 NY2d 539, 548 [1999]).

In *Galapo*, we held that the City Police Department Patrol Guide cannot give rise to section 205-e liability, primarily because it is not a “duly-enacted body of law or regulation” (95 NY2d at 574), but also because imposing liability based on the Guide would “allow a trier of fact . . . to second-guess line-of-duty decisions on matters affecting public safety” (*id.* at 575). In *Desmond*, we similarly refused to predicate section 205-e liability on a City Police Department internal guideline that required police officers to exercise “individual judgment” about the relative safety risks of their actions (88 NY2d at 464).

In *Gonzalez*, however, we found that a violation of section 1104 (e) of the Vehicle and Traffic Law could serve as a predicate for section 205-e liability. That provision creates a privilege exempting drivers of authorized emergency vehicles from certain provisions in the Vehicle and Traffic Law, but “explicitly qualifies that privilege” (93 NY2d at 551) by providing that “the driver of an authorized emergency vehicle [shall not be relieved] from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others” (Vehicle and Traffic Law § 1104 [e]). We distinguished section 1104 from the administrative provisions in *Galapo* and *Desmond* in part because of its nature as a statute enacted by the Legislature. We also stated, however, that unlike the administrative provisions in the other cases, section 1104 “mandates a reasonably defined and precedentially developed standard of care,” and does not require the trier of fact to

“second-guess an officer’s split-second weighing of choices” (93 NY2d at 551).

III.

Against this backdrop, we are asked whether plaintiffs in *McCormick* and *Williams* have established claims under section 205-e premised on alleged violations of the Penal Law and the Labor Law respectively. Our prior cases provide the framework for determining whether these statutes may serve as predicates; however, the question of whether the defendants have “failed to comply with a statute” is not answered merely by interposing a proper predicate. Liability cannot be imposed under section 205-e unless a plaintiff has established that a statute was, in fact, violated. While we hold that the Penal Law is a proper predicate for section 205-e liability, the plaintiffs in *McCormick* did not establish that the Penal Law was violated by Huvane and Curran. Similarly, the plaintiffs in *Williams* failed to establish a violation of Labor Law § 27-a.³

A. *McCormick*

[1] Preliminarily, we reject the notion that a section 205-e claim may be premised solely on a violation of the justification defenses found in the Penal Law or the Criminal Procedure Law (see *Brocato v City of New York*, 294 AD2d 281, 281-282 [1st Dept 2002] [Penal Law § 35.30 “does not establish a standard of care upon which a civil cause of action can be based, but rather a defense”]). We conclude, however, that a claim may be predicated on a violation of those Penal Law sections that prohibit specific acts. Indeed, we are hard put to find a more “well-developed body of law and regulation that imposes clear duties” (*Galapo*, 95 NY2d at 574 [internal quotation marks omitted]). Further, making a conviction prerequisite to a section 205-e claim predicated on the Penal Law conflates the issue of which statutes may serve as predicates with the question of whether a statute has been violated in a particular case. Accordingly, plaintiff may predicate her claims on alleged violations of the assault, homicide, reckless endangerment and manslaughter provisions of the Penal Law. Her challenge lies in demonstrating that the conduct of Huvane and Curran violated these provisions.

3. The City originally argued that Labor Law § 27-a (3) (a) (1), the “general duty” clause, was not a proper predicate under section 205-e, but waived this argument on appeal. Accordingly, we decide this appeal by assuming, without deciding, that this particular provision of the Labor Law is a proper predicate.

Plaintiff's burden is further complicated by the fact that Hu-vane and Curran were acting in the line of duty when McCormick was killed, and contend that they employed the force necessary to defend themselves against what they reasonably believed to be the use or imminent use of deadly physical force (see Penal Law § 35.30 [1] [c]).⁴ Like the administrative materials involved in *Galapo* and *Desmond*, Penal Law § 35.30's justification defense requires a trier of fact to "second-guess an officer's split-second weighing of choices." General Municipal Law § 205-e liability is based on violation of a law that imposes "clear duties," which cautions against predicating a section 205-e claim on *alleged* Penal Law violations that implicate the justification defense. Mindful of the Legislature's direction that we construe section 205-e broadly, however, we conclude that a conviction is not necessary to find a violation of the Penal Law for purposes of section 205-e liability. Nonetheless, because the provisions that plaintiff claims were violated require proof beyond a reasonable doubt and even then, otherwise criminal conduct is excused if justified, her burden is substantial in the absence of a conviction.

[2] We hold that where no criminal charges have been brought against a section 205-e defendant, a rebuttable presumption exists that the Penal Law has not been violated. A defendant who has not been charged with a crime is entitled to summary judgment on a section 205-e claim predicated on the Penal Law where a reasonable view of the evidence supports the conclusion either that no prohibited conduct took place, or that a justification defense exists. To defeat the defendant's motion, a plaintiff

4. Section 35.30, entitled "Justification; use of physical force in making an arrest or in preventing an escape," provides that

"1. A police officer . . . , in the course of effecting or attempting to effect an arrest, or of preventing or attempting to prevent the escape from custody, of a person whom he reasonably believes to have committed an offense, may use physical force when and to the extent he reasonably believes such to be necessary to effect the arrest, or prevent the escape from custody, or to defend himself or a third person from what he reasonably believes to be the use or imminent use of physical force; except that he *may use deadly physical force for such purposes only when he reasonably believes that:* . . .

"(c) Regardless of the particular offense which is the subject of the arrest or attempted escape, *the use of deadly physical force is necessary to defend the police officer . . . or another person from what the officer reasonably believes to be the use or imminent use of deadly physical force*" (emphasis added).

must come forward with compelling evidence demonstrating a material question of fact as to whether the conduct was criminal and not justified.

Here, Huvane and Curran fired their weapons in the line of duty when faced with a criminal suspect poised to shoot a gun at them, which she, in fact, twice discharged. Huvane testified that he feared for his life and thought himself about to die. It is reasonable to conclude, based on these facts, that the use of deadly physical force was necessary for Huvane and Curran to defend themselves from imminent physical harm. It is also reasonable to conclude that neither Huvane nor Curran was “reckless” or “criminally negligent” as those terms are used in the Penal Law (*see* Penal Law § 15.05 [3], [4], requiring a “gross deviation” from reasonable standards).

In opposition to the City’s motion, plaintiff offered the affidavit of a former chief of police of Tallahassee, Florida. Plaintiff’s expert opined that the use of deadly force was unreasonable under the circumstances because the officers should have been able to subdue Perez using defensive disarming techniques, given the height and weight differential between Perez and them. This speculative evidence is insufficient to rebut the presumption that the Penal Law was not violated; therefore, summary judgment was properly granted.

B. *Williams*

Labor Law § 27-a, known as the Public Employee Safety and Health Act (PESHA), was enacted “to provide individuals working in the public sector with the same or greater workplace protections provided to employees in the private sector under OSHA” (*Hartnett v New York City Tr. Auth.*, 86 NY2d 438, 442 [1995]). In implementing standards for PESHA, New York has adopted OSHA’s workplace safety standards (*see* 12 NYCRR 800.3).

Plaintiffs do not allege a violation of a specific workplace safety standard. They allege only a violation of the “general duty” clause, which provides that

“[e]very employer shall: (1) furnish to each of its employees, employment and a place of employment which are free from recognized hazards that are causing or are likely to cause death or serious physical harm to its employees and which will provide reasonable and adequate protection to the lives, safety or health of its employees In applying

this paragraph, fundamental distinctions between private and public employment shall be recognized” (Labor Law § 27-a [3] [a] [1]).

[3] We hold that this provision does not cover the special risks faced by police officers because of the nature of police work. The judgments that must be made by police supervisors in minimizing the danger that police officers inevitably face, while at the same time protecting the public, are uniquely sensitive, difficult and important. Police supervisors must decide, among other things, how police officers should use and store their weapons and ammunition; how much security should be provided when prisoners are transported; and where and under what conditions prisoners should be detained. We think it highly unlikely that the Legislature intended the general language of section 27-a to authorize Department of Labor inspectors enforcing PESHA to second-guess the decisions of police supervisors on matters like these.

Balsamo v City of New York (287 AD2d 22 [2d Dept 2001]) is not to the contrary. There, a police officer was injured in his patrol car in an automobile accident when his left knee allegedly came into contact with a sharp protruding edge of an unpadded computer console mounted off the automobile’s floor. Arguably, under the facts in *Balsamo*, section 27-a applies because PESHA is designed to prevent the type of occupational injury that occurred when the officer was given an improperly equipped vehicle. The injury in *Balsamo* did not arise from risks unique to police work. By contrast, the “occupational” injury the officers sustained here was death at the hands of a prisoner. Important as it is to prevent such tragedies, we rely on the judgment of those supervising the Police Department to do so—not on regulation and oversight by the Commissioner of Labor.

Plaintiffs’ reliance on sections 27-127 and 27-128 of the Administrative Code is equally unavailing. Those provisions require that “[a]ll buildings and all parts thereof shall be maintained in a safe condition” (§ 27-127) and that “[t]he owner shall be responsible at all times for the safe maintenance of the building and its facilities” (§ 27-128). At best, plaintiffs claim that the lock on the locker was broken or open, and the detention cell was not properly configured. The first of these allegations implicates a single item of equipment; the second, the City’s policies and procedures. Neither allegation claims that the building and “facilities” were not maintained in a safe manner.

Accordingly, in each case the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and R.S. SMITH concur.

In each case: Order affirmed, with costs.

[811 NE2d 531, 779 NYS2d 164]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL WHEELER, Appellant.

Argued March 31, 2004; decided May 13, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 3, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Joel M. Goldberg, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree.

People v Wheeler, 302 AD2d 411, affirmed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Reasonableness of Governmental Invasion of Defendant's Privacy**

In a prosecution for criminal possession of a weapon arising out of the discovery of a handgun in defendant's possession by officers seeking to execute arrest warrants for someone staying in the same apartment as defendant, there was record support for the denial of defendant's motion to suppress the handgun found under his thigh after he was asked by an officer to shift his position and show his hands. As the circumstances presented here did not arise during the course of a protective sweep for persons who, in hiding, posed a danger to the officers at the scene of the arrest, the proper test to be employed is the reasonableness of the governmental invasion of defendant's privacy under the Fourth Amendment. The officers, having discovered two loaded handguns near defendant's companions as they executed the warrants, had reason to believe that defendant could also be armed and dangerous and legitimately turned their attention to defendant, who was sitting on his hands, fidgeting, and mumbling. The limited police action was reasonable, and the intrusion on defendant's privacy was minimal.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Searches and Seizures §§ 64, 112, 127, 128, 237, 252.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:363, 172:430, 172:431.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.2, 3.6.

NY JUR 2d, Criminal Law §§ 213, 214, 468, 519–521.

ANNOTATION REFERENCE

See ALR Index under Search and Seizure.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: police officer /s execut! /s arrest /2 warrant & show
/3 hand

POINTS OF COUNSEL

Patterson, Belknap, Webb & Tyler LLP, New York City (*Jessica A. Golden* of counsel), and *Appellate Advocates* (*Lynn W.L. Fahey, Barry Stendig* and *Erica Horwitz* of counsel), for appellant. The police officer did not conduct a protective sweep when he ordered appellant at gunpoint to move and show his hands. (*People v Morales*, 65 NY2d 997; *People v McRay*, 51 NY2d 594; *People v Harrison*, 57 NY2d 470; *People v Oden*, 36 NY2d 382; *People v Turriago*, 90 NY2d 77; *People v LaFontaine*, 92 NY2d 470, 93 NY2d 849; *People v Romero*, 91 NY2d 750; *Maryland v Buie*, 494 US 325; *People v Febus*, 157 AD2d 380; *People v Bost*, 264 AD2d 425.)

Charles J. Hynes, District Attorney, Brooklyn (*Jane S. Meyers* and *Leonard Joblove* of counsel), for respondent. Defendant's gun was properly admitted into evidence at his trial, because the police actions that led to its recovery were reasonably related in both their scope and intensity to the perilous circumstances that the officers confronted while they were lawfully in the apartment. (*Maryland v Buie*, 494 US 325; *People v Febus*, 157 AD2d 380; *People v Plower*, 176 AD2d 214; *People v LaFontaine*, 92 NY2d 470; *People v Romero*, 91 NY2d 750; *People v Goodfriend*, 64 NY2d 695; *People v Pines*, 99 NY2d 525; *People v McIntosh*, 96 NY2d 521; *People v Harrison*, 57 NY2d 470; *Terry v Ohio*, 392 US 1.)

OPINION OF THE COURT

CIPARICK, J.

On November 17, 1993, a team of three officers from the New York City Department of Probation Warrant Squad set out to execute two felony arrest warrants for grand larceny and a drug-related offense against a probation violator. Pursuant to the warrants, the officers went to an apartment in Brooklyn where the probationer was thought to be staying. Officer Groves knocked on the door and announced his purpose. An unidentified woman responded, and the officer informed her about the warrants, showing her a picture of the probationer. She allowed the officers into the apartment, and pointed toward the living

room occupied by three men. Two of the men were sleeping on the living room floor and the third, the defendant, was asleep on the couch.

Identifying the probationer as one of the men on the floor, Officer Groves nudged him awake. Both the second man on the floor and defendant also awakened. They began questioning the officers as to their purpose in the apartment. Officer Groves cautioned them not to interfere with the arrest. He asked the probationer to “lean up” so that the officers could see his hands. When the probationer complied, the officer observed a loaded .380 caliber automatic handgun at his side. He also saw a knife. Officer Groves secured both weapons and, fearing for their safety, all three officers drew their guns.

Officer Groves then approached the second man lying on the floor. This man was completely covered with a blanket and, while peeking from under it, persisted in questioning the officers. Officer Groves instructed him to show his hands and face. As the man removed his blanket in compliance with the order, the officer observed near the man’s head a second loaded .380 caliber automatic handgun and a large quantity of cash. He too was arrested and the weapon secured.

Defendant—who had been “mouthing off” to the officers as they executed the warrants and disarmed his companions—was now sitting on his hands, fidgeting and mumbling. Officer Groves believed that defendant was hiding something, and asked defendant to “shift his position” and show his hands. Defendant was uncooperative, failing to comply until after further requests. When defendant eventually adjusted his position and placed his hands in plain view, the officer saw the butt of a 9 millimeter Luger under defendant’s thigh. Defendant denied owning the handgun, which was loaded with 14 rounds of ammunition. He was arrested, and charged with criminal possession of a weapon in the second degree (former Penal Law § 265.03) and criminal possession of a weapon in the third degree (Penal Law § 265.02 [4]).

Claiming a Fourth Amendment violation, defendant moved to suppress both the handgun and his statement denying ownership of it as the fruit of an unconstitutional seizure of his person. Following a suppression hearing, Supreme Court denied the motion in its entirety. The court stated that “the actions taken here were reasonable and related to the scope of danger imposed to the officers . . .” and that the facts presented were “like” or “similar” to those presented in protective sweep cases.

Thereafter, defendant was convicted, upon a jury verdict, of criminal possession of a weapon in the third degree (Penal Law § 265.02 [4]), and sentence was imposed.

The Appellate Division affirmed defendant's conviction and upheld the denial of his motion to suppress, holding that the "limited security sweep conducted by the police" was reasonable and lawful. (302 AD2d 411, 411 [2003].) A Judge of this Court granted defendant leave to appeal.* We now affirm the order of the Appellate Division under a different rationale.

Since defendant's challenge to the hearing court's determination involves a mixed question of law and fact, our review is limited to whether there is record support for the determinations of the courts below. The Appellate Division affirmed the denial of the motion to suppress without disturbing the court's finding of reasonableness, and unless there is no view of the evidence that would support that determination, we are bound by the suppression court's finding (*People v Damiano*, 87 NY2d 477, 486 [1996]).

Supreme Court denied defendant's motion to suppress the handgun in a broad holding encompassing two legal standards: the protective sweep doctrine (*see Maryland v Buie*, 494 US 325 [1990]) and the reasonableness analysis under the Fourth Amendment (*see People v William II*, 98 NY2d 93, 98 [2002]). Neither of the parties relied on the protective sweep doctrine to support their arguments at the suppression hearing. Instead, the People argued that the officer's conduct—asking defendant to adjust his position and show his hands—was reasonable given the totality of the circumstances. Relying on *People v James* (81 AD2d 795 [1st Dept 1981]) and *People v Auletta* (88 AD2d 867 [1st Dept 1982])—two cases employing a reasonableness analysis—defense counsel essentially argued that the officers were not justified in suspecting that defendant was armed and dangerous.

We have previously noted that the facts in suppression cases are not always neatly categorized and therefore have favored general guidelines for the resolution of individual cases (*see People v Prochilo*, 41 NY2d 759 [1977]). As the circumstances presented here did not arise during the course of a protective sweep for persons who, in hiding, posed a danger to the officers at the scene of the arrest, *Buie* and its progeny do not apply (*see Buie*, 494 US at 334; *see also United States v Hernandez*, 941

* Defendant does not challenge the trial court's denial of his motion to suppress his statement disclaiming ownership of the gun.

F2d 133, 135 [1991]). The proper test to be employed is the reasonableness of the governmental invasion of defendant's privacy under the Fourth Amendment. Moreover, "the determination of the suppression court with its peculiar advantages of having seen and heard" the testimony is entitled to great deference (*Prochilo*, 41 NY2d at 761).

In other contexts, we have held that whether police interference is reasonable requires a weighing of the government's interest against an individual's right to privacy and personal security (see generally *People v De Bour*, 40 NY2d 210, 215 [1976], citing *People v Cantor*, 36 NY2d 106, 111 [1975]). The court "must undertake a dual inquiry: 'whether the officer's action was justified at its inception, and whether it was reasonably related in scope to the circumstances which justified the interference in the first place' " (*William II*, 98 NY2d at 98 [citations omitted]). The propriety of an officer's interference with the privacy and security of an individual must be balanced against the relevant circumstances.

Applying these principles to the instant case, we conclude that the officers legitimately focused their attention on defendant during the execution of the arrest warrants in the apartment. Certainly, Officer Groves' request that defendant shift his position and show his hands was justified at its inception. The officers had discovered two loaded .380 caliber automatic handguns near defendant's companions before turning their full attention to defendant who, by that time, was sitting on his hands, fidgeting and mumbling. Under the circumstances the officers had reason to believe that defendant could also be armed and dangerous.

In light of the attendant circumstances, the intrusion here was minimal. Officer Groves merely requested that defendant shift his position and show his hands. Despite defendant's initial failure to comply, the officer never touched defendant until he observed the 9 millimeter handgun under defendant's thigh. On this record, the evidence supports the undisturbed finding that the limited police action was reasonable. Thus, defendant's motion to suppress was properly denied.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

[811 NE2d 526, 779 NYS2d 159]

In the Matter of CAROL A. WILSON et al., Respondents, v LINDA A. McGLINCHEY et al., Appellants. (And Another Related Proceeding.)

Argued March 30, 2004; decided May 13, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 22, 2003. The Appellate Division modified, on the law and the facts, so much of an order of the Family Court, Rensselaer County (Christian F. Hummel, J.), as had dismissed petitioners' petition to vacate a prior order of visitation between respondents and the subject child. The modification consisted of reversing so much of the order as dismissed the petition, granting the petition and vacating the prior order. The Appellate Division affirmed the order as modified.

Matter of Wilson v McGlinchey, 305 AD2d 879, affirmed.

HEADNOTE

Parent and Child — Visitation Rights of Grandparents — Modification of Visitation Order Based On Change of Circumstances

In a proceeding to modify a Family Court order that granted visitation to the subject child's grandparents, the Appellate Division properly found that terminating visitation was in the child's best interest. A grandparent visitation order (Domestic Relations Law § 72) may be modified only upon a showing that there has been a subsequent change of circumstances and modification is required (Family Ct Act § 467 [b] [ii]). The standard to be applied is the best interests of the child when all of the applicable factors are considered. Here, after the commencement of visitation, the already-strained relationship between the parents and grandparents further deteriorated. Termination of visitation was in the child's best interest because it would shield her from the animosity and dysfunction between the parents and grandparents and reduce the "paralyzing" stress experienced by the child's mother attendant to the visitation.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Divorce and Separation §§ 977, 991, 992.

CARMODY-WAIT 2d, Child Custody and Visitation in Matrimonial Actions §§ 118A:99, 118A:103.

LAW AND THE FAMILY NEW YORK (2d ed) §§ 1-20, 1-20.5.

McKINNEY'S, Domestic Relations Law § 72; Family Ct Act § 467 (b) (ii).

NY JUR 2d, Domestic Relations §§ 408, 410, 506.

ANNOTATION REFERENCE

Grandparents' visitation rights where child's parents are living. 71 ALR5th 99.

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Database: NY-ORCS

Query: grandparent! /4 visitation /s terminat!

POINTS OF COUNSEL

Michelle I. Benoit, Albany, for appellants. I. The Appellate Division erred in finding that continued visitation with Sarah was not in Sarah's best interests based on the trial court's decision to not order visitation with an infant sibling, Samantha, until after family counseling had begun and/or Samantha reached an age where she was cognizant that the visitation was occurring. II. The Appellate Division has changed the standard of review to modify an existing order of grandparent visitation from determining first if there is a change in circumstances since the time that the original order was entered, to allowing a de novo review of the best interests of the child upon an application by the parents objecting to continued visitation. (*Matter of Reese v Jones*, 249 AD2d 676; *Matter of Emanuel S. v Joseph E.*, 78 NY2d 178.) III. The Appellate Division, Third Department, erred in terminating an existing order of grandparent visitation on its determination that said visitation was not "meaningful" visitation. (*Matter of Emanuel S. v Joseph E.*, 78 NY2d 178.) IV. The Appellate Division erred in disregarding the credibility determinations of the trial court and finding that the grandparents were equally responsible for the animosity and discord between the parties. (*Matter of Russo v Russo*, 257 AD2d 926; *Matter of DiBerardino v DiBerardino*, 229 AD2d 539; *Matter of Gloria R. v Alfred R.*, 209 AD2d 179; *Matter of Liantonio v Davanzo*, 303 AD2d 589; *Matter of Beers v Beers*, 220 AD2d 839; *Matter of Coulter v Barber*, 214 AD2d 195; *Grenier v Allen*, 296 AD2d 619.) V. The Appellate Division erred in granting the relief requested by the parents when they came to the court with unclean hands. (*Kopsidus v Krokos*, 294 AD2d 406; *National Distillers & Chem. Corp. v Seyopp Corp.*, 17 NY2d 12.)

William V. O'Leary, Albany, for respondents. I. The Appellate Division appropriately terminated the grandparent visitation. (*Miller v Pipia*, 297 AD2d 362; *Matter of Louise E.S. v W. Ste-*

Opinion by GRAFFEO, J.

phen S., 64 NY2d 946; *Matter of Rosiana C. v Pierre S.*, 191 AD2d 432; *Matter of Krebsbach v Gallagher*, 181 AD2d 363; *Matter of Emanuel S. v Joseph E.*, 78 NY2d 178; *Friederwitzer v Friederwitzer*, 55 NY2d 89; *Eschbach v Eschbach*, 56 NY2d 167; *Matter of Apker v Malchak*, 112 AD2d 518; *Matter of LaPorte v Rivers*, 144 AD2d 861; *Matter of Donna Dorene G.*, 52 NY2d 890.) II. Section 72 of the Domestic Relations Law is unconstitutional. (*Troxel v Granville*, 530 US 57; *Matter of Hertz v Hertz*, 186 Misc 2d 222; *Meyer v Nebraska*, 262 US 390; *Pierce v Society of Sisters*, 268 US 510; *Prince v Massachusetts*, 321 US 158.) III. The doctrine of unclean hands does not apply. (*Friederwitzer v Friederwitzer*, 55 NY2d 89; *Eschbach v Eschbach*, 56 NY2d 167.)

Eliot Spitzer, Attorney General, Albany (Evelyn M. Tenenbaum, Caitlin J. Halligan and Wayne L. Benjamin of counsel), in his statutory capacity under Executive Law § 71. Domestic Relations Law § 72 is constitutional because it gives due deference to the wishes of the fit parents. (*Troxel v Granville*, 530 US 57; *United States v Salerno*, 481 US 739; *Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443; *People v Stuart*, 100 NY2d 412; *Matter of Morgan v Grzesik*, 287 AD2d 150; *Matter of Smolen v Smolen*, 185 Misc 2d 828; *Matter of Ziarno v Ziarno*, 285 AD2d 793; *Matter of Emanuel S. v Joseph E.*, 78 NY2d 178; *Matter of Kenyon v Kenyon*, 251 AD2d 763; *Matter of Coulter v Barber*, 214 AD2d 195.)

Thomas C. Hall, Troy, Law Guardian. I. The appellate court erred in substituting its judgment with regard to a change in circumstances for the judgment of the trial court which found no such facts. II. The appellate court's determination that the McGlincheys have not established a meaningful relationship with the child is not supported by the facts.

OPINION OF THE COURT

GRAFFEO, J.

In this petition to modify a Family Court third-party visitation order, the grandparents appeal from an Appellate Division order granting the parents' request to terminate visitation based on a change in circumstances since issuance of the initial order. Because we agree with the Appellate Division that terminating visitation is in the child's best interest, we affirm.

Petitioners Carol and Steven Wilson are the parents of two daughters. Respondents Linda and Brian McGlinchey (grandparents) are Carol Wilson's parents and have been estranged from

their daughter since 1997, prior to the daughter's marriage. In October 1999, the grandparents filed a petition pursuant to Domestic Relations Law § 72 seeking visitation with their four-month-old granddaughter. The Wilsons opposed the petition. Before a hearing was held, however, the parties reached an agreement and their written stipulation was incorporated into a Family Court order entered on June 22, 2000. Under the terms of the stipulation, the Wilsons agreed that the grandparents would have eight hours of visitation with the child every month, and the parties further consented to begin therapeutic family counseling by March 1, 2001. It is undisputed that this family counseling never occurred.

After several months of visitation, the Wilsons commenced this proceeding in Family Court to terminate the visitation between the grandparents and their daughter. The petition alleged that a change in circumstances had occurred since the entry of the Family Court order. Specifically, the Wilsons claimed that the visits were an "unmitigated disaster," citing one incident where Carol Wilson summoned the police for aid in removing the grandparents from her home at the end of a visit with her daughter. In addition, the Wilsons asserted that the situation had worsened over time and that the grandparents employed threats of further court action to "bully" them into acceding to the grandparents' demands. Finally, the Wilsons stated their belief that the best interest of their child would be served only by discontinuing visitation and vacating the order.

The grandparents opposed the petition and cross-petitioned for their visitation sessions to include the Wilsons' younger daughter, born after the parties' stipulation. They countered that the Wilsons had impeded the agreement by restricting the days, times and locations of their visits and interrupting their interactions with their granddaughter during visits in the Wilsons' home. The grandparents also claimed that the Wilsons mischaracterized normal toddler behavior, such as crying, as evidence of the child's discomfort during visitation.

Family Court conducted a three-day hearing that resulted in the dismissal of the Wilsons' petition and denial of the grandparents' cross petition. After receiving testimony from the parties and the therapists called by each side, as well as considering the submission from the Law Guardian appointed to represent the children, the court concluded that the Wilsons failed to demonstrate a change in circumstances warranting termination of visitation between the grandparents and the

older child but found that the younger child's best interest would not be served by visitation with the grandparents. The court observed that "the level of animosity between the parties, coupled with the obvious and extreme dysfunction in this family, mitigates against [such] an award of visitation" (*Matter of McGlinchey v Wilson*, Fam Ct, Rensselaer County, Oct. 26, 2001, Hummel, J., UCMS Docket No. V-00178-01, slip op, at 10).¹ The parents appealed from that part of the order dismissing their petition to terminate visitation as to the older child.²

The Appellate Division modified, on the law and the facts, by granting the Wilsons' petition, and vacated the Family Court visitation order. Relying on testimonial and other evidence from the hearing, the Court found that the child and her mother and grandmother all suffered from emotional distress as a consequence of the increasing tension and hostility between the parties surrounding the visits. Moreover, the Court viewed the parties as "incapable of preventing their feelings toward one another from infecting any visitation" and reasoned that, in light of the parents' and grandparents' use of the child as a "pawn" in their battle, the child would likely be harmed by continuing "to force visitation with [the grandparents] against her parents' wishes" (305 AD2d 879, 881 [3d Dept 2003]). The Court concluded that the Wilsons had demonstrated a change in circumstances reflecting that the visitation was no longer in the child's best interest.

On appeal to this Court, the grandparents dispute the factual findings and legal analysis of the Appellate Division and contend that the parents failed to meet their burden of proof establishing a change in circumstances that warranted modification of the existing visitation order. Thus, they urge that consideration of the older child's best interest was inappropriate in this situation and that visitation should be maintained. We disagree.

In its decision in *Troxel v Granville* (530 US 57 [2000]), a plurality of the United States Supreme Court recognized "that the Due Process Clause of the Fourteenth Amendment protects the fundamental right of parents to make decisions concerning

1. Despite concluding that no change in circumstances had occurred since the initial order, the Law Guardian also acknowledged the existence of a "great deal of animosity" between the parties. Accordingly, he recommended that visitation with the younger child only be granted if the prior order pertaining to the older child remained in effect.

2. The grandparents did not appeal the denial of their petition for visitation with the younger child.

the care, custody, and control of their children” (*id.* at 66; see *Matter of Ronald FF. v Cindy GG.*, 70 NY2d 141 [1987]). *Troxel* involved an as-applied constitutional challenge to Washington State’s third-party visitation statute. The plurality stressed the deference that a state must give to the child-rearing decisions of fit parents:

“[i]n an ideal world, parents might always seek to cultivate the bonds between grandparents and their grandchildren. Needless to say, however, our world is far from perfect, and in it the decision whether such an intergenerational relationship would be beneficial in any specific case is for the parent to make in the first instance. And, if a fit parent’s decision [restricting visitation] becomes subject to judicial review, the court must accord at least some special weight to the parent’s own determination” (530 US at 70).

In New York, Domestic Relations Law § 72 acknowledges the value to children of grandparent relationships but does not create “an absolute or automatic right of visitation” (*Lo Presti v Lo Presti*, 40 NY2d 522, 526 [1976]). Instead, the statute provides a procedural mechanism for grandparents to acquire standing to seek visitation with a minor grandchild in two specific instances—where one or both parents of the child have died or “where circumstances show that conditions exist which equity would see fit to intervene” (Domestic Relations Law § 72 [1]; see *Lo Presti*, 40 NY2d at 526). When grandparents petition for visitation under section 72, the court undertakes a two-part inquiry: “[f]irst, it must find standing based on death or equitable circumstances which permit the court to entertain the petition. If it concludes that the grandparents have established the right to be heard, then it must determine if visitation is in the best interest of the grandchild” (*Matter of Emanuel S. v Joseph E.*, 78 NY2d 178, 181 [1991]). Standing, therefore, does not ensure that visitation will be granted—the court also has to find that such visitation is in the best interest of the child.

Once a visitation order is entered, it may be modified only “upon a showing that there has been a subsequent change of circumstances and modification is required” (Family Ct Act

§ 467 [b] [ii]).³ Extraordinary circumstances are not a prerequisite to obtaining a modification; rather, the “standard ultimately to be applied remains the best interests of the child when all of the applicable factors are considered” (*Friederwitzer v Friederwitzer*, 55 NY2d 89, 95 [1982]; see *Matter of Krom v Comerford*, 57 NY2d 704, 705 [1982]). Relevant considerations include whether the alleged change implicates the “fitness” of one of the parties (see *Aberbach v Aberbach*, 33 NY2d 592, 593 [1973]), the nature and quality of the relationships between the child and the parties (see *Matter of Emanuel S.*, 78 NY2d at 182; *Matter of Tropea v Tropea*, 87 NY2d 727, 740-741 [1996]) and the existence of a prior agreement (see *Eschbach v Eschbach*, 56 NY2d 167, 171 [1982]; *Friederwitzer*, 55 NY2d at 94-95).

On the critical factual dispute in the case—whether a change in circumstances warranting modification occurred—Family Court relied heavily on the preexisting estrangement and stipulated order to find no such change. In contrast, the Appellate Division found that the exacerbated levels of animosity and stress and the associated negative impact on the child and her mother represented a change necessitating termination of visitation. Where courts below reach different factual conclusions, we review the record to determine which findings more closely comport with the weight of the evidence (see CPLR 5501 [b]; *Matter of Jaclyn P.*, 86 NY2d 875, 878 [1995]; *Matter of Hime Y.*, 54 NY2d 282, 286 [1981]).

Considering all of the pertinent factors and after review of the entire record, we conclude that the Appellate Division properly terminated visitation between the grandparents and the older child. In this case, the initial visitation order resulted from the Wilsons’ assent to the grandparents’ demand and not from a full hearing assessing either the standing issue or the best interest of the child under the circumstances (see *Matter of Emanuel S.*, 78 NY2d at 181). The evidence reveals that, after the commencement of visitation, the already-strained relationship between the parents and grandparents further deteriorated. The hostility intensified between the two camps and culminated in the March 2001 episode—the impetus for this modification petition—when Carol Wilson called the police in order to get her parents to leave the house after a visitation. Of

3. The parties and the courts below proceeded under the assumption that the “change of circumstances” standard is applicable to modifications of grandparent visitation orders. Given this posture, we have no occasion to consider the propriety of this assumption.

course, animus between litigants is not uncommon, particularly in emotionally-charged family matters (see *Lo Presti*, 40 NY2d at 526). Although enmity between parents of a child may not affect a parent's visitation rights (see Domestic Relations Law § 240; Family Ct Act § 651), grandparent visitation under Domestic Relations Law § 72 implicates different equitable concerns (see *Matter of Emanuel S.*, 78 NY2d at 181-182). Here, Carol Wilson's therapist, whom she consulted both prior to and during this dispute, testified that Carol was suffering from post-traumatic stress as a result of the visitation and that her tension and anxiety affected her ability to parent and could be sensed by the children. In addition, the Law Guardian opined that the constant stress experienced by Carol around the visitation "carries over" to the child and could negatively impact the child.

We have recognized that "[v]isits with a grandparent are often a precious part of a child's experience and there are benefits which devolve upon the grandchild . . . which he cannot derive from any other relationship" (*id.* at 181 [citations omitted]). This interest must yield, however, where the circumstances of the child's family—including the worsening relations between the litigants and the strenuous objection to grandparent visitation by both parents—render the continuation of visitation with the grandparents not in the child's best interest (see *Friederwitzer*, 55 NY2d at 95). We therefore determine that the child's best interest is advanced by shielding her from the animosity and dysfunction between the parents and grandparents and by reducing, in the words of Carol Wilson's therapist, the "paralyzing" stress experienced by the child's mother attendant to the visitation. In light of this ruling, we need not address the Wilsons' alternative argument challenging the constitutionality of Domestic Relations Law § 72.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

Order affirmed, with costs.

[811 NE2d 1053, 779 NYS2d 399]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANGEL
MATEO, Appellant.

Argued January 14, 2004; decided February 24, 2004

SUMMARY

APPEAL, (1) pursuant to NY Constitution, article VI, § 3 (b) and CPL 450.70 (1), from a judgment of the Monroe County Court (John J. Connell, J.; *see* 239 AD2d 965; 173 Misc 2d 70; 177 Misc 2d 814; 177 Misc 2d 817; 178 Misc 2d 227; 92 NY2d 944; 266 AD2d 934), rendered January 15, 1999, and (2) from an order of that County Court dated March 11, 1999. The judgment convicted defendant, upon a jury verdict, of murder in the first degree, murder in the second degree, kidnapping in the first degree, kidnapping in the second degree (four counts), attempted murder in the first degree, burglary in the first degree, assault in the first degree, and criminal possession of a weapon in the third degree (two counts), and sentenced defendant, upon a penalty phase jury determination, to death on the count of murder in the first degree, and imposed consecutive sentences totaling 128¹/₂ years to life imprisonment for the remaining convictions. The order denied (1) defendant's renewed motion to set aside the verdict under CPL 330.30, (2) defendant's motion for an order disclosing to defense counsel the facts and particulars of any additional bar or ethics complaints against members of the Capital Defender's Office, and (3) defendant's motion for an order assigning his CPL 330.30 motion to a different judge.

HEADNOTES

Crimes — Capital Murder — Unconstitutional Plea Provisions

1. Defendant, having been prosecuted for capital murder under an unconstitutional two-tiered penalty scheme procedure in which only those defendants who exercised their Fifth Amendment right against self-incrimination and Sixth Amendment right to a jury trial put themselves at risk of death, was entitled to have his death sentence stricken. The plea provisions had initially been declared unconstitutional by the trial court, but the subsequent declaration by the Appellate Division, Fourth Department, prior to defendant's trial that the plea provisions were constitutional (*see Matter of Relin v Connell*, 251 AD2d 1041) rendered those provisions operational in defendant's prosecution. After defendant was convicted, the Fourth Department was reversed and the provisions were struck as unconstitutional (*see* 92 NY2d 613). Based on the binding precedent in effect at the time of defendant's trial, defendant could have sought to avoid exposure to a death sentence only by waiving his right to

a jury trial and pleading guilty. Accordingly, the appropriate remedy was to vacate the sentence and remit the case to County Court for resentencing in accordance with CPL 470.30 (5) (c) and Penal Law §§ 60.06 and 70.00 (5).

Crimes — Capital Murder — Felony Murder — Conflicting Versions of Murder

2. In a prosecution for first degree murder under Penal Law § 125.27 (1) (a) (vii) in which it was alleged that defendant kidnapped the victim and either fatally shot the victim himself, or commanded his wife to do so, the prosecutor did not violate due process by positing a different murder theory from that argued at the previous trial of defendant's wife. The prosecutor argued at both trials that defendant's wife shot the victim, and at both trials defendant was portrayed as the driving force behind the crime. An additional theory was offered at defendant's trial, based on his own written statement, that defendant pulled the trigger. The prosecutor never discredited the evidence he previously offered to convict defendant's wife, but instead used it to prove that defendant commanded her to shoot the victim. Under the circumstances, the People did not have to choose one defendant over the other to prosecute as the shooter.

Crimes — Capital Murder — Felony Murder — Conflicting Versions of Murder

3. In a prosecution for first degree felony murder under Penal Law § 125.27 (1) (a) (vii), due process did not require that the prosecution's theory that defendant commanded his wife to shoot the victim be considered by the jury apart from the prosecution's other theory that defendant himself shot the victim. Nor did due process require that the jury be unanimous on one theory or another. The trial court properly instructed the jury that it could convict defendant of first degree murder either as a commander or as a shooter. "Command" is not set forth as a separate element of the first degree felony murder offense. Moreover, there is no moral disparity between actual killers and commanders which would prohibit treating them as alternative means to satisfy an element of first degree felony murder.

Crimes — Capital Murder — Murder in Furtherance of First Degree Kidnapping — Verdict Not against Weight of Evidence

4. Defendant's conviction under Penal Law § 125.27 (1) (a) (vii) for committing first degree murder in the course of and in furtherance of first degree kidnapping was not against the weight of the evidence. It was undisputed that defendant engineered and carried out the armed kidnapping of the victim, decided to kill him, handcuffed him, and led him down to the basement, and that the victim died of an intentional gunshot wound to the head. Whether the jury believed that defendant ordered his wife to shoot the victim, as supported by the circumstantial evidence, or that defendant shot the victim himself, as he acknowledged in his written statement, it was justified in finding that defendant was squarely in charge of the kidnapping and shooting of the victim.

Crimes — Confession — Voluntariness of Confession

5. The confession defendant made while in custody was voluntary and admissible against him in his capital murder prosecution. Although one of the investigators questioning defendant told him that he would check on the status of the family members who were in the car with defendant at the time of his arrest, the investigator did not lead defendant to believe that he was

receiving lenient treatment for family members in exchange for his confession. Defendant confessed without any prompting other than for more information. The investigators who questioned defendant were not required to dissuade him from making incriminating statements, or disabuse him of his fantasy that he could control the circumstances of the interrogation and win the release of his family. Moreover, defendant was given his *Miranda* warnings, offered food, drink, cigarettes, and medical treatment for his injured leg, allowed two meetings with his brother and one with his wife, and permitted to call his mother.

Crimes — Confession — Admissibility of Confession to Unrelated Murders

6. Defendant was not deprived of a fair trial through the admission, following re-cross-examination of an investigator who had questioned defendant, of defendant's statements regarding murders other than the one for which he was prosecuted. The main issue for the jury was whether defendant was guilty of second degree murder as an accomplice, or intentional first degree murder as either the shooter or the person who commanded the shooter. The interrogation of defendant, as a whole, was probative of a material issue—defendant's motive for confessing to the murder for which he was prosecuted—and could have aided the jury in assessing the truthfulness of that portion of defendant's confession. Defendant himself made his motive for confessing an issue in his trial, and sought to exploit the trial court's pretrial ruling prohibiting the prosecution from eliciting testimony on direct examination regarding the portions of defendant's confession in which he admitted to the other murders, thereby opening the door to admission of his full confession. The trial court acted within the boundaries of discretion in ultimately concluding that the probative value of the full confession was not substantially outweighed by its potential for prejudice to defendant.

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By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law § 956; AM JUR 2d, Evidence §§ 708, 711–714, 719, 723, 725–727; AM JUR 2d, Homicide §§ 28, 29, 32, 39, 40, 64, 74.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:610–172:612, 172:3276, 172:3285, 172:3476, 172:4078.

McKINNEY'S, Penal Law § 125.27 (1) (a) (vii).

NY JUR 2d, Criminal Law §§ 539, 595–598, 1853, 1875, 1876, 2122, 2664.1, 2690.5, 3783, 3803, 3809, 3814, 3821.

ANNOTATION REFERENCE

See ALR Index under Capital Offenses and Punishment; Confessions and Admissions; Criminal Procedure Rules; Felony Murder Doctrine.

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POINTS OF COUNSEL

Kevin M. Doyle, Capital Defender, Albany (Barry J. Fisher, Beverly Van Ness and Andrew C. Shear of counsel), for appellant. I. The jury's first degree murder verdict was against the weight of the evidence, whether based on the theory that Mr. Mateo killed Juan Matos or that he commanded the killing. (*People v Rayam*, 94 NY2d 557; *Tibbs v Florida*, 457 US 31; *People v Crum*, 272 NY 348; *People v Acosta*, 80 NY2d 665; *People v Becker*, 210 NY 274; *People v Davis*, 43 NY2d 17; *People v Higgins*, 5 NY2d 607; *People v Leyra*, 1 NY2d 199; *People v Couser*, 94 NY2d 631; *People v Rossi*, 80 NY2d 952.) II. The prosecutor violated due process by urging Mr. Mateo's jury to accept a version of events he had attacked as false at the earlier trial of Mr. Mateo's wife: that Mr. Mateo killed the victim or his wife was so dominated and fearful he must have commanded her to kill. (*People v Santorelli*, 95 NY2d 412; *Drake v Kemp*, 762 F2d 1449; *Smith v Groose*, 205 F3d 1045; *People v Tucker*, 55 NY2d 1; *Strickler v Greene*, 527 US 263; *People v Zimmer*, 51 NY2d 390; *Miller v Pate*, 386 US 1; *People v Pelchat*, 62 NY2d 97; *Napue v Illinois*, 360 US 264; *People v Savvides*, 1 NY2d 554.) III. In a surprise midtrial decision, the court, sua sponte, admitted Mr. Mateo's confessions to three unrelated murders, thus denying him a fair trial. (*People v Molineux*, 168 NY 264; *People v Huntley*, 15 NY2d 72; *People v Ventimiglia*, 52 NY2d 350; *People v McKinney*, 24 NY2d 180; *People v Lewis*, 69 NY2d 321; *People v Alvino*, 71 NY2d 233; *People v Zackowitz*, 254 NY 192; *People v Hudy*, 73 NY2d 40; *People v Vargas*, 88 NY2d 856; *People v Rojas*, 97 NY2d 32.) IV. The court should have severed the Avenue D charges because the prosecution never showed that evidence of those home invasions was admissible under *People v Molineux* (168 NY 264 [1901]) to prove that Mr. Mateo kidnapped and murdered Juan Matos. (*People v Communiello*, 180 AD2d 809; *People v Gadsden*, 139 AD2d 925; *People v Bongarzzone*, 69 NY2d 892; *People v Munger*, 24 NY2d 445; *People v Hudy*, 73 NY2d 40; *People v McKinney*, 24 NY2d 180; *People v Lewis*, 69 NY2d 321; *People v Ely*, 68 NY2d 520; *People v Vargas*, 88 NY2d 856; *People v Robinson*, 68 NY2d 541.) V. Irrelevant and highly emotional testimony from Mr. Mateo's ex-girlfriend, about how he repeatedly terrorized and almost killed her, was inadmissible and extremely prejudicial. (*People v Molineux*, 168 NY 264; *People v Hudy*, 73 NY2d 40; *People v Ely*, 68 NY2d 520; *People v Primo*, 96 NY2d 351; *People v Green*, 35 NY2d 437; *People v Tosca*, 287 AD2d 330, 98 NY2d 660; *People v Steinberg*, 170 AD2d 50, 79 NY2d 673; *People v Liller*, 26 AD2d

983, 20 NY2d 727; *People v Condon*, 26 NY2d 139; *People v Dodt*, 61 NY2d 408.) VI. Because detectives led Mr. Mateo to believe they were limiting the charges against his brother to minor offenses and releasing several other relatives in return for his confessing to four killings, these confessions were involuntary and inadmissible. (*People v Rosa*, 65 NY2d 380; *People v Yarter*, 41 NY2d 830; *Arizona v Fulminante*, 499 US 279; *People v Huntley*, 15 NY2d 72; *Lego v Twomey*, 404 US 477; *People v Cordero*, 272 AD2d 924; *People v Abrew*, 95 NY2d 806; *People v Giles*, 73 NY2d 666; *People v Leyra*, 302 NY 353.) VII. The court excluded the tape of a police-arranged telephone call Mr. Mateo made to his mother in the middle of his confessions to the Juan Matos killing, even though it showed he had a state of mind that undermined the reliability of the confessions. (*People v Molineux*, 168 NY 264; *People v Ricco*, 56 NY2d 320; *Provenzo v Sam*, 23 NY2d 256; *Loetsch v New York City Omnibus Corp.*, 291 NY 308; *Matter of Eichner v Dillon*, 73 AD2d 431, 52 NY2d 363; *United States v Harris*, 733 F2d 994; *People v Hale*, 245 AD2d 576; *People v Morales*, 179 Misc 2d 324; *People v Reynoso*, 73 NY2d 816; *United States v DiMaria*, 727 F2d 265.) VIII. The evidence raised a “fair question” about the voluntariness of Mr. Mateo’s statements to police, but the court refused to instruct the jury on this issue. (*People v Cefaro*, 23 NY2d 283; *People v Hamlin*, 71 NY2d 750; *People v Huntley*, 15 NY2d 72; *People v Leisner*, 73 NY2d 140; *People v Le Mieux*, 51 NY2d 981; *People v Luis*, 189 AD2d 657; *People v Sutton*, 122 AD2d 896; *People v Graham*, 55 NY2d 144; *People v Perretti*, 278 AD2d 597; *Rogers v Richmond*, 365 US 534.) IX. The warrant to search Mr. Mateo’s house was invalid because the police officer’s application for it did not establish the reliability of his hearsay information and he concealed crucial facts that would have undermined the information’s reliability. (*Franks v Delaware*, 438 US 154; *People v Alfinito*, 16 NY2d 181; *People v Gaspar*, 132 AD2d 990, 71 NY2d 887; *People v Ciaccio*, 47 NY2d 431; *People v Grimminger*, 71 NY2d 635; *People v Johnson*, 66 NY2d 398; *People v Rodriguez*, 52 NY2d 483; *Aguilar v Texas*, 378 US 108; *Spinelli v United States*, 393 US 410; *Illinois v Gates*, 462 US 213.) X. Although this Court has defined “command” as “direct authoritatively,” the trial court’s first degree murder charge gave an alternate, more expansive definition: “dominate or control.” This improperly authorized the jury to convict Mr. Mateo without finding that he ordered his wife to kill. (*People v Couser*, 94 NY2d 631; *People v Martinez*, 83 NY2d 26; *People v Leisner*, 73 NY2d 140; *People v Hoke*, 62 NY2d 1022; *People v Foley*, 94

NY2d 668; *People v Hutchinson*, 56 NY2d 868; *People v Gonzalez*, 54 NY2d 729; *Victor v Nebraska*, 511 US 1; *Sandstrom v Montana*, 442 US 510; *People v DeGina*, 72 NY2d 768.) XI. The court authorized jurors to convict Mr. Mateo of first degree murder without agreeing or even deciding whether he or, instead, his wife killed the victim, thus inviting them to short-circuit deliberations and return an unreliable verdict. (*People v DeCillis*, 14 NY2d 203; *Cancemi v People*, 18 NY 128; *People v Page*, 88 NY2d 1; *Schad v Arizona*, 501 US 624; *FGL & L Prop. Corp. v City of Rye*, 66 NY2d 111; *Richardson v United States*, 526 US 813; *People v Sullivan*, 173 NY 122; *People v Rivera*, 84 NY2d 766; *People v First Meridian Planning Corp.*, 86 NY2d 608; *People v Ribowsky*, 77 NY2d 284.) XII. The court refused to instruct jurors that they could not find Mr. Mateo guilty of first degree murder for suffocating the victim after he was shot, although a note during deliberations suggested they might be considering this uncharged theory. (*People v Greene*, 75 NY2d 875; *People v Kaminski*, 58 NY2d 886; *People v Grega*, 72 NY2d 489; *People v Barnes*, 50 NY2d 375; *People v Perez*, 83 NY2d 269; *People v Miles*, 289 NY 360; *People v Rothman*, 117 AD2d 535, 69 NY2d 767; *Cole v Arkansas*, 333 US 196; *People v Flynn*, 79 NY2d 879; *People v Feldman*, 299 NY 153.) XIII. The court refused to tell jurors that, to find proof beyond a reasonable doubt, they had to be “fully convinced” of guilt, as the Criminal Jury Instructions state. Instead, the court only warned against unreasonable doubts. (*Addington v Texas*, 441 US 418; *In re Winship*, 397 US 358; *Victor v Nebraska*, 511 US 1; *Jackson v Virginia*, 443 US 307; *Harris v Bowersox*, 184 F3d 744; *United States v Conway*, 73 F3d 975; *People v Cubino*, 88 NY2d 998; *People v Romanelli*, 239 AD2d 940; *Lanigan v Maloney*, 853 F2d 40; *People v Malloy*, 55 NY2d 296.) XIV. Mr. Mateo was tried under statutory provisions that this Court later held unconstitutional in *Matter of Hynes v Tomei* (92 NY2d 613 [1998]). Thus, the Court should strike the death notice, limiting his sentence to life without parole should he be reconvicted at a new trial. (*United States v Jackson*, 390 US 570; *People v Harris*, 98 NY2d 452; *Matter of Relin v Connell*, 251 AD2d 1041; *Matter of Morgenthau v Erlbaum*, 59 NY2d 143; *Duffy v Horton Mem. Hosp.*, 66 NY2d 473; *Mountain View Coach Lines v Storms*, 102 AD2d 663; *Parker v North Carolina*, 397 US 790; *Roseboro v North Carolina*, 403 US 948; *Sanders v North Carolina*, 403 US 948; *Williams v North Carolina*, 403 US 948.) XV. The death penalty violates the New York Constitution because we now know there is a real and intolerable risk of executing innocent people.

Alternatively, doubt about whether Mr. Mateo is guilty of first degree murder makes it unconstitutional to execute him. (*Atkins v Virginia*, 536 US 304; *People v Harris*, 98 NY2d 452; *United States v Quinones*, 196 F Supp 2d 416, 205 F Supp 2d 256, 313 F3d 49; *Cola v Reardon*, 787 F2d 681; *Dlugash v New York*, 476 F Supp 921; *People v Davis*, 43 NY2d 17; *People v Caruso*, 246 NY 437.) XVI. The court deprived Mr. Mateo of a fair and reliable sentencing determination by excluding hospital records that corroborated mitigation testimony about his childhood abuse. The prosecutor compounded the error by urging jurors to discount this testimony because no injuries had been documented by the hospital. (*People v Davis*, 43 NY2d 17; *People v Wilder*, 93 NY2d 352; *People v Yazum*, 13 NY2d 302; *People v Henson*, 33 NY2d 63; *Skipper v South Carolina*, 476 US 1; *Lockett v Ohio*, 438 US 586; *Green v Georgia*, 442 US 95; *Williams v Taylor*, 529 US 362; *Penry v Lynaugh*, 492 US 302; *Atkins v Virginia*, 536 US 304.) XVII. A series of court rulings resulted in jurors who could not avoid, were not asked if they could avoid, and were not told to avoid improperly considering Mr. Mateo's noncapital crimes in favor of a death sentence. (*People v Molineux*, 168 NY 264; *People v Harris*, 98 NY2d 452; *People v Mleczko*, 298 NY 153; *People v Peller*, 291 NY 438; *Matter of Jacob*, 86 NY2d 651; *Price v Price*, 69 NY2d 8; *Boyde v California*, 494 US 370; *Blystone v Pennsylvania*, 494 US 299; *Stringer v Black*, 503 US 222; *Barclay v Florida*, 463 US 939.) XVIII. The prosecutor committed egregious misconduct during summation by repeatedly urging jurors to consider improper factors in favor of a death sentence and to withhold mercy for legally impermissible reasons. (*People v Ashwal*, 39 NY2d 105; *People v Jackson*, 10 NY2d 510; *People v Gezzo*, 307 NY 385; *People v Watson*, 216 NY 565; *People v Harris*, 98 NY2d 452; *Romine v Head*, 253 F3d 1349; *Copeland v Washington*, 232 F3d 969; *People v Moss*, 215 AD2d 594; *People v DeJesus*, 137 AD2d 761; *People v Robinson*, 123 AD2d 796.) XIX. By repeatedly and misleadingly instructing that a deadlock might result in Mr. Mateo's release in "as soon as 20 years," the court unconstitutionally invited a coerced and unreliable death verdict. (*Morris v Woodford*, 273 F3d 826; *Jones v United States*, 527 US 373; *People v Mower*, 97 NY2d 239; *Simmons v South Carolina*, 512 US 154; *California v Ramos*, 463 US 992; *Holland v Donnelly*, 216 F Supp 2d 227; *People v Harris*, 177 Misc 2d 160; *Allen v United States*, 164 US 492; *Jenkins v United States*, 380 US 445; *People v Faber*, 199 NY 256.) XX. The court's charge misinformed jurors about how to identify and weigh the aggravating and mitigating factors in

deciding what sentence to impose. (*Furman v Georgia*, 408 US 238; *People v Fitzpatrick*, 32 NY2d 499; *Gregg v Georgia*, 428 US 153; *People v Smith*, 63 NY2d 41; *Penry v Johnson*, 532 US 782; *Stringer v Black*, 503 US 222; *Boyde v California*, 494 US 370; *United States v Doyle*, 130 F3d 523; *People v Victor*, 62 NY2d 374; *People v DeGina*, 72 NY2d 768.) XXI. Despite undisputed evidence, half the jury refused to factually find two key mitigating factors: that, as a child, Mr. Mateo frequently witnessed violence against his mother and had violent male role models. These flawed findings prejudiced him and rendered his death sentence unconstitutionally arbitrary. (*People v Smith*, 63 NY2d 41; *Lockett v Ohio*, 438 US 586; *Penry v Johnson*, 532 US 782; *Johnson v Mississippi*, 486 US 578; *Magwood v Smith*, 791 F2d 1438; *Furman v Georgia*, 408 US 238; *People v Harris*, 98 NY2d 452; *Lolik v Big V Supermarkets*, 86 NY2d 744; *People v Roldan*, 222 AD2d 132; *People v Torres*, 185 AD2d 257.) XXII. The court incorrectly ruled that it lacked jurisdiction to consider Mr. Mateo's undisputed claim that New York's lethal-injection procedures create a substantial risk of prolonged and torturous executions, and thus constitute cruel and unusual punishment. (*Campbell v Wood*, 18 F3d 662; *Gregg v Georgia*, 428 US 153; *Fierro v Gomez*, 77 F3d 301, 519 US 918; *Louisiana ex rel. Francis v Resweber*, 329 US 459; *Weems v United States*, 217 US 349; *People v Broadie*, 37 NY2d 100; *Rupe v Wood*, 863 F Supp 1307, 93 F3d 1434; *People v Guzman*, 60 NY2d 403; *People v Taylor*, 191 Misc 2d 672; *Gomez v United States Dist. Ct.*, 503 US 653.)

Howard R. Relin, District Attorney, Rochester (Wendy Evans Lehmann and Arthur G. Weinstein of counsel), for respondent. I. Appellant was properly found guilty of first degree murder. (*People v Couser*, 258 AD2d 74, 94 NY2d 631; *People v Cohen*, 223 NY 406; *People v Sullivan*, 173 NY 122; *Schad v Arizona*, 501 US 624; *Borum v United States*, 284 US 596; *People v Russell*, 91 NY2d 280; *People v Rivera*, 84 NY2d 766; *People v Duncan*, 46 NY2d 74, 442 US 910; *People v Bleakley*, 69 NY2d 490; *People v Vargas*, 7 NY2d 555.) II. The prosecutor's arguments at Szlekovics' trial did not contradict or preclude those made in this case. (*People v Berkowitz*, 50 NY2d 333; *United States v Salerno*, 937 F2d 797, 505 US 317; *Nguyen v Lindsey*, 232 F3d 1236; *Thompson v Calderon*, 120 F3d 1045, 523 US 538; *Smith v Groose*, 205 F3d 1045; *United States v Dickerson*, 248 F3d 1036; *United States v Paul*, 217 F3d 989; *People v Galloway*, 54 NY2d 396.) III. The crimes committed by appellant and his accomplices in the search for Janette Sanchez were properly tried together. (*People v Molineux*, 168 NY 264; *People v Mahboubian*,

74 NY2d 174; *People v Munger*, 24 NY2d 445; *People v Bongarzone*, 69 NY2d 892; *People v Till*, 87 NY2d 835; *People v Rojas*, 97 NY2d 32.) IV. Appellant's conduct toward Janette Sanchez was relevant to his motive for the kidnapping and to whether his statements to the police were true. (*People v Chase*, 85 NY2d 493; *People v Ely*, 68 NY2d 520; *People v Mendez*, 165 AD2d 751, 77 NY2d 880; *People v Steinberg*, 170 AD2d 50, 79 NY2d 673; *People v Le Grand*, 76 AD2d 706.) V. Appellant's statements about the four murders may have been ill-conceived, but they were voluntary. (*People v Johnson*, 177 AD2d 791; *People v Young*, 197 AD2d 874, 82 NY2d 854; *People v Anderson*, 42 NY2d 35; *Culombe v Connecticut*, 367 US 568; *Colorado v Connelly*, 479 US 157; *People v Keene*, 148 AD2d 977; *Arizona v Fulminante*, 499 US 279; *People v Gonzales*, 75 NY2d 938, 498 US 833.) VI. The truth of appellant's description of his role in the murder of Juan Matos could be assessed only in context. (*People v Dales*, 309 NY 97; *People v Rojas*, 97 NY2d 32.) VII. Appellant's out-of-court statement about why he "took all the charges" was properly excluded as hearsay. (*Loetsch v New York City Omnibus Corp.*, 291 NY 308; *People v Anderson*, 256 AD2d 413.) VIII. The search warrant was based on probable cause. (*People v Johnson*, 66 NY2d 398; *People v Elwell*, 50 NY2d 231; *People v Comforto*, 62 NY2d 725; *People v Hanlon*, 36 NY2d 549; *People v Rodriguez*, 52 NY2d 483.) IX. The court properly instructed the jury. (*People v De Mauro*, 48 NY2d 892; *Victor v Nebraska*, 511 US 1; *People v Cubino*, 88 NY2d 998; *People v Allen*, 301 AD2d 57; *People v Malloy*, 55 NY2d 296; *People v Leisner*, 73 NY2d 140; *People v Hoke*, 62 NY2d 1022; *People v Couser*, 258 AD2d 74, 94 NY2d 631; *People v Le Mieux*, 51 NY2d 981.) X. The same jury was competent to decide sentence and did so fairly and consistently with the evidence. (*People v Leisner*, 73 NY2d 140; *People v Hoke*, 62 NY2d 1022.) XI. The hospital records had no probative value. (*Greco v Jackson*, 287 AD2d 539; *Smith v Malarczyk*, 118 AD2d 934.) XII. The penalty phase summation was appropriate. (*People v Harris*, 98 NY2d 452; *Satterwhite v Texas*, 486 US 249; *Atkins v Virginia*, 536 US 304; *Gregg v Georgia*, 428 US 153.) XIII. The jury was properly instructed about, and properly assessed, the evidence offered in mitigation. (*Gall v Parker*, 231 F3d 265; *Mills v Maryland*, 486 US 367; *McKoy v North Carolina*, 494 US 433; *Buchanan v Angelone*, 522 US 269.) XIV. The plea restriction in this case was consistent with *Matter of Hynes v Tomei* (92 NY2d 613 [1998]). (*United States v Jackson*, 390 US 570; *People v Harris*, 98 NY2d 452; *People v Edwards*, 96 NY2d 445; *Matter of Relin v Connell*,

251 AD2d 1041; *Bower & Gardner v Evans*, 60 NY2d 781; *Matter of Morgenthau v Erlbaum*, 59 NY2d 143; *Rogers v Tennessee*, 532 US 451.) XV. The law properly entitles the jury to understand the consequences of its failure to agree on a sentence. (*Holland v Donnelly*, 216 F Supp 2d 227; *Matter of New York Assn. of Convenience Stores v Urbach*, 92 NY2d 204; *People v Pacheco*, 53 NY2d 663; *Simmons v South Carolina*, 512 US 154.) XVI. The potential for “botching” a lethal injection is not properly before this Court at this time. (*City of New York v Long Is. Airports Limousine Corp.*, 48 NY2d 469; *First Natl. Bank v Shuler*, 153 NY 163; *People ex rel. Kemmler v Durston*, 119 NY 569, writ denied sub nom. *In re Kemmler*, 136 US 436; *People v Kemmler*, 119 NY 580; *People v Stevens*, 91 NY2d 270; *People v De Jesus*, 54 NY2d 447; *Matter of New York State Inspection, Sec. & Law Enforcement Empls. v Cuomo*, 64 NY2d 233; *New York Pub. Interest Research Group v Carey*, 42 NY2d 527; *People v Harris*, 98 NY2d 452.) XVII. “We” do not, and cannot, know that the possibility that an innocent person will someday be executed renders capital punishment cruel and unusual in every case, including this one. (*Gregg v Georgia*, 428 US 153; *People v Harris*, 98 NY2d 452; *People v Davis*, 33 NY2d 221; *People v Thompson*, 83 NY2d 477; *People v Broadie*, 37 NY2d 100, 423 US 950; *People ex rel. Kemmler v Durston*, 119 NY 569; *People v Davis*, 43 NY2d 17; *People v Foley*, 94 NY2d 668; *People v Parker*, 41 NY2d 21; *People v Drayton*, 39 NY2d 580.)

Eliot Spitzer, Attorney General, New York City (Luke Martland, Peter B. Pope, Daniel Smirlock and Robin A. Forshaw of counsel), in his statutory capacity under Executive Law § 71. I. Defendant’s Fifth and Sixth Amendment rights were not impermissibly burdened by the first degree murder guilty plea provisions, because the trial court struck those provisions as unconstitutional prior to the start of defendant’s trial. (*Matter of Hynes v Tomei*, 92 NY2d 613, 527 US 1015; *People v Harris*, 98 NY2d 452; *United States v Jackson*, 390 US 570; *Matter of Francois v Dolan*, 95 NY2d 33; *Matter of Morgenthau v Erlbaum*, 59 NY2d 143; *Parker v North Carolina*, 397 US 790; *Atkinson v North Carolina*, 403 US 948; *Furman v Georgia*, 408 US 238; *Corbitt v New Jersey*, 439 US 212.) II. CPL 400.27 (10) is constitutional and ensures that jurors are correctly informed of what will occur in the event of deadlock, thereby minimizing juror speculation and arbitrariness. (*Gregg v Georgia*, 428 US 153; *Furman v Georgia*, 408 US 238; *Lockett v Ohio*, 438 US 586; *Woodson v North Carolina*, 428 US 280; *Beck v Alabama*,

447 US 625; *Gardner v Florida*, 430 US 349; *Jurek v Texas*, 428 US 262; *California v Ramos*, 463 US 992; *Ramdass v Angelone*, 530 US 156; *Simmons v South Carolina*, 512 US 154.) III. New York's death penalty statute is constitutional and defendant's speculative claim that innocent people might be executed is without merit. (*Gregg v Georgia*, 428 US 153; *People v P.J. Video*, 68 NY2d 296; *People v Scott*, 79 NY2d 474; *People v Broadie*, 37 NY2d 100, 423 US 950; *People ex rel. Kemmler v Durston*, 119 NY 569, writ denied sub nom. *In re Kemmler*, 136 US 436; *People v Fitzpatrick*, 32 NY2d 499, 414 US 1033; *People v Davis*, 43 NY2d 17, 435 US 998; *People v Smith*, 63 NY2d 41, 469 US 1227; *Herrera v Collins*, 506 US 390; *People v Fxlangier*, 1 NY2d 393.) IV. The Department of Correctional Services' lethal injection protocol is not constitutionally flawed. (*Wilkerson v Utah*, 99 US 130; *In re Kemmler*, 136 US 436; *Campbell v Wood*, 18 F3d 662, 511 US 1119; *State of La. ex rel. Francis v Resweber*, 329 US 459; *Hill v Lockhart*, 791 F Supp 1388.)

Bennett L. Gershman, White Plains, amicus curiae. By urging the jury in appellant's capital murder trial to adopt a theory of guilt that the prosecutor had repudiated in an earlier trial against a different defendant for the same crime, the prosecutor violated ethical standards, corrupted the fact-finding process, and deprived appellant of a fair trial. (*United States v Kojayan*, 8 F3d 1315; *Giles v Maryland*, 386 US 66; *Thompson v Calderon*, 120 F3d 1045; *Brady v Maryland*, 373 US 83; *People v Savvides*, 1 NY2d 554; *Kyles v Whitley*, 514 US 419; *Walker v City of New York*, 974 F2d 293; *United States v Young*, 470 US 1; *United States v Modica*, 663 F2d 1173; *Davis v Zant*, 36 F3d 1538.)

OPINION OF THE COURT

Chief Judge KAYE.

Defendant's case, here on direct appeal from a jury verdict of guilt of first degree murder and a jury sentence of death, has a complex history that we know well (see *People v Mateo*, 93 NY2d 327 [1999]; *Matter of Relin v Connell*, 92 NY2d 613 [1998]). Implicated in four murders and other violent crimes in Rochester, on December 19, 1996, defendant was charged in a 22-count indictment with, among other things, three counts of first degree murder.¹ Count 10 of the indictment, contested in this

1. On January 17, 1997, the People filed notice of their intent to seek the death penalty pursuant to CPL 250.40 (2).

appeal, alleged that on or about November 2, 1996, in the course of and in furtherance of first degree kidnapping, defendant intentionally caused the death of Juan Rodriguez-Matos, or, intending Matos' death, commanded another—his wife, Monica Szlekovics—to kill him (Penal Law § 125.27 [1] [a] [vii]). In either circumstance, the cause of death was alleged to be a gunshot wound.

Counts 11 and 12 of the indictment charged defendant with first degree murder on a serial killer theory that he acted “in a similar fashion” when, within a 24-month period, he intentionally murdered four individuals, including Matos. On defendant's motion, the trial judge dismissed those counts (175 Misc 2d 192 [Monroe County Ct 1997, Connell, J.]), and the Appellate Division affirmed (249 AD2d 894 [4th Dept 1998]). We affirmed, concluding that the evidence presented to the grand jury was insufficient to establish that the killings at issue were “committed in a similar fashion” under Penal Law § 125.27 (1) (a) (xi) (*People v Mateo*, 93 NY2d 327 [1999]).

Prior to trial, relying on *United States v Jackson* (390 US 570 [1968]), defendant challenged the plea provisions of New York's recently enacted death penalty statute (L 1995, ch 1). He argued that those provisions² created a two-tiered system of punishment for the same offense, because only those who went to trial faced the death penalty while those who waived a jury trial and pleaded guilty did not. This scheme, he argued, impermissibly burdened his Fifth and Sixth Amendment trial rights. The trial judge, adhering to *Jackson*, held the plea provisions unconstitutional, but the Appellate Division subsequently declared them constitutional (*Matter of Relin v Connell*, 251 AD2d 1041 [4th Dept 1998]). Defendant thereafter went to trial, while an appeal of the Appellate Division ruling was pending in this Court. Ultimately, bound by *Jackson*, we reversed, struck the plea provisions as unconstitutional and, in a consolidated appeal, severed them from the statute (*Matter of Hynes v Tomei*; *Matter of Relin v Connell*, 92 NY2d 613 [1998]).

I.

The facts of defendant's case, elicited at trial, are no less complicated than its legal history. The main participants in the events of October 8 through November 6, 1996 were defendant (then age 27), his wife (Monica, 20), his estranged girlfriend

2. CPL 220.10 (5) (e); 220.30 (3) (b) (vii).

(Janette Sanchez, 25) and his brother (Victor Cordero, 16). Forty-nine witnesses, many of them civilians who had crossed paths with defendant, testified for the People. The defense called one witness, to testify regarding a bullet wound in defendant's leg.

Though married to Monica, defendant had been living with Janette since November of 1995 in what was, to say the least, an abusive relationship. Janette told the jury that soon after she and her three young children moved in with defendant, he began terrorizing her: he hit her in the face, beat her in front of her children, threatened to stab her, and more than once aimed a gun at her and threatened to pull the trigger. At one point, he shot a round into the floor of their bedroom in front of her.

As Janette testified, on October 8, 1996, in a fit of rage over a busy telephone line, defendant hit her, and then began hitting her five-year-old daughter with a belt. Defendant locked them in the house, and left. Janette and her daughter escaped through a bedroom window. Janette then sought shelter at Alternatives for Battered Women, and remained there with her children. Three days later, on October 11th, defendant and Monica, in pursuit of Janette, showed up at 966 Avenue D, the home of Maria Sanchez (Janette's sister), Jose Roman (Maria's boyfriend) and Maria's four-year-old daughter. Jose explained to the jury that he opened the door and defendant pointed a gun at his forehead. Defendant handcuffed him behind his back, put the gun to the back of his head and told him to lie down. For more than three hours, defendant and Monica held the family hostage while defendant ordered Maria to keep phoning Janette. Finally, Maria reached her and after defendant spoke to her, he and Monica left.

Throughout October, defendant persisted in his efforts to find Janette. He sent Monica to the shelter to give Janette his pager number so that she could call him. On October 16th, while Janette was at the Department of Social Services, defendant and Monica appeared, and defendant coaxed Janette into going to his apartment, without Monica. Soon after, Monica appeared at the door with a gun. She left, and defendant told Janette that he wanted to kill himself. Instead, he pointed the gun at Janette's chest and said he would kill her because he could not allow her to be with anyone else. Janette later managed to return to the shelter. Two days later, defendant and Monica again accosted Janette on the street. When she ran to a nearby office, defendant followed her inside but security guards called

the police. Between October 8th and October 24th, defendant kept calling and leaving messages for Janette at the shelter. On October 24th, fearful that defendant would harm Maria, Janette went back to defendant for six days. On October 29th, a social worker from Child Protective Services helped Janette and the children move to another shelter. No longer reachable at Alternatives for Battered Women, it seemed that Janette had disappeared.

As defendant later conceded to police, his attack on the child had ended his relationship with Janette. He admitted searching the city for her, and acknowledged that he would hurt anyone who got in his way. One unfortunate victim was Juan Rodriguez-Matos, age 20. On or about November 2, 1996, defendant was driving around the east side of Rochester with Monica and Victor, still looking for Janette. Defendant spotted Matos on the street, and remembered that he and Janette had a friend in common, Glyselle, who might have information about Janette. Defendant ordered Monica, who was driving, to circle the block so he could confront Matos. He then directed her to stop, got out of the car and approached Matos, demanding to know Glyselle's address. When Matos refused to answer, defendant forced him into the car at gunpoint and they drove to defendant's house. There, defendant handcuffed Matos, brought him into the bathroom and questioned him. Matos finally gave defendant an address, but by that time defendant had already decided to take him to the basement and execute him. Defendant told police that he made this decision and Monica and Victor were following his orders—Monica and Victor did what he told them to do.³

Defendant admitted to the investigators that while in the basement, he put a dark handkerchief over Matos' eyes, and then "shot the dude in the left side of his head as he stood there." Matos fell on the floor, but was still alive, so defendant put a plastic bag over his head. He died some time later. In the middle of the night, defendant, Monica and Victor wrapped the body in a blanket and some curtains and left it in an alley near where defendant used to work. A subsequent autopsy of Matos'

3. During an eight-hour interrogation beginning at 5:45 P.M. on November 6, 1996, defendant made a lengthy confession to the Matos murder, three other homicides and the Avenue D incidents. Those admissions were subsequently reduced to written statements, signed by defendant, about each crime. Our later references to the "confession" are to defendant's statements during the interrogation in their entirety.

body revealed that, although he aspirated gastric contents into his lungs, the cause of death was the gunshot wound to the head. Defendant later told police during questioning that he had handed the gun to Monica and that, in actuality, it was she who pulled the trigger and he was “surprised.” For the most part, he insisted that he had fired the fatal shot, but he alternated back and forth. In a third version, defendant claimed that even though Monica had pulled the trigger, he was a “king” and would take the blame because he wanted the death penalty and could not “do a hundred years in jail.” When police typed his written statement, defendant claimed to have pulled the trigger himself.

On November 6th, defendant, Monica and Victor carried out a second home invasion at 966 Avenue D. On that day, they went back to Maria and Jose’s apartment house, but hid in the basement. Defendant still wanted to find Janette, and told Monica and Victor that Janette had filed a police complaint against him. Defendant later explained, “[t]hat was a lie and I was using them to help me get my girl back.” After waiting about three hours, defendant said “let’s go upstairs.” Defendant told Monica to knock on the first floor apartment door (Maria lived on the second floor); when the occupant—Willie McWilliams—opened the door, defendant put a gun to his face.

McWilliams testified that defendant hit him on the left side of his head with the gun, and told him to “get on the floor.” A stranger to defendant and his objectives, McWilliams dropped to his knees and Victor handcuffed him. Asked who else was in the house, first McWilliams said “nobody,” but then said that his girlfriend and son were sleeping. Defendant checked the other room, grabbed a knife, came back, and said, “I never taken out a little kid before.” Victor said, “we got to take them all out.” McWilliams yelled out to his girlfriend to run. Defendant stepped on McWilliams’ back and cut him across the throat. When McWilliams reared up, defendant fell backwards, began shooting and struck him in the shoulder and back. One of McWilliams’ handcuffs came loose and he hit defendant in the face. Defendant fell again, dropping his gun, and apparently was shot in the leg during the fray. Defendant and Victor took off, leaving Monica behind. McWilliams held her down while his girlfriend, who escaped to a neighbor’s house, called 911. After the police arrested Monica at the scene, she provided information leading to the arrest of defendant and Victor. They were apprehended later that day in a car with defendant’s mother, another brother and a cousin.

Now, following a jury trial, defendant stands convicted of first degree murder and other charges.⁴ After a penalty proceeding in which he presented mitigating evidence, the jury sentenced defendant to death.

Defendant's mandatory appeal, raising 22 issues, was noticed February 11, 1999, and comes to us directly from the trial court pursuant to our unique jurisdiction in death penalty cases (NY Const, art VI, § 3 [b]; CPL 450.70 [1]).⁵ Defendant argues that *Matter of Hynes v Tomei* (92 NY2d 613 [1998]) and *People v Harris* (98 NY2d 452 [2002]) require overturning his death sentence, because he went to trial under what we have held to be an unconstitutional two-tiered penalty scheme. We agree, and conclude that the death sentence must be set aside.

Defendant also contends that his right to due process was violated by the prosecutor, on the ground that inconsistent factual theories were presented at his and Monica's separate trials. We disagree, and determine that the prosecutor's actions did not breach defendant's right to a fair trial. Defendant claims that the jury verdict of guilt of first degree felony murder is against the weight of the evidence. We disagree, and in our review of the facts conclude that the weight of the evidence comports with the jury determination that defendant kidnapped Matos, and in the course of and in furtherance of that crime, either intentionally shot and killed him or commanded his wife and cohort, Monica, to do so.⁶

4. On November 12, 1998, the People filed an amended trial indictment that eliminated the counts pertaining to the three other murders. Count 10 of the original indictment was renumbered count 5 for trial. In addition, defendant was indicted on three counts of second degree kidnapping for the home invasion on October 11, 1996 (counts 1-3). He was charged with second degree felony murder for the killing of Matos (count 6) and first degree kidnapping for the abduction of Matos (count 7). In connection with the home invasion on November 6, 1996, he was indicted on attempted first degree murder in the course of and in furtherance of a burglary (count 8), kidnapping in the second degree (count 9), first degree burglary (count 10) and first degree assault (count 11). He also faced two counts of third degree criminal possession of a weapon for possessing firearms on October 11, 1996 and November 6, 1996 (counts 4, 12). The jury found defendant guilty on all 12 counts.

5. Defendant also filed an amended notice of appeal dated April 13, 1999, which sought to appeal from the judgment and, in addition, from County Court's March 11, 1999 order denying his renewed CPL 330.30 motion. The appeal from County Court's order should be dismissed because the order is not directly appealable to this Court under CPL 450.70.

6. We note that defendant raises not a single challenge to the trial court's rulings related to the two-month jury selection process.

Finally, defendant maintains that certain evidentiary errors, including the admission of his statements about three other murders, mandate the reversal of his conviction. We disagree. Defendant's trial strategy opened the door to the admission of his voluntary statements, to rebut the assertions that he gave false statements to police exaggerating his role in the Matos murder in order to exculpate his wife.

II.

[1] Defendant contends that an Appellate Division declaration made prior to his trial—holding the plea provisions of New York's death penalty statute constitutional—subjected him to an unconstitutional penalty scheme, and that our subsequent decisions in *Matter of Hynes v Tomei* and *People v Harris* mandate that we set aside his death sentence. In *Hynes*, we struck the plea provisions as unconstitutional and severed them from the statute, on the ground that they created a two-tiered punishment scheme that burdened the rights of defendants who went to trial (92 NY2d 613 [1998]). In *Harris*, we set aside the death sentence of a defendant who went to trial while the plea provisions were in effect (98 NY2d 452, 494-496 [2002]). We break no new ground by applying these precedents, and dispose of defendant's *Hynes* claim first, striking defendant's sentence of death.

The People and the Attorney General maintain that in this case, the trial court's order declaring the plea provisions unconstitutional controlled the course of the litigation, and that defendant actually went to trial under a lawful statute. The question before us is whether a subsequent declaration by the Appellate Division, Fourth Department, that the plea provisions were constitutional (251 AD2d 1041 [1998]), rendered those provisions operative in his case. The People and the Attorney General concede that if the plea provisions were in effect during defendant's case, the death sentence must be vacated.

A brief procedural history is required to frame the issue. Defendant was indicted on first degree murder and other charges on December 19, 1996, and the prosecution filed its notice of intent to seek the death penalty pursuant to CPL 250.40 (2) on January 17, 1997. On April 24, 1997, defendant moved to strike the death notice and the plea provisions of New York's death penalty statute as unconstitutional, relying on *United States v Jackson* (390 US 570 [1968]). In *Jackson*, the United States Supreme Court invalidated the death penalty provision of the

Federal Kidnaping Act (18 USC § 1201 [a]) because, in relevant part, by encouraging jury waivers to avoid the death penalty, the provision impermissibly burdened defendants' Fifth and Sixth Amendment rights. Relying on *Jackson*, the trial court, on August 25, 1997, granted defendant's motion to the extent that it declared the plea provisions unconstitutional (175 Misc 2d 192 [1997]).

The People then commenced a CPLR article 78 petition in the Appellate Division seeking a writ of prohibition to bar both the trial judge and defendant from enforcing the order declaring the plea provisions unconstitutional. On June 10, 1998, the Fourth Department converted the article 78 proceeding to a declaratory judgment action and held the plea provisions constitutional (251 AD2d 1041 [1998]). Jury selection commenced on September 1, 1998 and the jury was sworn on November 9, 1998. On December 3, 1998, the jury found defendant guilty of first degree murder and other charges, and on December 16, 1998, sentenced him to death.

Six days later, on December 22, 1998, this Court reversed the order of the Fourth Department, as well as a comparable order of the Second Department, and struck the plea provisions as unconstitutional under authority of *Jackson* (92 NY2d 613 [1998]). Shortly thereafter, defendant moved to set aside his death sentence, relying on *Hynes*. On January 15, 1999, the trial judge summarily denied the motion and ordered the death sentence to be carried out based on the jury's determination. Defendant now contends that the Fourth Department ruling upholding the plea provisions was in effect in his case when he went to trial and therefore the trial was conducted under a *Jackson*-violative statute. We agree.

To be sure, defendant received a favorable pretrial ruling from the trial court striking the plea provisions from the statute. By the time that defendant's trial commenced, however, the Appellate Division had declared the plea provisions constitutional, in an action by this District Attorney against this trial judge and this defendant. That ruling was binding in the Fourth Department (*see e.g. Duffy v Horton Mem. Hosp.*, 66 NY2d 473, 475 [1985]). Based on that binding precedent, we conclude that defendant could have sought to avoid exposure to a death sentence only by waiving his right to a jury trial and pleading guilty.

Matter of Morgenthau v Erlbaum (59 NY2d 143 [1983]) does not mandate a different result in this case. We held in *Erlbaum*

that “a declaratory judgment attacking a criminal court’s interlocutory ruling *may* be granted when the controversy is over the validity of a statute, . . . and there is no immediate attempt to prevent the criminal court from proceeding on the course which it has charted by its ruling” (*id.* at 151-152). *Erlbaum*, moreover, contemplates that an individual defendant will not be a party to the declaratory judgment action. (Here, defendant was a party.) The Appellate Division order—determining the validity of the statute—did not reverse the trial court’s order, or immediately prevent the trial court from proceeding on its course. At the time the Appellate Division ruled, the case was several months from being tried. There was no ensuing delay of trial. Indeed, defendant went to trial while the Appellate Division ruling, reinstating the plea provisions, was simultaneously challenged in this Court. Thus, the “concern over obstructing the speedy resolution of cases” (*id.* at 152) did not arise. In these circumstances, *Erlbaum*’s policy considerations—protecting criminal trials from interference, or even undoing, by interlocutory appeals—were not implicated.

Exactly the situation *Jackson* held untenable, however, occurred here. Like any other capital defendant in the Fourth Department, had defendant sought to waive his right to a jury trial and plead guilty—with the appellate court’s ruling in hand—it was highly improbable that the trial judge would have ignored the order of the Appellate Division. Thus, the fortuitous timing of defendant’s trial, sandwiched in between the Appellate Division ruling and this Court’s decision striking the plea provisions, contributed to a unique situation in which defendant’s Fifth and Sixth Amendment trial rights were burdened and he was tried under an unconstitutional two-tiered penalty scheme. The sentence of death therefore must be set aside. We turn next to defendant’s challenges to the verdict of guilt.

III.

Defendant contends that the prosecutor violated due process by positing, in his trial, a theory of first degree murder factually inconsistent from that argued at Monica’s trial. He also maintains that the trial court erroneously instructed the jury that it could find defendant guilty of first degree murder whether he shot Matos or commanded the killing, and that the jury verdict on that count is against the weight of the evidence.

A. The Prosecution’s Theories

Monica was prosecuted separately—about a year before defendant’s trial—on the theory that she was guilty, as the

shooter, of intentional first degree felony murder (Penal Law § 125.27 [1] [a] [vii]) in the course of and in furtherance of first degree kidnapping, in a noncapital trial. The jury acquitted her of that count but convicted her of second degree felony murder and first degree kidnapping. At his trial, defendant sought to preclude the prosecution from arguing in his case that *he* was the shooter, on the ground that the People previously dismissed that theory in Monica's case.

The trial court rejected defendant's claim, determining that at defendant's trial, the People were free to argue alternatively that either defendant or Monica—commanded by defendant—pulled the trigger. The court concluded that “the People are merely intending to argue reasonable views of the evidence that could be drawn from the testimony and physical evidence” (177 Misc 2d 817, 818 [Monroe County Ct 1998, Connell, J.]).

Defendant claims that by advancing purportedly inconsistent theories, the People corrupted the truth-finding function of the trial. It is settled that a prosecutor may not knowingly present admissible but false information to a jury (*People v Pelchat*, 62 NY2d 97, 105 [1984]). Of course, in the circumstances of this case, where defendant and Monica implicated not only themselves but also each other, the People could not know who the shooter was—only defendant and Monica knew.

Defendant contends that at the separate trials, the prosecution presented diametrically opposed versions of his role in the shooting. To be sure, at Monica's trial for first degree felony murder, the prosecutor argued that Monica shot Matos. But at defendant's trial, the prosecutor presented that very same proposition, again arguing that Monica intentionally shot him, albeit under defendant's orders. Defendant was not “resculpted” from a mere sideliners to a main participant (*cf. United States v Salerno*, 937 F2d 797, 812 [2d Cir 1991], *revd on other grounds* 505 US 317 [1992]). In both trials, defendant was portrayed as the “driving force” behind the crime. Additionally, the People maintained that, based on defendant's own written statement, it was also reasonable to conclude that he was the one who pulled the trigger. Thus, defendant's jury considered the same argument that the prosecutor presented at Monica's trial, and also considered a theory supported by defendant's own words.

In assessing this claim, we find *Nguyen v Lindsey* (232 F3d 1236 [9th Cir 2000]) persuasive. There, an innocent bystander was killed in the crossfire of a shootout between two rival gangs;

two combatants were charged with murder and separately tried. At the trial of defendant Phung, the prosecutor presented evidence that Phung shot first. At the trial of defendant Nguyen, the prosecutor introduced Nguyen's own statement to police that a cohort in his car, Cholo, had fired first. The Ninth Circuit held that the prosecutor did not pursue fundamentally inconsistent theories in violation of due process, even though different evidence was presented at each trial (*id.* at 1241). Although the prosecutor made divergent arguments at each trial as to who fired the first shot, the court concluded that these arguments were consistent with the evidence actually adduced at each trial (*id.* at 1240).

Here, as in *Nguyen*, the evidence against Monica at her trial was her own statement that she killed Matos after defendant gave her the gun and whispered in her ear to shoot him in the head.⁷ The evidence at defendant's trial was his self-incriminating admissions that he intended to execute the victim, and either shot the victim or commanded Monica to do so.

Nguyen also distinguished *Thompson v Calderon* (120 F3d 1045 [9th Cir 1997] [en banc] [plurality op], *revd on other grounds* 523 US 538 [1998]), relied on by defendant. In *Thompson*, separate trials were conducted of two suspects in the rape and murder of Ginger Fleischli. Testimony by jailhouse informants at a preliminary hearing revealed that defendant Leitch wanted Fleischli dead because she was interfering with his attempts to reconcile with his ex-wife (120 F3d at 1055). On the night of the murder, defendant Thompson allegedly had consensual sex with Fleischli. Afterward, Leitch arrived and he and Thompson killed her.

At Thompson's trial, the prosecution presented other witnesses who testified that Thompson had confessed to raping and killing Fleischli before Leitch got home, and that he killed her to prevent her from reporting the rape (*id.* at 1056). Thompson was convicted of first degree murder and sentenced to death. Then, at Leitch's trial, the prosecutor called mostly defense witnesses from Thompson's trial, who testified about Leitch's motive for killing Fleischli, his threats against her and his violent disposition. A plurality of the court concluded that in Leitch's trial, the prosecutor returned to his original theory and discredited the very evidence he had previously offered in

7. Monica's jury also heard that she had previously blamed defendant for shooting Matos.

Thompson's trial, so that Thompson, rather than Leitch, suffered from the due process deprivation (*id.* at 1059). In *Nguyen*, by contrast, the court found it compelling that both defendants could be found guilty of the same crime because of its nature (232 F3d at 1240).

[2] The circumstances of defendant's case are closer to *Nguyen* than *Thompson*. The prosecutor never discredited the central evidence he previously offered to convict Monica, but instead used that evidence to prove that defendant commanded her to shoot Matos. Thus, as the People sought to prove, both defendants could have been guilty of first degree murder. The argument that defendant was the shooter was also properly adduced at trial, based on his admissions. In these circumstances, the People should not have to choose one defendant over the other to prosecute as the shooter.

Defendant also argues that at Monica's trial, she was portrayed by the People as acting with free will, whereas at defendant's trial, the evidence showed that she was abused and acted at defendant's command. These positions are not inherently inconsistent. At Monica's trial, the People were countering her duress defense, and sought to show that she was capable of freely committing the murder. The prosecution acknowledged that Monica was abused, but argued that the abuse did not mean she could establish duress: "What was the abuse? What did it consist of? . . . [W]hat effect does it have on this case? . . . [Y]ou're going to hear that Angel Mateo was a bad man, and I anticipate you are going to hear that he was the driving force here, but I also anticipate you are going to hear that Monica Szlekovics was involved." At defendant's trial, by contrast, duress was not in the case. The People were entitled to show that, fearful or not, Monica could have willingly followed defendant's command.

B. The Command or Actual Killer Instruction

Defendant claims that it was error for the trial court to instruct the jury that it could convict defendant of first degree murder either as a commander or shooter. Penal Law § 125.27 (1) (a) (vii), the "felony murder" provision of the first degree murder statute (*see People v Harris*, 98 NY2d 452, 475-477 [2002]), states that a person is guilty of first degree murder when, with intent to cause the death of another person, he causes the death of that person or a third person, and:

"the victim was killed while the defendant was in

the course of committing or attempting to commit and in furtherance of . . . kidnapping in the first degree . . . ; provided however, the victim is not a participant . . . and, provided further that, unless the defendant's criminal liability under this subparagraph is based upon the defendant having commanded another person to cause the death of the victim or intended victim pursuant to section 20.00 of this chapter, this subparagraph shall not apply where the defendant's criminal liability is based upon the conduct of another pursuant to section 20.00 of this chapter.”⁸

In turn, Penal Law § 20.00, the accessorial liability provision, provides that “[w]hen one person engages in conduct which constitutes an offense, another person is criminally liable for such conduct when, acting with the mental culpability required for the commission thereof, he solicits, requests, commands, importunes, or intentionally aids such person to engage in such conduct.”

Based upon the plain language, it is clear that the Legislature has set forth a single circumstance by which to impose accessorial liability for first degree felony murder. An actor may be found guilty as an accessory under Penal Law § 125.27 (1) (a) (vii) only when the theory proved by the prosecution is that the defendant *commanded* the killing (see *People v Couser*, 94 NY2d 631, 635 [2000] [“(a) defendant's criminal responsibility for murder in the first degree can be based upon the conduct of another when that defendant ‘*commanded*’ another person to cause the death of the victim or intended victim” (emphasis in original)]).

By comparison, the Legislature chose *not* to limit accessorial liability for the other 12 subparagraphs of the first degree murder statute (see generally *People v Cahill*, 2 NY3d 14 [2003] for a discussion of 13 aggravating factors of first degree murder statute). It is only the felony murder aggravator that is so limited. Indeed, the Assembly Codes Committee memorandum explains that the felony murder provision “excludes defendants whose criminal liability *under this subparagraph* is based upon the conduct of another person, unless the defendant commanded

8. The first degree kidnapping statute, Penal Law § 135.25 (3), provides that a person is guilty of that crime when he or she abducts another person who dies during the abduction or before being able to return or to be returned to safety.

another person to cause the death of the victim or intended victim” (Mem of Assembly Codes Comm, Bill Jacket, L 1995, ch 1, at 22 [emphasis added]).⁹

The legislative history supports the conclusion that, while the Legislature limited accessorial liability for first degree felony murder to “command[ing],” it did nothing to upset the settled principle that “[t]here is no distinction between liability as a principal and criminal culpability as an accessory” (*People v Duncan*, 46 NY2d 74, 79-80 [1978]). When it enacted the statute, the Legislature was surely aware of our decisions interpreting the accessorial liability statute (*see generally People v Robinson*, 95 NY2d 179, 183-184 [2000]). If the Legislature had wanted to set forth “command” as a separate element of the first degree felony murder offense, moreover, it would have done so.¹⁰

[3] The question here is whether due process requires that the command theory be considered by the jury apart from the actual killer theory, and that the jury be unanimous on one theory or the other, even though the Legislature expressly intended that the two coexist in the same subparagraph of the statute.¹¹ We conclude it does not.

The trial court’s instructions comported with due process. In *Schad v Arizona* (501 US 624 [1991]), the United States

9. See Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law § 125.27, at 390.

10. Prior to trial, defendant moved to dismiss the first degree murder count as duplicitous because it charged him with the killing as the shooter and as the commander of another person. While defendant no longer presses his claim of duplicitous counts on appeal, the trial court’s reasoning is persuasive on the issue before us:

“[t]he language ‘commanded another person’ is not an additional element to the offense of an intentional killing in the course of and in furtherance of a felony. Rather, under this statute, the People may charge the defendant as a principal, or in a limited situation, as an accomplice” (175 Misc 2d at 207).

11. Before the case was submitted to the jury, defendant requested that the court instruct the jury that, to find him guilty, it had to be unanimous as to whether he shot and killed Matos, or commanded his wife to do so. The trial court rejected defendant’s request, and instructed the jury that:

“Your verdict, as I have mentioned before on each of these charges, has to be unanimous. That means all twelve have to agree upon a verdict. All twelve of you[] deliberating on a case do not have to agree that the Defendant was the shooter nor do all twelve deliberating on the case have to find that the Defendant was the commander. It is sufficient that all twelve find the Defendant was either the shooter or the commander under Murder in the First Degree.”

Supreme Court analyzed an Arizona statute that defined first degree murder as, among other things, premeditated murder or murder committed during a felony. Justice Souter, writing for a plurality, observed that there is a “point at which differences between means become so important that they may not reasonably be viewed as alternatives to a common end, but must be treated as differentiating what the Constitution requires to be treated as separate offenses” (501 US at 633).

The *Schad* plurality adopted a case-by-case approach of analyzing the problem, while deferring to the states: “[i]f a State’s courts have determined that certain statutory alternatives are mere means of committing a single offense, rather than independent elements of the crime, we simply are not at liberty to ignore that determination and conclude that the alternatives are, in fact, independent elements under state law” (*id.* at 636). The plurality observed that “[w]here a State’s particular way of defining a crime has a long history, or is in widespread use, it is unlikely that a defendant will be able to demonstrate that the State has . . . defined as a single crime multiple offenses that are inherently separate” (*id.* at 640).

Although New York’s current first degree murder statute is recently enacted, the term “command,” under our law, has its roots in the 1907 Penal Code, which defined a “principal” as “[a] person concerned in the commission of a crime whether he directly commits the act constituting the offense or aids and abets in its commission, and whether present or absent, *and a person who* directly or indirectly counsels, *commands*, induces or procures another to commit a crime” (*People v Farmer*, 196 NY 65, 76 [1909] [Bartlett, J., dissenting, quoting Penal Code of 1907 § 29] [emphasis added]; *see also Couser*, 94 NY2d at 637).¹² Almost 100 years ago, then, a commander was not only just as culpable as a person who directly committed an offense, but also was indeed a principal.

In a related vein, *Schad* is instructive in its observation that if two possibilities for proving an element exist, an appropriate inquiry is whether a moral equivalence between the two could reasonably be found (501 US at 644). If so, it is enough to rule out the argument that any hypothetical “moral disparity bars treating them as alternative means to satisfy” the element of a

12. We reject as meritless defendant’s contention that the trial court erred in instructing the jury on the definition of “command.” Indeed, in *Couser*, we cited with approval the trial court’s definition in *Mateo* (94 NY2d at 636-637).

single offense (*id.*). We have a long history of treating actual killers and commanders as moral equivalents (*see Farmer*, 196 NY at 70-71).¹³

Defendant nevertheless contends that he could have been guilty of only one of the two theories—shooting or commanding—and therefore a different result should obtain. Indeed, he argues that the prosecutor must prove to the jury’s satisfaction precisely what occurred as a matter of historical fact. This is so, he claims, for any issue that is critical to the main dispute in the case.

As we sift carefully through the evidence, it becomes apparent that defendant makes much of what is essentially a preliminary fact. “Plainly there is no general requirement that the jury reach agreement on the preliminary factual issues which underlie the verdict” (*Schad*, 501 US at 632, quoting *McKoy v North Carolina*, 494 US 433, 449 [1990] [Blackmun, J., concurring]). Defendant certainly kidnapped the victim—that is undisputed. He took on the mental state required: it was his decision to execute Matos. Thus, whether he personally pointed the gun at the victim’s head and pulled the trigger, or whether, handing the gun to Monica, he gave her an order and stood near as she carried it out, the two choices for the jury were not so different that they amounted to any more than alternatives to a common end. Indeed, Justice Souter wrote that in analogous circumstances, “[w]e have never suggested that in returning general verdicts . . . the jurors should be required to agree upon a single means of commission, any more than the indictments were required to specify one alone” (501 US at 631).

We have, more recently, had occasion to employ this principle in similar circumstances. For example, in *People v Rivera* (84 NY2d 766 [1995]), the defendant was indicted for second degree murder as a principal. Concluding there was no bar to the People’s assertion at trial that defendant acted as an accomplice, we held that the elements of the crime were the same,

13. *Schad* itself cited *People v Sullivan* (173 NY 122 [1903]) as the leading case for the proposition that the jury need not necessarily concur in a single view of the transaction, in order to reach a verdict (501 US at 641). There, a single crime was charged in the indictment, first degree murder, under then-existing Penal Code § 183. As the Court explained, “[i]f the conclusion may be justified upon either of two interpretations of the evidence, the verdict cannot be impeached by showing that a part of the jury proceeded upon one interpretation and part upon the other” (173 NY at 127, quoting *Murray v New York Life Ins. Co.*, 96 NY 614, 622 [1884]).

whether the defendant acted in either role (*id.* at 771). The facts showed that the victim was shot once and died from the wound. Witnesses saw defendant and two cohorts, all of whom had guns drawn, near the victim. The victim looked at defendant and said, “[y]ou shot me” before falling down (*id.* at 768). Thus, the People were entitled to prove that defendant intended the victim’s death, and caused the death either by shooting his gun or by aiding the shooter. To convict, the People had to prove each element of the crime, and defendant’s liability was the same whether he acted as either a principal or an accessory (*id.* at 770-771).

Similarly, in *People v Russell* (91 NY2d 280, 288-290 [1998]), we concluded that the prosecution was not required to prove which of the defendants fired the lone bullet that killed the victim, when the evidence established that each defendant, embroiled in a gun battle with the others, intentionally aided one another in a mutual combat that caused the death of an innocent bystander. Here, too, the prosecution need not have shown which of the two perpetrators actually fired the fatal shot.¹⁴

C. The Weight of the Evidence of First Degree Felony Murder

Defendant claims that his conviction for first degree felony murder based on either the shooter or the commander theory was against the weight of the evidence because the evidence proved, at most, that he was an ordinary accomplice and was guilty of second degree intentional murder (*see* Penal Law § 125.25 [1]; § 20.00).

[4] The standard of appellate review of the legal sufficiency of the evidence in a criminal trial, of course, is “whether there is any valid line of reasoning and permissible inferences which could lead a rational person to the conclusion reached by the jury on the basis of the evidence at trial” (*Cahill*, 2 NY3d at 57, quoting *People v Bleakley*, 69 NY2d 490, 495 [1987]). Viewing the evidence in a light most favorable to the People, as we must (*People v Cabey*, 85 NY2d 417, 420 [1995]), we conclude that there is certainly a valid line of reasoning by which a rational

14. In light of this conclusion, we also reject defendant’s contention that the jury verdict was unreliable in that it did not enable him to know which theory to mitigate at sentencing.

person could have reached the conclusion of the jury and that defendant's guilt was established beyond a reasonable doubt.¹⁵

In this capital case, in which a death sentence has been imposed, moreover, we are constitutionally required to review the facts (NY Const, art VI, §§ 3, 5; *People v Davis*, 43 NY2d 17, 36 [1977]). Our inquiry here is distinct from our traditional appellate review for legal sufficiency.

We recently reiterated that “weight of the evidence review recognizes that ‘[e]ven if all the elements and necessary findings are supported by some credible evidence, the court must examine the evidence further’ ” (*Cahill*, 2 NY3d at 57, quoting *Bleakley*, 69 NY2d at 495). Thus, “[i]f based on all the credible evidence a different finding would not have been unreasonable, then the appellate court must, like the trier of fact below, ‘weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony.’ If it appears that the trier of fact has failed to give the evidence the weight it should be accorded, then the appellate court may set aside the verdict” (69 NY2d at 495 [internal citations omitted], quoting *People ex rel. MacCracken v Miller*, 291 NY 55, 62 [1943]; *Cahill*, 2 NY3d at 58). Of course, “[g]reat deference is accorded to the fact-finder’s opportunity to view the witnesses, hear the testimony and observe demeanor” (69 NY2d at 495). When “an appellate court performs weight of the evidence review, it sits, in effect, as a ‘thirteenth juror’ ” (*Cahill*, 2 NY3d at 58, quoting *Tibbs v Florida*, 457 US 31, 42 [1982]). We must be sure that “the evidence is of such weight and credibility as to convince us that the jury was justified in finding the defendant guilty beyond a reasonable doubt” (*Cahill*, 2 NY3d at 58, quoting *People v Crum*, 272 NY 348, 350 [1936]).

With these standards in mind, we conclude that the evidence amply supports the first degree murder conviction. There is no question that defendant engineered and carried out the armed kidnapping of Matos, that defendant decided to kill him, handcuffed him, led him down to the basement, and that Matos died of an intentional gunshot wound to the head. No matter which version of defendant’s story the jury credited, it was justified in finding that defendant was squarely in charge of the kidnapping and shooting of Matos.

15. Contrary to defendant’s assertions, the reasonable doubt charge here conveyed the proper standard.

(i.) The Command Theory

Despite defendant's argument that there was no direct evidence that he told Monica to kill Matos, the circumstantial evidence strongly supports the conclusion that he did. On the day of Matos' murder, defendant was again looking for Janette, with Monica and Victor under his sway. Defendant ordered Monica to turn the car around to confront Matos, he directed her to stop the car and he forced Matos into the car at gunpoint. It was defendant who took Matos into the bathroom and handcuffed him. By then, defendant had made a decision to take "the kid" down to the basement to execute him. Defendant told police that he made this decision and Monica and Victor were following his orders.

Defendant told Sheridan, "I had already made up my mind that I was going to kill him." Defendant stated that he gave Monica the gun, and stood not far from her as she pulled the trigger. Observing that Matos was still alive, defendant placed a plastic bag over his head, further demonstrating his intent.¹⁶ The only reasonable inference from these facts is that by word or deed, when he handed Monica the gun, he authoritatively directed her to pull the trigger (*see Couser*, 94 NY2d at 637).

After the shooting, defendant remained in charge. He explained to Sheridan that he set the alarm for 2:30 A.M. so that, after "partying," they could get up and get rid of the body. He ordered Monica and Victor to go downstairs and wrap the body,¹⁷ he told Victor to help them lift the body into the car, he made Victor sit in the back of the car with the corpse (because there was no room in the front seat) and he instructed Monica to drive to an alley near his old job to dispose of the body. When confronted by police with the theory that Monica was the shooter, defendant claimed surprise that Monica shot Matos in

16. After the jury sent a note asking for the medical examiner's testimony on the cause of death, defendant asked the court to "instruct the jury that the indictment has charged [defendant] with causing the death by shooting or commanding another to shoot the victim with a gun and that is the only cause of death that has been alleged." On appeal, defendant contends that the court was required to instruct the jury not to consider a suffocation theory of murder. This claim is not preserved, and in any event, without merit. The evidence in the case did not support the suffocation theory, nor was it charged or argued by the prosecutor. The court's main charge referred to "shoot" or "shooting" no less than nine times.

17. In his statements to police, defendant described the materials used to wrap the body, including curtains and a green blanket. Investigators corroborated these details when the body was found.

the head. Sheridan later explained that defendant never said he was surprised that Matos was killed. It was reasonable to infer that defendant was surprised that Monica, whom he scorned, carried out the order. He acknowledged in his written statement that everything she did was “out of fear of me and what I would do.”

Throughout, defendant maintained his power over the other participants. The jury could easily have inferred that he gave an order to Monica to shoot Matos. The jury gave the evidence its proper weight and we will not disturb that determination.

(ii.) The Shooter Theory

Defendant’s written statement to police provided the jury with solid evidence to conclude that he pulled the trigger:

“I handcuffed him behind his back and put him into the bathroom. Me and Monica were trying to figure out what we were going to do with him. I walked him down into the basement. I had already made up my mind that I was going to kill him. In the basement I put a dark handkerchief over his eyes. I shot the dude in the left side of his head as he stood there. The dude fell on the floor. The dude wasn’t dead so I put a plastic garbage bag over his head. He was alive for about 2½ hours. The dude just laid there on the floor making sucking noises. After awhile I checked on him and saw that he was dead.”

This was a forceful admission leading to the conclusion that defendant shot Matos. True, defendant appeared confused when police asked him about the blindfold over Matos’ eyes. Defendant said there was “nothing over the kid’s eyes.” Of course, defendant admitted covering Matos’ head with a plastic bag after the shooting, and never retracted that portion of his statement, so he must have seen the blindfold, which was shot through and bloodied. The jury may have inferred that he had forgotten about it by the time police asked about it.

We conclude the jury was justified in finding beyond a reasonable doubt that defendant, having decided to execute the victim, directed Monica to shoot Matos or shot the victim himself, and in rejecting his claim that he was merely guilty of second degree murder as an accomplice.

IV.

Defendant maintains that his confession was involuntary and that the introduction, during re-cross-examination of a prosecu-

tion witness, of part of it—statements about three other murders—was reversible error. We hold that the confession was voluntary and that, through his trial strategy, defendant opened the door to admission of his statements on other homicides.

A. The Voluntariness of the Confession

Defendant was arrested on the afternoon of November 6, 1996 based on leads Monica gave to police.¹⁸ He contends that his will was overborne by the investigators who questioned him, because they allegedly led him to believe that he was receiving a compelling benefit—lenient treatment for family members—in exchange for his confession. This claim is without merit.

Following a *Huntley* hearing, the court determined that:

“[D]efendant was properly advised of his *Miranda* warnings and made a knowing, voluntary and intelligent waiver of those warnings before speaking with the officers. During the ensuing hours of interviews, the defendant made numerous inculpatory, spontaneous, oral and written statements to the police concerning the events under investigation. There is no evidence that the police in any way coerced statements made by the defendant, nor induced them by any threats or promises, implied or otherwise, concerning either the charges in this case against the defendant or charges, real or imagined, against his family. The People met their burden in establishing the voluntariness of the statements of the defendant.”

An extrajudicial confession is inadmissible against an accused if it is involuntarily made (CPL 60.45 [1]; *People v Anderson*, 42 NY2d 35, 37 [1977]). A confession is “involuntarily made” when it is obtained by a public servant engaged in law enforcement activity by means of any promise or statement of fact which creates a substantial risk that the defendant might falsely incriminate himself (CPL 60.45 [2] [b] [i]).

To determine voluntariness, courts review all of the surrounding circumstances to see whether the defendant’s will has been overborne (*Anderson*, 42 NY2d at 38; *Arizona v Fulminante*, 499 US 279, 285-286 [1991]). Of course, “coercive police activity is a necessary predicate to the finding that a confession is not ‘voluntary’ within the meaning of the Due Process Clause of the

18. We reject defendant’s claim that information provided by an informant in a search warrant application was unreliable.

Fourteenth Amendment” (*Colorado v Connelly*, 479 US 157, 167 [1986]). In our analysis, the hearing court’s factual determinations, resting largely upon its assessment of the credibility of the testifying officers, are entitled to deference (see *People v Prochilo*, 41 NY2d 759, 761 [1977]). In a capital case, moreover, our obligation to weigh the evidence and determine whether the jury was justified in its conclusion beyond a reasonable doubt “extends to the hearing court’s finding as to the voluntariness of the confessions” (*People v Carbonaro*, 21 NY2d 271, 274 [1967]). These findings must be reviewed “by the same standards applicable to a verdict of guilt” (*id.*, quoting *People v Leonti*, 18 NY2d 384, 389 [1966]).

[5] Defendant concedes that the hearing court made “no findings adverse” to him. Under our independent factual review power, we find ample evidentiary support for the hearing court’s factual findings. A review of the circumstances here, moreover, shows that defendant’s confession was voluntary, and that coercive police activity did not occur.

Defendant was placed in an interview room just after 5:00 P.M. and immediately began asking to speak to the District Attorney, saying he only wanted to “deal with the head man.” He told another investigator, who was passing by in the hall, to send in the person handling his case while he still felt like talking. As soon as the homicide investigators entered the interview room at about 5:45 P.M. and introduced themselves, defendant announced that he had matters he wanted to clear up. Investigator Sheridan told defendant that first, he had to read him his rights. Defendant insisted he would tell them everything they wanted to know, but he wanted his family released. Investigator Sheridan gave defendant his *Miranda* warnings and defendant waived his rights.

Defendant immediately began talking. Before the investigator could put the *Miranda* card away, defendant stated that he would tell Investigator Sheridan what he wanted to hear, but repeated his demands. Sheridan explained, “I have to know what it is that you want to tell me” and defendant responded, “I will tell you about the homicides.” When Sheridan asked for more information, defendant said, “I can tell you about Johvanny.” Sheridan asked whether defendant killed Johvanny

(Diaz),¹⁹ and defendant admitted that he did, and again repeated that he wanted his family released. Defendant then admitted to killing “a black guy near a milk plant” (Peter Holley) and to killing Matos.

Sheridan then told defendant that he would check on the status of his family members, but he at no time promised defendant that they would receive lenient treatment if defendant confessed. Indeed, defendant confessed to the murders without any prompting from the investigator other than requests for more information. As is obvious from the exchanges, defendant believed that he was in a position to influence the release of his family, acting under a self-created impulse to tell the police “everything” in order to achieve his own objective (*see generally People v Gonzales*, 75 NY2d 938, 940 [1990]).

Now, defendant claims that police led him to believe that they would limit the charges against his young brother, Victor, in exchange for his confession. By the point at which Victor’s charges were discussed, however, defendant had already confessed to the four murders and to sole possession of the gun. The investigators did not promise that they would fulfill his desire; to the contrary, they informed defendant that his brother would *not* be released. Nor, despite defendant’s claims, was there a true quid pro quo involving the dropping of gun charges against defendant’s mother and other relatives. Once defendant acknowledged that the gun was his, police released those relatives and informed defendant that they had been set free. This information did not render involuntary defendant’s subsequent elaboration about the murders.

Defendant also maintains that the investigators should have been required to tell him that his family’s fate was unrelated to whether he confessed, claiming they actively exploited his apprehension about his relatives. Yet the investigators were not required to dissuade defendant from making incriminating statements, or disabuse him of his fantasy that he could control the circumstances of the interrogation and win the release of his family. We find the reasoning of the Appellate Division in *People v Johnson* persuasive: “[i]t is not an improper tactic for police to capitalize on a defendant’s sense of shame or reluctance to involve his family in a pending investigation absent circumstances which create a substantial risk that a defendant might

19. During the interrogation, defendant admitted his involvement in the double homicide of Diaz and Joangel Toro.

falsely incriminate himself” (177 AD2d 791, 792 [3d Dept 1991] [internal citation omitted]).

A comparison with the circumstances underlying our decision in *Anderson* (42 NY2d 35 [1977]) is instructive. In *Anderson*, defendant was held for more than 19 hours without probable cause. He was deprived of food and sleep for over 30 hours, questioned by eight or nine officers operating in teams, isolated from friends and family during the entire period, and was not told of his right to counsel until the interrogation had been underway for more than 13 hours (42 NY2d at 39-41). By contrast, in this case, police had ample cause to arrest defendant for the attack on McWilliams. Once in custody, defendant was given his *Miranda* warnings and waived them. Police offered defendant a cheeseburger, candy, water, coffee and cigarettes, as well as medical treatment. He insisted that he wanted to clear up the crimes, not go to a hospital. Defendant was questioned by two investigators. He was allowed two meetings with Victor and a meeting with Monica. He also was permitted a phone call to his mother, to verify that she had returned home. On this record, there is no evidence that defendant’s will was overborne or his capacity for self-determination impaired, and every indication that he spontaneously, aggressively and voluntarily confessed to suit his own purposes.²⁰

B. The Admission of the Statements about Other Homicides

Defendant claims on appeal that he was deprived of a fair trial through the admission, following re-cross-examination of Sheridan, of his statements regarding other homicides.²¹ In their direct case, the People initially introduced defendant’s statements pertaining only to the Matos killing and the Avenue D incidents. The trial court ultimately permitted the People to introduce defendant’s entire confession, including the statements about other homicides, to rebut the claim that defendant

20. At trial, the People must prove the voluntariness of a confession beyond a reasonable doubt (*Anderson*, 42 NY2d at 38-39) when that issue is properly raised by the defense. For voluntariness to be submitted to the jury, there must be a proper objection and an offer of evidence sufficient to raise a factual dispute (*People v Cefaro*, 23 NY2d 283, 286-287 [1968]). Defendant submitted a written request to charge involuntariness conditioned upon his own introduction of evidence showing involuntariness. He subsequently withdrew his request on the record, as a matter of strategy, and never renewed it at the charge conference. Thus, he failed to place the voluntariness question before the jury (*id.* at 288-289).

21. Defendant couched his objection to the trial court solely in terms of an evidentiary error.

falsely confessed in an unreliable interrogation to killing Matos to cover for his wife. The trial court explained that the jury needed to hear the entire confession to discern “the truthfulness of the [Matos] statement and the motivation for the defendant to give the various versions” of it. In our view, defendant, in the particular circumstances of this case, opened the door to this evidence.²²

(i.) Pretrial Motion Practice

On July 31, 1998, more than three months before trial, the prosecution informed defense counsel by letter that it did not intend to offer testimony in its direct case regarding other murders “unless the door is opened through argument, cross-examination or presentation of evidence by the defendant.” The People warned that if defendant raised voluntariness claims “which in any way relate to what took place during the times the defendant was making statements regarding the Diaz, Toro or Holl[e]y murders,” they would seek to present rebuttal evidence concerning the interrogation as a whole.

In an August 10, 1998 letter in reply, defense counsel acknowledged:

“We recognize that redaction of evidence of the prior homicides necessarily creates gaps in the time-line of the interrogation. . . . Please be assured that we will not exploit these gaps by arguing to the jury that these gaps reflect the time when impermissible pressure was brought to bear upon [defendant].”

On August 31, 1998, defendant moved for a pretrial order redacting from his confession any reference to the other homicides. The People responded that for the first hour and three quarters of the interrogation, defendant spoke about four murders intertwined with his repeated request that police release his family. The People offered to structure their direct examination to eliminate all conversations regarding “the four bodies and the defendant’s demands to have his family released.” The prosecution again warned defendant against opening the door to his admissions through, for example, questions about time gaps in the confession or alleged promises made by police about his family’s release. The prosecution maintained that it would be unfair to require the investigators to answer

22. Defendant’s other claims of evidentiary error, pertaining to the admission of the Avenue D incidents and his abuse of Janette Sanchez, and the exclusion of a taped telephone call to his mother, are also without merit.

questions about any alleged promises without being able to explain to the jury “the entire substance of that conversation.”

After extensive oral argument, the court told defense counsel that many issues in the case could open the door to the full confession. To avoid that outcome, the trial court offered defense counsel the opportunity to submit a “wish list” of suggested redactions from the confession. The court additionally invited defense counsel to submit proposed questions for cross-examination, so that the court could, in advance, point out areas that might be in the danger zone. Plainly attentive to the potential for prejudice to defendant, the court stressed that the other statements could be relevant to issues in the case, requiring examination of the “prejudicial or probative value of the statements themselves.”

Despite the trial judge’s suggestion, defendant chose not to provide a list of proposed redactions. Thus, without benefit of a proposal from defense counsel, the court issued its pretrial order:

“The People . . . point out that during the time period that Inv. Sheridan and Sgt. Gropp spoke to the defendant, there was intertwined conversation regarding other issues dealing with the release of his family. . . . The prosecution, however, is concerned that the period of time taken up regarding the conversations on the Diaz, Toro and Holley murders may be raised by the defense on the issue of voluntariness on the Matos-Rodri[g]uez murder, which is the subject of this trial. The People wish to reserve the right to question the investigators on re-direct examination should the defense ‘open the door’ to an enlarged area of questioning.

“The Court is sensitive to the People’s request but feels there is no way to make a definitive order in advance of the trial on the People’s request. Therefore, it is the direction of the Court that the People should structure their direct examination regarding the conversations between the defendant and the police from 5:45 p.m. to 7:30 p.m. on November 7, 1996 [*sic*] in a way in which all conversations regarding references to ‘4 bodies’ and the defendant’s demand to have his family released are eliminated. The Court will allow leeway to the pros-

ecution by way of leading questions on these issues. The Court will preserve the People's right to challenge the defense cross-examination and to raise the issue as to whether the defendant has raised any issue as to the voluntariness of the statement relating to what took place during the times the defendant was making statements regarding the Diaz, Toro, and Holley murders."²³

(ii.) The Defense Strategy

Despite knowledge that the People were prohibited from eliciting the chronology of the confession or defendant's demands to have his family released, and despite the trial court's repeated warning that the preclusion order would be revisited based on what ensued at trial, the defense opened with its own theory explaining the Matos statement: that defendant was motivated to confess in an "obvious and elaborate ritual to cover for his wife." In the opening, defense counsel told the jury that defendant's statement "was nothing less than Mr. Mateo taking everything his wife did onto his shoulders." Disregarding his own earlier assurance that he would not exploit the time gaps, counsel also urged the jurors to "pay close attention to the circumstances and chronology of the statements."

Through the cross-examination of police witnesses, defendant's strategy emerged. Questions about the extent of his leg injury, the timing of events in the interrogation and his concern for his family (which the People had been barred from explaining) began painting a picture that defendant, in significant pain throughout a very protracted nighttime interrogation, confessed to Matos' murder in an unreliable manner. By contrast Sheridan, the People's main witness on the Matos murder, testified in the truncated fashion directed by the pretrial order.

Sheridan testified that defendant first admitted to shooting Matos himself, then changed his story and claimed Monica did it, then went back and forth several times, and even claimed that Monica did it, but he would take the blame because he was a "king" and wanted the death penalty. After these various oral

23. In his dissent, Judge G.B. Smith acknowledges the trial court's conclusion that "evidence of the other murder confessions was relevant to address issues raised about the voluntariness and the truthfulness of defendant's statements, especially as they related to promises made by the police and their negotiations with the defendant" (Smith dissent at 437). While Judge Smith disagrees with that conclusion, the trial court manifestly had a reason for drawing it other than to "demonstrate that the defendant was predisposed to commit the crime charged" (Smith dissent at 437).

admissions, defendant again asserted in his written statement that he pulled the trigger. By contrast, he never wavered from his assertions that he decided to execute Matos and that Monica was following his orders.

Sheridan also explained that after he completed taking the Matos statements, his partner Sergeant Gropp took defendant's written statements about Avenue D. When the People finished their direct examination of Sheridan, the defense sought rulings from the trial court about eight areas of cross-examination of the investigator concerning: 1) the time gaps in the interrogation, 2) alleged promises that defendant's family would be released, 3) alleged promises that police would reduce Victor's charges, 4) alleged promises about Monica's charges, 5) defendant's concern for his family's safety, 6) the substance of what defendant learned about Monica's statements, 7) the substance of defendant's taped telephone call to his mother (in which he said he "took four bodies"), and 8) defendant's physical condition during the interrogation.

The trial court advised defense counsel that, in light of this plan of attack:

"I think that the redactions that have been agreed to up to this point by the People on the direct would not continue through the cross-examination. If I'm going to be telling the jury that in evaluating the testimony of Investigator Sheridan concerning the statement attributed to the defendant, one of the things I'd be telling them is they should be looking at the totality of the circumstances, everything that happened. And in this case, . . . the picture is a picture of a defendant who is attempting to take control of the interview process and asserting very vigorously conditions that he requires as conditions precedent to his talking to the officers from the moment of calling Investigator Sennett and telling him to get somebody in there to talk to him, setting conditions for his family's release, setting conditions for what charges would be placed against his family, specifically Victor Cordero."

The court agreed to allow defense counsel to ask general questions about the time gaps and defendant's injury, but again warned that if counsel strayed into the areas of voluntariness and reliability, then the door would open to the entire confession. Defendant's demands for the release of his family, the

court determined, were ongoing negotiations and their unveiling would open the door to the People's rebuttal. Defense counsel could ask general questions about Victor's role at Avenue D, but any questions about negotiations about either Victor's or Monica's charges would open the door to rebuttal. Indeed, the court reminded defense counsel that Monica had told investigators that defendant was responsible for "several other bodies."

Inquiry about defendant's meetings with Victor and Monica, the court concluded, would also require explaining defendant's motivation for making admissions, and the jury would then need to consider the full circumstances of the confession to evaluate voluntariness and reliability.²⁴ The court again warned that if defense counsel was not careful, "the doors could fling open."

On cross-examination, defense counsel quickly returned to the themes of the time gaps and defendant's injury, reiterating that the interview began at 5:45 P.M., that a meeting with Victor took place at 8:00 P.M., and a second meeting with him was "much, much later," and that defendant was limping. Cross-examination was then interrupted because defendant developed the flu. When the trial resumed, defense counsel asked for three more rulings. Specifically, counsel asked if he could cross-examine the investigator about: 1) defendant's meeting with Monica, 2) defendant's second meeting with Victor and 3) the phone call. The court repeated that the phone call was still off limits because of its reference to "four bodies," but determined that the defense could ask generally about the meeting with Monica, although not its substance. The defense withdrew the request to ask about the second meeting with Victor, because during that conversation, defendant told Victor that he would take the rap for "these murders." Yet immediately after those rulings, defense counsel asked Sheridan about the second meeting with Victor, and whether defendant had confided that "this stemmed from his personal relationship with Janette and Monica; is that correct? Was there anything of that nature discussed?" The investigator answered, "I don't believe so."

The defense also questioned Sheridan whether the written Matos statement was "typed out in a single session" or whether

24. Defendant's telephone call to his mother was not part of his confession, but occurred afterward. The trial court precluded cross-examination about it because of defendant's admission to "four bodies."

there was a “break” before it was finished. Counsel persisted, asking, “But the narrative was done and then you asked him is there anything else you want to say? And then he added a final sentence or two?” The investigator responded, “Yes. That’s it.” Defense counsel additionally established that defendant added a second, handwritten addendum to that statement at approximately 2:00 A.M., more than eight hours after the interrogation began. He further elicited that defendant expressed concern for his family members “throughout” the interrogation.

Defense counsel completed cross-examination and offered to withdraw his request for a voluntariness instruction after the People argued that any such request would “open up the questioning of Investigator Sheridan to the entire contents of the interview” on redirect. The court asked defense counsel for clarification, noting that it had:

“some concerns about the questions that have been asked up to this point about the physical condition of the defendant, because it’s not asked presumably just to be out there. It’s asked to perhaps give the impression to the jury that Mr. Mateo was under such a physical disability because of the wound to his leg that he spoke with the officers. And certainly the time of the interview is left hanging here. The time of the statement being signed. And all that that [*sic*] goes to it. I think we’re asking the jury to speculate.”

Defense counsel claimed that he had “assiduously avoided reference to physical condition in my cross-examination” of Sheridan. The court, however, pointed out that “[e]verybody that had a passing view of your client was asked if he was limping or seemed to be bothered by a wounded leg.” Defense counsel then promised not to “get into the classic voluntariness issues.”

As for a truthfulness charge, the court observed:

“This issue about truthfulness of the statement, reliability of the statement, any issue that could be phrased to the jury as asking them to, members of the jury, try to read between the lines about what’s going on here, those are issues that I’m very concerned about, and I guess I want to alert all of you to that. If the defense is really withdrawing this

and that these issues are not going to be asked of Investigator Sheridan or any other officer, then I would expect they not be referenced either. Is that clear to everybody?

“[THE PEOPLE]: Yes, Your Honor.

“[DEFENSE COUNSEL]: Yes, Your Honor.”

On redirect, the prosecutor posed a few questions about defendant ordering Monica and Victor to follow his commands, and about the decision to kill Matos. On re-cross, defense counsel asked about defendant’s assertion that he was “going to take the []rap for this or take the blame for this.” Counsel asked whether Sheridan “pressed him on the matter” and finally, asked whether defendant stated it was “because he wanted [the] death penalty.” The prosecutor objected on the ground that the questions were beyond the scope of the redirect.

The court asked counsel to approach, and after a 15-minute recess in which it reviewed Sheridan’s report on the interrogation, observed:

“I think all of this goes to truthfulness of the statement and negotiations on the statement. If you are going to be arguing that to the jury, on the issue of whether the statement itself is truthful and the motivation for changes, this is what it’s about it seems to me. It is so interwoven, at least the setting of this police report, the way that it’s couched in this police report, it starts out from the moment the rights are read that Mr. Mateo is setting the agenda for how the statement is going to be taken, under what conditions, and even what subjects are going to be covered. I can understand, based on what your defense is—and I guess this is one of the things that we all talked about at various stages in the case—that we wouldn’t know until we were here completely what tenor the case would take. I understand also why you haven’t, up to this point, up to the requests for the charge, really indicated what it was that you were going to be saying at the trial, but now we are here and if there is an issue about the truthfulness of the statement and the motivation for the defendant to give the various versions that have been described by the witness, then I think it all comes in, the entire testimony about the other homicides, the contacts with the family, the belief

that others may have been informing on him, I think that all comes in. To say that it doesn't, I think, again, asks the jury to determine the truthfulness of the statement without knowing what all the circumstances surrounding the taking of the statement were."

The court concluded that defendant's motivation for making the written statement "involved other criminal acts that he faced" and was interwoven with his desire to see that members of his family were released from police custody.²⁵ Aware of the potential prejudice to defendant, the court acknowledged that it would:

"inform the jury that the information concerning other homicides is not offered as an indication that the defendant committed this homicide for which he is charged or any of the crimes for which he is charged, but it's offered on the issue of the truthfulness of the statement and what motivation, if any, Mr. Mateo may have had to alter his description of the events."

Sheridan then testified concerning defendant's full confession, followed by an instruction warning the jury that the testimony was admitted for "a very limited purpose." The trial judge explained that the statements about other homicides were not to be considered as any indication of defendant's propensity for committing crimes. Rather, the court charged, the jury should consider the probability or improbability of the Matos statements and what motivation, if any, defendant had to make them, and should reflect on the interrogation as a whole to assess the truthfulness of the Matos statements. In its final charge, the court repeated these instructions to the jury.

(iii.) Analysis

It is well settled that evidence is relevant if it has any "tendency in reason to prove any material fact" (*People v Alvino*, 71 NY2d 233, 241 [1987]). All relevant evidence is, moreover, admissible at trial unless barred by some exclusionary rule. Even where relevant evidence is admissible, it may still be excluded in the exercise of the trial court's discretion if its

25. At that point in the proceedings, defendant's belated offer to withdraw his request for a truthfulness charge on the question of defendant's motives for confessing, after sharply focusing on that question, was an empty one, as the People argued and the trial court concluded.

probative value is substantially outweighed by the potential for prejudice (*People v Scarola*, 71 NY2d 769, 777 [1988]). When a party “opens the door” during cross-examination to excluded evidence, the opponent may seek to admit the excluded evidence in order to explain, clarify and fully elicit the question that has been only partially exposed on cross-examination (see e.g. *People v Rojas*, 97 NY2d 32 [2001]; *People v Regina*, 19 NY2d 65, 78 [1966]).²⁶ “The ‘opening the door’ theory must necessarily be approached on a case-by-case basis” (*People v Melendez*, 55 NY2d 445, 452 [1982]).

There is no doubt that this interrogation, as a whole, was probative of a material issue in the case—defendant’s motive for confessing to the Matos murder—and could aid the jury in assessing the truthfulness of that portion of defendant’s confession. There is also no doubt that it was defendant himself who made his motive for confessing an issue in this case. Eschewing the court’s offer before trial commenced to make selective redactions from the statements, and to pre-approve areas for cross-examination, the defense knowingly embarked on a dangerous strategy that during trial was periodically revisited by the court and the parties, and ultimately went too far.

The defense, in its opening statement, argued that the jury should acquit defendant of first degree murder because he confessed, in a lie, to cover for his wife. Four areas of testimony then became troubling to the trial judge. First, after Sheridan’s direct testimony, the jury knew simply that defendant confessed to the killing of Matos. What was omitted were defendant’s stage-setting declarations that he would give the police “everything” in exchange for what he wanted. Second, the jury was left with the impression that defendant was interrogated

26. While the Smith dissent rests entirely on *People v Molineux* (168 NY 264 [1901]), that was never the argument of the defense at trial, or its objection to admission of the statements, or the basis for the trial court’s ruling. Indeed, defendant’s mistrial motion, made several days after the statements were received in evidence, recognized that the ruling was based solely on the defense having opened the door. We note, moreover, that the evidentiary rule concerning “door-opening” is at least as venerable as the rule excluding prior bad acts (see e.g. *People v Buchanan*, 145 NY 1, 23-24 [1895] [acknowledging defendant opened the door, in first degree murder prosecution, to hearsay conversation between witness and coroner to rebut suggested inference concerning the motives of the testifying witness]).

Nor is defendant’s current contention that the trial court dropped a “surprise, mid-trial decision” on defense counsel supported by the record. From day one, counsel was repeatedly warned that overstepping the preclusion order could open the door to defendant’s full confession.

from 5:45 P.M. to 2:00 A.M. concerning one murder and the Avenue D incidents. During that time, he actually spoke at length about four murders as well as two brutal home invasions at Avenue D, intertwined with demands for the release of his family.

Third, as the trial court emphasized, the jury heard repeatedly that defendant had a bandaged leg wound and was limping. What was beyond the jury's knowledge was the fact that, despite his injury, defendant refused offers of medical treatment because he insisted on first clearing up the four homicides.²⁷ Finally, having learned in the opening that defendant was motivated to confess in an "obvious and elaborate ritual to cover for his wife," the jury heard that defendant and Monica were involved in one murder. It did not know that defendant also confessed to three murders having nothing to do with Monica. Nor did it know that Sheridan told defendant early on that Monica was facing serious charges and defendant did not care that she "had been caught" and would not be released.

Compounding the problem of the distorted picture before the jury was the defense tactic of claiming it had no intention of opening the door, then persistently nudging it ajar. Incrementally, it became apparent to the trial court that, for the jury to assess defendant's claim that his admission to the murder of Matos was a lie, it had to view that statement in its extraordi-

27. True, Sheridan had testified on the People's direct case that defendant's leg was wounded and he was offered medical treatment but refused. The trial court ordered limited cross-examination about the injury:

"If the testimony and evidence of the physical condition of the defendant is argued to the jury as being relevant on the issue of voluntariness of the statement and reliability of the statement, then clearly evidence of the defendant's ability to assert himself, to control the circumstances or attempt to control the circumstances under which the statements were made, to control the circumstances under which the interrogation took place, setting the conditions for that interrogation, for verification of those conditions that had been agreed upon, all those go to his state of mind, his ability to think, perceive, react, and as such all bear on the issue of reliability and voluntariness."

We disagree that, in these circumstances, we are creating a new rule that "the People can circumvent an order excluding evidence of prior bad acts by introducing evidence that, if introduced by the defendant would open the door to those prior bad acts" (Smith dissent at 445). Rather, the defense was explicitly told that it could ask general questions about the injury but if it went further, creating the impression that the injury rendered the confession unreliable, it did so upon peril of opening the door to proof of what actually happened during the interrogation. As the trial court concluded, defense counsel's repeated emphasis on the injury, as part of the false picture before the jury, crossed the line that had been drawn.

nary context. The final, withdrawn defense question—whether defendant claimed that he confessed because he wanted the death penalty—underscored for the court and highlighted for the jury the enigma of defendant’s motivation for confessing to the Matos murder: was it to cover for Monica, to get the death penalty, or something else?²⁸

[6] As the court well knew, but the jury did not, the People had been precluded from presenting defendant’s actual motivation for confessing—his belief that he could set the terms of his interrogation, claim responsibility for four murders and win his family’s release. The defense cannot, on one hand, claim that defendant is innocent of first degree murder and lied to cover for his wife, and on the other, abuse the preclusion order and bar the People from refuting that claim. In effect, “the defense converted the shield of the preclusion order into a sword by arguing that the People should not be allowed to supply” defendant’s true motive for confessing (*Rojas*, 97 NY2d at 39). In these unusual circumstances, the jury was entitled to decide whether the defense claims rang true in context.

At bottom, the Court divides over what amounts to a fundamental disagreement about the trial record in this case. For an appellate court, the best evidence of who said what is in the transcript and we therefore have quoted extensively from it in an effort to show how the issue regarding defendant’s statements developed during trial—the pivotal inquiry. One prominent example of our difference is the claim that it was the People, and not the defense, who “opened the door” (Smith dissent at 440, 441). In fact, Sheridan testified on direct on November 16 and 17, 1998 (record at 14626-14702), and we are unable to find—*until defendant’s cross-examination*—any testimony bringing out the fact that defendant confessed in an eight-hour interrogation, about the early morning hour when the interview ended, or about its chronology.

The trial court, of course, observed this evolution of the issue firsthand before making its ultimate ruling that the potential

28. Judge Smith maintains that “[t]he jury was not being called upon to decide what would motivate defendant to offer any confession at all. The defense was trying to persuade the jury only that the oral confession rather than the written one was the true account of the killing” (Smith dissent at 450). Yet in claiming the written statement a lie, defendant explained it away in another lie—that he confessed to cover for Monica. The jury was thus called upon by defendant to examine why he confessed and the People were permitted to answer that question with proof that he admitted not one but four murders, not for Monica, but to achieve the release of his family.

for prejudice to defendant did not substantially outweigh the probative value of the full confession. This ruling was made not sua sponte, or in a vacuum, but after repeated admonitions to defense counsel, several quoted verbatim in this writing. To diminish the potential for prejudice, moreover, the court instructed the jury concerning the limited purpose for which the clarifying evidence was being admitted. Unlike the Rosenblatt dissent, we will not disregard the trial court's "explicit emphasis twice, by cautionary instructions to the jury" that the full confession was introduced only so that the jury could consider the truthfulness of the Matos statement and defendant's motivation for making it, and not as proof of the charged crimes (*see People v Till*, 87 NY2d 835, 837 [1995]).

Should the court have made a more circumscribed ruling, permitting introduction of the other statements in a redacted form to limit further the potential for prejudice? That surely seems a better option. Indeed, the court had given that option to the defense prior to trial, but the defense ignored it. At trial, when the court ruled the statements admissible, the defense never suggested—as both dissenters do today—that they be tailored so that Sheridan would merely testify that defendant had confessed to "other crimes."²⁹ But even such a ruling might have left the jury to speculate about what "other crimes" would require an eight-hour confession, or be so compelling that they would motivate defendant to forgo medical treatment for a bullet wound.

Of course, "[t]here is no litmus paper test for determining when the probative value of the evidence outweighs its potential for prejudice" (*People v Ventimiglia*, 52 NY2d 350, 359 [1981]).³⁰ In *Ventimiglia*, we determined that "[i]mportant in the weighing process will . . . be how the evidence comes into the case,

29. Nor, surprisingly, did defense counsel say anything when the prosecutor elicited from Sheridan details corroborative of the other homicides.

30. *Ventimiglia* did not involve door-opening, but an application of the rule against admitting prior crimes to show propensity. As these concepts are often related, the reasoning of *Ventimiglia* is instructive (*see Rojas*, 97 NY2d at 38). In *Ventimiglia*, moreover, we concluded that "[w]here defendants charged with murder, kidnapping and conspiracy have stated as part of their planning that they have a place for disposing of the body 'where we put people . . . and they haven't found them for weeks and months', the statement is admissible because its probative value as to premeditation of the murder and as to the plan of the conspiracy outweighs the prejudice resulting from the admission implicit in the statement that defendants have committed prior murders" (*id.* at 355-356).

that is, whether at the instance of the People initially, or in rebuttal to a defense offered by defendant” (*id.* at 360).

Viewing the question of prejudice in the context of the trial, this was a case in which the other statements came in as rebuttal to the defense theory. As the trial court observed, “[t]his isn’t an identification case. This is a statements case” in which defendant’s guilt of intentional second degree murder was uncontested. By the time these statements were received in evidence, the jury had already heard the details of the Matos execution from defendant’s own words to Sheridan. Additionally, it heard uncontested evidence of defendant’s crimes at Avenue D, through the testimony of the people who actually fended him off. And it heard that he had confessed in a lie to protect Monica.

But the law had altered the landscape for the People by excluding probative evidence bearing on the truthfulness and reliability of defendant’s admission to the Matos killing, and defendant sought to exploit that pretrial ruling. In the tangible circumstances presented, where the main issue for the jury was whether defendant was guilty of second degree murder as an accomplice, or of intentional first degree murder as the shooter or commander, we hold that the trial court acted within the bounds of discretion in its ultimate conclusion—resolving the issue explicitly identified at the outset of the trial—that the probative value of the full confession was not substantially outweighed by its potential for prejudice to defendant.

Finally, six of us conclude that, on this record, the admissions about other crimes were probative of a material issue in the case, and that the door was opened by the defense, to one degree or another. All seven of us remain deeply committed to the just, faithful and equal application of the law, irrespective of guilt. In so doing, we need not examine the trial court’s ruling through the lens of what might have been one of several appropriate responses in the heat of trial. Rather, the result reached here rests on a succession of factors particular to this case, beginning with defendant’s staging of his statements to the police and the favorable pretrial order he procured, and ending with the skewed picture that his abuse of that order produced—in short, turning the protective shield into a sword. That was impermissible before this case, as it continues to be after.

As we concluded in *Harris*, despite the success of defendant’s *Jackson* challenge to his sentence (98 NY2d at 496-497), his conviction for first degree murder and the other offenses stands,

and we therefore affirm it. As a consequence, defendant's remaining contentions regarding his sentence are academic.

Accordingly, the judgment of County Court should be modified by setting aside the sentence of death and remitting to County Court for resentencing in accordance with CPL 470.30 (5) (c) and Penal Law §§ 60.06 and 70.00 (5) and, as so modified, affirmed; the appeal from County Court's order dated March 11, 1999 should be dismissed.

G.B. SMITH, J. (dissenting). Defendant's confessions to the murders of Johvanny Diaz, Joangel Toro and Peter Holley were improperly admitted at trial. The evidence had no relevance to any material issue in the Matos case and tended only to demonstrate defendant's violent propensity. Nor did the defense open the door to the admission of those confessions. The evidence does not support the Court's conclusion on this issue. The record illustrates that the defense did not raise any issue warranting the introduction of the confessions related to the three uncharged murders. The evidence therefore should have been excluded pursuant to *People v Molineux* (168 NY 264 [1901]) and its progeny. I therefore dissent and vote to reverse defendant's conviction and remand for a new trial.

As an initial matter, as I have stated in other capital cases this Court has heard since the reinstatement of the death penalty, because the penalty of death is qualitatively different than any other type of sentence a court may impose, both in its severity and its finality, there is a heightened need for reliability (see *Woodson v North Carolina*, 428 US 280, 305 [1976] [plurality op]; see also *Caldwell v Mississippi*, 472 US 320, 340 [1985]; *Beck v Alabama*, 447 US 625, 638 [1980]; *People v Harris*, 98 NY2d 452, 497-506 [2002] [Smith, J., concurring in part and dissenting in part]; *People v Cahill*, 2 NY3d 14, 77 [2003] [Smith, J., concurring]). "Any error that increases the risk of an unwarranted conviction, which would bring the defendant a step closer to death, must be subject to the heightened reliability standard" (*People v Harris*, 98 NY2d at 503 [Smith, J., concurring in part and dissenting in part]; *State v Martinez*, 132 NM 32, 36, 43 P3d 1042, 1046 [2002] ["Because of the gravity and irrevocability of the death sentence, and the grave injustice that would accompany an erroneous execution, error in a capital case is more likely to rise to fundamental error than the same error in a non-capital case. In a capital case, a legal defense often represents the only lawful mechanism by which a defendant may preserve his or her life. Any error that encumbers

that mechanism unfairly debilitates the defendant's claim to life, magnifies the risk of an erroneous execution, and necessarily constitutes a circumstance that shocks the conscience and implicates a fundamental unfairness within the system that would undermine judicial integrity if left unchecked" (citation and internal quotation marks omitted)). Indeed, as this Court stated in *Harris*, "We are careful to note . . . that capital trial courts should exercise great caution in making discretionary determinations. . . . The stakes are high for all involved" (*People v Harris*, 98 NY2d at 490).

Responding to defendant's appellate argument challenging the constitutionality of the death penalty based on the risk that an innocent person may be executed, the People argue, "Sometimes, despite all the steps taken by the Legislature and the Judiciary to assure that such mistakes are few and far between, human and institutional fallibility may result in a wrongful conviction. And even if it has not happened in the last thirty years and certainly will not happen here, it is possible that an actually innocent person will be someday executed." Despite this observation, no judge or lawyer can accept the possibility of the conviction and execution of an innocent person. It is therefore imperative for the judiciary scrupulously to honor the defendant's constitutional right to a fair trial and to apply carefully the evidentiary rules established for the protection of the innocent. In this case, however, even without regard to heightened scrutiny standards, the admission of evidence that defendant had committed three murders in addition to the crimes for which he already stood accused was clearly erroneous.

It should be clear that the difference between the majority and the dissent is not simply a different reading of the record. One difference is that the People never claimed that the defendant had opened the door to testimony concerning defendant's confession to three unrelated murders and the trial court did not base its decision to allow that evidence on its conclusion that the defendant had opened the door, but the majority itself concludes that the defendant opened the door. The second difference is that the majority does not address the defendant's main argument for moving for a mistrial and one of his contentions on this appeal, namely that the introduction of the testimony concerning three unrelated murders violated *People v Molineux*.

A.

In addition to confessing to the two burglaries at the Avenue D apartment building and the murder of Juan Matos, defendant also told Detective Sheridan that he had killed Johvanny Diaz, Joangel Toro and Peter Holley. Describing the first two murders, defendant confessed that he and his cousin "Moncho" had been hired by a drug dealer named Charlie to shoot Johvanny Diaz in the knees and to steal his jewelry because Diaz owed Charlie money. Defendant and Moncho were to be paid \$10,000 for the shooting. They looked for Diaz and found him on Jay Street. After they unsuccessfully attempted to purchase drugs from Diaz, he walked across the street to use a pay telephone. Joangel Toro approached Diaz while he was on the phone and stood near him. Defendant and Moncho then put nylon masks over their faces and walked over to Diaz. Moncho pointed a .45 caliber gun at Diaz. When Toro tried to walk away, defendant pointed a .38 caliber gun at him and forced him to return. Moncho then shot Diaz in the face, which prompted defendant to start shooting at Toro. After shooting at both victims numerous times, defendant and Moncho fled the scene.

Defendant then recounted to Detective Sheridan the murder of Peter Holley. According to defendant, his cousin had come to him and said that a man threatened him with a knife and stole his bicycle and jewelry. Defendant obtained a single-barrel shotgun and drove through the streets with his cousin to find the man. When they approached the area of the robbery, his cousin saw his bicycle on the side of the road. His cousin identified and pointed out Holley as the man who robbed him, exited the car and retrieved his bicycle. Defendant then drove up to Holley, who was trying to get into his own parked car, shot him in the head and drove away.

B.

Prior to trial, the prosecutor informed defense counsel that the People would not seek to introduce defendant's confessions to the three uncharged killings unless the defense opened the door to the evidence. In particular, the prosecutor warned that he would seek the introduction of all of the defendant's confessions if the defense challenged the voluntariness of the statements or sought to prove that defendant's confessions were induced by promises made to him by the police. The prosecutor also noted that any attempts by the defense to exploit the gaps in the timing of the interrogation during which the admitted

confessions were obtained would open the door to the remainder of defendant's confessions. Defendant's attorney agreed to avoid those areas during his argument and in the course of the cross-examination of the People's witnesses. Counsel, however, maintained that challenges to the truthfulness of defendant's confessions regarding who actually shot Matos would not open the door to the additional murder confessions.

During his opening statement, defense counsel made no attempt to challenge the voluntariness of defendant's confessions. As is relevant here, defense counsel argued that at the core of the case lay two questions: "Who did what? And why did they do it?" Counsel informed the jury that defendant "gave an oral and a written statement while interrogated by Investigator[s] Sheridan and Gropp." He urged the jury to "pay close attention to the circumstances and chronology of the statements." Counsel went on to argue that in his written statement, defendant attempted to take the blame for his wife's actions because he felt responsible for Matos's death. The prosecutor at no time suggested to the court that arguments made in defense counsel's opening statement opened the door to defendant's confessions concerning the three uncharged murders or that the disclosure of those confessions was warranted.

What the defendant indicated in the opening statement was that the defendant did not kill Matos and did not order his wife to do so. Thus his strategy, stated in the opening, was to blame Monica Szlekovics, his wife, for the murder and to prevent a conviction for first degree murder. He stated, "This killing, as tragic as it was, was at the unguided hands of Monica Szlekovics, a woman capable of acts of violence, especially when it involved a perceived threat with her relationship with Angel Mateo."

Following the direct examination of Investigator Terrance Sheridan, the parties and the court discussed the areas which defense counsel intended to explore on cross-examination and the arguments he intended to advance based on the testimony. The court informed defense counsel that a challenge to the voluntariness of defendant's confessions based on any alleged promises, as well as a challenge to the reliability of his confessions based on the fact that he had an injured leg at the time of the interrogation or due to some other exerted influence, would open the door to the evidence that he had confessed to the three uncharged murders. Based on the court's ruling, counsel withdrew his previous request that the court give the jury an

instruction on the voluntariness or the reliability of defendant's statements.¹

At that point, counsel informed the court that he intended to challenge only the truthfulness of defendant's confessions. When asked for clarification on this strategy, counsel explained:

"Whether the statement itself is a reliable rendition of what happened that night. It was taken down according to his wishes and it was not true in its ultimate.

"Your Honor, we have a dilemma where there's an oral statement and a written statement that essentially contradict themselves as to an essential fact. One will be reliab[le], one will not be."

The court then responded, "You know, we have an oral statement and a written statement that are contradictory to each other on their face." The court nevertheless warned defense counsel that if he sought to explain the contradictions by way of arguments that challenge the voluntariness of the confessions or the reliability of his statements based on his injury, it would open the door to the other murder confessions.

During the cross-examination of Sheridan, defense counsel elicited that Sheridan took a written statement from defendant on the late evening of November 6, 1996 or early morning hours of November 7. Sheridan further testified that defendant met with his brother, Victor Cordero, at 8:00 P.M. and again at a later time in the evening.² Counsel also elicited that defendant's second handwritten addendum to his written statement was made at 2:00 A.M. or possibly later.

1. It is important to note that regardless of what rulings defense counsel sought before conducting Sheridan's cross-examination, all that matters is what was educed during testimony before the jury. For that reason, for the purpose of this analysis, it matters not at all that counsel asked to inquire about alleged promises that defendant's family would be released or alleged promises that the police made regarding Monica's or Victor's charges or the substance of what defendant learned about Monica's statements or the substance of defendant's telephone conversation with his mother. Counsel's requests to inquire into all of those subjects were denied and counsel fully complied with the trial court's ruling.

2. The majority suggests that defense counsel's questioning about defendant's meeting with his brother was inappropriate (majority op at 421). However, limited questioning about whether defendant told his brother that the Matos incident and the home invasions "stemmed from his personal relationship with Janette and Monica" was proper, particularly given that during Sheridan's direct examination, the prosecutor established that Sheridan had arranged a second meeting with Victor at which time defendant told Victor

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Following up on testimony elicited during Sheridan's direct examination, counsel also elicited that defendant had orally stated that his wife had shot Matos. Sheridan testified that defendant told him that when the time came for his confession to be committed to writing he intended to say that he was the one who shot Matos. Defendant said that he intended to take the blame for the shooting because he believed that the incident was entirely his fault and because he wanted the death penalty. According to Sheridan's testimony, defendant stated that he would rather die than spend "a hundred years" in prison.

After defense counsel's cross-examination of Sheridan, the People made no argument that counsel opened the door to the other statements and did not otherwise seek to introduce the remainder of defendant's confessions. Neither did the court state that counsel's questioning warranted the introduction of the other murder confessions. Defendant's attorney assured the court that he intended to argue that defendant's admission that he had pulled the trigger killing Matos was not true, but that he would not argue that the confession was involuntarily extracted.

Following a redirect examination and re-cross-examination of Investigator Sheridan on other matters, the prosecutor informed the court that he intended to conduct further redirect examination. At no time did the prosecutor argue that questions asked on re-cross-examination opened the door to defendant's confessions regarding the three uncharged murders.

However, in a sua sponte ruling, the trial judge stated that any challenge to the truthfulness of defendant's confessions and any argument as to the reasons that he altered his version of the Matos killing required the introduction of his statements regarding the three uncharged killings. The court reasoned that defendant's references to all four killings were so intertwined that the jury's assessment of the truthfulness of defendant's statements must include the confessions to all of the killings. The court added that defendant's statement that he would rather be sentenced to death than serve a hundred years in prison required the jury to be made aware of the other murders so that the statement would make sense.

Defense counsel vehemently objected to the introduction of the uncharged murders, noting that the only way to defend the

that he had confessed to the police, apologized for involving him in his crimes and said that Victor would have to testify against him.

capital murder charge was to challenge the veracity of defendant's confessions. The court nonetheless maintained that the jury needed to consider all of the confessions in order to evaluate the credibility of defendant's rendition of the Matos killing.

The People conducted a further redirect examination of Sheridan, at which time he testified about defendant's confessions to the additional killings and read to the jury defendant's written statements which described each of the killings in full detail. Sheridan also testified regarding his independent investigation into the murders of Diaz and Toro. Specifically, Sheridan testified that on the morning of August 6, 1995, months before defendant's confessions, he had been called to Jay Street where he saw the lifeless bodies of Diaz and Toro. They were lying on top of one another in a pool of blood at the base of a pay telephone with its receiver dangling off the hook. Diaz had been pistol whipped several times with a large caliber handgun and had sustained four gunshot wounds to his head and two to his upper body. Toro had been shot once in his head and twice in his upper body.

Following Sheridan's testimony, the court gave a limiting instruction informing the jury that the evidence was not offered to show defendant's propensity to commit the crimes charged in the indictment, but to illustrate the circumstances of the confessions so that the jurors could evaluate their credibility. The court subsequently instructed the jury not to consider the truthfulness of the other murder confessions. Thus the court allowed evidence of the prior murders not because defendant had opened the door but because of the trial court's own conclusion that it was necessary to show whether the defendant was telling the truth in his confessions to the Matos killing.

Thereafter, in a written application, defendant moved for a mistrial based on the admission of the evidence of the three uncharged killings. Specifically, defendant argued that the other murder confessions should have been excluded under traditional *Molineux* principles because the evidence was not probative of any material issue in the case other than defendant's propensity toward violent behavior. Defendant claimed that since he had already agreed not to challenge the voluntariness of his statements, the other murder confessions were not relevant to any issue related to voluntariness. He also argued that the evidence was not relevant to assess the truthfulness of his statements concerning the crimes charged. Defendant further argued that the prejudicial value of the evidence outweighed its probative effect.

In response to the motion, the People argued that the admission of defendant's other confessions was the result of extensive conferences with the court regarding the circumstances that would warrant the introduction of the evidence. The prosecutor argued that the evidence was probative of the voluntariness of defendant's admitted statements and that it was necessary to refute the defense contention that he had given a false confession in order to secure his family's release from jail.

In an oral decision, the trial court denied the motion, relying on its previous conclusions. The court stated that the evidence of the other murder confessions was relevant to address issues raised about the voluntariness and the truthfulness of defendant's statements, especially as they related to promises made by the police and their negotiations with the defendant for his statements.

C.

It is fundamental that evidence concerning a defendant's uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate that the defendant was predisposed to commit the crime charged (*see People v Hudy*, 73 NY2d 40, 54 [1988]; *People v Alvino*, 71 NY2d 233, 253 [1987]; *People v Ventimiglia*, 52 NY2d 350, 359-360 [1981]; *People v Allweiss*, 48 NY2d 40, 46 [1979]). First pronounced by this Court in 1901 in *People v Molineux* (168 NY 264 [1901]), this evidentiary rule is widely recognized by state courts throughout this country and the federal courts have steadfastly adhered to it as codified by Federal Rules of Evidence rule 404 (b).³ To be sure, long before our decision in *Molineux*, this rule, like many other

3. Contrary to the position of the majority and Judge Rosenblatt, this case does implicate *People v Molineux* (*see* majority op at 425 n 26; dissenting op at 455). The issue here regards the admissibility of evidence that defendant had committed three murders which are not charged in this capital murder case. The *Molineux* rule deals with just this type of evidence of prior bad acts and requires that it be excluded unless it is probative of a material issue other than the defendant's criminal propensities, and its probative value outweighs its risk of prejudice to the defendant. Thus, it is the traditional *Molineux* principle that excludes this evidence in the first instance. The prosecutor never noticed the other murder confessions as *Molineux* evidence during the pretrial proceedings because he had assured defense counsel in a letter that he would not seek to introduce the confessions unless defendant made them an issue at trial (one of the exceptions to the *Molineux* rule). But regardless of how the arguments were framed before the trial court, the conferences between the parties had all the earmarks of a *Ventimiglia* hearing, a progeny of

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rules of evidence followed in this country, had its roots in 16th century England (see Joan L. Larsen, *Of Propensity, Prejudice, and Plain Meaning: The Accused's Use of Exculpatory Specific Acts Evidence and the Need to Amend Rule 404 (B)*, 87 Nw U L Rev 651, 667 [1993]; see also 1A Wigmore, Evidence § 58.2, at 1213-1214 [Tillers rev ed 1983]). As this Court has recently noted, the progeny of *Molineux* have preserved its basic foundation: “a criminal case should be tried on the facts and not on the basis of a defendant’s propensity to commit the crime charged” (*People v Rojas*, 97 NY2d at 36).

The evidence of a defendant’s prior bad acts is “objectionable not because it has no appreciable probative value but because it has too much. The natural and inevitable tendency of the tribunal—whether judge or jury—is to give excessive weight to the vicious record of crime thus exhibited and either to allow it to bear too strongly on the present charge or to take the proof of it as justifying a condemnation, irrespective of the accused’s guilt of the present charge” (1A Wigmore, Evidence § 58.2, at 1212; see also *Michelson v United States*, 335 US 469, 475-476 [1948]; *People v Rojas*, 97 NY2d at 36-37 [“propensity evidence invites a jury to misfocus, if not base its verdict, on a defendant’s prior crimes rather than on the evidence—or lack of evidence—relating to the case before it”]; *People v Hudy*, 73 NY2d at 55; *People v Ventimiglia*, 52 NY2d at 359; *People v Allweiss*, 48 NY2d at 46 [“The rule is based on policy and not on logic. It is

Molineux, whereby the defense sought to obtain an advance ruling from the judge prohibiting the introduction of prejudicial testimony regarding defendant’s prior criminal behavior. Furthermore, in his motion for a mistrial based on the introduction of the other murder confessions, defendant relied entirely on *Molineux*. Generally speaking, evidence that would otherwise be excluded under *Molineux* may be admitted where the evidence is probative of a material fact in the case being prosecuted. A material issue for which the evidence is probative does not necessarily have to arise in the People’s direct case. Such an issue can arise as a result of defendant’s testimony or an interposed defense. That circumstance would present an exception to the exclusion of the evidence pursuant to *Molineux* (see e.g. *People v Santarelli*, 49 NY2d 241, 247-248 [1980] [evidence of defendant’s past crimes relevant to rebut insanity defense]; *People v Calvano*, 30 NY2d 199, 205-206 [1972]; *People v Alvino*, 71 NY2d at 246-247 [evidence of prior drug sales admissible to rebut defendant’s testimony that he did not sell drugs and that he possessed 21 glassines of cocaine for his own personal use]). Finally, it is not my position that “door opening” by the defense is not a valid reason to introduce evidence of prior bad acts. Indeed, this Court has said as much in *People v Rojas* (97 NY2d 32 [2001]). It is my position, however, that a fair reading of the record reveals that the defense did not open the door in this case and that therefore, the confessions should have remained excluded pursuant to the *Molineux* rule.

meant to eliminate the risk that a jury, not fully convinced of the defendant's guilt of the crime charged may, nevertheless, find against him because his conduct generally merits punishment"). Therefore, "[w]here . . . the evidence proves only criminal propensity and serves no other function in demonstrating defendant's guilt of the crime charged, there is no legitimate basis for its admission. No degree of care, in assessing its value and possible prejudice and in giving cautionary instructions, can render it otherwise" (*People v Alvino*, 71 NY2d at 253).

Of course, evidence relevant to some material fact in the case, other than the defendant's criminal propensities, is not to be excluded merely because the evidence may reveal that defendant had committed other crimes (see *People v Ventimiglia*, 52 NY2d at 359 [the rule's "policy of protection against potential prejudice gives way when evidence of prior crime is probative of the crime now charged"]; *People v Allweiss*, 48 NY2d at 46-47). Thus, evidence of defendant's uncharged crimes or bad acts may be admitted to demonstrate motive, intent, the absence of mistake or accident, identity or a common scheme or plan (see *People v Molineux*, 168 NY at 293). The list is merely illustrative and not exhaustive (see *People v Rojas*, 97 NY2d at 37; *People v Ventimiglia*, 52 NY2d at 359; *People v Santarelli*, 49 NY2d at 248). Relevant here, this Court has recognized that evidence of a defendant's prior crimes may be introduced to refute a defendant's claims at trial (see *People v Alvino*, 71 NY2d at 246; *People v Ingram*, 71 NY2d 474, 479-480 [1988]; *People v Santarelli*, 49 NY2d at 248).

Determination as to the admissibility of evidence of a defendant's uncharged crimes or prior bad acts requires a two-part inquiry. First, the proponent of the evidence must identify some material issue, other than the defendant's criminal propensity, to which the evidence is relevant (*People v Hudy*, 73 NY2d at 55; *People v Alvino*, 71 NY2d at 242). Second, the court must weigh the probative worth of the evidence against its potential for undue prejudice resulting to the defendant (*People v Hudy*, 73 NY2d at 55; *People v Alvino*, 71 NY2d at 242). Thus, "[i]f the evidence is actually of slight value when compared to the possible prejudice to the accused, it should not be admitted, even though it might technically relate to some fact to be proven" (*People v Allweiss*, 48 NY2d at 47).

Here, the majority concludes that defendant opened the door to the admission of his confessions to the three uncharged

murders. The evidence does not support this conclusion. The prosecutor did not argue at trial that the defendant had opened the door. And the court itself did not rule that defendant's questioning of any witness had opened the door.

Both prior to and during the trial, the parties had discussed at some length the possible arguments defendant could make that would open the door to the remainder of defendant's confessions. The prosecutor had maintained that if defense counsel sought to challenge the voluntariness of his statement, or exploit the time gaps in the interrogation or sought to show that the statement was unreliable because defendant suffered from a leg injury, the remainder of the statements would become relevant to refute those contentions. Defense counsel agreed not to exploit the gaps in the interrogation time-line and agreed not to challenge the voluntariness of defendant's confessions.

Yet at no time following defense counsel's opening statement or during his cross-examination of the People's witnesses did the prosecutor ever claim that defense counsel had made an argument or sought to elicit any testimony to create a material issue in the case that could be answered by the introduction of defendant's confessions to the uncharged murders. At the time the trial judge ruled the confessions admissible, the prosecutor had not noted any action taken that had opened the door to that evidence. That behavior is quite telling since a prosecutor would normally urge the trial court to introduce otherwise excluded evidence in order to refute arguments offered by the defense. Moreover, even at oral argument, when asked at what point during the trial defense counsel had opened the door, the People could offer no definitive answer.

The majority nevertheless agrees with the People's argument, advanced for the first time on appeal, that defendant opened the door to the evidence by exploiting the unexplained gaps in the time-line of the interrogation. It is noteworthy that the trial court's reasons for admitting the evidence of defendant's uncharged crimes had nothing whatsoever to do with any purported exploitation of gaps in the time-line of defendant's interrogation. Moreover, there is no evidence in the record to support that conclusion. Defense counsel's remarks during his opening statement urging the jury to pay attention to the chronology of defendant's statements, taken in context, appeared to be merely an attempt to alert the jury to the fact that defendant had initially claimed that his wife shot Matos, voiced his intent to change his story when the confession was to be

memorialized and then claimed to have shot Matos himself in the written statement. At no time did he attempt to make it appear that the police had subjected defendant to a drawn-out interrogation process in order to extract an involuntary confession from him. Importantly, defense counsel had withdrawn his request for a jury charge on the voluntariness of the confessions and repeatedly assured the court that he did not intend to make any arguments to that effect.

Nor did defense counsel attempt to extract a time-line of the interrogation from the prosecution witnesses. Indeed, prior to the testimony of Investigator Sheridan, it was the prosecutor who elicited from its witnesses the approximate times of their encounters with defendant. And it was the prosecutor who first elicited from Sheridan that he first came into contact with defendant at 5:45 P.M. During Sheridan's cross-examination, defense counsel ascertained that defendant met with his brother at about 8:00 P.M. and again later in the evening. Sheridan also testified that at some point, defendant met with his wife. In addition, Sheridan testified that defendant made a second handwritten addendum to his statement concerning the Matos killing at approximately 2:00 A.M. However, not even these are indicative that defense counsel intended to exploit time gaps in the interrogation process to argue that defendant's statements were involuntary. He never specifically called upon Sheridan to illuminate that the interrogation spanned eight hours. As defense counsel had explained to the court, those questions were intended to establish when he had written the addenda in relation to the two occasions when he met with his brother and in relation to when he met with his wife. Even the prosecutor agreed during a conference with the court that the use of the evidence for that purpose would not warrant the admission of the other confessions.⁴

Moreover, since defendant did not seek to challenge the voluntariness of his confession, it was not necessary for the prosecutor to account for the entire period of the interrogation. It was sufficient for the jury to know that defendant had given separate written and oral statements regarding the Matos kill-

4. Contrary to the majority's view (majority op at 427), it is not my contention that the People opened the door to a time-line by eliciting testimony that defendant confessed in an eight-hour interrogation or that his interview concluded in the early morning hours. But the People did first establish the time of the start of defendant's interrogation. It is my contention that the People opened the door with respect to defendant's leg injury.

ing and the two home invasions at the Avenue D apartment building. It was also apparent from the record that defendant had taken breaks during the course of the interrogation process. Thus, it would have been clear to the jury that defendant had been interrogated about different crimes by various police officers. And since nothing in the defense counsel's cross-examination suggested that the length of the interrogation suggested improper exertion on defendant which would affect the voluntariness or reliability of his confession, the door to the unrelated murder confessions was not opened.

Even had defense counsel sought to exploit the time gaps in the interrogation process, it still would not have justified the introduction of the details of defendant's statements concerning the other murders. If the discrepancy in the timing of the interrogation became an issue, it would have been adequate to allow Investigator Sheridan to testify that the reason that defendant's interrogation had extended into the next morning was because in addition to confessing to the crimes here, defendant had been providing the police with information regarding several unrelated open investigations. Since it would not have been necessary to delve into the specifics of the remainder of defendant's statements, there was no reason to admit this evidence to explain any time gap in the interrogation.

Also in concluding that the defense opened the door to the confessions concerning the additional killings, the majority cites Sheridan's testimony regarding the leg injury that defendant suffered from throughout the interrogation (majority op at 419, 422, 426). However, it was the People who introduced that evidence, not the defense. During the direct examination of Sheridan, the following exchange took place:

"Q. Before leaving the interview room, did you have any conversation with the defendant about his physical condition?

"A. Yes, we did.

"Q. What, if anything, did you ask the defendant and what, if anything, did he tell you about his condition?

"A. I asked him if he was injured and he said he was.

"Q. . . . Why did you ask him if he was injured?

“A. Well, just in talking with him I could see that he was having, he was in a little bit of pain. He would wince from time to time. As I said before, I noticed he was limping, so—he was having some trouble with his leg, so I asked him if he was injured.

“Q. What did he tell you?

“A. He said he was and started to pull his pant leg up and I could see that there was a wound, or what I assumed was a wound, that was bandaged on his leg.

“Q. When you say bandaged, what did you actually see on his leg?

“A. I saw clean, white gauze wrapped around his shin area of his lower right leg.”

The prosecutor then introduced People’s exhibit 41, which was a photograph of defendant’s leg at the time of the interrogation. In the photograph, the gauze wrapped around defendant’s leg was visible.

The following exchange subsequently took place between the prosecutor and Sheridan:

“Q. What did the defendant do after he pulled his pant leg up?

“A. He started to unwrap the gauze to show me his injury, and I stopped him and I said, you know, just leave it alone. I—

“Q. Why did you do that?

“A. Well, it appeared to be pretty well wrapped up and I didn’t want to disturb it any further. The injury did not appear to be bleeding. There did appear to be some blood on the gauze but it was not bleeding at the time that I looked at it so I wanted it to stay in the condition that it was in at that time.

“Q. What happened when you told him not to unwrap it any more?

“A. He stopped unwrapping it and then he wrapped the gauze back around and put his pant leg back down.”

“Q. After he did that, did you have any other—well, did you ask him if he knew how that happened?

“A. Yes, I did.

“Q. What did he tell you?

“A. He said he wasn’t sure. He said that it happened earlier that morning on Avenue D but he just wasn’t sure how he got hurt.

“Q. Did you ask him if he was shot?

“A. I did.

“Q. What did he tell you?

“A. He said he just wasn’t sure what it was. He said things happened so fast on Avenue D he just doesn’t know how he got injured.

“Q. So the only thing he told you definitely was that it happened that morning on Avenue D?

“A. Right.

“Q. Did you offer medical treatment at that point?

“A. Yes.

“Q. How did you do that?

“A. I asked him if he wanted to go to the hospital and get some treatment for it.

“Q. What did he tell you?

“A. He adamantly replied, no, he didn’t, he wanted to get this cleared up.

“Q. Up until that point what, if any, observations had you made of the defendant’s physical condition?

“A. He was alert, conscious, able to field the questions, intelligent. He was excited at times and he obviously, he was in slight discomfort from time to time but he didn’t want any medical treatment for it, and we had no difficulties communicating between the two of us.”

By contrast, defense counsel’s cross-examination of Sheridan regarding defendant’s leg injury consisted entirely of the following exchange:

“Q. And you accompanied Mr. Mateo from one inter-

rogation room to the next to basically juggle positions with people in other rooms; is that right?

“A. Yes, it is.

“Q. And he was limping at that point, right?

“A. I believe he was.

“Q. Did you give him assistance or did you walk next to him or what?

“A. No. It wasn’t a real noticeable staggered limp. I could see he was limping slightly. Just an observation. But, no, I didn’t need to give him any physical assistance.”

It is unreasonable to conclude as the majority does that defense counsel’s questioning “creat[ed] the impression that the injury rendered the confession unreliable” (majority op at 426 n 27). If the door to the other murder confessions was opened based on the evidence of defendant’s leg injury, it was the People’s in-depth examination regarding the injury coupled with their introduction of the photograph depicting defendant’s bandaged leg that opened the door. Defense counsel’s limited questions about whether defendant had a limp surely could not be to blame. Having introduced the evidence themselves, the People should not thereafter complain that the excluded evidence should be admitted because of the possibility that the defendant might use it to argue that his statement was involuntary and unreliable, even though the defendant had not yet done so. If the People can circumvent an order excluding evidence of prior bad acts by introducing evidence that, if introduced by the defendant, would open the door to those prior bad acts, the *Molineux* rule would lose much of its potency.

It should also be noted that even if defendant’s leg injury would create the impression for the jury that defendant had been suffering throughout the interrogation and that it would affect the voluntariness of his statement, Sheridan’s testimony that he offered defendant medical assistance but defendant declined it and insisted on continuing the interrogation suffices in dispelling that impression.

The majority further states that because of the exclusion of the evidence of the other murder confessions the People had been barred from explaining why defendant had been concerned for his family throughout his interrogation (majority op at 419). That is not the case. The People elicited from Police Officer Di-

Mascio (who testified before Sheridan) that defendant's brother, Victor Cordero, was arrested along with defendant. Moreover, Sheridan testified on direct examination that when he first met defendant, he was in an interrogation room that was adjacent to one in which another of defendant's brothers, Gilberto Gomez, was being held. Finally, Sheridan testified that defendant's wife was also in custody at the time of defendant's interrogation. This evidence was more than sufficient to explain why defendant would have been concerned for his family. Moreover, the prosecutor never claimed that questions that resulted in answers that defendant had expressed concerns for his family would open the door to the other murder confessions. On the contrary, during discussions with the court, the prosecutor stated, "In terms of a general question to the investigator, did the defendant express concern for his family, I think that type of a general question could be asked without opening the door to the other murder[s]."

The majority also concludes that defense counsel opened the door to defendant's confessions to the uncharged murders by challenging the truthfulness of his confession of the Matos murder. However, in so concluding, the majority misconstrues the defense strategy. For example, the majority's opinion suggests that defendant's confessions to the Matos killing were essentially consistent, and that the defense had only the option of explaining why they should not be believed (i.e., because he was only trying to protect his family or because his power was overborne as a result of the long interrogation and the leg injury). This fails to account for that portion of Sheridan's testimony in which he stated that defendant had originally claimed that Szlekovics shot Matos and then changed his story to claim that he had shot Matos. The majority also creates the impression that the only mention by defendant that he wanted the death penalty came during defense counsel's re-cross-examination, at which time an objection to the question was sustained (majority op at 423, 427).⁵ In fact, during the prosecutor's direct examination of Sheridan, the following exchange took place:

"Q. Now, during the course of that conversation did

5. Contrary to the majority's assertion (majority op at 427), defendant never said that he was confessing because he wanted the death penalty. Rather, he said that he was changing his story about the Matos killing and taking the blame for it because he wanted the death penalty.

there come a time when you asked him further questions regarding who actually pulled the trigger and fired the shot that killed Mr. Matos?

“A. Yes.

“Q. What did you ask him?

“A. Well, at one point I looked Mr. Mateo right in the eye and I said, who really pulled the trigger in the basement—meaning the basement of the Saxton Street house—and he looked at me and he said why, and I said because I think Monica did it. . . .

“Q. What did he tell you?

“A. When I said I believe Monica did it, we believe Monica did it, he said she did. I couldn’t believe it. She is a crazy bitch, shot the guy. In other words, he didn’t expect her to pull the trigger. But he said he was at the top of the stairs and she shot the guy in the head, which surprised him.

“Q. So, at that time he told you he was at the top of the steps when Mr. Matos was shot?

“A. Right.

“Q. What did he tell you after that?

“A. He said, he said after he told me that Monica did it, he then said, but I’m going to say that I did it when I give you my statement.

“Q. Did you ask him about that?

“A. Sure. I said why. And he said, because I want the death penalty.

“Q. Did you ask him about that?

“A. Yes.

“Q. What did you ask him and what did he tell you?

“A. I simply said, why, why do you want the death penalty, and he said because he was—and he used the Spanish term which means king—he said, I’m a king and I can’t do a hundred years in jail. He said, I can’t take my life because I am a king so I want

the death penalty for this, and he also said because he deserved it.

“Q. During that conversation when he told you he was going to take the blame for it, did he tell you anything about whose fault he believed this was?

“A. Oh, he continually said that it was his fault for Sherer Street.”

Of course, on cross-examination, defense counsel followed up on this testimony:

“Q. And essentially you looked him right in the eye and you said, ‘Who actually pulled the trigger’? Is that correct?

“A. Right.

“Q. And in response to that Mr. Mateo looked at you and said, ‘Why?’ Is that right?

“A. Yes.

“Q. And you in turn told him that you believed Monica did it?

“A. Yes.

“Q. And in response to that, Mr. Mateo indicated she did and that he couldn’t believe it. And that she was crazy. He couldn’t believe she shot him; is that right?

“A. Yes.

“Q. And he was at the top of the stairs when she shot him and didn’t even see her shoot him; is that correct?

“A. Right.

“Q. And it’s fair to say during this particular exchange when you looked Mr. Mateo right in the eye and you say who actually pulled the trigger, and he responds, his demeanor changed; is that right?

“A. Yes.

“Q. And it changed, it was different from what it was previous to this; is that correct?

“A. Yes.

“Q. Now, after he indicates to you that he was surprised at this, he said I’m still going to take the blame for it, I’m going to take the []rap for it; is that right?

“A. Yes, he did.

“Q. And you basically followed that up with why if she did it are you going to take the []rap for it?

“A. That’s right.

“Q. And he indicated to you he’s going to take the []rap for it because it’s his fault and he wants the death penalty; is that right?

“A. That’s right.

“Q. And you pretty much followed up on that: Well, why do you want the death penalty? Basically you followed up on that: Why do you want the death penalty? Is that correct?

“A. Yes.

“Q. He indicated, he used that Spanish term for king and he didn’t want to do a hundred years in prison, he’d rather die; is that right? Something along those lines?

“A. Yes. And that he deserved it and he couldn’t take his own life.

“Q. He also indicated to you that living in jail for a hundred years would hurt his mother too much?

“A. Yes.”

The importance of this testimony cannot be overstated for it is at the heart of the defense strategy. The majority mischaracterizes the defense as attempting to demonstrate that after being arrested, defendant discovered that his wife was a prime suspect in the Matos killing and then offered to implicate himself in order to protect her from prosecution. This, however, was not the actual strategy of the defense. The defense sought to establish, not why defendant confessed to the Matos killing in the first place but, given that defendant had offered conflicting accounts of who killed Matos, which account was true. The defense sought to establish that defendant’s oral statement that

his wife killed Matos and that it was a surprise to him was true, rather than his written statement in which he claimed to have shot Matos himself.

From his opening statement to the jury, defense counsel sought to show that defendant neither killed Matos nor ordered his wife to do so and that his wife acted on her own. Counsel's emphasis on defendant's admission that he was taking the blame for the killing because he felt responsible for it and wanted the death penalty was an attempt to demonstrate defendant's motivation for changing his story, which would support the defense position that the oral statement should be believed over the written one.⁶

Had the defense been successful in convincing the jury that Szlekovics shot Matos and that it was a surprise to defendant (which would tend to disprove the People's theory that he commanded her to kill), as he claimed during the oral confession, then he would have been convicted of only second-degree murder, but not first-degree murder. For the purpose of this strategy, it was not necessary for the jury to know that defendant had offered to tell the police about four murders in exchange for the release of his family from custody. The jury was not being called upon to decide what would motivate defendant to offer any confession at all. The defense was trying to persuade the jury only that the oral confession rather than the written one was the true account of the killing.⁷

The defense was perfectly entitled to pursue a strategy challenging the truthfulness of defendant's confessions about the Matos killing without risking the introduction of the unrelated murder confessions. Regardless of defendant's statements concerning the uncharged murders, there can be no question that defendant lied in his rendition of the murder of Juan Ma-

6. According to the majority, the defense tried to convince the jury that he had changed his account of the Matos killing in order to protect his wife from prosecution (majority op at 427 n 28). In fact, defense counsel sought to show that defendant's motivation for changing his story was apparent from his statement to the police that he would take the blame for the murder his wife committed, not out of a desire to protect her, but rather to ensure that he received the death penalty. Evidence that defendant had confessed to three uncharged murders does not refute this argument, but rather supports it. Undoubtedly, from defendant's perspective, the more murders to which he confessed, the more likely that he would receive capital punishment. Thus, the door to the other murder confessions was not opened by this argument.

7. It is for this reason that I disagree with Judge Rosenblatt's assessment that defendant tried to "create a false impression about the nature of his confession" and thereby opened the door if only slightly (dissenting op at 456).

tos. Defendant said that his wife shot Matos and expressed surprise that she had done so. He then said that when the time came for his statement to be committed to writing, he would say that it was he who shot Matos. When his statement was memorialized, defendant claimed to have been the shooter. Since the victim was shot only one time, defendant's two versions of the killing in which he identified different shooters necessarily meant that he lied about the circumstances of the killing. Even the trial judge acknowledged that the contradiction was apparent on the face of the confessions. And by the People's indictment against defendant, they acknowledge that because of defendant's contradictory statements, not even they could determine the identity of the shooter. It was for this very reason that the People were forced to employ alternative theories for the killing—on the one hand arguing that defendant pulled the trigger, and on the other hand arguing that defendant's wife killed Matos at defendant's command.

Therefore, the real issue that the jury had to decide was whether defendant shot Matos; or his wife shot Matos at defendant's command; or defendant's wife shot Matos without having been commanded by defendant to do so. The evidence that defendant had also confessed to three additional murders could not possibly assist the jury in determining which of defendant's versions of the Matos shooting was true. None of the other three murders was in any way related to Matos's killing. They involved different dates, different accomplices and different motives. The evidence of defendant's confession to the killings of Diaz, Toro and Holley was probative only of defendant's propensity to kill and served no other function in demonstrating his guilt of the crimes charged here. Thus, there was no legitimate basis for its admission and it should have been excluded as a matter of law (see *People v Hudy*, 73 NY2d at 54).

That the evidence of the three uncharged murders was introduced in such a way as to demonstrate defendant's proclivity to murderous behavior was apparent by the manner in which the evidence was introduced. In addition to permitting Sheridan to testify about defendant's confessions detailing the circumstances of the other murders and to read the written statements to the jury, he was permitted to testify in detail about his own investigation into the murders of two of the victims. Sheridan told the jury that on the day after the murders (which took place months before defendant confessed to them), he had gone to the murder scene and discovered the bodies of Diaz and Toro.

Sheridan described the positions of their bodies and testified to their numerous gunshot wounds and injuries. There was no proper basis for the admission of testimony regarding Sheridan's independent investigation into the uncharged murders. It was not germane to any issue to be decided in this case but rather was an apparent attempt to establish defendant's guilt in the deaths of Diaz and Toro. The only possible reason for making such a showing would be to establish defendant's propensity to kill. As such, there was no legitimate basis for the admission of this evidence, and its admission constituted error (*see People v Hudy*, 73 NY2d at 54).

It is also necessary to recognize that even if the confessions to the uncharged murders were probative of defendant's contradictory confessions to the Matos killing, their probative value was necessarily hindered by the trial judge's jury instructions. On the one hand, the trial judge told the jurors that the uncharged murder confessions were admissible only to allow them to assess the truthfulness of defendant's statement regarding the Matos killing. On the other hand, the court instructed them not to consider the truthfulness of the statements concerning the other murders. Such an instruction frustrates the purpose of admitting the evidence in the first place. If the jury is not to rely on the confessions as being true, it cannot possibly use them to assess the truthfulness of defendant's confession regarding the Matos killing. The evidence of the uncharged murders could provide a useable measure of credibility only if the jury could rely on its credibility. The court's instruction disavowed the evidence even for this purpose. As such, there was plainly no use for this evidence other than to show defendant's propensity to commit the crimes charged.

Although the majority downplays the prejudice flowing to defendant from the introduction of his confessions to the three uncharged murders, the prejudice here was overwhelming. It is difficult to imagine what could be more prejudicial to a defendant in a capital murder trial than evidence that on separate occasions he had killed three people in addition to the person he stands accused of killing. It is likewise difficult to imagine that a jury could possibly avoid using the evidence of defendant's uncharged crimes, for which he had yet to be brought to justice, to conclude that he had such a violent character that he likely committed the crimes charged. After all, the jury learned that defendant was a hired gun for a drug dealer and had killed to avenge the theft of a bicycle. It is certainly doubtful that the

jury could have avoided the conclusion that defendant was just the type of person who would have killed Juan Matos and committed the crimes at the Avenue D apartment building.

Under the circumstances presented here, the risk of unfair prejudice flowing from the introduction of this evidence substantially outweighed its probative value. That defendant challenged the truthfulness of his confession in no way tipped the scales in favor of introduction of the evidence, especially since defendant offered contradictory accounts of who killed Matos.

The majority concludes that the jury would not have been unduly prejudiced by the evidence of defendant's additional murder confessions because of the evidence of his crimes at the Avenue D apartment building and the Matos killing. Defendant faced a possible death sentence upon a first-degree murder conviction for the Matos killing. The defense theory of the case was that Szlekovics had killed Matos without having been commanded to do so and that therefore defendant should be convicted of second-degree rather than first-degree murder. Importantly, the difference between the degree of conviction defendant would receive rested primarily on which version of his confession to the Matos killing the jury believed. The evidence that defendant had killed three other people in addition to Matos could not possibly help the jury to determine whether defendant's oral or written confession to the Matos murder was true. But alerting the jury that defendant had actually killed not one but four people created an unjustifiable risk that the jury would convict him for the highest possible degree of murder because his murderous behavior generally warrants punishment (see *People v Molineux*, 168 NY at 292 [other crimes evidence "would lead to convictions, upon the particular charge made, by proof of other acts in no way connected with it, and to uniting evidence of several offenses to produce conviction for a single one," quoting *Coleman v People*, 55 NY 81, 90 (1873)]). Significantly, in this case, there was no mechanism available by which the jury could otherwise hold defendant accountable for those three additional murders. By contrast, the jury had the power to punish him for the Avenue D home invasions by convicting him.

As Chief Judge Cardozo aptly noted, "[i]f a murderous propensity may be proved against a defendant as one of the tokens of his guilt, a rule of criminal evidence, long believed to be of fundamental importance for the protection of the innocent,

must be first declared away” (*People v Zackowitz*, 254 NY 192, 197 [1930]). The evidentiary rule set forth in *Molineux* is the law of this state. As such, it must be applied equally—even to the most unworthy of defendants, and even if it means the toil of a retrial.

To be sure, an assignment of error to the introduction of defendant’s confessions to three uncharged murders would necessitate a reversal of his conviction and a new trial on all charges. But justice requires that we faithfully apply the law to the facts of the case before us. Many decades ago, Judge Fuld, writing for this Court declared, “Vicious though the crime was, convincing though the evidence of guilt may seem to be, we could affirm only if we were to announce a doctrine that the fundamentals of a fair trial need not be respected if there is proof in the record to persuade us of defendant’s guilt. We are not prepared to announce such a doctrine” (*People v Mleczo*, 298 NY 153, 163 [1948]). The introduction of the confessions to three murders unrelated to the crimes for which defendant was on trial deprived him of a fair trial.

Because the trial court’s admission of defendant’s confessions regarding three uncharged murders was in direct violation of the *Molineux* rule, I dissent from the majority and vote to reverse defendant’s conviction and to remand the case for a new trial.

ROSENBLATT, J. (dissenting). Although both the majority’s and Judge Smith’s writings are compelling, I am not fully in accord with either and therefore write separately. Apart from its treatment of the trial court’s ruling regarding defendant’s confession (the pivotal issue separating Judge Smith from the Court), I find the majority opinion persuasive.

To begin with, I join the Court in rejecting defendant’s claim that the People corrupted the truth-finding process by advancing one theory at his trial after having advanced what he asserts was an inconsistent theory at Monica Szlekovics’s trial. Further, due process does not, in my view, require the jury to embrace one of the People’s theories (that defendant killed Matos by his own hand or commanded Szlekovics to do so) to the exclusion of the other. Because the jury arrived at a unanimous determination that either was the case, it should not matter whether some jurors thought defendant pulled the trigger and others thought he ordered Szlekovics to do so. Further, I agree that defendant’s statement was voluntary and that the verdict comported with the weight of the evidence.

Like Judge Smith, however, I would hold that the trial court committed reversible error by allowing the jury to hear detailed recitations as to defendant's three unrelated murders. The majority concluded that this was an acceptable ruling, while Judge Smith calls it a *Molineux* error. Judge Smith adds that proof of defendant's having committed the three other murders was not at all relevant to the truthfulness of defendant's confession and could not possibly help the jury in determining exactly how Matos met his death.

In my view, the majority correctly decided not to characterize its ruling as a *Molineux* exception. As the majority points out, no one even mentioned *Molineux*, by name or in principle, when the court was considering whether to allow the jury to learn of the other three murder confessions (see majority op at 425 n 26). *Molineux* issues generally arise when the prosecution seeks to introduce proof of uncharged crimes to prove that a defendant committed the crime charged. *Molineux* evidence, in this sense, is often an offensive weapon employed by prosecutors to persuade the jury of a defendant's guilt. Thus, when a *Molineux* exception applies,¹ the prosecution may, on its direct case, introduce evidence of a defendant's uncharged crimes and need not wait until the defendant presents something the prosecution needs to negate (see e.g. *People v Cook*, 93 NY2d 840 [1999]; *People v Cohen*, 5 NY2d 282 [1959]). Of course, as a defensive tactic, the prosecution may introduce evidence of uncharged crimes to negate a claim of accident, mistake, or the like (see *People v Rojas*, 97 NY2d 32 [2001]; see also *People v Ingram*, 71 NY2d 474 [1988]; *People v Goldstein*, 295 NY 61 [1946]). Here, the prosecution did not seek to introduce proof of the three unrelated murders either to prove that defendant killed Matos or that he had a murderous propensity to do so (personally or by command). Indeed, the People fully abided by the trial court's initial ruling that any reference to the three murders was taboo. There is no doubt that if defendant had not "opened the door," the trial court would never have let the jury know of defendant's other murders.

The question, therefore, is whether the court was justified in allowing proof of three unrelated murders in reaction to defendant's having opened the door. As with most "door opening" rulings, this one requires us to examine a number of fac-

1. We discussed the *Molineux* rule and its exceptions most recently in *People v Rojas* (97 NY2d 32 [2001]).

tors, including the size of the opening and what lay on the other side of the door. Here, defendant sought to exploit the court's preclusive ruling and create a false impression about the nature of his confession. Nevertheless, in balancing these considerations I conclude that the ruling was wrong and fell far outside any tolerable exercise of discretion.

It is not enough to say that defendant opened the door. In many trials, parties open doors to the introduction of proof. Sometimes they fling the doors wide open; other times, they open them just a crack. The trial judge's response should be proportionate and reflect the size and nature of the opening. Here, the court's response, to admit the three confessions, was inordinately prejudicial.

This is true for a number of reasons. I agree that the court cautioned the defense to be careful in how it went about challenging the truthfulness or reliability of the Matos confession. But I cannot agree that, to the extent he strayed at all, defense counsel strayed appreciably beyond the boundaries of the court's preclusive order or that his transgression called for such an extreme ruling. More importantly, the prosecution did not ask for it. Ordinarily, a trial court can count on a party to protest that its adversary opened the door to proof that in fairness should be explained or refuted. The court's unsolicited decision to allow proof of defendant's three other murders (and thus acquaint the jury with defendant's true "motivations" for confessing to the Matos murder) was prejudicial in the extreme.

It is a fundamental tenet of evidence law that a court, when assessing the admissibility of evidence, engage in a weighing process, balancing prejudice against probative value. Here, however, the court failed to undertake any such analysis. The record is bereft of any mention of the court's considering possible prejudice. Indeed, in the protracted discussions before it allowed the confessions into evidence, the court never so much as mentioned the word "prejudice" or its equivalent.

Nevertheless, the introduction of the other confessions was overwhelmingly prejudicial.² The central question for the jury was whether defendant pulled the trigger or ordered his wife to do so—or did neither, in which case he would be guilty of

2. While I do not see this as a *Molineux* exercise, the end result, for me, is the same. Under a *Molineux* analysis, the test boils down to a battle between prejudicial effect and probative value. In evaluating the "door-opening" type evidence before us, the test is precisely the same, and leads, in my view, to the same result that Judge Smith reaches.

(intentional) murder in the second degree, as an accomplice. In this setting, the court allowed the jury to learn that defendant was (at least) a three-time murderer. No evidence could have had a more pernicious impact on the jury than defendant's homicidal history. The admission of detailed evidence of three unrelated murders would undermine the neutrality and dispassion of even the fairest and most diligent of factfinders.

When discussing door openers, an appropriate starting point would be the case in which a defendant's conduct at trial most obviously opens the door to the introduction of confessions that reveal uncharged crimes: if a defendant with an established history of violence testifies and purports to be a peaceable person, surely the prosecutor could explode the lie and impeach the defendant with otherwise precluded or suppressed admissions proving the contrary.³ Even if a defendant does not testify, but falsely creates the impression of being nonviolent, the prosecution would have a strong basis to argue that the jury was being misled and that the defendant should pay a heavy price for such duplicity. Here, however, defendant neither testified nor asserted any facts in conflict with his having committed three previous murders. Defense counsel merely asked oblique questions about the circumstances of the interview. It is hard to see how these mildly suggestive queries stood to be properly refuted by proof that he murdered three other people. It is hard to see how the details of three homicides were appropriate to refute what amounted to innuendo. I cannot agree with Judge Smith that the confessions were entirely irrelevant, but I believe that their relevance was slight.

Here, the appropriate response—one proportionate to the sliver of an opening defendant created—might have been to allow the prosecution to establish that defendant revealed having committed other crimes. This would have blunted any possible claim that the police were overbearing in questioning defendant for several hours. Further, it would have neutralized defendant's dubious suggestion that by confessing to the Matos murder he was engaging in a noble fraud to exonerate his family. Of course, the jurors might have speculated about those other crimes, but could not easily leap to the conclusion that "other crimes" meant three vicious homicides. Even if the trial court had some

3. See e.g. *Harris v New York*, 401 US 222 (1971); *Walder v United States*, 347 US 62 (1954); *People v Maerling*, 64 NY2d 134 (1984); *People v Kulis*, 18 NY2d 318 (1966).

legitimate basis to inform the jury that defendant confessed to a trio of other murders, it should have stopped there. Defendant's confessions to these other homicides were lengthy and graphic, and the trial court improperly permitted the jury to hear every detail.

For these reasons, I would reverse defendant's conviction and order a new trial.

Judges CIPARICK, GRAFFEO, READ and R.S. SMITH concur with Chief Judge KAYE; Judge G.B. SMITH dissents and votes to reverse and order a new trial in a separate opinion; Judge ROSENBLATT dissents and votes to reverse and order a new trial in another opinion.

Judgment modified by vacating defendant's sentence and remitting to County Court, Monroe County, for resentencing in accordance with the opinion herein and, as so modified, affirmed. Appeal from County Court order dated March 11, 1999 dismissed.

[812 NE2d 291, 779 NYS2d 801]

In the Matter of NOTRE DAME LEASING, LLC, Respondent, v ALEXANDRA ROSARIO et al., Appellants.

Argued March 23, 2004; decided May 11, 2004

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered June 23, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Appellate Term of the Supreme Court, Second and Eleventh Judicial Districts (op 188 Misc 2d 291), which had (1) reversed an order of the Civil Court of the City of New York, Queens County (Ulysses Bernard Leverett, J.), granting respondents' motion to dismiss a nonpayment summary proceeding to the extent of staying the proceeding until petitioner submitted satisfactory proof that it had remedied pending violations that were dangerous, hazardous or detrimental to life or health, and (2) denied the motion. The Appellate Term granted respondents' subsequent motion for reargument and, upon reargument, adhered to its original determination. The following question was certified by the Appellate Division: "Was the opinion and order of this court dated June 23, 2003, properly made?"

Matter of Notre Dame Leasing v Rosario, 308 AD2d 164, affirmed.

HEADNOTE

Landlord and Tenant — Summary Proceedings — Availability to Social Services Tenant of Defense of Code Violations

The Spiegel Law (Social Services Law § 143-b [5] [a]), which provides that it "shall be a valid defense in any action or summary proceeding against a welfare recipient for non-payment of rent to show existing violations in the building wherein such welfare recipient resides which relate to conditions which are dangerous, hazardous or detrimental to life or health as a basis for non-payment," may not be invoked by a social services tenant unless the appropriate social services agency has first withheld rent on that basis. Section 143-b (5) is a constituent provision of a statute that primarily addresses the rights and responsibilities of the "public welfare department" and "public welfare official[s]," and is best read that way. It is for the public welfare departments to decide when their powers under the Spiegel Law to withhold rent should be used.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant § 1025.

CARMODY-WAIT 2d, Summary Proceedings to Recover Possession of Real Property § 90:172.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT INCLUDING SUMMARY PROCEEDINGS (4th ed) § 43:28.

McKINNEY'S, Social Services Law § 143-b (5) (a).

NY JUR 2d, Landlord and Tenant § 352; NY JUR 2d, Public Welfare and Old Age Assistance §§ 90, 91; NY JUR 2d, Real Property—Possessory and Related Actions §§ 90, 91.

NEW YORK REAL PROPERTY SERVICE §§ 76:82, 79:39, 81:12.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Poor Persons; Rent.

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POINTS OF COUNSEL

Queens Legal Services Corporation, Jamaica (Carl O. Callender and Randolph Petsche of counsel), for appellant. I. The Appellate Division erred in holding that the plain language of Social Services Law § 143-b (5) precludes a tenant from interposing it as a defense against entry of a judgment in a proceeding for nonpayment of rent unless the public welfare agency has previously withheld the rental payments demanded by the landlord. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Crystal Apts. Group v Hubbard*, 178 Misc 2d 333; *People v Finnegan*, 85 NY2d 53, 516 US 919; *Desiderio v Ochs*, 100 NY2d 159; *New Amsterdam Cas. Co. v Stecker*, 3 NY2d 1; *Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198; *Town of Amherst v County of Erie*, 260 NY 361; *McKuskie v Hendrickson*, 128 NY 555; *Bender v Jamaica Hosp.*, 40 NY2d 560; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205.) II. The public policy considerations that prompted enactment of Social Services Law § 143-b (5) permit the tenant to interpose it without prior suspension of rental payments to a landlord by public welfare officials. (*Matter of Farrell v Drew*, 19 NY2d 486; *Matter of Schaeffer v Montes*, 37 Misc 2d 722; *Matter of Long v Adirondack Park Agency*, 76 NY2d 416; *Sanders v Winship*, 57 NY2d 391; *Matter of New York Life Ins. Co. v State Tax Commn.*, 80 AD2d 675, 55 NY2d 758; *Matter of Grand Jury Subpoena Duces Tecum [Museum of Modern Art]*, 93 NY2d 729; *Majewski v*

Broadalbin-Perth Cent. School Dist., 91 NY2d 577; *Matter of Radich v Council of City of Lackawanna*, 93 AD2d 559, 61 NY2d 652; *Johnson v Hudson Riv. R.R. Co.*, 49 NY 455.) III. The Appellate Division erred in finding that permitting tenants to interpose Social Services Law § 143-b (5) without prior withholding of rent by public welfare officials was an unconstitutional impairment of a landlord's rights in contract. (*Matter of Farrell v Drew*, 19 NY2d 486; *Crane Neck Assn. v New York City/Long Is. County Servs. Group*, 61 NY2d 154, 469 US 804; *Matter of Department of Bldgs. of City of N.Y. [Philco Realty Corp.]*, 14 NY2d 291; *Home Bldg. & Loan Assn. v Blaisdell*, 290 US 398.)

Pennisi, Daniels & Norelli, LLP, Rego Park (*Denise M. May* of counsel), for respondent. I. The language of Social Services Law § 143-b is clear and unambiguous in its intention to be a defense against an action to collect welfare monies, paid by welfare on behalf of a tenant, withheld by the agency, due to violations within a welfare recipient's building. (*Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198; *Matter of Albano v Kirby*, 36 NY2d 526; *Cummings v Board of Educ. of City of N.Y.*, 275 App Div 577, 300 NY 611; *Matter of Long v Adirondack Park Agency*, 76 NY2d 416; *People v Mobil Oil Corp.*, 48 NY2d 192; *Heard v Cuomo*, 80 NY2d 684; *Matter of Aaron J.*, 80 NY2d 402; *Matter of Branford House v Michetti*, 81 NY2d 681; *People v Finnegan*, 85 NY2d 53; *Dearie v Hunter*, 183 Misc 2d 336.) II. Permitting a tenant to invoke Social Services Law § 143-b without prior action by the welfare official, as a defense to the tenant's withheld portion of the rent, is an impermissible impairment to the contract between landlord and tenant. (*Matter of Farrell v Drew*, 19 NY2d 486; *Heard v Cuomo*, 80 NY2d 684.)

Michael A. Cardozo, Corporation Counsel, New York City (*Marta Ross, Edward F.X. Hart and Tayo Kurzman* of counsel), for City of New York, amicus curiae. The Appellate Division erred in holding that a public assistance recipient may not invoke Social Services Law § 143-b (5) as a defense to a summary nonpayment proceeding unless a public welfare official has first withheld the recipient's rent. (*Matter of Farrell v Drew*, 19 NY2d 486.)

Legal Aid Society, Kew Gardens (*Susan Gibson O'Gara, Josephine C. Flores, Alan Canner and April Newbauer* of counsel), amicus curiae. I. The decision below undermines the remedial

nature of the Spiegel Law and misapprehends the public policy implications of construing the law to be available only if a public official has withheld rent. (*Dearie v Hunter*, 183 Misc 2d 336.) II. Both the plain meaning of the statute and the legislative history support appellant's position that tenants are authorized to enforce the Spiegel Law. (*Matter of Farrell v Drew*, 19 NY2d 486; *Desiderio v Ochs*, 100 NY2d 159; *New Amsterdam Cas. Co. v Stecker*, 3 NY2d 1.) III. The Spiegel Law's authorization of rent withholding by welfare recipients does not unconstitutionally impair the contractual rights of landlords. (*Matter of Farrell v Drew*, 19 NY2d 486; *Nordred Realities v Langley*, 169 Misc 659, 279 NY 636; *Matter of Department of Bldgs. of City of N.Y. [Philco Realty Corp.]*, 20 AD2d 851, 14 NY2d 291; *Crane Neck Assn. v New York City/Long Is. County Servs. Group*, 61 NY2d 154, 469 US 804; *Crystal Apts. Group v Hubbard*, 178 Misc 2d 333; *Bender v Jamaica Hosp.*, 40 NY2d 560.)

Community Service Society of New York, New York City (*Juan Cartagena* and *Risa E. Kaufman* of counsel), amicus curiae. I. Consistent with its literal meaning, the Spiegel Law was intended to ensure that public assistance recipients live in safe and decent housing. (*People v Finnegan*, 85 NY2d 53; *New Amsterdam Cas. Co. v Stecker*, 3 NY2d 1; *Matter of Long v Adirondack Park Agency*, 76 NY2d 416; *Ferres v City of New Rochelle*, 68 NY2d 446; *People v Ryan*, 274 NY 149; *Rust v Reyer*, 91 NY2d 355; *Matter of Farrell v Drew*, 19 NY2d 486; *Matter of Capital Newspapers v Whalen*, 69 NY2d 246.) II. The plain meaning of the Spiegel Law advances the Legislature's intended remedial purpose by inducing landlords to make necessary repairs and protecting tenants from substandard and unsafe housing conditions. (*Matter of Farrell v Drew*, 19 NY2d 486.)

OPINION OF THE COURT

ROSENBLATT, J.

On this appeal, we must determine the circumstances under which Social Services Law § 143-b (5) (a) (the Spiegel Law) allows a social services tenant to withhold rent based on dangerous violations in the building.

I.

Alexandra Rosario (tenant) resides with her husband and children in a Queens apartment owned by Notre Dame Leasing, LLC (landlord). The tenant, who receives public assistance, pays only a portion of her monthly rent, with the Human Resources Administration (HRA) paying the balance.

On January 4, 2000, the landlord commenced a summary proceeding against the tenant in Civil Court to recover \$1,454.43 in unpaid rent for October 1999 through January 2000. Relying on Social Services Law § 143-b (5), the tenant moved for summary judgment dismissing the proceeding. She asserted that because conditions in her building were “dangerous, hazardous or detrimental to life or health,” the law excused her from paying rent. In support, she submitted records from the New York City Department of Housing Preservation and Development (HPD) indicating that there were 33 class B and C violations in the building.¹

Notwithstanding these violations, the HRA did not withhold rent from the landlord, although it could have, pursuant to its powers under section 143-b (2). The tenant contended, however, that under section 143-b (5) of the Social Services Law the mere presence of such violations justified her nonpayment of rent, even without previous withholding by the HRA. In response, the landlord introduced proof that HPD had reinspected the building, dismissed 13 of the violations and marked others as “pending.” As the pivotal issue on this appeal, the landlord argued that the tenant could not invoke section 143-b (5) unless the HRA first withheld its share of the rent payments.

Civil Court found that the tenant had made a prima facie showing that section 143-b (5) authorized her to withhold rent, but stayed the matter until the landlord submitted proof that it had remedied the violations. The landlord appealed to the Appellate Term, which reversed Civil Court and denied the tenant’s motion for summary judgment. The Appellate Term concluded that a tenant could not invoke the section 143-b (5) defense because the “public welfare department”—here, the HRA—had not withheld its share of rent payments to the landlord, pursuant to its authority under Social Services Law § 143-b (2). The Appellate Term later granted the tenant’s motion for reargument and, following reargument, reaffirmed its earlier decision and granted the tenant leave to appeal to the Appellate Division.

By a divided Court, the Appellate Division affirmed the Appellate Term’s reading of section 143-b (5). Two Justices, however, concluded that the language of section 143-b (5) sup-

1. A class B violation is “hazardous,” whereas a class C violation is “immediately hazardous” (Administrative Code of City of NY § 27-2115 [c] [2], [3]).

ported the tenant's claim. The Appellate Division granted the tenant permission to appeal to this Court. We now affirm.

II.

Social Services Law § 143-b (5) (a) provides that it “shall be a valid defense in any action or summary proceeding against a welfare recipient for non-payment of rent to show existing violations in the building wherein such welfare recipient resides which relate to conditions which are dangerous, hazardous or detrimental to life or health as the basis for non-payment.” The tenant contends that she should be able to invoke this defense whenever there is a qualifying violation in her building, regardless of whether the “appropriate social services agency”—here the HRA—has first withheld rent on that basis. We conclude that the structure, language, history and legislative intent of the Spiegel Law negate the tenant's interpretation of section 143-b (5).

As we stated in *People v Mobil Oil Corp.* (48 NY2d 192, 199 [1979]), “[i]t is a well-settled principle of statutory construction that a statute or ordinance must be construed as a whole and that its various sections must be considered together and with reference to each other” (*see also* McKinney's Cons Laws of NY, Book 1, Statutes § 97). Although section 143-b (5) might be read to allow a defense untethered to the actions of the public welfare department, such an interpretation undermines the statutory scheme. Section 143-b (5) is a constituent provision of a statute that primarily addresses the rights and responsibilities of the “public welfare department” and “public welfare official[s],” and is best read that way.

Thus, section 143-b (1) authorizes the public welfare department to make direct rent payments to the landlord. Subdivision (2) authorizes public welfare officials to

“withhold the payment of any such rent in any case where he has knowledge that there exists or there is outstanding any violation of law in respect to the building containing the housing accommodations occupied by the person entitled to such assistance which is dangerous, hazardous or detrimental to life or health.”

The statute further obligates the “department or agency having jurisdiction over violations” to report them to the “appropriate public welfare department.” (*Id.*) Subdivision (3) empowers

public welfare officials to initiate rent reduction proceedings “whenever such official has knowledge that essential services . . . are not being maintained by the landlord or have been substantially reduced by the landlord.” Subdivision (4), in turn, permits the public welfare department to “obtain and maintain current records of violations in buildings where welfare recipients reside.” Finally, subdivision (6) allows the public welfare department to pay withheld rent “upon proof satisfactory to it that the condition constituting a violation was actually corrected.”

The dissent argues that the public welfare departments are apparently not using their powers under the Spiegel Law to withhold rent when violations are present. But it is for those agencies, not for us, to decide when their powers should be used. And if, indeed, the agencies are not doing enough, the proper remedy is for them to do more, not for us to rewrite the statute.

The dissent’s reading of section 143-b (5) is incompatible with the Spiegel Law’s framework. Section 143-b designates the public welfare department and its officials as the principal enforcement actors under the statute. It would be anomalous for the Legislature to fashion subdivision (5) as a private defense that tenants could invoke, independent of any agency action. Rather, section 143-b (5) is best understood as a means of shielding tenants from eviction when the public welfare department chooses to withhold rent, pursuant to its discretion under section 143-b (2). Indeed, the language of subdivision (5) itself suggests that agency action under section 143-b (2) is a condition precedent to a tenant’s invoking the section 143-b (5) defense. The Spiegel Law defense applies only when a building violation relating to “conditions which are dangerous, hazardous or detrimental to life or health” is the “basis for non-payment.” For the purposes of the Spiegel Law, however, agency action is required to determine the existence of a violation. Section 143-b (5) (c) provides that the “defenses provided herein . . . shall apply only with respect to violations reported to the appropriate public welfare department by the appropriate department or agency having jurisdiction over violations.”

The tenant’s interpretation of section 143-b (5) not only conflicts with the complex statutory scheme but also ignores the Spiegel Law’s history and purpose. According to amicus Legal Aid Society, at the time the Spiegel Law was enacted, public welfare department payments covered a tenant’s entire rent. In

promulgating Social Services Law § 143-b the Legislature intended to end the State's "subsidizing slumlords who abuse and exploit welfare tenants, but nevertheless receive guaranteed monthly rent checks . . . from the Dept. of Welfare" (Letter to Honorable Robert MacCrate from Assemblyman Samuel A. Spiegel, dated Apr. 6, 1962, Bill Jacket, L 1962, ch 997, at 61). In the words of section 143-b's sponsor, the Legislature sought to "attack[] the 'jugular vein' of the slumlord by temporarily withholding payments of rent until hazardous and dangerous violations are cleared" (*id.* at 62).² Elsewhere, Assemblyman Spiegel explained that, under the proposed law, "it would be a good defense in any action for non-payment of rent that there are dangerous or hazardous violations on a building and that *public funds* should not be permitted to be used to further the continuance of any building which is substandard" (Statement by Assemblyman Samuel A. Spiegel, dated Mar. 31, 1962, Bill Jacket, L 1962, ch 997, at 58-59 [emphasis added]).

In enacting section 143-b, the Legislature wanted to end government subsidies to landlords who failed to provide safe and habitable housing. As part of this effort, it created a defense that tenants could invoke when the public welfare department identified a violation in the building and withheld rent accordingly. The Legislature did not intend, however, to make this defense available to individual tenants when public welfare officials themselves recognized no imperative to suspend payment.

Although the tenant's interpretation of section 143-b would, in certain instances, promote the Legislature's objective of encouraging landlords to curb substandard conditions, it would also permit tenants to avoid paying rent for violations having no effect on them. As amended in 1997, RPAPL 745 (2) (a) requires tenants seeking to adjourn an eviction proceeding to "deposit with the court within five days sums of rent or use and occupancy accrued from the date the petition and notice of petition are served upon the respondent, and all sums as they become due for rent and use and occupancy." Section 745 (2) exempts from this undertaking provision tenants who claim

2. See also Attorney General's Memorandum for the Governor, dated April 21, 1962 (Bill Jacket, L 1962, ch 997, at 7), which states, "[t]his bill seeks to correct the anomalous condition wherein one municipal department seeks to prevent slum and dangerous conditions from being maintained at the same time that another governmental unit is financially rewarding such maintenance."

actual eviction, actual partial or constructive eviction, as well as those who interpose a defense pursuant to the Spiegel Law.

Thus, as the tenant would have it, public assistance tenants subject to eviction proceedings could cite any violation in their buildings—even those having no effect whatsoever on them—as a basis for interposing a Social Services Law § 143-b (5) defense and would not pay rent (or deposit any with the court) during the pendency of the proceedings.³ By contrast, in actions for eviction or unpaid rent, tenants claiming a breach of warranty of habitability under Real Property Law § 235-b (1)⁴ or who seek an abatement of rent under Multiple Dwelling Law § 302-a for a “rent impairing” violation⁵ must nevertheless deposit with the court the amount of rent sought to be recovered. We note that both Real Property Law § 235-b and Multiple Dwelling Law § 302-a permit tenants to withhold or abate rent for deficient conditions that, while outside their individual apartments, impair their occupancy and enjoyment of the building generally.

The Legislature designed Social Services Law § 143-b as a “weapon in the fight against slum housing in general” (*Matter of Farrell v Drew*, 19 NY2d 486, 490 [1967]). While we share the dissent’s concern over the importance of the Spiegel Law as a means of remedying substandard housing conditions, it would be improvident for us to rewrite the statute to reach that goal.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

CIPARICK, J. (dissenting). Because a plain reading of Social

3. We note, however, that section 143-b (2) does give the public welfare department discretion to withhold rent for any apartment in a building with a qualifying violation, regardless of the given apartment’s nexus with the violation.

4. In pertinent part, Real Property Law § 235-b (1) provides that a “landlord or lessor shall be deemed to covenant and warrant that the premises so leased or rented and all areas used in connection therewith in common with other tenants or residents are fit for human habitation and for the uses reasonably intended by the parties and that the occupants of such premises shall not be subjected to any conditions which would be dangerous, hazardous or detrimental to their life, health or safety.” We note that the tenant has raised breach of warranty of habitability as an affirmative defense in this case.

5. Multiple Dwelling Law § 302-a (2) (a) defines a “rent impairing” violation as “a condition in a multiple dwelling which . . . constitutes, or if not promptly corrected, will constitute, a fire hazard or a serious threat to the life, health or safety of occupants thereof.”

Services Law § 143-b (5)—the Spiegel Law—allows a recipient of public assistance, under certain circumstances, to interpose a defense to an action or summary proceeding for the nonpayment of rent, where a “public welfare” agency has not previously withheld its share of the rent, I respectfully dissent.

The statute provides that “[i]t shall be a valid defense in any action or summary proceeding against a welfare recipient for non-payment of rent to show existing violations in the building wherein such welfare recipient resides which relate to conditions which are dangerous, hazardous or detrimental to life or health as the basis for non-payment” (Social Services Law § 143-b [5] [a]). It also provides that a landlord will not be entitled to a monetary award against the tenant or to possession of the premises where these types of hazardous violations are present (*see* Social Services Law § 143-b [5] [b]).

It is well-established that statutory interpretation begins with the plain language of the statute (*see Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95, 104 [2001]; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). “As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof” (*Majewski*, 91 NY2d at 583). This primary rule of statutory interpretation has been eschewed by the majority in favor of a construction that considers the statute as a whole and sets forth some “equivocal evidence of legislative intent” (*Desiderio v Ochs*, 100 NY2d 159, 169 [2003]). I prefer a literal reading and look to the unambiguous language of the statute.

The unambiguous language of Social Services Law § 143-b (5) makes no mention of the public welfare official or agency. There is nothing in the provision requiring that the agency must act first to withhold rent on the tenant’s behalf. Thus, the plain language of the statute permits a tenant to invoke the Spiegel Law defense for nonpayment of rent, regardless of whether there has been a prior withholding of rent by the public welfare agency, here the New York City Human Resources Administration. Further, as this Court has previously noted, section 143-b is remedial in nature (*see Matter of Farrell v Drew*, 19 NY2d 486, 493-494 [1967]). As such, it must be liberally construed to accomplish its intended purpose (*see Matter of New York County DES Litig.*, 89 NY2d 506, 514 [1997]). The statute should not be read to imply a restriction that does not appear on its face.

However, even construing the statute as a whole and applying the canon of construction urged by the majority, does not lead

to the conclusion that it is the public welfare agency who must first withhold rent in order for the tenant to be able to invoke the Spiegel Law defense. As the dissenting Appellate Division Justices most aptly observed, the absence of any reference to public welfare officials in subdivision (5) lends itself equally well to the interpretation that the Legislature—which referenced either the public welfare department or public welfare official in subdivisions (1) through (4)—intentionally omitted such reference and intended to allow tenants to withhold their own rent where appropriate in subdivision (5) (308 AD2d 164, 175-176 [2003] [Luciano, J., dissenting]).

Generally, the purpose for reading provisions of a statute as a whole is to accurately determine the legislative intent (*see* McKinney's Cons Laws of NY, Book 1, Statutes § 97). But here, the legislative intent was clear—to attempt to ameliorate the poor housing conditions faced by many tenants receiving public assistance. The “Declaration of purpose and necessity” states that:

“[t]he legislature hereby finds and declares that certain evils and abuses exist which have caused many tenants, who are welfare recipients, to suffer untold hardships, deprivation of services and deterioration of housing facilities because certain landlords have been exploiting such tenants by failing to make necessary repairs and by neglecting to afford necessary services in violation of the laws of the state” (L 1962, ch 996, § 1; *see also Farrell*, 19 NY2d at 490 [indicating that the legislation was intended to combat “slum housing”]).

The provision was clearly enacted because existing remedies were insufficient to combat the problems faced by tenants receiving public assistance. Allowing tenants to withhold rent themselves continues to further the purpose of the statute, especially in light of the present situation where public welfare officials apparently are not using their statutory power to withhold rent when violations are present. Welfare officials typically do not withhold payments before an action or a special proceeding is commenced (*see* Lebovits, *Nonpayment Proceedings: The So-Called Spiegel Defense*, 2 Landlord-Tenant Prac Rep 1, 5 [May 2001]). In light of this inaction, the majority's interpretation of the statute essentially thwarts its purpose—taking away the threat of nonpayment of rent to offending landlords and the incentive to make repairs. A plain reading of the statute is nei-

ther an attempt to undermine the statutory scheme nor to rewrite it (*see* majority op at 465, 467), but preserves for *all* recipients of public assistance a defense conferred by the Legislature.*

The prevailing practice at the time the statute was enacted was for a public welfare agency to pay the entire amount of the tenant's rent. The rent payments would ordinarily be made to the tenant, who would then pay the landlord, in the absence of habitual delinquency or certain other circumstances (*see* Joint Legis Comm on Hous and Multiple Dwellings Mem in Support, Bill Jacket, L 1962, ch 997, at 12). For this reason, it is not surprising that the legislative history reflects a desire to stop the use of public funds to support substandard housing (*see* majority op at 465-466). This is in contrast to the current practice, where the agency pays only a portion of the rent in the form of a shelter grant and the tenant pays the difference. However, the broad language of section 143-b (5) (a) has remained unchanged.

In addition, a statutory safeguard is in place to protect against abuses. Section 143-b (5) (c) requires that the Spiegel Law defense will only be available where the existing violations have been reported to the welfare officials by an appropriate agency, here the New York City Department of Housing Preservation and Development. Thus, only documented violations would qualify. This dispels the concern that the defense can be abused by tenants attempting to avoid paying rent (*see* majority op at 467). It is perhaps debatable whether hazardous conditions or conditions harmful to one's life or health existing in the building—although not in the tenant's own apartment—would have no effect on the tenant. However, as the majority observes in a footnote, the statute allows for the defense where violations exist in a building “regardless of the given apartment's nexus with the violation” (majority op at 467 n 3).

Further support for the position that a tenant does not have to await action by a public welfare official to invoke the Spiegel Law defense can be found in Real Property Actions and Proceedings Law § 745. This relatively recent 1997 enactment—part of the Rent Regulation Reform Act of 1997 (L 1997, ch 116, § 36)—requires a tenant in a summary proceeding wherein an adjournment is requested by the tenant to deposit a sum with the court

* It certainly is an anomaly to have two different groups of welfare tenants, one where the public welfare agency has previously withheld the payment of rent, with access to a Spiegel Law defense, and a second group where this “condition precedent” has not been met, without the benefit of such defense.

sufficient to cover the amount of rent or use and occupancy from the date of the commencement of the action unless, among other things, the tenant can demonstrate that he or she has properly interposed a Spiegel Law defense (*see* RPAPL 745 [2] [a] [iii]). The provision does not differentiate between sums paid by the tenant and sums paid by a public welfare agency. It makes clear only that the tenant is not required to deposit any portion of the rent. Certainly if the intent was otherwise, the Legislature could have said so. Neither does the availability of other remedies such as Real Property Law § 235-b—the warranty of habitability statute—or Multiple Dwelling Law § 302-a—which defines a rent impairing violation—lead to the conclusion that the Legislature intended a requirement of prior withholding of rent by a public welfare agency as a precondition to a tenant’s invocation of the Spiegel Law defense.

In conclusion, the plain language of section 143-b does not require a public welfare agency to withhold rent before a tenant can assert the Spiegel Law defense in an action or summary proceeding for nonpayment of rent. In light of the remedial nature of the statute and the broad legislative purpose to correct the unique problems faced by tenants receiving public assistance living in substandard housing, such a restriction should not be read into the provision. The legislative intent is best served by a plain reading of the statute, authorizing tenants receiving public assistance to withhold rent when documented hazardous violations exist on the premises that are dangerous to life or health. If the public policy in this area has changed over the last 40 years, then it is for the Legislature to redraft the statute to reflect it. It cannot be done by ignoring the plain language of the statute and its overriding purpose and intent “which is to ensure decent housing for economically fragile individuals” (308 AD2d at 176 [Luciano, J., dissenting]).

Therefore, I would reverse the order of the Appellate Division and grant appellant’s motion for summary judgment dismissing the petition.

Chief Judge KAYE and Judges GRAFFEO, READ and R.S. SMITH concur with Judge ROSENBLATT; Judge CIPARICK dissents and votes to reverse in a separate opinion in which Judge G.B. SMITH concurs.

Order affirmed, etc.

[812 NE2d 298, 779 NYS2d 808]

In the Matter of ATM ONE, LLC, Appellant, v ANA LANDAVERDE,
Respondent.

Argued April 29, 2004; decided June 3, 2004

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered August 4, 2003. The Appellate Division affirmed an order of the Appellate Term of the Supreme Court in the Second Judicial Department (op 190 Misc 2d 76) which had (1) dismissed as superseded an appeal from an order of the District Court of Nassau County (Norman Janowitz, J.), dated November 30, 2000, granting respondent's motion to dismiss the petition, and (2) affirmed an order of that District Court, dated March 1, 2001, granting reargument and, upon reargument, adhering to its earlier determination. The following question was certified by the Appellate Division: "Was the decision and order of this [C]ourt dated August 4, 2003, properly made?"

Matter of ATM One v Landaverde, 307 AD2d 922, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Application of Five-Day Mailing Rule to Service of Notice to Cure

Owners who elect to serve their rent-stabilized tenants with notices to cure by mail under Emergency Tenant Protection Regulations (9 NYCRR) § 2504.1 must compute the date certain by which the cure must be effected by adding 5 days to the 10-day minimum cure period (*see e.g.* CPLR 2103 [b] [2]). Although CPLR 2103 applies to pending actions and is not applicable to the commencement of summary proceedings, the addition of a definite number of days is necessary for service by mail to ensure that tenants are not disadvantaged by the owner's choice of service method. This approach best effectuates the regulatory purpose to afford tenants a 10-day cure period before they may be subject to lease termination for designated violations. Service will be deemed complete upon mailing, and a properly executed affidavit of service will raise a presumption that proper mailing occurred.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant §§ 264–267, 275, 1031;
AM JUR 2d, Process §§ 227, 228.
CARMODY-WAIT 2d, Service and Filing of Papers §§ 20:20,
20:26; CARMODY-WAIT 2d, Summary Proceedings to Re-
cover Possession of Real Property §§ 90:38, 90:41.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT INCLUDING SUMMARY PROCEEDINGS (4th ed) § 32:24.
McKINNEY'S, CPLR 2103.
NY JUR 2d, Pleading § 84; NY JUR 2d, Process and Papers § 135; NY JUR 2d, Real Property—Possessory and Related Actions §§ 47–50, 168.
NEW YORK REAL PROPERTY SERVICE §§ 79:10, 79:24.
SIEGEL, NY PRAC § 202.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Process and Service of Process and Papers.

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POINTS OF COUNSEL

Wolfson & Grossman, Westbury (Paula Schwartz Frome of counsel), for appellant. The court below erred in its interpretation of the controlling regulations. (*People v Cypress Hills Cemetery*, 208 AD2d 247; *Matter of Nicit v Regan*, 199 AD2d 606; *Matter of American Motors Sales Corp. v Brown*, 152 AD2d 343; *Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98; *Pajak v Pajak*, 56 NY2d 394; *Prego v City of New York*, 147 AD2d 165; *Village of Webster v Town of Webster*, 270 AD2d 910; *Department of Fin. of City of N.Y. v New York Tel. Co.*, 262 AD2d 96; *Matter of Lanthier v Department of Transp.*, 183 AD2d 1083; *Lewis v Clothes Shack*, 67 Misc 2d 621.)

Community Legal Assistance Corp., Hempstead (Stefan H. Krieger of counsel), for respondent. I. The narrow issue in this case is when service by mail is deemed complete for a notice to cure under the Emergency Tenant Protection Regulations. (*Engel v Lichterman*, 62 NY2d 943.) II. Since the language of Emergency Tenant Protection Regulations (9 NYCRR) § 2504.1 (d) (1) is silent as to the time when service of a notice to cure by mail is deemed complete, the Appellate Division properly did not adhere to plain language analysis. (*Sorrento v Rice Barton Corp.*, 286 AD2d 873; *Pardi v Barone*, 257 AD2d 42; *Matter of Thomas v Bethlehem Steel Corp.*, 95 AD2d 118, 63 NY2d 150; *Matter of Knickerbocker Ins. Co. [Gilbert]*, 28 NY2d 57; *Matter of Finest Rest. Corp. [L & A Music Co.]*, 52 Misc 2d 87; *Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98; *People v Cypress*

Hills Cemetery, 208 AD2d 247; *Matter of McCulloch v New York State Ethics Commn.*, 285 AD2d 236; *Matter of Nicit v Regan*, 199 AD2d 606; *Matter of American Motor Sales Corp. v Brown*, 152 AD2d 343.) III. Because the Emergency Tenant Protection Regulations are silent as to the time when service is deemed complete, the Appellate Division properly borrowed from the procedural scheme for termination of commercial leases. (*Matter of David L.*, 119 Misc 2d 477; *Matter of Raritan Dev. Corp. v Silva*, 91 NY2d 98; *N.Y.A.A.D., Inc. v State of New York*, 1 NY3d 245; *NL Indus., Inc. v PaineWebber, Inc.*, 720 F Supp 293; *Lewis v Clothes Shack*, 67 Misc 2d 621; *Grabino v Howard Stores Corp.*, 110 Misc 2d 591; *Nestor v McDowell*, 81 NY2d 410; *People v Garland*, 69 NY2d 144; *Warren St. Assoc. v City Hall Tower Corp.*, 202 AD2d 200.) IV. The Appellate Division's interpretation that service is complete upon receipt is supported by the language of other provisions within the Emergency Tenant Protection Regulations. (*Anglin v Anglin*, 80 NY2d 553; *Matter of Roballo v Smith*, 99 AD2d 5, 63 NY2d 485; *Monarch Ins. Co. v Pollack*, 32 AD2d 819; *Matter of Finest Rest. Corp. [L & A Music Co.]*, 52 Misc 2d 87; *Matter of Medical Socy. of State of N.Y. v State of N.Y. Dept. of Health*, 83 NY2d 447.) V. The Appellate Division's interpretation that service is complete upon receipt is consistent with other statutory service schemes in New York that compensate for additional time when service is made by mail. (*New York State Assn. of Counties v Axelrod*, 78 NY2d 158; *Matter of Biondo v New York State Bd. of Parole*, 60 NY2d 832; *Matter of Knickerbocker Ins. Co. [Gilbert]*, 28 NY2d 57.) VI. If mailing of a notice to cure is completion of service, Emergency Tenant Protection Regulations (9 NYCRR) § 2504.1 (d) (1) (i) (c) violates respondent's right to equal protection. (*Schweiker v Wilson*, 450 US 221; *Lindsey v Normet*, 405 US 56; *Logan v Zimmerman Brush Co.*, 455 US 422.)

OPINION OF THE COURT

GRAFFEO, J.

In this appeal, the owner of a building challenges the dismissal of its holdover proceeding against a tenant allegedly violating the maximum occupancy provision of the parties' lease. We conclude that the proceeding was properly dismissed because the tenant was not afforded 10 days written notice to cure the alleged violation.

Section 2504.1 of the Division of Housing and Community Renewal's Emergency Tenant Protection Regulations sets forth restrictions regarding the removal of a tenant in a rent-

stabilized housing accommodation. Prior to commencing a proceeding to recover possession based on a tenant's wrongful act, an owner must give the tenant written notice to cure (9 NYCRR 2504.1 [d] [1] [i]). The notice must state the wrongful acts of the tenant, the facts necessary to establish such acts and "the date certain by which the tenant must cure said wrongful acts or omission, *which date shall be no sooner than 10 days following the date such notice to cure is served upon the tenant*" (*id.* subcl [c] [emphasis added]). A proceeding may not be maintained if the tenant cures the specified wrongful act "by or before the date specified" (§ 2504.1 [d] [1] [ii]). At the time relevant to this appeal, the regulations also provided that

"[n]otices, orders, protests, answers and other papers may be served personally or by mail. When service is made personally or by mail, an affidavit by the person making the service or mailing shall constitute sufficient proof of service. When service is by registered or certified mail, the return post office receipt shall constitute sufficient proof of service" (9 NYCRR 2508.1 [a]).¹

Respondent tenant leases a one-bedroom apartment in Freeport, New York from petitioner owner. On September 8, 2000, owner served tenant with a "Notice of Default; Ten Days' Notice to Cure; Thirty Days' Notice of Cancellation," alleging overcrowding in violation of the lease. The notice was sent by certified and regular mail on September 8, 2000, and set a "date certain" of September 18, 2000 for cure. It is undisputed that tenant received the notice on September 9, 2000, thus affording her only nine days to cure.

After expiration of the 30-day cancellation period, owner commenced this holdover proceeding against tenant. Tenant moved to dismiss the petition on the basis that she did not receive the mandated 10-day opportunity to cure. Owner opposed the motion, arguing that the 10-day period commenced upon mailing of the notice on September 8 and that tenant therefore received the requisite time to cure.

District Court dismissed the petition. In order to address the failure of the regulations to define when a mailed notice to cure shall be deemed served, the court "borrow[ed] the concept embodied in" CPLR 2103 by requiring owners to add five days

1. The regulation was subsequently amended to permit electronic service, among other changes.

to the prescribed period when serving by mail. Upon granting reargument, District Court adhered to its determination. Appellate Term affirmed. Although it agreed with District Court's rationale "that the regulatory purpose was to afford a tenant the full 10 days prescribed in which to cure a breach," the court rejected the addition of five days for service by mail in favor of a rule that service is complete upon delivery (190 Misc 2d 76, 77 [2001]). Owner appealed.

The Appellate Division also affirmed the dismissal of owner's petition. The Court defined service under the regulations "in terms of receipt rather than in terms of mailing" to effectuate the underlying policies and avoid "the possibility that, in a case involving an abnormally extended delay in the delivery of the mail, a tenant might not be told of the date within which he or she may cure a violation until after that date has actually passed" (307 AD2d 922, 923, 924 [2d Dept 2003]). Two Justices dissented and voted to reinstate the petition. The dissenting Justices viewed the plain meaning of the regulations as establishing that "the date of service is the date [the notice] was mailed as evidenced by a contemporaneous affidavit of service" and expressed concern that the Court's holding rendered the provision permitting service by mail ineffective because the owner "will never be able to know when the notice is actually received" (*id.* at 925). The Appellate Division granted owner leave to appeal to this Court.

Owner urges that, under the plain meaning of the regulations, service of the notice to cure was complete on September 8, the date the notice was mailed. Owner thus contends that the notice's September 18 date certain complied with the regulations, notwithstanding that once tenant received the notice she had only nine days to rectify her alleged lease violation. In contrast, tenant asserts that because the regulations are silent with respect to when service of a mailed notice to cure is deemed complete, the courts below properly looked to the policies and intent underlying the regulations to resolve the issue. In light of these considerations, tenant argues that the regulation entitles her to the full 10-day cure period before a holdover proceeding may be maintained and that this Court should adopt District Court's approach and require owners who mail notices to add five days when calculating the date certain by which tenants must cure. We agree with tenant and therefore affirm.

In matters of statutory and regulatory interpretation, we have repeatedly recognized that

“legislative intent is the great and controlling principle, and the proper judicial function is to discern and apply the will of the [enactors]. Generally, inquiry must be made of the spirit and purpose of the legislation, which requires examination of the statutory context of the provision as well as its legislative history” (*Mowczan v Bacon*, 92 NY2d 281, 285 [1998] [internal quotation marks and citations omitted]; see *Matter of Sutka v Connors*, 73 NY2d 395, 403 [1989]).

We are further guided by the tenet that regulations—like statutes—should be construed to avoid objectionable results (see *People v Dozier*, 78 NY2d 242, 250 [1991]; McKinney’s Cons Laws of NY, Book 1, Statutes § 141; see also 2 NY Jur 2d, Administrative Law § 184 [administrative regulations generally subject to same canons of construction as statutes]).

The Division of Housing and Community Renewal (DHCR) adopted the regulations at issue in this case pursuant to its powers under the Emergency Tenant Protection Act of 1974 (ETPA [L 1974, ch 576, § 4, as amended]; see 9 NYCRR 2500.1). The Legislature enacted the ETPA to address the “serious public emergency” in housing across New York State as evidenced by “an acute shortage of housing accommodations” (McKinney’s Uncons Laws of NY § 8622 [ETPA § 2]). In the legislative finding for the most recent extension of the Act, the Legislature determined that “preventive action . . . continues to be imperative in order to prevent exaction of unjust, unreasonable and oppressive rents and rental agreements and to forestall profiteering, speculation and other disruptive practices tending to produce threats to the public health, safety and general welfare” (*id.*).

As every court to consider this case thus far has recognized, the regulation that purports to answer the question of when service of a notice is complete does not actually do so. It identifies permissible service methods and what constitutes proof of service but fails to specify when such service is deemed to have occurred if service by mail is utilized. Reading the service provision (9 NYCRR 2508.1 [a]) together with the notice to cure regulation (9 NYCRR 2504.1 [d]), we conclude that District Court’s approach best effectuates the regulatory purpose to afford tenants a 10-day cure period before they may be subject to lease termination for designated violations. We therefore hold that owners who elect to serve by mail must compute the date certain by adding five days to the 10-day minimum cure period

(see e.g. CPLR 2103 [b] [2]). In this manner, service will be deemed complete upon mailing, and a properly executed affidavit of service will raise a presumption that proper mailing occurred (see *Kihl v Pfeffer*, 94 NY2d 118, 122 [1999]; *Engel v Lichterman*, 62 NY2d 943, 944-945 [1984]). “[M]ere denial of receipt is not enough to rebut this presumption” (*Kihl*, 94 NY2d at 122).² By its terms, of course, CPLR 2103 applies to pending actions, and we therefore do not extend its applicability to the commencement of summary proceedings. We agree with District Court, however, that the addition of a definite number of days is necessary for service by mail to ensure that tenants are not disadvantaged by an owner’s choice of service method, and that such an addition provides a practical and fair solution to this regulatory ambiguity.

The rule advocated by owner—which would define the act of mailing as completion of service and permit owners to calculate the “date certain” from that starting point—is inconsistent with regulatory purpose to provide tenants a 10-day opportunity to cure and would lead to unpredictable results. The Appellate Division and Appellate Term rule, deeming service complete upon a tenant’s receipt of the notice, is similarly flawed because an owner could not reliably compute and insert the date certain on the notice as required by the regulations. Instead, the rule we adopt balances the need for orderly and efficient resolution of lease violations with the stated legislative purposes of the ETPA. Here, the subject notice did not form a valid predicate for terminating the lease because the date certain as established by owner, when paired with the chosen service method, did not provide tenant the minimum 10-day cure period. Thus, owner’s holdover proceeding was properly dismissed on this ground. We encourage DHCR to amend its regulations consistent with this determination in order to provide better guidance to parties who elect to serve notices to cure by mail.

Accordingly, the order of the Appellate Division should be affirmed, with costs. The certified question should not be answered upon the ground that it is unnecessary.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

Order affirmed, etc.

2. Indeed, the amended version of section 2508.1 (a) expressly provides that “[o]nce sufficient proof of service has been submitted to the division, the burden of proving nonreceipt shall be on the party denying receipt.”

[812 NE2d 932, 780 NYS2d 106]

In the Matter of JOSEPH J. CERBONE, a Justice of the Mount Kisco Town Court, Westchester County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Argued April 29, 2004; decided June 3, 2004

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, to review a determination of respondent State Commission on Judicial Conduct, dated September 19, 2003. The Commission determined that petitioner should be removed from the office of Justice of the Mount Kisco Town Court, Westchester County.

HEADNOTE

Judges — Removal from Office — Appropriateness of Sanction

The determined sanction of removal of petitioner Town Justice, who, in his private law practice, converted funds from an escrow account and, as a judge, engaged in conduct that was intended to retaliate against the District Attorney for making a previous complaint about petitioner, was appropriate. Removal was not too severe in light of the severity of the misconduct involved and petitioner's extensive prior history, including five previous State Commission on Judicial Conduct proceedings. Several of the proceedings were based on more than one incident, and evidenced that petitioner seemed incapable of understanding, despite repeated warnings, that a judge performing judicial duties must both act and appear to act as an impartial arbiter serving the public interest, not someone with an axe to grind.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Judges §§ 17, 20.

CARMODY-WAIT 2d, Officers of Court §§ 3:105, 3:125, 3:128, 3:129, 3:131.

NY JUR 2d, Courts and Judges §§ 341, 342, 351, 440, 441, 443.

ANNOTATION REFERENCE

See ALR Index under Judges.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: justice /6 town /p remov! /3 office & convert! /p retaliat!

POINTS OF COUNSEL

Richard E. Grayson, White Plains, for petitioner. I. The conduct alleged to have occurred is not so egregious as to warrant the ultimate sanction of removal. (*Matter of Cunningham*, 57 NY2d 270; *Matter of Kiley*, 74 NY2d 364; *Matter of Boulanger*, 61 NY2d 89; *Matter of Tamsen*, 100 NY2d 19; *Matter of Embser*, 90 NY2d 711; *Matter of Ponzini*, 259 AD2d 142; *People v Moreno*, 70 NY2d 403; *People v Smith*, 63 NY2d 41; *Matter of Murphy*, 82 NY2d 491; *Matter of Duckman*, 92 NY2d 141.) II. This Court has a history of rejecting the State Commission on Judicial Conduct's determination of removal, and this case fits within the criteria to reject the sanction of removal. (*Matter of Kiley*, 74 NY2d 364; *Matter of Shilling*, 51 NY2d 397; *Matter of Skinner*, 91 NY2d 142; *Matter of Watson*, 100 NY2d 290; *Matter of LaBelle*, 79 NY2d 350; *Matter of Edwards*, 67 NY2d 153; *Matter of Kelso*, 61 NY2d 82; *Matter of Cunningham*, 57 NY2d 270; *Matter of Quinn v State Commn. on Jud. Conduct*, 54 NY2d 386; *Matter of Kuehnel v State Commn. on Jud. Conduct*, 49 NY2d 465.)

Robert H. Tembeckjian, New York City, for respondent. I. Petitioner's conversion of a client's funds constituted egregious misconduct. (*Matter of Boulanger*, 61 NY2d 89; *Matter of Tamsen*, 100 NY2d 19; *Matter of Embser*, 90 NY2d 711; *Matter of Kelso*, 61 NY2d 82.) II. Petitioner's misuse of judicial office to retaliate against the District Attorney and otherwise to pursue a personal agenda was prejudicial to the administration of justice. III. Petitioner's egregious misconduct warrants his removal from judicial office.

OPINION OF THE COURT

Per Curiam.

Petitioner, a Justice of the Mount Kisco Town Court, Westchester County, seeks review of a determination of the State Commission on Judicial Conduct. The Commission decided that petitioner should be removed from office because of (1) conduct as an attorney in converting funds from an escrow account and (2) conduct as a judge which, the Commission found, was intended to retaliate against the Westchester County District Attorney for making a previous complaint to the Commission about petitioner. In view of the conduct of petitioner that led to this and five previous Commission proceedings, we accept the sanction as determined by the Commission.

Petitioner's Previous History with the Commission

In 1993, the Commission sent petitioner a Letter of Dismissal and Caution addressing two instances of petitioner's misuse of his judicial position. He had directed some defendants who appeared before him "to attend a village board meeting to complain about snow emergency regulations" and thus to "advance [petitioner's] personal position on . . . snow emergency signs." He had also made, from the bench, a complaint to an attorney for a carting company that was a defendant in a criminal proceeding before him; petitioner had expressed unhappiness with the company's operation of trucks on a Mount Kisco street. The Commission dismissed the complaint against petitioner that was based on these incidents, but cautioned him to adhere to the relevant provisions of the Rules of Judicial Conduct.

In 1996, the Commission admonished petitioner on the basis of two separate series of events. The first of these occurred during a criminal case before petitioner in which the defendant was the son of people petitioner had represented. Petitioner telephoned the complaining witness *ex parte* and made favorable remarks about the defendant that persuaded the witness to withdraw the complaint. Petitioner then dismissed the charges, over the prosecution's objection, without disclosing either his prior relationship with the defendant's family or his conversation with the witness. The Commission found that petitioner's telephone call and his failure to disclose it created an "appearance of favoritism." The other basis for the 1996 admonition was a practice followed by petitioner for a few months in late 1993 and early 1994 of conducting arraignments in the Mount Kisco police station, rather than in a public courtroom.

In 1997, petitioner received two more Letters of Dismissal and Caution from the Commission. The first of these related to a lawsuit by petitioner's sister against the Village of Mount Kisco, in which petitioner had listed himself as his sister's attorney and engaged in settlement discussions with counsel for the insurance carrier. The Commission told petitioner that "[a] part-time judge should not act as an attorney in a lawsuit against the municipality in which the judge sits."

Later in 1997, the Commission again cautioned petitioner, this time on the basis of a letter petitioner had written on judicial stationery to a former public official "concerning files that [the recipient] had supposedly kept on [petitioner] and oth-

ers.” Petitioner had “demanded a list of all those upon whom such files were maintained.” The Commission told petitioner that “[b]y using judicial stationery in connection with what was essentially a private, political dispute, you used the prestige of your office to further your personal interests.” The Commission added: “It is troubling that even on reflection you insist that the use of judicial stationery under these circumstances was appropriate.”

In 1999, petitioner received his last Letter of Dismissal and Caution. This one concerned an attorney who had appeared before him. The Commission’s 1999 letter stated that “in several cases, you advised clients of [the attorney] that he had made a complaint to the Commission against you and inquired as to whether they would seek your recusal.” The Commission said that by taking this approach—i.e., by making the attorney’s clients aware of the problem, rather than simply deciding for himself whether he should be recused—petitioner was “interfering with attorney-client relationships in apparent retaliation for the complaint made against you.” The Commission also noted that, in one case where the attorney was defense counsel, petitioner “restored the case to the court calendar a day after it had been disposed of so that [he] could discuss an advisory opinion concerning disqualification with [the attorney].” This conduct, the Commission’s letter stated, “constituted abuse of your judicial powers” because petitioner had placed the defendant again in jeopardy in order to “make a point” with her attorney. The Commission added that this “extraordinary procedure . . . created the reasonable impression that you were retaliating against [the attorney].”

The Present Proceeding

A. The Escrow

The first of the two charges against petitioner that the Commission sustained in this proceeding arose out of petitioner’s private law practice. In 1999, while petitioner was representing the executrix of an estate, a tax refund check, made out to the executrix, was sent to petitioner. Without his client’s knowledge or consent, petitioner deposited the check in his escrow account and then wrote a check on that account to himself for his attorney’s fee.

As a result of this action, petitioner was suspended from the practice of law for one year. (*Matter of Cerbone*, 295 AD2d 66 [2d Dept 2002].) In choosing to suspend petitioner rather than

to disbar him the Appellate Division relied upon “the totality of circumstances, including the absence of venality.” (*Id.* at 68.)

B. The Dispute with the District Attorney

The second charge sustained by the Commission in this proceeding is based on petitioner’s inappropriate expressions of displeasure with the Westchester County District Attorney during 2001 and 2002. This displeasure apparently grew out of the proceeding which led the Commission to admonish petitioner in 1996. As noted above, the Commission found that petitioner had acted improperly by having an *ex parte* conversation with a complaining witness that led her to withdraw a criminal complaint. Petitioner evidently blamed the District Attorney for bringing this incident to the Commission’s attention, and as a result, the Commission found in the present case, he engaged in the following conduct:

1. He “prepared and distributed to defense attorneys who appeared before him in criminal cases a form letter which he asked them to complete and mail to the office of the District Attorney.” The form letter disclaimed any professional or social relationship between the defendant in the criminal case and petitioner.

2. When distributing the form letter, petitioner “frequently made remarks to the effect that the District Attorney had previously filed a complaint against him which had cost him half a million dollars to defend against and that due to illnesses in his family he had neither the time or money to defend himself against future complaints.” These remarks were made in open court, in the hearing of an assistant district attorney and of defense lawyers and defendants present for the call of the criminal calendar.

3. Petitioner “recused himself *sua sponte* from four shoplifting cases while stating that he was doing so because the District Attorney had failed to prosecute former Mount Kisco employees for their private use of computers belonging to the Town, despite clear evidence of their crimes.” As a result of petitioner’s recusal, the cases had to be reassigned to petitioner’s co-justice, who would not sit until the following month, thus necessitating an extra court appearance for defendants and their lawyers.

4. Petitioner stated on several occasions to those present in his court “that his office telephone was ‘tapped,’ that the

District Attorney was keeping ‘dossiers’ on him, and that he was ‘being watched.’ ”*

C. The Commission’s Ruling

Based on its findings of fact, the Commission concluded that petitioner had violated eight provisions of the Rules of Judicial Conduct (22 NYCRR part 100): sections 100.1 (general requirement of “high standards of conduct”); 100.2 (A) (obligation to “respect and comply with the law and . . . act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary”); 100.3 (B) (2) (obligation to “require order and decorum in proceedings”); 100.3 (B) (3) (obligation to be “patient, dignified and courteous” to litigants and others); 100.3 (B) (4) (obligation to perform duties “without bias or prejudice”); 100.3 (B) (7) (obligation to “dispose of all judicial matters promptly, efficiently and fairly”); 100.4 (A) (2) (prohibition on extrajudicial activities that “detract from the dignity of judicial office”); and 100.4 (A) (3) (prohibition on extrajudicial activities that “interfere with the proper performance of judicial duties” or are “incompatible with judicial office”). The Commission also determined that, because petitioner “converted funds entrusted to his care” and “used his courtroom as a forum for expressing his personal grievances against the District Attorney,” he “lacks the judgment and temperament to sit on the bench and is unfit for judicial office.”

Discussion

Our role in this proceeding is to review the Commission’s findings of fact and conclusions of law, and to decide whether the sanction determined by the Commission, or another sanction or no sanction, should be imposed. (NY Const, art VI, § 22 [d].)

Petitioner does not challenge the Commission’s findings of fact. We agree with those findings and with the Commission’s

* Petitioner asserted at the hearing before the Commission in this case that his telephone had indeed been “tapped” from 1993 to 1997. The basis for this allegation was that, until 1997, two lines used by petitioner’s court were linked to the telephone system of the police department (which was in the same building), so that the police department’s recording equipment could record calls originating from those two lines. After petitioner became aware of and complained about this situation, the District Attorney conducted an investigation and concluded that, while the connection between the court and police lines did exist, neither court nor police personnel had been aware of it.

Evidence before the Commission also established that the District Attorney had in her file four documents relating to the matter that resulted in the 1996 admonition. These documents, in petitioner’s view, constituted a “dossier.”

conclusions that petitioner violated sections 100.1, 100.2 (A) and 100.3 (B) (3), (4) and (7) of the Rules of Judicial Conduct. It is not necessary to consider the other sections relied on by the Commission.

Petitioner's sole argument is that the sanction of removal is too severe for this case. In making this argument, he relies on our statement in *Matter of Cunningham* (57 NY2d 270, 275 [1982]): "Removal is an extreme sanction and should be imposed only in the event of truly egregious circumstances Indeed, we have indicated that removal should not be ordered for conduct that amounts simply to poor judgment, or even extremely poor judgment . . ." (citations omitted).

Petitioner points out that we have sometimes rejected the sanction of removal where we found misconduct to be based on failings of judgment rather than on more profound flaws of character. (See *Matter of Kelso*, 61 NY2d 82 [1984] [judge who, as a private lawyer, mishandled a case and misled his client about it, but did not receive any fee or other sum from his client]; *Matter of LaBelle*, 79 NY2d 350, 363 [1992] [improper rulings that were "motivated primarily by compassion"]; *Matter of Kiley*, 74 NY2d 364, 370 [1989] [improper actions at the request of friends with no "element of venality, selfish or dishonorable purpose"].) The Commission stresses that the present case, unlike those cited above, involved the conversion of client funds, and relies on *Matter of Boulanger* (61 NY2d 89 [1984]), *Matter of Tamsen* (100 NY2d 19 [2003]) and *Matter of Embser* (90 NY2d 711 [1997]) as holding that financial improprieties are the sort of egregious conduct that warrant removal. Petitioner responds that in *Boulanger*, *Tamsen* and *Embser* there was an element of "venality," which the Appellate Division, in suspending petitioner from the practice of law for one year, found to be absent here.

In deciding the appropriate sanction we consider both the severity of the misconduct involved in this proceeding and petitioner's extensive prior history. This is his *sixth* encounter with judicial discipline, and several of the prior proceedings were, as this one is, based on more than one incident. While the facts of the cases differ greatly, many of them involve a common theme: petitioner seems incapable of understanding, despite repeated warnings, that a judge performing judicial duties must both act and appear to act as an impartial arbiter serving the public interest, not someone with an axe to grind. A judge who does not know this, and is not capable of learning it, should not be on the bench.

Accordingly, the determined sanction should be accepted without costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in per curiam opinion.

Determined sanction accepted, without costs, and Joseph J. Cerbone removed from the office of Justice of the Mount Kisco Town Court, Westchester County.

[812 NE2d 302, 779 NYS2d 812]

SARAH WOLINSKY et al., Appellants, et al., Plaintiff, v KEE YIP
REALTY CORP., Respondent.

Argued May 4, 2004; decided June 8, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 27, 2003. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Walter B. Tolub, J.), which had granted defendant's motion for summary judgment and dismissed the complaint. The modification consisted of declaring that plaintiffs' tenancies were not covered by the Emergency Tenant Protection Act of 1974 (L 1974, ch 576, § 4, as amended), and were not entitled to rent stabilization protection. The Appellate Division affirmed the order as modified.

Wolinsky v Kee Yip Realty Corp., 302 AD2d 327, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Illegal Conversion of Loft Space

Plaintiffs, who converted their commercially-leased loft space for personal residential use over a decade after the Loft Law's eligibility period ended and illegally occupied their units in violation of the New York City Zoning Resolution, were not entitled to the rent stabilization protections of the Emergency Tenant Protection Act of 1974 (ETPA [L 1974, ch 576, § 4, as amended]). The tenancies were not within the purview of the Loft Law, which was intended to provide benefits only to existing residential tenancies, and not to encourage new conversions of loft space. Nor do plaintiffs' illegal conversions fall under the ambit of the ETPA, which was enacted before the Loft Law and was not viewed by the Legislature as safeguarding the interests of the "loft pioneers."

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Landlord and Tenant § 1069.
NY JUR 2d, Buildings, Zoning, and Land Controls § 25; NY
JUR 2d, Landlord and Tenant § 573.
NEW YORK REAL PROPERTY SERVICE §§ 73:9, 73:57.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant.

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Query: loft /s conver! /s residen! & emergency /2 tenant /2
protection & eligib!

POINTS OF COUNSEL

David E. Frazer, New York City, for appellants. I. The Emergency Tenant Protection Act of 1974 is, as this Court has repeatedly held, “all-inclusive” and, as such, includes these residential lofts. (*Matter of Salvati v Eimicke*, 72 NY2d 784; 520 E. 81st St. Assoc. v *Lenox Hill Hosp.*, 38 NY2d 525; *Axelrod v Starr*, 52 AD2d 232, 41 NY2d 942; *Matter of Zeitlin v New York City Conciliation & Appeals Bd.*, 46 NY2d 992; *Matter of Gracecore Realty Co. v Hargrove*, 90 NY2d 350; *Matter of Mott v New York State Div. of Hous. & Community Renewal*, 211 AD2d 147; *Matter of Ruskin v Miller*, 172 AD2d 164; *Mandel v Pitkowsky*, 102 Misc 2d 478, 76 AD2d 807; *Farnham v Kittinger*, 83 NY2d 520; *Walker v Town of Hempstead*, 84 NY2d 360.) II. The zoning resolution does not preclude the Emergency Tenant Protection Act of 1974. (*Asian Ams. for Equality v Koch*, 128 AD2d 99; *Tan Holding Corp. v Wallace*, 187 Misc 2d 687; *Jordan Mfg. Corp. v Lledos*, 153 Misc 2d 296; 111 on 11 *Realty Corp. v Norton*, 189 Misc 2d 389; *Matter of Lansdown Entertainment Corp. v New York City Dept. of Consumer Affairs*, 74 NY2d 761; *Matter of S.H. Kress & Co. v Department of Health of City of N.Y.*, 283 NY 55; *Jancyn Mfg. Corp. v County of Suffolk*, 71 NY2d 91; *City of New York v State of New York*, 171 AD2d 629, 78 NY2d 951; *Oelbermann Assoc. v Borov*, 141 Misc 2d 838; *Hudsoncliff Bldg. Co. v Chandler*, 279 AD2d 423.) III. The Loft Law does not preclude the Emergency Tenant Protection Act of 1974. (*J & M Real Estate Co. v Kam Chew Lim*, 191 AD2d 345; *Tan Holding Corp. v Wallace*, 187 Misc 2d 687; *Axelrod v Starr*, 52 AD2d 232, 41 NY2d 942; *Matter of Zeitlin v New York City Conciliation & Appeals Bd.*, 46 NY2d 992; *Mandel v Pitkowsky*, 102 Misc 2d 478; 182 Fifth Ave. v *Design Dev. Concepts*, 300 AD2d 198.)

Kolodny P.C., New York City (*Peter Kolodny* of counsel), for respondent. I. The Emergency Protection Tenant Act of 1974 does not apply to commercial units first used residentially after the enactment and effective dates of the Loft Law. (*J & M Real Estate Co. v Kam Chew Lim*, 191 AD2d 345; *Adrico Realty Corp. v City of New York*, 250 NY 29; *Dall v Time, Inc.*, 252 App Div 636, 278 NY 635; *Wilson v One Ten Duane St. Realty Co.*, 123 AD2d 198; *Matter of Korn v Batista*, 131 Misc 2d 196, 123 AD2d 526; *Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298.) II. The Emergency Tenant Protection

Act of 1974 was never intended to apply to commercial space converted to residential use after January 1, 1974. (*Matter of Zeitlin v New York City Conciliation & Appeals Bd.*, 46 NY2d 992; *Wilson v One Ten Duane St. Realty Co.*, 123 AD2d 198; *Sega v State of New York*, 60 NY2d 183; *Pajak v Pajak*, 56 NY2d 394.) III. The New York City Zoning Resolution prohibits residential use of and issuance of a residential certificate of occupancy for the building, and, thereby, precludes tenants residentially occupying commercial loft space in the building from claiming rent stabilization protection under the Emergency Tenant Protection Act of 1974. (*Tan Holding Corp. v Wallace*, 187 Misc 2d 687; *Little Joseph Realty v Town of Babylon*, 41 NY2d 738; *Mandel v Pitkowsky*, 102 Misc 2d 478, 76 AD2d 807; *East 82 v O’Gormley*, 295 AD2d 173; *Matter of Bella Vista Apt. Co. v Bennett*, 89 NY2d 465.) IV. The New York City zoning resolution is not preempted by the Emergency Tenant Protection Act of 1974 and, therefore, is controlling. (*Matter of Ibero-American Action League v Palma*, 47 AD2d 998; *DJL Rest. Corp. v City of New York*, 96 NY2d 91; *Little Joseph Realty v Town of Babylon*, 41 NY2d 738; *Stringfellow’s of N.Y. v City of New York*, 91 NY2d 382; *Jancyn Mfg. Corp. v Suffolk County*, 71 NY2d 91; *Vatore v Commissioner of Consumer Affairs of City of N.Y.*, 83 NY2d 645.)

Robert Petrucci, New York City, for Lower Manhattan Loft Tenants, amicus curiae. I. The Emergency Tenant Protection Act of 1974’s reach includes loft tenants. (*Matter of Salvati v Eimicke*, 72 NY2d 784, 73 NY2d 995; *Matter of Gracecor Realty Co. v Hargrove*, 90 NY2d 350; *Wilson v One Ten Duane St. Realty Co.*, 123 AD2d 198; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151.) II. The Emergency Tenant Protection Act of 1974’s coverage is not automatically precluded from zones where residential use is not permitted as of right. (*Brusco v Armstrong*, 191 Misc 2d 272; *Pajak v Pajak*, 56 NY2d 394; *City of New York v State of New York*, 171 AD2d 629, 78 NY2d 951; *Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298; *BLF Realty Holding Corp. v Kasher*, 299 AD2d 87.) III. The Loft Law does not preclude the Emergency Tenant Protection Act of 1974’s coverage. IV. The possibility of legalizing residential use in a manufacturing zone is not “mere speculation,” and owners of loft buildings should be required to demonstrate that legalization is not possible before the Emergency Tenant Protection Act of 1974’s coverage is denied. (*McDonnell v Sir Prize Contr. Corp.*, 32 AD2d 660; *Matter of K & G Co., v Reyes*, 52 Misc 2d 606; *Tan Holding Corp. v*

Wallace, 187 Misc 2d 687; *Nirco Invs. Corp. v New York City Loft Bd.*, 131 AD2d 325; *Little Arf'n Annie v New York City Loft Bd.*, 121 AD2d 852.)

OPINION OF THE COURT

GRAFFEO, J.

In 1982, the Legislature enacted the Loft Law to address the proliferation of illegal residential conversions of manufacturing premises in New York City. Plaintiff tenants, who converted their commercially-leased units over a decade after the Loft Law's eligibility period ended, ask this Court to extend the protections of the Emergency Tenant Protection Act of 1974 (ETPA [L 1974, ch 576, § 4, as amended]) to their conversions. We conclude, as did the courts below, that ETPA protections are not available under these circumstances.

Defendant landlord Kee Yip Realty Corp. owns a seven-story commercial building located at 135 Grand Street in Manhattan. The building is situated in a M1-5B zoning district, which permits use of the property for light manufacturing and joint living-work space for artists. New residential development is excluded in this district, except for joint living-work quarters for artists, to ensure adequate area for industrial growth (*see* New York City Zoning Resolution § 41-11).

Over an 11-month period beginning in July 1997, landlord entered into commercial leases with tenants individually for the rental of raw loft space on the second through seventh floors of the building. The leases provided for monthly rental payments of approximately \$1,700. Tenants renovated their rental units at their own expense, converting the loft space for personal residential use. There is no residential certificate of occupancy for the building, and landlord has apparently made no attempt to obtain a variance or other relief from the zoning restriction. Tenants do not dispute that they occupy the units illegally, in violation of the City Zoning Resolution, as they are not artists.¹

As the expiration of their commercial leases approached, tenants commenced this action seeking injunctive relief and a declaration that, notwithstanding their illegal use of the space, they are protected by the Rent Stabilization Law and Rent Stabilization Code through the ETPA. Landlord answered and moved for summary judgment solely on the basis that the build-

1. The Zoning Resolution restricts the definition of "artist" to include only those persons so certified by the City Department of Cultural Affairs.

ing could not legally be converted to residential use and that tenants therefore were not entitled to any relief.²

Supreme Court granted landlord's motion and dismissed the complaint. Noting the inapplicability of the Loft Law (*see* Multiple Dwelling Law art 7-C) to the facts of this case, the court held that the ETPA did not provide a mechanism for converting commercially-zoned property to residential use and thus tenants could not legalize their conversions.

On tenants' appeal, the Appellate Division modified, only to the extent of declaring that the tenancies are not covered by the ETPA, and otherwise affirmed. The Court rejected tenants' request for ETPA protection, holding that the Act "does not extend to tenancies that are illegal and incapable of becoming legal" (302 AD2d 327, 328 [1st Dept 2003]). This Court granted tenants leave to appeal and we now affirm.

This appeal involves the interplay of two statutory schemes—the ETPA and the Loft Law—both enacted to address a "serious public emergency" in housing (McKinney's Uncons Laws of NY § 8622 [ETPA § 2]; Multiple Dwelling Law § 280 [Loft Law]). The ETPA, adopted in 1974, was necessary "to prevent exaction of unjust, unreasonable and oppressive rents and rental agreements and to forestall profiteering, speculation and other disruptive practices tending to produce threats to the public health, safety and general welfare" (McKinney's Uncons Laws of NY § 8622 [ETPA § 2]). To that end, where a locality has declared a housing emergency, the Act applies to regulate residential rents "of all housing accommodations which it does not expressly except, including previously unregulated accommodations" (*Matter of Salvati v Eimicke*, 72 NY2d 784, 791 [1988]; *see Matter of Gracecor Realty Co. v Hargrove*, 90 NY2d 350, 355 [1997]; McKinney's Uncons Laws of NY §§ 8623, 8625 [ETPA §§ 3, 5]).

The Legislature passed the Loft Law—Multiple Dwelling Law article 7-C (L 1982, ch 349, § 1)—in 1982 in response to the "emergency . . . created by the increasing number of conversions of commercial and manufacturing loft buildings to residential use without compliance with applicable building codes and laws and without compliance with local laws regarding min-

2. Given its posture on the summary judgment motion, landlord did not raise the alternative argument that the units were, in any event, exempt from ETPA coverage under one of the statutory exceptions (*see* McKinney's Uncons Laws of NY § 8625 [ETPA § 5]). As such, any argument to that effect is not preserved for this Court's review.

imum housing maintenance standards” and in recognition of the fact “that illegal and unregulated residential conversions undermine the integrity of the local zoning resolution and threaten loss of jobs and industry” (Multiple Dwelling Law § 280; see *Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298, 302 [1985]). As the final component of a six-part plan for utilization of loft space in New York City, the Loft Law is designed

“to finally balance the equities of the conflicting interests in the development and use of loft space. The bill when enacted will take a ‘snap shot’ of those people eligible for protection under this article. . . . This bill recognizes the important impact that those in the creative arts have on the cultural and economic life of New York City and the need for the protection of loft space suitable for their working and living purposes. At the same time the bill upholds the commitments of the City to the business and labor community to protect areas dominated by business activity and to provide a favorable business climate” (Mem of Legis Rep of City of NY, 1982 McKinney’s Session Laws of NY, at 2484).³

The law relies on a “building by building approach to resolve the illegal residential status of loft buildings formerly or presently used as manufacturing, warehousing, or commercial space . . . [and] provides a framework for the legalization of these dwellings consistent with the local zoning resolution of the City of New York” (*id.* at 2479).

The Loft Law therefore permits conversions of “Interim Multiple Dwellings,” which are defined as buildings or portions of buildings that were occupied at any time for manufacturing, commercial, or warehouse purposes and lack a residential certificate of occupancy (see Multiple Dwelling Law § 281 [1]). Critically, the statutory definition established a window period for eligibility encompassing only those units that, on December 1, 1981, were occupied for residential purposes since April 1, 1980 by three or more families living independently of one another (see *id.*). By adopting an eligibility period that was closed at the time of the enactment, the Legislature demonstrated its intent

3. The Loft Law has been amended several times to extend its termination date. Currently, the law is set to expire on June 30, 2004 (see L 2004, ch 98 [amending L 1982, ch 349, § 3]).

to provide the benefits of the Loft Law only to existing residential tenancies, not to encourage new conversions of loft space.⁴

It is clear that tenants' residential occupancies of the commercially-leased units are not within the purview of the Loft Law. The units were first used for residential purposes in 1997, almost two decades after expiration of the Loft Law eligibility window period. Tenants nevertheless urge that their illegal conversions are entitled to protection under the ETPA, relying on the broad language and scope of that Act.

Reading the ETPA and Loft Law together, we agree with the courts below that tenants' illegal conversions do not fall under the ambit of the ETPA. As reflected in the legislative history and intent of the Loft Law, the fixed eligibility period was designed to address the public safety and municipal zoning emergency caused by the expansion of illegal conversions at that time (*see id.* § 280; *Lower Manhattan Loft Tenants*, 66 NY2d at 305). The statute was not intended to foster future illegal conversions or undermine legitimate municipal zoning prerogatives. If the prior-enacted ETPA already protected illegal residential conversions of manufacturing space, significant portions of the Loft Law would have been unnecessary (*see e.g.* Multiple Dwelling Law § 286 [3]). Thus, although such illegal conversions are not expressly exempted from ETPA coverage, it is evident that the Legislature did not view the ETPA as safeguarding the interests of the "loft pioneers" (*see* Mem of Legis Rep, *supra* at 2484).

Notably, the City has not acted to amend the Zoning Resolution to include purely residential use of M1-5B zoned space or to rezone tenants' neighborhood. Similarly, the Legislature has not adopted a new eligibility period that would confer Loft Law protections on later conversions. Such steps could make residential loft units like tenants' legal or capable of being legalized, if such a change were deemed necessary or desirable. We therefore conclude that the ETPA cannot be extended to these illegally converted lofts.

We have considered tenants' remaining arguments and conclude that they are without merit.

4. The statute requires owners of qualified units to take specific steps to legalize the residential uses or be subject to penalties (*see* Multiple Dwelling Law § 284). Once compliance with safety and fire protection standards is achieved, owners may recover rents payable from residential occupants (*see id.* § 285). In addition, the article provides numerous protections to tenants, including ETPA coverage where appropriate (*see id.* § 286).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur.

Order affirmed, with costs.

[812 NE2d 936, 780 NYS2d 110]

LOUIS DREYFUS ENERGY CORP. et al., Appellants, v MG REFINING
AND MARKETING, INC., Defendant, and MG HOLDINGS NORTH
AMERICA, INC., Formerly Known as METALLGESELLSCHAFT
CAPITAL CORP., Respondent.

Argued May 5, 2004; decided June 8, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 3, 2003. The Appellate Division affirmed so much of an order of the Supreme Court, New York County (Herman Cahn, J.), as had granted defendant Metallgesellschaft Capital Corp.'s motion for summary judgment dismissing the complaint as against it.

Louis Dreyfus Energy Corp. v MG Ref. & Mktg., 304 AD2d 346, reversed.

HEADNOTE

Suretyship and Guarantee — Defenses or Counterclaims — Expiration Date in Continuing Guaranty

The continuing guaranty issued by defendant corporation to guarantee payment by its indirect subsidiary under contracts the subsidiary had entered or would enter into with plaintiff corporation required defendant to pay obligations that were contractually binding, but not yet due and payable, at the time the guaranty expired. If a continuing guaranty contains an expiration date and does not express a contrary intention, the guarantor is liable for obligations that are triggered prior to the expiration date. Here, the consequences of expiration were not explicitly stated, and the parties' intentions were not clear on the face of the guaranty. The parties' course of dealing, however, showed that expiration was understood to have the same effect as revocation, which was to render the guarantor liable for any obligations that became binding before, but due and payable after, the revocation date. The purpose of a continuing guaranty is to enable parties who enter into contracts to be secure in the knowledge that whatever debts become due them under the contracts will be protected by the guaranty. Accordingly, the guarantor should be held liable for such obligations, unless the guaranty expressly shields it from liability.

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By the Publisher's Editorial Staff

AM JUR 2d, Guaranty §§ 20–22 57, 58, 65, 69.

NY JUR 2d, Guaranty and Suretyship §§ 83, 86, 110, 135.

ANNOTATION REFERENCE

See ALR Index under Guaranty.

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POINTS OF COUNSEL

Williams & Connolly, LLP, Washington, D.C. (*John J. Buckley, Jr.*, *Kenneth C. Smurzynski* and *Andrew W. Rudge* of counsel), and *Heller Ehrman White & McAuliffe, LLP*, New York City (*Lawrence J. Zweifach* and *Samuel L. Barkin* of counsel), for appellants. I. New York law has been settled for nearly a century that a guarantor remains liable for obligations incurred prior to the end date of the guaranty. (*Corn Exch. Bank Trust Co. v Gifford*, 268 NY 153; *H. Muehlstein & Co. v Sternberg*, 111 AD2d 635.) II. Accepted rules of contract interpretation dictate that Metallgesellschaft Capital Corp. remained obligated under the guaranty for the September 27, 1993 contracts. (*Catskill Natl. Bank v Dumary*, 206 NY 550; *Schmitz v Langhaar*, 88 NY 503; *Gates v McKee*, 13 NY 232; *Chemical Bank v Meltzer*, 93 NY2d 296; *William C. Atwater & Co. v Panama R.R. Co.*, 246 NY 519; *Eighth Ave. Coach Corp. v City of New York*, 286 NY 84; *Corn Exch. Bank Trust Co. v Gifford*, 268 NY 153.) III. The applicability of the guaranty does not turn on plaintiff's election of remedies. (*Hermanowski v Acton Corp.*, 580 F Supp 140, 729 F2d 921.)

Kaye Scholer LLP, New York City (*Michael D. Blechman* and *Robert B. Bernstein* of counsel), for respondent. I. The Appellate Division correctly held that the guaranty did not cover the sums at issue because they did not become due and payable until after the guaranty expired. (*H. Muehlstein & Co. v Sternberg*, 111 AD2d 635; *Corn Exch. Bank Trust Co. v Gifford*, 268 NY 153; *Chemical Bank v PIC Motors Corp.*, 87 AD2d 447; *United States Trust Co. of N.Y. v Securities Planners*, 238 AD2d 114; *Scarsdale Natl. Bank & Trust Co. v S.E.W. Prods.*, 151 AD2d 657.) II. Plaintiffs' authorities fully support the Appellate Division's decision. (*Corn Exch. Bank Trust Co. v Gifford*, 268 NY 153; *H. Muehlstein & Co. v Sternberg*, 111 AD2d 635.) III. Plaintiffs' other arguments are without merit. (*Chemical Bank v Meltzer*, 93 NY2d 296.)

OPINION OF THE COURT

R.S. SMITH, J.

The issue in this case is whether a continuing guaranty

containing an expiration date requires the guarantor to pay obligations that were contractually binding, but were not yet due and payable, at the time the guaranty expired. We hold that the guaranty does require payment of such obligations, where it does not express a contrary intention.

Facts

The essential facts can be very briefly summarized. Metallgesellschaft Capital Corp. (MG Capital) issued a continuing guaranty on July 28, 1993, guaranteeing payment by its indirect subsidiary, MG Refining and Marketing, Inc. (MGRM), under contracts that MGRM had entered or would enter with Louis Dreyfus Energy Corp. (LDEC). On September 27, 1993, MGRM and LDEC entered into two contracts that were within the scope of the guaranty, in which MGRM became contractually bound to obligations that were conditional on futures prices for petroleum products reaching a particular level. On September 30, 1994, MG Capital's guaranty expired. In 1996, the futures prices reached the specified level, and MGRM's contractual obligations were triggered. The question presented is whether MG Capital is liable for those obligations.

To help in understanding the question, we will state the facts in more detail. LDEC, an energy trading firm, and MGRM, a marketer of petroleum products, had a business relationship going back to at least 1989. During much if not all of the relationship, each party's obligations to the other were backed by a guaranty from the party's corporate parent or affiliate. As of September 1993, LDEC's parent, Louis Dreyfus Corporation (LDC), was guaranteeing LDEC's obligations to MGRM under a guaranty dated May 18, 1992 (the LDC Guaranty), while MG Capital was guaranteeing MGRM's obligations to LDEC under a guaranty dated July 28, 1993 (the MG Capital Guaranty). The MG Capital Guaranty is the one at issue on this appeal.

The LDC Guaranty and the MG Capital Guaranty were largely identical in wording. Each guarantor stated that it "absolutely and unconditionally guarantees . . . the prompt, faithful and full payment of all sums that now are or may hereafter become due and payable . . . under the Contracts." Each guaranty defined "Contracts" as "contracts for the sale, purchase or exchange of crude oil, oil products, natural gas, or natural gas products." Each guaranty provided that it could be revoked in writing, and each set forth the specific consequences of such a revocation. Each provided that the revocation must

specify an “Effective Date” and that the revocation “shall . . . apply only to” contracts entered into “on or after the Effective Date” and “shall not affect the liability of [the guarantor] in respect of any of the Contracts that were entered into before the Effective Date.”

One difference between the two guaranties is at the center of this appeal. The LDC Guaranty did not contain an expiration date, but the MG Capital Guaranty did—and the consequences of expiration, unlike the consequences of revocation, were not explicitly stated. Thus, the MG Capital Guaranty provided:

“This Guaranty is intended to be and shall be a continuing guarantee of payment and not of collection, and shall remain in full force and effect until the earlier of September 30, 1994 and the date on which it is revoked in writing by MGCC, which revocation shall (a) not be effective until the written notice setting out an effective date of revocation (the ‘Effective Date’) has been received by the Contractor and (b) apply only to those of the Contracts that were entered into by the Contractor on or after the Effective Date, and (c) shall not affect the liability of MGCC in respect of any of the Contracts that were entered into before the Effective Date.”

The seven words underscored above—“the earlier of September 30, 1994 and”—had no counterpart in the corresponding paragraph in the LDC Guaranty.

Most of the “Contracts” to which the guaranties applied were short term (30-to-90-day) agreements involving between 25,000 and 100,000 barrels of petroleum products. In 1993, however, LDEC and MGRM entered into three much larger and longer-term contracts—10-year arrangements, each involving a million barrels or more. The first of these three contracts was made in June 1993 and is not in dispute in this case. The remaining two, which are in dispute, were entered into on September 27, 1993.¹

The two September 27 contracts provided that LDEC would purchase from MGRM 42 million gallons (one million barrels) of

1. In identifying and describing the September 27 “contracts,” we state the version of the facts most favorable to LDEC, the party against which summary judgment was granted below. MG Capital and MGRM contend, among other things, that the September 27 communications between LDEC and MGRM did not constitute contracts, but offers that were subsequently revoked; and that, if they were contracts, they were illegal and unenforceable.

(n. cont’d)

gasoline and 42 million gallons of fuel oil no later than September 30, 2003. The price of each product was set at 62 cents per gallon. Delivery was to be in the amounts and at the times of LDEC's choosing. Each contract gave LDEC an option, in the event the market moved in LDEC's favor, to take its profit in cash. Thus at any time when the price of petroleum futures on the New York Mercantile Exchange exceeded the price fixed in the contract, LDEC could elect to receive from MGRM a cash payment reflecting the difference between the market price and the contract price.

In January 1994, MGRM repudiated its obligations under the September 1993 contracts. LDEC did not sue immediately, but began this action in 1995 against MGRM, seeking a declaration that the contracts were "valid and existing." LDEC was presumably hoping that sometime during the 10-year term of the contracts the market price would go up and generate a large claim in LDEC's favor. This happened in 1996. On April 12, 1996, LDEC exercised its option under the gasoline contract, and on December 16, 1996 it exercised its option under the fuel oil contract. MGRM rejected LDEC's first demand for payment and ignored the second.

On April 9, 1998, LDEC demanded that MG Capital make payment of MGRM's obligations under the two contracts. MG Capital² rejected the demand on the ground that it was "unaware of any liability of MGRM to LDEC." MG Capital did not then assert that it was free from liability because its guaranty had expired.

LDEC amended its complaint to add MG Capital as a defendant and to sue under the MG Capital Guaranty.³ MG Capital moved for summary judgment, and Supreme Court granted its motion on the ground that the MG Capital Guaranty had expired before LDEC suffered any damages. The Appellate Division affirmed on the same ground. We granted leave to appeal, and now reverse.

We express no view on these issues, or on any issue other than the effect of the expiration date on the MG Capital Guaranty.

2. MG Capital apparently changed its name at some point to either MG North America Holdings Inc. (the name that appears on its 1998 rejection of LDEC's demand) or MG Holdings North America, Inc. (the name used in recent court papers). For ease of reference, we use "MG Capital" throughout this opinion.

3. LDEC later assigned its claims to its parent, LDC, which joined the action as a coplaintiff.

Discussion

A guaranty is a contract, and in interpreting it we look first to the words the parties used (*see Chemical Bank v Sepler*, 60 NY2d 289, 293 [1983]). But on the question here—whether the parties intended the MG Capital Guaranty to cover obligations that became binding before, but due and payable after, its expiration date—the document is silent. The consequences of *revocation*, as distinct from expiration, are spelled out: revocation “shall not affect the liability of MGCC in respect of any of the Contracts that were entered into before the Effective Date [of the revocation].” Thus if the MG Capital Guaranty had contained no expiration date, but had been revoked effective September 30, 1994, there would be no issue. MG Capital would unquestionably be liable under the September 27, 1993 contracts, even for obligations that were not triggered until 1996.

MG Capital contends that, since the parties did not provide that expiration would have the same consequences as revocation, they must have intended different consequences. It is true that a careful drafter who intended the effect of expiration and revocation to be identical would have said so in the document. A minor revision of the relevant paragraph (quoted above at 498) would have been sufficient. But it is also true that a careful drafter who intended expiration to have different consequences would have spelled out those consequences in the document. This, too, would not have been difficult. The conclusion is inescapable that the drafter was not careful in this respect, and as a result the document does not make the parties’ intention clear on its face.

It is possible, however, to discern the parties’ intention from the circumstances in which the MG Capital Guaranty was issued. LDEC and MGRM had a multiyear relationship, and there is no indication that they ever dealt with each other in the absence of parent guaranties. The LDC and MG Capital Guaranties, issued in 1992 and 1993 respectively, were preceded by similar documents. The only logical inference supported by this record is that neither LDEC nor MGRM wanted to take the risk of relying on the other’s unsupported credit.

This risk could be eliminated only if the termination of a guaranty—whether by expiration or revocation—left the parent-guarantor liable for obligations (due or to become due in the future) to which its subsidiary was already bound. As long as

the guarantor remained liable on preexisting contracts, the opposite party could, if it chose, protect itself against future risks by refusing to enter into any new contracts until a new guaranty was provided. But if the termination of the guaranty protected the guarantor against obligations not yet due under existing contracts, the opposite party would be left with exactly the problem the guaranty was designed to avoid—a debt from the subsidiary, unsupported by the parent-guarantor’s credit.

In the case of revocation, the parties used express language to assure that this did not occur. They limited the effect of revocation to contracts entered into on or after the revocation’s “Effective Date,” and provided that liability under contracts entered into before the Effective Date would be unchanged. We conclude that the parties must have intended expiration to be limited in the same way, for an expiration that is not limited to future contracts can create the same risk as a revocation that is not so limited.

It is true that, since the parties knew the expiration date in advance, LDEC could—if it believed the expiration of the guaranty would affect existing contracts—have insisted on an extension of the expiration date, or a new guaranty, before entering into any contracts that extended beyond the MG Capital Guaranty’s expiration. LDEC’s behavior shows, however, that it did not believe the expiration would affect existing contracts.

On June 23, 1993, LDEC and MGRM entered into a 10-year agreement under which LDEC was to purchase from MGRM 50,400,000 gallons of fuel oil over a 10-year period beginning September 1, 1993. At the time the agreement was signed, the MG Capital Guaranty involved in this case had not yet been issued. The guaranty that was in force was a predecessor document, issued by a different corporation but identical in relevant respects, with an expiration date of September 30, 1993—29 days after the inception of the 10-year contract. Thus, if the expiration date eliminated the guarantor’s obligations on existing contracts, LDEC would be unprotected for 9 years and 11 months; there is no evidence that LDEC was willing to accept, or thought that it was accepting, such a risk. Nor is there any indication that, when it entered into the September 27, 1993 contracts now in suit, LDEC thought it would be unprotected by the MG Capital Guaranty for the last 9 years of these 10-year agreements. If LDEC had thought that, it would logically be expected at least to ask for an extension of the expiration

date before it committed itself. There is no indication that it did so.

Thus the purpose of the MG Capital Guaranty, and the parties' course of dealing, show that expiration was understood to have the same effect as revocation—i.e., to have no effect on contracts entered into prior to the expiration date. That conclusion is reinforced by comparing the MG Capital Guaranty to the LDC Guaranty. The relevant paragraph of the MG Capital Guaranty is a virtual duplicate of the corresponding paragraph in the LDC Guaranty, except for seven words appearing only in the MG Capital Guaranty—"the earlier of September 30, 1994 and." It is plain that the parties intended their guaranties to be largely identical, but that at some point, in some prior version of the MG Capital Guaranty, language creating an expiration date was added. It is improbable that the parties understood this difference between the two guaranties to be of vast significance—to leave LDEC at risk, while MGRM remained protected, on contracts extending beyond the expiration date. We conclude that the parties assumed expiration would have the same effect as revocation, and that the expiration date was no more than a kind of "Effective Date" of the revocation fixed in advance. On this reading, putting the expiration date into the guaranty was no more than a convenience; if it had not been there, MG Capital could have accomplished the same result by sending a notice of revocation with a September 30, 1994 Effective Date.

A close reading of the relevant paragraph also suggests that the parties thought expiration and revocation were interchangeable. The MG Capital Guaranty was to remain in effect "until the earlier of" the expiration date and the Effective Date of the revocation. This wording implies that there would be only one event—expiration or revocation, whichever came earlier—that could bring MG Capital's obligation to an end. On this understanding, it would not make sense if expiration and revocation had substantially different consequences. MG Capital would harm its own interest by revoking the guaranty, and leaving itself liable on existing contracts, if it could escape such liability by waiting for the expiration date.⁴

4. At oral argument, MG Capital suggested that there could be both a revocation and an expiration, because a revocation would be ineffective as to obligations under existing contracts. As to those contracts, on MG Capital's theory, the guaranty would remain in effect after revocation until, but only until, the expiration date. But this theory does not fit the contractual

(n. cont'd)

There are not many authorities that consider the impact of terminating a guaranty on obligations that may arise in the future under preexisting contracts. The authorities that do exist, however, support the view that the guarantor should be held liable for such obligations, unless the guaranty expressly shields it from liability. It will normally be true, as we think it is in this case, that the purpose of a continuing guaranty is to enable parties who enter into contracts to be secure in the knowledge that whatever debts become due them under the contracts will be protected by the guaranty. This purpose is best served by a general rule as we have stated it. A similar rule is stated in section 16 of Restatement (Third) of Suretyship and Guaranty:

“Upon termination of a continuing guaranty, the continuing guarantor remains a secondary obligor with respect to obligations of the principal obligor incurred prior to termination and becomes a secondary obligor with respect to obligations of the principal obligor incurred by extensions of credit to the principal obligor after termination pursuant to a commitment that became binding before termination.”

The first half of the above sentence is arguably ambiguous, because it is not clear what “incurred” means in this context: Is an obligation “incurred” when it is contracted for, or when it becomes due and payable? However, the second half of the sentence (after the “and”) has no such ambiguity. It says that if a creditor extends credit “after termination” of a guaranty, “pursuant to a commitment that became binding before termination,” the guarantor is liable to make good (“becomes a secondary obligor with respect to”) the resulting obligations. While this portion of the Restatement is most obviously applicable to a revolving credit agreement or other loan agreement, in which a lender commits to lend money before termination and honors the commitment afterwards, it can apply to a fact pattern like the present one also. Here there were commitments that became binding before termination—the contracts of September 27, 1993—and when MGRM’s obligations to make payments under those contracts became due in 1996, LDEC became MGRM’s creditor as a result of its pretermination commitments. Whether or not LDEC literally “extended credit” to

language; the language gives effect to the expiration date only if it is “earlier” than revocation, not if it is later but the revocation has left some obligations in force.

MGRM, there is no apparent reason why the principle underlying the Restatement section should not apply. Under the approach of the Restatement, MG Capital should be bound to pay MGRM's obligations.

While we have found no New York case directly in point, our decision in *Corn Exch. Bank Trust Co. v Gifford* (268 NY 153 [1935]) offers support for our conclusion here. That case involved a loan by the bank to a corporate borrower, secured by the guaranty of Gifford, the father-in-law of the corporation's treasurer. The guaranty stated that it "shall remain in force until duly revoked . . . and shall extend to and cover all renewals of any claims or demands guaranteed . . . or the extensions of time of payment thereof" (*id.* at 157). The loan was evidenced by a promissory note of the corporate borrower that was repeatedly renewed and extended. Gifford revoked his guaranty, and after his revocation the bank and the borrower again renewed and extended the note, though the indebtedness was not increased. The question before us was whether the posttermination renewals discharged Gifford from his obligation under his guaranty. We held that they did not, basing that conclusion on the guaranty's language covering "all renewals." We said:

"These words are broad enough to cover the renewals of an indebtedness existing at the time of revocation. The words used are 'all renewals.' The parties could easily have said 'or the extension of time of payment thereof prior to revocation' if such a meaning were intended. The words 'prior to revocation' are not used." (268 NY at 159.)

Corn Exchange thus stands for the proposition that the words "prior to revocation" will not automatically be read into every commitment made by a guarantor; a guarantor who wishes to limit his obligations in this way should do so expressly. Here, MG Capital guaranteed payment of "all sums that now are or may hereafter become due and payable . . . under the Contracts." If it meant "all sums that may become due and payable prior to the expiration date" it should have said so.

So far as we are aware, the only case that addresses the issue we have here is *Bandag, Inc. v National Acceptance Co. of Am.* (855 F2d 491 [7th Cir 1988]). In that case, National Acceptance Company of America (NAC) had issued a guaranty to Bandag promising to "make payments to you of invoices for merchandise" shipped by Bandag to a purchaser known as McCord (*id.*

at 492). The guaranty had an expiration date of December 31, 1985. Bandag's invoices called for payment in 90 days from shipment; it shipped some goods in late 1985, so that although McCord's obligation to pay existed before the guaranty expired, its payments were not due until early 1986, after the expiration date. The court, applying Illinois law, held that NAC must pay the invoices. The court relied on the specific language of the guaranty in question, but also on the business purpose served by the guaranty. The court said:

“[T]he construction urged by NAC would invalidate the guaranty as the termination date approached. Ordinarily, Bandag provided goods to McCord on ninety days' credit. NAC and Bandag entered into the guaranty because Bandag would not continue to do this without security. . . . Therefore, the obvious purpose of the letter of guaranty was to allow Bandag to continue to sell goods to McCord without suffering insecurity (due to lack of legal recourse). . . . However, under the construction urged by NAC, Bandag's sales to NAC would be guaranteed during the final ninety days of the guaranty period only if Bandag changed the terms of its invoices so that they would become due before the termination date. Otherwise, all of Bandag's sales to McCord in the last ninety days of the guaranty period would be unsecured by the guaranty.” (*Id.* at 495.)

A similar analysis applies here. The “obvious purpose” of the MG Capital Guaranty was to allow LDEC to continue to deal with MGRM “without suffering insecurity (due to lack of legal recourse).” But under MG Capital's reading of the guaranty, LDEC would become insecure to the extent that MGRM's contractual commitments extended beyond the expiration date. Since certain of those commitments extended nine years beyond the expiration date, the guaranty, if read as MG Capital urges, would fail to serve its purpose.

In short, we conclude that the MG Capital Guaranty must be read as requiring MG Capital to pay obligations of MGRM under contracts that were entered into before the expiration date of the guaranty, even where the obligations became due and payable after the guaranty expired.

Accordingly, the order of the Appellate Division should be reversed, with costs, and MG Capital's motion for summary judgment denied.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSEN-
BLATT, GRAFFEO and READ concur.

Order reversed, etc.

[813 NE2d 609, 780 NYS2d 529]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRICIO LINARES, Appellant.

Argued April 29, 2004; decided June 3, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 18, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Marcy Kahn, J., at suppression hearing and denial of request for substitution of counsel; Herbert I. Altman, J., at trial, sentence and reconstruction hearing), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the second degree (two counts).

People v Linares, 302 AD2d 256, affirmed.

HEADNOTE

Crimes — Right to Counsel — Substitution of Counsel

Supreme Court properly exercised its discretion in denying defendant's motion, made on the eve of trial, for a substitution of his assigned counsel. In determining whether good cause for substitution exists, a trial court must consider the timing of the defendant's request, its effect on the progress of the case, and whether present counsel will likely provide the defendant with meaningful assistance. Here, Supreme Court made a diligent and thorough inquiry into defendant's request and reasonably concluded that defendant's vague and generic objections had no merit or substance. Defense counsel, although threatened by defendant, did not have a genuine conflict of interest with defendant, and was not deficient in his representation of defendant.

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AM JUR 2d, Criminal Law § 1190.

CARMODY-WAIT 2d, Criminal Procedure §§ 172:1728, 172:1779, 172:1780, 172:1782, 172:1783, 172:1785, 172:1792.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.2, 11.4.

NY JUR 2d, Criminal Law §§ 719–725.

ANNOTATION REFERENCE

See ALR Index under Attorney or Assistance of Attorney.

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POINTS OF COUNSEL

Jeffrey I. Richman, Kew Gardens, and *Laura R. Johnson* for appellant. I. Defendant was denied his right to counsel when the court refused defendant's pretrial request for the assignment of new counsel despite a complete breakdown in communication and lack of trust between defendant and defense counsel. (*Gideon v Wainwright*, 372 US 335; *People v Droz*, 39 NY2d 457; *People v Ortiz*, 76 NY2d 652; *People v Medina*, 44 NY2d 199; *People v Sides*, 75 NY2d 822; *People v Sawyer*, 57 NY2d 12; *Ungar v Sarafit*, 376 US 575; *People v Brown*, 305 AD2d 422; *People v Smith*, 92 NY2d 516; *People v Gilchrist*, 239 AD2d 306, 91 NY2d 834.) II. Defendant was denied his right to be present at all material stages of his trial when the court questioned defense counsel, in defendant's absence, as to whether or not he should represent defendant at trial and, if so, how the court could best protect defense counsel from defendant. (*Snyder v Massachusetts*, 291 US 97; *People v Ciaccio*, 47 NY2d 431; *People v Cain*, 76 NY2d 119; *People v Mehmedi*, 69 NY2d 759; *People v Roman*, 88 NY2d 18; *People v Favor*, 82 NY2d 254; *People v Engleton*, 207 AD2d 262; *People v Velasco*, 77 NY2d 469; *People v Rodriguez*, 76 NY2d 918; *People v Dokes*, 79 NY2d 656.)

Robert M. Morgenthau, District Attorney, New York City (*Christopher P. Marinelli* and *Hilary Hassler* of counsel), for respondent. I. The trial court properly denied defendant's request for new counsel and defendant's right to counsel was not otherwise abridged. (*People v Baghai-Kermani*, 84 NY2d 525; *People v Smith*, 68 NY2d 737, 479 US 953; *People v Lineberger*, 98 NY2d 662; *Mathis v Hood*, 937 F2d 790; *People v Narayan*, 54 NY2d 106; *People v Sawyer*, 57 NY2d 12, 459 US 1178; *People v Medina*, 44 NY2d 199; *People v Arroyave*, 49 NY2d 264; *People v Tineo*, 64 NY2d 531; *People v Allen*, 88 NY2d 831.) II. Defendant has failed to provide an adequate record for review of his claim that he was not present for a material stage of his trial. In any event, his claim is meritless. (*People v Kinchen*, 60 NY2d 772; *People v Foster*, 1 NY3d 44; *People v Mullen*, 44 NY2d 1; *Snyder v Massachusetts*, 291 US 97; *People v Rodriguez*, 76 NY2d 918; *People v Roman*, 88 NY2d 18; *People v Sprowal*, 84

NY2d 113; *People v Rodriguez*, 85 NY2d 586; *People v Camacho*, 90 NY2d 558; *People v Morales*, 80 NY2d 450.)

OPINION OF THE COURT

ROSENBLATT, J.

This appeal calls upon us to consider when a defendant is entitled to the substitution of assigned counsel.

I.

Following an undercover police investigation, defendant was charged with two counts of criminal sale of a controlled substance in the second degree. As trial approached, defendant wrote to Supreme Court (Snyder, J.), expressing his dissatisfaction with assigned counsel. He claimed that his attorney was not providing him with documents and not acting in his best interests. Defendant added that he planned to retain new counsel.

A month later, still with the same counsel who had represented him in the 14 months since arraignment, defendant moved to suppress identification testimony. At the *Wade* hearing, the court (Kahn, J.) asked why defendant was handcuffed. Defense counsel stated that defendant had verbally abused him and threatened to “cut” his face. Defendant denied making any threatening comments or gestures, but said that he had no confidence in counsel because he was urging defendant to accept a plea offer of four to eight years. Defendant then asked the court to assign a new attorney.

Justice Kahn rejected defendant’s request and observed that defense counsel was simply discharging his duty in advising defendant to accept the People’s plea offer. In response to defendant’s claims that he could not trust his attorney and that counsel “never does anything in my behalf, never ever,” the court replied, “If you were telling me anything specific about . . . [counsel’s] failure to do his job here, I would not hesitate to replace him, but I’m not hearing anything specific from you about how he’s failed to do his duty, in fact, just to the contrary.” The court observed that counsel had made suppression and speedy trial motions on defendant’s behalf, communicated with the prosecutor, and hired an investigator and a Spanish interpreter to assist in the defense. Defense counsel, the court concluded, was both experienced and conscientious.

The next day, jury selection began before a different judge (Altman, J.). Although the minutes of proceedings that day and

the next were lost, a reconstruction hearing before Justice Altman indicates that the court conducted a colloquy with the parties to discuss security arrangements for defendant and whether defense counsel believed he could continue representing defendant. Defense counsel informed the court that his ability to represent defendant had not been impaired by his client's threatening conduct. In addition, the court discussed the possibility of seating a uniformed officer between defendant and his counsel at trial, but concluded that it would be less prejudicial for defense counsel to hire a plainclothes investigator to sit between them.

A jury found defendant guilty as charged, and the court sentenced him to concurrent terms of 12 years to life. On appeal to the Appellate Division, defendant argued that Supreme Court's refusal to furnish him with another lawyer effectively denied him his right to counsel. The Appellate Division affirmed (*see* 302 AD2d 256 [2003]), holding that Justice Kahn properly exercised her discretion in denying defendant's request for new counsel. We affirm.

II.

The Federal and State Constitutions guarantee criminal defendants the right to effective representation by counsel (*see* US Const 6th Amend; NY Const, art I, § 6; *see also* *People v Stultz*, 2 NY3d 277 [2004]; *People v Baldi*, 54 NY2d 137 [1981]). This right does not begin and end with the assignment of counsel. As we recognized in *People v Medina* (44 NY2d 199, 207 [1978]), trial courts must "carefully evaluate serious complaints about counsel." This is an ongoing duty. Although defendants have no choice in selecting their assigned counsel,* trial courts should substitute counsel when a defendant can demonstrate "good cause" (*id.*).

In determining whether good cause exists, a trial court must consider the timing of the defendant's request, its effect on the progress of the case and whether present counsel will likely provide the defendant with meaningful assistance. Good cause determinations are necessarily case-specific and therefore fall within the discretion of the trial court. In *Medina*, however, we articulated two clear-cut instances in which a trial court's fail-

* *See* *People v Brabson* (9 NY2d 173, 181 [1961] [holding that "as long as assigned counsel" have "ability and integrity, the discretion and responsibility for their selection rest with the court, to be exercised free of outside interference"]).

ure to find good cause for substitution would amount to an abuse of discretion: first, when an attorney is assigned to represent two defendants between whom there is a conflict of interest and second, when the defense counsel has “not adequately investigated his client’s history of mental disorder” (*id.* at 208). We also emphasized that good cause does not exist when defendants are guilty of delaying tactics or where, on the eve of trial, disagreements over trial strategy generate discord. While the State can guarantee a defendant meaningful representation, it cannot possibly ensure a harmonious relationship between defendants and their attorneys, particularly where defendants are contumacious or violent (*see Morris v Slappy*, 461 US 1, 13-14 [1983]).

We revisited *Medina*’s good cause standard in *People v Sides* (75 NY2d 822 [1990]). There, the attorney stated that there had been a total breakdown of communication and trust with the defendant. Although this Court reversed the defendant’s conviction, we did not predicate our holding on that ground. Instead, we concluded that the trial court abused its discretion by conducting only a perfunctory inquiry into defendant’s serious request for the assignment of new counsel. In the face of a potentially irreconcilable conflict between the defendant and counsel, the trial court in *Sides* failed to make even a minimal inquiry or ask anything about the nature of the disagreement or whether it could be resolved.

Evaluated under the standard enunciated in *Medina* and *Sides*, Supreme Court’s denial of defendant’s motion to substitute counsel constituted a proper exercise of discretion. We are satisfied that Justice Kahn’s inquiry into defendant’s request for new counsel was diligent and thorough. The court repeatedly allowed defendant to air his concerns about defense counsel, and after listening to them reasonably concluded that defendant’s vague and generic objections had no merit or substance. As the court observed, defendant was unable to articulate a single specific reason for the court to assign another lawyer.

Further, looking past defendant’s stated objections, there is nothing in the record indicating that defense counsel had a genuine conflict of interest with defendant or that he was in any way deficient in representing him. To the extent defendant’s relationship with counsel soured with the approach of trial, the fault lies wholly with defendant. Defendant and counsel worked together for over a year before defendant, perhaps for reasons

of delay or differences over strategy, manufactured a conflict with counsel on the very eve of trial. As we indicated in *Medina*, tensions arising out of differences over strategy do not compel the trial court to delay the proceedings and bring in a new lawyer. That defendant backed his objections to counsel's advice with the threat of violence does not alter our analysis. Substitution of counsel is an instrument designed to remedy meaningful impairments to effective representation, not to reward truculence with delay. Defendant's other contentions are without merit.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed.

[813 NE2d 602, 780 NYS2d 522]

In the Matter of TOWN OF SOUTHAMPTON, Appellant, v NEW YORK
STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al.,
Respondents.

Argued May 5, 2004; decided June 3, 2004

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 3, 2003, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division, with two Justices dissenting, (1) confirmed a determination of respondent Public Employment Relations Board, which had found that petitioner committed an improper employer practice, (2) dismissed the petition, and (3) granted respondents' application to enforce the determination.

Matter of Town of Southampton v New York State Pub. Empl. Relations Bd., 307 AD2d 428, affirmed.

HEADNOTES

Civil Service — Public Employees' Fair Employment Act — Jurisdiction of Public Employment Relations Board

1. Respondent Public Employment Relations Board (PERB) had jurisdiction over the improper practice charge alleging that petitioner town failed to maintain the status quo during negotiations for a successor collective bargaining agreement by refusing to calculate holiday pay in accordance with an expired interest arbitration award. The charge involved petitioner's conduct after the expiration of both the collective bargaining agreement and the interest arbitration award, and during the time when the parties were under a duty to negotiate a successor agreement. It did not involve enforcement of an agreement, and did not invoke the limitation on PERB's jurisdiction found in Civil Service Law § 205 (5) (d).

Civil Service — Public Employees' Fair Employment Act — Negotiations in Good Faith — Definition of Status Quo

2. In finding that petitioner town had violated Civil Service Law § 209-a (1) (d) by failing to continue the status quo during negotiations with the town's police benevolent association (PBA) for a successor collective bargaining agreement, respondent Public Employment Relations Board (PERB) reasonably defined the status quo to include an overtime provision in an expired interest arbitration award. The award effectively redefined the parties' agreement on that mandatory term and condition of employment, and if petitioner had wanted to alter the change wrought by the award, it was obligated to obtain PBA's consent through collective bargaining.

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AM JUR 2d, Civil Service § 43; AM JUR 2d, Labor and Labor Relations §§ 720, 3022, 3151, 3172.

McKINNEY'S, Civil Service Law § 205 (5) (d); § 209-a (1) (d).

NY JUR 2d, Civil Servants and Other Public Officers and Employees §§ 447, 448, 458, 464.

ANNOTATION REFERENCE

See ALR Index under Civil Service; Collective Bargaining; Labor and Employment; Public Officers and Employees.

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Database: NY-ORCS

Query: perb /s "status quo" /s negotiat!

POINTS OF COUNSEL

Law Office of Vincent Toomey, Lake Success (Vincent Toomey, Thomas J. Marcoline and Christine A. Gaeta of counsel), for appellant. I. The Public Employment Relations Board (PERB) erroneously proceeded without or in excess of its jurisdiction by asserting jurisdiction over this improper practice charge, and PERB acted arbitrarily and capriciously by failing to articulate a rationale for asserting jurisdiction. (*Matter of Roma v Ruffo*, 92 NY2d 489; *Matter of Glens Falls Police Benevolent Assn. v New York State Pub. Empl. Relations Bd.*, 195 AD2d 933; *Matter of Barry v O'Connell*, 303 NY 46; *Matter of New York Water Serv. Corp. v Water Power & Control Commn. of State of N.Y.*, 283 NY 23; *Matter of Elite Dairy Prods. v Ten Eyck*, 271 NY 488; *Matter of Collins v Behan*, 285 NY 187; *Matter of Scudder v O'Connell*, 272 App Div 251; *Matter of New York State Inspection, Sec. & Law Enforcement Empls., Dist. Council 82 v Kinsella*, 197 AD2d 341.) II. The Public Employment Relations Board's (PERB) decision that the Town of Southampton violated section 209-a (1) (d) of the Civil Service Law by refusing to continue terms of an expired interest arbitration award is affected by an error of law, is arbitrary and capricious, and/or is an abuse of PERB's discretion. (*Matter of Rosen v Public Empl. Relations Bd.*, 72 NY2d 42; *Matter of City School Dist. of City of Elmira v New York State Pub. Empl. Relations Bd.*, 74 NY2d 395; *AP Propane v Sperbeck*, 157 AD2d 27; *Finger Lakes Racing Assn. v New York State Racing & Wagering Bd.*, 45 NY2d 471;

Riley v County of Broome, 95 NY2d 455; *State Div. of Human Rights v Genesee Hosp.*, 50 NY2d 113; *Matter of Jones v Berman*, 37 NY2d 42; *Matter of SIN, Inc. v Department of Fin. of City of N.Y.*, 71 NY2d 616; *Ragsdale v Wolverine World Wide, Inc.*, 535 US 81; *City of Amsterdam v Helsby*, 37 NY2d 19.)

Gary Johnson, Albany, for respondents. I. The Appellate Division correctly deferred to the Public Employment Relations Board's expertise in administering the Taylor Law. (*Matter of Incorporated Vil. of Lynbrook v New York State Pub. Empl. Relations Bd.*, 48 NY2d 398; *Matter of West Irondequoit Teachers Assn. v Helsby*, 35 NY2d 46.) II. The Appellate Division correctly held that the Public Employment Relations Board has jurisdiction over a claim that a public employer failed to continue the status quo regarding terms and conditions of employment in violation of Civil Service Law § 209-a (1) (d). (*Matter of Roma v Ruffo*, 92 NY2d 489; *Matter of Northwestern Stud Welding Corp. v Webster*, 211 AD2d 889; *Matter of County of Niagara v Newman*, 104 AD2d 1.) III. The Appellate Division correctly confirmed the Public Employment Relations Board's determination that the Town of Southampton violated Civil Service Law § 209-a (1) (d). That determination has a reasonable basis in law and is supported by substantial evidence. (*Matter of City of Newburgh v Newman*, 69 NY2d 166; *City of Amsterdam v Helsby*, 37 NY2d 19.)

OPINION OF THE COURT

READ, J.

On February 2, 2001, the Public Employment Relations Board (PERB) found that the Town of Southampton had violated section 209-a (1) (d) of the Taylor Law (Civil Service Law § 200 *et seq.*) by failing to continue the status quo during negotiations with the Police Benevolent Association of Southampton Town, Inc. (PBA) for a successor collective bargaining agreement. The issue on this appeal is whether PERB properly defined the status quo to encompass an overtime provision in an expired interest arbitration award. Because PERB's definition of the status quo to include this provision is reasonable, the Appellate Division properly confirmed PERB's determination.

I.

The complicated history of this case begins on December 31, 1994, with the expiration of the 1992-1994 collective bargaining agreement between the Town and the PBA. After negotiations

for a successor agreement reached an impasse, the PBA sought interest arbitration under section 209 (4) of the Civil Service Law. Section 209 (4) was enacted in 1974 to prescribe compulsory and binding arbitration to resolve an impasse in collective negotiations between employee organizations representing police and firefighters outside the City of New York and their local government employers.

The three-person arbitration panel made findings as to disputed items and, at the parties' request, incorporated into the award uncontested items, which were spelled out in an exhibit entitled "Items agreed to between the parties and incorporated into Award." This exhibit included a provision governing overtime pay as follows:

"Overtime: Effective upon the issuance of this Award employees [*sic*] hourly and daily rate of pay shall be calculated incorporating longevity pay, night differential pay, and holiday pay earned the previous calendar year, into base pay."

This provision set forth a new understanding between the parties, which was not part of the 1992-1994 agreement.

On September 20, 1996, the arbitration panel issued an interest arbitration award, which included the supposedly agreed-upon overtime language. The Town subsequently protested, arguing that inclusion of the words "and daily" was erroneous because the PBA's demand, which the overtime provision was intended to cover, only sought to change how the Town calculated the hourly rate of pay in conformity with the Fair Labor Standards Act. The PBA countered that any mistake was not mutual, that it had always intended and understood the overtime provision to change the method for calculating both the hourly and daily rates of pay.

On October 21, 1996, the arbitration panel issued its final opinion and award for the period of January 1, 1995 through December 31, 1996. The 20-page opinion discussed the statutory factors that the panel was required to consider (*see* Civil Service Law § 209 [4] [c] [v]), focusing on the Town's ability to pay.¹ The panel did not change the disputed language of the overtime provision, stating that it was "powerless" to alter the parties' stipulation, and that the cost impact of their disagree-

1. An interest arbitration panel must consider, among other factors, "the interests and welfare of the public and the financial ability of the public employer to pay" (Civil Service Law § 209 [4] [c] [v] [b]).

ment over the overtime provision's scope did not affect the award's analysis and outcome.

After issuance of the interest arbitration award, the Town calculated the hourly rate of pay, but not the daily rate of pay, in conformity with the award's overtime provision. As a result, the PBA filed a grievance on January 22, 1997, which the Town denied on January 31, 1997.

In May 1997, the PBA filed a demand for arbitration with PERB, and moved in Supreme Court to confirm the interest arbitration award. By stipulation dated June 27, 1997, the Town consented to confirmation, with the understanding that the award would be interpreted by a grievance arbitrator in accordance with the terms of the parties' 1992-1994 agreement, and without prejudice to the Town's right to challenge the grievance award.

In the subsequent grievance arbitration, the PBA took the position that the award's overtime provision changed the formula for calculating the daily rate of pay for holiday and sick leave pay; the Town asserted that the overtime provision affected only hourly and daily overtime rates. The arbitrator concluded that the Town was violating the award by refusing to apply the overtime provision to calculate the daily rate of pay for holidays, but that the overtime provision did not apply to sick pay.

Pursuant to the terms of the parties' 1992-1994 agreement, the grievance award, which was issued on January 4, 1999, was retroactive to December 6, 1996. By an order entered on October 12, 1999, Supreme Court granted the PBA's application to confirm the award, and denied the Town's cross motion to vacate or modify it. Supreme Court declined to address whether the grievance award extended beyond December 31, 1996, when the interest arbitration award expired, suggesting that this might be "an issue that should be raised as an improper employer practice before [PERB]."

At the same time as the PBA was pursuing its grievance in 1997, the Town and the PBA were negotiating a successor collective bargaining agreement for the period January 1, 1997 through December 31, 2000. Through mediation, the parties arrived at a memorandum of agreement, dated June 16, 1997. The memorandum set forth the parties' "tentative agreement" to enter into a new agreement within 90 days to continue all undisputed terms of the 1992-1994 agreement as well as incorporate the uncontested provisions of the interest arbitra-

tion award. The parties, however, never executed a new agreement.

In August 1999, the PBA filed an improper practice charge to contest the Town's refusal to calculate holiday pay in accordance with the grievance award for periods after December 31, 1996, the interest arbitration award's expiration date. The Town argued that PERB lacked jurisdiction because the PBA was attempting to enforce an agreement between the parties, and under Civil Service Law § 205 (5) (d), PERB cannot exercise jurisdiction over such disputes. PERB's Administrative Law Judge (ALJ) rejected the Town's jurisdictional argument because the PBA "[was] not seeking to enforce the terms of either the interest arbitration or grievance award, but [was] challeng[ing] the right of the Town to alter the status quo after the expiration of the award" (33 PERB ¶ 4600, at 4791 [2000]). The ALJ concluded that PERB had jurisdiction, and that if proven, the charge would be actionable under section 209-a (1) (d) for refusal to negotiate in good faith.

After conducting a hearing, the ALJ determined that, by failing to calculate daily rates of pay for holidays in accordance with the grievance arbitration award, the Town was unilaterally changing the status quo and thus violating section 209-a (1) (d). The ALJ relied on *Matter of Blooming Grove Police Benevolent Assn.* (33 PERB ¶ 4581 [2000]) for the proposition that "the status quo after the expiration of an interest arbitration award is defined by reference to the terms of that award, and by the expired [collective bargaining agreement], to the extent that the terms of the [collective bargaining agreement] are not superseded by the award" (33 PERB ¶ 4600, at 4791).

The ALJ rejected the Town's argument that, by defining the status quo in terms of the interest arbitration award, he was, in fact, extending the award's term beyond Civil Service Law § 209 (4) (c) (vi)'s statutory two-year limit.² The ALJ concluded that "[w]hile the effect may at times be the same, the term of the award itself is not extended, only the terms and conditions of employment incorporated therein" (*id.*).

The ALJ ordered the Town to apply the overtime provision in the interest arbitration award to calculate daily rates for holi-

2. Section 209 (4) (c) (vi) limits the terms of an interest arbitration award to no more than two years from the termination date of the expired collective bargaining agreement or, if there was no previous agreement, to two years from the date of the arbitration panel's determination.

day pay, and to make PBA members whole for holiday pay received since December 31, 1996. The Town filed exceptions with PERB.

PERB characterized the issue in this case—“whether the terms of an interest arbitration award can set the *status quo* between the parties until a new collective bargaining agreement is negotiated”—as “one of first impression” (34 PERB ¶ 3007, at 3011 [2001]). Adopting and applying the rationale in *Blooming Grove*, PERB denied the Town’s exceptions and affirmed the ALJ’s decision, concluding that “the *status quo* is set forth in the terms of the interest arbitration award, as construed by the grievance arbitration award” (*id.*). The award thus defines “the terms and conditions of employment between the parties unless and until the terms are varied by a subsequent collective bargaining agreement or interest arbitration award” (*id.*).

The Town then commenced this CPLR article 78 proceeding in Supreme Court. Upon transfer of the proceeding, the Appellate Division, with two Justices dissenting, confirmed PERB’s determination, dismissed the Town’s petition and granted PERB’s application to enforce the determination (307 AD2d 428 [3d Dept 2003]). We now affirm.

II.

[1] As an initial matter, we conclude that PERB has jurisdiction over the parties’ dispute. The PBA’s charge involves the Town’s conduct after the expiration of both the 1992-1994 collective bargaining agreement and the interest arbitration award, and during the time when the parties were under a duty to negotiate a successor agreement. Contrary to the position taken by the Town, this dispute does not involve enforcement of an agreement and does not invoke the limitation on PERB’s jurisdiction found in section 205 (5) (d) of the Civil Service Law (*see e.g. Matter of Roma v Ruffo*, 92 NY2d 489, 498 [1998] [commenting that “the courts have deferred to PERB’s interpretation of the restriction on its jurisdiction in Civil Service Law § 205 (5) (d)”]).

Moreover, we reject the Town’s characterization of the issue on this appeal as whether PERB impermissibly extended the interest arbitration award in violation of the two-year limitation in Civil Service Law § 209 (4) (c) (vi). No request was made for PERB to extend the award’s term, and PERB did not take this action. Rather, PERB defined the *status quo* as comprising the terms and conditions of employment set forth in the expired

award and the 1992-1994 agreement, to the extent that the agreement's terms were not superseded by the award's. The distinction between defining the status quo for purposes of an improper practice charge and extending an interest arbitration award is real, with important consequences for the parties' bargaining status. If, as the Town suggests, the interest arbitration award has been extended, the duty to negotiate over the overtime provision would be suspended. Instead, the parties remain under a duty to negotiate a successor agreement, and if they fail to reach agreement, the impasse procedures in section 209 are available. Moreover, the provisions of the Taylor Law defining the parties' rights and responsibilities while under this duty—including those defining improper employer and employee organization practices—remain in effect. Although we recognize that in this case the “net effect” of PERB's decision is that the Town “is bound to comply with the terms of the [interest arbitration award] beyond the two years fixed by the Legislature” (307 AD2d at 433 [Kane, J., dissenting]), this does not affect the characterization of the dispute. Instead, it goes to the reasonableness of PERB's definition of the status quo.

In sum, we agree with PERB's characterization of the issue in dispute, and so conclude that this appeal's outcome turns on whether PERB properly defined the status quo to encompass the overtime provision in the expired interest arbitration award. Since definition of the status quo “relies upon the special competence [PERB] is presumed to have developed in its administration of the statute,” we ultimately must afford great deference to PERB's determination (*see Matter of Rosen v Public Empl. Relations Bd.*, 72 NY2d 42, 47 [1988]).

III.

While the precise issue in this appeal may be novel, we are not bereft of guideposts. In *Matter of Triborough Bridge & Tunnel Auth. (District Council 37 & Local 1396)* (5 PERB ¶ 3037 [1972], *confirming* 5 PERB ¶ 4505 [Hearing Officer 1972]), PERB considered what terms govern during the “hiatus between an expired contract and the conclusion of negotiations for a successor contract,” a period otherwise known as the “*status quo*” (5 PERB ¶ 4505, at 4521-4522). The parties in *Triborough* negotiated a provision in their collective bargaining agreement whereby salary increments would be based on longevity. The agreement expired and was silent as to whether the provision was intended to survive its fixed term. The employer failed to

continue the increments after the agreement's expiration, and while a successor agreement was being negotiated. As a result, the employee organization filed an improper practice charge, alleging that the employer had refused to negotiate in good faith in violation of Civil Service Law § 209-a (1) (d).

The Hearing Officer held that so long as an employee organization does not engage in an illegal strike,³ the duty to negotiate in good faith prohibits an employer from “unilaterally alter[ing] existing mandatory subjects of negotiations while a successor agreement is being negotiated” (5 PERB ¶ 4505, at 4522). This principle, referred to as the “*Triborough* doctrine,” follows from the proposition that “the statutory prohibition against an employee organization resorting to self help by striking imposes a correlative duty upon a public employer to refrain from altering terms and conditions of employment unilaterally during the course of negotiations” (5 PERB ¶ 3037, at 3064).

PERB subsequently decided that a unilateral change to an employer's past practice regarding a mandatory subject of negotiation also constitutes an improper employer practice under section 209-a (1) (d) (see *Matter of New Berlin Faculty Assn.*, NYSUT, AFT, AFL-CIO, 25 PERB ¶ 3060 [1992]; *Matter of Milonas v Public Empl. Relations Bd.*, 225 AD2d 57, 64 [3d Dept 1996] [“The duty to negotiate in good faith includes an obligation to continue past practices that involve mandatory subjects of negotiation, even in the absence of a provision to that effect in the contract”]). In 1982, the Legislature expressed its approval of the *Triborough* doctrine by expanding it to include not just mandatory subjects of negotiation, but all terms of a collective bargaining agreement (see Civil Service Law § 209-a [1] [e]).

Here, the issue is a corollary of *Triborough*, first resolved by the ALJ in *Blooming Grove*, the reasoning of which PERB expressly adopted. In *Blooming Grove*, the parties submitted to interest arbitration, and the employer complied with the interest arbitration award during its term. After the award's expiration, the employer reverted to the terms of the expired collective bargaining agreement, and the employee organization filed an improper practice charge under section 209-a (1) (d).

3. The Taylor Law provides that “[n]o public employee or employee organization shall engage in a strike, and no public employee or employee organization shall cause, instigate, encourage, or condone a strike” (Civil Service Law § 210 [1]).

Relying principally on *Triborough* and PERB's decisions in *Matter of Massapequa Union Free School Dist.* (8 PERB ¶ 3022 [1975]) and *Matter of City of Kingston* (18 PERB ¶ 3036 [1985]), the ALJ in *Blooming Grove* held that

“the parties’ expired collective bargaining agreement defines the status quo in employees’ terms and conditions of employment pursuant to § [209-a (1) (d)] only to the extent that the compulsory interest arbitration award does not supercede the terms of the contract. To the extent that the terms of an award supercede mandatorily negotiable terms of employment in an expired agreement, absent objection from the employee organization, the award redefines the status quo which must be maintained under § [209-a (1) (d)] of the Act” (33 PERB ¶ 4581, at 4710).

In *Massapequa*, a legislative imposition of new terms and conditions of employment under section 209 (3) (e) (iv) resolved an impasse. PERB concluded that the legislative imposition constituted the status quo that the employer was obligated to continue until the parties reached a new agreement. For purposes of defining the status quo in *Blooming Grove*, the ALJ viewed an interest arbitration award, which is imposed on the public employer by an arbitration panel for a two-year period, as analogous to a legislative imposition, which is imposed on a public employer by its legislative body for a one-year budget cycle (see *Matter of City of Mount Vernon*, 5 PERB ¶ 3057, at 3101 [1972] [when contesting parties cannot reach agreement, “the function of a local legislature is similar to that of an arbitrator” while “the power of the local legislature is limited to taking such action as is necessary to bridge a single budget period”]).

In *City of Kingston*, PERB addressed the effect of Civil Service Law § 209-a (1) (e) on the rights of the parties to seek interest arbitration under section 209 (4). PERB concluded that an employee organization had the option either to extend an expired collective bargaining agreement under section 209-a (1) (e) or to demand interest arbitration. If the employee organization submitted to arbitration, it waived its right to require the employer to continue the terms of the expired agreement.

Moreover, PERB determined that section 209-a (1) (e) placed a limitation on the employer's right to seek arbitration. Because an employee organization was entitled to have the terms of an

expired collective bargaining agreement continued under section 209-a (1) (e), an employer could not avoid this obligation simply by requesting arbitration. As a result, an employer could only seek interest arbitration if the employee organization consented to it: “the terms of an expired agreement may not be changed except by a subsequent negotiated agreement unless the union involved agrees to the submission of the deadlock for resolution by an arbitration award or a legislative determination” (18 PERB ¶ 3036, at 3076; *see also Matter of City of Buffalo*, 19 PERB ¶ 3023 [1986] [union that participates in impasse procedures under section 209 to obtain improvements in terms and conditions of employment may not demand that the employer continue the terms of the expired agreement that the union sought to modify]).

[2] Thus, PERB’s longstanding precedent supports its decision to define the status quo to include the expired interest arbitration award to the extent its provision for overtime, as interpreted by the grievance award, superseded the parties’ 1992-1994 collective bargaining agreement. The award effectively redefined the parties’ agreement on this mandatory term and condition of employment. If the Town wanted to alter the change wrought by the award, it was obligated to obtain the employee organization’s consent through collective bargaining.

Finally, we note that PERB’s decision in this regard fosters the finality and harmony that the Taylor Law was intended to achieve by maintaining the extant terms and conditions of employment rather than looking back to what existed before impasse resolution. PERB has not impermissibly extended the term of an interest arbitration award; rather, PERB has reasonably balanced the bargaining rights of the parties by requiring good faith negotiations consonant with the Taylor Law’s objectives.

Accordingly, the judgment of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and R.S. SMITH concur.

Judgment affirmed, with costs.

[813 NE2d 587, 780 NYS2d 507]

LOCAL GOVERNMENT ASSISTANCE CORPORATION et al., Appellants-
Respondents, v SALES TAX ASSET RECEIVABLE CORPORATION
et al., Respondents-Appellants.

Argued April 28, 2004; decided May 13, 2004

SUMMARY

CROSS APPEALS, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 4, 2004. The Appellate Division (1) dismissed the appeal from an order of the Supreme Court, Albany County (Louis C. Benza, J.; op 1 Misc 3d 272), entered August 20, 2003, which had denied plaintiffs' motion for a preliminary injunction enjoining defendants from issuing bonds or otherwise implementing the provisions of the Municipal Assistance Corporation Refinancing Act, and (2) modified, on the law, an order of that Supreme Court, entered September 17, 2003, which had denied plaintiffs' cross motion for summary judgment, granted defendants' motion for summary judgment, declared the Municipal Assistance Corporation Refinancing Act, contained in Laws of 2003, chapter 62, part A4, and chapter 63, part V, constitutional under the challenges made therein, and denied all other relief. The modification consisted of (1) reversing so much of the order as had granted defendants' motion for summary judgment declaring constitutional the amendment to Public Authorities Law § 3240 (5), as contained in Laws of 2003, chapter 62, part A4, § 2, and as had denied plaintiffs' cross motion declaring the amendment unconstitutional, (2) granted plaintiffs' cross motion to that extent, (3) declared the amendment unconstitutional, and (4) severed it from the Municipal Assistance Corporation Refinancing Act. The Appellate Division affirmed the order as modified.

Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp., 5 AD3d 829, modified.

HEADNOTES

Constitutional Law — Validity of Statute — Municipal Assistance Corporation Refinancing Act

1. The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in NY Constitution article VII, § 11, against imposing upon the State a multiyear payment

obligation without subjecting the payments to either a referendum or a legislative appropriation. The 30 annual payments that plaintiff Local Government Assistance Corporation (LGAC) is required to make on behalf of the State to the City under the Act, which was passed without a public referendum, are subject to annual appropriations in satisfaction of that constitutional provision. The Act's amendment to Public Authorities Law § 3240 (5) does not obligate the State to provide the funds for LGAC's payments even without an appropriation. The amendment was intended to prevent the State from changing the specific timing of the payments mandated under the Act. The Act otherwise continues explicitly to require that the payments be subject to annual legislative appropriation.

Constitutional Law — Validity of Statute — Municipal Assistance Corporation Refinancing Act

2. The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in NY Constitution, article VIII, § 2, against municipalities contracting debt without pledging their faith and credit for the payment of the principal and interest on the debt. The Act permits the City to assign to defendant Sales Tax Asset Receivable Corporation (STARC) the City's right to receive the annual payments plaintiff Local Government Assistance Corporation (LGAC) is required to make to the City on behalf of the State. The City did not incur any enforceable debt with respect to the assignment because it has no legal obligation either to STARC or to its bondholders should LGAC fail to make its payments to STARC. Moreover, even if the City would otherwise have an interest in the LGAC payments, the diversion of municipal funds to a public benefit corporation does not necessarily run afoul of the State Constitution.

Constitutional Law — Validity of Statute — Municipal Assistance Corporation Refinancing Act

3. The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in US Constitution, article I, § 10 against states passing laws impairing the obligation of contracts. While Public Authorities Law § 3238-a, as added by the Act, requires Local Government Assistance Corporation (LGAC) to make annual payments to the City on behalf of the State, it does not modify or repeal the State's pledge to honor the contractual rights and remedies of LGAC's bondholders pursuant to Public Authorities Law § 3241 (1). Pursuant to their contract with LGAC, and as confirmed in section 3241 (1), the bondholders have first priority on LGAC's appropriated funds. Section 3238-a does not expressly undermine section 3241 (1) or otherwise establish a new order of priority on the payments LGAC must make from its appropriated funds.

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AM JUR 2d, Constitutional Law §§ 708, 712, 720, 726–731,
734; AM JUR 2d, Public Funds § 4.
McKINNEY'S, Public Authorities Law §§ 3238–a, 3240 (5);

§ 3241 (1); McKINNEY'S, NY Const, art VII, § 11; art VIII, § 2.

NY JUR 2d, Constitutional Law §§ 59, 63, 69, 70, 322, 323; NY JUR 2d, Public Authorities § 3; NY JUR 2d, Public Funds §§ 11, 25, 37, 38, 41; NY JUR 2d, Taxation and Assessment § 1844.

US Const, art I, § 10.

ANNOTATION REFERENCE

See ALR Index under Constitutional Law; Impairment of Contract; Public Moneys.

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Query: municipal /2 assistance /2 corporation /2 re-financing

POINTS OF COUNSEL

Davis Polk & Wardwell, New York City (*Guy Miller Struve*, *Russell L. Lippman* and *Douglas K. Yatter* of counsel), *Kornstein Veisz Wexler & Pollard, LLP* (*Alexander H. Shapiro* of counsel), and *Thuillez, Ford, Gold, Johnson & Butler, LLP*, Albany (*Dale M. Thuillez* of counsel), for appellants-respondents. I. The Municipal Assistance Corporation Refinancing Act violates article VII, § 11 of the State Constitution by creating an absolute legal obligation to pay \$170 million per year which is not subject to legislative appropriations. (*Schulz v State of New York*, 84 NY2d 231; *Matter of Wood v Irving*, 85 NY2d 238; *People ex rel. Alpha Portland Cement Co. v Knapp*, 230 NY 48, cert denied sub nom. *State Tax Commr. of State of N.Y. v People ex rel. Alpha Portland Cement Co.*, 256 US 702; *Matter of Westinghouse Elec. Corp. v Tully*, 63 NY2d 191; *People v Dietze*, 75 NY2d 47; *People v Smith*, 63 NY2d 41, 469 US 1227; *Bender v Jamaica Hosp.*, 40 NY2d 560; *Bright Homes v Wright*, 8 NY2d 157; *United States v National Treasury Empls. Union*, 513 US 454; *National Adv. Co. v Town of Niagara*, 942 F2d 145.) II. The Municipal Assistance Corporation Refinancing Act violates the ban on revenue financing in article VIII, § 2 of the State Constitution by authorizing the City of New York to obtain financing backed only by the assignment of future revenues of the City. (*Flushing Natl. Bank v Municipal Assistance Corp. for City of N.Y.*, 40 NY2d 731; *Wein v City of New York*, 36 NY2d 610; *Schulz v State of New York*, 193 AD2d 171, 84 NY2d 231; *McCabe v Gross*, 274 NY 39; *Kelly v Merry*, 262 NY 151; *Krons-*

bein v City of Rochester, 76 App Div 494; *Matter of Tierney v Cohen*, 268 NY 464; *Comereski v City of Elmira*, 308 NY 248; *Mnich v American Radiator Co.*, 263 App Div 573, 289 NY 681; *Endico Potatoes, Inc. v CIT Group/Factoring, Inc.*, 67 F3d 1063.) III. The Municipal Assistance Corporation Refinancing Act unconstitutionally impairs the rights of Local Government Assistance Corporation's bondholders. (*Patterson v Carey*, 41 NY2d 714; *Matter of Westinghouse Elec. Corp. v Tully*, 63 NY2d 191; *United States Trust Co. v New Jersey*, 431 US 1.)

Michael A. Cardozo, Corporation Counsel, New York City (*Leonard Koerner, John R. Low-Beer, June R. Buch and Elizabeth I. Freedman* of counsel), and *Greenberg Traurig, LLP*, Albany (*Henry M. Greenberg* of counsel), for respondents-appellants. I. The Municipal Assistance Corporation Refinancing Act requires that the statutory payments be made subject to annual legislative appropriation. (*Schulz v State of New York*, 84 NY2d 231; *Matter of Consolidated Edison Co. of N.Y. v Department of Environmental Conservation*, 71 NY2d 186; *Besser v E.R. Squibb & Sons*, 146 AD2d 107, 75 NY2d 847; *People v Mancuso*, 255 NY 463; *New York State Bankers Assn. v Albright*, 38 NY2d 430; *Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298; *Eaton v New York City Conciliation & Appeals Bd.*, 56 NY2d 340; *Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443; *TM Park Ave. Assoc. v Pataki*, 214 F3d 344; *Waste Recovery Enters. v Town of Unadilla*, 294 AD2d 766, 100 NY2d 614, 1 NY3d 507.) II. The Municipal Assistance Corporation Refinancing Act does not authorize the creation of city debt. (*Schulz v State of New York*, 193 AD2d 171, 84 NY2d 231, 513 US 1127; *Endico Potatoes, Inc. v CIT Group/Factoring, Inc.*, 67 F3d 1063; *In re Golden Plan of Cal., Inc.*, 829 F2d 705; *Major's Furniture Mart, Inc. v Credit Corp., Inc.*, 602 F2d 538; *Wein v City of New York*, 36 NY2d 610; *Comereski v City of Elmira*, 308 NY 248; *Schulz v New York State Legislature*, 244 AD2d 126, 92 NY2d 818; *Matter of Schulz v State of New York*, 151 Misc 2d 594, 185 AD2d 596, 81 NY2d 336; *Matter of Tierney v Cohen*, 268 NY 464; *Robertson v Zimmermann*, 268 NY 52.) III. The Municipal Assistance Corporation Refinancing Act does not unconstitutionally impair the contract rights of Local Government Assistance Corporation bondholders. (*Besser v E.R. Squibb & Sons*, 146 AD2d 107, 75 NY2d 847; *Iazzetti v City of New York*, 94 NY2d 183; *Matter of Jacob*, 86 NY2d 651; *TSC Indus., Inc. v Northway, Inc.*, 426 US 438.)

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Monte-Sano, James Gadsden and Susan B. Kalib of counsel), for Bank of New York as Successor Trustee under the Local Government Assistance Corporation Bond Resolutions, amicus curiae. The trustee requires clarification as to the status of the Local Government Assistance Corporation bondholders. (*Patterson v Carey*, 41 NY2d 714.)

Donna M.C. Giliberto, Albany, for New York State Conference of Mayors and Municipal Officials, amicus curiae. Public authorities are created in response to state and local concerns coupled with the need to access alternative financing methods not readily available to cities without state legislative action. (*Matter of Plumbing, Heating, Piping & A.C. Contrs. Assn. v New York State Thruway Auth.*, 5 NY2d 420; *Matter of Lake-land Water Dist. v Onondaga County Water Auth.*, 24 NY2d 400; *Grace & Co. v State Univ. Constr. Fund*, 44 NY2d 84; *Matter of Smith v Levitt*, 37 AD2d 418, 30 NY2d 934; *Wein v City of New York*, 36 NY2d 610; *Matter of Schulz v State of New York*, 151 Misc 2d 594, 185 AD2d 596, 81 NY2d 336; *Comereski v City of Elmira*, 308 NY 248; *Union Free School Dist. No. 3 v Town of Rye*, 256 App Div 456, 280 NY 469.)

OPINION OF THE COURT

G.B. SMITH, J.

This is a constitutional challenge to the Municipal Assistance Corporation Refinancing Act, which was enacted as part of a 2003 budget bill to assist the City of New York in retiring certain long-term debt. The wisdom of this legislation is not a matter for this Court to address (*see Schulz v State of New York*, 84 NY2d 231, 237 [1994]). As to its legality, we conclude that the Act does not violate the State or Federal Constitutions.

I.

In the 1970s, defendant City of New York experienced a serious fiscal crisis that brought it to the brink of bankruptcy. In an effort to save the City from default, the State Legislature created the Municipal Assistance Corporation (MAC), which issued long-term bonds and used the proceeds to refinance the City's short-term debt. The bonds were to be financed over the next 30 years by diverting to MAC a portion of the state sales tax revenue that would otherwise be available to the City. The last remaining MAC bonds are scheduled to mature in 2008.

In 2003, with \$2.5 billion left to pay on the MAC debt service (then due at a rate of \$500 million annually for the remaining

five years), the City faced another fiscal crisis. The Legislature sought to provide a financing mechanism to assist the City in satisfying the remainder of its MAC debt. In May 2003, over the Governor's veto of the entire budget bill, the Legislature enacted the Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V) to achieve this purpose. The Act amended the Public Authorities Law by adding a new section, section 3238-a, and amending existing section 3240. In doing so, the Act allowed the City to receive the sales tax revenue that was being diverted to MAC and thereby retain the remaining \$2.5 billion that it owed on the debt service, while requiring the State to make 30 annual payments to the City of \$170 million, or a total of \$5.1 billion. The City intended to use the annual payments to finance bonds to be issued by a public benefit corporation established for this purpose. The proceeds from the sale of the bonds were to be used to retire the City's MAC debt.

Local Government Assistance Corporation

Plaintiff Local Government Assistance Corporation (LGAC) was charged with channeling the payments from a portion of state sales tax revenues. LGAC was established by chapter 220 of the Laws of 1990 as part of a state fiscal reform program.¹ As a public benefit corporation, it was authorized to issue \$4.7 billion in bonds to provide funding for public services. LGAC bonds were issued pursuant to general bond resolutions adopted in 1991 and in 2002. The resolutions constitute contracts between LGAC and its bondholders and contain promises that the bondholders would have first priority on the tax dollars available to LGAC for debt service, and included a pledge that no equal or prior lien on these funds could be created. Additionally, pursuant to Public Authorities Law § 3241 (1), the State has pledged not to limit or alter LGAC's right to fulfill its agreements with its bondholders or to impair the bondholders' rights or remedies.

The debt service on LGAC bonds is payable from revenues derived from state sales and compensating use taxes, one percentage point of which must be deposited in the Local Govern-

1. At the time LGAC was created, the State was encountering fiscal problems from so-called "spring borrowing," which developed because the State's fiscal year ends on March 31, whereas the fiscal year of local governments ends on June 30. Spring borrowing occurred when local governments, in the last quarter of their fiscal year, would borrow money from the State during the first quarter of its fiscal year. LGAC was created to eliminate this practice by providing funding for local government needs.

ment Assistance Tax Fund (Tax Fund). The Tax Fund is held in the joint custody of the State Comptroller and the Commissioner of Taxation and Finance (*see* State Finance Law § 92-r [1]). Pursuant to Public Authorities Law § 3240 (1), each year the Chairperson of LGAC must certify to the Governor and the Comptroller its debt service requirements and certain other required expenditures for the upcoming fiscal year. Upon annual appropriation by the Legislature, the funds needed are transferred by the Comptroller (*see* Public Authorities Law § 3240 [3]; State Finance Law § 92-r [5]). Only after LGAC has received its funds in accordance with its certified request can the remaining revenues in the Tax Fund be distributed to the general fund of the State Treasury (*see* State Finance Law § 92-r [5]).

Although the State is not legally obligated to appropriate the funds that LGAC has sought in its certification (*see* Public Authorities Law § 3240 [5]),² the State has a powerful incentive to make the requested appropriation because the Comptroller is prohibited from distributing any money in the Tax Fund to the state general fund unless and until LGAC receives the payments according to its certification (*see* State Finance Law § 92-r [5] [a] [i]). This incentive has been referred to as the statute's "trapping mechanism." Since the inception of LGAC, there has annually been a legislative appropriation and substantial excess funds have been transferred each year from the Tax Fund to the State Treasury.

The MAC Refinancing Act

The MAC Refinancing Act created Public Authorities Law § 3238-a, which requires LGAC to make annual payments of \$170 million to the City during each City fiscal year until 2034. The first paragraph of that provision states:

"Notwithstanding any inconsistent provision of law,

2. Prior to the amendment of the provision by the MAC Refinancing Act, Public Authorities Law § 3240 (5) stated:

"The agreement of the state contained in this section shall be deemed executory only to the extent of appropriations available for payments under this section and no liability on account of any such payment shall be incurred by the state beyond such appropriations. The state, acting through the director of the budget, and the corporation may enter into, amend, modify, or rescind one or more agreements providing for the specific manner, timing, and amount of payments to be made under this section, but only in conformity with this section."

[LGAC] shall transfer to the city of New York [\$170 million] from the resources of the corporation pursuant to section [3239] of this title. Such payment shall be made during each city fiscal year. Such payments from the corporation shall be made from the fund [i.e., the Tax Fund] established by [State Finance Law § 92-r] and in accordance with the provisions thereof” (Public Authorities Law § 3238-a).

The Act also amended Public Authorities Law § 3240 (1) to require the Chairperson of LGAC to include in its annual certifications to the Governor and Comptroller the \$170 million payments it is required to make to the City. The Act further amended Public Authorities Law § 3240 (5), which contained the executory clause and addressed the manner and timing of the State’s payments to LGAC, by adding a sentence at the end of the provision which stated, “Provided however, this subdivision shall not apply for payments made pursuant to section [3238-a] of this title.”³

In addition, the Act permits the City’s Mayor to assign the \$170 million payments to a new not-for-profit local development corporation (*see* Public Authorities Law § 3238-a). Once the Mayor gives notice to LGAC and the Comptroller of the assignment, the payments must be made directly to the assignee. The assigned payments then become the property of the assignee for all purposes. In accordance with this statutory scheme, the Mayor of the City of New York irrevocably assigned the City’s right to receive the LGAC payments to defendant Sales Tax Asset Receivable Corporation (STARC), the not-for-profit development corporation created for this purpose. Under the assignment agreement between the City and STARC, STARC would issue bonds financed by the LGAC payments. The proceeds from the bonds would be used to retire the City’s remaining \$2.5 bil-

3. Following the enactment of the MAC Refinancing Act, each house of the Legislature passed separate “clean-up” bills to correct drafting errors in the prepared budget bills, although neither clean-up bill was enacted (2003 NY Assembly Bill A 9097 part J; 2003 NY Senate Bill S 5692 part J). These bills were similar in that they both sought to substitute the amended sentence in Public Authorities Law § 3240 (5) with language providing that agreements relating to payments made under section 3238-a would not be contrary to the intent of that provision. In addition, both bills sought to delete from section 3238-a the phrase “Notwithstanding any inconsistent provision of law.” The bills also would have delayed the first payment to the City until the fiscal year ending June 30, 2005. Furthermore, both bills sought to add a sentence to section 3238-a which would have explicitly subordinated LGAC’s payments on behalf of the State to LGAC’s payments to its bondholders.

lion MAC debt. Any net proceeds not necessary to retire the remaining MAC debt would be paid to the City.

The Instant Litigation

On August 6, 2003, citing legal and policy concerns regarding LGAC's obligations under the MAC Refinancing Act, LGAC's three directors⁴ unanimously adopted a resolution (1) directing LGAC not to participate in the STARC transaction, (2) authorizing and directing its coexecutive directors to explore the legal issues and to hire litigation counsel and (3) declaring that LGAC had no intention of making the payments to the City on behalf of the State until the legal issues were resolved either by litigation or by legislative action.

As a result of LGAC's resolution, STARC restructured its initial bond offering plan by reducing the amount of bonds it intended to offer and resolving to hold the proceeds from the bonds in escrow, pending resolution of the anticipated litigation, rather than paying the MAC debt. On August 11, 2003, the City issued a preliminary offering circular for \$532.2 million worth of Series A bonds set to mature in 2029. The offering circular recognized the stance taken by LGAC with regard to its payment obligations and expressed the City's intent to commence litigation to enforce its rights under the Act. The circular further stated that neither the State's payments to LGAC nor LGAC's payments to STARC constituted a debt of either the State or the City. The circular also acknowledged that LGAC's obligation to pay STARC in accordance with the Act was subordinated to its obligation to pay its bondholders.⁵

On August 13, 2003, LGAC commenced this declaratory action in Supreme Court, Albany County, seeking judgment declaring the MAC Refinancing Act unconstitutional. Specifically,

4. Laws of 1990, chapter 220, sec 1, § 3234 (1) reads as follows:

"The corporation shall be administered by three directors, one of whom shall be the comptroller, one of whom shall be the director of the budget and one of whom shall be appointed by the governor. A director who is not a state official shall serve for a term expiring at the end of the term actually served by the officer making the appointment and may be removed for cause by such officer after hearing on ten days notice."

5. On August 12, 2003, STARC issued a preliminary offering circular for approximately \$24 million in Series B bonds, the proceeds of which would be used to finance the Series A debt service in the event that the City was unsuccessful in its anticipated litigation. Payment on Series B bonds would otherwise be made in the manner described in the preliminary offering circular for Series A bonds.

LGAC alleged that the Act (1) violated New York State Constitution, article VII, § 11, by imposing upon the State a multiyear payment obligation without subjecting the payments to either a referendum or a legislative appropriation; (2) violated New York State Constitution, article VIII, § 2, because the assignment of the City's payments to STARC constituted a contracting of debt without a pledge of the City's faith and credit; and (3) violated United States Constitution, article I, § 10, by impairing the contractual rights of LGAC's bondholders.

LGAC also sought a preliminary injunction to prevent STARC from issuing its bonds.⁶ In a decision dated August 20, 2003, Supreme Court denied LGAC's motion for a preliminary injunction. On August 27, 2003, the Appellate Division issued a preliminary injunction pending the appeal. Both parties have agreed to comply with the injunction pending this Court's decision. Thereafter, STARC, along with the City, moved for summary judgment seeking dismissal of the complaint and a declaration that the Act is valid under the State and Federal Constitutions. LGAC cross-moved for summary judgment seeking a declaration that the Act is unconstitutional.

Supreme Court granted the motion and denied the cross motion, declaring the Act constitutional as challenged. As to the challenge that the Act created a multiyear obligation not subject to legislative appropriation, the court reasoned that Public Authorities Law § 3238-a requires that LGAC make its annual \$170 million payments from funds appropriated by the State pursuant to State Finance Law § 92-r. Thus, the court concluded, even if the executory clause of Public Authorities Law § 3240 (5) did not apply to LGAC's payments to the City, other provisions of the Public Authorities Law ensured that the annual payments to the City would, as required, be subject to legislative appropriation.

Relying on this Court's decision in *Wein v City of New York* (36 NY2d 610 [1975]), Supreme Court rejected LGAC's argument that the City was unlawfully contracting a debt obligation without pledging its faith and credit. The court determined that no debt was being incurred by the City since the City was not liable to STARC bondholders in the event that LGAC failed to make the annual \$170 million payments. Finally, the court concluded that LGAC's payments to the City under the Act do

6. On August 13, 2003, Supreme Court issued a temporary restraining order preventing the issuance of STARC bonds.

not create obligations that are prior or equal to LGAC's bondholders in that LGAC does not have to pay the City until there has been an appropriation and all of LGAC's debt service obligations have been met.

Upon LGAC's appeal, the Appellate Division, with one Justice concurring in part and dissenting in part, modified the order of Supreme Court by (1) reversing that part of the order granting STARC's motion for summary judgment declaring constitutional the amendment to Public Authorities Law § 3240 (5) and denied LGAC's cross motion as to that amendment; (2) denying STARC's motion as to that amendment and granting LGAC's cross motion as to that amendment; and (3) declaring the amendment unconstitutional and severing it from the remainder of the Act. The Court held that the amendment to section 3240 (5) eliminated the necessity of annual legislative appropriations in violation of the State Constitution. The Court determined, however, that the offending provision was severable because to sever would preserve the legislative objective in promulgating the Act, which was to assist the City in retiring its remaining payments due on the MAC indebtedness.

The Court also concluded that the City's assignment of the \$170 million payments to STARC did not create a debt for the City. Rather, the Court reasoned, only STARC would be liable if LGAC's failure to make its payments to STARC resulted in STARC's inability to pay its bondholders. Thus, the debt would be incurred by STARC, not the City. Moreover, the Court stated that LGAC's obligations of first priority on tax dollars to its bondholders would not be impaired. It concluded that "nothing in the Act explicitly requires that the \$170 million be paid at the expense of the existing LGAC bondholders. . . . [B]ecause we have severed the constitutionally offensive amendment . . . the \$170 million payment is subject to annual appropriation. The Act does not require LGAC to make the \$170 million payment in the event of a shortfall in the appropriation." (5 AD3d 829, 833 [2004].)

One Justice concurred in part and dissented in part. While he concurred in the Court's conclusion that the Act, as severed, did not violate either of the state constitutional provisions invoked by plaintiffs, he disagreed with the majority's holding that the Act did not impair the contractual rights of LGAC's existing bondholders. He reasoned that if the Legislature appropriated funds sufficient for either LGAC's debt service or STARC payments, but not both, the language of Public Authorities Law

§ 3238-a would mandate that LGAC pay STARC before the LGAC bondholders. Because LGAC's contracts with its bondholders provide that they are to have first priority on money in the Tax Fund, the dissenting Justice concluded that the Act unconstitutionally impairs LGAC's contracts with its bondholders.

Pursuant to CPLR 5601 (b), LGAC appeals and STARC and the City cross-appeal to this Court. We now modify the order of the Appellate Division and reinstate the order of Supreme Court, thus declaring the MAC Refinancing Act constitutional.

II.

On this appeal, LGAC argues that the MAC Refinancing Act unconstitutionally requires LGAC, acting on behalf of the State, to make multiyear payments which are not subject to legislative appropriations (*see* NY Const, art VII, § 11). LGAC contends that this infirmity is not severable from the remainder of the Act. Additionally, LGAC contends that the Act violates the prohibition against revenue financing by authorizing the City to assign the payments to STARC, and thereby to incur debt, without requiring the City to pledge its faith and credit (*see* NY Const, art VIII, § 2). LGAC urges further that the Act unconstitutionally impairs the contracts of LGAC's existing bondholders (*see* US Const, art I, § 10). In their cross appeal, STARC and the City argue that the Act's amendment to Public Authorities Law § 3240 (5) is constitutional and does not exclude the payments from legislative appropriations.

At the outset, we again note that the wisdom of this refinancing plan is not a matter for this Court to evaluate. Moreover, LGAC bears a heavy burden to overcome the strong presumption of constitutionality that attaches to every statute (*see Schulz v State of New York*, 84 NY2d at 241; *Hotel Dorset Co. v Trust for Cultural Resources*, 46 NY2d 358, 370 [1978]). Particularly where the statute concerns public financing programs, courts are required to exercise restraint and give deference to the legislative enactment, unless the program is "patently illegal" (*Hotel Dorset Co.*, 46 NY2d at 370, quoting *Comereski v City of Elmira*, 308 NY 248, 254 [1955]; *see also Schulz*, 84 NY2d at 241). Thus, in order to prevail, LGAC must prove beyond a reasonable doubt that "in any degree and in every conceivable application the [legislative enactment] suffers wholesale constitutional impairment" (*Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443, 448 [2003] [citation and internal quotation marks omitted]).

We conclude that LGAC has not satisfied this substantial burden.

Legislative Appropriations

New York State Constitution, article VII, § 11, provides, in relevant part, “[N]o debt shall be hereafter contracted by or in behalf of the state, unless such debt shall be authorized by law, for some single work or purpose No such law shall take effect until it shall, at a general election, have been submitted to the people, and have received a majority of all the votes cast for and against it at such election.” As this Court has recognized, a statute providing for multiyear payments pursuant to annual legislative appropriations does not create a debt within the meaning of article VII, § 11, and is not subject to the public referendum requirement (*see Schulz*, 84 NY2d at 249, 251). Thus, the 30 annual payments that LGAC is required to make pursuant to the MAC Refinancing Act, passed without a public referendum, must be subject to annual legislative appropriations in order to satisfy this provision of the State Constitution.

[1] LGAC contends that the amendment to Public Authorities Law § 3240 (5) added a sentence at the end of that subdivision that renders the Act unconstitutional. Public Authorities Law § 3240 (5) reads as follows:

“The agreement of the state contained in this section shall be deemed executory only to the extent of appropriations available for payments under this section and no liability on account of any such payment shall be incurred by the state beyond such appropriations. The state, acting through the director of the budget, and the corporation may enter into, amend, modify, or rescind one or more agreements providing for the specific manner, timing, and amount of payments to be made under this section, but only in conformity with this section. *Provided however, this subdivision shall not apply for payments made pursuant to section [3238-a] of this title*” (emphasis added).

LGAC argues that the final sentence of the subdivision exempts the payments to the City from the executory clause contained in the first sentence, and therefore obligates the State to provide the funds for LGAC’s payments even without an appropriation. We disagree.

Statutes must be construed to effectuate the intent of the Legislature. Reading the Act as a whole, we conclude that the

amended sentence was intended to apply only to the previous sentence, not to the entire subdivision, and the failure to make that intent plain in the statute—the result of legislative haste—cannot serve to void the Act. The previous sentence permitted LGAC and the State to “amend, modify, or rescind one or more agreements providing for the specific manner, timing, and amount of payments to be made” by LGAC. In enacting the amended sentence, the Legislature sought to prevent the State from changing the specific timing of the payments mandated under the Act. The City’s fiscal year begins July 1, whereas the State’s fiscal year begins April 1. It was therefore important from a budgeting perspective that the \$170 million be available to the City no later than July 1. Accordingly, the Legislature intended to remove the discretion of the State Budget Director and LGAC with respect to the timing of the annual payments, so as to ensure that LGAC’s payment to the City or its assignee would occur during each city fiscal year.

LGAC’s contrary contention—that the Legislature’s intent in amending Public Authorities Law § 3240 (5) was to exempt the payments to the City from the requirement of appropriation—is belied by the reality that the MAC Refinancing Act otherwise continues to explicitly require that the payments be subject to annual legislative appropriation.

Public Authorities Law § 3238-a states, in pertinent part:

“Notwithstanding any inconsistent provision of law, [LGAC] shall transfer to the city of New York [\$170 million] from the resources of the corporation pursuant to section [3239] of this title. Such payment shall be made during each city fiscal year. Such payments from the corporation shall be made from the fund established by [State Finance Law § 92-r] and in accordance with the provisions thereof.”

As noted above, the fund established by State Finance Law § 92-r (1) is the Tax Fund. LGAC receives its revenue from the Tax Fund only by legislative appropriation. Section 92-r (5) (a) of the State Finance Law states that once the Comptroller receives the certification of LGAC’s payment requirements, submitted pursuant to Public Authorities Law § 3240, the Comptroller must pay the amount certified “pursuant to an appropriation.” The Act amended Public Authorities Law § 3240 (1) to require LGAC to include in its annual certification the \$170 million payments it is required to make to the City. Moreover, section 3240 (3) states that the Comptroller must pay the

amount certified by LGAC “provided that any such amounts shall have been first appropriated by the state.”

Thus, upon construing the Act as a whole and reading its parts together to determine the intent of the Legislature, as we must, we conclude that the intent of the Legislature is clear: to enact a constitutionally sound statute pursuant to which the State would assist the City in meeting its debt obligations to MAC by providing for annual payments to the City through legislative appropriations channeled through LGAC. Moreover, both STARC and the City acknowledge that LGAC’s annual payments to the City must be appropriated. Of course, if no appropriation is made from the Tax Fund, LGAC cannot access the funds from which it must make its payments to the City, and the City would not receive the payment. Notably, section 3238-a requires that LGAC’s payments be made from the Tax Fund, and even if revenue were available to LGAC from other sources, it could not be used to make the payments to the City. Thus, the Act ensures that any payments to the City are subject to an annual legislative appropriation notwithstanding the amendment to Public Authorities Law § 3240 (5). Indeed, the entire purpose of channeling the annual payments through LGAC is to make use of LGAC’s trapping mechanism, which gives the Legislature an incentive, but not an obligation, to appropriate; in fact appropriation remains, as it must, ultimately discretionary.

If, as plaintiffs contend, the Legislature had wanted to create an absolute and unconditional requirement of payments to the City, not subject to appropriation, it would simply have provided that in each of the next 30 years the State shall pay \$170 million annually to the City. If the payments were meant to be mandated without the need for appropriation, there would have been no need to channel the payments through LGAC, using the incentive of the trapping mechanism of State Finance Law § 92-r. Therefore, we conclude that the MAC Refinancing Act does not violate article VII, § 11, of the New York State Constitution.⁷

7. We further reject LGAC’s contention that—by specifying that \$170 million be transferred annually to the City by LGAC “[n]otwithstanding any inconsistent provision of law” (Public Authorities Law § 3238-a)—the Act creates an “unambiguous” and “absolute” command that the \$170 million be paid by the State each year, regardless of an appropriation. The challenged

(n. cont’d)

Municipal Debt

[2] LGAC further contends that the Act violates New York State Constitution, article VIII, § 2, because it permits the City to assign to STARC its right to receive LGAC's annual payment of \$170 million. LGAC argues that the City's assignment of this right to STARC, in exchange for the proceeds on the bonds that STARC would issue, constitutes a debt of the City, on which the City has not pledged its faith and credit. We disagree.

The State Constitution prohibits the City from contracting any indebtedness unless it pledges its "faith and credit" for the payment of the principal and interest on the debt (NY Const, art VIII, § 2). The purpose of this provision is obvious—to ensure that the municipalities honor their legal financial obligations to their creditors (*see generally Flushing Natl. Bank v Municipal Assistance Corp.*, 40 NY2d 731 [1976]). Debt has a well-settled meaning within the contemplation of the State Constitution. A debt can arise only where the municipality has incurred a legal obligation to fund the public benefit corporation's debt service to its bondholders should the corporation default on its obligation (*see Wein v City of New York*, 36 NY2d at 617-618; *Schulz v State of New York*, 84 NY2d 231, 247-249 [1994]). Thus, the City's assignment to STARC of payments that the City would otherwise receive from LGAC can be considered a debt of the City only if the City could be held liable to STARC or its bondholders in the event that LGAC failed to make the payments to STARC.

Like Supreme Court and the Appellate Division, we conclude that our decision in *Wein* is dispositive of this issue. In *Wein*, pursuant to the New York City Stabilization Reserve Corporation Act, the Mayor of the City of New York was authorized to certify \$520 million over the course of two succeeding fiscal years to the Stabilization Reserve Corporation (SRC). SRC would then sell \$520 million of its own bonds and notes, the proceeds of which would be paid into the City's general fund. Under the applicable statute, the bonds and notes were the sole obligations of the SRC, and neither the State nor the City would be liable for payment on the debt service. The bonds were financed out of SRC's capital reserve fund. To assure proper maintenance of the fund, the City was to make a yearly appropriation to the fund. If the City failed to make the appropria-

provision refers only to LGAC's payments to the City, not to the State's payments to LGAC, which must, of course, be subject to appropriation.

tion, the State Comptroller would pay SRC the amount certified out of revenue that would otherwise have been payable to the City (see *Wein v City of New York*, 36 NY2d at 614-615).

In rejecting plaintiff taxpayer's article VIII, § 2 challenge to the New York City Stabilization Reserve Corporation Act, we noted that the terms of the statute precluded the City from becoming indebted to SRC or its bondholders. We held that article VIII, § 2 did not apply because the City could not be held liable to the bondholders even if the City failed to make the payments, thereby causing SRC to default (*id.* at 617-618).

In this case, as in *Wein*, the City has no legal obligation either to STARC or to its bondholders should LGAC fail to make its payments to STARC. Although the Act does not specifically state that the City incurs no obligation with respect to STARC's bondholders, it does not impose such an obligation. And significantly, the City's avoidance of this debt obligation is abundantly clear in the record. According to STARC's certificate of incorporation, "no member of the City Group will guarantee debts of the Corporation." Moreover, the assignment agreement between the City and STARC states:

"City Not Liable on Bonds. It is the intention of the City and [STARC], and they do agree, that the Fiscal 2004 Bonds shall not be a debt of the City and the City will not have any obligation or liability thereon."

The preliminary offering circular on STARC's Series A bonds states:

"None of the payments to LGAC, to [STARC] by LGAC or to the Bondholders by [STARC] constitutes a debt of the State or the City, and neither the faith and credit nor the taxing power of the State or the City is pledged to the payment of amounts to LGAC, to [STARC] by LGAC or to the payment of the Series 2004A Bonds."

Finally, the preliminary offering circular on STARC's Series B bonds states:

"Payments to the Series 2004B Bondholders by [STARC] do not constitute a debt of the State or the City, and neither the faith and credit nor the taxing power of the State or the City is pledged to the payment of the Series 2004B Bonds."

The terms of the assignment between the City and STARC cannot be clearer on this point—the City has no obligation to STARC with regard to LGAC’s payments and has no liability to STARC’s bondholders in the event that STARC defaults. Therefore, the City has not incurred any enforceable debt with respect to the assignment and article VIII, § 2 of the State Constitution does not apply.

We further reject LGAC’s contention that the assignment of the City’s right to receive the payments in exchange for bond revenues violates a purported “ban on revenue financing.” According to LGAC, “[t]he purposes of the prohibition are to prevent local governments from evading constitutional debt limitations and committing their revenues to long-term obligations that are not conditioned on future local legislative appropriations and that are therefore beyond any local legislative power to alter in response to changed needs and conditions.” Although LGAC couches this argument in terms of article VIII, § 2 of the State Constitution, this concern about inhibiting future local administrations from determining the use of its revenues has nothing to do with a city’s obligation to pledge its faith and credit to its debt obligations. Rather, it appears to be a separate policy consideration altogether.

In any event, here there is no diversion of a preexisting revenue stream that the City otherwise would have received. Rather, the Legislature created an additional revenue stream of state funds through LGAC which enabled the City to receive revenues that had been diverted for payment of debt service on the MAC bonds. Moreover, the assignment here does not affect the ability of future local administrations to determine how the payments from LGAC ought to be expended. Pursuant to Public Authorities Law § 3238-a, upon the City’s assignment of LGAC’s payments to STARC, the amount becomes “the property of [STARC] for all purposes,” and upon the City’s notice to LGAC and to the State Comptroller of the assignment, the payments must be made directly from LGAC to STARC. Thus, the assignment constitutes a transfer of the City’s entire property interest in the revenue stream. It is not a perpetual spending of the City’s revenue on STARC, but is rather a one-time assignment of a property right, and once it is made, the City has no interest in any of the LGAC payments. STARC thereby has full ownership of the entire revenue stream. Thus, there is no interference in the appropriation power of future local administrations. Simply stated, a city council cannot appropriate revenue that it does not own.

Still, even if the City would otherwise have an interest in the LGAC payments, this Court has held that the diversion of municipal funds to a public benefit corporation does not necessarily run afoul of the State Constitution. As earlier noted, we upheld the financing program in the *Wein* case, in which the corporation's capital reserve fund was financed by city appropriation, and failing that appropriation, by the State's diversion of city revenues to the corporation (*see Wein v City of New York*, 36 NY2d at 618). Indeed, we stated, "The fact that the comptroller is permitted, under certain circumstances, to pay a portion thereof directly to a public benefit corporation on behalf of the city, does not create any illegality, and we hold and find that no lien is thereby created on that fund" (*id.* at 619).

Also, in *Comereski v City of Elmira* (308 NY 248 [1955]), we recognized that it was constitutionally permissible for a municipality to provide in a contractual agreement with an authority that, on the one hand, the authority's bonds create no liability for the municipality, and on the other hand, permit or mandate that the municipality make some kind of direct assistance to the authority (*see id.* at 254 ["(A) city's nonliability on an authority's bonds and the same city's right or duty to assist the authority financially are part of the same conventional statutory pattern. We should not strain ourselves to find illegality in such programs"]). As we emphasized in both *Wein* and *Comereski*, if the State were to funnel money to a public benefit corporation that would otherwise be paid to the municipality, the payment would constitute a permissible gift under article VIII, § 1 of the State Constitution (*see Wein v City of New York*, 36 NY2d at 618; *Comereski v City of Elmira*, 308 NY at 252-253).

We recognize that there are numerous programs providing for the payment of a public benefit corporation's debt service through the diversion of state aid paid on behalf of a municipality. The most obvious example of such a program, of course, is the diversion of the City's interest in the state sales tax to MAC itself in order to pay the debt at issue in this litigation. Another prominent example is the utilization of public authorities by several counties of the State, including New York, Westchester, Erie and Nassau, for the issuance of bonds to provide immediate revenue to the respective counties, with the financing of these bonds secured by the proceeds the counties are to receive under the national tobacco settlement (*Kasprak, Securitization of Tobacco Settlement Funds*, Report of Conn Gen Assembly Off

of Legis Research [Sept. 20, 2002] <<http://www.cga.state.ct.us/2002/olrdata/ph/rpt/2002-R-0736.htm>>). As we stated in *Wein*,

“While the constitutional validity of these other enactments is not before us, we must assume that the legal and constitutional basis for the funneling of a municipality’s State-aid moneys to these other public benefit corporations by the State Legislature, is founded on the similar right of a municipality to make gifts to a public benefit corporation pursuant to section 1 of article VIII of the Constitution and the other cited authorities. Upon a contrary holding it could be argued, successfully or otherwise, that their funding would be illegal.” (*Id.* at 619.)

We therefore conclude that the MAC Refinancing Act does not violate New York State Constitution, article VIII, § 2.

Impairment of Contracts

In its final constitutional challenge, LGAC maintains that the MAC Refinancing Act impairs the preexisting contractual rights of its bondholders (US Const, art I, § 10). Pursuant to the general bond resolutions adopted in 1991 and 2002, LGAC pledged to its bondholders that they would have first priority on the funds available to LGAC. While LGAC is permitted to issue other debt instruments, any obligations to disburse funds on such instruments must be subordinated to the bondholders’ rights and cannot adversely affect LGAC’s ability to satisfy its debt on the bonds. Under Public Authorities Law § 3241 (1), the State pledged to LGAC bondholders that it would not limit or alter their rights and remedies to receive the principal and interest due them on the bonds.

[3] LGAC argues that the Act impairs the rights that LGAC bondholders enjoy under the bond resolutions in violation of United States Constitution, article I, § 10 (1), which states, in pertinent part, “No State shall . . . pass any . . . Law impairing the Obligation of Contracts.” LGAC rests its argument on the first sentence of Public Authorities Law § 3238-a: “Notwithstanding any inconsistent provision of law, [LGAC] shall transfer to the city of New York [\$170 million] from the resources of [LGAC] pursuant to section [3239] of this title.” According to LGAC, this provision gives the payments to the City a greater priority than that afforded to the LGAC bondholders, even though LGAC’s contracts with its bondholders promised them first priority over any other debtors. LGAC urges that if

there were a shortfall in the funds available for payment to the City and to LGAC's bondholders, the language of section 3238-a would require LGAC to disburse payments to the City at the expense of monies due to LGAC bondholders. We reject this contention.

The interpretation that LGAC urges this Court to give to the Act would require us to find that the Legislature modified or repealed Public Authorities Law § 3241 (1) by implication. For us to do so would be to ignore the fundamental tenet of statutory construction that implied repeal or modification of a preexisting law is distinctly disfavored (see *Iazzetti v City of New York*, 94 NY2d 183, 189 [1999]; *Matter of Consolidated Edison Co. of N.Y. v Department of Env'tl. Conservation*, 71 NY2d 186, 195 [1988]; *Besser v E.R. Squibb & Sons*, 146 AD2d 107, 114 [1st Dept 1989], *aff'd* 75 NY2d 847 [1990]). "[T]he judiciary should not lightly infer that the Legislature has repealed one of its own enactments when it has failed to do so expressly; the Legislature is hardly reticent to repeal statutes when it means to do so" (*Alweis v Evans*, 69 NY2d 199, 204 [1987]). Generally, a statute impliedly repeals a prior statute "only if the two are in such conflict that it is impossible to give some effect to both" (*id.*). "If by any fair construction, a reasonable field of operation can be found for [both] statutes, that construction should be adopted" (*People v Newman*, 32 NY2d 379, 390 [1973]). Thus, in the absence of some expressed legislative intent to limit or repeal the State's guarantees to LGAC's bondholders under Public Authorities Law § 3241 (1), we will not interpret the Act to have that effect. Rather, harmonizing the provisions of the statute, as we must (see *Alweis v Evans*, 69 NY2d at 204), we conclude that while section 3238-a requires LGAC to make annual payments to the City, it does not modify or repeal the State's pledge to honor the contractual rights and remedies of LGAC's bondholders pursuant to section 3241 (1).

Public Authorities Law § 3241 (1) was clearly intended to pledge to LGAC and its bondholders that the State would honor the rights and remedies that the bondholders enjoy under their agreement with LGAC. Indeed, the provision permitted the pledge of the State to be incorporated into the agreement of the bondholders, and it subsequently was so incorporated. Pursuant to their contract with LGAC, the bondholders have first priority on appropriated monies in the Tax Fund. Thus, section 3241 (1) constituted the State's pledge to honor the bondholders' prior lien on the appropriated funds.

The Legislature's subsequent enactment of the MAC Refinancing Act did not modify or repeal the State's pledge to honor LGAC's contracts with its bondholders. As previously stated, the purpose of the Act was to provide for an annual appropriation of funds to the City in order to assist it in its repayment of the MAC debt. The Legislature sought to channel the payments through LGAC by way of its established certification process. In doing so, the Legislature sought to require LGAC to make the payments to the City using the same method by which it made payments on its debt service. A plain reading of the phrase "[n]otwithstanding any inconsistent provision of law" in section 3238-a reveals an intent on the part of the Legislature to require LGAC to make the annual payments to the City, even if some other provision would prohibit LGAC from making payments of this sort. Section 3241 (1) merely confirms the priority of payment set forth in LGAC's contract with its bondholders. It does not prohibit LGAC from making such payments to the City, and so is not inconsistent with the intent of section 3238-a. And importantly, nowhere in section 3238-a does the Legislature expressly undermine section 3241 (1) or otherwise establish a new order of priority on the payments that LGAC must make from its appropriated funds, and we decline to impose such a reading upon the statute.

Indeed, we find no intent on the part of the Legislature to give STARC bondholders an equal or greater priority than LGAC bondholders. After all, in the normal course of events, the amount of money in the Tax Fund would be substantially more than LGAC needs to satisfy its annual expenses, including that required to pay the City.⁸ The size of the Tax Fund even following a disbursement, coupled with the trapping mechanism of State Finance Law § 92-r (5)—which would prohibit the Comptroller from making the excess revenue available to the state general fund until LGAC receives its requested money—creates a powerful incentive for the Legislature to appropriate the entire amount requested in LGAC's annual certification. Certainly, this was the result intended by the Legislature when it promulgated State Finance Law § 92-r (5). Reading the statute as a whole, it is apparent that the Legislature intended the size of the Tax Fund and the trapping mechanism to assure LGAC's payments to the City, not an alteration to the lien status

8. According to STARC, in the state fiscal year ending March 31, 2002, the amount in the Tax Fund was more than three times the amount of LGAC's payment requirements, including a \$170 million appropriation.

of the LGAC bondholders. To be sure, if for whatever reason there were not enough money appropriated to LGAC to meet all of its payment obligations, the LGAC bondholders would have first priority on the appropriated funds and the right of STARC to receive payment would be subordinate.

Indeed, STARC concedes that the rights of LGAC bondholders are superior to its right to receive payments pursuant to Public Authorities Law § 3238-a. This concession was expressed three times in STARC's preliminary offering to prospective bondholders. In one of these instances, the offering states, "The payments LGAC is required by the [MAC Refinancing Act] to make to [STARC] from the Tax Fund will be subordinate to the payments LGAC is required to make pursuant to its bond resolutions." STARC has also offered to enter into a contract with LGAC confirming that the rights of LGAC bondholders to the money appropriated to LGAC would have priority over the rights of STARC bondholders. While a concession of priority rights in STARC's preliminary offering plan and in an agreement between the parties may not alter the statute, it is significant to note that as a practical matter, LGAC's concerns about the impairment of its bondholders' contracts simply will not come to fruition.

Accordingly, the order of the Appellate Division should be modified, with costs to defendants, by reinstating the September 17, 2003 order of Supreme Court and, as so modified, affirmed.

Chief Judge KAYE and Judges CIPARICK, ROSENBLATT, GRAFFEO and READ concur; Judge R.S. SMITH taking no part.

Order modified, etc.

[813 NE2d 613, 780 NYS2d 533]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEN-
WORTH AARONS, Appellant.

Argued April 29, 2004; decided June 8, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 24, 2003. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (Peter Benitez, J.), which had granted defendant's motion to dismiss the indictment, (2) denied the motion, and (3) reinstated the indictment.

People v Aarons, 305 AD2d 45, affirmed.

HEADNOTE

Grand Jury — Defective Proceeding — Formal Vote by 12 Jurors Required to Dismiss Charges

In a grand jury proceeding where the prosecutor asked the grand jury to cease deliberations on a Friday and return the following week to hear from another witness after having been advised by the foreperson that the grand jury was having difficulty reaching a decision, the initial failure of the grand jury to garner 12 votes for an indictment did not constitute a dismissal of the charges which would have required the prosecutor to obtain leave of court before presenting additional evidence to the grand jury. A dismissal of pending charges constitutes an affirmative official action or decision of the grand jury under CPL 190.25 (1), and as such it requires a formal vote and the concurrence of at least 12 grand jury members. Dismissal of a charge cannot be inferred from the grand jury's failure to indict a suspect, given that it also has the power to direct the filing of an information, to remove the case to Family Court, or to submit a grand jury report.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Indictments and Informations §§ 26, 29, 34.
CARMODY-WAIT 2d, Criminal Procedure §§ 172:953,
172:954, 172:1048.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 15.2.
McKINNEY'S, CPL 190.25 (1).
NY JUR 2d, Criminal Law §§ 1094, 1099, 1106.

ANNOTATION REFERENCE

See ALR Index under Grand Jury; Indictments and Informations.

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Query: grand /2 jury /p vote & infer! /5 dismiss!

POINTS OF COUNSEL

Julian A. Hertz, Larchmont, for appellant. I. The failure of 12 grand jurors to vote an indictment generated a firm basis for the Supreme Court to have concluded that there was, in this case, no true bill and no indictment. (*People v Foster*, 279 AD2d 317; *People v Wilkins*, 68 NY2d 269; *People v Dominique*, 90 NY2d 880.) II. If this Court finds that *People v Foster* (279 AD2d 317 [2001]) does not control the facts in this case, defendant submits that other factors should be considered; i.e., the District Attorney should not be permitted a piecemeal presentation to the grand jury. (*People v Goodfriend*, 64 NY2d 695; *People v Karp*, 76 NY2d 1006.) III. The order of the Supreme Court was not appealable, since the District Attorney failed to seek judicial approval to again submit the charges to the grand jury. (*People v Montanez*, 90 NY2d 690.)

Robert T. Johnson, District Attorney, Bronx (*Stanley R. Kaplan* and *Joseph N. Ferdenzi* of counsel), for respondent. I. A grand jury announcement that it cannot muster at least 12 votes either to indict or dismiss does not constitute a vote of dismissal, and the presentation of additional evidence to the same grand jury thereafter is not prohibited. (*People v Montanez*, 90 NY2d 690; *People v Wilkins*, 68 NY2d 269; *People v Cade*, 74 NY2d 410; *People v Groh*, 57 AD2d 389; *People v Gelman*, 93 NY2d 314; *People v Collier*, 72 NY2d 298; *People v Coleman*, 74 NY2d 381; *People v Valdez*, 277 AD2d 262; *National Union Fire Ins. Co. of Pittsburgh, Pa. v Red Apple Group*, 273 AD2d 140; *Graham v Board of Supervisors of Erie County*, 49 Misc 2d 459.) II. Defendant's argument regarding "piecemeal presentation" is not properly the subject of this appeal, since it did not serve as the basis for the Appellate Division's ruling on the People's appeal and was not addressed by that Court; further, defendant's contention that the order of the nisi prius court was not appealable is erroneous. (*People v Goodfriend*, 64 NY2d 695; *People v Karp*, 76 NY2d 1006.)

OPINION OF THE COURT

G.B. SMITH, J.

The issue in this case is whether a formal vote of 12 grand

jurors is necessary to dismiss a charge. We conclude that it is and we affirm the order of the Appellate Division.

On Friday, March 19, 1999, after hearing testimony from various witnesses, including defendant, regarding an alleged break-in, a grand jury in Bronx County was deliberating on proposed charges of burglary, attempted robbery, criminal possession of a weapon, menacing, endangering the welfare of a child and harassment. The record indicates that the foreperson advised the prosecutor that the grand jury was having difficulty reaching a decision. The prosecutor asked the grand jury to cease deliberations so that she could present additional evidence. The following week, the prosecutor reconvened the grand jury, presented another witness and again asked the jurors to vote on the charges. The grand jury returned an indictment accusing defendant of burglary in the first degree and related crimes.

Defendant moved to dismiss the indictment, arguing that the initial failure of the grand jury to garner 12 votes for an indictment constituted a dismissal of the charges, thus requiring the prosecution to obtain leave of the court before presenting additional evidence to the grand jury. Supreme Court agreed, granted defendant's motion and dismissed the indictment. The Appellate Division, with two Justices dissenting, reversed the order of Supreme Court and reinstated the indictment. The Court concluded that no inference of dismissal could be drawn from a grand jury's temporary inability to vote for an indictment. Rather, the court held, a dismissal requires a concurrence of 12 grand jurors. The dissent reasoned that the Criminal Procedure Law does not require grand jurors to vote expressly on whether to dismiss a charge. A Justice of the Appellate Division granted defendant leave to appeal to this Court, and we now affirm the order of the Appellate Division. We hold that in order to dismiss a charge, there must be a formal vote of the grand jury and 12 of its members must concur in that result.

CPL 190.25 (1) states:

“Proceedings of a grand jury are not valid unless at least sixteen of its members are present. The finding of an indictment, a direction to file a prosecutor's information, a decision to submit a grand jury report and every other affirmative official action or decision requires the concurrence of at least twelve members thereof.”

The issue, therefore, is whether a dismissal of pending charges

constitutes an affirmative official action or decision of the grand jury under CPL 190.25 (1). We agree with the Appellate Division that a dismissal is such an affirmative official action.

The legislative history of grand jury procedure supports the conclusion that the dismissal of a charge is one of the official actions or decisions of a grand jury. Going back to the 19th century, New York's former Code of Criminal Procedure required that upon failure of the grand jury to agree on an indictment, it must return a dismissal to the court, signed by the foreperson, expressly stating that the charge is dismissed. As originally enacted, Code of Criminal Procedure § 268 stated, in relevant part:

“An indictment cannot be found, without the concurrence of at least twelve grand jurors. When so found it must be indorsed, ‘a true bill’, and the indorsement must be signed by the foreman of the grand jury.”

Section 269 stated:

“If twelve grand jurors do not concur in finding an indictment, the depositions (and statement, if any) transmitted to them, must be returned to the court, with an indorsement thereon, signed by the foreman, to the effect that the charge is dismissed.”

Thus, even under the former procedural rules, a dismissal of a charge could not be merely inferred by the court, nor was it automatic upon the failure to indict. Rather, upon its determination that an indictment would not issue, the grand jury was required to expressly communicate to the court that the charges were to be dismissed.

On September 1, 1971, the Code of Criminal Procedure was replaced by the Criminal Procedure Law (McKinney's Cons Laws of NY, Book 11A, at 1; L 1970, ch 996, § 1). CPL 190.60 enumerates the actions that the grand jury may take upon hearing and deliberating on evidence with respect to a charge. Pursuant to that provision, the grand jury has the power to indict a person for an offense, direct the district attorney to file a prosecutor's information with a local criminal court, direct the district attorney to file a request to remove the case to Family Court, dismiss the charge or submit a grand jury report.

Moreover, CPL 190.75 (1) states:

“If upon a charge that a designated person commit-

ted a crime, either (a) the evidence before the grand jury is not legally sufficient to establish that such person committed such crime or any other offense, or (b) the grand jury is not satisfied that there is reasonable cause to believe that such person committed such crime or any other offense, it must dismiss the charge. In such case, the grand jury must, through its foreman or acting foreman, file its finding of dismissal with the court by which it was impaneled.”

The language of both CPL 190.60 and 190.75 confirms that the Legislature did not intend that a grand jury’s dismissal of a charge be inferred from its failure to indict a suspect. Given that the grand jury also has the power to direct the filing of an information, to remove the case to Family Court or to submit a report, it is wrong to say that the failure to bring an indictment necessarily constitutes a dismissal of the charge. Instead, upon concluding that an indictment will not be issued, the grand jury must dismiss the charge by filing its determination with the court. Importantly, this rule ensures that the grand jury is actually aware that, by its action, the charges then pending against the defendant will be dismissed.

Clearly, like the other official decisions enumerated in CPL 190.60, the dismissal of a charge is for the grand jury to decide as part of its deliberations. Indeed, by requiring the grand jury, acting through the foreperson, to express to the court its decision to dismiss the charge (upon concluding that the evidence is either legally insufficient or does not establish reasonable cause to believe that the accused has committed the crime charged), the Legislature provides that a dismissal cannot occur absent the grand jury’s actual conclusion that a dismissal is warranted. For the court to infer a dismissal of a charge from the grand jury’s inability to make a decision as to what action it should take undermines this clear legislative intent and effectively eliminates one of the enumerated powers of the grand jury.

This case presents a clear example of how an inference of dismissal would subvert the power conferred upon the grand jury. Here, it was having trouble reaching a decision as to what action should be taken. Its members, who were deliberating on a Friday, certainly could not have known that, by merely recognizing their inability to reach a conclusion before the arrival of the weekend and communicating their current state of indecision to the prosecutor, they were effectively dismissing all charges

against defendant. Nor is there any indication that they intended such a result. For a court to infer a dismissal under these circumstances ignores the plain import of the statute—that the grand jury actually be aware that it is dismissing the charges and that it communicate that decision to the court.

Having determined that a dismissal of a pending charge is an affirmative official action or decision for the grand jury to make, we further conclude that pursuant to CPL 190.25 (1), a concurrence of 12 jurors is necessary to effectuate a dismissal. Since there was no such concurrence on any of the enumerated actions, it was not improper for the prosecutor to ask the grand jury to cease its deliberations so that it could hear additional evidence, and she was not required to seek leave from the court before presenting any.

Defendant's reliance on *People v Montanez* (90 NY2d 690 [1997]) for the conclusion that there was a dismissal here is misplaced. In *Montanez*, after three preliminary votes, 12 grand jurors voted to dismiss the charges. However, when informed of the decision, the prosecutor expressed his displeasure and advised the grand jury that they could reconsider their vote. This prompted the grand jury to request that an additional witness be called, which led to a subsequent vote to indict. Although a grand jury can reconsider a previous vote before it has been formally filed, the grand jury in *Montanez* did not act on its own initiative but acceded to the unsolicited suggestion of the prosecutor. As such, we concluded the new vote was not a sua sponte reconsideration but amounted to an improper re-presentment by the prosecutor, requiring dismissal of the indictment. Here, there was no vote by 12 grand jurors to dismiss. As such, there was no re-presentment or reconsideration implicating the prosecutorial interference concerns underlying our decision in *Montanez*.

Nor were the charges in this case withdrawn from one grand jury and submitted to a second, as occurred in *People v Wilkins* (68 NY2d 269 [1986]). There, we were concerned that a prosecutor could attempt to circumvent the restrictions on re-presentment without judicial approval by withdrawing a matter from a grand jury prior to a vote in order to submit it to another grand jury, perhaps more receptive to an indictment “without the consent of either the first Grand Jury or the court which impaneled it” (*id.* at 271). Here, the same grand jury that was initially unable to reach a decision ultimately voted to indict. Thus, the forum shopping concerns discussed in *Wilkins* are simply not present in this case.

In sum, we hold that in order for a grand jury to dismiss a charge, 12 of its members must concur in that decision. Accordingly, the order of the Appellate Division reinstating the indictment should be affirmed.

CIPARICK, J. (dissenting). Because a prosecutor may not, without judicial leave and absent a sua sponte request from the grand jury, present additional evidence and resubmit a case after the grand jury failed to vote a true bill on the initial presentation, I respectfully dissent, and would reverse the Appellate Division.

This case presents a question of statutory interpretation, specifically whether the agreement of 12 jurors is required for a grand jury to dismiss submitted charges. Section 190.25 (1) provides, in part, that

“[t]he finding of an indictment, a direction to file a prosecutor’s information, a decision to submit a grand jury report and every other *affirmative official action or decision* [by a grand jury] requires the concurrence of at least twelve members thereof” (CPL 190.25 [1] [emphasis added]).

As dismissal is not one of the individually listed actions, the question of whether a grand jury must by a concurrence of 12 members vote to dismiss turns on whether a dismissal falls into the category of an “affirmative official action or decision.” Since the general phrase follows words of particular meaning, it is to be construed as applying to actions of the same kind as those specifically enumerated (*see People v Shapiro*, 50 NY2d 747, 764 [1980]; *see also* McKinney’s Cons Laws of NY, Book 1, Statutes § 239 [b]).

CPL 190.25 (1) lists three actions—the finding of an indictment, a direction to file a prosecutor’s information and a decision to submit a grand jury report—as being similar to “every other affirmative official action” requiring the concurrence of 12 members. Unlike a dismissal, each of these named acts results in further proceedings against either the defendant or, in the case of a grand jury report, a public servant. A dismissal, on the other hand, ends the proceedings against the defendant altogether. There is no further action to be taken.

The original Practice Commentary to section 190.25 lends support to this distinction (*see* Denzer, Practice Commentary, McKinney’s Cons Laws of NY, Book 11A, CPL 190.25 [1971]). It notes that the part of “subdivision [1] which requires concur-

rence of twelve grand jurors for other official action[s]” did not exist in the Code of Criminal Procedure, which preceded the CPL (Denzer, *supra*, CPL 190.25, at 110). “Under the Code, there was a gap in the law because nowhere was it stated, for example, how many grand jurors were required to concur on the calling of a witness, on the granting of immunity to a witness, etc.” (Denzer, *supra*, CPL 190.25, at 110). It was this gap that section 190.25 was intended to fill. Similar to the examples found in the statute, the illustrations of affirmative official action listed in the Commentary advance the investigation of the charges against a defendant, as opposed to a dismissal which terminates all action.

No gap existed in the law concerning the duty of the grand jurors when they failed to garner a vote of 12 to indict. The Code required that an indictment be found by the concurrence of 12 jurors (*see* Code Crim Pro § 268), and provided that the grand jury had to dismiss the charges upon its failure to achieve such a vote. As noted by the majority, section 269 of the Code of Criminal Procedure provided, in pertinent part:

“If twelve grand jurors do not concur in finding an indictment, the depositions (and statement, if any) transmitted to them, *must* be returned to the court, with an indorsement thereon, signed by the foreman, to the effect that the charge is dismissed” (emphasis added).

While the CPL does not include this specific language, the statutory language governing a dismissal continues to be compulsory. The statute provides, in part, that “a grand jury may . . . [d]ismiss the charge before it, as provided in section 190.75” (CPL 190.60 [4]). Reference to section 190.75 clarifies the circumstances under which a dismissal of submitted charges is mandatory. CPL 190.75 (1) states:

“If upon a charge that a designated person committed a crime, either (a) the evidence before the grand jury is not legally sufficient to establish that such person committed such crime or any other offense, or (b) the grand jury is not satisfied that there is reasonable cause to believe that such person committed such crime or any other offense, it *must* dismiss the charge. In such case, the grand jury must, through its foreman or acting foreman, file its finding of dismissal with the court by which it was impaneled” (emphasis added).

In contrast, the finding of an indictment, direction to file a prosecutor's information and the filing of a grand jury report are permissive acts, implicating the discretion of grand jurors. Section 190.65 (1) (a) of the CPL provides that "a grand jury *may* indict a person for an offense when . . . the evidence before it is legally sufficient to establish that such person committed such offense" (emphasis added). Similarly, the provisions of the statute governing both the grand jury's direction to file a prosecutor's information and its decision to submit a grand jury report employ the permissive word "may" (*see* CPL 190.70 [1]; *see also* CPL 190.85).

Thus, as the phrase "affirmative official action" takes its meaning from the acts enumerated in the statute, and other actions of like kind that advance the proceeding, I cannot agree that a dismissal, which terminates it, requires a vote of 12 grand jurors. I am in accord with the dissenting Justices of the Appellate Division that "[t]he CPL directs a grand jury to ascertain by a vote whether there are 12 members who would find an indictment and to report the result of that vote as an indictment if there are 12 or [as] a dismissal if there are not at least 12" (305 AD2d 45, 63 [2003]).

Here, the prosecutor presented all witnesses, including one at the specific request of the grand jury, and instructed the jurors on the law.* She formally asked them to commence deliberations on the charges of burglary, attempted robbery, criminal possession of a weapon, menacing, endangering the welfare of a child and harassment. After some deliberations, the foreperson informed the prosecutor that the grand jurors could not "come to a decision either way." Clearly, having reviewed the evidence first presented, the grand jury in effect found that it was not "legally sufficient to establish that [defendant] committed such crime[s] or any other offense[s]" (CPL 190.75 [1] [a]) or "that there [was no] reasonable cause to believe" that defendant committed the crimes charged or any other offense (*see* CPL 190.75 [1] [b]). Their inability to vote a true bill was equivalent to a rejection of the People's case as legally insufficient or incredible.

Therefore, under the statute, since the evidence failed, the grand jurors were required to dismiss the charges. If this were

* The foreperson read the following:

"The panel is reminded that only those Grand Jurors who have heard all of the evidence presented in this case may vote on the charges and that twelve of those persons must concur in order for an official action to be taken."

not the case then a deadlocked grand jury might have to continue deliberating indefinitely, which could not have been the intent of the Legislature. That the grand jury did not “file its finding of dismissal with the court” (CPL 190.75 [1]) is of no consequence as filing goes to the finality of the dismissal, not to whether, in fact, there was a dismissal (see *People v Montanez*, 90 NY2d 690, 694 [1997]). Moreover, any confusion on the part of the grand jury concerning what action to take upon their failure to reach consensus, can be easily remedied by proper instruction.

Pursuant to CPL 190.75 (3), “[w]hen a charge has been so dismissed, it may not again be submitted to a grand jury unless the court in its discretion authorizes or directs the people to resubmit such charge to the same or another grand jury.” The purpose of section 190.75 is to prevent prosecutorial overreaching, which may malign the grand jury’s integrity and independence. As we previously recognized, “[t]he statute was enacted to curb abuses that resulted from the common-law rule that allowed prosecutors to resubmit charges to successive Grand Juries ad infinitum until one voted an indictment” (*Montanez*, 90 NY2d at 693, citing *People v Wilkins*, 68 NY2d 269, 273 [1986]).

An exception to the prohibition against resubmission without leave of court exists “when the Grand Jury votes to dismiss a charge and then *sua sponte* decides to reconsider the matter before filing” the dismissal. (*Id.* at 694.) “A truly *sua sponte* reconsideration violates neither the letter nor the spirit of CPL 190.75 . . . [as] there is no possibility of prosecutorial overreaching.” (*Id.*) Only where a grand jury has undertaken “a self-initiated reconsideration” of its prior action may the prosecutor resubmit charges without judicial authorization. (*Id.*) This Court has been clear that a “prosecutor may not unilaterally intervene in the proceedings in any manner which causes or contributes to the Grand Jury’s decision to reconsider” a dismissal (*id.* at 695 [emphasis added]).

Here, the People argue that the colloquy between the prosecutor and the grand jury, concerning the failure of the grand jurors to come to a decision “either way,” signaled the grand jury’s openness to the reception of further evidence. The People contend that the foreperson’s communication with the prosecutor was an obvious indicator that the grand jury was in need of assistance. This argument is unavailing as the rule has never been that leave of court is excused where a grand jury appears

to be in need of additional evidence; the grand jury must independently request such reconsideration.

Prudence suggests that we should not broaden the sua sponte exception to include implied requests by a grand jury or anything short of a self-initiated demand for further evidence. Such a rule would conflict with the policies underlying CPL 190.75, leaving great potential for prosecutors to get more than “one bite at the apple” (*Montanez*, 90 NY2d at 693). The statute provides that a court may grant one resubmission only (*see* CPL 190.75 [3]). Allowing unauthorized resubmissions on the presumption that the grand jury seemed open to new testimony will render ineffectual this statutory limitation.

Moreover, such resubmission disregards the District Attorney’s role as a legal advisor to the grand jurors in their proceedings. As the statutorily designated legal advisor of the grand jury (*see* CPL 190.25 [6]), “the prosecutor performs dual functions: that of public officer and that of advocate” (*People v Huston*, 88 NY2d 400, 406 [1996]). These responsibilities include “ ‘the prosecutor’s duty of fair dealing’ ” (*Huston*, 88 NY2d at 406 [citation omitted]).

Where a prosecutor has instructed the grand jury on the law and the grand jury, after deliberations, is unable to indict on the completed case before it, fairness suggests that the prosecutor must seek judicial permission before volunteering additional evidence. This is especially true where, as here, the evidence is in the form of a witness, who was known to the prosecutor when the charges were initially submitted, and the grand jury had exercised its power to request a witness during the first presentation. By permitting an unauthorized resubmission on the ground that the grand jury appeared open to further evidence, the majority holding would allow prosecutors to easily circumvent the statutory command of a single presentation and the requirement of leave of court for a second submission (*see* CPL 190.75 [3]). This conclusion undermines the policy of curbing potential prosecutorial excess embodied in CPL 190.75 (3), and should be rejected.

Applying the sua sponte rule, that judicial authorization is not required to resubmit charges where the grand jury has engaged in “a self-initiated reconsideration” of its prior dismissal (*Montanez*, 90 NY2d at 694), I conclude that the prosecutor’s introduction of new evidence and resubmission of the charges here violated CPL 190.75 (3). The People concede

that the assistant in this grand jury proceeding has no detailed recollection of her conversation with the foreperson. Neither the assistant nor the foreperson testified at the hearing held by Supreme Court on this matter. The sole record evidence is the colloquy between the prosecutor and the jurors. After stating on the record that the grand jurors could not “come to a decision either way,” the prosecutor instructed the grand jury as follows:

“At this time *I’m asking you to cease deliberations* on this case at this time and I will attempt to bring in additional witnesses and give you additional testimony regarding the case of The People of the State of New York versus Lenworth Aarons and at that time sometime next week *I will ask you to consider these charges again*” (emphasis added).

Nothing in the prosecutor’s statement suggests that the grand jury, having failed to indict, made an independent request to hear additional testimony. On the contrary, in the circumstances presented, the prosecutor’s direction that the grand jury cease deliberations so that she could “attempt to bring in additional witnesses” indicates that she initiated the introduction of further evidence. While the prosecutor requested an on-the-record affirmation from the foreperson as to the grand jury’s failure to vote a true bill, she sought no such affirmation for her resolve to seek more evidence and “ask [the grand jury] to consider these charges again.” The prosecutor decided to take that course on her own initiative, apparently without input from the jurors and certainly without permission from the court.

As it was a Friday, she could have easily dismissed the grand jurors over the weekend and asked them to continue deliberating the following week. Instead, the prosecutor stopped deliberations, presented new evidence and recharged the grand jury on her own accord. It cannot be denied that, at the very least, her interference with the deliberations contributed to the grand jury’s reconsideration of the charges. As a prosecutor cannot unilaterally intervene in the proceedings in any way that causes or contributes to the grand jury’s decision to reconsider what is deemed a dismissal, the assistant’s actions here violated CPL 190.75 (3), prohibiting the resubmission of charges to the grand jury without leave of court.

Accordingly, the order of the Appellate Division should be reversed and the order of Supreme Court dismissing the indictment reinstated.

Judges ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur with Judge G.B. SMITH; Judge CIPARICK dissents and votes to reverse in a separate opinion in which Chief Judge KAYE concurs.
Order affirmed.

[813 NE2d 621, 780 NYS2d 541]

In the Matter of DOMINIC J. BELMONTE et al., Respondents, v
ROBERT R. SNASHALL, as Chair of New York State Workers'
Compensation Board, et al., Appellants.

Argued May 4, 2004; decided June 10, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 17, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Joseph Cannizzaro, J.), entered in consolidated proceedings pursuant to CPLR article 78, which had (1) granted the petitions to the extent of annulling the Workers' Compensation Board determinations denying petitioners the authorization to perform independent medical examinations (IMEs), and (2) after converting the remainder of the proceedings into actions for declaratory judgments, declared 12 NYCRR 300-2.1 (b) (2) (i) and 300-2.1 (c) invalid to the extent that those regulations required physicians who seek to perform IMEs to be certified by a medical specialty board recognized by either the American Board of Medical Specialties or the American Osteopathic Association.

Matter of Belmonte v Snashall, 304 AD2d 211, reversed.

HEADNOTES

Workers' Compensation — Treatment and Care of Injured Employees — Requirement That Independent Examining Physicians be Board Certified — Statutory Definition

1. The term "board certified," as used in Workers' Compensation Law § 137 (3) to require that physicians or surgeons performing independent medical examinations be board certified, means certification by a medical specialty board, not certification by the Workers' Compensation Board (WCB). The phrase "board certified" is a term of art, typically understood to refer to approval by a designated group of professionals. While the word "board" on its own within the Workers' Compensation Law may refer to the WCB, there are several places in the law where it is not used to refer to the WCB. Moreover, the Legislature has also used the term "board certified" in other statutes to refer to a medical specialty board.

Workers' Compensation — Treatment and Care of Injured Employees — Requirement That Independent Examining Physicians be Board Certified — Regulatory Definition

2. The Workers' Compensation Board regulations defining a board certified independent medical examiner as a physician or surgeon certified by a specialty board recognized by either the American Board of Medical Special-

ties (ABMS) or the American Osteopathic Association (AOA) (*see* 12 NYCRR 300.2 [b] [2] [ii] [a]; [3]) are rational. Workers' Compensation Law § 137 (3) requires that physicians or surgeons performing independent medical examinations (IMEs) be board certified, and ABMS and AOA are organizations of approved medical and osteopathic specialty boards. Requiring such board certification provides a greater level of quality assurance, and promotes the purpose of the Injured Workers' Protection Act, which was enacted to address problems with the IME process.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Workers' Compensation § 504.
 McKINNEY'S, Workers' Compensation Law § 137 (3).
 12 NYCRR 300.2 (b) (2) (ii) (a); (3).
 NY JUR 2d, Workers' Compensation §§ 596, 1075.5.

ANNOTATION REFERENCE

See ALR Index under Workers' Compensation.

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 & board /2 certified

POINTS OF COUNSEL

Eliot Spitzer, Attorney General, Albany (Kathleen M. Treasure, Caitlin J. Halligan, Wayne L. Benjamin, Nancy A. Spiegel and Peter H. Schiff of counsel), for appellants. I. The Chair rationally construes "board certified" to mean certification by a medical specialty board, not the Workers' Compensation Board. (*Matter of Rosenblum v New York State Workers' Compensation Bd.*, 309 AD2d 120; *People v Mendez*, 1 NY3d 15; *Diaz v New York Downtown Hosp.*, 99 NY2d 542; *Matter of Theroux v Reilly*, 1 NY3d 232; *Castro v United Container Mach. Group*, 96 NY2d 398; *81 Franklin Co. v Ginaccini*, 149 Misc 2d 124; *Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95; *Matter of Ocean Hill-Brownsville Governing Bd. v Board of Educ.*, 30 AD2d 447, 23 NY2d 483; *Criscione v City of New York*, 97 NY2d 152; *Aluminum Co. of Am. v Central Lincoln Peoples' Util. Dist.*, 467 US 380.) II. The Chair's selection of medical specialty boards recognized by the American Board of Medical Specialties or the American Osteopathic Association to provide the required certification comports with its delegation of the authority from the Legislature, furthers the remedial purpose of the statute, and is

in all respects rational. (*Matter of Employers Claim Control Serv. Corp. v Workmen's Compensation Bd. of State of N.Y.*, 35 NY2d 492; *Matter of Levine v Whalen*, 39 NY2d 510; *Dorst v Pataki*, 90 NY2d 696; *Matter of Rosenblum v New York State Workers' Compensation Bd.*, 309 AD2d 120.)

Ganz Wolkenbreit & Friedman, LLP, Albany (Robert E. Ganz of counsel), *Hiscock & Barclay LLP* (Stephen H. Volkheimer of counsel), and *Sullivan, Cunningham, Keenan, Mraz & Lemire* (Mary Mraz of counsel) for respondents. I. The proper interpretation of Workers' Compensation Law § 137 (3) (a) supports the physicians' position that medical specialty board certification is not required to be an independent medical examination provider. (*Matter of Gruber v New York City Dept. of Personnel*, 89 NY2d 225; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Moran Towing & Transp. Co. v New York State Tax Commn.*, 72 NY2d 166; *Matter of Teachers Ins. & Annuity Assn. of Am. v City of New York*, 82 NY2d 35; *Matter of Dawn Joy Fashions v Commissioner of Labor of State of N.Y.*, 90 NY2d 102; *Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359; *Consumer Prods. Safety Commn. v GTE Sylvania, Inc.*, 447 US 102; *Matter of Albano v Kirby*, 36 NY2d 526; *Matter of Tucker v Board of Educ.*, 82 NY2d 274; *Cavallo v Utica-Watertown Health Ins. Co., Inc.*, 3 F Supp 2d 223.) II. The Workers' Compensation Board's actions in limiting independent medical examination authorization to those holding American Board of Medical Specialties/American Osteopathic Association credentials is arbitrary and capricious. (*Matter of Pell v Board of Educ.*, 34 NY2d 222; *Kuppersmith v Dowling*, 93 NY2d 90; *New York State Assn. of Counties v Axelrod*, 78 NY2d 158, 191 AD2d 932, 82 NY2d 705; *Matter of Brothers of Mercy Nursing & Rehabilitation Ctr. v Commissioner of N.Y. State Dept. of Health*, 192 AD2d 50; *Matter of Rosenblum v New York State Workers' Compensation Bd.*, 309 AD2d 120.) III. If the statute's reference to "board certified" is properly interpreted as a reference to medical specialty board as a prerequisite to independent medical examination authorization, then it is an unconstitutional delegation of governmental function to private parties. (*General Elec. Co. v New York State Dept. of Labor*, 936 F2d 1448; *Szold v Outlet Embroidery Supply Co.*, 274 NY 271; *Eubank v City of Richmond*, 226 US 137; *Washington ex rel. Seattle Tit. Trust Co. v Roberge*, 278 US 116; *Geo-Tech Reclamation Indus., Inc. v Hamrick*, 886 F2d 662; *Matter of Fink v Cole*, 302 NY 216; *Murtha v Monaghan*, 7 Misc 2d 568, 5 AD2d 695, 4 NY2d 897; *Matter of Medical Socy. of State of N.Y. v Serio*, 100 NY2d 854.)

OPINION OF THE COURT

CIPARICK, J.

This appeal presents a question of statutory interpretation—whether the term “board certified” as used in Workers’ Compensation Law § 137 (3) (a) means certification by a medical specialty board or certification by the Workers’ Compensation Board (WCB). We also address whether the regulations promulgated by the WCB appropriately defined “board certified” as certification by a medical specialty board recognized by either the American Board of Medical Specialties (ABMS) or American Osteopathic Association (AOA) (*see* 12 NYCRR 300.2 [b] [3]).

In 2000, the Legislature enacted the Injured Workers’ Protection Act (L 2000, ch 473), after a report by the New York State AFL-CIO and the New York Committee for Occupational Safety and Health detailing the problems with the then-in-place independent medical examination (IME) process¹ within the workers’ compensation system (New York State AFL-CIO and New York Committee for Occupational Safety and Health, *Unjust Treatment: ‘Independent’ Medical Examinations & Workers Compensation in New York State* <www.nycosh.org/IME_Report1.html> [last updated Dec. 30, 2002]). According to the report, the IME system was not sufficiently regulated, resulting in improper and fraudulent examinations and reports. The report made several recommendations, including that IME physicians should be New York State licensed “and certified by the New York State Workers’ Compensation Board” (*Unjust Treatment*).

In response, the Injured Workers’ Protection Act added section 137 of the Workers’ Compensation Law to provide that “[o]nly a New York state licensed and board certified physician, surgeon, podiatrist or any other person authorized to examine or evaluate injury or illness by the board shall perform such independent medical examination” (Workers’ Compensation Law § 137 [3] [a]).

1. An independent medical examination is defined as: “an examination performed by an authorized or qualified independent medical examiner . . . for purposes of evaluating or providing an opinion with respect to schedule loss, degree of disability, validation of treatment plan or diagnosis, causal relationship, diagnosis or treatment of disability, maximum medical improvement, ability to return to work, permanency, appropriateness of treatment, necessity of treatment, proper treatment, extent of disability, second opinion or any other purpose recognized or requested by the board” (12 NYCRR 300.2 [b] [4]).

The statute goes on to state that IMEs “shall be performed by a practitioner who is licensed and board certified in the state of New York or any other person authorized to examine or evaluate injury or illness by the board” (Workers’ Compensation Law § 137 [5]). Although the Workers’ Compensation Law does not define the term “board certified,” it does define “[b]oard” as “the workmen’s [*sic*] compensation board of the state of New York” (Workers’ Compensation Law § 2 [2]).

In accordance with the new law, and consistent with the definition of board certified in current use as it relates to fee schedules, the WCB promulgated regulations defining “board certified.” Those regulations provide that, in order to conduct IMEs, a physician or surgeon must have an appropriate degree, meet the State Board of Medicine’s and Commissioner of Education’s licensing requirements and be “board certified” as further defined in the regulations (*see* 12 NYCRR 300.2 [b] [2] [ii] [a]). The regulations define “board certified” as “a physician or surgeon who is certified by a specialty board that is recognized by the [ABMS] or the [AOA]” (12 NYCRR 300.2 [b] [3]). There are separate requirements for podiatrists, chiropractors and psychologists, who are not medical doctors and cannot be certified by the ABMS or AOA (*see* 12 NYCRR 300.2 [b] [2] [ii] [b]-[d]).²

Petitioners are New York State licensed medical doctors who, prior to the enactment of the challenged provisions, performed IMEs in the course of their practice.³ The WCB denied petitioners’ requests for authorization to conduct IMEs pursuant to Workers’ Compensation Law § 13-b (1) because they were not certified by an appropriate medical specialty board. Many of the petitioners are certified by specialty boards that are not recognized by ABMS or AOA. Some of the petitioners are “C-rated” (designated a consultant in a certain speciality) by the WCB. This status is typically granted to those physicians certi-

2. In response to the WCB’s request for input on the implementation of this legislation, the Medical Society of the State of New York (MSSNY) noted that there was some ambiguity in the text of the statute. MSSNY thus requested that the WCB’s regulations specify that physicians must be state licensed and board certified by a medical specialty board recognized by ABMS and AOA, in addition to authorization by the WCB, in order to perform IMEs. Several months later, MSSNY requested that some of its older physicians who had a certain degree of skill and knowledge—“C” ratings—be “[g]randfathered” based upon their experience and that the WCB consider creating an exception to the board certification requirement to accommodate them.

3. Two of the named petitioners died during the course of this litigation.

fied by the ABMS or AOA. However, the WCB occasionally grants a “C” rating to physicians who show a certain level of competence through years of experience, thus allowing such physicians to collect a higher fee for services.

Petitioners commenced separate CPLR article 78 proceedings seeking to annul the portion of 12 NYCRR 300.2 that required physicians to be ABMS or AOA board-certified in order to conduct IMEs, and to annul the WCB’s determination that petitioners were not authorized to conduct IMEs. After consolidating the actions, Supreme Court granted the petitions in part, finding that the language of the statute and the legislative history supported the interpretation that the term “board certified” referred to the WCB. Specifically, Supreme Court noted that the Workers’ Compensation Law defined the term “board” as the Workers’ Compensation Board (*see* Workers’ Compensation Law § 2 [2]), and held that the term should have the same meaning throughout section 137. The court also concluded that the WCB’s interpretation was irrational and that the determinations denying petitioners authorization to conduct IMEs should be annulled, converted the remainder of the proceedings to a declaratory judgment action and declared 12 NYCRR 300.2 (b) (2) (ii) (a) and 300.2 (b) (3)⁴ invalid insofar as they required physicians to be ABMS or AOA board certified.

The Appellate Division affirmed, agreeing that deference to the WCB was not required for this question of pure statutory interpretation. The Court also found that the legislative intent was to give the Chair of the WCB the authority to discipline IME providers and that this purpose was served by making the providers subject to WCB certification (304 AD2d 211, 215-216 [2003]). It did not determine whether the Board’s choice of the ABMS or AOA for certification was rational, finding the WCB’s interpretation incompatible with the statutory language. We now reverse.

Analysis

Although we reach the same conclusion as the WCB, this is not a case where its interpretation of a statute is entitled to deference. Deference is generally accorded to an administrative agency’s interpretation of statutes it enforces when the interpretation involves some type of specialized knowledge (*see Mat-*

4. Before Supreme Court, the regulations were numbered 12 NYCRR 300-2.1 (b) (2) (i) and 300-2.1 (c).

ter of Gruber [New York City Dept. of Personnel], 89 NY2d 225, 231 [1996]). “By contrast, where ‘the question is one of pure statutory reading and analysis, dependent only on accurate apprehension of legislative intent, there is little basis to rely on any special competence or expertise of the administrative agency’ . . . In such circumstances, the judiciary need not accord any deference to the agency’s determination, and is free to ascertain the proper interpretation from the statutory language and legislative intent” (*id.* at 231-232 [citations omitted]).

[1] A plain language reading of the statute supports the conclusion that “board certified” means certification by a medical specialty board. The phrase “board certified” is a term of art, typically understood to refer to approval by a designated group of professionals⁵ (*see* McKinney’s Cons Laws of NY, Book 1, Statutes § 233). This is especially true when the phrase is used to describe physicians, who are commonly referred to as board certified. The Legislature has also used the term “board certified” in other statutes to refer to a medical specialty board (*see* Correction Law § 43 [1]; Insurance Law § 4900 [b] [2] [A] [ii]; Public Health Law § 4900 [2] [b] [i] [B]).

Petitioners attempt to separate the word “board” from the phrase “board certified,” contending that “board” should be given the same meaning throughout the provision. However, “board” can have a different meaning on its own than it does as part of the phrase “board certified.” The statutory definition should not be applied mechanically, regardless of context. Indeed, there are several places in the Workers’ Compensation Law where the term “board” is not used to refer to the WCB (*see e.g.* Workers’ Compensation Law § 13-d [1] [referring to county medical board]). Thus, the most natural interpretation is that “board certified” refers to certification by a medical specialty board and we read the statute accordingly (*see e.g. Castro v United Container Mach. Group, Inc.*, 96 NY2d 398, 401 [2001]).

We likewise reject petitioners’ argument that the WCB’s construction of the statute renders the term “podiatrist” superfluous. The statute as we interpret it provides that physicians and surgeons must be state licensed and medical board certified (*see* Workers’ Compensation Law § 137 [3]). A podia-

5. Black’s Law Dictionary defines the adjective “board-certified” to mean “[o]f a professional) recognized by an official body as a specialist in a given field of law or medicine” (Black’s Law Dictionary 166 [7th ed 1999]).

trist, who is not a medical doctor and thus cannot be medical board certified, is an “other person” who may be authorized to perform IMEs by the WCB (*see* Workers’ Compensation Law § 137 [3] [a]). Indeed, as the WCB notes, the phrase “board certified” would be superfluous under petitioners’ construction, since Workers’ Compensation Law § 13-b (1) and (2) were specifically amended in the same bill to give the WCB the power to authorize providers to perform IMEs (L 2000, ch 473, § 4).

The Appellate Division, First Department has also addressed this issue and reached the same conclusion we reach today (*see Matter of Rosenblum v New York State Workers’ Compensation Bd.*, 309 AD2d 120 [1st Dept 2003]). Although that Court found that the WCB’s interpretation of the statute was entitled to deference, it also stated that “the WCB’s interpretation of the statute, which comports with its plain language, its purpose and its legislative history and gives meaning to every phrase, was a sound one even as a matter of pure statutory construction” (*Matter of Rosenblum*, 309 AD2d at 123).

Having determined that “board certified” should be read as certification by an appropriate medical specialty board, we next address whether the regulations requiring certification by the ABMS or AOA are rational. The WCB is authorized to “adopt reasonable rules consistent with and supplemental to the provisions of this chapter” (Workers’ Compensation Law § 117 [1]). This Court reviews administrative regulations to determine whether they are rational and to ensure that they are not arbitrary or capricious (*see Matter of Levine v Whalen*, 39 NY2d 510, 518 [1976]).

[2] We conclude that the regulations at issue are rational and relate to the goals of the Injured Workers’ Protection Act. The statute requires that IME physicians be certified by a medical specialty board. The ABMS and AOA are organizations of approved medical and osteopathic specialty boards. Indeed the Medical Society of the State of New York specifically requested that the WCB designate only ABMS and AOA certifying boards. Requiring such board certification promotes the purpose of the statute since it provides a greater level of quality assurance as the physicians authorized to perform IMEs have attained a certain degree of professional competence as recognized by the certifying boards. That some of the petitioners have been retained as impartial specialists for the WCB does not render the regulation irrational. The Workers’ Compensation Law does not require such specialists to be “board certified” (*see Work-*

ers' Compensation Law § 13 [e])). Only specialists selected by employers in the first instance to perform IMEs need to be board certified.

Petitioners' remaining claims are likewise without merit.

Accordingly, the order of the Appellate Division should be reversed, with costs, the petition should be dismissed and the subject regulations should be declared valid to the extent challenged herein.

Chief Judge KAYE and Judges G.B. SMITH, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[813 NE2d 626, 780 NYS2d 546]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE
KONIECZNY, Appellant.

Submitted May 6, 2004; decided June 10, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Niagara County Court (Sara S. Sperazza, J.), entered March 13, 2003. The County Court affirmed a judgment of the City Court of North Tonawanda, Niagara County (William R. Lewis, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal contempt in the second degree.

HEADNOTE

Crimes — Criminal Contempt — Guilty Plea Forfeits Objection to Validity of Order of Protection

In a prosecution for criminal contempt in the second degree based on allegations that defendant violated an order of protection issued incident to a bad check prosecution, defendant, having pleaded guilty to attempted criminal contempt in the second degree, forfeited his right to argue that his conviction should be reversed and the accusatory instrument dismissed on the ground that the order of protection was invalid under CPL 530.13 (4). A guilty plea generally results in a forfeiture of the right to appellate review of any non-jurisdictional defects in the criminal proceeding. Here, defendant's claim that City Court erred in issuing the order of protection because the party protected was not a victim or witness in the bad check proceeding did not implicate the jurisdiction of the courts and was not of constitutional dimension. Although the order of protection did not indicate whether the person to be protected was a victim or a witness, that was not a defect because the issuing court was not required to designate the protected party's status on the face of the order. As a facially valid judicial mandate, the order of protection was entitled to the presumption of regularity for purposes of fulfilling the pleading requirements.

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By the Publisher's Editorial Staff

AM JUR 2d, Contempt §§ 112, 127; AM JUR 2d, Criminal
Law § 721.

CARMODY-WAIT 2d, Contempt Proceedings § 140:17;
CARMODY-WAIT 2d, Criminal Procedure §§ 172:1565,
172:1566.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 21.6.

McKINNEY'S, CPL 530.13 (4).

NY JUR 2d, Criminal Law §§ 1357, 1358, 4765, 4767, 4773.

ANNOTATION REFERENCE

See ALR Index under Contempt; Guilty Plea.

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protect! /p plea! /3 guilty

POINTS OF COUNSEL

Michael J. Violante, Public Defender, Lockport (Joseph G. Frazier of counsel), for appellant. I. The order of protection was void ab initio. (*People v Said*, 120 AD2d 961.) II. A lawful order is a jurisdictional predicate to a criminal contempt charge and the issue of lawfulness survives a guilty plea for the purpose of appeal. (*People v Alexander*, 97 NY2d 482; *People v Muniz*, 91 NY2d 570; *People v Hansen*, 95 NY2d 227; *People v Blakley*, 34 NY2d 311; *People v Parker*, 271 AD2d 63; *People v Iannone*, 45 NY2d 589; *People v Case*, 42 NY2d 98; *People v Giglio*, 74 AD2d 348; *People v Samms*, 95 NY2d 52; *People v Boston*, 75 NY2d 585.)

Matthew J. Murphy, III, District Attorney, Lockport (Thomas H. Brandt of counsel), for respondent. I. The order of protection was not void ab initio. (*People v Said*, 120 AD2d 961; *People v Fenti*, 234 AD2d 953, 89 NY2d 985.) II. A lawful order is not a jurisdictional predicate that survives a guilty plea. (*People ex rel. Fortson v Dean*, 9 AD2d 855; *People v Iannone*, 45 NY2d 589; *People v Ray*, 71 NY2d 849; *People v Riley*, 267 AD2d 1072; *People v Case*, 42 NY2d 98; *People v Samms*, 95 NY2d 52; *People v Polanco*, 2 AD3d 1154; *People v Scott*, 3 NY2d 148.)

OPINION OF THE COURT

GRAFFEO, J.

Defendant was charged with criminal contempt in the second degree based on allegations that he violated an order of protection issued incident to a bad check prosecution. Represented by counsel, he pleaded guilty to attempted criminal contempt in the second degree. On appeal, defendant asserted that his conviction should be reversed and the accusatory instrument dismissed on the ground that the order of protection was invalid under CPL 530.13 (4) because the party protected was not a victim or witness in the bad check proceeding. County Court concluded that the argument had been forfeited by defendant's guilty plea. We agree and affirm the judgment of conviction.

In May 2000, defendant appeared in the North Tonawanda City Court with his attorney and entered a guilty plea to disorderly conduct in satisfaction of a bad check charge. He was

sentenced to a conditional discharge and ordered to pay restitution in the amount of \$80. A week after he pleaded guilty, defendant again appeared in City Court. Although the transcript of this proceeding is not part of the record in this case, City Court apparently issued an order of protection directing defendant to stay away from a particular person, referred to for our purposes as Gary M. The order of protection, which is included in the record, is predicated on CPL 530.13, the statute authorizing the issuance of orders of protection in favor of victims and witnesses in criminal actions. The order does not indicate whether Gary M. is a witness or victim with any connection to the bad check charge. Compliance with the order was added as a requirement underlying the conditional discharge. Defendant signed the order of protection, acknowledging that he was present at the time it was issued and knew its contents.

One month later, police officers executed a search warrant at Gary M.'s residence and discovered defendant there in violation of the order of protection. Defendant was arrested and charged by misdemeanor information with criminal contempt in the second degree. The information was signed by three police officers who averred that they personally observed defendant in the residence and that his presence was "in violation of an Order of Protection that was issued by North Tonawanda City Court . . . on the 18th day of May, 2000 prohibiting the defendant from being at that residence." A copy of the order of protection was attached to the information.

When defendant and his attorney appeared in City Court on the criminal contempt charge on June 29, 2000, defense counsel questioned whether it had been appropriate to issue the order of protection incident to a bad check prosecution, although he did not argue that the protected party was neither a victim nor a witness to the bad check incident. The court responded that it had determined the order was necessary based on an indicated report of abuse from the Department of Social Services and information from concerned citizens that defendant was abusing Gary M. The matter was adjourned to provide the defense an opportunity to file motions.

Two weeks later, with his attorney present, defendant pleaded guilty to attempted criminal contempt in the second degree. During the plea colloquy, City Court stated that it was continuing the order of protection. There was no objection by the defense. At sentencing, the court advised defendant that a permanent order of protection would be issued in favor of Gary M. Again, defendant raised no objection.

On appeal, defendant argued for the first time that the order of protection underlying the criminal contempt charge was invalid under CPL 530.13 because Gary M. was not a victim or witness relating to the bad check charge. County Court questioned whether the issue was preserved for review but found that, even if it were deemed sufficiently preserved, defendant had forfeited the claim by pleading guilty. A Judge of this Court granted defendant leave to appeal.

CPL 530.13 (4) authorizes a court to issue a permanent order of protection in favor of a victim or witness in a criminal action. In *People v Nieves* (2 NY3d 310, 316 [2004]), we noted that the “primary intent of the statute is to ensure that victims and ‘witnesses who have the courage and civic responsibility to cooperate with law enforcement officials are afforded the maximum protection possible.’ ” A court cannot rely on CPL 530.13 (4) to issue an order of protection for a party unrelated to the underlying criminal action.

In *Nieves*, this Court held that a permanent order of protection issued at the conclusion of a criminal action is appealable as part of the judgment of conviction. We also held that a challenge to the scope or duration of such an order must be preserved by objection in the issuing court. Here, defendant did not appeal from the disorderly conduct conviction and apparently did not object to the order of protection when it was originally issued. Rather, defendant violated the order, ultimately pleading guilty to attempted criminal contempt.

Thus, the threshold question in this case is whether defendant’s challenge to the validity of the order of protection is reviewable despite his guilty plea to attempted criminal contempt. “A plea of guilty, as we have repeatedly observed, generally marks the end of a criminal case, not a gateway to further litigation” (*People v Hansen*, 95 NY2d 227, 230 [2000]). In *Hansen*, we held that by pleading guilty, defendant had forfeited his challenge to the prosecutor’s submission of hearsay evidence before the grand jury. We reasoned that where a defendant pleads guilty, the “conviction rests directly on the sufficiency of [the] plea, not on the legal or constitutional sufficiency of any proceedings which might have led to [a] conviction after trial” (*id.*, quoting *People v Di Raffaele*, 55 NY2d 234, 240 [1982]). Thus, “[a] guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings” (*People v Fernandez*, 67 NY2d 686, 688 [1986]).

We have, however, recognized exceptions to the forfeiture rule. “The limited issues surviving a guilty plea in the main relate either to jurisdictional matters (such as an insufficient accusatory instrument) or to rights of a constitutional dimension that go to the very heart of the process (such as the constitutional speedy trial right, the protection against double jeopardy or a defendant’s competency to stand trial)” (*People v Hansen*, 95 NY2d at 230).

Defendant acknowledges that a guilty plea forfeits most appellate claims but argues that the present claim is reviewable despite the guilty plea because it involves the jurisdictional predicate underlying the validity of the accusatory instrument. He reasons that the order of protection was “void *ab initio*” because, he claims, Gary M. was neither a victim nor a witness. He argues that this asserted defect in the order rendered the later prosecution for criminal contempt jurisdictionally barred.

The People do not dispute that a prosecution for criminal contempt in the second degree requires proof that defendant intentionally disobeyed or resisted “the lawful process or other mandate of a court” (Penal Law § 215.50 [3]). As such, had defendant declined the plea offer, the People would have had the burden of establishing that the order of protection was valid either in response to a pretrial motion to dismiss or at trial. However, because defendant pleaded guilty without creating a record on the issue, the People note that in order to determine Gary M.’s status in the prior proceeding, this Court would have to conduct a collateral review of the prior proceeding based on documents and transcripts outside the record in this case. The People argue that defendant forfeited his right to challenge the validity of the order of protection by pleading guilty and, even if that order were invalid, this would not rise to the level of a jurisdictional defect.

While the record is less than clear as to the circumstances giving rise to issuance of the order of protection,¹ it raises a serious concern that Gary M. was not involved in the earlier

1. Defendant had numerous opportunities to establish facts supporting the assertion he now raises on appeal, yet he failed to do so. Defendant apparently did not object to the order of protection when it was issued in the bad check proceeding and did not challenge the validity of the order in an appeal from the disorderly conduct conviction.

In the later criminal contempt proceeding, defendant remained free to pursue the argument that the order of protection was not properly issued, notwithstanding his failure to appeal in the earlier proceeding. Yet, although

(n. cont’d)

bad check prosecution. Needless to say, we cannot condone the misuse of CPL 530.13 to issue an order of protection in favor of a party unrelated to a pending prosecution. If there was reasonable cause to believe that defendant had committed a crime against Gary M., the appropriate procedure would be for the prosecutor to commence a separate criminal action and seek an order of protection in that proceeding protecting Gary M. as a victim, not for the court to short circuit that process by applying CPL 530.13 in a manner clearly not intended by the Legislature.

That being said, however, in this case we have no occasion to further address the validity of the underlying order of protection because defendant's claim that City Court violated CPL 530.13 does not implicate the jurisdiction of the courts and therefore did not survive his guilty plea. To the extent defendant argues that the allegations in the accusatory instrument relating to the order of protection were jurisdictionally insufficient, the argument survives his guilty plea but is without merit because the information and supporting documents adequately pleaded that defendant violated a court order.

Defendant's CPL 530.13 argument is not of constitutional dimension but rests on the allegation that City Court erred when it issued the order of protection because Gary M. was not a witness or victim in the bad check prosecution. Generally speaking, statutory violations that do not implicate constitutional rights have not been deemed jurisdictional in nature (*see e.g., People v Mills*, 1 NY3d 269 [2003] [statute of limitations defense is not jurisdictional and can be forfeited by defendant]; *People v Prescott*, 66 NY2d 216 [1985], *cert denied* 475 US 1150 [1986] [guilty plea results in forfeiture of statutory double jeopardy]; *People v Taylor*, 65 NY2d 1 [1985] [failure to provide CPL 710.30 notice forfeited by guilty plea]; *People v Sobotker*, 61 NY2d 44 [1984] [right to statutory immunity forfeited by guilty

defense counsel generally questioned the validity of the order in the criminal contempt prosecution, he did not raise the specific argument presented on appeal or make an offer of proof supporting such an argument to City Court. Defendant did not move to dismiss the accusatory instrument alleging a legal impediment to prosecution pursuant to CPL 170.30 (1) (f), nor did he develop the facts necessary to resolve the question of Gary M.'s relationship, if any, to the prior criminal proceeding. Instead, defendant pleaded guilty. And, in the presence of defendant and his attorney, City Court twice continued the order of protection without objection. Thus, in addition to the forfeiture issue, the preservation rule and the related requirement that a defendant create a record adequate for appellate review pose a hurdle in this case.

plea]; *People v Thill*, 52 NY2d 1020 [1981], *cert denied* 454 US 829 [1981] [statutory speedy trial claim forfeited by guilty plea]).

In this respect, defendant's challenge is not to the form of the misdemeanor information and cannot be resolved by review of that document. To the contrary, regardless of the manner in which the accusatory instrument was drafted, defendant contends that no misdemeanor information based on the order of protection could be valid because the order itself was fatally flawed.

Yet, even where a defendant has pointed to an irregularity in the accusatory instrument, it is clear from our precedent that not every deficiency implicates the jurisdiction of the court. "So long as the factual allegations of an information give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense, they should be given a fair and not overly restrictive or technical reading" (*People v Casey*, 95 NY2d 354, 360 [2000]). An information is jurisdictionally sufficient if it contains allegations which would establish, "if true, every element of the offense charged and the defendant's commission thereof" (CPL 100.40 [1] [c]). Although an information should be based on nonhearsay allegations, "a purported hearsay defect in an accusatory instrument is nonjurisdictional and, thus, forfeited by a guilty plea" (*People v Keizer*, 100 NY2d 114, 121 [2003]).

Defendant's claim in this case is similar to the argument this Court rejected in *People v Casey*, which also involved a criminal contempt prosecution. There, defendant asserted that the People's failure to allege in the misdemeanor information that the temporary order of protection was in effect on the date of the alleged violation amounted to a fatal flaw because the order was not attached to the information, nor was its expiration date cited in that instrument. This Court noted that the "far better practice" is to attach a copy of the order of protection to the information, although the failure to do so did not amount to a jurisdictional defect (95 NY2d at 359).

We concluded in *Casey* that "[a]ny challenge to . . . whether the order was in effect on the date of the contumacious conduct[] was a matter to be raised as an evidentiary defense to the contempt charge, not by insistence that this information was jurisdictionally defective without annexation of the order to that accusatory instrument" (*id.* at 360). The information was deemed jurisdictionally sufficient because the victim had signed

a supporting deposition, attached to the information, which stated that a temporary order of protection was in effect and she personally observed defendant violating it. We reasoned: “the fair implication of these averments established her firsthand knowledge that the order had been granted, was in effect and was violated by defendant’s harassing or criminal conduct on the date of the offense” (*id.*). Under *Casey* it is evident that an accusatory instrument must be given a reasonable, not overly technical reading and this Court will not rely on external factors to create jurisdictional defects not evident from the face of the document.

The alleged defect the Court discussed in *Casey* stands in contrast to the omission in *People v Alejandro* (70 NY2d 133 [1987]), a resisting arrest conviction dismissed due to a jurisdictional defect in the misdemeanor information. Although an element of the offense of resisting arrest is that the underlying arrest be lawful, the officers who executed the information failed to allege any facts to support this element because they did not establish either that the arrest was predicated on a warrant or that the officers themselves had probable cause to effect an arrest based on their own observations of defendant. Under *Alejandro*, it is evident that an information is facially deficient if it entirely fails to address an element of the offense charged.

The accusatory instrument in this case does not suffer from the defect identified in *Alejandro* because the element defendant challenges on appeal was sufficiently pleaded. The misdemeanor information specifically referenced the order of protection. In addition, although not a jurisdictional prerequisite to a valid accusatory instrument, the officers followed the “better practice” recommended in *Casey* of attaching a copy of the order to the information. In this context, the order was the functional equivalent of a supporting deposition for it corroborated and amplified the allegations in the information concerning the existence and terms of the judicial mandate defendant was alleged to have violated. There is no evident flaw in the order of protection—on its face, it appears to be enforceable. Granted, the order does not indicate whether Gary M. is a victim or witness but this is not a defect because neither CPL 530.13 (4), nor the form order promulgated by the Chief Administrator of the Courts pursuant to CPL 530.13 (9), requires the issuing court to designate the protected party’s status on the face of the

order (*see* 22 NYCRR subtit D, ch VI, criminal form 1).² As a facially valid judicial mandate, the order of protection was entitled to the presumption of regularity for purposes of fulfilling the pleading requirements (*see generally People v Dominique*, 90 NY2d 880 [1997]), although the presumption could have been rebutted had defendant challenged the basis of the order in a pretrial motion or at trial.³

The order of protection in this case is analogous to the arrest warrant discussed in *Alejandro*: had the officers in *Alejandro* alleged that they arrested defendant based on a warrant—a judicial mandate arising after a probable cause determination—the accusatory instrument in that case would have been jurisdictionally sufficient, although defendant could have challenged the validity of the warrant in a pretrial motion to dismiss or at trial. The same is true here. Had defendant opted to challenge the validity of the order—an element of the offense of criminal contempt in the second degree—rather than to plead guilty in the criminal contempt proceeding, he could have pursued his argument that the order of protection was invalid. Similar to the conclusion we reached in *Casey*, however, “whether the order was [valid] on the date of the contumacious conduct[] was a matter to be raised as [a] . . . defense to the contempt charge, not by insistence that this information was jurisdictionally defective” (95 NY2d at 360). Having pleaded guilty to attempted criminal contempt on a jurisdictionally valid accusatory instrument, defendant conceded every element of the offense, including the lawfulness of the order of protection, and forfeited his claim that the order violated CPL 530.13 (4).

2. A designation would not, in any event, have satisfied defendant under the circumstances of this case. If the court had characterized Gary M. either as a victim or witness in the order, defendant would undoubtedly argue on this appeal that, despite the designation, Gary M. was not, in fact, a victim or witness in the first criminal case, rendering the order of protection invalid.

3. Orders of protection are filed in a statewide registry and are enforced by a myriad of law enforcement agencies and courts throughout the state. In many instances, neither the authorities nor the court where the order of protection is violated will be in a position to know the events giving rise to issuance of the order (or the protected party’s role in those events) at the time the accusatory instrument is drafted, nor in most cases is there any reason to question the validity of a facially valid order. Were a defendant able to plead guilty and later challenge the validity of the order as a jurisdictional defect on appeal, both the efficacy of orders of protection and the finality of guilty pleas would be compromised. Since defendant and defense counsel are often the parties most knowledgeable about the background of the order of protection, it is incumbent upon the defense to timely raise any issue relating to the validity of the order.

Accordingly, the order of County Court should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSEN-
BLATT, READ and R.S. SMITH concur.

Order affirmed.

[813 NE2d 632, 780 NYS2d 552]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC
PROVIDENCE, Appellant.

Argued June 3, 2004; decided June 29, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 28, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Charles J. Tejada, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree and criminal possession of a controlled substance in the fifth degree.

People v Providence, 308 AD2d 200, affirmed.

HEADNOTE

Crimes — Right to Representation Pro Se — Sufficiency of “Searching Inquiry”

The trial court undertook a sufficient “searching inquiry” to insure that defendant’s request to proceed pro se was accompanied by a knowing, voluntary, and intelligent waiver of the right to counsel even though the court did not question defendant on the record about the factors set forth in *People v Arroyo* (98 NY2d 101 [2002]): his age, education, occupation, previous exposure to legal procedures and other relevant factors bearing on a competent, intelligent, voluntary waiver. A searching inquiry may occur in a nonformalistic, flexible manner, and the asking of questions designed to elicit each of the specific items of information recited in *Arroyo* is not mandatory, although it is the better practice. Here, there was record evidence, beyond the waiver colloquy, to provide a reliable basis to conclude that defendant, a 38-year-old full-time student who had earned his GED and had an extensive criminal history, effectively waived the right to counsel.

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AM JUR 2d, Criminal Law §§ 1242, 1244–1246.
CARMODY-WAIT 2d, Criminal Procedure §§ 172:1753,
172:1759, 172:1760.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 11.5.
NY JUR 2d, Criminal Law §§ 795, 798.

ANNOTATION REFERENCE

Accused’s right to represent himself in state criminal proceeding—modern state cases. 98 ALR3d 13.

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POINTS OF COUNSEL

Legal Aid Society Criminal Appeals Bureau, New York City (*John Schoeffel* and *Laura R. Johnson* of counsel), for appellant. Where the court permitted appellant to give up the uniquely important right to counsel and proceed pro se at the suppression hearing and trial, its complete failure to “delve into” any factors pertaining to appellant’s background and wherewithal to represent himself—as required to “affirmatively” establish a competent and valid waiver, under the specific mandate of *People v Arroyo* (98 NY2d 101 [2002])—requires reversal as a matter of law. (*People v Smith*, 92 NY2d 516; *People v McIntyre*, 36 NY2d 10; *People v McKiernan*, 84 NY2d 915; *People v Cabassa*, 79 NY2d 722; *People v Sawyer*, 57 NY2d 12; *People v Allen*, 39 NY2d 916; *Faretta v California*, 422 US 806; *Johnson v Zerbst*, 304 US 458; *People v Duffy*, 275 AD2d 1006; *Gideon v Wainwright*, 372 US 335.)

Robert M. Morgenthau, District Attorney, New York City (*Zachary H. Johnson* and *Patrick J. Hynes* of counsel), for respondent. The trial court properly granted defendant’s request to proceed pro se. (*Faretta v California*, 422 US 806; *People v Rosen*, 81 NY2d 237; *People v McIntyre*, 36 NY2d 10; *People v Koch*, 299 NY 378; *People v McLaughlin*, 291 NY 480; *People v Price*, 262 NY 410; *United States v Denno*, 348 F2d 12; *People v Arroyo*, 98 NY2d 101; *People v Vivenzio*, 62 NY2d 775.)

OPINION OF THE COURT

READ, J.

This case turns on whether the trial court undertook a “searching inquiry” to insure that defendant’s request to proceed pro se was accompanied by a “knowing, voluntary and intelligent waiver of the right to counsel” (*People v Arroyo*, 98 NY2d 101, 103 [2002]; see *Faretta v California*, 422 US 806, 835 [1975]; *People v McIntyre*, 36 NY2d 10, 17 [1974]). We have consistently refrained from creating a catechism for this inquiry, recognizing that it “may occur in a nonformalistic, flexible manner” (*People v Smith*, 92 NY2d 516, 520 [1998]). Further, when deciding whether a defendant actually understood the dangers

of self-representation, a reviewing court may look to the whole record, not simply to the questions asked and answers given during a waiver colloquy (see *People v Vivenzio*, 62 NY2d 775 [1984]). Measured by these standards, defendant effectively waived his right to counsel in this trial, which took place more than a year before our decision in *Arroyo*.

I.

A police officer arrested defendant after seeing him selling drugs in Times Square in October 2000. A “CJA interview sheet” prepared following arrest (and placed in defendant’s court file) indicated that, at the time, defendant was 38 years old, had earned a GED and was a full-time student at New York Restaurant School. Defendant’s court file also contained a “NYSID report” detailing his date of birth and extensive criminal history, which dated to 1989 and included convictions for 3 felonies and 15 misdemeanors. At his arraignment, defendant was assigned counsel.

Following indictment, defendant prepared a dismissal motion pro se, in which he asserted that the drugs seized from him had not been properly tested. He went on to argue the merits of his motion at a hearing held to determine his request for a suppression hearing. Additionally, defendant asked to proceed pro se, with assigned counsel placed in a “standby” role.

After the court denied defendant’s dismissal motion, he displayed a relatively high level of familiarity with the criminal justice system, stating that “I’d like to preserve my rights under CPL 240.20, demanding the discovery of the proficiency of the chemist who tested everything right here on [the] record.” The court granted a suppression hearing, but declined to rule on defendant’s request to proceed pro se, deferring that issue to the trial court to which the case was to be assigned.

About six weeks later, defendant arrived in the trial court, which he asked to address. The trial judge admonished defendant that this was “not a good idea” and that it might be to his “detriment.” While acknowledging this advice, defendant persisted in his bid to speak personally. In a lengthy colloquy, he explained the previously denied motion. After the trial judge informed defendant that he would abide by the previous judge’s decision, defendant announced that he had “an application here to proceed pro se.” Several colloquies ensued, after which the trial judge granted defendant’s request to exercise his right to self-representation.

As defendant concedes here, the trial judge repeatedly and adequately warned him of the dangers of self-representation, and gave him several opportunities to express a change of heart. In each instance, defendant unequivocally asserted that he wished to proceed pro se. Following his repeated, unambiguous requests to represent himself and the trial judge's increasingly detailed warnings and questions, defendant emphatically asserted that "Yes, I, Eric Providence, wish to proceed pro se and have my newly assigned counsel to remain as my legal advisor. Yes, I do." The trial judge responded, "All right, then we will do that."

Defendant went on to defend himself at both the suppression hearing and the subsequent trial. He was backed up by counsel, who consulted with him. During the hearing and trial, defendant made motions, raised objections and cross-examined the People's witnesses. At trial, defendant conducted jury selection, and delivered an opening statement and summation. The jury convicted defendant, and the Appellate Division affirmed, with two Justices dissenting (308 AD2d 200 [1st Dept 2003]). A dissenting Justice granted defendant leave to appeal. We now affirm.

II.

The "searching inquiry" undertaken when a defendant waives the right to counsel in favor of self-representation is aimed at insuring that the defendant "was aware of the dangers and disadvantages of proceeding without counsel" (*People v Slaughter*, 78 NY2d 485, 492 [1991]; see also *People v Mitchell*, 61 NY2d 580, 584 [1984]; *People v Kaltenbach*, 60 NY2d 797, 798-799 [1983]; *People v Sawyer*, 57 NY2d 12, 21 [1982], *cert denied* 459 US 1178 [1983]). Defendant concedes, and the record establishes, that the trial court adequately fulfilled its responsibility to make him "aware of the dangers and disadvantages of self-representation" (*Faretta*, 422 US at 835).

Nonetheless, defendant contends that his waiver of counsel was ineffective. He argues that our decision in *Arroyo* mandates that, as part of the "searching inquiry," the trial court must question a defendant on the record about his "'age, education, occupation, previous exposure to legal procedures and other relevant factors bearing on a competent, intelligent, voluntary waiver'" (*People v Arroyo*, 98 NY2d at 104, quoting *People v Smith*, 92 NY2d at 520). Neither *Arroyo* nor *Smith* ordains reversal of defendant's conviction.

In *Arroyo*, we expressly noted that “we have eschewed application of any rigid formula and endorsed the use of a nonformalistic, flexible inquiry” (*Arroyo*, 98 NY2d at 104). In *Smith*, where the trial court removed counsel over the defendant’s protests, we said the same (*Smith*, 92 NY2d at 520-521). Accordingly, these two cases do not support defendant’s position that the trial court’s failure specifically to ask him pedigree questions mandates reversal. Put differently, a waiver of the right to counsel will not be deemed ineffective simply because a trial judge does not ask questions designed to elicit each of the specific items of information recited in *Arroyo*. We reiterate, though, that it is better practice to ask such questions and that record evidence “ ‘should affirmatively disclose that a trial court has delved into’ ” these matters (98 NY2d at 104, quoting *Smith*, 92 NY2d at 520).

Significantly, when determining if a defendant effectively waived the right to counsel, what we have required is “a reliable basis for appellate review” (*Arroyo*, 98 NY2d at 104; see also *Smith*, 92 NY2d at 520). Here, we have a “reliable basis.”

First, a reviewing court may look to the whole record, not simply to the waiver colloquy, in order to determine if a defendant effectively waived counsel. Indeed, in *People v Vivenzio* (62 NY2d 775 [1984]), the trial court did not ask any questions regarding “the defendant’s age, education, occupation and previous exposure to legal procedures” (*People v Vivenzio*, 96 AD2d 728, 728 [4th Dept 1983], *revd* 62 NY2d 775 [1984] [internal quotation marks omitted]). Yet, we concluded that “there could be a finding *on this record* that defendant knowingly and intelligently waived his right to counsel” (62 NY2d at 776 [emphasis added and citation omitted]). In reaching this conclusion, we noted that the trial court “determined that defendant was an adult who had been involved in the criminal process before” (*id.*). Since the waiver colloquy did not reveal this information, we obviously looked to the whole record (see *id.*; compare *Dallio v Spitzer*, 343 F3d 553, 563 [2003] [rejecting “rigid . . . formulas or scripted procedures” for counsel waivers, and noting that the effectiveness of a waiver can be gleaned from the “totality of the circumstances”]). In light of the whole record here, there is no doubt that defendant understood exactly what he was doing when he waived his right to counsel.

The court file contained defendant’s pedigree information. Further, the trial judge had numerous opportunities to see and hear defendant firsthand. As a result, he had general knowledge

of defendant's age, literacy and familiarity with the criminal justice system. Finally, nothing in the lengthy colloquies in this record calls into question defendant's ability to understand the trial judge's detailed warnings regarding self-representation. Indeed, defendant's performance during the suppression hearing and trial shows that he clearly understood the ramifications of waiving counsel. In sum, this record provides a "reliable basis" (*Arroyo*, 98 NY2d at 104) for us to conclude that defendant effectively waived the right to counsel.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and R.S. SMITH concur.

Order affirmed.

[813 NE2d 887, 780 NYS2d 746]

64TH ASSOCIATES, L.L.C., Appellant, v MANHATTAN EYE, EAR &
THROAT HOSPITAL et al., Respondents.

Argued May 4, 2004; decided June 8, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 28, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ira Gammernan, J.), which had dismissed the complaint.

64th Assoc. v Manhattan Eye, Ear & Throat Hosp., 301 AD2d 462, reversed.

HEADNOTE

Corporations — Not-For-Profit Corporation — Sale of Assets

Supreme Court, having disapproved the sale by defendant not-for-profit hospital of its assets to plaintiff, should have addressed the reimbursement provision in the parties' contract calling for defendant to reimburse plaintiff for out-of-pocket expenses in an amount up to \$800,000 should the defendant fail to obtain judicial approval of the proposed sale. A court reviewing the proposed sale by certain not-for-profit corporations of all or substantially all of their assets must assess whether "the consideration and the terms of the transaction are fair and reasonable to the corporation and that the purposes of the corporation or the interests of the members will be promoted" (N-PCL 511 [d]). These review requirements applied to the parties' contract as a whole, including the reimbursement provision. Accordingly, the case was remitted to Supreme Court to determine whether the reimbursement provision was fair, reasonable, and in furtherance of defendant's purpose.

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AM JUR 2d, Corporations §§ 33, 34, 2664, 2666.

McKINNEY'S, N-PCL 511 (d).

NY JUR 2d, Business Relationships § 1194.

ANNOTATION REFERENCE

See ALR Index under Corporations; Nonprofit Organizations.

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POINTS OF COUNSEL

Wachtel & Masyr, LLP, New York City (*John McConnell* of counsel), for appellant. The Appellate Division's holding—that judicial disapproval of an N-PCL 511 sale voids contractual provisions expressly addressing that contingency—imposes an erroneous global rule which is inconsistent with statutory language and violates the doctrine of separation of powers. (*Matter of Anonymous*, 40 NY2d 96; *Bright Homes v Wright*, 8 NY2d 157; *Church of God of Prospect Plaza v Fourth Church of Christ, Scientist, of Brooklyn*, 54 NY2d 742; *Levovitz v Yeshiva Beth Henocho*, 120 AD2d 289; *Nature's Bounty v Sturdee Health Prods. Co.*, 205 AD2d 435; *Diocese of Buffalo v McCarthy*, 91 AD2d 213, 59 NY2d 605; *Wolkoff v Church of St. Rita*, 132 Misc 2d 464, 133 AD2d 267; *Cottle v Storer Communication Inc.*, 849 F2d 570.)

McDermott, Will & Emery, New York City (*Elliot Silverman* and *Andrew B. Roth* of counsel), for Manhattan Eye, Ear & Throat Hospital and another, respondents. Judicial disapproval of the contract under N-PCL 511 bars an award of damages under that contract. (*Church of God v Fourth Church of Christ, Scientist, of Brooklyn*, 76 AD2d 712, 54 NY2d 742; *Matter of Agudist Council v Imperial Sales Co.*, 158 AD2d 683; *Nature's Bounty v Sturdee Health Prods. Co.*, 205 AD2d 435; *Rose Ocko Found. v Lebovits*, 259 AD2d 685, 93 NY2d 997; *Diocese of Buffalo v McCarthy*, 91 AD2d 213; *Manhattan Theatre Club v Bohemian Benevolent & Literary Assn. of City of N.Y.*, 120 Misc 2d 1094, 102 AD2d 788, 64 NY2d 1069; *Scotto v Mei*, 219 AD2d 181; *Carmine v Murphy*, 285 NY 413; *McConnell v Commonwealth Pictures Corp.*, 7 NY2d 465; *Pecora v Cerillo*, 207 AD2d 215.)

Stroock & Stroock & Lavan LLP, New York City (*Albert M. Appel* of counsel), for Lindsay C. Herkness and others, respondents.

Eliot Spitzer, Attorney General, New York City (*Michelle Aronowitz*, *Caitlin Halligan* and *Gregory Klass* of counsel), for Attorney General of the State of New York, amicus curiae. I. Sections 510 and 511 of the Not-For-Profit Corporation Law require judicial oversight over termination-payment provisions. (*Church of God of Prospect Plaza v Fourth Church of Christ, Scientist, of Brooklyn*, 76 AD2d 712, 54 NY2d 742; *Matter of Agudist Council v Imperial Sales Co.*, 158 AD2d 683; *Diocese of Buffalo v McCarthy*, 91 AD2d 213; *Manhattan Theatre Club v*

Bohemian Benevolent & Literary Assn., 120 Misc 2d 1094, 102 AD2d 788, 64 NY2d 1069; *Wolkoff v Church of St. Rita*, 132 Misc 2d 464, 133 AD2d 267; *Rose Ocko Found. v Lebovits*, 259 AD2d 685.) II. Because termination-payment provisions are subject to the same degree of scrutiny as the decision to sell or otherwise dispose of assets, the provision at issue in this case is unenforceable. (*Rose Ocko Found. v Lebovits*, 259 AD2d 685; *Wolkoff v Church of St. Rita*, 132 Misc 2d 464; *Matter of Church of St. Francis de Sales*, 110 Misc 2d 511; *Matter of Agudist Council v Imperial Sales Co.*, 158 AD2d 683; *Church of God of Prospect Plaza v Fourth Church of Christ, Scientist, of Brooklyn*, 76 AD2d 712; *Manhattan Theatre Club v Bohemian Benevolent & Literary Assn.*, 120 Misc 2d 1094.)

OPINION OF THE COURT

ROSENBLATT, J.

Certain types of not-for-profit entities must obtain judicial approval before selling the bulk of their assets (*see* Not-For-Profit Corporation Law [N-PCL] § 510 [a] [3]; § 511). In the case before us, a not-for-profit hospital sought to sell its assets to a real estate developer and another hospital. The contract called for the hospital to reimburse the developer for out-of-pocket expenses in an amount up to \$800,000 should the hospital fail to obtain judicial approval of the proposed sale. Supreme Court disapproved the sale.

In a subsequent action in which the buyers sought damages under the reimbursement provision, the lower courts concluded that judicial disapproval of the sale rendered the entire contract inoperative, including the provision for reimbursement. We hold that where, as here, the court disapproves a sale transaction of this type, it must also address reimbursement or similar provisions under the N-PCL 511 (d) standard, to determine whether the provision is fair, reasonable and in furtherance of the not-for-profit's purpose.

I.

Manhattan Eye, Ear & Throat Hospital (MEETH), a not-for-profit specialty care hospital, operates principally out of three buildings located on East 64th Street. MEETH's certificate of incorporation describes its corporate purpose:

“to establish, provide, conduct, operate and maintain a hospital in the City, County and State of New

York for the general treatment of persons suffering from acute short-term illnesses; performing general plastic surgery; treating persons suffering from diseases of the eye, ear, nose or throat; and maintaining a school for post-graduate instruction in the treatment of such illnesses, performing such surgery, and the treatment of such diseases, and conducting associated and basic research.”

Throughout the 1990’s, MEETH experienced financial difficulties, and in 1999 decided to sell the buildings on 64th Street and close the hospital. It planned to sell one building to Memorial Sloan-Kettering Cancer Center for medical purposes and the others to plaintiff 64th Associates (Associates) for apartments.

Because the contract involved the sale of most of its assets, MEETH needed judicial approval pursuant to the Not-For-Profit Corporation Law (*see* N-PCL 510 [a] [3]).¹ As required by statute, MEETH petitioned Supreme Court and notified the Attorney General (*see* N-PCL 511 [a] [9]; [b]). The court allowed the purchasers to appear as intervenors supporting the sale. The Attorney General opposed it.

Following a 13-day evidentiary hearing, Supreme Court refused to approve the transaction and denied MEETH’s petition. In a comprehensive writing, the court concluded that the proposed agreement was not fair and reasonable to the hospital because it failed to take the hospital’s business value into account and sought only to “monetize” the real estate, despite offers from other entities that would preserve the hospital.² The court also noted that MEETH’s plan to close its doors as an acute care, research and teaching hospital and open diagnostic and treatment centers in Brooklyn and Harlem worked a fundamental change in its corporate purpose.

1. Under N-PCL, there are four types of not-for-profit corporations: Types A, B, C and D (*see* N-PCL 201 [b]; Joint Legis Comm to Study Revision of Corporation Laws, Explanatory Mem No. 1 on Not-For-Profit Corporation Law, McKinney’s Cons Laws of NY, Book 37, at XV). N-PCL 510 (a) (3) mandates that Type B and C not-for-profits receive judicial approval of contracts to sell all or substantially all of their assets. MEETH is a Type B corporation, one of a species organized for charitable, educational, religious, scientific, literary or cultural purposes or for the prevention of cruelty to children or animals (*see* N-PCL 201 [b]; *see also* 1 Phelan, Nonprofit Enterprises: Corporations, Trusts, and Associations § 1:45, at 1-54).

2. *Matter of Manhattan Eye, Ear & Throat Hosp. v Spitzer*, 186 Misc 2d 126 (Sup Ct, NY County 1999).

After the court disapproved the transaction, Associates sought return of its down payment and reimbursement for expenses pursuant to the contract's "termination-payment provision," which provides that:

"Purchaser shall have, as its sole and exclusive remedy, the right to have the Deposit returned along with accrued interest as well as be reimbursed for its out-of-pocket costs associated with this transaction up to a maximum of \$200,000 in the aggregate with respect to MSKCC and \$1,400,000 in the aggregate with respect to [Associates]; *provided, however*, that if [Associates] terminates the [Associates] Contract as a result of Seller not obtaining initial judicial approval . . . on or before June 30, 2000, then the \$1,400,000 reimbursement shall be decreased by \$600,000 to a total aggregate of \$800,000."

MEETH returned the deposit but refused to reimburse expenses, arguing that the court's disapproval nullified the entire contract.³

Associates brought this breach of contract action for reimbursement under the above-quoted provision. Supreme Court granted MEETH's motion to dismiss, holding that "[a]bsent judicial approval of a sale, the contract for sale never came into existence and is inoperative." The Appellate Division affirmed, deeming Associates' arguments as "contrary to the purposes of the statute—to protect charitable organizations from loss through unwise bargains." (301 AD2d 462 [2003].) We granted leave to appeal, and for the reasons stated below, reverse and remit to Supreme Court.

II.

Ordinarily, courts are not involved in the oversight or approval of contracts and will enforce them unless illegal, against

3. Intervenor Lenox Hill Hospital (which assumed sponsorship of MEETH and became its sole corporate member) subsequently moved for clarification of Supreme Court's denial of MEETH's petition, and sought a declaration that the disapproval rendered the entire sales contract—including the reimbursement provision—unenforceable. Supreme Court denied the application, noting that because the parties did not raise the issue it had "no occasion to consider these now-disputed specific provisions of the sales contract."

public policy or deficient in some other respect.⁴ The law is different in the case of not-for-profit entities. A chief difference is that not-for-profits, unlike their for-profit counterparts, by definition and concept do not have shareholders to whom profits are distributed.⁵ Given the absence of shareholders, profits and other market devices to ensure the efficacy of contracts and regularity of operations, the statute contemplates significant public oversight of the finances and major transactions of such entities.⁶

When a not-for-profit corporation seeks to sell all or substantially all of its assets, N-PCL 510 and 511 set forth the procedure designed to “preserve charitable assets to serve public purposes” (Bjorklund, *New York Nonprofit Law and Practice* § 8-2 [a], at 238 [1997]). Thus, a Type B or Type C corporation must obtain leave of Supreme Court to enter into such a disposition (*see* N-PCL 510 [a] [3]). In its determination, Supreme Court must assess whether “the consideration and the terms of the transaction are fair and reasonable to the corporation and that the purposes of the corporation or the interests of the members will be promoted” (N-PCL 511 [d]; *see Church of God of Prospect Plaza v Fourth Church of Christ, Scientist, of Brooklyn*, 76 AD2d 712, 716 [2d Dept 1980], *affd* 54 NY2d 742 [1981]). Moreover, the Legislature required that the Attorney General be notified so as to represent the public interest.⁷

4. *See e.g. Szerdahelyi v Harris*, 67 NY2d 42, 48 (1986); *McConnell v Commonwealth Pictures Corp.*, 7 NY2d 465, 469 (1960); *see also* Restatement (Second) of Contracts §§ 178-199; 5 Williston, *Contracts* § 12:1 *et seq.* (4th ed).

5. *See* N-PCL 102 (a) (5); 204, 508, 515; *see also* Boyd, *A Call to Reform the Duties of Directors Under State Not-For-Profit Corporation Statutes*, 72 Iowa L Rev 725, 730 n 52 (1987).

6. (*See generally* Fishman, *Improving Charitable Accountability*, 62 Md L Rev 218, 233 [2003]; Sasso, *Searching for Trust in the Not-For-Profit Boardroom: Looking Beyond the Duty of Obedience to Ensure Accountability*, 50 UCLA L Rev 1485, 1487-1488 [Aug. 2003].) The financial operations of not-for-profits have accounted for a sizeable and growing share of our nation's economic activity (*see* Hansmann, *The Role of Nonprofit Enterprise*, 89 Yale LJ 835 [1980]). As of 2000, not-for-profit organizations held \$1.6 trillion in assets (an eight percent increase from 1999), and reported \$866.2 billion in revenue (*see* Arnsberger, *Charities and Other Tax-Exempt Organizations, 2000*, Statistics of Income Bulletin, US Government Printing Office [fall 2003], available at <<http://www.irs.gov/pub/irs-soi/00eochin.pdf>> [accessed May 20, 2004]).

7. The Not-For-Profit Corporation Law provides for state or judicial involvement in many aspects of regulation and governance. For example, judicial approval is required for the merger or consolidation of not-for-

(n. cont'd)

Associates argues that the statute—and its requirement for judicial approval—governs only the sale of the assets, and not the reimbursement provision of the contract. We disagree. N-PCL 511's requirements apply to the contract as whole. The statutory language does not limit the court to a narrow review of the contract, and plainly requires that it examine “the consideration and the terms of the transaction” (N-PCL 511 [d]), which include all facets of the agreement.

We hold that any termination-payment clause or similar damages or reimbursement provision in a sales transaction of this kind should be reviewed under the N-PCL 511 standard of fairness, reasonableness and furtherance of corporate purpose. As the Attorney General urges in his amicus brief, provisions of this type may be valuable to not-for-profits, permitting their boards to negotiate beneficially. At the same time, judicial scrutiny protects not-for-profit organizations against board actions that might be adverse to the entity's well-being.

Here, the lower courts did not examine the reimbursement provision under the N-PCL 511 (d) standard. Instead, Supreme Court held that “[a]bsent judicial approval of a sale, the contract for sale never came into existence and is inoperative.” In affirming, the Appellate Division also concluded, in essence, that judicial disapproval of the sale automatically nullified the reimbursement provision. Moreover, in his denial of the motion for clarification (following the initial proceeding disapproving the sale of the hospital) Justice Fried stated that the validity of the reimbursement clause had not been before him.

MEETH and the Attorney General contend that there is enough in the record for us to conclude as a matter of law that the reimbursement provision does not meet the N-PCL 511 (d) standard. According to the Attorney General, Associates is claiming reimbursement of over \$950,000 for expenses including architects, structural and mechanical engineers, environmental consultants, facade specialists, land use attorneys, zoning consultants and expeditors. He argues that “[i]t is hard to imagine a good reason for the MEETH Board to agree to such a term, which allowed Associates and [Memorial Sloan-Kettering

profit entities (*see* N-PCL 907). N-PCL also grants the Attorney General standing to maintain several types of actions against not-for-profit corporations, such as to dissolve a not-for-profit if it has acted fraudulently, ultra vires or was not duly formed; to sue directors for violations of their duties of care, loyalty and obedience; and to enforce any right given to members, directors or officers (*see* N-PCL 112 [a]; *see generally* Note, New York's Not-For-Profit Corporation Law, 47 NYU L Rev 761 [1972]).

Cancer Center] together to incur up to \$1.6 million in expenses risk-free, while obtaining the East 64th Street property at a fire-sale price.”

While these contentions are cogent, it would be improvident of us to make a legal determination as to the efficacy of the reimbursement provision, considering that neither the parties nor the courts below have addressed it under N-PCL 511 (d) criteria. Thus, we reverse and remit so that Supreme Court may determine, under N-PCL 511 (d), whether the reimbursement provision was fair and reasonable and in furtherance of the not-for-profit’s corporate purpose.

In future cases reimbursement provisions or similar clauses should be reviewed, whenever appropriate, in the same proceeding and under the same standard in which the court is asked to approve the sale. Moreover, our remand should not be taken as an occasion for a lengthy and drawn-out process. Over a 13-day period, Justice Fried conducted an extensive review of the relevant background and made a great many findings and conclusions. If additional proof is necessary for the court to address the validity of the reimbursement provision, we are confident that the court will hear it expeditiously, and with the same sensitivity it has shown, recognizing that the entity involved is a not-for-profit corporation.

The parties’ remaining arguments are without merit.

Accordingly, the order of the Appellate Division should be reversed, without costs, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[813 NE2d 891, 780 NYS2d 750]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREGORY P. CUNNINGHAM, Appellant.

Argued May 6, 2004; decided June 10, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered June 12, 2003. The Appellate Division affirmed a judgment of the Montgomery County Court (Felix J. Catena, J.), which had convicted defendant, upon a jury verdict, of forgery in the second degree.

People v Cunningham, 306 AD2d 627, reversed.

HEADNOTE

Crimes — Forgery — Defendant Signing Own Name to Check in Excess of Authority

Defendant's conduct in signing his own name to a corporate check in excess of his authority did not constitute forgery under Penal Law § 170.10. Where, as here, the ostensible maker and the actual maker of the written instrument alleged to be falsely made are one and the same, there can be no forgery. A person who signs a name to an instrument and acknowledges it as his own is the ostensible maker as contemplated by the statute. The check signed by defendant was an authentic creation of its ostensible maker, defendant, despite his lack of authority to sign it. Authority and authenticity are not the same thing. Signing a check with one's own name but beyond one's authority would, however, ordinarily fall within the larceny statutes.

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By the Publisher's Editorial Staff

AM JUR 2d, Forgery §§ 1–6, 9, 10.

McKINNEY'S, Penal Law § 170.10.

NY JUR 2d, Criminal Law §§ 4349, 4352, 4357, 4364.

ANNOTATION REFERENCE

See ALR Index under Forgery.

FIND SIMILAR CASES ON WESTLAW®

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Query: forge! /p own /2 name /s authority

POINTS OF COUNSEL

Raymond A. Kelly, Jr., Albany, for appellant. I. Gregory Cunningham's act of signing his own name to Herkimer Precut

check number 10052 without representing himself to be someone other than Gregory Cunningham requires reversal of his conviction for forgery, second degree. (*People v Levitan*, 49 NY2d 87; *People v Johnson*, 96 AD2d 1083, 63 NY2d 888; *People v Wesley*, 238 AD2d 939; *People v Freeman*, 99 AD2d 648; *People v Briggins*, 50 NY2d 302; *People's Trust Co. v Smith*, 215 NY 488; *People v Barreau*, 183 AD2d 904, 80 NY2d 926; *People v Ramirez*, 168 AD2d 907, 77 NY2d 965; *People v Lewandowski*, 255 AD2d 902; *People v Panetta*, 250 AD2d 710, 92 NY2d 903.) II. Gregory Cunningham was denied a fair trial by the trial court's ruling permitting the prosecution to introduce both the underlying acts and the Broome County conviction during its case-in-chief when there was no foundation of uniqueness, materiality or necessity demonstrated to justify its admission under *People v Molineux* (168 NY 264 [1901]). (*Coleman v People*, 55 NY 81; *People v Mullin*, 41 NY2d 475; *People v Hudy*, 73 NY2d 40; *People v Lewis*, 69 NY2d 321; *People v Ventimiglia*, 52 NY2d 350; *People v Santarelli*, 49 NY2d 241; *People v Allweiss*, 48 NY2d 40; *People v Katz*, 209 NY 311; *People v Alvino*, 71 NY2d 233; *People v Zackowitz*, 254 NY 192.) III. The trial court's ruling granting consolidation with no showing of good cause set forth by the prosecution or why the interest of justice mandated joint trials denied Gregory Cunningham a fair trial regarding Indictment No. 045-2001. (*People v Lane*, 56 NY2d 1.) IV. The trial court's failure to permit cross-examination into Peter Morat's interest/hostility/other motive to fabricate mandates reversal and a new trial. (*People v McDowell*, 9 NY2d 12; *People v Brooks*, 131 NY 321; *Schultz v Third Ave. R.R. Co.*, 89 NY 242.) V. The forgery, second degree conviction should be dismissed, with prejudice to reprosecution, due to the facial, factual insufficiency of this count in Indictment No. 045-2001. (*People v Morris*, 61 NY2d 290; *People v MacAfee*, 76 AD2d 157; *People v Pries*, 81 AD2d 1039.)

James E. Conboy, District Attorney, Fonda (Pamela A. Ladd of counsel), for respondent. I. Defendant's act of signing his own name on the check resulted in the commission of the crime of forgery. (*People v Levitan*, 49 NY2d 87.) II. Defendant-appellant was not denied a fair trial. (*People v Hayes*, 97 NY2d 203; *People v Mattiace*, 77 NY2d 269; *People v Rahman*, 46 NY2d 882; *People v Pavao*, 59 NY2d 282; *People v Dales*, 309 NY 97; *People v Molineux*, 168 NY 264; *People v Lane*, 56 NY2d 1; *People v Hudy*, 73 NY2d 40.) III. The charge of forgery in the second degree was properly set forth in Indictment No. 045-2001. (*People v Iannone*, 45 NY2d 589; *People ex rel. Best v Senkowski*, 200 AD2d 808, 83 NY2d 951; *People v Davis*, 41 NY2d 678.)

OPINION OF THE COURT

ROSENBLATT, J.

Defendant was convicted of forgery in the second degree (Penal Law § 170.10) for signing his own name to a corporate check, in excess of his authority. Because defendant's conduct does not constitute forgery under our statute, we reverse his conviction.

I.

As the owner of a logging operation, Peter Morat planned to open a sawmill business in Madison County, under the name Herkimer Precut, Inc. He engaged defendant as a consultant to arrange for financing and related activities. In exchange for his services, defendant was to receive a 20% interest in the new venture. As the project progressed, Morat turned over various financial aspects of the business to defendant, entrusting him with control over the corporate checkbook. Because defendant was responsible for paying bills, Morat would sometimes provide defendant with blank, signed checks. At no time, however, did Morat authorize defendant to sign any checks.¹

After Morat discovered that corporate bills were not being paid, he examined the company's bank records and found unauthorized payments, some on checks he had signed in blank and others bearing a signature he did not recognize. Morat alleged that by improperly signing or issuing checks, defendant stole thousands of dollars from Herkimer Precut.

In two indictments consolidated for trial, a Montgomery County grand jury charged defendant with one count of grand larceny in the second degree, 15 counts of forgery in the second degree and 15 counts of criminal possession of a forged instrument in the second degree. A single count survived the trial: the forgery conviction before us, stemming from a \$195.50 Herkimer Precut check defendant wrote to Nancy Herrick for work performed by Northeast Woodcraft.² In Montgomery County, defendant signed his own name to that check, telling Herrick that

1. Although defendant contends Morat gave him authority to sign certain checks, the jury necessarily concluded that authority was lacking. On appeal from a conviction, we must consider the evidence in the light most favorable to the People (*see e.g. People v Barney*, 99 NY2d 367, 371 [2003]; *People v Hitchcock*, 98 NY2d 586, 591 [2002]).

2. The defense claimed that Montgomery County had no jurisdiction over the alleged crimes. Herkimer Precut was based in Madison County. The company's only checking account was with an office of Manufacturers and Traders Trust Company in Onondaga County. The bank mailed state-

(n. cont'd)

he owned Herkimer Precut. Herrick was acquainted with defendant personally and professionally and knew that he was affiliated with Herkimer Precut. She did not know, however, that Morat owned the company and that defendant lacked authority to sign checks. The check was for defendant's personal expenses.

A divided Appellate Division affirmed defendant's conviction. We agree with the dissenters that forgery was not proved.

II.

In *People v Levitan* (49 NY2d 87, 90 [1980]), we held that "[w]hile it is true that in certain rare instances one may commit a forgery by signing one's own name, this is so only where the signing is done in such a way as to deceive others into believing that the signer is in fact some third party." Levitan signed her name to deeds purporting to convey real property she did not own. In reversing her forgery conviction, we noted that "no pretense was ever made that the signatory was anyone other than defendant" (*id.* at 89). We also observed that "[u]nder our present Penal Law, as under prior statutes and the common law, a distinction must be drawn between an instrument which is falsely made, altered or completed, and an instrument which contains misrepresentations not relevant to the identity of the maker or drawer of the instrument" (*id.* at 90).

Although the Legislature has updated the statute³ to cover credit cards (*see* L 1984, ch 949, § 1) and certain other technological advances (*see* L 1996, ch 357, § 4), it has not abrogated *Levitan's* classic approach to forgery. In defining forgery, Penal Law § 170.00 (4) provides, in pertinent part, that "[a] person 'falsely makes' a written instrument when he makes or draws a complete written instrument . . . which purports to be an *authentic creation of its ostensible maker or drawer*, but which is not such . . . because the ostensible maker or drawer

ments to a Madison County address. Defendant was a resident of Oneida County. In rendering its verdict, the jury announced that defendant was "Not guilty. No jurisdiction" with respect to the first count, grand larceny. As the foreman continued to read the verdicts on other counts, he said "Not guilty." At that point, the judge interrupted and asked whether the jury found defendant not guilty or whether there was a lack of jurisdiction. The foreman then explained that the jury had found no jurisdiction as to 19 of the counts (presumably because defendant's acts did not take place in Montgomery County). However, no question regarding jurisdiction or the form of the verdict is before us. The appeal deals only with whether defendant committed forgery by signing the check in question.

3. Our current forgery statutes have their roots in Penal Code of 1881 §§ 509-527.

. . . did not authorize the making or drawing thereof” (emphasis supplied).

The terms “authentic creation” and “ostensible maker” are pivotal. In most prosecutions, the forger, acting without authority, signs someone else’s name. Thus, in a typical case, the forger, John Doe, wrongfully signs Richard Roe’s name, (mis)leading the payee into believing that the check is the authentic creation of Richard Roe, its ostensible maker. Roe, of course, has not granted Doe any such authority and in many such instances has never even met Doe. In this simple formulation, the ostensible maker (Roe) and the actual maker (Doe) are two different people. If, however, the ostensible maker and the actual maker are one and the same, there can be no forgery under the statute.

Not surprisingly, the parties here disagree as to who is the ostensible maker. The prosecution argues that it is Herkimer Precut; defendant argues that he, the actual maker, is also the ostensible maker. They also disagree as to whether the check was the authentic creation of its ostensible maker.

The People contend that Herkimer Precut is the ostensible maker because its name appears on the check as owner of the account. Further, they argue that because defendant lacked authority to sign company checks, the check in question was not the authentic creation of the company, and a forgery is made out. Defendant counters that the check was an authentic creation of its ostensible maker and that because he signed his own name, he cannot be guilty of forgery: as the ostensible maker, he did not pretend to be anyone other than himself—the actual maker. Moreover, defendant argues that even if Herkimer Precut was the “ostensible maker” of the check, defendant’s relationship with Herkimer Precut was sufficient to make the check the “authentic creation” of the company. In *People v Briggins* (50 NY2d 302, 307 [1980]), we observed that “when an individual signs a name to an instrument and acknowledges it as his own, that *person* is the ‘ostensible maker.’ ” Although *Briggins* involved a slightly different setting (and not a corporate check, as here), its language along with the statute’s history and purpose, informs our analysis and supports defendant’s position.

Forgery is a crime because of the need to protect signatures and make negotiable instruments commercially feasible (*see generally* Kessler, *Forged Indorsements*, 47 Yale LJ 863 [1938]).

In its common-law roots, forgery had little to do with abstract questions of authority.⁴ At Queen's Bench, Chief Justice Cockburn wrote that forgery "by universal acceptation . . . is understood to mean . . . the making or altering of a writing so as to make the writing or alteration purport to be the act of some other person, which it is not" (*In re Windsor*, 6 Best & Sm 522, 122 Eng Rep 1288, 1290 [1865]). As one treatise explains, "it is not forgery for a person to sign his own name to an instrument, and falsely and fraudulently represent that he has authority to bind another by doing so" and "the signer is guilty of false pretenses only" (Clark and Marshall, *A Treatise on the Law of Crimes* § 12.34, at 957 [7th ed 1967]). Although statutes vary, most jurisdictions in this country have tended to follow the *Windsor* approach to forgery (see e.g. 2 Wharton, *Criminal Law* § 859, at 1162-1163 [12th ed 1932]).

In *Gilbert v United States* (370 US 650 [1962]), the Court considered whether a federal forgery statute included misrepresented agency. An accountant endorsed a government check written to a client by signing the name of the payee and then his own, as agent. He had no authority to do so. Under the federal statute, forgery "does not embrace a purported, but misrepresented, agency endorsement" (*id.* at 652). Recognizing the common-law origins of that statute, the Court (*id.* at 655) quoted *Regina v White* (2 Car & K 404, 413, 175 Eng Rep 167, 170 [1847]), which held that "indorsing a bill of exchange under a false assumption of authority to indorse it per procuracion, is not forgery, there being no false making."⁵

As the court noted in *United States v Young* (282 F3d 349, 351-352 n 1 [5th Cir 2002]), "[t]he majority of state law cases hold that signing one's own name on one's own check without

4. Lord Coke illustrated this point, describing the crime's derivation: "[t]o forge is metaphorically taken from the smith who beateth upon his anvill, and forgeth what fashion or shape he will: the offence . . . is called *crimen falsi*, and the offender *falsarius*, and the Latin word to forge is *falsare* or *fabricare*. And this is properly taken when the act is done in the name of another person" (3 Edward Coke, *Institutes of the Laws of England*, ch 75, at 168 [1644]; see also 4 William Blackstone, *Commentaries on the Laws of England*, at 245 [1769] [defining forgery as "the fraudulent making or alteration of a writing to the prejudice of another man's right"]).

5. See also *Greathouse v United States*, 170 F2d 512, 514 (4th Cir 1948) (holding that "[i]t is well established that forgery contemplates a writing which falsely purports to be the writing of another person than the actual maker" and therefore "it is not forgery for one, with intent to defraud, to issue a check in his own name on a bank in which he has no funds"); Edwards, Annotation, *Commerce—"Forged Security,"* 4 ALR Fed 793, 803, § 6.

sufficient funds to cover the amount of the check does not constitute forgery. In these cases, the person writing the check is not trying to pass himself off as someone else. . . . The same principle applies when an agent signs a company check without actual authority to do so.”⁶ We conclude that authority and authenticity are not the same thing. Defendant did not commit forgery merely by exceeding the scope of authority delegated by the corporation.⁷ Our interpretation leaves no gap in the Penal Law. Although embezzlers who use their own names to sign checks beyond their authority are not guilty of forgery in New York, their conduct would ordinarily fall within our larceny statutes (*see* Penal Law § 155.00 *et seq.*; *see also*, n 2 at 595).

Moreover, importing issues of authority into the statute, without express legislative language, would create vexing problems in adjudging forgery cases. If, for example, a corporate officer authorized to sign corporate checks does so for a personal purchase, is that forgery? Would an officer authorized to sign checks up to \$20,000 who signs a check for \$25,000 be guilty of forgery? While the prosecution argues that we should read our statute to justify convictions in those instances, it has not identified any New York decision interpreting the statute that expansively.⁸

6. (Citing *Levitan*, 49 NY2d 87 [1980]; *see also* *People v Mann*, 75 NY 484 [1878]; *Matter of Heilbonn*, 1 Parker Crim Rep 429, 434 [Sup Ct, NY 1853]; *Commonwealth v Baldwin*, 77 Mass 197, 198, 11 Gray 197 [1858]; *People v Bendit*, 111 Cal 274, 43 P 901 [1896]; *State v Wilson*, 28 Minn 52, 56, 9 NW 28, 30 [1881]; *People v James*, 178 Colo 401, 405, 497 P2d 1256, 1258 [1972]; *State v Taylor*, 46 La Ann 1332, 16 So 190 [1894]; *Mallory v State*, 179 Tenn 617, 168 SW2d 787 [1943]; *Sales v State*, 628 SW2d 796, 798-799 [Tex Crim App 1982]; *Leslie v State*, 10 Wyo 10, 24, 69 P 2, 3 [1902]; *Charter Bank Northwest v Evanston Ins. Co.*, 791 F2d 379 [5th Cir 1986]; *In re Tully*, 20 F 812, 814-815 [SD NY 1884]; Greenberg, New York Criminal Law § 16:3, at 684 [6 West’s NY Prac Series 2002]; 2 Groble, Callaghan’s Criminal Law in New York § 26:06 [3d ed 1998]; 10 Zett, New York Criminal Practice ¶ 111.1 [2], at 111-4; 37 CJS, Forgery § 13, at 76.) While some states have adopted a contrary, broad conception of forgery, they have tended to do so based on statutes that have expanded the crime beyond its common-law boundaries (*see e.g.* *People v Susalla*, 392 Mich 387, 220 NW2d 405 [1974]; *In re Clemons*, 168 Ohio St 83, 85, 151 NE2d 553, 555-556 [1958]).

7. We recognize that theft of a check might be different from embezzlement, but have no occasion to decide whether it would be forgery to sign one’s own name on a corporate check when having no connection with the corporation.

8. In *People v Cannarozzo* (62 AD2d 503 [4th Dept 1978]), the Court properly reversed a conviction for criminal possession of a forged instrument.

(n. cont’d)

Accordingly, the order of the Appellate Division should be reversed and the indictment dismissed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

An agent of the Commissioner of Motor Vehicles issued a drivers license to defendant without requiring him to pass the requisite tests. Even though the agent did not have authority to issue licenses without giving the tests, the Court held that the license was not a forgery. The ostensible and actual maker of the license were the same: an agent of the Commissioner of Motor Vehicles. This Court affirmed without opinion (*see* 48 NY2d 687 [1979]; *accord Commonwealth v Apalakis*, 396 Mass 292, 486 NE2d 669 [1985]). We note that in the case before us neither the majority at the Appellate Division nor the prosecution relies on *Cannarozzo*. Nevertheless, to the extent the Appellate Division's dictum in *Cannarozzo* suggests it would be forgery for an agent to sign one's own name in excess of authority, we decline to follow that reasoning.

[814 NE2d 37, 781 NYS2d 59]

PERRY FRANKEL, Respondent, v KARYN FRANKEL, Defendant.
SCHLISSEL, OSTROW, KARABATOS, POEPPLEIN & TAUB, PLLC,
Nonparty Appellant.

Argued June 2, 2004; decided June 29, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 8, 2003. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Nassau County (Anthony F. Marano, J.), which had granted the application of defendant's former attorneys for an award of counsel fees against plaintiff and directed a hearing before a referee to fix reasonable fees, and (2) denied the application.

Frankel v Frankel, 309 AD2d 65, reversed.

HEADNOTE

Husband and Wife — Counsel Fees — Standing of Discharged Attorney to Seek Fees

Domestic Relations Law § 237 (a) authorized the attorney who was discharged without cause by defendant, the nonmonied spouse, to petition the court for a fee award from plaintiff, the monied spouse, in the parties' divorce action. Although the statute is silent as to whether an attorney who has been discharged without cause has the right to seek counsel fees, it was designed to redress the economic disparity between the monied spouse and the nonmonied spouse. Interpreting the statute to preclude fee applications by discharged attorneys would discourage attorneys from representing nonmonied litigants, thereby thwarting the statutory intent.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Divorce and Separation §§ 701, 725, 726, 735, 745.

CARMODY-WAIT 2d, Spousal Support, Counsel Fees, Child Support, and Property Distribution in Matrimonial Actions §§ 118:119, 118:125, 118:130, 118:132.

2 LAW AND THE FAMILY NEW YORK (2d ed) §§ 3:22, 3:114.

McKINNEY'S, Domestic Relations Law § 237 (a).

NY JUR 2d, Domestic Relations §§ 2440, 2445, 2457.

ANNOTATION REFERENCE

See ALR Index under Attorneys' Fees; Divorce and Separation.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: domestic /4 237 /s attorney counsel /2 fee &
discharged

POINTS OF COUNSEL

Schlissel, Ostrow, Karabatos, Poepplein, Cender & Fisher, PLLC, Garden City (*Stephen W. Schlissel, Barry J. Fisher, Lisa R. Nakdai and Michael J. Ostrow* of counsel), for appellant. I. Domestic Relations Law § 237 (a) does, and was specifically amended to, protect attorneys discharged without cause. (*Matter of New York Post Corp. v Leibowitz*, 2 NY2d 677; *People ex rel. Wood v Lacombe*, 99 NY 43; *Surace v Danna*, 248 NY 18; *Eck v United Arab Airlines*, 15 NY2d 53; *Matter of Petterson v Daystrom Corp.*, 17 NY2d 32; *Price v Price*, 69 NY2d 8; *Matter of Guido v New York State Teachers' Retirement Sys.*, 94 NY2d 64; *Weingarten v Board of Trustees of N.Y. City Teachers' Retirement Sys.*, 98 NY2d 575; *Klein v Eubank*, 87 NY2d 459; *People v Finnegan*, 85 NY2d 53.) II. The Appellate Division's decision is inconsistent with the holdings of this Court in *Klein v Eubank* (87 NY2d 459 [1996]). (*Intar-Tass Russian News Agency v Russian Kurier, Inc.*, 140 F3d 442; *Shalom Toy v Each & Every One of Members of N.Y. Prop. Ins. Underwriting Assn.*, 239 AD2d 196.) III. The firm's rights under Domestic Relations Law § 237 (a) were preserved in prior court decisions and at the time the firm was discharged. (*Hogan v Hogan*, 194 AD2d 520; *Redgrave v Redgrave*, 304 AD2d 1062; *Gleckman v Kaplan*, 215 AD2d 527.) IV. The order of the Appellate Division should be reversed as being contrary to the law and public policy. (*O'Shea v O'Shea*, 93 NY2d 187; *Charpié v Charpié*, 271 AD2d 169; *Katzman v Katzman*, 284 AD2d 160; *Sadofsky v Sadofsky*, 78 AD2d 520; *Hogan v Hogan*, 194 AD2d 520; *Guardian Life Ins. Co. of Am. v Schaefer*, 70 NY2d 888; *Monteleon v Monteleon*, 163 AD2d 372; *Klein v Eubank*, 87 NY2d 459.) V. The order of the Appellate Division must be reversed. (*Klein v Eubank*, 87 NY2d 459; *O'Shea v O'Shea*, 93 NY2d 187.)

Alexander Potruch, L.L.C., Mineola (*Alexander Potruch and Michael C. Daab* of counsel), for respondent. I. Domestic Relations Law § 237 (a) does not grant a "discharged" or "former" attorney the right to seek an award of counsel fees in its own name as against the adversary spouse. (*O'Shea v O'Shea*, 93 NY2d 187; *Charpié v Charpié*, 271 AD2d 169; *Katzman v Katzman*, 284 AD2d 160; *Sadofsky v Sadofsky*, 78 AD2d 520; *Bartow*

v Bartow, 212 AD2d 564; *Hogan v Hogan*, 194 AD2d 520; *Monteleon v Monteleon*, 160 AD2d 372; *American Home Assur. Co. v Levy*, 179 Misc 2d 773; *Weiss v Manfredi*, 83 NY2d 974; *Bluntt v O'Connor*, 291 AD2d 106.) II. “Under the circumstances of this case” appellant’s right to make an application against respondent was not preserved, and a reversal of the Appellate Division’s determination will lead to unintended, negative consequences which could not have been intended by the Legislature. (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893; *DeCabrera v Cabrera-Rosete*, 70 NY2d 879.) III. The facts in the case of *Klein v Eubank* (87 NY2d 459 [1996]) do not parallel the facts of the instant matter and do not provide a basis to reverse the majority opinion of the Appellate Division. (*Sadofsky v Sadofsky*, 78 AD2d 520; *Haser v Haser*, 271 AD2d 253; *Miller v Kassatly*, 216 AD2d 260; *Kaplan v Reuss*, 113 AD2d 184.)

Elliott Scheinberg, New York City, for American Academy of Matrimonial Lawyers, New York Chapter, amicus curiae. I. Counsel fees have long been acknowledged as a failsafe to financial disparity which permits the nonmonied spouse, typically the wife, to participate meaningfully in the litigation. (*Hinden v Hinden*, 122 Misc 2d 552; *O’Shea v O’Shea*, 93 NY2d 187; *DeCabrera v Cabrera-Rosete*, 70 NY2d 879; *Charpié v Charpié*, 271 AD2d 169.) II. *Frankel v Frankel* (309 AD2d 65 [2003]) is contrary to codified principles of statutory construction that the legislative intent be effectuated, first and foremost, and to the precedent authority of *O’Shea v O’Shea* (93 NY2d 187 [1999]) and *DeCabrera v Cabrera-Rosete* (70 NY2d 879 [1987]) which held that the elimination of the words “during the pendency of the action” broadened the scope of the statute with the legislative intent. (*Matter of Albano v Kirby*, 36 NY2d 526; *Matter of Hogan v Culkin*, 18 NY2d 330; *Katzman v Katzman*, 284 AD2d 160.) III. Decisional authority, like its statutory counterpart, has steadfastly held that an absence of ambiguity in a statute does not mandate a substitution for reasoned interpretation: effectuating the legislative intent is the preeminent responsibility. (*Fumarelli v Marsam Dev.*, 92 NY2d 298; *Matter of Petterson v Daystrom Corp.*, 17 NY2d 32; *New York State Bankers Assn. v Albright*, 38 NY2d 430; *Price v Price*, 69 NY2d 8; *Rankin v Shanker*, 23 NY2d 111; *Matter of Albano v Kirby*, 36 NY2d 526; *Matter of Hogan v Culkin*, 18 NY2d 330; *Matter of Sutka v Connors*, 73 NY2d 395; *Matter of Scotto v Dinkins*, 85 NY2d 209.) IV. Statutes are presumed not to work hardships nor injustice, nor are they created in a vacuum to leave parties without a

remedy; decisional authority and the Legislature have been consistent in their efforts to prevent unjust results to counsel and clients; if permitted to stand, *Frankel v Frankel* (309 AD2d 65 [2003]) will harm counsel and litigants. (*Sadofsky v Sadofsky*, 78 AD2d 520; *Haser v Haser*, 271 AD2d 253.) V. It is settled law that a timely fee application is key to the preservation of an outgoing attorney's rights to a hearing within the context of the action; although timely asserted *Frankel v Frankel* (309 AD2d 65 [2003]) resulted in a forfeiture of the right. (*Sadofsky v Sadofsky*, 78 AD2d 520; *Pratt v Pratt*, 282 AD2d 941; *Matter of Buono v Fantacone*, 252 AD2d 917; *Shapiro v Shapiro*, 179 AD2d 525; *Gleckman v Kaplan*, 215 AD2d 527; *New York Life Ins. Co. v Aitkin*, 125 NY 660; *Matter of Salvano v Merrill Lynch, Pierce, Fenner & Smith*, 85 NY2d 173; *Rubinfeld v Rubinfeld*, 279 AD2d 153; *Bartow v Bartow*, 212 AD2d 564; *Zielinski v Zielinski*, 252 AD2d 800.) VI. Outgoing counsel in *Frankel v Frankel* (309 AD2d 65 [2003]) seeks to preserve a procedural right not to immediately enforce a substantive one to the client's detriment as seems to concern the majority; these concerns can be easily remedied without prejudice to counsel. (*O'Shea v O'Shea*, 93 NY2d 187; *DeCabrera v Cabrera-Rosete*, 70 NY2d 879.) VII. Pursuant to the principles of statutory construction Domestic Relations Law § 237 (a) and Judiciary Law § 475 are statutes in pari materia which must be accorded analogous and parallel readings because they seek to protect the same class of people—attorneys; *Frankel v Frankel* (309 AD2d 65 [2003]) contravenes this Court's ruling in *Klein v Eubank* (87 NY2d 459 [1996]) under section 475. (*Kaplan v Reuss*, 113 AD2d 184, 68 NY2d 693.) VIII. *Frankel v Frankel* (309 AD2d 65 [2003]) erred in ruling that neither statute nor case law grants a discharged attorney a right to apply in his or her own name for retrospective fees against the adversary spouse, either within or without the matrimonial action. (*Klein v Eubank*, 87 NY2d 459; *Haser v Haser*, 271 AD2d 253; *Kaplan v Reuss*, 113 AD2d 184, 68 NY2d 693.) IX. Domestic Relations Law § 237 (a) places counsel for the nonmonied spouse in limited privity directly with the other spouse. (*Sadofsky v Sadofsky*, 78 AD2d 520; *Haser v Haser*, 271 AD2d 253.) X. *Frankel v Frankel* (309 AD2d 65 [2003]) not only devastates counsel's procedural rights but it also assaults his or her substantive rights by exposing uncollected fees to dischargeability in bankruptcy. (*In re Spong*, 661 F2d 6.)

OPINION OF THE COURT

ROSENBLATT, J.

In matrimonial litigation, counsel fee awards have helped

reduce what would otherwise be a substantial advantage to the monied spouse. Pursuant to Domestic Relations Law § 237 (a), a lawyer who represents a nonmonied spouse may seek attorneys' fees from the monied spouse in the divorce action. This appeal raises the question whether attorneys may do so after their clients have discharged them without cause. A divided Appellate Division said no. We disagree and reverse.

The Frankels were married in December 1988. The husband was a cardiologist and the wife a homemaker. The husband filed for divorce in 1998, and Supreme Court granted it in 2001. The wife paid her lawyer an initial retainer of \$5,000, but the billings soon went well beyond that amount. In June 1999, Supreme Court awarded the wife's attorney an interim fee of \$2,500. Nearly two years later, after a 32-day custody trial, the court granted an additional interim counsel fee of \$25,000 on March 12, 2001, to be paid by the husband at the rate of \$1,500 per month. Eighteen days later, the wife discharged her lawyer without cause. After taking into account the retainer and the two interim awards, the wife's lawyer claimed that she owed him considerably more and proceeded against the husband for that amount pursuant to Domestic Relations Law § 237 (a).¹ The court ruled that even though the wife's attorney had been discharged, he could look to the husband for counsel fees. The court then ordered a hearing before a special referee to determine the appropriate award. On the husband's appeal, the Appellate Division reversed, holding that "former counsel has no standing to pursue the adversary spouse within the matrimonial action" (309 AD2d 65, 69 [2d Dept 2003]).

1. We note that more frequent interim counsel fee awards would prevent accumulation of bills. As the Committee to Examine Lawyer Conduct in Matrimonial Actions (Committee) noted in a report, "[t]he practice of many judges to defer [pendente lite counsel fee applications] to the trial court essentially delays the awarding of fees until the final settlement or judgment, and often compromises the nonmonied spouse's ability to adequately litigate the case" (Report of Committee, at 36 [May 4, 1993]). The Committee further observed that if applications for legal fees are denied or deferred, "the attorney for the nonmonied spouse is left not only without payment for services rendered but without reasonable expectation as to how or whether payment will be made. Considering the protracted nature of divorce actions, both client and attorney are left in limbo for an indefinite period of time, a circumstance which can drive a wedge between attorney and client" (*id.* at 37; *see also* Scheinkman, Practice Commentaries, McKinney's Cons Laws of NY, Book 14, Domestic Relations Law C237:4 [1999]; Uniform Rules for Trial Cts [22 NYCRR] § 202.16 [k]).

Domestic Relations Law § 237 (a) provides, in pertinent part, that

“[i]n any action or proceeding . . . for a divorce . . . the court may direct either spouse . . . to pay such sum or sums of money directly to the attorney of the other spouse to enable that spouse to carry on or defend the action or proceeding as, in the court’s discretion, justice requires, having regard to the circumstances of the case and of the respective parties.”

The statute goes on to say that “[a]ny applications for counsel fees and expenses may be maintained by the attorney for either spouse in [counsel’s] own name in the same proceeding.” The provision is silent, however, as to whether an attorney who has been discharged without cause has the right in the same proceeding to seek counsel fees.

A divided Appellate Division concluded that, because he was discharged, the wife’s attorney had no standing to proceed against the husband for counsel fees. The Court interpreted Domestic Relations Law § 237 (a) as authorizing only “the current attorney of record” to seek counsel fees against a client’s spouse (309 AD2d at 67). Reading the provision in light of our precedents and the policy interests surrounding the statute, we agree with the Appellate Division dissenters that Domestic Relations Law § 237 (a) allows an attorney who was discharged without cause to proceed against the monied spouse in the matrimonial litigation.²

In *O’Shea v O’Shea* (93 NY2d 187 [1999]), we considered whether a trial court had discretion to award fees under Domestic Relations Law § 237 (a) for legal services rendered before and after the divorce action. Although the predecessor statute, former Civil Practice Act § 1169, included language limiting fee awards to services rendered “during the pendency” of an action, this clause does not appear in the current statute. In concluding that courts could award counsel fees for services performed both before and after the divorce action itself, we looked not only to this textual change but also to the policy underlying fee shifting in the divorce context. This is a dramatic departure from the American rule that usually requires litigants

2. We note that in the context of Judiciary Law § 475, we have already held that a discharged attorney may enforce his statutory charging lien (see *Klein v Eubank*, 87 NY2d 459, 462 [1996]).

to pay their own legal expenses. We explained that giving courts the power to order a spouse to pay the other's counsel fees "is designed to redress the economic disparity between the monied spouse and the non-monied spouse" and ensure that "the matrimonial scales of justice are not unbalanced by the weight of the wealthier litigant's wallet" (*id.* at 190).

That is true here. If lawyers terminated without cause lose their right to petition the court for a fee award from an adversary spouse, the less affluent spouse would suffer the consequences. The spouse with ready and ample funds would have a wide choice of counsel, and the financial wherewithal to maintain the litigation, while the nonmonied spouse would struggle to find a lawyer who might have to go unpaid. A matrimonial lawyer may be willing to carry a client on its accounts receivable books, but not as to accounts that will prove unreceivable. In this regard, the Legislature designed Domestic Relations Law § 237 (a) to eliminate the disparity between the monied and the nonmonied spouse. The husband's interpretation would thwart the statutory intent.

As amicus American Academy of Matrimonial Lawyers points out, the realities of contentious matrimonial litigation require a regular infusion of funds. Although this is a regrettable byproduct of divorce, interpreting the statute to preclude applications like the one at issue here would confound the collection process and discourage attorneys from representing nonmonied litigants.

The husband argues that a rule allowing a wife's discharged attorney to proceed against him would impede settlements. We disagree. Allowing the application would enable a global settlement that takes into account property distribution and other equities that affect the outcome. Otherwise, the case would be "settled," leaving unadjudicated the amount of the attorney's rightfully earned fees and shifting the venue to a plenary proceeding—another lawsuit, with the unpleasant prospect of a judgment against the nonmonied spouse.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the order of Supreme Court, Nassau County, reinstated.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[814 NE2d 404, 781 NYS2d 234]

In the Matter of GREGORY PECORARO, Respondent, v BOARD OF
APPEALS OF TOWN OF HEMPSTEAD, Appellant.

Argued March 23, 2004; decided May 4, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 21, 2003. The Appellate Division modified, on the law, an order of the Supreme Court, Nassau County (Anthony L. Parga, J.), entered in a proceeding pursuant to CPLR article 78, which annulled respondent's determination denying petitioner's application for an area variance and remitted the matter to respondent for an additional hearing. The modification consisted of deleting the provision remitting the matter to respondent for an additional hearing and directing the Board of Appeals of the Town of Hempstead to issue the area variance. The Appellate Division affirmed the order as modified.

Matter of Pecoraro v Board of Appeals of Town of Hempstead, 304 AD2d 761, reversed.

HEADNOTE

Municipal Corporations — Zoning — Variance — Area Variance — Abuse of Discretion

Respondent Board of Appeals did not abuse its discretion, as a matter of law, in denying petitioner's application for an area variance to reduce the lot area requirement for his unimproved parcel of land, which was rendered nonconforming as the result of an illegal subdivision, to allow a 33.3% deficiency in lot area and a 27.3% deficiency in frontage. Respondent reasonably considered all of the factors delineated in Town Law § 267-b (3) and weighed petitioner's interest against the interest of the neighborhood. Other parcels within the 200-foot radius of petitioner's parcel overwhelmingly conformed to or were larger than the zoning requirements, supporting respondent's conclusion that the area variance would have a negative impact on the character of the neighborhood. Moreover, respondent properly determined that the substantiality of the requested variance weighed against granting it, and that the need for the variance was self-created.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Zoning and Planning §§ 807, 819, 824, 827, 828,
950.

CARMODY-WAIT 2d, Proceeding Against a Body or Officer
§ 145:1484.

McKINNEY'S, Town Law § 267-b (3).

NY JUR 2d, Buildings, Zoning, and Land Controls §§ 346–349, 351–355, 357, 359, 477.

NEW YORK REAL PROPERTY SERVICE §§ 48:60, 48:124.

ANNOTATION REFERENCE

Construction and application of zoning laws setting minimum lot size requirements. 2 ALR5th 553.

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Query: area /2 variance & reduc! /s lot /3 area

POINTS OF COUNSEL

Joseph J. Ra, Town Attorney, Hempstead (Charles S. Kovit of counsel), for appellant. I. The lower courts' decisions constituted an impermissible substitution of their opinions for that of the Board of Appeals. (*Matter of Ifrah v Utschig*, 98 NY2d 304; *Matter of Fuhst v Foley*, 45 NY2d 441; *Matter of Easy Home Program v Trotta*, 276 AD2d 553; *Matter of Retail Prop. Trust v Board of Zoning Appeals of Town of Hempstead*, 98 NY2d 190; *Matter of Market Sq. Props. v Town of Guilderland Zoning Bd. of Appeals*, 66 NY2d 893; *Matter of Twin County Recycling Corp. v Yevoli*, 90 NY2d 1000.) II. The practical effect of the variance is to rezone the minimum lot size in the 200-foot radius area back to 4,000 square feet. III. The lower courts overemphasized the effect of the applicant's unopposed expert upon the Board of Appeals' deliberation. (*Matter of Necker Pottick, Fox Run Woods Bldrs. Corp. v Duncan*, 251 AD2d 333.)

Forchelli, Curto, Schwartz, Mineo, Carlino & Cohen, LLP, Mineola (Joseph F. Buzzell and James A. Boglioli of counsel), for respondent. I. Balancing the paramount interest of the applicant in achieving any use of the subject property against the interest of the surrounding community, which would *not* suffer any "detriment," demands that Mr. Pecoraro's application should have been granted. (*Matter of Sasso v Osgood*, 86 NY2d 374; *Matter of Cohen v Board of Appeals of Vil. of Saddle Rock*, 100 NY2d 395; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of Prudco Realty Corp. v Palermo*, 60 NY2d 656; *Matter of Frank v Scheyer*, 227 AD2d 558; *Matter of Necker Pottick, Fox Run Woods Bldrs. Corp. v Duncan*, 251 AD2d 333; *Matter of Peccoraro v Humenik*, 258 AD2d 465; *Matter of Shaughnessy v Roth*, 204 AD2d 333; *Matter of Sautner v*

Amster, 284 AD2d 540; *Matter of Weir v Zoning Bd. of Appeals of Town of Westport*, 263 AD2d 752.) II. The mere presence of community opposition does *not* provide a valid basis for the denial of a land use application. (*Matter of Ifrah v Utschig*, 98 NY2d 304; *Matter of Sasso v Osgood*, 86 NY2d 374; *Matter of Cohen v Board of Appeals of Vil. of Saddle Rock*, 100 NY2d 395; *Matter of Retail Prop. Trust v Board of Zoning Appeals of Town of Hempstead*, 98 NY2d 190; *Matter of Inlet Homes Corp. v Zoning Bd. of Appeals of Town of Hempstead*, 304 AD2d 758, 100 NY2d 516; *Matter of Collinwood Estates v Wright*, 303 AD2d 679; *Matter of Market Sq. Props. v Town of Guilderland Zoning Bd. of Appeals*, 66 NY2d 893; *Matter of Pleasant Val. Home Constr. v Van Wagner*, 41 NY2d 1028; *Matter of Hugel v Campbell*, 276 AD2d 488; *Matter of Eddy v Niefer*, 297 AD2d 410.) III. The present matter does *not* involve or turn on single and separate ownership. (*Matter of Allen v Adami*, 39 NY2d 275; *Matter of Green v Planning Bd. of Town of New Castle*, 220 AD2d 415; *Matter of DeTroia v Schweitzer*, 87 NY2d 338; *Matter of Khan v Zoning Bd. of Appeals of Vil. of Irvington*, 87 NY2d 344; *Matter of Shaughessy v Roth*, 204 AD2d 333; *Matter of Frank v Scheyer*, 227 AD2d 558; *Matter of Necker Pottick, Fox Run Woods Bldrs. Corp. v Duncan*, 251 AD2d 333; *Matter of Sautner v Amster*, 284 AD2d 540; *Matter of Buckley v Amityville Vil. Clerk*, 264 AD2d 732.) IV. The old file has *no* bearing on the present application due to the changes in fact and a change in law. (*Matter of Sasso v Gamble*, 181 AD2d 988; *Matter of Josato, Inc. v Wright*, 288 AD2d 384; *Matter of Peccoraro v Humenik*, 258 AD2d 465; *Matter of Durler v Accettella*, 165 AD2d 872.)

OPINION OF THE COURT

G.B. SMITH, J.

The sole issue presented in this case is whether the Board of Appeals of the Town of Hempstead abused its discretion, as a matter of law, in denying petitioner's application for an area variance. We conclude that the Board did not abuse its discretion. We therefore reverse the order of the Appellate Division and dismiss the petition.

Petitioner Gregory Pecoraro entered into a contract for the purchase of an unimproved parcel of land located on the north side of Madison Avenue in West Hempstead, Town of Hempstead. The contract was contingent on petitioner obtaining an area variance and a permit to build a single-family dwelling on the property. The subject property has a total land area of 4,000 square feet, with 40 feet of frontage width and 100 feet of depth.

The property is located within a “B” residential zoning district, which requires 6,000 square feet of lot area, including 55 feet of frontage width, a front yard setback of 26 feet, a total side yard setback of 15 feet, an individual side yard setback of five feet and a building limit of 30% of the lot area.

The subject property was once in common ownership with the improved parcel adjoining it to the west. The improved parcel has 60 feet of frontage width and 100 feet of depth. In 1959, the overall plot was illegally subdivided by the common owner, who conveyed the improved parcel to Abe Shenitzer and his wife, Sarah, and simultaneously conveyed the substandard parcel to Sarah and her mother, Dora Pomerantz. In 1969, Sarah Shenitzer and Pomerantz sought, and were denied, an area variance to build a single-family dwelling on the substandard parcel. In 1970, Supreme Court upheld the denial of the variance. In May 1980, petitioner’s contract vendor acquired the substandard parcel at a tax sale by the payment of two years’ taxes. Petitioner subsequently entered into a contract with the vendor to purchase the property, subject to obtaining the variance, for \$76,000.

Petitioner applied for a variance to reduce the lot area requirement from 6,000 square feet to 4,000 square feet and to reduce the width requirement from 55 feet to 40 feet. Petitioner’s initial house plan also required a variance for side yard setbacks. At a hearing before respondent Board of Appeals, petitioner introduced expert testimony that the proposed development was in character with the neighborhood and would not negatively affect community property values. He introduced evidence that behind the subject lot, there existed four parcels that were also 40 feet by 100 feet. He also provided proof that the proposed development would not disturb the physical or environmental characteristics of the surrounding area.

Several community residents appeared at the hearing to oppose the application and submitted a petition signed by 214 members of the community stating they were “in agreement with the Supreme Court of Nassau County decision that granting a variance ‘would be contrary to and have an adverse effect on the character of the area.’ ” The West Hempstead Civic Association also opposed the area variance based on the Board’s 1969 denial of a similar request. After the hearing, but before the Board rendered its decision, petitioner submitted plans for a smaller house that did not require side yard setback variances.

Considering only petitioner's revised house plans, the Board denied petitioner's application. The Board concluded that the variance sought was a substantial one, requiring a 33.3% deficiency in lot area and a 27.3% deficiency in frontage width. The Board further concluded that the character of the area had not changed since its 1969 determination and that the neighborhood surrounding the subject property was overwhelmingly conforming to or larger than the zoning requirements. The Board thus held that granting the variance would have an adverse effect on the character of the neighborhood.

Petitioner commenced this CPLR article 78 proceeding, seeking an annulment of the Board's determination. Supreme Court granted the petition, annulled the decision and remanded the matter for further proceedings. The court held that the Board improperly denied the variance based on "generalized community opposition" and failed to provide specific reasons for its decision. The court further concluded that the Board's denial of the variance in 1969 did not bar the granting of the variance here. The court, however, remanded the matter so that the Board could conduct a hearing on the application based on the final plans submitted to the Board. Both the Board and petitioner appealed.

The Appellate Division modified Supreme Court's order on the law by deleting the provision remitting the matter for an additional hearing and directing the Board to issue petitioner an area variance, and as modified, affirmed. The Court determined that no evidence was presented at the hearing upon which the Board could conclude that granting the area variance would adversely effect the character of the neighborhood. It also noted that no empirical data or expert testimony had been introduced to refute the evidence presented by petitioner. However, the Court decided that further proceedings were unnecessary because the final plans for petitioner's house had been considered by the Board in reaching its conclusion, and the Court ordered the Board to issue the area variance. This Court granted leave to appeal, and we now reverse.

Pursuant to Town Law § 267-b (3), when determining whether to grant an area variance, a zoning board of appeals must weigh the benefit of the grant to the applicant against the detriment to the health, safety and welfare of the neighborhood or community if the variance is granted (see *Matter of Ifrah v Utschig*, 98 NY2d 304, 307 [2002]; *Matter of Sasso v Osgood*, 86 NY2d 374, 382, 384 [1995]). The zoning board is also required

to consider whether (1) granting the area variance will produce an undesirable change in the character of the neighborhood or a detriment to nearby properties; (2) the benefit sought by the applicant can be achieved by some method, feasible to the applicant, other than a variance; (3) the requested area variance is substantial; (4) granting the proposed variance would have an adverse effect or impact on physical or environmental conditions in the neighborhood or district; and (5) the alleged difficulty is self-created. While the last factor is not dispositive, it is also not irrelevant (*see Matter of Ifrah v Utschig*, 98 NY2d at 308).

This Court has often noted that local zoning boards have broad discretion in considering applications for area variances and the judicial function in reviewing such decisions is a limited one. Courts may set aside a zoning board determination only where the record reveals that the board acted illegally or arbitrarily, or abused its discretion, or that it merely succumbed to generalized community pressure (*see Matter of Ifrah v Utschig*, 98 NY2d at 308; *Matter of Twin County Recycling Corp. v Yevoli*, 90 NY2d 1000, 1002 [1997]; *Matter of Cowan v Kern*, 41 NY2d 591, 598 [1977]). A determination of a zoning board should be sustained on judicial review if it has a rational basis and is supported by substantial evidence (*see Matter of Ifrah v Utschig*, 98 NY2d at 308; *Matter of Fuhst v Foley*, 45 NY2d 441, 444 [1978]). In *Matter of Cowan v Kern*, this Court stated the rationale for this rule:

“The crux of the matter is that the responsibility for making zoning decisions has been committed primarily to quasi-legislative, quasi-administrative boards composed of representatives from the local community. Local officials, generally, possess the familiarity with local conditions necessary to make the often sensitive planning decisions which affect the development of their community. Absent arbitrariness, it is for locally selected and locally responsible officials to determine where the public interest in zoning lies” (41 NY2d at 599).

For this reason, a reviewing court should refrain from substituting its own for the reasoned judgment of the zoning board. “It matters not whether, in close cases, a court would have, or should have, decided the matter differently. The judicial responsibility is to review zoning decisions but not, absent proof of arbitrary and unreasonable action, to make them” (*id.*).

We conclude that both Supreme Court and the Appellate Division improperly supplanted the reasoned decision of the Board in favor of their own judgments. Giving due deference to the broad discretion of the Board, we cannot conclude that the Board's denial of the variance was either an abuse of discretion or irrational under the circumstances presented. Nor do we agree with the courts below that the Board based its decision on generalized community objections. The record demonstrates that the Board reasonably considered all of the factors delineated in Town Law § 267-b and weighed the petitioner's interest against the interest of the neighborhood.

The Board's conclusion that the area variance would have a negative impact on the character of the neighborhood was supported by documentary evidence that within the 200-foot radius of the subject property, the area was overwhelmingly conforming to or larger than the zoning requirements. While the Board relied on its 1969 denial of a similar variance, it did not give estoppel effect to that decision. Nor could it do so since Town Law § 267-b was enacted after that determination. However, in considering the first factor, the Board was entitled to observe the fact that the character of the neighborhood, in terms of the lot size and frontage widths of the parcels, had not changed since 1969. It was further entitled to take into account the fact that the subject parcel is the only one within the 200-foot radius on Madison Avenue that has a property width as narrow as 40 feet. Moreover, within the entire 200-foot radius of the subject parcel, out of 35 plots, only six plots (or 17.1%) have a 40-foot width. Of the remaining 29 plots, one has a width of 45 feet, five have a width of 50 feet, two have a width of 55 feet and 21 plots have a width of at least 60 feet. Under these circumstances, the Board could rationally conclude that the character of the area was that of parcels conforming to the zoning requirements, and that, therefore, granting the variance would have an adverse effect on the character of the neighborhood.

In considering the other factors under Town Law § 267-b (3), the Board concluded that the requested variance was substantial. The variance sought would have allowed a 33.3% deficiency in lot area and a 27.3% deficiency in frontage width. It was not an abuse of discretion to determine that the substantiality of such a variance weighed against granting it. Moreover, the Board properly determined that the need for the variance was self-created here. Petitioner was fully aware that the subject parcel did not conform to the zoning requirements, which was

the reason that the sale of the parcel was conditioned on obtaining the variance he seeks. The Board also rightly concluded that petitioner was in no better position than the contract vendor, who knew or should have known that the parcel was the result of an illegal subdivision and that a similar variance was previously denied by the Board.

To be sure, the Board determined that aside from obtaining the variance, there was no other means by which petitioner could build a dwelling on the parcel. It also concluded that the construction itself would cause no physical or environmental harm to the neighborhood, both factors that weigh in favor of granting the variance. Nevertheless, it decided that given the character of the neighborhood and the substantiality of the deficiencies requested, the detriment to the community in granting the variance outweighed the benefit that would accrue to petitioner. That determination was within the Board's discretion.

While petitioner urges that the Board should have granted his variance given that all of the substandard parcels in the area have been improved, the Board was nonetheless entitled to deny the variance, especially given that none of the improvements on the substandard parcels were erected pursuant to a variance. Those parcels, though substandard, were legally nonconforming and the dwellings erected on them were built prior to the enactment of the current zoning ordinance. Only the subject property is the result of an illegal subdivision. And significantly, the Board has never issued an area variance for building upon any substandard parcel in the neighborhood.

The Board was also entitled to consider that granting a variance for an illegally substandard parcel with 40 feet of frontage width could set a precedent within the neighborhood such that landowners of oversized parcels could illegally subdivide their land and seek an area variance to improve the substandard plot with the idea that two parcels with two houses are worth more than one parcel with one house. As the Board is entrusted with safeguarding the character of the neighborhood in accordance with the zoning laws (*see* Town Law § 267-b [3] [c]), it was well within its discretion to deny a variance that would have allowed an owner to take advantage of an illegally nonconforming parcel by erecting a dwelling upon it.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the petition dismissed.

Opinion by G.B. SMITH, J.

Chief Judge KAYE and Judges CIPARICK, ROSENBLATT,
GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[814 NE2d 410, 781 NYS2d 240]

BOWER ASSOCIATES, Appellant, v TOWN OF PLEASANT VALLEY et al., Respondents.

HOME DEPOT, U.S.A., INC., Appellant, v EDWARD B. DUNN, Individually and as Mayor of the City of Rye, et al., Respondents.

Argued March 31, 2004; decided May 13, 2004

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 12, 2003. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Dutchess County (James D. Pagones, J.), which had denied defendants' motion to dismiss the complaint, (2) granted the motion, and (3) dismissed the complaint.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 12, 2003. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, Westchester County (James R. Cowhey, J.), entered November 19, 2000, which had denied defendants' cross motion for summary judgment dismissing the complaint and had granted, in part, plaintiff's motion for partial summary judgment as to liability, (2) granted defendants' cross motion for summary judgment, (3) denied plaintiff's motion for summary judgment, (4) dismissed the complaint, and (5) dismissed as academic defendants' appeal from so much of an order of that court (W. Denis Donovan, J.) as denied that branch of defendants' motion which was to vacate the note of issue.

Bower Assoc. v Town of Pleasant Val., 304 AD2d 259, affirmed.

Home Depot, U.S.A. v Dunn, 305 AD2d 459, affirmed.

HEADNOTES

Civil Rights — Federal Civil Rights Claim — Improper Denial of Land-Use Permit Applications — Substantive Due Process

1. In two civil rights actions to recover damages pursuant to 42 USC § 1983 for delays occasioned by the municipal defendants' wrongful refusal to consent to plaintiffs' land-use permit applications, plaintiffs failed to establish any

substantive due process violations in support of their claims. In order to prove a substantive due process violation, a claimant must establish a cognizable property interest, meaning a vested property interest, and must show that the governmental action was wholly without legal justification. The municipal defendants had discretion in determining plaintiffs' applications, and their discretion was not so narrowly circumscribed that approval was virtually assured. Although both plaintiffs prevailed in their respective CPLR article 78 proceedings, their victories did not establish a constitutionally protected property interest. Moreover, the municipalities' actions, while arbitrary in an article 78 sense, were not so egregious as to be constitutionally arbitrary.

Civil Rights — Federal Civil Rights Claim — Improper Denial of Land-Use Permit Application — Equal Protection

2. In a civil rights action to recover damages pursuant to 42 USC § 1983 for delays occasioned by the municipal defendants' wrongful refusal to consent to plaintiff's land-use permit application, plaintiff failed to establish an equal protection violation in support of its claims. In order to prove an equal protection claim sounding in selective enforcement, a claimant must demonstrate that he or she, compared with others similarly situated, is selectively treated, and that such treatment is based on impermissible considerations, or malicious or bad faith intent to injure the claimant. Plaintiff home improvement retailer did not allege selective treatment based on impermissible reasons, and it failed to demonstrate that defendants singled out its request for consent to a road-widening permit with malevolent intent.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Civil Rights §§ 68–71, 148, 149; AM JUR 2d, Constitutional Law §§ 888, 889; AM JUR 2d, Zoning and Planning §§ 947, 958, 998.

NY JUR 2d, Buildings, Zoning, and Land Controls §§ 106–110, 112, 368, 382, 429, 470, 473; NY JUR 2d, Constitutional Law §§ 384, 392, 396.

42 USCA § 1983.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination; Due Process; Equal Protection of Law; Selective Enforcement; Zoning.

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POINTS OF COUNSEL

Tuczinski, Cavalier, Burstein & Collura, P.C., Albany (Andrew W. Gilchrist and Alison M. Coan of counsel), for appellant in the

first above-entitled action. Bower has a federally protectable property interest in its subdivision application; therefore, it has properly stated a 42 USC § 1983 claim against the Town of Pleasant Valley. (*Natale v Town of Ridgefield*, 170 F3d 258; *Town of Orangetown v Magee*, 88 NY2d 41; *RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d 911; *Yale Auto Parts, Inc. v Johnson*, 758 F2d 54; *Penlyn Dev. Corp. v Incorporated Vil. of Lloyd Harbor*, 51 F Supp 2d 255; *Masi Mgt. v Town of Ogden*, 180 Misc 2d 881; *Matter of Twin Town Little League v Town of Poestenkill*, 249 AD2d 811; *DLC Mgt. Corp. v Town of Hyde Park*, 163 F3d 124; *Zahra v Town of Southold*, 48 F3d 674; *Matter of Terra Homes v Smallwood*, 247 AD2d 394.)

Ahmuty, Demers & McManus, Albertson (Brendan T. Fitzpatrick and Kevin G. McMorrow of counsel), for respondents in the first above-entitled action. The Town of Pleasant Valley and its Planning Board were entitled to the dismissal of Bower's 42 USC § 1983 claim, because Bower never had a constitutionally protected property interest in the approval of the subdivision. (*Town of Orangetown v Magee*, 88 NY2d 41; *Lisa's Party City, Inc. v Town of Henrietta*, 185 F3d 12; *McMenemy v City of Rochester*, 241 F3d 279; *Board of Regents of State Colls. v Roth*, 408 US 564; *Olim v Wakinekona*, 461 US 238; *Zahra v Town of Southold*, 48 F3d 674; *Natale v Town of Ridgefield*, 170 F3d 258; *Honess 52 Corp. v Town of Fishkill*, 1 F Supp 2d 294; *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400; *Matter of Coca-Cola Bottling Co. of N.Y. v Board of Estimate of City of N.Y.*, 72 NY2d 674.)

Collier, Halpern, Newberg, Nolletti & Bock, LLP, White Plains (Philip M. Halpern and William A. Walsh of counsel), for appellant in the second above-entitled action. I. The application of this Court's scope of review to the Appellate Division's decision necessitates the reversal of the Appellate Division's decision and a reinstatement of the Supreme Court's decision. (*Matter of New York State Assn. of Criminal Defense Lawyers v Kaye*, 95 NY2d 556; *Schwartz v Greenberg*, 304 NY 250; *Matter of Belding v Belding*, 53 NY2d 810; *Hart v Blabey*, 287 NY 257; *People v Kin Kan*, 78 NY2d 54; *People ex rel. Ray v Martin*, 294 NY 61; *People v Dunn*, 77 NY2d 19; *Flanagan v Prudential-Bache Sec.*, 67 NY2d 500; *Alvez v American Export Lines*, 46 NY2d 634; *DeBlasio v Zoning Bd. of Adj. for Twp. of W. Amwell*, 53 F3d 592.) II. The Appellate Division erred in dismissing plaintiff's equal protection cause of action as "academic." (*Mannington Mills, Inc. v Shinn*, 877 F Supp 921; *T.S. Haulers, Inc. v Town of Riv-*

erhead, 190 F Supp 2d 455; *Matter of Abrams v Bronstein*, 33 NY2d 488; *Welch Foods v Wilson*, 277 AD2d 882; *Zahra v Town of Southold*, 48 F3d 674; *FSK Drug Corp. v Perales*, 960 F2d 6; *Yajure v DiMarzo*, 130 F Supp 2d 568; *Dartmouth Review v Dartmouth Coll.*, 889 F2d 13.) III. The Appellate Division erred as a matter of law in holding that plaintiff lacked protected property interests and a proper cause of action for a violation of its substantive due process rights. (*Town of Orangetown v Magee*, 88 NY2d 41; *Regents of Univ. of Mich. v Ewing*, 474 US 214; *Moore v City of E. Cleveland, Ohio*, 431 US 494; *City of Cuyahoga Falls, Ohio v Buckeye Community Hope Found.*, 538 US 188; *Board of Regents of State Colls. v Roth*, 408 US 564; *National Mut. Ins. Co. v Tidewater Transfer Co., Inc.*, 337 US 582; *Perry v Sindermann*, 408 US 593; *Yale Auto Parts, Inc. v Johnson*, 758 F2d 54; *Willner v Committee on Character & Fitness*, 373 US 96; *Schwartz v Board of Bar Examiners of State of N.M.*, 353 US 232.) IV. The Appellate Division erred, as a matter of law, in holding that the individual defendants enjoyed the protection of qualified immunity. (*Johnson v Newburgh Enlarged School Dist.*, 239 F3d 246; *Young v County of Fulton*, 160 F3d 899; *Anderson v Creighton*, 483 US 635; *Walz v Town of Smithtown*, 46 F3d 162; *Town of Orangetown v Magee*, 88 NY2d 41; *Sullivan v Town of Salem*, 805 F2d 81.)

Bleakley, Platt & Schmidt, LLP, White Plains (*William P. Harrington* and *Susan A. Galvão* of counsel), for Edward B. Dunn, respondent in the second above-entitled action. I. Home Depot's complaint was properly dismissed. II. Mayor Dunn and the City Council members were entitled to qualified immunity. (*Weaver v Brenner*, 40 F3d 527; *Cartier v Lussier*, 955 F2d 841; *Doe v Marsh*, 105 F3d 106; *Salim v Proulx*, 93 F3d 86; *Connecticut ex rel. Blumenthal v Crotty*, 346 F3d 84; *Lewis v City of Mount Vernon, Mount Vernon Police Dept.*, 984 F Supp 748; *Anderson v Creighton*, 483 US 635; *McEvoy v Spencer*, 124 F3d 92; *Richardson v Selsky*, 5 F3d 616; *Sound Aircraft Servs., Inc. v Town of E. Hampton*, 192 F3d 329.) III. Mayor Dunn and the City Council members are entitled to legislative immunity. (*Tango v Tulevech*, 61 NY2d 34; *Matter of Kaczmarek v Conroy*, 218 AD2d 97; *Press v County of Monroe*, 50 NY2d 695; *Matter of Nassau Shores Civic Assn. v Colby*, 118 AD2d 782; *Bogan v Scott-Harris*, 523 US 44; *Carlos v Santos*, 123 F3d 61; *Goldberg v Town of Rocky Hill*, 973 F2d 70.)

Thacher Proffitt & Wood LLP, White Plains (*Robert Hermann* of counsel), for James K. Burke and others, respondents in the

second above-entitled action. I. Home Depot's substantive due process claim is without merit. (*Yale Auto Parts, Inc. v Johnson*, 758 F2d 54; *City of Cuyahoga Falls, Ohio v Buckeye Community Hope Found.*, 538 US 188; *Harlen Assoc. v Incorporated Vil. of Mineola*, 273 F3d 494; *Reed's of Armonk Bldg. Supply v Curry*, 246 AD2d 587, 91 NY2d 813; *Zahra v Town of Southold*, 48 F3d 674; *Masi Mgt. v Town of Ogden*, 180 Misc 2d 881, 273 AD2d 837; *DLC Mgt. Corp. v Town of Hyde Park*, 163 F3d 124; *Vertical Broadcasting, Inc. v Town of Southampton*, 84 F Supp 2d 379; *RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d 911; *Board of Regents of State Colls. v Roth*, 408 US 564.) II. The Appellate Division correctly held that there is no factual or legal basis for imposing liability on the individual defendants. (*Baseball Off. of Commr. v Marsh & McLennan*, 295 AD2d 73; *Stipo v Town of N. Castle*, 205 AD2d 608; *Kravitz v Police Dept. of City of Hudson*, 285 AD2d 716; *Tango v Tulevech*, 61 NY2d 34; *Matter of Kaczmarek v Conroy*, 218 AD2d 97; *Matter of Nassau Shores Civic Assn. v Colby*, 118 AD2d 782; *Bogan v Scott-Harris*, 523 US 44; *Goldberg v Town of Rocky Hill*, 973 F2d 70; *Weaver v Brenner*, 40 F3d 527; *Mitchell v Forsyth*, 472 US 511.) III. Home Depot's unpleaded equal protection cause of action was properly dismissed. (*Weinstock v Handler*, 254 AD2d 165; *John William Costello Assoc. v Standard Metals Corp.*, 99 AD2d 227; *Lisa's Party City, Inc. v Town of Henrietta*, 185 F3d 12; *Zahra v Town of Southold*, 48 F3d 674; *Harlen Assoc. v Incorporated Vil. of Mineola*, 273 F3d 494; *Masi Mgt. v Town of Ogden*, 180 Misc 2d 881, 273 AD2d 837; *Bower Assoc. v Town of Pleasant Val.*, 304 AD2d 259; *W.J.F. Realty Corp. v Town of Southampton*, 261 AD2d 609; *Matter of Sour Mtn. Realty v New York State Dept. of Envtl. Conservation*, 260 AD2d 920; *Staatsburg Water Co. v Dutchess County*, 291 AD2d 552.)

Finger & Finger, White Plains (Kenneth J. Finger and Dorothy M. Finger of counsel), for The Building and Realty Institute of Westchester & The Mid-Hudson Region (BRI), amicus curiae in the second above-entitled action. I. There is a protected property interest that vests or attaches at the point when a person has filed for a SEQRA review with the environmental assessment form. (*RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d 911; *Sullivan v Town of Salem*, 805 F2d 81; *City of Cuyahoga Falls, Ohio v Buckeye Community Hope Found.*, 538 US 188; *Town of Orangetown v Magee*, 88 NY2d 41.) II. The courts of this state have, historically, recognized that in certain situations property rights vest even where there was no substantial construction undertaken. (*Matter of Schoonmaker*

Homes—John Steinberg, Inc. v Village of Maybrook, 178 AD2d 722; *Telimar Homes v Miller*, 14 AD2d 586, 701; *Preble Aggregate v Town of Preble*, 263 AD2d 849; *Matter of Ellington Constr. Corp. v Zoning Bd. of Appeals of Inc. Vil. of New Hempstead*, 77 NY2d 114; *Matter of Putnam Armonk v Town of Southeast*, 52 AD2d 10; *Matter of Berman v Warshavsky*, 256 AD2d 334; *Matter of Lombardi v Habicht*, 293 AD2d 474; *Matter of Ronsvalle v Totman*, 303 AD2d 897; *Matter of Pokoik v Silsdorf*, 40 NY2d 769; *Yale Auto Parts, Inc. v Johnson*, 758 F2d 54.) III. Where a permit has been issued, an approval granted or a right vested, a property owner possesses a cognizable property interest sufficient to satisfy the basic element of a due process claim; predicated on today's construction and development realities, the right should be vested at an earlier stage than the "permit" being issued, or an approval granted. (*RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d 911; *Brady v Town of Colchester*, 863 F2d 205; *Town of Orangetown v Magee*, 88 NY2d 41.) IV. It is not only a breach of the "equitable" theory of vesting to delay egregiously so as to change the law after the filing of an environmental assessment form, but also of the "legal" theory, since there has been a substantial expenditure and engineering, architectural, financial, legal and other expertise has been brought into play at a large monetary cost. (*Matter of Pete Drown, Inc. v Town Bd. of Town of Ellenburg*, 229 AD2d 877.)

J. Wade Beltramo, Albany, for New York State Conference of Mayors and Municipal Officials, amicus curiae in the second above-entitled action. I. The nature of the permitting process for altering a public roadway did not entitle plaintiff to a permit as of right and, thus, plaintiff does not have a proprietary interest in the permit. (*Markey v County of Queens*, 154 NY 675; *Acme Realty Co. v Schinasi*, 215 NY 495; *City of New York v Rice*, 198 NY 124; *People v Kerr*, 27 NY 188; *Board of Trustees of Vil. of Lansing v Pyramid Cos.*, 51 AD2d 414; *Matter of Hill v Town of Horicon*, 176 AD2d 1169; *Matter of Danial v Town of Delhi*, 185 AD2d 500; *Lincoln Safe Deposit Co. v City of New York*, 210 NY 34; *Cities Serv. Oil Co. v City of New York*, 5 NY2d 110; *Matter of Syosset Indus. Bldrs. v Town of Oyster Bay Highway Dept.*, 24 AD2d 763.) II. Defendants are entitled to qualified immunity regarding discretionary determinations. (*Young v County of Fulton*, 160 F3d 899; *Richardson v Selsky*, 5 F3d 616; *Board of Trustees of Vil. of Lansing v Pyramid Cos.*, 51 AD2d 414; *Matter of Hill v Town of Horicon*, 176 AD2d 1169; *Matter of Danial v Town of Delhi*, 185 AD2d 500; *Anderson v Creighton*, 483 US 635.)

OPINION OF THE COURT

Chief Judge KAYE.

In the two appeals before us, appellants claim they were deprived of civil rights protected by the United States Constitution when the municipal defendants wrongfully refused consent to land-use permit applications. Although the projects ultimately proceeded to completion, appellants seek damages under 42 USC § 1983 for the delays occasioned by the wrongdoing. We conclude, as did the Appellate Division, that there was no constitutional violation and the complaints should be dismissed.

I.

Bower Associates v Town of Pleasant Valley

Bower Associates, a housing developer, owns approximately 91 acres in Dutchess County—88 acres in the Town of Poughkeepsie and three adjacent acres in the Town of Pleasant Valley. In August 1999, Poughkeepsie approved Bower's plan to subdivide the land and construct the Stratford Farms subdivision—134 detached single-family homes and 51 townhouses.¹ The project has two access roads—one wholly within Poughkeepsie, the second partially in Pleasant Valley, through the three-acre Bower Associates subdivision. Poughkeepsie's final approval of Stratford Farms was conditioned on approval by Pleasant Valley of the access road partially within that Town.

In January 1999, Bower applied to the Pleasant Valley Planning Board for permission to subdivide its three acres there to create three residential homes and access roads for use by both Bower subdivisions. In January 2000, the Pleasant Valley Planning Board denied Bower's application, citing numerous environmental concerns relating to the Stratford Farms subdivision.

In Bower's challenge under CPLR article 78, Supreme Court directed approval of the subdivision plan, concluding that the Planning Board's actions were arbitrary in that its determination was not based on environmental concerns unique to the Bower Associates subdivision. Rather, "the determination was driven largely by community pressure because the Stratford

1. After Poughkeepsie approved the subdivision, Pleasant Valley brought a CPLR article 78 proceeding to nullify that determination. While finding no standing to lodge the challenge, Supreme Court dismissed the petition, and the Appellate Division affirmed on the merits (*see Town of Pleasant Val. v Town of Poughkeepsie Planning Bd.*, 289 AD2d 583 [2d Dept 2001]).

Farms subdivision located in the Town of Poughkeepsie would provide no tax benefit to the Town of Pleasant Valley.” The Appellate Division affirmed, agreeing that Bower “met all the conditions needed for approval of its subdivision application in both this and the related Stratford [Farms] subdivision” (*Matter of Bower Assoc. v Planning Bd. of Town of Pleasant Val.*, 289 AD2d 575, 575 [2d Dept 2001]).

Its article 78 relief in hand, in March 2001 Bower commenced this civil rights action pursuant to 42 USC § 1983 against the Town of Pleasant Valley and its Planning Board for \$2 million in damages, alleging a denial of procedural and substantive due process, equal protection and just compensation. Supreme Court denied defendants’ motion to dismiss, but the Appellate Division reversed, finding no cognizable property interest entitling Bower to substantive due process protection, both because the Board had discretion in granting subdivision approval and because defendants violated no rights protected by the United States Constitution (304 AD2d 259 [2d Dept 2003]). Further, the Appellate Division dismissed Bower’s takings and equal protection claims, concluding that Bower alleged no unlawful taking, and failed to show that the subject property was treated differently from other similarly situated properties. We now affirm.

Home Depot v Dunn

In February 1996, Home Depot, U.S.A., Inc., a home improvement retailer, obtained site plan approval from the Village of Port Chester to develop an 8.33 acre site for a retail establishment of approximately 101,467 square feet, with an 18,000 square foot outdoor garden center and 537 parking spaces in Port Chester, at the border between Port Chester and the City of Rye.² The facility opened in February 2000, after long wrangling with defendants, the City of Rye, its Mayor and City Council members (collectively Rye).

As an “Interested Agency” in the environmental review process led by Port Chester, Rye demanded that four traffic-mitigating measures be imposed, among them the widening of Midland Avenue in Rye—and Port Chester made that demand a

2. Home Depot actually acquired a right to buy the site in 1992, but was not obligated to conclude the purchase unless the seller had obtained the necessary land-use approvals; Home Depot nonetheless acquired title in March 1998, while issues remained unresolved.

condition for its approval of the project.³ Because Midland Avenue is a county road within the City of Rye, the plans also required the County's approval, which in turn required the City's approval. Thus, without Rye's go-ahead, Home Depot could not proceed.

Beginning in fall 1996 with a Home Depot letter threatening damages actions unless Rye signed the county permit, tension mounted. After several executive sessions of the Rye City Council, and negotiations with Home Depot, the parties reached tentative settlement in February 1997, with Rye exacting a promise of a \$200,000 payment by Home Depot and additional traffic-mitigation measures, and agreeing not to appeal an adverse decision in its second article 78 proceeding against Port Chester. In March 1997, however, after community opposition, the City Council rejected the settlement and refused consent to the permit.

In April 1997, Home Depot commenced two suits—an article 78 proceeding to compel Rye to sign (and the County of Westchester to issue) the permit, and a civil rights action pursuant to 42 USC § 1983 against the Mayor and the City Council members (both personally and officially) seeking \$50 million in compensatory damages and unspecified punitive damages, for delaying construction by more than two years. As a July 1997 Home Depot interoffice memorandum reflects, Home Depot saw the “real value” of the section 1983 action “as leverage for settlement.”

On January 30, 1998, in Home Depot's article 78 proceeding, Supreme Court—while recognizing that the actions Home Depot sought to compel were “of a discretionary nature”⁴—held that Rye's insistence on additional mitigation measures and its refusal to approve the permit were arbitrary and capricious. The court annulled Rye's denial of the road-widening permit, and the Appellate Division affirmed (259 AD2d 547 [2d Dept 1999]). At about that time, however, Home Depot's site plan approval from Port Chester expired, which necessitated a third

3. Port Chester declined to adopt the three other traffic mitigation measures Rye had requested. Rye and a local citizens group then brought an article 78 proceeding challenging Port Chester's approval of the project. Supreme Court dismissed the petition, and the Appellate Division affirmed (see *Matter of City of Rye v Korff*, 249 AD2d 470 [2d Dept 1998]).

4. *Matter of Home Depot USA, Inc. v City of Rye*, Sup Ct, Westchester County, Feb. 2, 1998, Cowhey, J., Index No. 3486/97, at n 1 (as amended Feb. 6, 1998), *aff'd* 259 AD2d 547 (2d Dept 1999).

environmental review. Port Chester issued a new site plan approval, which did not require the widening of Midland Avenue or Rye's consent. Construction began almost immediately and the facility opened in February 2000.

Meanwhile, discovery proceeded in the section 1983 action, after which Home Depot sought summary judgment and Rye cross-moved for dismissal of the complaint.⁵ Supreme Court granted Home Depot's motion for summary judgment with respect to liability on its substantive due process claim, holding that Home Depot had a "clear entitlement to defendants' approval of the permit" because defendants' refusal to sign off on the permit lacked a rational basis, and that defendants' conduct was a gross abuse of governmental authority. The court denied Home Depot's motion for summary judgment on the equal protection claim, finding a triable issue with respect to the similarities of other permit applications to Home Depot's; the court further denied both sides summary judgment with respect to the takings claim, and denied defendants' claim of immunity. The Appellate Division reversed and dismissed the complaint, concluding that Home Depot had failed to raise a triable issue of fact as to a due process violation and that defendants were entitled to qualified immunity, rendering the remaining contentions academic (305 AD2d 459 [2d Dept 2003]). We now affirm as to the lack of a constitutional violation, and thus need not reach the immunity issue.

II.

In the land-use context, 42 USC § 1983 protects against municipal actions that violate a property owner's rights to due process, equal protection of the laws and just compensation for the taking of property under the Fifth and Fourteenth Amendments to the United States Constitution (*Town of Orangetown v Magee*, 88 NY2d 41, 49 [1996]). Both cases before us center on alleged deprivation of substantive due process; in this Court,

5. Home Depot's motion followed an earlier attempt by Rye—prior to the close of discovery—to dismiss the section 1983 action for failure to state a cause of action and for dismissal because the action was a SLAPP (Strategic Lawsuit Against Public Participation) suit. In denying the motion, Supreme Court noted that "[t]he issue of building a Home Depot in Port Chester has generated extensive litigation between Port Chester and Rye over the past few years, as well as strong community opposition to the project by the citizens of Rye. Rye officials have adamantly opposed said project" (*Home Depot U.S.A., Inc. v Dunn*, Sup Ct, Westchester County, Feb. 17, 1998, Cowhey, J., Index No. 97/05316).

Home Depot also presses a claimed violation of the guarantee of equal protection.

We underscore at the outset of our analysis the Appellate Division's observation that "42 USC § 1983 is not simply an additional vehicle for judicial review of land-use determinations" (*Bower Assoc. v Town of Pleasant Val.*, 304 AD2d 259, 263 [2d Dept 2003]). In the same vein, federal courts dismissing section 1983 land-use claims have repeatedly noted that they do not function as zoning boards of appeal, or substitute for state courts interpreting land-use regulations. The point is simply that denial of a permit—even an *arbitrary* denial redressable by an article 78 or other state law proceeding—is not tantamount to a constitutional violation under 42 USC § 1983; significantly more is required. With that in mind, we turn to consideration of appellants' claims.

Substantive Due Process

More often litigated in federal courts, the issue of substantive due process in land-use cases has come before this Court once, in *Town of Orangetown v Magee* (88 NY2d 41 [1996]). There, the Magees had acquired 34 acres of land in the Town of Orangetown at an estimated cost of \$3 million in order to construct a 184,000 square foot industrial building. Years later, after plans had been approved, a permit issued and more than \$4 million spent on the land and building, the Town revoked the permit and amended its Zoning Code to preclude commercial buildings on the land, halting the project. We agreed with the trial court and Appellate Division that the Town's action violated 42 USC § 1983, and affirmed the order reinstating the building permit and awarding the Magees damages of \$5,137,126, costs and attorneys' fees.

Drawing on federal precedents, we set out the two-part test for substantive due process violations. First, claimants must establish a cognizable property interest, meaning a vested property interest, or "more than a mere expectation or hope to retain the permit and continue their improvements; they must show that pursuant to State or local law, they had a legitimate claim of entitlement to continue construction" (*Magee*, 88 NY2d at 52 [internal quotation marks omitted]). Second, claimants must show that the governmental action was wholly without legal justification (*id.* at 53).

Key to establishing the Magees' cognizable property interest was that the right to develop their land had vested under state

law: they owned the land, a permit and improvements and “unquestionably would have received the limited future authorizations necessary to complete the project. . . . [T]he Town had ‘engendered a clear expectation of continued enjoyment’ of the permit sufficient to constitute a protectable property interest for purposes of a section 1983 claim” (*Magee*, 88 NY2d at 52-53, quoting *Barry v Barchi*, 443 US 55, 64 n 11 [1979]). The Mag-ees satisfied the second requirement by establishing that the Town’s actions were “without legal justification and motivated entirely by political concerns” (*Magee*, 88 NY2d at 53).

Federal courts elaborating on the first element of the test have noted that it should be applied “with considerable rigor” (*RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d 911, 918 [2d Cir 1989]). Even if “objective observers would estimate that the probability of [obtaining the relief sought] was extremely high, the opportunity of the local agency to deny issuance suffices to defeat the existence of a federally protected property interest” (*id.*). Beyond a vested property right arising from substantial expenditures pursuant to a lawful permit (as in *Magee*), a legitimate claim of entitlement to a permit can exist only where there is either a “certainty or a very strong likelihood” that an application for approval would have been granted (*Harlen Assoc. v Incorporated Vil. of Mineola*, 273 F3d 494, 504 [2d Cir 2001]).⁶ Where an issuing authority has discretion in approving or denying a permit, a clear entitlement can exist only when that discretion “is so narrowly circumscribed that approval of a proper application is virtually assured” (*Villager Pond, Inc. v Town of Darien*, 56 F3d 375, 378 [2d Cir 1995]; see also *Natale v Town of Ridgefield*, 170 F3d 258, 263 [2d Cir 1999]; *Walz v Town of Smithtown*, 46 F3d 162, 168 [2d Cir 1995]).

As for the second element of the test, “only the most egregious official conduct can be said to be arbitrary in the constitutional sense” (*City of Cuyahoga Falls, Ohio v Buckeye Community Hope Found.*, 538 US 188, 198 [2003] [internal quotation marks omitted]; see also *Harlen*, 273 F3d at 501 [board action based on community opposition is not unconstitutionally arbitrary “if the opposition is based on legitimate state interests such as, *inter alia*, traffic, safety, crime, community pride, or noise”

6. We reject Home Depot’s argument that this Court should adopt the subjective standard spelled out in the dissenting opinion in *RRI* (870 F2d at 922 [Garth, J., dissenting]) and in certain decisions of the Third Circuit.

(internal quotation marks omitted)]; *Natale*, 170 F3d at 263 [“(s)ubstantive due process standards are violated only by conduct that is so outrageously arbitrary as to constitute a gross abuse of governmental authority”]; *Lisa’s Party City, Inc. v Town of Henrietta*, 185 F3d 12, 17 [2d Cir 1999] [where town acted in accordance with a legitimate concern, it cannot be said to have acted “in an outrageously arbitrary manner so as to violate (plaintiff’s) substantive due process rights”]).

The two-part test strikes an appropriate balance between the role of local governments in regulatory matters affecting the health, welfare and safety of their citizens, and the protection of constitutional rights “at the very outer margins of municipal behavior. It represents an acknowledgment that decisions on matters of local concern should ordinarily be made by those whom local residents select to represent them in municipal government” (*Zahra v Town of Southold*, 48 F3d 674, 680 [2d Cir 1995]).

[1] Applying this test, we agree with the Appellate Division that neither appellant established a cognizable property interest or arbitrary conduct of a constitutional dimension.

While recognizing the discretion of the Planning Board in the subdivision approval process, Bower argues that because the Board acted *outside its discretion* there was necessarily a deprivation of a protected property right. This claim relies heavily on the Appellate Division’s conclusion in the article 78 proceeding that Bower had “met all the conditions needed for approval of its subdivision application in both this and the related Stratford [Farms] subdivision” (289 AD2d at 575). In effect, Bower argues that victory in an article 78 proceeding—a finding that conduct was arbitrary, capricious and without rational basis, or an abuse of discretion, or even action beyond or outside a board’s discretion—establishes a constitutionally protected property interest.

The law is otherwise. While the existence of discretion in a municipal actor does not alone defeat the existence of a property interest in a permit applicant, that discretion must be so narrowly circumscribed that approval is virtually assured. That was the case in *Magee* (88 NY2d at 52 [town engendered clear expectation of future authorizations]), and *Walz v Town of Smithtown* (46 F3d 162, 168 [2d Cir 1995] [so long as the permit application stated nature, location, extent and purpose of the proposed excavations, there was no discretion to decline the permit]), and *Sullivan v Town of Salem* (805 F2d 81, 85 [2d Cir

1986] [if homes fully conformed to building requirements, builder was entitled to certificates of occupancy]). That is not the case here.

We reach the same conclusions as to Home Depot, where the actions it sought to compel were discretionary in nature and that discretion had not been so circumscribed as to create a clear entitlement to Rye's signature on the County's permit. Moreover, unlike Bower (which owned the subject land), Home Depot at the time of Rye's refusal to consent to the road-widening permit was a contract vendee and, significantly, had only conditional site plan approval for the property it hoped to buy.

In neither case was the challenged conduct constitutionally arbitrary. While the lower courts concluded that the municipalities' actions in both cases were arbitrary, capricious and without rational basis in an article 78 sense, what is lacking is the egregious conduct that implicates federal constitutional law (*see e.g. Walz*, 46 F3d 162 [1995] [homeowner compelled to convey portion of property in order to obtain water and utility service]; *Scott v Greenville County*, 716 F2d 1409 [4th Cir 1983] [moratorium to limit rental housing for minorities]).

Thus, we agree with the Appellate Division in each case that appellant has failed to state a cause of action for a due process violation.

Equal Protection

Unlike substantive due process, the Equal Protection Clause has generated relatively few federal court decisions in land-use cases, and none in this Court.⁷ Because equal protection can no more become another general overseer of local land-use determinations than substantive due process, the standards must be applied with the same "rigor" (*see RRI Realty Corp. v Incorporated Vil. of Southampton*, 870 F2d at 918).

The essence of a violation of the constitutional guarantee of equal protection is, of course, that all persons similarly situated must be treated alike. Home Depot's equal protection challenge does not rest on differential treatment as a constitutionally

7. Equal protection sometimes appears in the federal land-use case law as the subsidiary argument to due process; most often, both have been rejected. In the present case, Home Depot never even asserted an equal protection claim in its complaint. Defendants contend that the claim should be dismissed on this ground alone. However, we treat that cause of action as did the parties, the trial court and the Appellate Division, who addressed and resolved it.

protected suspect class, or denial of a fundamental right (*see e.g. Frooks v Town of Cortlandt*, 997 F Supp 438, 453 [SD NY 1998], *affd* 182 F3d 899 [2d Cir 1999] [unpublished op]). Rather, Home Depot's equal protection claim sounds in selective enforcement (*see Village of Willowbrook v Olech*, 528 US 562 [2000]).

As such, a violation of equal protection arises where *first*, a person (compared with others similarly situated) is selectively treated and *second*, such treatment is based on impermissible considerations such as race, religion, intent to inhibit or punish the exercise of constitutional rights, or malicious or bad faith intent to injure a person (*Harlen Assoc. v Incorporated Vil. of Mineola*, 273 F3d 494, 499 [2d Cir 2001]). In that Home Depot does not allege selective treatment based on race, religion or punishment for the exercise of constitutional rights, it must demonstrate that Rye singled out its request for consent to the road-widening permit with malevolent intent.

The "similarly situated" element of the test asks "whether a prudent person, looking objectively at the incidents, would think them roughly equivalent" (*Penlyn Dev. Corp. v Incorporated Vil. of Lloyd Harbor*, 51 F Supp 2d 255, 264 [ED NY 1999]). But even different treatment of persons similarly situated, without more, does not establish a claim. What matters is impermissible motive: proof of action with intent to injure—that is, proof that the applicant was singled out with an "evil eye and an unequal hand, so as practically to make unjust and illegal discriminations between persons in similar circumstances" (*Masi Mgt. v Town of Ogden* [appeal No. 3], 273 AD2d 837, 838 [4th Dept 2000], quoting *Matter of 303 W. 42nd St. Corp. v Klein*, 46 NY2d 686, 693 [1979]). The following cases (where federal courts denied motions to dismiss equal protection claims) are illustrative: *Forseth v Village of Sussex* (199 F3d 363, 371 [7th Cir 2000] [village official demanded and received significant personal financial gain]); *LaTrieste Rest. & Cabaret Inc. v Village of Port Chester* (40 F3d 587, 590 [2d Cir 1994] [village's enforcement tactics to prohibit proposed land use included fines and arrests]); *Brady v Town of Colchester* (863 F2d 205 [2d Cir 1988] [permit denied because owner leased space to opposing political party]); *Gavlak v Town of Somers* (267 F Supp 2d 214, 223 [D Conn 2003] [town officials acted to destroy business after owner refused to make a zoning official a partner in the business]).

[2] Home Depot argues that it was treated in a manner uniquely different from any other applicant and that Rye with-

held its signature from the county permit in order to impede construction, despite having executed other contemporaneous applications within hours or days. There is no proof, however, that other entities were similarly situated to Home Depot—in terms of obtaining Rye’s signature on comparable permits—and received more favorable treatment. The other allegedly comparable situations—permits for road work by the New York State Thruway Authority, a curb cut, digging up pavement to install a domestic water service, closing the entrance of a driveway and installing a water service pipe—were not shown to be comparable to widening a county road for a traffic influx and thus do not support an equal protection claim.

While Home Depot makes much of the City Manager’s testimony that this was the first permit the City Council reviewed in executive session, the requisite showing of improper motivation is lacking. Home Depot’s improper motivation claim more closely addresses the merits of the City’s decision than its constitutionality (*Harlen*, 273 F3d at 502; *Masi Mgt. v Town of Ogden*, 180 Misc 2d 881, 902 [Sup Ct, Monroe County 1999] [“The concept of equal protection is trivialized when it is used to subject every decision (claimed to be arbitrary and capricious in the sense contemplated by principles of State administrative law) to constitutional review by federal courts”], *affd* 273 AD2d 837 [4th Dept 2000]). Even the community’s “political” opposition to the high-traffic superstore at the City’s border is not the equivalent of the “evil eye and an unequal hand” for constitutional equal protection purposes.

Accordingly, in each case, the order of the Appellate Division should be affirmed, with costs.

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur; Judge R.S. SMITH taking no part.

In each case: Order affirmed, with costs.

[814 NE2d 419, 781 NYS2d 249]

JACQUELINE GALINDO, Individually and as Administratrix of the Estate of JAVIER GALINDO, Deceased, Appellant, v TOWN OF CLARKSTOWN, Defendant, and C. RICHARD CLARK, Respondent.

Argued March 25, 2004; decided May 13, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 19, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Rockland County (Andrew P. O'Rourke, J.), to the extent that it granted that branch of a motion by defendant C. Richard Clark for summary judgment dismissing the complaint insofar as asserted against him.

Galindo v Town of Clarkstown, 305 AD2d 538, affirmed.

HEADNOTE

Negligence — Failure to Warn of Danger

Defendant property owner had no duty under the circumstances to warn decedent, who was sitting in a parked car on defendant's driveway, of the hazard posed by a leaning tree located on neighboring property. As a general matter, an owner owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the owner had created or contributed to it. Generally, it would create an unreasonably onerous burden to require a landowner to evaluate and warn others about a danger caused by a condition existing on neighboring land. While some dangers from neighboring property might be so clearly known to the landowner, though not open or obvious to others, that a duty to warn would arise, here there was no such danger. Defendant was clearly aware of the leaning tree and concerned that it might one day damage his property, but he had no reason to, and did not, anticipate that the tree would fall either where or when it did. Moreover, defendant did not consider the situation so precarious as to warrant taking precautions for himself or for his wife. Under these circumstances, there was no obvious hazard that could give rise to a duty to warn.

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AM JUR 2d, Premises Liability §§ 39, 79, 84, 653.

NY JUR 2d, Premises Liability §§ 60, 65, 66, 286.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI 2:90.

PROSSER AND KEETON, TORTS (5th ed) §§ 57, 62.

ANNOTATION REFERENCE

See ALR Index under Premises Liability; Warnings.

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POINTS OF COUNSEL

Gregory W. Bagen, Brewster, for appellant. The dissent at the Appellate Division got it right, and the majority got it wrong.

Wilson, Bave, Conboy, Cozza & Couzens, P.C., White Plains (*John C. Couzens, Jr.* and *Robert J. Girona* of counsel), for respondent. I. There can be no liability imposed on C. Richard Clark in the absence of a legal duty. (*Badou v New Jersey Tr. Rail Operations*, 221 AD2d 303; *Kimbar v Estis*, 1 NY2d 399; *Spallholtz v Hampton C.F. Corp.*, 294 AD2d 424; *Minott v City of New York*, 230 AD2d 719; *Pulka v Edelman*, 40 NY2d 781.) II. C. Richard Clark as owner or occupier of the abutting property owed no duty of care to plaintiffs to warn them of or protect them from a defective or dangerous condition on the neighboring town property. (*Gehler v City of New York*, 261 AD2d 506; *Pensabene v Incorporated Vil. of Val. Stream*, 202 AD2d 486.) III. The dissenting opinion of the Appellate Division is incorrect as their analysis belies the controlling principles of law when it intends to impose a legal duty upon C. Richard Clark to warn of a danger on abutting property that is likely to cause injury to persons on his property. (*Pulka v Edelman*, 40 NY2d 781; *Badou v New Jersey Tr. Rail Operations*, 221 AD2d 303; *D'Amico v Christie*, 71 NY2d 76.)

OPINION OF THE COURT

G.B. SMITH, J.

The issue presented here is whether defendant Richard Clark may be held liable for failing to warn the decedent, who was sitting in a parked car on Clark's driveway, of a danger posed by a leaning tree located on neighboring property. We conclude that under the circumstances presented, Clark had no duty to warn.

On June 2, 2000, a severe thunderstorm, accompanied by strong wind gusts, hit the Town of Clarkstown, leaving in its wake several downed trees and power lines. On the evening of June 4th, Clark and his wife surveyed the damage created by the storm and saw that an 80-foot tree, which was located on adjacent property owned by the Town of Clarkstown, was tilted toward their property. Clark went to the base of the tree and observed perforations in the soil. The surface root had begun to

separate the dirt, causing porous openings in the soil at the base of the tree. Clark estimated that the tree was tilted about 3.5 degrees. At his deposition, he testified that he was concerned about the possibility that the tree could fall, although he could not discern the path that the tree would take in the event of a fall. Clark thought it possible that the tree could fall onto an adjacent tree located on his property. Under such circumstances, Clark stated, the fallen tree could have rolled onto the road into oncoming traffic or could have fallen onto his house. However, he did not believe the tree posed an immediate threat of falling. In fact, although his wife's car was parked near what he described as "a potential danger radius," he did not move it because he did not think the tree was in danger of falling. He and his wife continued to reside in their house.

The next morning, members of the Town Highway Department were across the street from Clark's house picking up branches and debris from a tree that had fallen as a result of the storm. Clark approached Randall Scott, one of the crew members, and pointed out the tree to Scott, who did not approach the tree to observe the condition of the root or the soil. Instead, he gave Clark the telephone number of Tom Westervelt, a road maintenance supervisor for the Town of Clarkstown. Minutes later, Clark called Westervelt and left a voice mail message conveying that the tree threatened damage either to his property, the road or the power lines. Clark received no response.

On the following morning, June 6th, Clark noticed that the degree of the tilt of the tree had increased. He again called Westervelt, leaving a second, more urgent message. At some point during the morning, plaintiff Jacqueline Galindo, Clark's housekeeper, arrived at the house. After greeting Galindo, Clark left the house to run errands. As he was driving away, he noticed a car that he did not recognize parked behind his wife's car. Inside the car was Galindo's husband, Javier, who apparently had been waiting to pick up his wife after she finished working. However, at that time Clark did not approach the car or see anyone inside. Tragically, while Clark was running his errands, the tree fell onto the parked car, causing Javier's death.

Plaintiff commenced this action against Clark and the Town of Clarkstown seeking damages for the wrongful death of her husband. Both defendants moved for summary judgment. Supreme Court dismissed the complaint as to Clark, concluding that he had no duty to warn of defects or conditions on property

that he did not own. After summary judgment was denied to the Town of Clarkstown, it settled the action and plaintiff discontinued her claim against the Town.

Plaintiff appealed the grant of summary judgment in favor of Clark. A divided Appellate Division affirmed the order. Plaintiff appeals to this Court as a matter of right, and we now affirm.

It is well settled that a landowner has a duty to exercise reasonable care in maintaining his own property in a reasonably safe condition under the circumstances. The nature and scope of that duty and the persons to whom it is owed require consideration of the likelihood of injury to another from a dangerous condition on the property, the seriousness of the potential injury, the burden of avoiding the risk and the foreseeability of a potential plaintiff's presence on the property (see *Kush v City of Buffalo*, 59 NY2d 26, 29-30 [1983]; *Basso v Miller*, 40 NY2d 233, 241 [1976]). Ordinarily, a landowner's duty to warn of a latent, dangerous condition on his property is a natural counterpart to his duty to maintain his property in a reasonably safe condition (see *Tagle v Jakob*, 97 NY2d 165, 169 [2001]; *Basso v Miller*, 40 NY2d at 239; *Soich v Farone*, 307 AD2d 658, 659 [3d Dept 2003]).

However, as a general matter, an owner owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the owner had created or contributed to it (see *Gehler v City of New York*, 261 AD2d 506 [2d Dept 1999]; *Pensabene v Incorporated Vil. of Val. Stream*, 202 AD2d 486 [2d Dept 1994]; *Gipson v Velej*, 192 AD2d 826 [3d Dept 1993]). The reason for such a rule is obvious—a person who lacks ownership or control of property cannot fairly be held accountable for injuries resulting from a hazard on the property. We hold that this rule requires dismissal of plaintiff's claim against Clark.

To be sure, this case presents the unusual situation in which a dangerous condition on neighboring property caused the decedent's death while he was on the defendant's property. Yet the fact remains that because Clark had no ownership or control of the property on which the tree stood, he did not have it within his power to correct the hazard that the tree posed. Indeed, had

Clark attempted to remove the tree to eliminate the danger, he could have been subject to criminal charges.*

We reject plaintiff's contention that though Clark had no duty to remedy the danger, he did have a duty to warn the decedent of it. We agree with the Appellate Division that as a general matter, it would create an "unreasonably onerous" burden to require a landowner to evaluate and warn others about a danger caused by a condition existing on neighboring land. (305 AD2d 538, 539 [2003].) We do not exclude the possibility that some dangers from neighboring property might be so clearly known to the landowner, though not open or obvious to others, that a duty to warn would arise. Here, there was no such danger.

Though Clark was clearly aware of the leaning tree and concerned that it might one day damage his property, he had no reason to, and did not, anticipate that the tree would fall either where or when it did. Clark testified that the leaning of the tree was fractional, approximately 3.5 degrees the day before the accident and a little more the day that it fell. Of course, Clark was not an arborist and from such a tilt could not be expected to predict that the tree was about to fall, and if so, how it would fall. Even when he brought the tree to the attention of Scott, who had been removing foliage from the street on behalf of the Town, Scott showed little concern for the well-being of the tree or for the potential damage it could cause, but simply gave Clark a phone number to call. During his deposition, Clark testified that it was difficult to know the path the tree would take. He opined that it could have fallen onto an adjacent tree located on his property; it could have rolled into the street, taking out power lines and blocking traffic; or it could have fallen onto his house.

Clark did not consider the situation so precarious as to warrant taking precautions for himself or for his wife—though Clark testified that his wife's car was parked "on the edge of a potential danger radius." He did not move the car, and he continued to stay in his home with his wife after he had noted

* Section 5-11 of the Code of the Town of Clarkstown states, "No person . . . shall do or cause to be done any damage nor shall . . . destroy any grass, shrub or tree upon town highways, town parks or other town property." Section 5-17 of the Code states, "Any person committing an offense against the provisions of §§ 5-7 through 5-16, inclusive, of this chapter shall be guilty of a violation punishable by a fine not exceeding two hundred fifty dollars (\$250) or by imprisonment for a term not exceeding fifteen (15) days, or by both such fine and imprisonment."

the possibility that the tree would fall on his property. Under these circumstances, it is apparent that there was no obvious hazard that could give rise to a duty to warn.

In sum, we conclude that Clark had no duty under the facts of this case to warn decedent of the hazard the tree posed.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge KAYE (dissenting). We are unanimous in two respects—one procedural, one substantive. Procedurally, this is a summary judgment motion, where we need determine only whether triable issues of fact exist permitting the case to proceed to trial. Substantively, we all agree on the governing legal standard: A landowner owes a duty to prevent foreseeable injuries by exercising reasonable care in maintaining his or her property in a safe condition under all of the circumstances, including the likelihood of injury to others, the seriousness of the potential injuries, the burden of avoiding the risk and the foreseeability of a potential plaintiff's presence on the property (see *Basso v Miller*, 40 NY2d 233, 241 [1976]). This duty includes a duty to warn of potentially dangerous conditions on the property, unless such conditions are open and obvious.

In granting defendant summary judgment, however, the Court now concludes as a matter of law that the duty to warn a visitor of a known danger exists when the source of the danger arises on one's own property, but not when it originates inches over the property line. I cannot join in this rule.

To my mind, what matters is not the source of the danger but the locus of the risk of injury—here plainly situated on defendant's property, as defendant acknowledges he knew. Defendant admitted that

- he reported to the Clarkstown Highway Department that the tree “looked to me to be threatening to do some damage to, A, either my property or the road or power lines”; and
- he placed a second phone call with “a little more urgency because I felt the tree had gotten worse”; and
- the tree “looked to me to be a problem, a serious problem” and appeared “wounded enough to cause concern about its ultimate fate”; and

- “[i]t looked like there was a possibility it would come down.”

Defendant further testified that he informed the Highway Department that the tree might present a hazard to his house and that in order for the tree to fall and strike his house, “[i]t would have fallen straight down the line of the driveway.” (Emphasis added.) In fact, the tree that crushed Mr. Galindo to death did indeed fall straight down the line of the driveway and, as anticipated, did strike defendant’s house. These admissions made throughout defendant’s testimony certainly created triable issues of fact as to his knowledge of the danger and the foreseeability of the harm.

As the Appellate Division dissent explained, “It makes no difference that the instrument of injury or death is located on adjacent property if the consequence of its fall is injury or death occurring on the owner’s property” (305 AD2d 538, 540 [2003]).

True, an abutting property owner generally owes no duty to warn or protect third parties from a dangerous or defective condition on neighboring premises, unless the owner created or contributed to the dangerous condition. But what the Court fails to recognize is that the hazard here was *not* on neighboring premises. The uprooted tree posed a threat to—and caused a death in—defendant’s own driveway.

True, defendant had neither the duty nor the right to remove the tree or otherwise eliminate the danger. But that is irrelevant to the issue whether defendant had a duty simply to warn of a danger that he could nevertheless not himself repair. That being so, there is no principled reason why a property owner aware of the risk should owe a duty to warn a visitor that a branch dangling from a tree on his property is about to fall on the visitor’s head, but may stand quietly by when its roots grow in the neighbor’s soil. A landowner must “act reasonably when considering all the circumstances” (*Peralta v Henriquez*, 100 NY2d 139, 144 [2003]) and the standard of care should “accord[] with the mores of our society” (*Gallagher v St. Raymond’s R.C. Church*, 21 NY2d 554, 558 [1968]). If a live power line were dangling precariously over a person’s property, any homeowner—though unable to eliminate the danger other than by calling the local utility who owns the line—would warn children to stay away. If the danger were not open and obvious—perhaps at night—the owner should warn visitors as well.

The rule should remain what it has always been: A landowner has a duty to warn of a known hazard on his or her premises—regardless of the ultimate source of the danger. Permitting a trial in these circumstances imposes no duty on landowners to

inspect neighboring premises or to learn of hidden dangers. Only when the property owner *actually knows* of the danger emanating from the abutting property—a danger that poses a risk of injury on the owner’s own property—should there be a duty to warn. Recognizing such a duty imposes a minimal burden on landowners but its fulfillment here could have saved a life.

The Court’s contention that the harm was not foreseeable does not resolve the issue before us, because that conclusion applies with equal force on whichever side of the property line the tree was located. The answer to the question whether defendant could tell by the tilt of this tree where it would fall is precisely the same regardless of where defendant’s property ended and his neighbor’s began. If defendant had owned both properties, we would not debate whether he had a duty to warn. Since the record supports the conclusion that he knew of the risk, the result should be no different here.

In concluding instead that the risk of injury was not foreseeable as a matter of law because this defendant did not take steps to protect himself and his family from danger, the Court misapprehends the law of negligence. The test is not whether defendant stayed at home or moved his wife’s car. The test is an objective one: what a reasonable person would do under the circumstances. That defendant may have negligently, perhaps recklessly, remained in a house he believed—correctly, as it turned out—potentially in danger did not render the risk of injury unforeseeable as a matter of law. Nor could his failure to determine whether anyone was in Galindo’s car at the moment he left his house absolve him of the duty to warn the car’s owner of the risk posed to her property—or to herself if she got in the car to drive it, as car owners are wont to do.

Whether the tree in fact posed a danger, whether the risk that it would fall on the driveway was foreseeable, whether defendant took reasonable care to warn, whether the danger was open and obvious—all these are questions to be determined at trial. “[T]he question of proof in individual situations should not be the arbitrary basis upon which to bar all actions” (*Bovsun v Sanperi*, 61 NY2d 219, 231 [1984] [citation and internal quotation marks omitted]).

Judges ROSENBLATT, READ and R.S. SMITH concur with Judge G.B. SMITH; Chief Judge KAYE dissents in a separate opinion in which Judges CIPARICK and GRAFFEO concur.

Order affirmed, with costs.

[814 NE2d 426, 781 NYS2d 256]

In the Matter of LILLIAN ROBERTS, as Executive Director of District Council 37, American Federation of State, County and Municipal Employees, AFL-CIO, et al., Respondents, v JOHN J. MURPHY, as Executive Director of New York City Employees' Retirement System, et al., Appellants.

Argued May 4, 2004; decided June 3, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 15, 2003. The Appellate Division affirmed so much of a judgment of the Supreme Court, New York County (Emily Jane Goodman, J.), entered in a proceeding pursuant to CPLR article 78, as had declared that Tier IV emergency medical technicians and advance emergency medical technicians, whose applications for performance-of-duty three-quarters disability retirement benefits pursuant to Retirement and Social Security Law § 607-b were denied by respondents, are entitled to a medical review of such adverse determinations pursuant to Retirement and Social Security Law § 605 (e).

Matter of Roberts v Murphy, 305 AD2d 237, reversed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Three-Quarters Disability Retirement — Right to Medical Review

Tier IV emergency medical technicians (EMTs) and advanced EMTs whose applications pursuant to Retirement and Social Security Law § 607-b for performance-of-duty three-quarters disability retirement benefits were denied, were not entitled to medical review of their adverse determinations pursuant to Retirement and Social Security Law § 605 (e). Section 607-b was enacted to provide Tier IV EMTs with the enhanced disability retirement benefits available to their firefighter counterparts. Firefighters are not entitled to a medical review under section 605 (e), and affording the EMTs the additional level of review would create a new disparity between EMTs and firefighters. Moreover, section 607-b does not reference section 605 (e), and section 605 (e) states that it applies only to those who seek benefits "pursuant to this section."

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Pensions and Retirement Funds §§ 1174, 1206, 1207, 1211.

McKINNEY'S, Retirement and Social Security Law § 605 (e);
McKINNEY'S, Retirement and Social Security Law § 607-b.

NY JUR 2d, Pensions and Retirement Systems §§ 133, 215, 329.

ANNOTATION REFERENCE

See ALR Index under Pension and Retirement.

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Database: NY-ORCS

Query: emt /p disability /s retirement & medical /3 review

POINTS OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Victoria Scalzo, Paul L. Herzfeld, Francis F. Caputo and Susan Sanders* of counsel), for appellants. Medical review pursuant to Retirement and Social Security Law § 605 (e) is not available to Tier IV emergency medical technicians applying for performance of duty disability retirement pursuant to Retirement and Social Security Law § 607-b. (*Morales v County of Nassau*, 94 NY2d 218; *Thoreson v Penthouse Intl.*, 80 NY2d 490; *Eaton v New York City Conciliation & Appeals Bd.*, 56 NY2d 340; *Matter of Hays v Ward*, 179 AD2d 427, 80 NY2d 754; *Matter of Borenstein v New York City Employees' Retirement Sys.*, 88 NY2d 756; *I-T-E Imperial Corp.—Empire Div. v Bankers Trust Co.*, 51 NY2d 811; *People v Solomon*, 296 NY 220; *American Bank v Goss*, 236 NY 488; *Matter of Rapp v New York City Employees' Retirement Sys.*, 53 AD2d 571, 42 NY2d 1; *Flanagan v Mount Eden Gen. Hosp.*, 24 NY2d 427.)

Joel Giller, New York City (*Mary J. O'Connell* of counsel), for respondents. Retirement and Social Security Law § 607-b applicants are entitled to medical review. (*I-T-E Imperial Corp.—Empire Div. v Bankers Trust Co.*, 51 NY2d 811; *People v Solomon*, 296 NY 220; *American Bank v Goss*, 236 NY 488; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Friedman-Kien v City of New York*, 92 AD2d 827; *Riley v County of Broome*, 95 NY2d 455; *Matter of Washington Post Co. v New York State Ins. Dept.*, 61 NY2d 557; *New York State Bankers Assn. v Albright*, 38 NY2d 430; *Matter of Curley v Dilworth*, 96 AD2d 903, 63 NY2d 770; *Goldstein v City of Long Beach*, 28 AD2d 558.)

OPINION OF THE COURT

Chief Judge KAYE.

This appeal asks us to determine whether Tier IV emergency

medical technicians and advanced emergency medical technicians (EMTs) who file for performance-of-duty disability retirement benefits pursuant to Retirement and Social Security Law § 607-b are entitled to review of their application by a Special Medical Committee pursuant to Retirement and Social Security Law § 605 (e). We conclude that they are not.

Petitioners are Tier IV EMTs who were injured on the job and whose applications for disability retirement benefits were reviewed—and denied—by the New York City Employees' Retirement System (NYCERS) Medical Board for three-quarter disability retirement benefits under Retirement and Social Security Law § 607-b.¹ Petitioners then appealed the Medical Board's determination to the Special Medical Committee made up of three independent doctors—pursuant to Retirement and Social Security Law § 605 (e)—who reversed the Board's determination and approved petitioners' three-quarter salary disability retirement benefits.

On May 8, 2002, NYCERS' Deputy Director informed petitioners that, notwithstanding the Special Medical Committee's determination, their benefits would be discontinued. The Deputy Director advised petitioners that

“there is no provision under the law that would allow a tier 4 EMS/EMT member of NYCERS whose application for disability retirement under Section 607-b of the RSSL is denied by the NYCERS' Medical Board . . . to seek redress through Final Medical Review under Section 605-e of the RSSL. . . . Final Medical Review . . . is to be made available only to Tier 4 members who apply for disability retirement under the provisions of Section 605.”

Petitioners brought this CPLR article 78 proceeding claiming that John J. Murphy, as Executive Director of NYCERS, and

1. NYCERS is a public retirement system governed by New York law (*see* Retirement and Social Security Law arts 11, 14, 15). Employees of the City of New York may become members of NYCERS, which is administered by a Board of Trustees composed of city members, union members and each of the borough presidents. Employees who join NYCERS become members of a certain “Tier” based on the date they join the system. The NYCERS Medical Board consists of three appointed physicians. After examining an applicant seeking disability benefits they forward a written report with a recommendation to the NYCERS Board of Trustees, who can accept or reject it (*see* Administrative Code of City of NY § 13-123; NYCERS Rules, rule 23[a] [4], [6]).

Michael Bloomberg, as Mayor of the City of New York (the City), unlawfully terminated their three-quarter disability retirement benefits and health insurance coverage after their applications had been approved by a Special Medical Committee. Supreme Court concluded that petitioners were entitled to the additional medical review, finding “ambiguity inherent in RSSL § 607-b.” In the court’s words, “[b]ecause RSSL § 607-b incorporates RSSL § 605 (c) by reference, and the procedures referred to therein were subsequently expanded by RSSL § 605 (e) to include medical review, resort should be made to interpretation beyond the words of the statute.”² The Appellate Division affirmed, noting that “Retirement and Social Security Law § 607-b is not a ‘stand-alone’ statute” (305 AD2d 237, 238 [1st Dept 2003]). We now reverse.

Discussion

Retirement and Social Security Law article 15 provides a comprehensive scheme of retirement benefits through which city employees may receive a pension upon retirement from service, after meeting specified age and length-of-service requirements (*see e.g.* Retirement and Social Security Law §§ 600—604-h). Employees who are disabled while on the job, and are unable to perform their duties, may retire and receive benefits prior to meeting age and the statutory length-of-service requirements (*see* Retirement and Social Security Law §§ 605—607-d). At issue in this litigation are “Performance of duty disability retirement” benefits for EMTs, provided for as follows (Retirement and Social Security Law § 607-b [a]):

“Any member of the New York city employees’ retirement system who is employed by the city of New York . . . in the position of [EMT] . . . who . . . becomes physically or mentally incapacitated for the performance of duties as the natural and proximate result of an injury, sustained in the per-

2. Prior to argument before the Appellate Division, the parties stipulated that, regardless of the outcome of this case, NYCERS would pay performance-of-duty disability retirement benefits to any member whose application for such benefits filed pursuant to Retirement and Social Security Law § 607-b had been approved after review by a Special Medical Committee, prior to commencement of this proceeding. Thus, the only issue before us is whether independent medical review under Retirement and Social Security Law § 605 (e) should be available *prospectively* to EMTs applying for three-quarter disability retirement benefits under Retirement and Social Security Law § 607-b.

formance or discharge of his or her duties shall be paid a performance of duty disability retirement allowance equal to three-quarters of final average salary, subject to the provisions of subdivision c of section six hundred five of this article and section 13-176 of the administrative code of the city of New York.”

Section 607-b was enacted in 1998 to rectify a “grossly unfair” and “serious inequity” that became apparent after the City’s Emergency Medical Service merged into the Fire Department Bureau of Emergency Medical Services (Mem of Assembly in Support, 1998 McKinney’s Session Laws of NY, at 1979, 1980). EMTs worked side-by-side with members of the Fire Department but received drastically different disability retirement benefits. “If a [paramedic or EMT] and a fire-fighter both suffer[ed] a serious disabling injury at the same emergency, the firefighter [could] receive a 75% pension for life. The [paramedic or EMT] receiv[ed] 18 months of disability wages and then face[d] termination if he/she [could not] return to work” (*id.* at 1980).³ The law sought to “overcome[] this unfairness and recognize[] the strenuous and dangerous working conditions that New York City EMTs face” (*id.*). Thus, the statute was amended to add section 607-b to provide Tier IV EMTs with the enhanced benefit available to their firefighter counterparts.

Section 607-b expressly incorporates by reference section 605 (c), a general provision that sets forth the method by which NYCERS’ Medical Board may make determinations as to the initial entitlement to a disability retirement allowance. Section 605 (c) provides that “Each retirement system shall be entitled to adopt appropriate procedures for making the foregoing determination, including but not limited to the conducting of medical examinations, if any, for the purpose of determining initial entitlement of an applicant for disability retirement or to continued entitlement to a disability retirement allowance.”

Petitioners ask us to add another link between the sections of the statute. They contend that because section 607-b expressly incorporates section 605 (c), and because the procedures

3. Prior to the enactment of section 607-b, Tier IV EMTs applied for performance-of-duty disability retirement benefits under Retirement and Social Security Law § 605, which generally entitled them to benefits equal to the greater of one third of their final average salary or one sixtieth of their final average salary, multiplied by the number of years of credited service (*see* Retirement and Social Security Law § 605 [d] [3]).

referenced in section 605 (c) were subsequently expanded by Retirement and Social Security Law § 605 (e) to include an additional layer of medical review, section 605 (e) benefits should also apply to performance-of-duty disability retirement benefits under section 607-b. Petitioners' argument has no support in the language or legislative history of section 607-b.

Retirement and Social Security Law § 605 (e), enacted less than two months after section 607-b, provides:

“The board of trustees of the [NYCERS] may, consistent with the provisions of this section, adopt rules and regulations establishing a procedure for the medical review of determinations made by such retirement system on applications for disability retirement filed pursuant to this section.”

Pursuant to section 605 (e) a party can request review of the Medical Board's initial determination by a Special Medical Committee consisting of three physicians whose recommendation supersedes the Medical Board's (*see* NYCERS Rules, rule 23[a] [10]).

The plain language of Retirement and Social Security Law § 607-b specifically references only section 605 (c). Significantly, after enacting section 605 (e), the Legislature did not amend section 607-b to incorporate it. Additionally, section 605 (e) states that it applies only to those who seek benefits “pursuant to this section”—not the enhanced benefits under section 607-b. The NYCERS Rules promulgated thereunder also provide that they govern “all applications for disability retirement filed by members subject to the provisions of §605 of ARTICLE 15 of the *RSSL*” (NYCERS Rules, rule 23[a] [1]).

The legislative history further supports the conclusion we reach. Section 605 (e) was added to the generalized “Disability retirement” scheme of section 605 to rectify “Tier inequity” “by providing Tier III and IV members of NYCERS with the same medical review rights as Tier I and II members of NYCERS” (Mem of Senate in Support, 1998 McKinney's Session Laws of NY, at 1997). If EMTs are now afforded the additional level of review provided for in section 605 (e), the legislative intent of section 607-b would be frustrated and a new disparity introduced between EMTs and firefighters, as firefighters are not entitled to section 605 (e) review. Having acted specifically to eliminate the disparity between EMTs and firefighters, it is inconceivable that the Legislature, less than two months later, would have intended implicitly to create a new disparity.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the petition dismissed.

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[814 NE2d 431, 781 NYS2d 261]

ONA BRILL et al., Appellants, v CITY OF NEW YORK, Respondent,
et al., Defendants.

Argued May 5, 2004; decided June 10, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 19, 2003. The Appellate Division affirmed so much of an order of the Supreme Court, Kings County (Joseph F. Bruno, J.), as had granted that branch of the motion of defendant City of New York which was for summary judgment dismissing the complaint insofar as asserted against it.

Brill v City of New York, 305 AD2d 525, reversed.

HEADNOTE**Judgments — Summary Judgment — Timeliness of Motion — Good Cause**

Supreme Court should not have considered the merits of the summary judgment motion filed by defendant almost one year after plaintiffs filed their note of issue. Defendant gave no explanation for filing the motion after the 120-day deadline specified in CPLR 3212 (a), which prohibits the filing of summary judgment motions more than 120 days after the note of issue is filed except with leave of court “on good cause shown.” The good cause contemplated by the statute requires a showing of good cause for the delay in making the motion, rather than simply permitting meritorious, nonprejudicial filings, however tardy. The appropriate remedy for a failure to satisfy the 120-day deadline is to return the case to the trial calendar, where a motion to dismiss after plaintiffs rest or a request for a directed verdict may dispose of the case during trial.

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AM JUR 2d, Summary Judgment § 13.

CARMODY-WAIT 2d, Summary Judgment §§ 39:73–39:75.

McKINNEY'S, CPLR 3212 (a).

NY JUR 2d, Summary Judgment and Pretrial Motions to
Dismiss §§ 33, 38.

SIEGEL, NY PRAC § 279.

ANNOTATION REFERENCE

See ALR Index under Summary Judgment.

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POINTS OF COUNSEL

Palmeri & Gaven, New York City (*John J. Palmeri* of counsel), for appellants. I. A properly filed prior notice map sufficiently alerted the City of New York of a dangerous condition in the area which reasonably encompassed the particular patent defect causing appellant's accident. (*Katz v City of New York*, 87 NY2d 241; *Laing v City of New York*, 71 NY2d 912; *Leary v City of Rochester*, 115 AD2d 260, 67 NY2d 866; *Doremus v Incorporated Vil. of Lynbrook*, 18 NY2d 362; *Barrett v City of Buffalo*, 96 AD2d 709; *Jones v Town of Brookhaven*, 227 AD2d 530; *Brooks v City of Binghamton*, 55 AD2d 482; *Bergamini v Town of Babylon*, 190 AD2d 650; *Pier v Pavement Resource Mgrs.*, 144 AD2d 803; *Weinreb v City of New York*, 193 AD2d 596.) II. Respondent's motion must be denied as it was not made within 120 days of the filing of the note of issue, it had not shown good cause why it had filed its motion late, and the delay was prejudicial to plaintiffs-appellants. (*Gonzalez v 98 Mag Leasing Corp.*, 95 NY2d 124; *Luciano v Apple Maintenance & Servs.*, 289 AD2d 90; *Samuel v A.T.P. Dev. Corp.*, 276 AD2d 685, 96 NY2d 708; *Quinlan v Kaufman*, 258 AD2d 453; *Brunetti v City of New York*, 286 AD2d 253; *Caiola v Allcity Ins. Co.*, 277 AD2d 273; *Morhart v City of New York*, 267 AD2d 438; *Scocozza v Tolia*, 262 AD2d 548; *Falcone v Khurana*, 294 AD2d 535; *Diaz v New York City Health & Hosps. Corp.*, 289 AD2d 365.)

Michael A. Cardozo, Corporation Counsel, New York City (*Ralph Janzen* and *Kristin M. Helmers* of counsel), for respondent. I. Since the Big Apple Pothole and Sidewalk Protection Committee map failed to indicate a defect at the alleged accident location, as a matter of law, plaintiffs could not establish compliance with the prior written notice requirement. (*Amabile v City of Buffalo*, 93 NY2d 471; *Woodson v City of New York*, 93 NY2d 936; *Katz v City of New York*, 87 NY2d 241; *Monteleone v Incorporated Vil. of Floral Park*, 74 NY2d 917; *Leary v City of Rochester*, 67 NY2d 866; *Poirier v City of Schenectady*, 85 NY2d 310; *Matter of Big Apple Pothole & Sidewalk Protection Comm. v Ameruso*, 110 Misc 2d 688, 86 AD2d 986, 56 NY2d 507; *Gruska v City of New York*, 292 AD2d 498; *Lane v City of New York*, 274 AD2d 417; *Kempler v City of New York*, 272 AD2d 584.) II. Since the belated summary judgment motion was clearly meritorious, and plaintiffs were not prejudiced by the delay, the Supreme

Court properly entertained the motion. (*Gonzalez v 98 Mag Leasing Corp.*, 95 NY2d 124; *Bergamini v Town of Babylon*, 190 AD2d 650; *Jones v Town of Brookhaven*, 227 AD2d 530; *Auger v State of New York*, 236 AD2d 177; *Rossi v Arnot Ogden Med. Ctr.*, 252 AD2d 778; *Burns v Gonzalez*, 307 AD2d 863; *Lee v City of New York*, 307 AD2d 256; *Carvajal v M. Madison LLC*, 297 AD2d 550; *Luciano v Apple Maintenance & Servs.*, 289 AD2d 90; *Borelli v Gegaj*, 248 AD2d 299.)

OPINION OF THE COURT

Chief Judge KAYE.

This appeal puts before us a recurring scenario regarding the timing of summary judgment motions that ignores statutory law, disrupts trial calendars, and undermines the goals of orderliness and efficiency in state court practice.

On June 4, 1998, plaintiffs Ona and Maurice Brill brought suit against the City of New York and others for injuries Ona Brill allegedly suffered on February 15, 1998 when she tripped and fell on a public sidewalk in Brooklyn.¹ Following discovery, on June 28, 2001, plaintiffs filed their note of issue and certificate of readiness, and sought a preference due to Ona Brill's age.

On June 18, 2002, close to a year after the trial calendar papers were filed, the City moved for summary judgment. The City gave no explanation for filing the motion after the 120-day limit specified in CPLR 3212 (a), simply arguing that it did not have prior written notice of the alleged defect at the accident site and that plaintiffs could not show an exception to the prior written notice requirement. Supreme Court determined that in the interests of judicial economy, and since Mrs. Brill did not manifest any prejudice from the delay, it would decide the summary judgment motion on the merits. The court granted the City's motion, finding plaintiffs did not prove that the City had notice of a defect at the accident site, and the Appellate Division affirmed.

We now reverse because, on these facts, Supreme Court should not have considered the merits of the City's motion for summary judgment.²

Since New York established its summary judgment procedure in 1921, summary judgment has proven a valuable, practical

1. The case has been settled with the codefendants.

2. Nor have we considered the merits of the City's motion.

tool for resolving cases that involve only questions of law (*see Merritt Hill Vineyards v Windy Hgts. Vineyard*, 61 NY2d 106, 112 [1984]). Summary judgment permits a party to show, by affidavit or other evidence, that there is no material issue of fact to be tried, and that judgment may be directed as a matter of law, thereby avoiding needless litigation cost and delay. Where appropriate, summary judgment is a great benefit both to the parties and to the overburdened New York State trial courts (*see* Siegel, NY Prac §§ 278-279, at 438-440 [3d ed]; *see also* Weinstein-Korn-Miller, NY Civ Prac ¶ 3212.01, at 32-157).

In that a summary judgment motion may resolve the entire case, obviously the timing of the motion is significant. CPLR 3212 (a) (as added by L 1962, ch 308) originally required only joinder of issue before a summary judgment motion could be made. In practice, however, the absence of an outside time limit for filing such motions became problematic, particularly when they were made on the eve of trial. Eleventh-hour summary judgment motions, sometimes used as a dilatory tactic, left inadequate time for reply or proper court consideration, and prejudiced litigants who had already devoted substantial resources to readying themselves for trial (*see Gonzalez v 98 Mag Leasing Corp.*, 95 NY2d 124, 128 [2000]; *Auger v State of New York*, 236 AD2d 177, 179 [3d Dept 1997]).

At the court system's request, in 1996 the Legislature stepped in to ameliorate the problem by amending CPLR 3212 (a) to provide that:

“the court may set a date after which no such motion may be made, such date being no earlier than thirty days after the filing of the note of issue. If no such date is set by the court, such motion shall be made no later than one hundred twenty days after the filing of the note of issue, except with leave of court on good cause shown.”

By the amendment, the Legislature maintained the courts' considerable discretion to fix a deadline for filing summary judgment motions, after joinder of issue, but mandated that no such deadline could be set earlier than 30 days after filing the note of issue or (unless set by the court) later than 120 days after the filing of the note of issue, except with leave of court on good cause shown. Thus, the Legislature struck a balance, fixing an outside limit on the time for filing summary judgment motions, but allowing courts latitude to set an alternative limit or to consider untimely motions to accommodate genuine need.

Nonetheless, the practice of filing late summary judgment motions persisted, with the statutory “good cause” requirement a new litigation battleground. Some courts concluded that “good cause” required a satisfactory explanation for movant’s delay, and refused to entertain the motion if no such showing was made (*see e.g. Carvajal v M. Madison LLC*, 297 AD2d 550, 551 [1st Dept 2002]; *Hilton v City of New Rochelle*, 298 AD2d 360, 360 [2d Dept 2002]; *Ripepe v Crown Equip. Corp.*, 300 AD2d 647 [2d Dept 2002]; *Falcone v Khurana*, 294 AD2d 535, 536 [2d Dept 2002]; *Borelli v Gegaj*, 248 AD2d 299 [1st Dept 1998]; *Di-Fusco v Wal-Mart Discount Cities*, 255 AD2d 937, 937 [4th Dept 1998]; *John v Bastien*, 178 Misc 2d 664, 666-667 [Civ Ct, Kings County 1998]; *see also Luciano v Apple Maintenance & Servs.*, 289 AD2d 90, 90-91 [1st Dept 2001] [movant’s explanation was an adequate showing of good cause for the delay]). Other courts read “good cause” to permit late filing where the motion had merit and there was no prejudice to the adversary (*see e.g. Burns v Gonzalez*, 307 AD2d 863, 864-865 [1st Dept 2003]; *Lee v City of New York*, 307 AD2d 256, 256 [2d Dept 2003]; *Simmonds v Long Is. R.R. Co.*, 296 AD2d 487, 487 [2d Dept 2002]; *Garrison v City of New York*, 300 AD2d 14, 15 [1st Dept 2002], *lv denied* 99 NY2d 510 [2003]; *Medina v Barbaro*, 279 AD2d 615, 615-616 [2d Dept 2001]).

We conclude that “good cause” in CPLR 3212 (a) requires a showing of good cause for the delay in making the motion—a satisfactory explanation for the untimeliness—rather than simply permitting meritorious, nonprejudicial filings, however tardy. That reading is supported by the language of the statute—only the movant can *show* good cause—as well as by the purpose of the amendment, to end the practice of eleventh-hour summary judgment motions. No excuse at all, or a perfunctory excuse, cannot be “good cause.”

Here, it is undisputed that the City did not file its motion within the requisite 120 days specified by the statute, and it did not submit any reason for the delay. Thus, there was no “leave of court on good cause shown,” as required by CPLR 3212 (a). The violation is clear. What to do is the more vexing issue.

In *Kihl v Pfeffer* (94 NY2d 118, 123 [1999]), we affirmed the dismissal of a complaint for failure to respond to interrogatories within court-ordered time frames, observing that “[i]f the credibility of court orders and the integrity of our judicial system are to be maintained, a litigant cannot ignore court orders with

impunity.”³ The present scenario, another example of sloppy practice threatening the integrity of our judicial system, rests instead on the violation of legislative mandate.

If this practice is tolerated and condoned, the ameliorative statute is, for all intents and purposes, obliterated. If, on the other hand, the statute is applied as written and intended, an anomaly may result, in that a meritorious summary judgment motion may be denied, burdening the litigants and trial calendar with a case that in fact leaves nothing to try. Indeed, the statute should not “provide a safe haven for frivolous or meritless lawsuits” (*Rossi v Arnot Ogden Med. Ctr.*, 252 AD2d 778, 779 [3d Dept 1998] [Grafteo, J.]), which is precisely why practitioners should move for summary judgment within the prescribed time period or offer a legitimate reason for the delay.

As Professor David Siegel—who has tracked this “controversial topic”—has promised, “we’d think better of judicial decisions that absolutely refuse to extend the time for meritorious summary judgment motions if they would tell us what is to happen in the case” (79 Siegel’s Practice Review, *Time Limit on Summary Judgment*, at 2 [Jan. 1999]; see also 51 Siegel’s Practice Review, *Strict Time Limit Placed on Motion for Summary Judgment*, at 1 [Nov. 1996]; Siegel, NY Prac § 279, at 440 [3d ed]).

What is to happen in this case is that summary judgment will be reversed and the case returned to the trial calendar, where a motion to dismiss after plaintiff rests or a request for a directed verdict may dispose of the case during trial. Hopefully, as a result of the courts’ refusal to countenance the statutory violation, there will be fewer, if any, such situations in the future, both because it is now clear that “good cause” means good cause for the delay, and because movants will develop a habit of compliance with the statutory deadlines for summary judgment motions rather than delay until trial looms.⁴

3. (See *D’Aloisi v City of New York*, 7 AD3d 750 [2d Dept 2004]; *Mendez v City of New York*, 7 AD3d 766 [2d Dept 2004].) While we of course express no view on the merits of the two recent Appellate Division decisions, as the cases cited in *Kihl* and in this opinion reveal, failure to adhere to deadlines—whether court-ordered or statutory—is not limited to the City of New York.

4. The dissent proposes monetary sanctions and preclusion as remedies (dissenting op at 655-656). Preclusion on the merits may, as a rule for the future, be wholly disproportionate to the violation. Without considering whether we may impose sanctions against a municipality for violating a statute, six of us conclude that denying summary judgment—simply not considering the merits

(n. cont’d)

Accordingly, the order of the Appellate Division should be reversed, with costs, and the motion of the City of New York for summary judgment dismissing the complaint against it denied.

G.B. SMITH, J. (dissenting). Because there was good cause for the trial court to entertain this motion and because the time of the litigants, jurors, lawyers, the judge, and other court personnel should not be wasted in going through the motions of a trial which has no merit and must be dismissed, I dissent.

On February 15, 1998, plaintiff Ona Brill decided to take a walk in an area of Brooklyn, New York. During the walk, she fell, allegedly because of a broken sidewalk. She sustained injuries to her left shoulder. Plaintiffs commenced an action against the City of New York and other defendants. The case against the other defendants was settled and only the action concerning the City of New York is before us. On June 28, 2001, plaintiffs filed a note of issue and a certificate of readiness. Subsequent to that filing, defendants filed a motion for summary judgment seeking dismissal of the action. The trial court granted the motion and the Appellate Division affirmed. This Court then granted leave to appeal.

CPLR 3212 (a) provides:

“Any party may move for summary judgment in any action, after issue has been joined; provided however, that the court may set a date after which no such motion may be made, such date being no earlier than thirty days after the filing of the note of issue. If no such date is set by the court, such motion shall be made no later than one hundred twenty days after the filing of the note of issue, except with leave of court on good cause shown.”

The trial court did not abuse its discretion in entertaining the motion. The good cause shown was the merits of the action. This action is governed by Administrative Code of the City of New York § 7-201 (c) (the Pothole Law). That section requires that the City of New York be given written notice of any defect in a sidewalk prior to a lawsuit. While the City was given notice of other sidewalk defects in the area near the accident, the City was not given notice of the defect which allegedly caused plaintiff's fall.

In reversing the order of the Appellate Division, the majority in effect states that the trial court and the Appellate Division

of an unexcused, untimely motion—is not only the correct remedy under the law but also will most effectively bring an undesirable practice to an end.

should not have applied the law. The consequence of the reversal is that a trial will commence, giving a futile hope to the litigants and wasting the time of those same litigants, the jurors, the attorneys, the judge and other court personnel. Once the parties make an opening statement or plaintiffs put in their case indicating that the appropriate notice was not given, this case will again be dismissed.

Moreover, nothing that the defendant did prejudiced the plaintiff. The clear fact is that the plaintiff cannot prove a prima facie case and thus that she is entitled to prevail.

The majority interprets the phrase good cause to mean an excuse for not moving for summary judgment in a timely manner. Lower courts have interpreted the meaning of good cause in two different ways. One meaning is a reasonable excuse for an untimely motion (*see Carvajal v M. Madison LLC*, 297 AD2d 550, 551 [1st Dept 2002]; *Hilton v City of New Rochelle*, 298 AD2d 360 [2d Dept 2002]; *Slate v State of New York*, 284 AD2d 767, 769 [3d Dept 2001]; *DiFusco v Wal-Mart Discount Cities*, 255 AD2d 937 [4th Dept 1998]). The other meaning includes the merits of a case in a determination of good cause (*see Garrison v City of New York*, 300 AD2d 14, 15 [1st Dept 2002], *lv denied* 99 NY2d 510 [2003]; *Simmonds v Long Is. R.R. Co.*, 296 AD2d 487 [2d Dept 2002]). What is clear from the legislative history is that the Legislature sought to give the trial court wide discretion in entertaining a motion for summary judgment. The Legislature could not have intended to grant a futile hope to a litigant or to waste the time of a number of people when the state courts are as burdened as they are. Thus, I cannot agree that the 1996 amendment (L 1996, ch 492), which prohibited a motion for summary judgment more than 120 days after the filing of the note of issue except with leave of court and upon good cause shown, limited good cause to an excuse for an untimely motion. The issue of the merits of the plaintiff's claim is squarely presented here and should be addressed.

Moreover, even if good cause is interpreted to mean only an excuse for an untimely motion, the appropriate remedy is to progressively impose higher penalties by way of costs and sanctions, and even, in an appropriate case, preclusion of the defen-

dant from asserting the defense of the Pothole Law.* Thus, I agree with the trial court and the Appellate Division that dismissal is appropriate in this case.

Accordingly, I dissent.

Judges CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur with Chief Judge KAYE; Judge G.B. SMITH dissents and votes to affirm in a separate opinion.

Order reversed, etc.

* See, for example, *McCain v Dinkins* (84 NY2d 216 [1994] [imposition of fines against City of New York following contempt proceedings and citing Judiciary Law § 753 (A) (3) as authority for said imposition]).

[814 NE2d 437, 781 NYS2d 267]

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Appellant, v
CITY OF SCHENECTADY et al., Respondents.

Argued June 1, 2004; decided June 29, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 26, 2003. The Appellate Division affirmed so much of a judgment (denominated decision and order) of the Supreme Court, Schenectady County (Vito C. Caruso, J.), entered in a proceeding pursuant to CPLR article 78, as had partially denied petitioner's application to annul respondents' determination denying petitioner's Freedom of Information Law requests, and had denied petitioner's request for counsel fees and costs.

Matter of New York Civ. Liberties Union v City of Schenectady, 306 AD2d 784, reversed.

HEADNOTE

Records — Freedom of Information Law — Use of Force Reports

In a proceeding challenging respondents' denial of petitioner's Freedom of Information Law request seeking "[i]ncident reports prepared by police officers pertaining to use of force," the Appellate Division's holding that petitioner's request was properly denied could not stand in light of respondent City's admission, after the Appellate Division rendered its decision, that it did not have or utilize a "use of force" form. As respondent did have incident and arrest reports that might include references to the use of force, and was willing to disclose them subject to appropriate redaction or review, the matter was remitted to Supreme Court for its direction as to documents to be produced.

TOTAL CLIENT-SERVICE LIBRARY® REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Freedom of Information Acts §§ 60–62, 67, 287, 288, 290, 295.

CARMODY-WAIT 2d, Proceeding Against a Body or Officer § 145:634.

NY JUR 2d, Records and Recording §§ 17, 19–22, 45.

ANNOTATION REFERENCE

Validity, construction, and application of statutory provisions relating to public access to police records. 82 ALR3d 19.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: foil & use /3 force /s form report

POINTS OF COUNSEL

William Schurtman, Albany, for appellant. The court below erred in holding that there is a blanket intra-agency exemption under the Freedom of Information Law for factual data in incident reports relating to the use of force by police officers. (*Matter of Gannett Co. v James*, 86 AD2d 744, 56 NY2d 502; *Matter of Newsday, Inc. v New York City Police Dept.*, 133 AD2d 4; *Matter of Gould v New York City Police Dept.*, 89 NY2d 267; *Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Russo v Nassau County Community Coll.*, 81 NY2d 690.)

Alfred L. Goldberger, Corporation Counsel, Schenectady (*L. John Van Norden* of counsel), for respondent. Police agency use of force forms, although at least in part comprised of factual data, are exempt from Freedom of Information Law disclosure because the preparation and filing of the form involves an individual, qualitative assessment which reflects an opinion rather than raw data. (*Matter of Gannett Co. v James*, 86 AD2d 744, 56 NY2d 502; *Matter of Newsday, Inc. v New York City Police Dept.*, 133 AD2d 4.)

McNamee, Lochner, Titus & Williams, P.C., Albany (*Michael J. Grygiel* and *Mathew P. Barry* of counsel), for New York Newspaper Publishers Association, Inc., and others, amici curiae. I. The Freedom of Information Law's intra-agency exemption does not bar the public from obtaining the factual information contained in police use of force records. (*Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Russo v Nassau County Community Coll.*, 81 NY2d 690; *Matter of Newsday, Inc. v Sise*, 71 NY2d 146, 486 US 1056; *Matter of Capital Newspapers, Div. of Hearst Corp. v Whalen*, 69 NY2d 246; *Matter of Lucas v Pastor*, 117 AD2d 736; *Matter of Newsday, Inc. v Empire State Dev. Corp.*, 98 NY2d 359; *Matter of Journal Publ. Co. v Office of Special Prosecutor*, 131 Misc 2d 417; *Matter of Fink v Lefkowitz*, 47 NY2d 567; *Matter of Scott, Sardano & Pomeranz v Records Access Officer of City of Syracuse*, 65 NY2d 294; *Matter of Hanig v State of N.Y. Dept. of Motor Vehs.*, 79 NY2d 106.) II. Respondents' misinterpretation of the Freedom of Information Law's intra-agency exemption

would impose a wall of secrecy over police use of force records, a result which would diminish public accountability and has been universally rejected by other state courts. (*Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Gannett Co. v James*, 86 AD2d 744; *Matter of Fink v Lefkowitz*, 47 NY2d 567; *Matter of Newsday, Inc. v New York City Police Dept.*, 133 AD2d 4; *United States Dept. of Justice v Reporters Comm. for Freedom of Press*, 489 US 749; *Environmental Protection Agency v Mink*, 410 US 73; *Department of Air Force v Rose*, 425 US 352.)

OPINION OF THE COURT

Chief Judge KAYE.

The question before us is whether “[i]ncident reports prepared by [Schenectady] police officers pertaining to use of force” are subject to production pursuant to a Freedom of Information Law (FOIL) request made by petitioner New York Civil Liberties Union (NYCLU). The muddled history of this case determines our answer to that question.

On April 24, 2000—more than four years ago—the NYCLU sent a FOIL request to the City of Schenectady requesting (among other things) “[a]ll documents, memoranda, reports and/or other writings referencing . . . [u]se of force by police officers against civilians.” The City responded that the request was “too broad,” and the NYCLU thereafter limited its request to “[i]ncident reports prepared by police officers pertaining to use of force.” The City made no response. The NYCLU then filed an appeal with the Mayor, as the Records Access Appeals Officer (*see* Public Officers Law § 89). The City again made no response and, on May 7, 2001, the Department of State Committee on Open Government issued an Advisory Opinion concluding that the City had failed to comply with FOIL.

With still no response, on August 1, 2001 the NYCLU filed this CPLR article 78 proceeding alleging that the City violated FOIL by neither producing the requested records nor submitting a particularized, specific justification for its failure to do so. The City then produced certain documents including Police Objective Review Committee’s Annual Reports for 1999 and 2000 and offered to provide access to the Corporation Counsel’s “Claim Book” listing all filed claims.

Before Supreme Court, the City represented that the records being sought were “of the same type” as those sought in *Matter of Gannett Co. v James* (86 AD2d 744 [4th Dept 1982], *lv denied*

56 NY2d 502 [1982]) where the “Use of Force” form utilized by the Rochester Police Department was exempt from FOIL disclosure. Citing *Gannett*, Supreme Court agreed that the City was not required to produce the incident reports because “case authority squarely holds that incident reports prepared by police officers detailing use of force are exempt from disclosure under Public Officers Law § 87 (2) (g).” Before the Appellate Division, the City again argued that the Schenectady use of force form was “essentially identical” to the form used in *Gannett* and therefore production was not required. The Appellate Division affirmed, concluding that “the Court of Appeals’ decision in [*Matter of Gould v New York City Police Dept.*, 89 NY2d 267 (1996)] neither erodes nor overrules the Fourth Department’s holding in *Gannett Co.*” (306 AD2d 784, 786 [3d Dept 2003].) We granted the NYCLU leave to appeal (1 NY3d 503 [2003]).

After the NYCLU’s brief was filed, the City informed this Court by letter that it had discovered “a misunderstanding of the record.” Supported by the affidavit of the Police Chief enclosed with its letter, the City represented to us that it “does not have or utilize a ‘Use of Force’ form. In fact, the City has no routine procedure for reporting use of force other than references that might be included in standard incident and arrest reports which would normally be available for inspection pursuant to NY Public Officers Law § 87, or in the course of internal affairs investigations which would be exempt from public inspection pursuant to POL § 87 (2) (a) and Civil Rights Law § 50-a.” Additionally, the City wrote us, “the present Administration would have likely agreed to disclosure of use of force materials, redacted to safeguard exempt information, or to an in camera review by Supreme Court.” The Police Chief’s affidavit, however, further states that “searching the thousands of such reports each year to determine whether any reference to the use of force is entered therein would present a considerable burden on the personnel of my department.”

The NYCLU countered that it had been given a “runaround for the past four years,” and asks us to order production subject to an in camera inspection of records as to which an exemption is claimed. The City’s brief before this Court—completed after its representation that it does not have any use of force forms—continues to address the theoretical issue regarding whether use of force forms are exempt from disclosure.

The City’s inconsistent position presents a situation far different from the leave application, and creates a quandary.

Though the legal issue that has been briefed centers on use of force forms essentially identical to Rochester's in *Gannett* (see *Matter of Newsday, Inc. v New York City Police Dept.*, 133 AD2d 4, 18-19 [1st Dept 1987] [annexing the form]), we now know from correspondence and oral argument that in fact the City has no such records. Deciding whether such documents, had they existed, would have been subject to FOIL production is thus an academic issue. We do not decide academic issues, and on this record have no occasion to consider whether *Gannett* has any continuing viability after *Gould*. By the same token, the City acknowledges that its incident and arrest reports would normally be subject to FOIL, and that it would agree to disclosure of existing use of force materials, redacted to safeguard exempt information, or to an in camera review, but maintains that searching the thousands of such documents involved would be burdensome.

In this setting, the Appellate Division conclusion that "the denial of petitioner's request in this regard was entirely proper" (306 AD2d at 786) cannot stand. The City does have incident and arrest reports that may include reference to use of force, and would be willing to disclose those subject to appropriate redaction or review. Denial of petitioner's request was therefore not "entirely proper." The shifting sands have, however, obscured even what records are in dispute at this time, although the parties at oral argument indicated essential agreement that at least documents evidencing assaults or injuries to a police officer or suspect, or use of a weapon, and documents pertaining to resisting arrest would pertain to use of force and would be subject to FOIL production.

Oral argument before the Court of Appeals is not the time or place for fixing the precise parameters of records "pertaining to use of force." What is clear above all is that the "runaround" must end. The matter should therefore be remitted to Supreme Court, for its direction—consistent with the City's obligations and acknowledgments—as to documents to be produced, subject to review by that court or a referee as necessary. The City is reminded that government records are "presumptively open," statutory exemptions are "narrowly construed," and the City must articulate a "particularized and specific justification" for nondisclosure (*Matter of Gould v New York City Police Dept.*, 89 NY2d 267, 274, 275 [1996] [internal quotation marks omitted]). We trust that the City's present attitude toward its disclosure obligations, together with Supreme Court's expeditious resolu-

tion of disputed issues, will bring a prompt and satisfactory end to this matter.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order reversed, etc.

[814 NE2d 440, 781 NYS2d 270]

ANONYMOUS, Respondent, v BUREAU OF PROFESSIONAL MEDICAL
CONDUCT/STATE BOARD FOR PROFESSIONAL MEDICAL CON-
DUCT et al., Appellants.

Argued June 1, 2004; decided June 29, 2004

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 11, 2003. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Kibbie F. Payne, J.; op 194 Misc 2d 433), entered in a proceeding pursuant to CPLR article 78, which had dismissed the petition to annul respondent State Board for Professional Medical Conduct's determination to publish, on respondent Department of Health's Web site, the determination and order issued in connection with a medical disciplinary proceeding against petitioner, (2) granted the petition, and (3) directed respondents to withdraw from public access those portions of the statement of charges, determination and order, and any other records which relate in any way to the charges which were not sustained against petitioner.

Anonymous v Bureau of Professional Med. Conduct, 309 AD2d 44, affirmed.

HEADNOTES

Physicians and Surgeons — Disciplinary Proceedings — Dissemination of Unsustained Charges

1. The requirement that a physician disciplinary proceeding remain confidential until finally determined, as provided for in Public Health Law § 230 (9), continues to exist after a determination in the physician's favor. The confidentiality provided for in the statute is not limited to pending proceedings. Other statutory provisions require that proceedings in which physicians were subjected to administrative warnings, consultations, or monitoring orders remain confidential. It would be inconsistent to grant the public access to records of terminated proceedings that led to a physician's complete exoneration.

Physicians and Surgeons — Disciplinary Proceedings — Dissemination of Unsustained Charges Together with Sustained Charge

2. Respondent Department of Health abused its discretion by releasing to the public all of the charges and their disposition in a physician disciplinary proceeding against petitioner, who was exonerated of all the charges except one minor one not closely related to the others. In cases where disciplinary

proceedings lead to a mixed result, respondent has discretion in deciding whether its records should be redacted to keep confidential material relating to the charges that were not sustained. Here, the dismissed charges, which related to a romantic encounter and involved alleged abuse of a patient's trust, and the charge that was sustained, which related to a telephoned prescription and involved a bit of carelessness in record-keeping, were very different in kind and gravity, and did not arise out of simultaneous or closely-connected events. There was no justification for permitting a "technical violation" to result in sensational, but discredited, charges of serious wrongdoing becoming available to the public.

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By the Publisher's Editorial Staff

AM JUR 2d, Physicians, Surgeons, and Other Healers §§ 89, 102.

McKINNEY'S, Public Health Law § 230 (9).

NY JUR 2d, Physicians, Surgeons, and Other Healers §§ 5, 72.

ANNOTATION REFERENCE

See ALR Index under Discipline and Disciplinary Actions; Physicians and Surgeons.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: physician doctor /3 disciplin! /s confidential!

POINTS OF COUNSEL

Eliot Spitzer, Attorney General, New York City (James M. Hershler, Michael S. Belohlavek and Marion R. Buchbinder of counsel), for appellants. I. The Health Department's publication of the complete text of final determinations and orders which both sustain and dismiss professional misconduct charges is consistent with the law and public policy. (*Matter of McBarnette v Sobol*, 83 NY2d 333; *Matter of Johnson Newspaper Corp. v Melino*, 77 NY2d 1; *People ex rel. Karlin v Culkin*, 248 NY 465; *Matter of J.P. v Chassin*, 189 AD2d 137, 82 NY2d 694; *Doe v Office of Professional Med. Conduct*, 81 NY2d 1050; *Matter of Di Marsico v Ambach*, 48 NY2d 576; *Matter of Richstone v Novello*, 284 AD2d 737; *Matter of Selkin v State Bd. for Professional Med. Conduct*, 279 AD2d 720; *Matter of Mucciolo v Fernandez*, 195 AD2d 623; *Matter of Suslovich v New York State Educ. Dept.*, 174 AD2d 802.) II. Supreme Court correctly found that the Health Department did not violate petitioner's equal protection rights. (*Matter of Allen v Howe*, 84 NY2d 665; *Matter of Camp-*

erlengo v Barell, 164 AD2d 633; *Matter of Mucciolo v Fernandez*, 195 AD2d 623; *Heller v Doe*, 509 US 312.)

Law Offices of Charles A. Singer, Melville (*Charles A. Singer* of counsel), for respondent. I. As found by the Appellate Division, the public policy of this State, the express terms of Public Health Law § 230, and logic, decency and fairness require that appellants keep confidential, after final determination, the existence and terms of dismissed and rejected charges and factual accusations. (*People ex rel. Karlin v Culkin*, 248 NY 465; *Matter of Johnson Newspaper Corp. v Melino*, 77 NY2d 1; *Matter of Doe v Axelrod*, 123 AD2d 21, 71 NY2d 484; *Doe v Office of Professional Med. Conduct*, 81 NY2d 1050; *Matter of J.P. v Chassin*, 82 NY2d 694; *Matter of McBarnette v Sobol*, 83 NY2d 333; *Matter of Judge Rotenberg Educ. Ctr. v Maul*, 91 NY2d 298; *Matter of Scanlan v Buffalo Pub. School Sys.*, 90 NY2d 662; *Dougherty v Carver Fed. Sav. Bank*, 112 F3d 613.) II. Appellants' arguments are unsupported and/or defy logic and basic fairness. (*Doe v Office of Professional Med. Conduct*, 81 NY2d 1050; *Matter of Johnson Newspaper Corp. v Melino*, 77 NY2d 1.) III. If, as appellants argue, Public Health Law § 230 is construed to require public dissemination of rejected accusations of serious professional misconduct because of a finding of liability for an accompanying technical violation which, had it been alleged separately, would remain confidential, then the statute and its implementation must be found unconstitutional. (*Lehr v Robertson*, 463 US 248; *Sound Aircraft Servs. v Town of E. Hampton*, 192 F3d 329.)

OPINION OF THE COURT

R.S. SMITH, J.

In *Doe v Office of Professional Med. Conduct* (81 NY2d 1050, 1052 [1993]) we interpreted Public Health Law § 230 (9) to require that disciplinary proceedings brought against physicians "remain confidential until finally determined." We decide today that, where the proceedings are determined in the physician's favor, the requirement of confidentiality continues to exist after the determination. We also decide that in this case, where a physician was exonerated of all the charges against him except one minor one not closely related to the others, the Department of Health abused its discretion by releasing to the public all of the charges and their disposition.

Facts

Petitioner-respondent (petitioner) is a doctor practicing in Manhattan. On October 28, 1999, the State Board for Profes-

sional Medical Conduct, the Department's professional disciplinary agency, brought charges against him for "willfully harassing, abusing a patient physically," "failure to maintain records," "moral unfitness," "fraudulent practice" and "practicing beyond the scope." The charges were based on the complaint of a woman who said she had been petitioner's patient.

The Board, relying on the assertions of the complaining witness, alleged that petitioner had treated her "late one evening" at his office for a "sinus infection and a headache . . . with massage and acupuncture." During the treatment, according to the allegations, petitioner induced her to remove clothing, massaged her intimately and kissed her. It was also alleged that he engaged in the practice of acupuncture without an appropriate certificate or license, and that he failed to maintain a medical record accurately reflecting the treatment, condition and/or diagnosis of the complaining witness.

A hearing was held before a committee on professional conduct, as provided by Public Health Law § 230 (10) (e) and (f). After the hearing, the Committee issued a "Determination and Order" on April 28, 2000, rejecting all of the charges except for one instance of failure to maintain a medical record. The Committee found that, while there was an "office encounter" between the complaining witness and petitioner, the encounter "was of a social nature." It found that the complaining witness did not go to petitioner's office for medical reasons, and that while they were there he did not offer medical care and she did not request it. The Committee noted that petitioner was "foolish" in choosing his office as the location of this social interaction, but found that no professional misconduct in connection with the office encounter had been proved.

The Committee also found that, a week or more after the office meeting, the complaining witness asked petitioner to give her a prescription for sinus problems; that he phoned in a prescription of Cipro for her; and that he failed to maintain a record of having done so. The Committee stated that it had "discussed giving [petitioner] an administrative warning" for this "technical violation," but had been advised that a mere warning could not be issued after a hearing, and therefore decided that the appropriate penalty was a reprimand. Petitioner did not seek review of this determination.

It is the position of the Department, as expressed in this litigation, that all final determinations in physician disciplinary

proceedings, whether favorable or unfavorable to the physician accused, may be made available to the public. It is the Department's policy, however, to post a record of the charges made and their determination on its Web site only in cases where some disciplinary order against a physician has been issued. If any discipline is imposed, the Department posts all of the charges and determinations, without redaction. Accordingly, after petitioner's time to seek review of the Committee's determination had expired, the charges against him and the Committee's resolution of them became available on the Internet. Petitioner apparently did not discover this for some considerable time.

On February 14, 2002, petitioner's attorney requested by letter that the Department withdraw all references to the proceedings from its Internet site, and maintain "all records pertaining to this matter . . . in absolute confidence." The request was rejected, and petitioner brought the present proceeding pursuant to CPLR article 78, asking that the Board and the Department be compelled to withdraw the materials in question from public access and to keep them confidential. Supreme Court dismissed the petition. The Appellate Division reversed and granted the petition, directing the Board and the Department to "withdraw from public access those portions of the statement of charges, determination and order, and any other records which relate in any way to the charges which were not sustained" (309 AD2d 44, 53 [2003]). The Appellate Division granted leave to appeal, and we now affirm the Appellate Division's order.

Discussion

Our decision in *Doe* is the starting point for our analysis. *Doe* was brought by a physician while disciplinary proceedings were pending against him. He asked that the proceedings be closed, and we held he was entitled to that relief. Our decision was based on Public Health Law § 230 (9), which provides:

"Notwithstanding any other provisions of law, neither the proceedings nor the records of any such committee [i.e., a committee on professional conduct] shall be subject to disclosure under article thirty-one of the civil practice law and rules except as hereinafter provided. No person in attendance at a meeting of any such committee shall be required to testify as to what transpired thereat. The prohibition relating to discovery of testimony shall not

apply to the statements made by any person in attendance at such a meeting who is a party to an action or proceeding the subject matter of which was reviewed at such meeting.”

Although this section on its face prohibits only disclosure under the CPLR’s discovery provisions, we said in *Doe*, relying on our prior decision in *Matter of John P v Whalen* (54 NY2d 89 [1981]), that section 230 (9) “when read in conjunction with the statute as a whole . . . mandat[es] confidentiality in physician disciplinary proceedings” (*Doe*, 81 NY2d at 1052). There would be little point in section 230 (9)’s prohibition on civil discovery if the materials protected by that statute were publicly available.

[1] The issue in this case arises from our statement in *Doe* that “[o]ur construction of the statute is consistent with the general policy that disciplinary proceedings involving licensed professionals remain confidential *until finally determined*” (*id.* [emphasis added]). The Department interprets this language to mean that, after final determination, the confidentiality restriction ceases to exist, whether the physician is found guilty or innocent of the charges. The Department does not affirmatively publicize determinations unless they are, at least in part, adverse to the physician, but that in the Department’s view is a matter of its own choice, not a legal requirement. Petitioner, however, argues that the quoted language from *Doe* means only that proceedings can become public after a final determination adverse to the physician, and that proceedings in which the physician is exonerated must remain confidential. We agree with petitioner.

The “general policy” we relied on in *Doe* relating to “disciplinary proceedings involving licensed professionals” was intended, in significant part, to protect professionals against the disastrous effect that public knowledge of unfounded charges can have on a professional career. “Reputation in such a calling is a plant of tender growth, and its bloom, once lost, is not easily restored” (*People ex rel. Karlin v Culkin*, 248 NY 465, 478 [1928] [Cardozo, Ch. J.] [referring to the legal profession]). The Department argues that dissemination of unfounded charges after they have been resolved will not injure a doctor’s reputation, because the public, in learning of the charges, will also learn that they have been dismissed. We conclude, as did the Appellate Division, that this is unrealistic. Many people who learn that a doctor has been charged with misconduct will think it possible that

there was something to the charges, even if they were not upheld. Belief in that possibility will often be enough to make a prospective patient seek out another doctor. No one, but especially not a professional whose livelihood depends on being thought trustworthy, would want it generally known that he was accused by a state agency (though found not guilty) of harassment, abuse, “moral unfitness” for his profession and fraud.

It is true, as we noted in *Doe*, that a professional’s interest in the confidentiality of charges brought against him is not the only relevant policy consideration. There is a strong public interest in the enforcement of the rules against professional misconduct, and it can be argued that the public should have a right to know all the details of enforcement proceedings so that it can evaluate, among other things, the vigor and efficiency with which allegations of misconduct are being pursued. As we said in *Doe*, however, the choice between “conflicting policy values” is best made by the Legislature (*Doe*, 81 NY2d at 1053). We decided in *Doe* that the applicable legislation, Public Health Law § 230 (9), required that pending disciplinary proceedings not be open to the public, and we now hold that it also requires confidentiality of terminated proceedings that have been resolved in the physician’s favor.

The language of section 230 (9) gives no support to the idea that the confidentiality provided for in that section is limited to pending proceedings. On the contrary, the words “neither the proceedings *nor the records* . . . shall be subject to disclosure” (emphasis added) imply that pending and terminated proceedings should be treated alike. We do not read this to mean that all terminated proceedings, even those in which there have been findings of misconduct, must remain confidential, but the statute clearly does not support the Department’s view that the termination of proceedings by itself is enough to make the statute’s protections disappear.

Other subdivisions of Public Health Law § 230 govern the confidentiality or public availability of materials relating to specific physician disciplinary proceedings. These subdivisions, while they do not directly answer the question presented here, help to give an overall picture of the statutory framework. Two subdivisions provide that certain actions adverse to the physician, short of formal discipline, shall remain confidential: section 230 (10) (m) (ii) provides that “[a]dministrative warnings and consultations shall be confidential” and section 230 (17) (a)

and (c) provide that an order for “monitoring” of a physician (entered when “there is reason to believe that the licensee is unable to practice medicine with reasonable skill and safety to patients”) “shall be kept confidential . . . unless the licensee refuses to comply with the order.” On the other hand, one subdivision provides that the most serious forms of discipline are not confidential, even pending an administrative appeal: under section 230 (10) (g) the “findings, conclusions, determinations and order” of a committee on professional conduct “shall become public upon issuance in any case in which annulment, suspension without stay or revocation of the licensee’s license is ordered.” This provision was enacted to change the previous practice, in which no disciplinary findings were made public until the administrative review process had been completed (*see* Sponsor’s Letter to Counsel, Aug. 1, 1996, Bill Jacket, L 1996, ch 627).

No statute explicitly provides either for confidentiality or public release of the records of physician disciplinary proceedings where such proceedings result in some lesser discipline than “annulment, suspension without stay or revocation of the licensee’s license” or in dismissal of the charges. Strong reasons, however, support the Department’s policy of making public the records of proceedings in the first category after the administrative review process is complete. The public’s interest in knowing that a physician has been subjected to discipline—even, as in this case, the relatively mild discipline of a reprimand—is obvious, and we cannot conclude, in the absence of an express statutory provision, that the Legislature meant to withhold this information from the public. But in the case of a physician who has been wholly exonerated, the policy considerations are very different, and lead us to interpret Public Health Law § 230 (9) as prohibiting public disclosure. It is hard to imagine why the Legislature would have wanted to grant the public access to records of terminated proceedings that led to a doctor’s complete exoneration, while keeping confidential proceedings in which a doctor was subjected to “warning[],” “consultation[]” or “monitoring.”

In the sentence in *Doe* on which the Department relies, we referred to “disciplinary proceedings involving licensed professionals” and cited cases involving discipline of attorneys and judges, as well as medical professionals (*Doe*, 81 NY2d at 1052). It was then, and remains, our view that the policies governing confidentiality in these professions are broadly similar, though

each is governed by its own specific statutes and rules. The statutes governing judges and lawyers clearly require that disciplinary proceedings remain confidential, even after termination, where there is no finding of wrongdoing (Judiciary Law § 45 [1] [judges]; § 90 [10] [attorneys]). While the Legislature has not spoken as clearly in the case of doctors, we believe it intended the rule to be the same. We therefore hold that the statutes governing physician disciplinary proceedings require confidentiality, even after the termination of the proceedings, where no charge against the doctor is sustained.

[2] This holding does not resolve this case, for here one charge of wrongdoing was sustained while all the others were dismissed. Petitioner contends that the Department had an obligation to separate the sustained charge from the dismissed ones, and to make public only materials relating to the former.* Under the unusual circumstances of this case, we agree.

In cases where disciplinary proceedings lead to a mixed result, the Department should have discretion in deciding whether its records should be redacted to keep confidential material relating to the charges that were not sustained. In many cases, the Department may well be justified in refusing to redact. The Department is entitled to consider not only the extent to which public knowledge of the dismissed charges would aggravate the damage to the physician's reputation that is done when the sustained charges are publicized; it may also consider the administrative difficulty of redaction, and the importance of making the proceedings that resulted in discipline comprehensible to the public. In this case, however, we conclude that making the dismissed charges public was an abuse of discretion.

Here, the dismissed charges and the charge that was sustained were very different in kind. The dismissed charges related to a romantic encounter; the sustained charge to a telephoned prescription. They were also very different in gravity. The dismissed charges involved alleged abuse of a patient's trust, while the sustained charge involved a bit of carelessness in record-keeping that, apparently, would have resulted in no more than a confidential "administrative warning" if the dismissed charges had not been present. Finally, the dismissed charges and the sustained charge did not arise out of simultaneous or closely-connected events. The record-keeping failure occurred at least a

* In Supreme Court, petitioner asserted that all the proceedings relating to him should remain confidential. He has now abandoned that contention.

week after the office encounter. On these facts, it is impossible to justify permitting a minor, "technical violation" to result in sensational, but discredited, charges of serious wrongdoing becoming available to the public.

Accordingly, the order of the Appellate Division should be affirmed, with costs. The certified question should not be answered upon the ground that it is unnecessary.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order affirmed, etc.

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